THE TANZANIA LAW REPORTS 1981

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CITATION

These Reports are cited thus [1981] TLR

JUDGES OF THE COURT OF APPEAL OF TANZANIA IN 1981

The Hon. Mr. Justice F. L. Nyalali	— Chief Justice
The Hon. Mr. Justice A. Mustafa	— Justice of Appeal
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The Hon. Mr. Justice L. M. Makame	— Justice of Appeal
The Hon. Mr. Justice R. H. Kisanga	— Justice of Appeal

JUDGES OF THE HIGH COURT OF TANZANIA IN 1981

The Hon. Mr. Justice N. S. Mnzavas	—Principal Judge (Jaji Kiongozi)
The Hon. Mr. Justice M. C. P. Biron	— Puisne Judge
The Hon. Mr. Justice M. P. K. Kimicha	— Puisne Judge
The Hon. Mr. Justice L. Mfalila	— Puisne Judge
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The Hon. Mr. Justice L. J. Chua	— Puisne Judge
The Hon. Mr. Justice R. J. Ruhumbika	— Puisne Judge

CASES REPORTED

Abdi Ahmed *v.* Republic	C.A.	174
Abraham Wilson Saiguran and 2 Others *v.* Republic	H.C.	265
Akberali A. Manji and Another *v.* Mrs. Sakherkhanu J. Seleman	H.C.	235
Amida d/o Shabani *v.* Alfani Mtenga	H.C.	243
Amiri Awadhi *v.* Ahmed Ghoth	H.C.	10
Andrew Saniya *v.* Kalisti Kalekeri	H.C.	90
Augustini Kayoza *v.* Issa Shabani	H.C.	118
Benedicto Ndalo *v.* Republic	H.C.	8
Bi Asteria Gwalbert *v.* Abdu Seleman and Another	H.C.	97
Boniface Kagaruki and Another *v.* Idrisa Ramadhani	H.C.	103
Bukulukulu Ndoma *v.* Republic	C.A.	353
Celestine Kilala and Another *v.* Restituta Kilala	H.C.	76
Chikala Mwaja *v.* Balala Masaka	C.A.	180
Deocras Lutabana *v.* Deus Kashanga	C.A.	122
Deus Kashanga *v.* Deucres Lutabana	H.C.	19
Dickson Mbeyela and Another *v.* Republic	H.C.	2
Dinah Mutahyabarwa *v.* Rajab Adam	H.C.	46
Dotto d/o Malamla *v.* Lukelesha Lyaku	H.C.	29
Dr. Ashwinkumari Champsi Kesaria *v.* Mrs. Kundan Ashwinkumari C. Kesaria	H.C.	198
Director of Public Prosecutions *v.* Jaffari Mfaume Kawawa	C.A.	149
Director of Public Prosecutions *v.* Martha Evarist and Another	H.C.	96
Director of Public Prosecutions *v.* Wilbert Moshi	C.A.	160
Edom Godfrey Mlinga *v.* Republic	C.A.	140
Elias Kigodye and Other *v.* Republic	C.A.	355
Festo Muganda *v.* Kabobo Olyeba	H.C.	99
George Kumwenda *v.* Fides Nyirenda	H.C.	211
Hanif Ali Ladak and Another *v.* Regional Prisons Officer	H.C.	68
Harith Said and Brothers Ltd., *v.* Martin s/o Ngao	H.C.	327
Hassan Mzee Mfaume *v.* Republic	C.A.	167
Jackson Bambembuye *v.* Republic	H.C.	341
Jackson Simon Manitu *v.* Republic	H.C.	38
James s/o Bulolo and Another *v.* Republic	H.C.	283
Janet Lesilwa *v.* Tausi Swalehe	H.C.	14
John Sima *v.* Republic	H.C.	51
Joseph Francis Kilanga *v.* Republic	C.A.	349
Joseph Lupogo *v.* Republic	H.C.	191
Joseph Yusuf Masumbuko *v.* Republic	H.C.	1
Julius Billie *v.* Republic	H.C.	333

Jumanne Salum Pazi *v.* Republic	H.C.	246
Karanja Waihenya *v.* S. Marai	H.C.	86
Kastor Ng'owo *v.* Republic	H.C.	324
Kilejeka Fueda *v.* Richard Mseya	H.C.	53
Kisiri Mwita s/o Kisiri *v.* Republic	H.C.	218
Laurent Joseph and Another *v.* Republic	C.A.	351
Magazi Kilunga *v.* Republic	C.A.	165
Mahona *v.* The University of Dar es Salaam	H.C.	55
Maiko Malya *v.* Bibi Sesilia Paul	H.C.	224
Manyama Maresa *v.* Nyakwesi Mukangara	H.C.	297
Mashauri Ndoshi *v.* Republic	H.C.	109
Moshi d/o Ndege *v.* Jeremiah Masamba	H.C.	292
Murange Mahende *v.* Maricha Marosi	H.C.	259
Musa Ngusa *v.* Republic	H.C.	345
Nizzar Gulamhusein *v.* Kurwa Iddi	H.C.	207
Nyamhanga Bhoke *v.* Robi Nyamhanga	H.C.	44
Nyangi Gati *v.* Chacha Mwita	H.C.	293
Othman Kawila Matata *v.* Grace Titus Matata	H.C.	23
Pancras Alexander *v.* Republic	H.C.	92
Patman Garments Industries Ltd. *v.* Tanzania Manufacturers	C.A.	303
Paulo Aldred and Another *v.* Gervace Marianusi	H.C.	33
Peter Adam Mboweto *v.* Abdallah Kulala and Mohamed	C.A.	335
Republic *v.* Ishila Kitundu	H.C.	339
Republic *v.* John Katua	H.C.	257
Republic *v.* Joseph Methord	H.C.	291
Republic *v.* Kileni Zebedayo	H.C.	321
Republic *v.* Marwa Masahe	H.C.	216
Republic *v.* M/s S. P. Construction	H.C	6
Republic *v.* Richard Leonard	H.C.	287
Republic *v.* Salum Juma and Another	H.C.	48
Republic *v.* Thomas s/o Masurura	H.C.	217
Ruben s/o Otim *v.* Republic	H.C.	231
Saidi Ali Maswanya *v.* African Buyer and Trader (Publications) Ltd. and Another	H.C.	221
Salim Mbegu *v.* Republic	H.C.	279
Samwel Kubeja *v.* Republic	H.C.	72
Samwel Msivangala *v.* Republic	H.C.	319
Seif Ismail *v.* Republic	H.C.	36
Selemani Rashidi and Others *v.* Republic	H.C.	252
Silvanus Leonard Nguruwe *v.* Republic	H.C.	66
Stanley Kalama Mariki *v.* Chihiyo Kwisia w/o Nderingo Ngomuo	C.A.	143
The Manager—Imara Guest House *v.* Agnes Kaganda	H.C.	40

CASES REPORTED

Titos Kornelio v. Godfrey B. Mshana and Another	C.A.	128
Vicensio Tibo v. Sarapion Cyprian	H.C.	300
Wambura Sirati v. Hamisi Sambeka	H.C.	116
Wilfred Mahendeka v. Republic	H.C.	81
Zakayo Pwere v. Ibrahim Iddi	H.C.	182
Zawadi Abdallah v. Iddi	H.C.	311
Zinganisha Maneno v. Republic	C.A.	172

DIGEST OF CASES REPORTED

ADMINISTRATION OF ESTATE—*Administration of deceased's estate—Primary court's jurisdiction in administration cases.*

George Kumwenda *v.* **Fides Nyirenda** ..... **H.C.** 211

Administration of deceased's estate—Where primary court made order of administration but had no jurisdiction—What High Court to do.

George Kumwenda *v.* **Fides Nyirenda** ..... **H.C.** 211

ADMINISTRATIVE LAW—*Hebeas corpus application—Confinement in a fenced area at a resettlement centre—Whether tantamount to unlawful detention—Resettlement of Offenders Act, No. 8 of 1969.*

Samwel Kubeja *v.* **Republic** ..... **H.C.** 72

Delegation of powers—Executive functions—Non-delegeable under Cap. 333.

Titos Kornelio *v.* **Geofrey B. Mshana and**

Bl Bertha A. Hassan ..... **C.A.** 128

Ultra vires—Limits of official action by statutory bodies—When officials are protected from legal action—Meaning of "purported execution of functions"

Titos Kornelio *v.* **Geofrey B. Mshana and**

B. Bertha A. Hassan ..... **C.A.** 128

BANKING—*Forgery—Theft—Fictitious account opened—Appellant found to have operated the account—Writings on payment vouchers and cheques relating to the fictitious person—Forgery—Act of taking or receiving monies from the account—Theft.*

Zakayo Pwere *v.* **Republic** ..... **H.C.** 182

BILLS OF EXCHANGE—*Cheque—A cheque as a conditional payment—Effect.*

Harith Said and Brothers Ltd., *v.* **Martin**

s/o Ngao ..... **H.C.** 327

CIVIL PRACTICE AND PROCEDURE—*Appeals procedure—Appeals lie at the instance of the aggrieved party—An order striking out an application made under 0.6 r.16 of Civil Procedure Code, 1966, not appellable under ss.74; 75; 0.40 of Civil Procedure Code, 1966.*

Stanley Kalama Mariki *v.* **Chihiyo Kwisia**

w/o Nderingo Ngomuo ..... **C.A.** 143

Appeals procedure—Memorandum of appeal must be accompanied by a copy of the order appealed against (0.39 r.1(1); 0.40 r.2 Civil Procedure Code)

Stanley Kalama Mariki *v.* **Chihiyo Kwisia**

w/o Nderingo Ngomuo ..... **C.A.** 143

Declaratory decree—Power of court to order division of matrimonial property under s. 114 of the Law of Marriage Act, 1971 not applicable.

Amida d/o Shabani *v.* **Alani Mtenga** ..... **H.C.** 243

Decree—Sale ordered in execution of decree—Sale takes place—Later decree is reversed—Effect on title of bona fide purchaser for value.

Peter Adam Mboweto *v.* **Abdallah Kulala and Mohamed..** **C.A.** 335

Divorce-Petition—Grounds not on record—Order given—Whether legal.

Moshi d/o Ndege *v.* **Jeremiah Masamba** ..... **H.C.** 292

Limitation of time for appeals from the Rent Tribunal—Interpretation of Rule

4 of the Rent Restriction (Appeals) Rules, 1972, G.N. 357 of 1962—Treatment of the tribunal's decisions falling under the ambit of 0.22 r.1 of the Civil Procedure Code, 1966.

Akberali A. Manji and Another *v.* **Mrs. Sakerkhanu J. Seleman** ..... **H.C. 235**

Special case for opinion—Magistrate is uncertain of the legality of orders of another magistrate of same jurisdiction.

Dotto d/o Malamla *v.* **Lukelesha Lyaku** ..... **H.C. 29**

When a primary court magistrate can exercise his casting vote—Section 8(2) of Magistrate's Courts Act, 1963, 1963, Cap. 537—No power to overrule assessors.

Dotto d/o Malamla *v.* **Lukelesha Lyaku** ..... **H.C. 29**

CONSTRUCTION—*Jahari or jihazi—Its meaning.*

Amiri Awadhi *v.* **Ahmed Ghoth** ..... **H.C. 10**

Mahr-Whether different from customary mahari or bridewealth.

Amiri Awadhi *v.* **Ahmed Ghoth** ..... **H.C. 10**

CONTRACT—*Contract of service—Implied terms—Refund of capital not an implied term.*

Janet Lesilwa *v.* **Tausi Swalehe** ..... **H.C. 14**

Employee's negligence causes loss to property of a guest in a boarding or guest house—Whether employer liable.

The Manager—Imara Guest House *v.* **Egnas Kaganda** ..... **H.C. 40**

Obligations of keeper of boarding or private hotel in relation to property of a guest.

The Manager—Imara Guest House *v.* **Egnas Kaganda** ..... **H.C. 40**

Oral agreement to repair player—Parties agreed for new spares fitted, the removed old parts to be handed to owner of player—Repairer did not hand over removed old parts—Effect of such a breach on the main agreement.

Nizzar Gulamhussein *v.* **Kurwa Iddi** ..... **H.C. 207**

Sale of goods—Sale by description—Part of the goods not complying with description—Rights of buyer.

Boniface Kagaruki and Another *v.* **Idrisa Ramadhani** ..... **H.C. 103**

Sale of goods—Sale of specific goods—When property in the goods passes (s. 20 r.1, Sale of Goods Ordinance, Cap. 214).

Harith Said and Brothers Ltd. *v.* **Martin s/o Ngao** ..... **H.C. 327**

Sale of shamba by auction—Court order-Buyer purchased bona fide—Auction properly conducted—Court order later found to have no legal basis—Whether buyer's title defeasible because its legal basis is later removed.

Peter Adam Mboweto *v.* **Abdallah Kulala and Mohamed** ..... **H.C. 335**

Terms of a contract—Where time is of essence—a condition.

Harith Said and Brothers Ltd. *v.* Martin s/o Ngao ..... H.C. 327

COURT OF APPEAL RULES—*Appeal lodged out of time—Rule 8—Important points of law involved—Sufficient explanation for the delay to be given.*
Director of Public Prosecutions *v.* Jaffari Mfaume Kawawa ..... H.C. 149
Notice of hearing of appeal—Duly served—Accused does not appear—Court proceeds—Rule 73(b) of the Court of Appeal of Tanzania Rules, 1979.
Director of Public Prosecutions *v.* Wilbert Moshi ..... C.A. 160

CRIMINAL LAW—*Causation—Deceased who had been suffering from T.B. were beaten to death—Whether death due to natural causes.*
Elias Kigadye and Others *v.* Republic ..... C.A. 355
Claim of right—Whether defence to criminal trespass—Penal Code ss.299 and 9.
Salim Mbegu *v.* Republic ..... H.C. 279
Corruption—Adequate consideration—Property bought—Computation of value—What values to consider.
Edom Godfrey Mlinga *v.* Republic ..... C.A. 140
Corruption—Ingredients of the offence—Section 6 Prevention of Corruption Act, 1971.
Director of Public Prosecutions *v.* Jaffari Mfaume Kawawa ..... C.A. 149
Deception practiced on complainant—Complainant does not willingly part with money—Whether obtaining money by false pretences or simple theft.
Musa Ngusa *v.* Republic H.C. 345
Defence—Self-defence—Accident.
Bukulukulu Ndoma *v.* Republic ..... C.A. 353
Defilement—Absolute offence—Section 136(1) of Penal Code, Cap. 16.
Republic *v.* Kileni Zabadayo ..... H.C. 321
Forcible detainer—Squatter's rights—Whether squatter has a right of first refusal on a surveyed plot.
Pancras Alexander *v.* Republic ..... H.C. 92
Forgery—Fictitious bank account opened—Appellant found to have operated the account—Writings on payment vouchers and cheques relating to the fictitious person—Whether forgery perpetrated.
Zakayo Pwere *v.* Republic ..... H.C. 182
Forgery—Payment voucher purports to show a certain person is entitled to payment—Such person is in fact entitled to such payment—Whether any falsehood—Whether forgery.
Zakayo Pwere *v.* Republic ..... H.C. 182
Hoarding—Ingredients of—Penal Code, Cap. 16, ss. 194A (1) (2) (b) and 4
Mashauri Ndoshi *v.* Republic ..... H.C. 109
Manslaughter—Causation—Death as a result of running away from a

fight—Whether accused caused the death thereof.

Abdi Ahmed *v.* **Republic** ..... **C.A. 174**

Mens rea—Obstructing a police officer in due execution of duty—Mens rea an essential ingredient.

Wilfred Mahendeka *v.* **Republic** ..... **H.C. 81**

Murder—Causation.

Zinganisha Maneno *v.* **Republic** ..... **C.A. 172**

Murder-Provocation—Belief in witchcraft—Whether sufficient provocation to constitute defence to murder.

Magazi Kilunga *v.* **Republic** ..... **C.A. 165**

Persons jointly charged—If common intention to commit offence established—Conviction.

Jumanne Salum Pazi *v.* **Republic** ..... **H.C. 246**

Persons jointly charged—Impossible to ascertain which one committed the offence—Acquittal.

Jumanne Salum Pazi *v.* **Republic** ..... **H.C. 246**

Prevention of Corruption—Construction—Adequate consideration—Promise to repay interest free loan—Natural love and affection—Excluded—Section 6 of Prevention of Corruption Act, 1971.

Director of Public Prosecutions *v.* **Jaffari Mfaume Kawawa** ..... **C.A. 149**

Prevention of Corruption—Construction—Advantage—Disaster aid and assistance—Moral and social duty excluded—Section 6 of Prevention of Corruption Act, 1971.

Director of Public Prosecutions *v.* **Jaffari Mfaume Kawawa** ..... **C.A. 149**

Prevention of Corruption—Construction—Advantage—Public officer—Things not legally entitled to—Section 6 of Prevention of Corruption Act, 1971.

Director of Public Prosecutions *v.* **Jaffari Mfaume Kawawa** ..... **C.A. 149**

Prevention of Corruption—Construction—Consideration—Valuable consideration—Natural love and affection excluded—Section 6 of Prevention of Corruption Act, 1971.

Director of Public Prosecutions *v.* **Jaffari Mfaume Kawawa** ..... **C.A. 149**

Prevention of Corruption—Construction—Public officer under s.6 of Prevention of Corruption Act, 1971—Defined under s.2 of the same Act.

Director of Public Prosecutions *v.* **Jaffari Mfaume Kawawa** ..... **C.A. 149**

Procedure—Accused jumped bail after trial—Sentence can be imposed in absentia.

Inspection Note: Republic *v.* **Joseph S. Methord** ..... **H.C. 291**

Procedure—Charge of incest by males—Consent required under s.158(1) and (2) of Penal Code, Cap. 16—No consent—Accused should be discharged.

Inspection Note: Republic *v.* **Thomas s/o Masurura** ..... **H.C. 217**

Receiving stolen property with intention to hand it over to true owner—Whether an offence—Section 34(1) Penal Code, Cap. 16—Section 4 Penal Code.

Dickson Mbeyela and Another *v.* **Republic** ..... **H.C. 2**

Regulation of Prices Act—Selling goods above the maximum price—Regulation of Prices Act, 1973, ss.20 and 26.

Mashauri Ndoshi *v.* **Republic** ..... **H.C. 109**

Robbery with violence—Snatching and throwing out of a train window a suitace and pushing complainant away so as to run away—Time factor.

Jackson Simon Manitu *v.* **Republic** ..... **H.C. 38**

Sentence—Wildlife Conservation Act—Minimum sentence under s. 62(2)(a)—No discretion to district magistrate to impose lesser sentence.

Inspection Note: Republic *v.* **Marwa Musahe** ..... **H.C. 216**

Theft—Fictitious bank accout opened—Appellant found to have operated the account—Act of taking or receiving monies from the account—Whether theft.

Zakayo Pwere *v.* **Republic** ..... **H.C. 182**

Theft—Test for asportation.

Samweli Msivangala *v.* **Republic** ..... **H.C. 319**

Using abusive language to militiamen—Whether militiamen are eapected to exercise professional restraint to avoid breach of the peace.

John Sima *v.* **Republic** ..... **H.C. 51**

Wilful obstruction of a police officer in the due execution of his duty under s.243(b) of Penal Code—Construction.

Benedicto Ndalo *v.* **Republic** ..... **H.C. 8**

CRIMINAL PRACTICE AND PROCEDURE—*Abstention of accused before close of the prosecution case—Whether court may continue with the hearing in the absence of the accused—Section 202A Criminal Procedure Code, Cap. 20.*

Kastor Ng'owo *v.* **Republic** ..... **H.C. 324**

Acquittal erroneously recorded—Whether an acquittal within the meaning of s.32(4) of Criminal Procedure Code, Cap. 20.

Republic *v.* **John Katua** ..... **H.C. 257**

Acquittal erroneously recorded—Whether to be regarded as not existing.

Republic *v.* **John Katua** ..... **H.C. 257**

Alternative counts—Conviction entered on one count—No finding to be made on the other.

Republic *v.* **John Katua** ..... **H.C. 257**

Alternative verdict—Circumstances under which it is permitted—When a person charged with assaulting a police officer in the due execution of duty can be convicted of assault.

Mashauri Ndoshi *v.* **Republic** ..... **H.C. 109**

Appeal—Memorandum of appeal lodged out of time—Sufficient explanation—Important points of law involved—Rule 8 of Court of Appeal of Tanzania Rules, 1979.

Directors of Public Prosecutions *v.* **Jaffari Mfaume** ..... **H.C. 149**

Application for leave to appeal out of time—Late for about three years to lodge appeal—Trying to secure services of counsel—Whether sufficient reason to grant application.

Republic *v.* **John Katua** ..... **H.C.** 257

Assessment of value of property—Failure to give correct assessment—Fatal.

Edom Godfrey Mlinga *v.* **Republic**..... **C.A.** 140

Assessors—Failure by court to explain duty of assessors—Whether prejudicial to accused.

Magazi Kilunga *v.* **Republic**..... **C.A.** 165

Assessors—Failure of trial court to invite assessors to express their opinion—Consequences of such failure—Criminal Procedure Code s. 283.

Abdi Ahmed *v.* **Republic**..... **C.A.** 174

Bail—Accused jumped bail after trial—Sentence can be imposed in absentia.

Inspection Note: Republic *v.* **Joseph S. Methord**..... **H.C.** 291

Case partly heard by magistrate—Magistrate finds he has no jurisdiction—No preliminary inqury made—Accussed committed to high court for trial—Procedure irregular.

Republic *v.* **Ishila Kitundu** ..... **H.C.** 339

Charge—Accused found with a number of pistols—Whether charge under National Security Act, 1970 or Arms and Ammunition ordinance, Cap. 223

Joseph Lupogo *v.* **Republic**..... **H.C.** 191

Charge—Being in illegal possession of a single pistol—Proper charge—Whether under National Security Act, 1970 or Arms and Ammunition Ordinance, Cap. 223.

Joseph Francis Kilanga *v.* **Republic**..... **C.A.** 349

Charge—Regulation of Prices Act—Failure to cite an order fixing the maximum price—Whether defect fatal to the charge—Regulation of Prices Act, 1973, s.20.

Mashauri Ndoshi *v.* **Republic**..... **H.C.** 109

Charge—Variance between the charge and the evidence with respect to the time at which the offence was committed—Whether irregularily necessitates amendment of charge—Criminal Procedure Code, Cap. 20, s.209(2).

Abraham Wilson Saiguran and 2 others *v.* **Republic**..... **H.C.** 165

Charge—Wilful obstruction of a police officer in due execution of duty—Section 243(b) Penal Code, Cap.16–Omission of the word wilful–Charge defective.

Wilfred Mahendeka *v.* **Republic** **H.C.** 81

Charge of incest by males—Consent required under s. 158(1) and (2) of Penal Code—No consent accused should be discharged.

Inspection Note: Republic *v.* **Thomas s/o Masurura**..... **H.C.** 217

Charge of rape—Girl under 14 years—Whether proper under the law—Section 131 of Penal Code.

Republic *v.* **Kilenzi Zebadayo**..... **H.C.** 321

Effect of non-representation by counsel in a murder case.

Laurent Joseph and Another *v.* **Republic**..... **C.A.** 351

Expert evidence—Non-compliance of expert handwriting report with statutory

requirements as to authenticity—Whether report admissible in evidence.
Abraham Wilson Salguran and two Others *v.* **Republic**.... H.C. 265
Failure of an appellate court to re-evaluate evidence and to consider material issues involved therein—Procedure to be followed on appeal.
Hassan Mzee Mfaume *v.* **Republic**..... C.A. 167
Lack of representation by counsel in the case of one of several accused charged with murder—Appeal court orders retrial of the convict not represented by counsel at trial—Effect on appeal by the other convicts.
Laurent Joseph and Another *v.* **Republic**..... C.A. 351
Irregularity—Appeal made by a person not convicted—Proper procedure to be adopted—Magistrate's Courts Act, 1963, s.16(1).
Salim Mbegu *v.* **Republic**..... H.C. 279
Notice of hearing of appeal—Duly served—Accused does not appear—Court proceeds—Rule 73(6) of the Court of Appeal of Tanzania Rules, 1979.
Director of Public Prosecutions *v.* **Wilbert Moshi**..... C.A. 160
Occasioning loss to a specified authority—Whether cognate and minor offence to stealing by public servant.
Republic *v.* **John Katua**..... H.C. 257
Order of acquittal erroneously made—Whether appellate court may set it aside—Whether appellate court may substitute a conviction during appeal by appellant.
Republic *v.* **John Katua**..... H.C. 257
Payment of witnesses' expenses—Complainants' witnesses in criminal case not paid expenses by Republic—Complainant pays expenses—Whether complainant entitled to recover the expenses incurred from the accused person.
Kilejeka Fueda *v.* **Richard Mseya**..... H.C. 53
Plea of guilty—Prosecutor to re-state every constituent of the charge to accused.
Republic *v.* **M/s. S. P. Construction**..... H.C. 6
Prosecution requires Director of Public Prosecution's sanction—Sanction not obtained—Case partly head—A nullity.
Republic *v.* **Ishila Kitundu**..... H.C. 339
Refusal of prosecution witness to testify after being sworn in—Whether trial court entitled to rule no case to answer—Section 205 Criminal Procedure Code, Cap. 20.
Republic *v.* **Richard Leonard**..... H.C. 287
Revision—District court's revisional powers—Whether a conviction may be substituted for an acquittal.
Pancras Alexander *v.* **Republic** H.C. 92
Revision—Limitation period for exercising revisional powers—Section 18(2) Magistrate's Courts Act, Cap. 537.
Pancras Alexander *v.* **Republic**..... H.C. 92
Right of accused to address court after examining defence witness (ss.208, 281 and 163 Criminal Procedure Code).
Joseph Lupogo *v.* **Republic**..... H.C. 191
Search—Requirements—Section 118 of Criminal Procedure Code, Cap

20—Section 34 of Police Force Ordinance, Cap. 322.

Wilfred Mahendeka *v.* **Republic**..... H.C. 81

Second appeal—Misdirection or non-direction—Proper for court to interfere on matters of fact.

Director of Public Prosecutions *v.* **Jaffari Mfaume Kawawa**..... C.A. 149

Sentencing—Accused offers no mitigation—Instead calls upon court to impose any amount of fine—Whether a fine sentence is proper in the circumstances.

Republic *v.* **M/s. S. P. Construction**..... H.C. 6

Sentencing—Circumstances under which an appellate court will interfere with sentence imposed by a trial court.

Silvanus Leonard Nguruwe *v.* **Republic**..... C.A. 66

Sentencing—Confirmation of sentence—Whether confirming court may confirm a lawful but unsuitable sentence.

Republic *v.* **M/s. S.P. Construction**..... H.C. 6

Sentencing—Factors to be taken into account in assessing sentence.

Silvanus Leonard Nguruwe *v.* **Republic**..... C.A. 66

Sentencing—Interpretation—"Shall be liable to"—Qualifying words added—Effect on the court's discretion.

Jackson Bambembuye *v.* **Republic**..... H.C. 341

Sentencing—Offences planned and skilfully carried out—Whether minimum sentence adequate.

Zakayo Pwere *v.* **Republic**..... H.C. 182

Sentencing—Powers of the Court of Appeal to alter sentence.

Silvanus Leonard Nguruwe *v.* **Republic**..... C.A. 66

Sentencing—Prevalence of a particular type of offence in an area of the jurisdiction of the court—Whether a ground for a sentence of more than usual severity.

Silvanus Leonard Nguruwe *v.* **Republic**..... H.C. 66

Sentencing—Where legislation provides for the minimum and maximum sentence—Whether court may impose a sentence less than the minimum prescribed.

Jackson Bambembuye *v.* **Republic**..... H.C. 341

Trial without jury—Duty of first appellate court.

Jumanne Salum Pazi *v.* **Republic**..... H.C. 246

Trustworthy witness—Conflicting testimony of witness at trial—Whether appellate court can interfere.

Director of Public Prosecutions *v.* **Wilbert Moshi**..... C.A. 160

CUSTOMARY LAW—*Haya customary law—Bequest of clanland by females—Whether permitted under Haya customary law.*

Deocras Lutabana *v.* **Deus Kashaga**..... C.A. 122

Haya customary law—Disposition of holdings by female heirs—The law applicable.

Deocras Lutabana *v.* **Deus Kashaga**..... C.A. 122

Haya customary law—Inheritance—Land orally willed to niece—Half-

brother challenges the will—Whether niece can inherit.

Festo Muganda *v.* **Kabobo Olyeba**..... **H.C. 99**

Haya customary law—Inheritance—Whether a female can bequeath land—Whether a female can bequeath land to a non-clan member.

Deus Kashaga *v.* **Deocras Lutabana**..... **H.C. 19**

Haya customary law—Oral wills—Pre-requisites for validity.

Festo Muganda *v.* **Kabobo Olyeba**..... **H.C. 99**

Haya customary law—Sale of land by female—Requirement of consent to the sale by competent clansmen.

Paulo Alfred and Another *v.* **Gervace Marianusi**..... **H.C. 33**

Haya customary law—Sale of land by female—Whether permissible.

Paulo Alfred and Another *v.* **Gervace Marianusi**..... **H.C. 33**

Haya customary law—Whether a woman can bequeath clan-land to a non-clan member.

Vincensio Tibo *v.* **Saraplon Cyprian**..... **H.C. 300**

Wagogo customary law—Inheritance of deceased father's wife by son—Whether permissible in the light of provisions of the Law of Marriage Act, 1971.

Chikala Mwaja *v.* **Balala Masaka**..... **C.A. 180**

DEPORTATION ORDINANCE—*Detention pending deportation—Sections 2 and 5 Deportation Ordinance (Cap. 38)—Deportation order not appellable—Detention pending—Deportation lawful.*

Hanif Ali Ladak and Another *v.* **Regional Prisons Officer**..... **H.C. 68**

Identification of deportee—Certainty of identity necessary.

Hanif Ali Ladak and Another *v.* **Regional Prisons Officer**..... **H.C. 68**

ESTOPPEL—*By conduct—Whether there can be estoppel against a statute.* 128

EVIDENCE—*Accomplice evidence—Requires corroboration to sustain conviction—Matter of practice.*

Selemani Rashidi and Others *v.* **Republic**..... **H.C. 252**

Confession—Confession of a co-accused—Whether may support a conviction—Section 33 Evidence Act, 1967—Meaning of "take into consideration".

Selemani Rashidi and Others *v.* **Republic**..... **H.C. 252**

Confession to a ten-cell-leader—Whether confession to a person in authority—Admissibility—Evidence Act, 1967, s.27(3).

Zinganisha Maneno *v.* **Republic**..... **C.A. 172**

Corroboration—Evidence of witness interested in exonerating herself—Whether testimony can be acted on without corroboration.

Abraham Wilson Saiguran and two Others *v.* **Republic**..... **H.C. 265**

Effect of non-production of a thing which is the subject-matter of court

proceedings.

Julius Billie *v.* **Republic**..... **H.C. 333**

Evidence of a child of tender years-voir dire examination—Effect of omission to conduct it before swearing in a child of tender years.

Kisiri Mwita s/o Kisiri *v.* **Republic**..... **H.C. 218**

Failure to consider defence case—Whether fatal.

James s/o Bulolo and Another *v.* **Republic**..... **H.C. 283**

Fictitious bank account opened—Bank pass-book for the account found in appellant's house—Whether appellant operated the fictitious account.

Zakayo Pwere *v.* **Republic**..... **H.C. 182**

Handwriting expert—Operating a bank account under a fictitious name—Bank pass-book found in appellant's house—Whether handwriting expert need be called.

Zakayo Pwere *v.* **Republic**..... **H.C. 191**

National Security Act, 1970—Section 8(1)—Burden of proof.

Joseph Lupogo *v.* **Republic**..... **H.C. 287**

Refusal of prosecution witness to testify after being sworn in-Whether witness to be treated as a refractory witness—Section 153 Criminal Procedure Code, Cap. 20.

Republic v. Richard Leonard..... **H.C. 182**

FAMILY LAW—*Adultery—Parties living together under erroneous belief that they are legally married—Technical adultery.*

Celestine Kilala and Halima Yusuf *v.* **Restituta Celestine Kilala**..... **H.C. 76**

Conversion of monogamous marriage into a polygamous one—Whether change of religion by one party to the marriage constitutes conversion—Section 11(5) of the Law of Marriage Act, 1971.

Celestine Kilala and Halima Yusuf *v.* **Restituta Celestine Kilala**..... **H.C. 76**

Custody of children—Welfare principle applicable.

Celestine Kilala and Halima Yusuf *v.* **Restituta Celestine Kilala**..... **H.C. 76**

Damages—Compensation or damages for adultery—Computation—Matters considered.

Celestine Kilala and Halima Yusuf *v.* **Restituta Celestine Kilala**..... **H.C. 76**

Damages—Whether payable to a wife upon break-up of marriage.

Nyamhanga Bhoke *v.* **Robi Nyamhanga**..... **H.C. 44**

Decree of annulment—Relevant on voidable marriages—Section 96(1) of Law of Marriage Act, 1971.

Amida d/o Shaban *v.* **Alfani Mtenga**..... **H.C. 243**

Distribution of matrimonial property—Looking after the household and ministering to the welfare of the children alone—Whether constitutes joint efforts in acquisition of property under s. 114 of Law of Marriage Act, 1971.

Zawadi Abdallah *v.* **Ibrahim Iddi** ..... H.C. 311
Division of assets on dissolution of marriage.

Celestine Kilala and Halima Yusuf *v.* **Restituta Celestine Kilala** ..... H.C. 76
Division of matrimonial property—Deceased husband—Childless widow—Para 77 of the Law of Persons.

Manyama Maresa v. Nyakwesi Mukangara ..... H.C. 297
Divorce—Compensation for youthfulness—Services rendered—Not envisaged under s. 114 of Law of Marriage Act, 1971.

Nyangi Gati *v.* **Chacha Mwita** ..... H.C. 293
Divorce—Division of matrimonial property—A peasant couple—How to adduce evidence of contribution—Section 60 of Law of Marriage Act, 1971.

Nyangi Gati *v.* **Chacha Mwita** ..... H.C. 198
Divorce—Domicile—Abandonment of domile of origin—Acquring domicile of choice—Burden of proof—Evidence—Intention to live permanently—Standard of proof—Court's jurisdiction—Section 77(3) of Law of Marriage Act, 1971.

Dr. Ashwinkumari Champsi Kesaria *v.* **Mrs. Kundan Ashwinkumari C. Kesaria** ..... H.C. 259
Divorce—Dowry refund—Factors to be considered—Sections 52(B), 55 and 57 Law of Persons.

Mwange Mahende *v.* **Maricha Marosi** ..... H.C. 259
Divorce-Refund of brideprice—Whether a portion is refundable where there are children—Rule 52(B)—Not absolute—Court has discretion—Rule 54.

Wambura Sirati *v.* **Hamisi Sambeka** ..... H.C. 116
Divorce—Refund of dowry—Whether a legal requirement—Section 41(a) of Law of Marriage Act, 1971.

Moshi d/o Ndege *v.* **Jeremia Masomba** ..... H.C. 292
Divorce—Wife remarried—Whether refund is as of right.

Mwange Mahende *v.* **Maricha Marosi** ..... H.C. 259
Jahazi—Whether refundable following dissolution of marriage—No provision in the Law of Marriage Act, 1971—Islamic rules applicable—Factors to be considered in computing refund.

Amiri Awadhi *v.* **Ahmed Ghoth** ..... H.C. 10
Kuria customary law—Dowry—Whether to be paid only in cattle.

Nyamhanga Bhoke *v.* **Robi Nyamhanga** ..... H.C. 44
Law of Marriage Act—Whether customary law relating to inheritance of a deceased father's wife by a son is allowed—Sections 14(3) and 38(1Xb) Law of Marriage Act, 1971.

Chikala Mwaja *v.* **Balala Masaka** ..... C.A. 180
Subsisting marriage—Subsequent marriage—Void ab initio—Declaratory order follows—Section 94(2Xa) Law of Marriage Act, 1971.

Amida d/o Shabani *v.* **Alfani Mtenga** ..... H.C. 243
Whether a decree of separation is transitory and can be granted for a specific period.

Dotto d/o Malamla *v.* **Lukelesha Lyaku.** ..... H.C. 29

Whether separation is an automatic licence to divorce or evidence that marriage has broken down—Section 107(2)(f) Law of Marriage Act, 1971.
Dotto d/o Malamla v. **Lukelesha Lyaku**..... **H.C. 29**
Whether the court can grant separation in a petition for divorce—Section 82 Law of Marriage Act, 1971.
Dotto d/o Malamla v. **Lukelesha Lyaku**..... **H.C. 29**

INQUEST—*Where evidence shows someone has to answer for a death—What coroner to do.*
Director of Public Prosecutions v. **Martha Evarist and Another** ..... **H.C. 95**

INSURANCE—*Motor vehicle Insurance Ordinance—Driving an uninsured vehicle—Special reasons against mandatory disqualification from driving or holding or obtaining a driving licence—Section 4(2) Cap. 169.*
Republic v. **Salum Juma and Another** ..... **H.C. 48**
Seif Ismail v. **Republic**..... **H.C. 36**

LABOUR LAW—*Acceptance of terminal benefits—Whether estoppel to lodging further complaint.*
Mahona v. **The University of Dar es Salaam**..... **H.C. 55**
Appeal to Minister under Security of Employment Act—Effect of not supplying the other party with a copy of memorandum of appeal—Determination of appeal exparte Duty of Minister—Section 43 Security of Employment Act.
Mahona v. **The University of Dar es Salaam**..... **H.C. 55**
Declaration that termination was invalid—Effect on plaintiff's rights.
Mahona v. **The University of Dar es Salaam**..... **H.C. 55**
Natural justice—Minister deciding a case without hearing one of the parties—Breach of principle of natural justice.
Mahona v. **The University of Dar es Salaam**..... **H.C. 55**
Non-payment of wages—Employee need not prove—Burden on employer.
Janet Lesilwa v. **Tausi Swalehe**..... **H.C. 14**
Order by Board or Minister to reinstate employee—Employer's refusal to comply—Effect on employer.
Mahona v. **The University of Dar es Salaam**..... **H.C. 15**
Quantum meruit—Not paid to a monthly paid worker who wrongfully departs before the end of month—Section 39 of the Employment Ordinance.
Janet Lesilwa v. **Tausi Swalehe**..... **H.C. 14**
Termination of employment—Procedure not followed—Minister agrees with termination and orders accordingly—Minister's order null and void—Section 27(1) Security of Employment Act not applicable.
Mahona v. **The University of Dar es Salaam**..... **H.C. 55**
Termination of employment—Procedure not followed—Principle of natural justice breached—Order of Minister declared null and void-Remedy open to plaintiff.
Mahona v. **The University of Dar es Salaam**..... **H.C. 55**

Termination of employment—Two pieces of legislation providing for procedure to follow—Which of the two legislation to follow—University of Dar es Salaam Act, 1970, Security of Employment Act, Cap. 574.

Mahona *v.* **The University of Dar es Salaam**..... **H.C. 55**

LAND LAW—*Attachment and sale of land pursuant to a court decree to settle judgment debt—Challengeable on proof of undue hardship—Section 48 Civl Procedure Code, 1966.*

Stanley Kalama Mariki *v.* **Chihiyo Kwisia w/o Ngeringo Ngomuo**..... **C.A. 143**

Customary land law—Haya customary law—Attachment of property for sale to satisfy a judgement debt.

Andrew Saniya *v.* **Kalisti Kalekezi**..... **H.C. 90**

Customary law—Arusha customary land law—Transfer of land—Identification of land authority for the purposes of consent to land transfer—Effect of failure to comply with consent provisions.

Titos Kornelio *v.* **Geofrey B. Mshana and Bi Bertha A. Hassan**..... **C.A. 128**

Customary law—Of the Bahaya—A public path since time immemorial—Cannot, unilaterally, be closed or narrowed.

Dinah Mutahyabarwa *v.* **Rajab Adam**..... **H.C. 46**

Customary law—Of the Bahaya—Encroachment of public right of way—Distinction between "ilembo" and "omuhanda".

Dinah Mutahyabarwa *v.* **Rajab Adam**..... **H.C. 46**

Customary pledges—Whether property in a pledged shamba can pass to the pledgee without a court order on the pledger's failure to repay in time.

Andrew Saniya *v.* **Kalisti Kalekezi**..... **H.C. 90**

Fixtures—Installed aids of business or trade over or in a house by a tenant—Whether fixtures.

Kawanja Waihenya *v.* **S. Mawai**..... **H.C. 86**

Forcible detainer—Squatter's rights—Right of first refusal—Whether exercisable on a surveyed plot.

Pancras Alexander v. Republic..... **H.C. 92**

Powers of the President under s. 10 of the Land Ordinance, Cap. 113—Distinction between executive, judicial or quasi-judicial powers—No longer valid.

Patman Garments Industries Ltd., *v.* **Tanzania Manufacturers**..... **C.A. 303**

Right of occupancy—Power of the President to revoke—Revocation must be for good cause—Section 10(1) Land Ordinance, Cap. 113.

Patman Garments Industries, Ltd. *v.* **Tanzania Manufacturers**..... **C.A. 303**

Right of occupancy—Powers of the President to revoke—Whether court can inpugn the validity of the decision by the President—Section 10 (1) and (2) Land Ordinance, Cap. 113.

Patman Garments Industries, Ltd. *v.* **Tanzania Manufacturers**..... **C.A. 303**

Transfer of title—Deed acquired by fraud—What amounts to fraud.
Othman Kawila Matata *v.* **Grace Titus Matata** ..... **H.C. 23**
Transfer of title—Deed of transfer acquired by fraud—Transfer approved by Land Officer—Registered by Registrar of Titles—Effect of fraud on transfer, approval and registration.
Othman Kawila Matata *v.* **Grace Titus Matata** ..... **H.C. 23**
LANDLORD AND TENANT—*Protected tenants under the Rent Restriction Act, Cap. 479—When a tenant can be evicted under conditions of S.19 of Cap. 479—When notice is unnecessary under s.26(1) of Cap. 479.*
Maiko Malya *v.* **Bibi Sesilia Paul** ..... **H.C. 224**
Rent Restriction Act, Cap. 479—Increase of standard rent without recourse to the Rent Tribunal (ss.16(1)(a)(i) and 17(2)(a) of Cap. 479)—Increase of rent by resorting to the tribunal (ss.17(i)(n) and 4(2)(a) of Cap. 479).
Akberali A. Manji and Others *v.* **Mrs. Sakherkhanu J. Seleman** ..... **H.C. 235**
Rights of an outgoing tenant against an incoming tenant in relation to improvements effected by the outgoing tenant.
Karanja Waihenya *v.* **S. Marai** ..... **H.C. 86**
Right of a tenant to remove fixtures—Tenant effects improvements over or in a house at his own cost—Tenant quits and leaves premises—Landlord re-enters-Right of tenant to remove fixtures evaporates.
Kawanja Waihenya *v.* **S. Marai** ..... **H.C. 86**
Sufficiency of notice to vacate tenancy premises in a month to month tenancy—Application of English law—Section 2(1) of the Land (Law of Property and Conveyancing) Ordinance Cap. 114.
Maiko Malya *v.* **Bibi Sesilia Paul** ..... **H.C. 224**
LIMITATION—*Land law—Haya customary law—Redemption of clan land—Whether the period for redemption of clan land is to be guided by Haya customary law or the Limitation Rules of 1964, G.N. 311 of 1964.*
Bi Asteria Gwalbert *v.* **Abdu Seleman and Another** ..... **H.C. 97**
MINIMUM SENTENCES ACT—*Minimum sentence for attempted cattle theft—Minimum Sentences Act, 1972, ss.4(a) and 5(c).*
Samwel Msivangala *v.* **Republic** ..... **H.C. 319**
NATIONAL SECURITY—*Being in illegal possession of a single pistol—Whether that can endanger the security of the State.*
Joseph Francis Kilanga *v.* **Republic** ..... **C.A. 349**
Being in possession of a number of pistols—Whether a matter affecting the security of the State.
Joseph Lupogo *v.* **Republic** ..... **H.C. 191**
Evidence—Burden of proof under s.8(1) National Security Act, 1970
Joseph Lupogo *v.* **Republic** ..... **H.C. 191**
NATURAL JUSTICE—*A party's right to be heard.*
Pancras Alexander *v.* **Republic** ..... **H.C. 92**

OLICE FORCE ORDINANCE—*Search Requirements—Section 34 Cap. 322.*
Wilfred Mahendeka *v.* **Republic** ..... **H.C. 81**
OAD TRAFFIC—*Driving into a no entry—Whether amounts to careless use of a motor vehicle—Section 50 of Road Traffic Act, No. 30 of 1973.*
Ruben s/o Otim *v.* **Republic** ..... **H.C. 231**
Driving into a no entry—Whether any offence has been committed.

Road Traffic Act, 1973—Non-registration of change of ownership—Whether affects legal position on the question of passing of property.
Harith Said and Brothers, Ltd. *v.* **Martin s/o Ngao** ..... **H.C. 327**
LE OF GOODS—*Documents of title to goods—Whether a motor vehicle registration card included.*
Harith Said and Brothers, Ltd. *v.* **Martin s/o Ngao** ..... **H.C. 327**
Sale by description—Part of the goods examined—Buyer has not intimated to reject them within reasonable time—Whether he may reject.
Boniface Kagaruki and Another *v.* **Idrisa Ramadhani** ..... **H.C. 103**
Sale by description—Part of the goods not complying with description—Whether buyer has a right to reject all the goods.
Boniface Kagaruki and Another *v.* **Idrisa Ramadhani** ..... **H.C. 103**
Sale of specific goods—When property in the goods passes (s.20 r.1 Sale of Goods Ordinance, Cap. 214).
Harith Said and Brothers, Ltd. *v.* **Martin s/o Ngao** ..... **H.C. 327**
TATUTE—*The Villages and Ujamaa Villages (Registration, designation and administration) Act 1975—Effect on land held under customary law.*
Augustini Kayoza *v.* **Issa Shabani** ..... **H.C. 118**
OCK THEFT—*Being in unlawful possession of stock—Requirements to found a conviction—Sections 3(1) and 2(1) Stock Theft Ordinance, Cap. 422.*
Joseph Yusuf Masumbuko *v.* **Republic** ..... **H.C. 1**
ORTS—*Compensation for loss of trees on land held under customary law—Land governed by statute—Whether claim maintainable.*
Augustini Kayoza *v.* **Issa Shabani** ..... **H.C. 118**
Damages—Assessment of damages for defamation.
Saidi Ali Maswanya *v.* **African Buyer and Trader (Publications), Ltd. and Another** ..... **H.C. 221**
Defamation—Defamatory statement—Meaning of.
Saili Ali Maswanya *v.* African Buyer and Trader (Publications), Ltd. and Another ..... H.C. 221
Libel—Innuendo or interpretation.
Saidi Ali Maswanya *v.* African Buyer and Trader (Publications), Ltd. and Another ..... H.C. 221

JOSEPH YUSUF MASUMBUKO *v.* REPUBLIC (LUGAKINGIRA, J.)

JOSEPH YUSUF MASUMBUKO *v.* REPUBLIC

[HIGH COURT OF TANZANIA AT MWANZA (Lugakingira, J.)]

CRIMINAL APPEAL 127 OF 1979

Stock theft—Being in unlawful possession of stock—Requirements to found a conviction—Ss. 3 (1) and 2 (1) Stock Theft Ordinance, Cap. 422.

The appellant was convicted of possession of stock suspected of having been stolen. He appealed. The evidence raised reasonable suspicions about the appellant's lawful possession of the cattle. The High Court Judge considered whether such evidence was sufficient to found a conviction.

Held: (1) to found a conviction under s. 3(1) of the Stock Theft Ordinance, not only reasonable suspicions about the appellant's lawful possession should be established but it must also be established that the appellant was found in possession of the cattle in a specified area;

(ii) under s. 2(1) of the Stock Theft Ordinance a specified area means an area specified in the second column of the schedule thereto;

(iii) Magu District where the appellant was found with the cattle suspected to have been stolen is not a specified area under s. 2(1) of the Stock Theft Ordinance.

Appeal allowed.

No cases referred to:

L. Ojare for the Republic.

July 12, 1979. **LUGAKINGIRA, J.:** The appellant, Joseph Yusufu Masumbuko, was convicted of possession of stock suspected of having been stolen contrary to s. 3(1) of the Stock Theft Ordinance, Cap. 422. He was sentenced to five years' imprisonment. This appeal is against the conviction and sentence.

It was never in dispute that on 5 December, 1976 the appellant was arrested at Magu driving four head of cattle. I also think that there was evidence upon which reasonable suspicions could be entertained about the appellant's lawful possession of the cattle. These factors, however, were not sufficient to found a conviction under the provisions aforesaid. It had to be established, additionally, that the appellant was found in possession of the cattle in a specified area. Under s. 2 (1) of the Ordinance "specified area" means an area specified in the second column of the Schedule thereto. Like the learned state attorney, Mr. Ojare, I turned to the said Schedule but did not find Magu District listed thereunder. There was, therefore, no offence committed by the appellant. Suffice it to say that the entire Schedule is so out of date that it calls for immediate amendment.

Accordingly, I allow this appeal, quash the conviction and set aside the sentence imposed on the appellant. He should be set free forthwith unless further lawfully held.

Appeal allowed.

DICKSON MLEYELA AND ANOTHER *v.* REPUBLIC (JONATHAN, J.)

DICKSON MLEYELA AND ANOTHER REPUBLIC

[HIGH COURT OF TANZANIA AT DODOMA. (Jonathan, J.)]
CRIMINAL APPEAL 287 OF 1977

Criminal law—Receiving stolen property with intention to hand it over to true owner—Whether an offence—S.34(1) Penal Code—S.4 of Penal Code.

Appellant, Dickson Mleyela, received a stolen clock from one Aurensi with the intention of handing it over to the true owner thereof whom he knew. The district court convicted both Aurensi and Dickson of theft. On appeal the conviction of Aurensi was upheld. The High Court found Dickson not guilty of theft. It however considered whether Dickson could be convicted of receiving stolen property under s. 34(1) of the Penal Code.

Held: (i) a person who receives stolen property intending at once to hand it over to the police or the true owner, is not guilty of an offence under s. 34(1) of the Penal Code *(R. v. Mathews* (1950) 34 Cr. App. R. 55);

(ii) although the appellant knew the clock had been stolen, since he received and kept it in good faith intending to hand it over to the complainant he did not commit an offence under s. 34(1) of the Penal Code. *(R. v. Mathews (1950) 34 Cr. App. R. 55 followed);*

(iii) in construing the Penal Code, s. 4 requires the courts to be guided by the principles of natural justice.

Appeal of Dickson allowed.

Case referred to:

(1) *R.* v. *Mathews* (1950) 34 Cr. App. R. 55

March 30, 1978. JONATHAN, J.: Before the district court were the two appellants, whose appeals are consolidated in this judgment, charged jointly with the theft of a clock. They were convicted as charged and each sentenced to 18 months' imprisonment.

The first appellant Aurensi and P.W.1, the complainant woman are related in that she is the wife of the appellant's maternal uncle. The undisputed facts show that, while the complainant and her husband were away someone removed a clock hung on a wall inside their house and upon her returning, finding it missing and being told by P.W.4, her 7-year-old daughter that it had been taken by Aurensi she immediately started looking for him, and while doing so she came across Dickson the second appellant whom she asked. This appellant in reply said he, too, was looking for Aurensi as he had borrowed his flannel. She then reported the theft to P.W.2 and P.W. 3. Eventually, they found him. At first he denied knowing anything about the clock. It is the prosecution case, however, that in the end the appellant succumbing to their interrogation said that the clock would be found at the house of Dickson. He took them there and, true enough, Dickson said the clock was with him and brought it forth, his claim being that it had been brought there by Aurensi for safe custody.

P.W.4 in her evidence said, Aurensi on the relevant day came to their house and after she replied to him that her mother was away he removed the clock from the wall, put it in a black bag and made off with it. Incidentally, at the house of Dickson the clock was found in a black bag.

Dickson testifying in defence said that, on the relevant day at the request of Aurensi he lent him his flannel to wear before going out together to drink in the company of two others. After a long session, he said, Aurensi said he was leaving them temporarily. They went on drinking and, in the end, after he failed to return they left that venue for another drinking place, a pombe shop where he came across P.W.1 asking for Aurensi in connection with a missing clock. His reply was, as already stated: he, too, was looking for him to recover his flannel. He went home and while there, he said, Aurensi came forth having the exhibit clock and asking to keep it there for the time being. He knew he said, he had stolen it from P.W.1. He however, acceded to the request with the intention of keeping it for her. He then set out to look for her, which is why P.W.1, P.W.2 and P.W.3 did not find him at home and they had to send for him. This account appears borne out by D.W.2, his wife when she said the exhibit clock was brought there by Aurensi for safe custody.

Aurensi in his evidence denied stealing the clock and in regard to the alleged confession he said that all he had told the witnesses was that, as Dickson was a notorious thief and only on the previous day he had stolen his money, he might well be the person who had stolen the complainant's clock.

Respecting P.W.4, a child of tender age, the learned resident magistrate does not appear to have put her on any *voir dire* examination and I would remind him that, as provided in s. 127(2) of the Evidence Act, where it is sought to have a child of tender years give evidence the court has the obligation of examining him/her in order to satisfy itself if the child understands the nature of an oath. If so, the court should have her put on oath or affirmation. If however, she does not appear to understand this, the court should then make a further inquiry to find out if she is sufficiently intelligent to be heard in evidence and if she understands the duty of telling the truth. If both the answers are in the affirmative he/she should give evidence without being sworn. In this case the learned resident magistrate had

the girl give evidence not on oath. I would presume he found her too young understand the nature of an oath but otherwise sufficiently intelligent and appreciative of the duty to speak the truth. He should however, have recorded the notes of his examination whereby he came to this view, if for no other reason, to enable this court to make its own assessment of such view.

The young girl appears to have been familiar with Aurensi her cousin and the possibility of mistaking him for the culprit was practically non-existent. Her evidence, in law, did, however, require corroboration. The trial court found this to obtain in the evidence that he told the prosecution witnesses the clock was at the house of Dickson where it was in fact found. He has however claimed he only told them he suspected him as the thief since he had stolen from him on the previous day. The witness could not have been mistaken if the appellant's explanation was merely that of suspicion of Dickson, while it is significant the appellant made this suggestion for the first time in his evidence without having referred it to the prosecution witnesses at the time they gave evidence. He would not in any case have been drinking with a person who had stolen from him so recently. The evidence of Dickson supported, as it was, by that of D.W.2 must have removed any doubt there might possibily have been, and I am satisfied that, on the evidence as a whole the conviction of Aurensi was inescapable. Accordingly, his appeal is dismissed. The sentence seems severe, but not so excessive as to call for interference by this court and as it requires its confirmation it is hereby confirmed.

Coming to Dickson the lower court observed, and I quote:—

> . . . he had earlier on learnt that the exhibit had been stolen and yet received it without making a report to P.W.1 and this first accused was later found at a pombe shop when he gave out exhibit A, then we can safely, infer constructively that the first accused was conspiring with the second accused to steal exhibit A . . .

The learned magistrate accordingly convicted him of stealing. Clearly, he was misdirecting himself. Firstly, the appellant gave an explanation for receiving the clock even though he knew he had stolen it from P.W.1. Secondly, the appellant appears to have looked for her to report the incident and it is not true he was necessarily bent on withholding such development. There was absolutely no evidence of conspiracy and on the evidence it could not have been open to the trial court to convict Dickson of stealing, he could only have been considered whether on the facts he had been a guilty receiver. Now, as already stated he received the clock knowing it had been stolen.

Section 34—(1) Provides:

> Any person who receives or retains any chattel, money, valuable security or other property whatsoever, knowing or having reason to believe the same to have been feloniously stolen, taken, extorted, obtained or disposed of, is guilty of a felony, and is liable to imprisonment for ten years.

On the face of it Dickson would by these provisions seem convicted of receiving the clock for, he received it knowing it to have been stolen. I would not, however,

thing the law was intended to be such an unruly horse. Indications are that although he knew the clock had been stolen from P.W.1 he received and kept it in good faith with a view to reporting to P.W.1 and handing it over to her, and we may go on to add it would probably have adversely affected the complainant's interests if he had turned Aurensi away with the clock. Ought he, therefore, to be penalised for exercising his judgment and acting the way he did? Certainly not. I have looked, in vain, at Chapter IV of the Penal Code, namely, the general provisions determining criminal responsibility, to vindicate and uphold the act of the appellant. I think, however, that the section should be applied in such a way that it does not result in a travesty of justice and that, in this case the court should look to the intention of the appellant when he received the clock. He did not receive it to make it his own or otherwise to dispose of it in a manner inconsistent with the proprietary interests of the complainant; he received it merely as her self-appointed agent, holding it for her until such time as he found her and handed it over to her. This seems to accord with the view of the English Court of Criminal Appeal in *R. v. Mathews* (1950) 34 Cr. App. R. 55. There, as in this case, the accused had received property which he knew to have been stolen. His intention was however to hand it over to the police from whom the complainant could have recovered it. The court rejecting a proposition by the prosecution observed, *inter alia:*

> The court cannot possibly accept the argument. . . that a person who has received stolen property intending at once to hand it over to the police or the true owner, is nevertheless guilty of the felony of receiving stolen property . . That is so startling that I am surprised the argument can be put; at any rate, it is not the law.

I respectfully adopt this view and in doing so I rely also on the provisions of *s. 4 of the Penal Code* which expect the courts, in construing the Code, to be guided by the principles of natural justice. As already observed above, it would be patently unjust to convict Dickson for being considerate to the complainant.

Accordingly, the appeal of Dickson is allowed and it is ordered he be forthwith released from custody.

Appeal of Dickson allowed

R. *v.* M/S S. P. CONSTRUCTION

[HIGH COURT OF TANZANIA AT MWANZA, (Lugakingira, J.)]

CRIMINAL REVISION 23 OF 1978

Criminal Practice and Procedure—Plea of guilty—Prosecutor to restate every constituent of the charge to accused.

Criminal Practice and Procedure—Sentencing—Accused offers no mitigation—Accused calls upon court to impose any amount of fine—Whether a fine sentence is proper in the circumstances.

Criminal Practice and Procedure—Sentencing—Confirmation of sentence—Whether confirming court may confirm a lawful but unsuitable sentence.

The accused, an artificial person through its representative pleaded guilty to a traffic offence. The prosecutor did not restate the ingredients of the charge instead he said facts were as per charge sheet. The accused after accepting that the facts were correct showed arrogance before the court in lieu of mitigation and said any amount of fine would be paid. The court imposed a fine of shs. 10,000/- which was promptly paid.

The record went to the high court for confirmation of sentence. The learned judge also reviewed certain aspects of the proceedings.

Held: (i) where a conviction is likely to proceed on a plea of guilty the rule in *Yonasani Egalu* ought to be adhered to (*R.* v, *Yonasani Egalu & Others* (1942) 9 E.A.C.A. 65);

(ii) when an accused expresses arrogance in lieu of mitigation and declares that a certain type of punishment is of no consequence to him such a punishment would be unsuitable for him;

(iii) the trial court should have imposed a sentence other than a fine unless the law prescribed no alternative to a fine;

(iv) though the sentence imposed was unsuitable it was lawful.

Sentence confirmed.

Cases referred to:

(1) Rex v. Yonasani Egalu & Others (1942) 9 E.A.C.A. 65.

(2) *Paulo Mathias* v. *R.* [1970] H.C.D. n. 209.

January, 1979. **LUGAKINGIRA, J.:** The record of this case came up for confirmation of sentence. In that process it was also decided to look into certain aspects of the proceedings in revision, namely the plea and the suitability of the sentence.

It was a traffic case. The accused was charged with permitting a motor vehicle to be driven on the public road with defects c/ss. 39(1)(a) and 5(a) (sic) of the Road Traffic Act, 1973. I believe that by the latter provision it was intended to cite subsection (5). I will not dwell on that matter. The accused, through a representative, pleaded to the charge in the usual words: "It is true". That was on

21/10/78. Thereupon a plea of "guilty" was entered and the prosecutor applied to recite the facts on 23/10/78, which was granted. On the latter date, however, the prosecutor merely said: "The facts of the case are as per charge sheet, and this is the duplicate copy of the V.I.R. and I tender it in court . . ." The accused's representative who, we shall presently see, was impatient to leave the court, then stated: "The facts as adduced by the prosecutor are correct". A conviction was therefore recorded.

I have always been unhappy having to deal with matters which have been dealt with innumerable times before. I will do no more than quote from the oft-cited case of *Rex* v. *Yonasani Egalu & Others*, (1942) 9 E.A.C.A. 65, where the Court of Appeal said, at p.67.

> In any case in which a conviction is likely to proceed on a plea of guilty . it is not desirable not only that every constituent of the charge should be explained to the accused but that he should be required to admit or deny every constituent and what he says should be recorded in a form which will satisfy an appeal court that he fully understood the charge and pleaded guilty to every element of it unequivocally.

It may probably be clarified that it is not a statutory requirement to restate the facts if the particulars of the offence are sufficiently set out in the charge sheet and if after they have been read and explained to the accused he accepts them in unequivocal terms. Section 203 of the Criminal Procedure Code does not require the prosecutor to stand up and repeat what is already contained in the charge sheet. Experience has shown, however, that in cases commenced in subordinate courts it is the rule rather than the exception that charge sheets are rarely perfect. In most cases they are unintelligible and sometimes do not disclose any offence. It is therefore unsafe to stop at reading the charge. An appeal court will have reason for uncertainty where the facts are not recited and where the accused's answer to the charge is the stereotype—"It is true". Equally unsafe is merely referring the court to the charge sheet. There would still be reason for uncertainty even where the accused, as in the present case, gratuitously says "The facts as adduced by the prosecutor are correct". As stated by GEORGES, C. J. in *Paulo Mathias* v. *R.*, (1970) H.C.D. n. 209, "Except in the most trivial of traffic offences (and even then the practice is deprecated) the facts should not be entered merely as charged. They should be set out in full". In summary, the practice to state the facts in full, even at the risk of sheer repetition, has already become part of our procedural law. Accordingly, where a conviction is likely to proceed on a plea of guilty the rule in *Yonasani Egalu* ought to be adhered to.

It is a matter for relief that in the present case the omission to state the facts appears curable. I agree with Mr. Loomu-Ojare, learned counsel for the Republic, that the accused was not prejudiced by the irregularity. Whoever drew up the charge in this case, quite frankly, has a professional hand. The construction and content leave nothing to be desired. I am satisfied that the accused offered an unequivocal plea; but there should be no taking chances in future. I will leave the conviction undisturbed.

Before sentencing, the accused's representative was called upon to advance mitigating factors. He was so impatient and arrogant that what he said can best be appreciated if quoted in full. This it is:—

> I have nothing to say in mitigation except I pray for the court to hurry up because the time now is 11.55 a.m. and I am businessman. I have been here since morning in respect of this case only; if I would be at home I could have done a profitable work! And now I am prepared to pay any amount of fine which the court shall think proper.

Very naturally the trial magistrate was dismayed by these outbursts. After commenting appropriately he proceeded to sentence the accused to a fine of Shs. 10,000/- or twelve months' imprisonment. The fine was promptly paid.

This episode calls into discussion the purpose of punishment. I think I am right in saying that punishment is not revenue collection. The purpose of punishment is, among other things, to deter the offender or, in optimistic terms, to reform the offender. When the accused says nothing in mitigation he delivers himself to the unfettered discretion of the court to impose whatever lawful sentence it may consider fitting. When the accused expresses arrogance in lieu of mitigation he aggravates the punishment which might be imposed. And when the accused goes further and declares that a certain type of punishment, e.g., a fine, is of no consequence to him I think, with respect, that such a punishment would be unsuitable for him. The magistrate should not have permitted whoever this felon was to get away with any amount of fine. He should have given him the real opportunity to reform and, later, to observe decency in court.

Unfortunately, my hands are tied. The sentence imposed was lawful. But it being of no consequence it was unsuitable. Very reluctantly, I confirm the same.

Sentence confirmed.

BENEDICTO NDALO *v.* REPUBLIC

[HIGH COURT OF TANZANIA AT MWANZA, (Lugakingira, J.)]

CRIMINAL APPEAL 306 OF 1976

Criminal Law—Wilful obstruction of a police officer in the due execution of his duty under s. 243(b) of the Penal Code—Construction.

The appellant was charged and convicted of wilfully obstructing a police officer in the due execution of his duty.

On appeal it was contended, among other things, that the obstruction was not physical in that he just made a remark and that the remarks so made produced no results for the officers succeeded in apprehending the suspects.

Held: (i) every act and every omission which is capable of inhibiting a police officer in the due execution of his duty, and designed to do so is an obstruction;

(ii) the appellant's remarks amounted to an obstruction as his motive was to frustrate the police officers in their duty;

(iii) it is not an ingredient of the offence that the obstruction must succeed. It is sufficient if the obstruction is perpetrated wilfully and without lawful justification.

Appeal dismissed.

Case referred to:

(1) *Bastable* v. *Little* [1907] 1 K.B. 59.

February 18, 1977. **LUGAKINGIRA, J.:** At Mwaroni in the township of Mwanza is to be found the busiest harbour for local crafts and canoes. They ply in ladden with varieties of foodstuffs and take off carrying articles of merchandise. On 18 April, 1976 two police officers, P.W.1 and P.W.3, happened to be there on duty. They spotted a group of people with several bags of maize. They suspected that the maize was being illegally transported and approached to inquire. The appellant who was nearby became interested and drew closer. After listening to the interrogation he remarked that the officers were only after bribes and even exhorted the group of suspects to ignore them. He was arrested and charged with wilfully obstructing a police officer in the due execution of his duty c/s 243(b) of the Penal Code. Upon conviction he was sentenced to a fine of shs. 600/- which he paid and appealed.

There was no dispute about the basic facts. It was never disputed that the remarks were uttered nor was it ever in doubt that the officers were on duty. It was conceded, on the other hand, that the remarks produced no results for the officers succeeded in apprehending the suspects. The only question, therefore, was and remains whether the appellant's remarks amounted to wilful obstruction. The trial magistrate answered the question affirmatively although I have not been attracted to his reasons. It will be observed that s. 243(b) creates the *prima facie* impression that the obstruction spoken of has a physical attribute.

The entire s. 243, indeed the whole of Chapter XXIV of the Penal Code, is devoted to assaults. If obstruction is to be understood *ejusdem generis*, one would be excused for thinking that it refers to physical obstruction. I was therefore not surprised when learned counsel for the Republic argued along those lines. This, however, would be a very narrow interpretation. The spoken word is capable of giving rise to physical results as the application of actual physical force. If a person is verbally ordered to stop and he stops, I do not see the difference between this and physically restraining his body. I would suggest, therefore, that the obstruction spoken of in s. 243(b) is something wider than actual physical obstruction. Every act, and every omission, which is capable of inhibiting a police officer in the due execution of his duty, and designed to do so, is an obstruction. The English High Court expressed the same view in *Bastable* v. *Little*, (1907) 1 K.B. 59, where the obstruction complained of was a warning to motorists to slacken their speed and

beat a police trap ahead. I am satisfied that there was an obstruction in the instant case as the appellant's motive was to frustrate the police officers in their duty. In the same way, it does not appear to me as an ingredient of the offence that the obstruction must in fact succeed. It is sufficient if the obstruction is perpetrated wilfully, that is, without lawful justification. In this case the police officers were lawfully interrogating the group of suspects for the purpose of detecting crime. The appellant, aware of this, intervened to say that the officers were after bribes and advised that they be ignored. That was clearly designed to frustrate and inhibit the officers in their investigations. It was in the event an obstruction even though it was unsuccessful. On those considerations I would hold the trial magistrate correct in the decision he reached and sustain the appellant's conviction.

In imposing a fine of shs. 600/- or six months' imprisonment the trial magistrate observed that the police are servants of the public and need every co-operation rather than frustration. I agree with that observation. Hence, although the appellant was a first offender and his mischief bore no fruit, I think the sentence he earned was befitting. In the result the appeal fails in its entirely and it is accordingly dismissed.

Appeal dismissed.

AMIRI AWADHI *v.* AHMED GHOTH

[HIGH COURT OF TANZANIA AT DODOMA, (Lugakingira. J.)]

CIVIL APPEAL 65 OF 1980

Construction—Mahr—Whether different from customary mahari or bridewealth.
Construction—Jahari or Jihazi—Its meaning.
Family Law—Jahazi—Whether refundable following dissolution of marriage—No provision in the Law of Marriage Act, 1971—Islamic rules applicable—factors to be considered in refund.

The appellant and respondent were in-laws. The appellant had been married to the respondent's daughter and the marriage was judicially dissolved at the instance of the wife. Then the appellant sued in the Primary Court for recover of *Jahazi* of shs. 5,000/- and *gharama* of shs. 3,000/-. The claim of *gharama* was rejected but he was awarded *jahazi* on the ground that the divorce was an act of the court. The respondent appealed to the district court and his appeal was allowed on ground that there was no evidence of payment of *Jahazi* and even if there was evidence of payment of *Jahazi* it was still unrefundable since the appellant was adjudged the guilty party. The appellant was dissatisfied hence this appeal.

Held: (i) *Mahr* is a settlement in money or other property by a husband to his wife under Islamic Law and it is different from the customary *mahari* or bridewealth;

(ii) Jahazi (or jihaz in Arabic) is the bride's outfit, furniture, crockery, perfumes, etc., bought by the bride's father from money supplied by the groom.

(iii) Jahazi is refundable following the dissolution of a marriage under Islamic rules which have not been superceded by the Law of Marriage Act, 1971 as it does not deal specifically with the issue.

(iv) Jahazi is not refundable where it has been established that the husband is a guilty party.

Appeal dismissed.

No cases referred to:

F. S. Chambakare for the Appellant.

November 26, 1980. **LUGAKINGIRA, J.:** The parties to this case, both Arab Muslims, had been in-laws. The appellant had been married to the respondent's daughter and the marriage was judicially dissolved at the instance of the wife. Following the dissolution, the appellant sued in the Urban Primary Court, Dodoma to recover *jahazi* of shs. 5,000/- and *gharama* of shs. 3,000/- which he claimed to have incurred in connection with the wedding. The court rejected the claim for *gharama* for lack of evidence but it awarded the appellant half the *jahazi* on the ground that the divorce had been an act of the court.

The respondent was not satisfied and appelled to the district court. He was denying, as he still does, any knowledge of the *jahazi*. He was also complaining that the appellant had altered his claim from one of *mahr* to *jahazi*. The appellate Senior District Magistrate agreed with the respondent in these matters. He found that the *jahazi* had not been paid and that the appellant had been inconsistent in his claim. He therefore allowed the respondent's appeal. He observed, on the other hand, that even if there were evidence of payment of *jahazi*, it would still be unrefundable since the appellant was adjudged the guilty party in the divorce proceedings. The appellant appealed here through learned counsel Mr. Chambakare. Apart from remarking that the Senior District Magistrate had misdirected himself on the proceedings before the trial court, Mr. Chambakare argued before me that the Senior District Magistrate erred in disregarding the opinion of the assessor on the refund to *Jahazi*.

I think I should first clear the air on the proceedings before the primary court. On 9/8/79 the appellant filed a plaint claiming shs. 5,000/- "za mahari" and shs. 3,000/- "za gharama". Then on 21/8/79, and with the permission of the court, he filed an amended plaint in which he claimed shs. 5,000/- "ikiwa ni jahazi" and shs. 3,000/- "za gharama". It seems that he paid fresh or additional fees for the new plaint. On these facts, I do not think that the respondent can rightly complain about the procedure followed. I find it to have been in order. The Senior District Magistrate also misdirected himself in thinking that the appellant had been in-

consistent. If the appellant had altered the nature of his claim in the court of the evidence, that would have merited the adverse comments which were made, but not otherwise.

I will next turn to the issue of terminology. There is in Islamic Law what is termed *mahr*, but which is different from the customary *mahari* or bridewealth. The *mahr* is a settlement in money or other property by a husband to his wife. It may be specified, termed *al-mahru'l - musamma*, and payable immediately or deferred. It may also be unspecified, termed *mahru'l - mithl*. This case did not concern *mahr*. There is then what is called *jahazi* (Arabic: *jihaz*). This it the bride's outfit; furniture, crockery, perfumes, etc., bought by the bride's father from money supplied by the groom. In this case the appellant claimed that he supplied shs. 5,000/- for this purpose. The appellant also claimed to have incurred general expenses — *gharama*. He said that he bought rice, meat, condiments, etc., which were used to entertain guests at the respondent's home on the eve or on the day of the wedding. It is these which he valued at shs. 3,000/-. As we have seen, the trial court rejected this latter claim for want of evidence and the appellant had never sought to pursue the matter. In this appeal we are therefore concerned with *jahazi* only.

At the outset, I would respectfully disagree with the senior district magistrate in his finding that *jahazi* was not paid. The appellant called two witnesses who confirmed that he paid shs. 5,000/- to the respondent. I do not think that these witnesses had any reason to lie although they were said to be relatives of the appellant. Then in his own judgment the senior magistrate conceded that in the divorce proceedings, the respondent's daughter was awarded her personal effects which included items I have stated above. I therefore, think that on a balance of probabilities the appellant had proved payment of *jahazi*. What is important in this appeal is whether *jahazi* is refundable following the dissolution of a marriage.

The trial magistrate put the question to the assessor who merely said: "Kwa vile mahakama ndiyo ilitoa talaka basi jahazi liwe nusu bin nusu". I will at once say, with respect that this opinion, which the trial magistrate adopted, does not appear to be founded on any law, Islamic or otherwise. The assessor seems to blame the divorce on the court. I was of the view that he erred in adopting that attitude and I had to consider the law applicable. I first turned to the Law of Marriage Act of 1971 to ascertain whether this subject was not dealt with thereunder. I was satisfied that it was not. Section 69 of the Act deals with the right to damages for breach of a promise of marriage, which is a different thing. Then s. 71 deals with the return of gifts made in contemplation of a marriage which has not been contracted and which, again, is a different thing. There is thus no provision in the Act dealing specifically with the return of anything subsequent to divorce. For this reason, I am of the opinion that Islamic rules have not been superceded on this subject and continue to be applicable.

Unfortunately, it is not easy to put a finger on these rules. It seems to me that there are variations among the different schools of Islamic Law and even within a particular school. For all I could gather, *jahazi* is the Islamicised customary bridewealth and its antecedents have local or tribal characteristics. We may start with the views expressed at the trial. The appellant said: "Mimi nikiacha mke vitu

(jahazi) halirudi. Nikiachwa au mume akiachwa vinarudi akitaka. Mimi ninataka". His witness P.W. 2 also said: "Mume akimwacha mke jahazi harudishi (sic). Mke akimkataa mume aweza kudai (khuu) mali — inawezekana thamani ya khuu ikiwa ni lile jahazi au chini yake". It appears from these statements that the issue of guilt is a relevant factor. It would be safe to say even at this stage that when the husband divorced his wife by the old talak he was deemed to be the guilty party and could not be refunded the *jahazi*. The opposite was true when the wife left her husband. In East Africa and the Southern Arabian Peninsula the predominant school is that of the Shafiis. I believe that the parties to this case subscribe to this school. Speaking of the then Aden Protectorate which comes under this school, Professor Anderson says:

> The dower *(mahr, sadaq)* named at the actual contract of marriage is always small . . . But a considerably larger sum, usually termed *daf* but identified by some jurists with the bride's *jihaz*, is also provided by the bridegroom. . . It is this payment which represents the bridewealth of pre-Islamic Arabia and elsewhere, and part may be recovered if the bride runs away from her husband early in married life . . . (J. N. D. Anderson: *Islamic Law in Africa*, 2nd Edn., p.20).

The learned author goes on to reveal at p.29 that:—

> Bride-price *(daf)* is paid to the father who frequently spends it all, or even more, on the *jihaz* (trousseau, furniture, etc.): but it is not legally obligatory on a father to provide *jihaz* at all and he may instead put all the *daf* in his own pocket.

He further explains that the *jihaz* is the equivalent of the *yarad* of the Somalis in the then British Somaliland and continues, at p. 46.

> If the girl refuses marriage after her father has betrothed her and received part of the *yarad*, this may be reclaimed in the subordinate courts. If, however, she runs away from her husband soon after marriage and refuses to return, the repayment of part of the *yarad* is considered a gentlemanly act, but cannot normally be enforced in the courts. (He then adds in a footnote): "Unless the parent or guardian concerned supports her, when return of *yarad* is apparently regarded as automatic and even enforceable."

Professor Anderson also says that among the Baunchi of Northern Nigeria who subscribe to the Maliki School, nothing whatsoever is refundable where the husband is gravely at fault.

I think that these instances are sufficient as a guide. In all of them a concept prevails that *Jahazi* is not refunable where the husband is the guilty party. The appellant appears to admit this when he said "Mimi nikiacha mke vitu *(jahazi)* halirudi". But in this country the question of the husband divorcing the wife and *vice versa* does not arise. Apart from death, all marriages can only be dissolved by

a court decree. Thus, who is or who is not the guilty party does not depend on who initiated the divorce proceedings. It is all a matter of evidence. It was therefore unfortunate for the assessor to feel his hands tied by reasons of the fact that the marriage was dissolved by the court. That did not excuse the wrongs which any party to the divorce proceedings might have been guilty of. The court did not follow or invite anybody to litigate. It never does so. Besides, judicial dissolutions are not unknown in Islamic Law. There are in other countries, as there was in this country, dissolutions by *faskh* (sometimes rendered *faksh)* under which a Muslim Kadhi has power to dissolve a marriage on the application of a wife. For all intents and purposes this is a judicial dissolution. Asaf Fyzee, in *Outlines of Muhammadan Law*, says that this procedure is founded on *Verses* 34-35 of the Fourth Chapter of the Koran. Yet this procedure does not appear to affect the legitimate rights of any party subsequent to divorce. I am therefore of the view that even where there is dissolution by a court, the refund of *jahazi* would still be considered in the light of the evidence, regard being had of where guilt lies.

It was found by the trial court, and it has never been disputed, that the appellant was the guilty party in the divorce proceedings. In that event he is not entitled to the refund of *jahazi*. I therefore uphold the decision of the district court and dismiss the appeal with costs.

Appeal dismissed.

JANET LESILWA *v.* TAUSI SWALEHE

[HIGH COURT OF TANZANIA AT DODOMA, (Lugakingira, J.)]

MISCELLANEOUS CIVIL APPEAL 2 OF 1980

Labour Law—Quantum meruit—Not paid to a monthly paid worker who wrongfully departs before the end of the month—Section 39 of the Employment Ordinance.

Labour Law—Non-payment of wages—Employee need not prove—Burden on employer.

Contract—Contract of Service-Implied terms—Refund of capital not an implied term.

The appellant was employed by the respondent as an attendant in a beer store by an oral contract on terms that she will be paid shs. 380/- per month. She commenced employment on 10/11/78 and terminated on 23/3/79. The respondent who was staying for gave the respondent shs. 3,000/- as capital for beer store business and also authorised the appellant to collect rent on her behalf from tenants residing at two different premises of the respondent. A dispute arose on the

appellant's failure to properly account for the business profit and the rents collected. The respondent decided to quit her employment and reported to the labour officer that she had not been paid wages. The labour officer referred the matter to the district court. The respondent denied liability instead she did put up a counter-claim on the capital advanced to the appellant, unremitted profits, rents and other money earned or received by the appellant on her behalf. The district court allowed the counter claim and dismissed the claim of the appellant hence this appeal.

(ii) an employee whose wages are calculated on a monthly basis would not be entitled on a *quantum meruit* should he wrongfully depart from work before the end of the month;

(iii) refund of capital by an employee to the employer is not a subject of an implied term of contract of service but a term that must be secured by an express agreement.

Appeal allowed in part.

No cases referred to.

August 8, 1980. **LUGAKINGIRA, J.:** This appeal arises from a suit brought under the Employment Ordinance, Cap. 366. The appellant was employed by the respondent as an attendant in a beer store at Makole in Dodoma. The contract and its performance were wholly oral. It was common ground, however, that employment commenced on 10.11.1978 and terminated on 23.3.1979. It was also not greatly disputed that the terms, if there were more, included payment of wages at the rate of shs. 380/- per month. The business took off with a capital of shs. 3,000/- which the respondent handed to the appellant in cash. The respondent also owns premises for renting at Makole and Kikuyu. On the same occasion she requested the appellant to collect rents on her behalf from the said premises. The respondent was staying at Mpwapwa with frequent visits to Dodoma. On 23.3.1979 a dispute arose between the parties on account of the appellant's failure properly to account for the business profits and the rents collected by her. Thereupon, the appellant quit her employment; but she has since alleged to have been paid no wages at all and so straight referred the matter to the Labour Office. A Labour Officer was unable to effect a settlement and, in accordance with s. 132 of the Employment Ordinance, he referred the matter to the district court.

In accordance with the report filed by the Labour Officer, the appellant was claiming a total of shs. 5,348/-30 made up of (a) shs. 1,806/65 arrears of wages; (b) shs. 380/- payment in lieu of notice; (c) shs. 228/- severance allowance; (d) shs. 88/65 for seven days' leave; (e) shs. 1,753/90 overtime payment; and (f) shs. 1,091/10 for weekly rest days. In her written statements of defence the respondent denied liability on the above claims or any of them. She then put up a counter-claim for shs. 5,348/30 in the English statement or shs. 5,480/- in the Kiswahili statement, made up of (a) shs. 3,000/-, the capital advanced, and (b) the rest in unremitted profits, rents and other moneys earned or received by the appellant on her behalf. The trial resident magistrate dismissed the appellant's claim. He

allowed the counter-claim in the sum of Shs. 5,540/- with costs. This appeal is against the decision. There is nothing of substance in the memorandum of appeal as such but the proceddings raise a number of issues to which I will address myself.

Before going into the various issues which arise, I wish to correct one misconception on the part of the trial court. The proceeding was taken as a workmen's compensation case, was registered under that designation and was so referred to by the trial magistrate in his judgement. That, of course, was an error—*a lapsus memoriae,* I should say. The matter fell under the Employment Ordinance and the procedure followed was in accordance therewith. On the other hand, the Workmen's Compensation Ordinance, Cap. 263, is an Ordinance of tragedies, namely incapacity and death, and the compensation therefor. And the awards made under that ordinance are not appellable except where otherwise provided. I am satisfied that this appeal is properly before this court as it is governed by the provisions of the Employment Ordinance. In deciding it, I will naturally divide it into two major parts: the respondent's liability to the appellant and the latter's liability to the former.

It was conceded that the appellant was in the respondent's employment from 10.11.1978 to 23.3.1979. The questions that arise are whether the appellant was not paid her wages and, if so, the extent to which she was entitled to payment. The learned resident magistrate dealt with the former issue. He found that the appellant was paid all her wages. On examining the evidence, I think I have reasons to differ. In her own evidence the respondent made two specific references to wages. The first was in respect of November. For that month she stated that she paid the appellant shs. 230/— "as half her salary". She made no particular reference to the wages of December, January and February.

Her second reference was in respect of March. She there admitted to have made no payment, prefacing the admission with a blanket allegation that that was the only month in which she had so failed. In fact, even the trial magistrate remarked that, apart from November, "The defendant did not tell the court whether or not she paid the plaintiff her salaries for the rest of the months in question". The only evidence that was in the respondent's favour came from Rehema Juma (D.W.1), one of the respondent's tenants. She claimed generally that the appellant was at all times paid her wages. But she subsequently modified her statement and said this was so for the first two months. Nevertheless, the trial magistrate decided "to place much reliance" on Rehema, to use his words. I think he was not entitled to. We have just seen that Rehema was inconsistent. Besides, her testimony did not necessarily agree with the respondent's. I can in those circumstances see no justification for placing more reliance on her than on the respondent. It needs only be reiterated that the burden of proving payment lay on the respondent. The appellant did not have to prove but to allege non-payment. I do not think that this burden was discharged by the respondent's silence or her blanket statement plus Rehema's inconsistencies. On a balance of probabilities, therefore, I am prepared to find, as I do, that the respondent paid shs. 230/- for the days worked in November. But I find that there was no payment thereafter. I do so in considering also that in December and February the respondent came to

Dodoma to demand her own rights from the appellant without apparent success. It is unlikely, in this situation, that the respondent herself had money to spare for the appellant. I am therefore satisfied that there was no payment of wages after November, the appellant was therefore entitled to some arrears.

I now turn to consider the extent to which the appellant was entitled to payment. I have no hesitation in saying that she was entitled to arrears for December, January and February, amounting to shs. 1,140/-. My preoccupation has been whether she was entitled to payment for the 23 days worked in March. To my mind this depended on whether the appellant was dismissed or had her services wrongfully terminated. It also depended on the date her wages were due. The appellant claimed that she was dismissed but the trial magistrate disagreed. He found that "the plaintiff for reasons best known to herself terminated herself from employment and either started her own business or went gay with her boyfriend to Kongwa". There was evidence to support this observation and I accept it as legitimate. In fact the appellant ran off when called upon to render accounts and profits, never to be seen again. I am satisfied that she terminated her own services. I would go further and say that the termination was not justified. It was thus in evidence that the parties were intimately bound, to the extent that their employer-employee relationship was sealed with no more than mutual confidence and trust. Had the respondent not woken up to demand her rights, the appellant would probably have been on her job todate. Hence the trial magistrate also remarked that "nothing would have reached either the Labour Office or this court". I am therefore unable to say that the appellant left her job because of arrears of wages. She did so to escape her own liabilities to the respondent. Her action was therefore in breach of the contract of service. There is no doubt, on the other hand, that the appellant's wages were to be calculated on a monthly basis. In the absence of evidence to the contrary, I take this as reference to a calendar month. It follows that the appellant's wages were due at the end of each calendar month. At common law if wages are payable monthly and the employee wrongfully leaves before the month's wages are due he forfeits all right to them. He is not entitled to claim payment on a *quantum meruit*, the rationale being that the employee's wrongful departure is a self-induced frustration. The position in this country is governed by s. 39 of the Employment Ordinance. It provides, and I quote,

> 39. Subject to the provisions of this ordinance, and to the terms, express or implied, of the contract of service, upon termination of any oral contract the employee shall be paid wages upon a *quantum meruit* in respect of the performance by him in whole or in part of the contract.

Generally speaking, therefore, an employee has a right to a *quantum meruit* payment upon terminating his own services. But as the provision so clearly states, this right is curtailed by a number of considerations, including the terms, express or implied, of the contract of service. In this case it was an implied term of the contract that wages would be due and payable at the end of the calendar month. But the appellant absconded without lawful cause a week or so before the end of

March. In that event she had not yet earned the wages for March for they were not yet due. She was thus excluded from the right conferred by s.39. This position accords fully with the common law position stated above that conduct like the appellant's amounts to a self-induced frustration. We may therefore restate this position simply by saying that an employee whose wages are calculated on a monthly basis would not be entitled to payment on a *quantum meruit* should he wrongfully depart before the end of the month. On that basis, I hold the view that the appellant herein was not entitled to payment for the 23 days worked in March.

There can be no doubt, in the light of the foregoing, that the rest of the appellant's claims were bound to fail. I need not go into any details. I agree with the learned resident magistrate that there was no evidence to establish the claim for overtime or weekly rest days. The paradox of it all is that the appellant appears to have devoted more time to her own affairs than she did to the respondent's business. I also agree to the manner and cirumstances in which the appellant terminated her own employment.

I come to the appellant's liability to the respondent. I will treat the subject under two heads, i.e., the capital of shs. 3,000/- and the rest of the counter-claim. I will begin with the former.

The question of refund of capital occasioned me considerable difficulty. The trial magistrate decided it on the simple basis that shs. 3,000/- had been advanced and had not been returned. I think that was not the issue. What was in issue was more fundamental, namely, whether the appellant, not being a borrower but an employee, was bound to return the capital as such. I must confess that I am not aware of any law or precedent or of any commercial usage, custom or practice where an employee was required to refund the capital. The duties of an employee to his employer are, *inter alia*, the exercise of diligence, skill and care in the running of the employer's business and the rendering of profits and other moneys earned or received. These are matters that are implied in any contract of service. Deviation therefrom would be an act of negligence and tantamount to breach of the contract. This would give the employer the right of action for damages to compensate the loss occasioned by the breach. But the requirement for the refund of capital cannot be the subject of an implied term and I have never heard to the contrary. In the most unusual circumstances such a term must be secured by express agreement. There was no evidence of such agreement in this case and it is not clear why the respondent made a specific prayer for the capital. As I have indicated, I think the respondent's remedy lies in an action for breach of contract generally. I also feel free to add that evidence would not be wanting. Unfortunately, even if I were able to, I cannot in these proceedings transform the respondent's claim into damages for not much is known about her losses. But I leave it open to her to pursue the issue separately if she is minded to do so.

The remaining matters present no difficulty as they depended on credibility. We have already seen that the appellant also collected rents and other payments on the respondent's behalf. This activity was not part of her employment as a beer store attendant. She therefore acted as an agent. Admittedly, it does not appear that she was paid for her services but in accordance with s. 137 of Law of Contract Ordinance, Cap. 433, no consideration is necessary to create an agency. One of the

agent's duties is to remit to the principal all moneys received by him on account of the principal. It was in evidence that Rehema Juma (D.W.1) gave shs. 1,200/- to the appellant from the sale of the respondent's maize. The appellant denied this but the trial magistrate, rightly in my view, believed Rehema. Secondly, Rehema stated to have paid rent of shs. 200/- for herself and another of shs. 50/- from someone who worked with Ujenzi. I would, on my part, accept that shs. 200/- was paid. I would not accept payment of shs. 50/-, as the trial magistrate did, for a person not named and not called to testify. Thirdly, another tenant Judith Masanika (D.W.2) said she paid shs. 330/- as three months' rent. The trial magistrate overlooked her true evidence. Finally, there was Yusufu Muyinga (D.W.3), a tenant at the Kikuyu house. He stated that on 1.2.1979 he paid shs. 210/- to the appellant who had gone there in a taxi at about 8.30 p.m. I accept that too. The witness further stated that on 3.3.1979 he paid shs. 880/- for himself and his co-tenants. The appellant admitted receipt of this money and claimed to have remitted it to the respondent. I agree with the trial magistrate that the appellant did not remit this or other moneys referred to as indicated by the respondent's complaints to the defence witnesses. The only known remittance was for shs. 500/- made on 23.3.1979 in respect of the business profits. In all, therefore, the appellant is liable to the respondent in the sum of shs. 2,820/-. Since she also claims shs. 1,140/- from the respondent her actual liabilities is shs. 1,680/-.

Accordingly, the appeal is allowed in part. The appellant's liability is now shs. 1,680/- which the respondent will be paid. The parties will bear their respective costs of this appeal.

Appeal allowed in part.

DEUS KASHAGA *v.* DEOCRES LUTABANA (LUGAKINGIRA, J.)

DEUS KASHAGA *v.* DEOCRES LUTABANA

[HIGH COURT OF TANZANIA AT MWANZA (Lugakingira, J.)]

CIVIL APPEAL 57 OF 1977

Customary Law—Haya Customary Law—Inheritance—Whether a female can bequeath land—Whether a female can bequeath land to a non-clan member.

One Juliana Ichumbaki, a woman, by a will bequeathed land to the appellant, a distance clansman with the consent of other clansmen. The respondent challenged this bequest on the ground that according to Haya Customary Law a female is not allowed to bequeath land. The appellant contended that according to Haya Customary Law bequest is allowed provided it is made to a clansman. Respondent won in the lower courts. On appeal similar arguments were raised.

Held: (i) paras 20 and 31 of the 2nd schedule to G.N. 436 of 1963 prohibit female heirs from selling land to any person but do not prohibit bequest within the clan;

(ii) Juliana Ichumbaki was right in bequeathing the land to the appellant, a clansman, though a distant clansman.

Appeal allowed.

Case referred to:

(1) *Kyokuhaile* v. *Kikanja and Others* [1971] H.C.D. n.185.

Ed. Note: See Deocres Lutabana v. *Deus Kashaga (1981) T.L.R. In which the* Court of Appeal of Tanzania reversed the decision in this case.

November 2, 1980. **LUGAKINGIRA, J.:** The parties are members of the same clan but belong to different "mahiga" or "mashina". According to Haya law they cannot inherit each other's properties if there be nearer clansmen. This proceeding was prompted by a breach of that rule. There was a woman called Juliana Ichumbaki who died sometime in 1976. She belonged to the parties' clan but, allegedly, to the respondent's "shina". She had written a will bequeathing her shamba to the appellant. The respondent sued her and the appellant challenging the validity of the will. He claimed to be entitled to the inheritance. Juliana died shortly after her evidence was recorded.

Both the primary and district courts found in the respondent's favour. They held that the appellant could not inherit Juliana's shamba because he did not belong to her "shina". They also referred to para (20) of the Second Schedule to G.N. 436/63, and held that, as a female heir, Juliana had no right to dispose of the shamba in any way but enjoyed a life interest only. The appellant appealed here.

On the face of it the decisions of the lower courts appear to be sound. But after perusing the record it has occurred to me that these decisions ignored a number of undisputed background facts. I will enumerate them. First of all, Juliana took and adopted the appellant since 1957. Second she did so during the life time and with the concurrence of her late brother, one Costa. Thirdly, the appellant stayed with or looked after Juliana to the exclusion of all other clansmen since then until she died. Fourth, Juliana wrote a will bequeathing her property to the appellant, which was witnessed by some clansmen, including Costa (deceased), Shuzali Mujungu (D.W.3) and Petronia Karaba (D.W.4). Finally, the respondent was aware of all these things and events but did not raise a finger until Juliana was on her death-bed.

I will now turn to consider the Haya rule and para (20) aforesaid beginning with the latter. Para (20) of the Second Schedule to G.N. 436/63 is one with para (31) thereof and the latter states:—

> (31) Kama mtoto ni mmoja tu peke yake, yeye atarithi mali yote—isipokuwa kama yeye ni mwanamke hawezi kurithi ardhi ya ukoo ambayo ataweza

> kuitumia bila kuiuza wakati wa uhai wake. Hata hivyo, kifungu cha 20 kifuatwe.

And para (20) states:—

> (20) Wanawake wanaweza kurithi, isipokuwa ardhi ya ukoo, ambapo wanaweza kuitumia bila kuiuza wakati wa uhai wao. Lakini kama hakuna wanaume wa ukoo ule, mwanamke anaweza kurithi ardhi hii kabisa.

So much has been made of these provisions that one begins to wonder whether their operation is not being overstretched. One thing is quite clear: The purpose of these provisions is to preserve and keep clan land within the clan. In order to achieve this female heirs are deprived of a saleable title in such land. What I cannot see, however, is the suggestion that these provisions prohibit female heirs from bequeathing such land to members of their own clan. It seems to me that the provisions prohibit *sale to any person* but they do not prohibit *bequest within the clan.* Many litigants and the courts in Bukoba have always cited *Kyokuhaile* v. *Kikanja and Others,* [1971] H.C.D. n. 185, which was cited even in this case, to justify the notion that females cannot bequeath clan land. I have found myself compelled to revert to this case but could find nothing like what is attributed to it. This was a case combining a sale and a bequest. The appellant sued the respondents to recover a clan shamba part of which was sold by his aunt to some of the respondents and part bequeathed by her to the rest—all of them being her children. Dealing with the sale KISANGA, AG. J. (as he then was) said:—

> Josephina (the seller), being a female, could only use the clan land but may not sell it if there are male members of the clan. Since the appellant Andrea (Kyokuhaile) was a male member of Josephina's clan, I am of the view that the provision of the said s.20 would operate to deprive Josephina the power to sell the land.

To my understanding, that is the true import of para (or section) 20. When the learned judge turned to the bequest by the same woman he said:—

> I am of the view that Josephina could not bequeath the land. . . It seems that s.20. . . seeks to preserve clan land within the family and therefore it provides that a female may not sell the clan land if there is a male member of the family. By parity of reasoning, it would seem that the policy to keep clan land within the family would also operate to deprive Josephina of the power to bequeath the land *to persons outside her father's clan.* (my emphasis).

It is evident from the phrase underlined above that what the learned judge held, and in my view correctly, was that a female may not bequeath clan land outside the clan. He did not hold, and paras 20 and 31 do not say, that a female has no

power of bequest. What they cannot do is to bequeath such land outside the clan as Josephina had done, unless there be special circumstances as attended the instant case.

What has transpired is also the generally accepted practice among the Bahaya. But a female does not simply live and die without indicating her preference of an heir. Females may and do bequeath clan land so long as it is bequeathed to the right people. The respondent himself acknowledged this saying:—

> . . . haidhuru mdaiwa Na. 2 (appellant) ni mwana ukoo, si wa shina letu, bali wa shina jingine; mdaiwa Na. 1 (Juliana) angelirithisha shamba hilo kwa mwana ukoo wa shina letu.

It means the respondent would not have complained had Juliana bequeathed the shamba to a member of her own and the respondent's "shina". He was not questioning her power to bequeath as such. The Haya law of inheritance, however, is not inflexible. Under certain circumstances the "shina", and even "clan", rule may be related in favour of common sense and equity. In this regard, paras 31 and 32 of Cory & Hartnoll are relevant. They state as follows:—

> 31. *Nomination of Heir:* A testator can choose his heirs, but he must choose them among those who are entitled to inherit.
>
> 32. *There is one exception to this rule:* If a testator can prove that he has been completely neglected by his relatives, he may choose anyone as his heir.

It is para 32 above which makes relevant the background facts enumerated in the third paragraph of this judgement. I need not repeat them in full. Suffice it to say that from 1957 to 1976 Juliana knew of no clan assistance but the appellant's. The respondent admitted this, though insolently, saying: "Kwa kuwa mdaiwa Na. 2 alimpa mdaiwa Na. 1 marupurupu mengi ndicho kishawishi cha mdaiwa Na. 1 kumpa mdaiwa Na. 2 shamba linalozungumzwa". What is more, Juliana bequeathed the shamba to a clansman, albeit a distant one, and, most importantly, she received the consent of other clansmen. In the light of this and in the light of Cory's para 32, I am satisfied that Juliana Ichumbaki did not err in what she did. I find that her will was valid and hold accordingly.

In the result, this appeal succeeds and is thus allowed. The judgements and orders of the courts below are set aside and the appellant Deus Kashaga is declared a lawful heir to Juliana's property. He will have his costs here and in both courts below.

Appeal allowed.

OTHMAN KAWILA MATATA v. GRACE TITUS MATATA (LUGAKINGIRA, J.)

OTHMAN KAWILA MATATA v. GRACE TITUS MATATA

[HIGH COURT OF TANZANIA AT MWANZA (Lugakingira, J.)]

CIVIL CASE 13 OF 1978

Land Law—Transfer of title—Deed of transfer acquired by fraud—What amounts to fraud.

Land Law—Transfer of title—Deed of transfer acquired by fraud—Transfer approved by Land Officer—Registered by Registrar of Titles—Effect of fraud on transfer, approval and registration.

Plaintiff, eldest of eleven children born to one James Titus Matata, deceased, in a case heard ex-parte, challenged the validity of a deed of transfer, in favour of the defendant, a seventh born children of the deceased, on a house built on a plot held on a right of occupancy alleging fraud. Six days before James Titus Matata died defendant caused to be executed in her favour a deed of transfer on the house. Later the transfer was approved by the Land Officer and registered by the Registrar of Titles. Evidence was adduced to prove that on the day the deed was executed defendant took hold of the deceased's right thumb, pressed it on a stamp pad and next pressed it on the papers. It was further in evidence by two medical consultants and two other witnesses that for a long time before deceased was admitted to hospital he was of abnormal intelligence and could not make rational decisions.

Held: (i) where wickedness on the one side co-exists with incapacity on the other, the proper charge is fraud.

(ii) where the victim is not a conscious participant in the transaction imputed to him, that would be the gravest manifestation of fraud.

(iii) when the deceased's thumb-mark was obtained he was incapable of comprehending or willing anything by reason of his enfeebled mind; the deed was, therefore, not his deed.

(iv) the transfer was void, the approval of the Land Officer was void and the registration of the transfer by the Registrar of Titles was similarly void.

Judgement for plaintiff.

Cases referred to:

(1) *Le Lievre* v. *Gould*, [1893] 1 Q.B. 491

(2) *Bater* v. *Bater*, [1951].

(3) *R. G. Patel* v. *Lalji Makanji*, [1957] E.A. 314.

(4) *Clough* v. *London and North Western Ry. Co.*, [1871], L.R. 7 Exch. 26.

July 24, 1980. **LUGAKINGIRA, J.:** This case was heard ex parte. The plaintiff is the eldest of eleven children born to James Titus Matata who died at

Mwanza on 18 March, 1975. The defendant is the seventh born. The deceased was survived by a single property: a house on Plot No. 183, Block "U", at Mitimirefu in the township of Mwanza. He held the plot on a right of occupancy under Certificate of Title No. 12108. It was alleged by the plaintiff that six days before James Titus Matata died the defendant fradulently caused to be executed in her favour a deed of transfer on the said property and right of occupancy. She then obtained the consent of a Land Officer to the disposition and caused it to be registered by the Registrar ot Titles. The Plaintiff brought this action as legal personal representative of the deceased praying that the transfer be set aside for the fraud.

On 10 April, 1978 the plaintiff was appointed administrator of the deceased's estates. He was granted letters of administration, Exh. A. He gave a moving account of the events leading to this suit. He told the court that the late James Titus Matata was a victim of diabetes for a long time. He finally died of the disease at Bugando Hospital in Mwanza. Following this event the plaintiff tried to apply for letters of administration in the district court, Mwanza. It was then that he learnt of the defendant's activities. He alleged that the defendant went and made an informal objection to the court, and a complaint to the police, claiming that she had purchased the deceased's house and that the plaintiff had falsely sworn to its ownership. In consequence, the plaintiff was arrested but no charge was preferred. Somehow, too, his application to the court was not dealt with. In desperation the plaintiff wrote to the Regional Land Development Officer, Mwanza, on 9 October, 1975 requesting him to withhold consent to any disposition of the property until the question of administration had been resolved. This letter, and another to which I will refer, is contained in the Land Office file Exh. D, as folio 9 and thereon marked Exh. D1. Subsequently, the defendant did present a deed of transfer to the Land Office where it was received and fees charged on 15 November, 1975. The disposition was eventually approved on 8 September, 1977 and the deed was forwarded to the Registrar of Titles at Dar es Salaam who registered the same on 3 October, 1977 as Filed Document No. 67373 (Exh. B). I will now turn to the particulars of the suit beginning with the deceased's illness.

On 14 March, 1975 the deceased was first taken to Sekou Toure Clinic and then to Bugando Hospital by Henry Matata (P.W.4) and Phares Lushinge (P.W.5). The former was another of his children and the latter his domestic servant. They testified that at that time, and for several weeks previously, the deceased could not speak, move or feed himself. The consultants who attended the deceased had left the country at the time of this suit. The patient's record, Exh. C, was therefore tendered by Dr. F. C. Kigadye (P.W.2). head of the department of internal medicine at the hospital. Again, for ease of reference, I have marked the relevant folios therein as Exhs. C1, C2 and C3. At Sekou Toure Clinic it was noted on the front page of Exh. C1 that the patient was a known case of diabetes since 1971. For one month previously he could not talk, walk or eat properly. He was coughing, had chest pains and wounds all over the body. He was referred to Bugando the same day. On the lower half of the back page of Exh. C1 a consultant whom Dr. Kigadye identified as Dr. Brigitte Corrigan noted that the patient looked "as if he has been ill for a long time". She went on to note that he was covered with bed sores, could not speak and "doesn't seem to understand". The following day, 15 March, the

patient was seen by another consultant whom Dr. Kigadye identified as Dr. Nayar. On Exh. C.2 Dr. Nayar wrote that the patient was "A completely demented, senile man, with faecal and urinary incontinence and bed sores". According to the Exh. C3 the patient died on 18 March, 1975 at 10.00 a.m. due to "diabetes (final stage) plus pneumonia". Dr. Kigadye explained that the condition of the patient was described by the two consultants could not have been a sudden development: he must have been in that state for a long time previously. He explained further that Dr. Nayar's note about the patient being "completely demented" meant that he was of abnormal intelligence and could not make rational decisions. The plaintiff called this evidence to show that for quite some time before his admission, the deceased did not have the mental and physical ability to comprehend, to do, or to say anything. Yet, it is this same person who, on 12 March, 1975—two days prior to his admission at Bugando—was presented as having understood and thumb-printed the deed of transfer, Exh. B. It is therefore opportune to see how the deed was executed.

The deceased was not illiterate. Indeed he was a retired Post Master, having worked with the then East African Posts and Telecommunications Corporation for 25 years. Yet, the deed of transfer bears his thumb-mark. It was testified by Phares Lushinge that on 12 March, 1975, about 4.00 p.m., the defendant and a man he knew as Matemba arrived at the deceased's house. The witness had then laid the deceased on a seat in the sitting room. When the defendant and her companion entered the house the witness went to sit on the steps in the doorway and could see and hear everything going on in the sitting room. The defendant greeted the deceased with "Shikamoo!" But there was no reply. Then, and without further preliminaries, the defendant took out papers and opened a stamp pad. In cold blood, she took hold of the deceased's right thumb, pressed it on the stamp pad and next pressed it on the papers. Then she and her companion left. The whole ceremony lasted hardly five minutes. The court required the witness to describe the defendant's companion. He gave a description that answered to Mr. Tukunjoba, an advocate then based in Mwanza. Indeed the deed of transfer shows that the execution was attested by Mr. S. B. M. Tukunjoba. The witness was also emphatic that the defendant was accompanied by one man only. He was equally emphatic that after this caremony the defendant, either alone or in company with any other person, never returned to see the deceased until he died. And yet on another page of the deed there is a certificate by Mr. C. K. Matemba, a Mwanza advocate, to the effect that he had explained the meaning and import of the deed to the deceased before he subscribed his thumb-mark. This certificate is also dated 12 March, 1975. If Phares Lushinge is to be believed—a matter to which I shall later address my mind—it would mean that at no time on 12 March or thereafter did the defendant with the real Mr. Matemba see the deceased. It would also mean that Mr. Matemba's certificate was false. It is upon these facts that the plaintiff alleged fraud.

I must confess that I found it not easy a task to decide whether these facts disclosed fraud or incapacity. There was, apparently, an element of both. To begin with, the subjects of incapacity are political status (alien enemies), infancy, corporate personality and unsoundness of mind, by which I include lunacy and

drunkenness. At common law even married women previously had no capacity to contract at all. I will say nothing about the first three. I will briefly consider the last—unsoundness of mind—for it has an approximation to the observed state of the deceased. Generally, a contract entered into by a person of unsound mind is not void *per se* but voidable. He can repudiate it if he can prove that at the time of contracting he was so insane as not to appreciate the meaning and import of his action and that the other party was aware of this fact. Fraud, on the other hand, and with respect to all academic hair splitting, is no more than deliberate misrepresentation and undue influence. It may equally be perpetrated on a person of unsound mind. Hence, in Kerr or Fraud and Mistake, 17th ed., p. 177, it is said:—

> . . . when a person, who, from his state of mind, age, weakness, or other peculiar circumstances, is incapable of exercising a free discretion, is induced by another to do any act which may tend to the injury of himself or his representatives, that other shall not be allowed to derive any benefit from his improper conduct . . . The principle is that it is right and expedient, not to save persons from the consequences of their own folly, but to save them from being victimised by other people.

One thing is thus clearly evident: Whether it be incapacity or whether it be fraud, the personal participation of the victim is contemplated. He enters into the contract. His liability is only vitiated by his disability or by the wickedness of his partner. The present case, I have already said, contains elements of both incapacity and fraud. But it is different in so far as the facts suggested that the deceased did not participate at all. The manner in which his thumb-mark was obtained, if true, amounted to a battery on his person. It is this aspect which I found without precedent. But having given anxious consideration to the issue, I am persuaded to believe that the facts of the case, again if true, disclose fraud aided by incapacity. I say so because incapacity is purely concerned with the disabilities of the victim. But fraud, while it may take the victim's disabilities into consideration, is primarily concerned with the moral uncleanliness of the other party. It was thus said by LORD ESHER in *Le Lievre* v. *Gould*, [1893] 1 Q.B. 491 at p.498, that "charge of fraud is such a terrible thing to bring against a man that it cannot be maintained in any court unless it is shown that he had a wicked mind". To summarise, therefore, where wickedness on the one side co-exists with incapacity on the other the proper charge is fraud. And where it be shown that the victim was actually not a conscious participant in the transaction imputed to him, that would be the gravest manifestation of fraud and any transaction so brought about must, in my view, be absolutely void. The burden of proof in these matters may be briefly set out. It is settled law that fraud must be strictly proved. In *Batter*, [1951] P. 35 at p. 37, LORD DENNING said:—

> A civil court, when considering a charge of fraud will naturally require a higher degree of probability than that which it would require if considering whether negligence were established.

And even more pertinently, the Court of Appeal for East Africa said in *R. G. Patel* v. *Lalji Makanji*, [1957] E.A. 314 at p. 316:—

> Allegations of fraud must be strictly proved: although the standard of proof may not be so heavy as to require proof beyond reasonable doubt, something more than a mere balance of probabilities is required.

It is upon that standard that the plaintiff's allegation is to be considered. I will require something more than a balance of probabilities. This burden is not lessened by the fact that this case was heard *ex parte*.

There was evidence that the deceased was incapable of speech or comprehension and could not move himself before and at the time of admission at Bugando. This was testified to by Henry Matata and Phares Lushinge. It is these witnesses who looked after the deceased and finally took him to hospital. I found nothing in their demeanour that could be impugned. I believe that they were witnesses of truth. I believe them more because of the similar observations made independently by two medical consultants. In this regard I also accept Dr. Kigadye's opinion that the deceased must have succumbed to his disabilities long before his admission. These disabilities included the fact that the deceased was completely demented. Dr. Kigadye explained that it meant the deceased was of abnormal intelligence and could not make rational decisions. The dictionary meaning of "demented" is "out of one's mind: insane: suffering from dementia"; and "dementia" means "general mental enfeeblement, with loss of memory, reason, feeling and will" (Chambers Dictionary, 1966 imp.). I am therefore satisfied, and so find, that on 12 March, 1975, when the deceased's thumb-mark was obtained, he was incapable of comprehending or willing anything by reason of his enfeebled mind. In consequence, the deed was not his deed. On the other hand, Phares Lushinge testified about the manner the thumb-mark was obtained. In the absence of evidence to the contrary I accept his word that the defendant lifted up the deceased's thumb, pressed it on the stamp pad and next pressed it on the deed. In so accepting I am mindful also of the evidence that the deceased was incapable of movement. That explains the presence of bed sores all over his body which means he was always lying down. Such a person would not have the appetite, let alone the physical strength, to shuffle and execute documents.

Phares Lushinge also said that nothing was said to the deceased apart from "shikamoo" which elicited no reply. That casts doubt on the genuineness of Mr. Matemba's certificate. It is unlikely also that Mr. Matemba did the explaining and left the attestation to Mr. Tukunjoba. In this regard it had to be recalled that Phares Lushinge further testified that the defendant was accompanied by one man only and was never seen again after that occasion. With respect, and regret, I find that Mr. Matemba never did any explaining and that his certificate was false.

I have no doubt whatsoever that the defendant was fully aware of the deceased's state when she took his thumb-mark. In fact she took advantage of that state. I am therefore satisfied that she acted with a depraved conscience, hence, fraudulently. It may well be that the deceased had at one time in the past expressed an intention to vest the building in the defendant. Such indications are to be found

in the defendant's letter, Exh. D2. But as long as the deceased never lived to fulfil his alleged promise, it was an act of fraud for her to be presumptious and to usurp the deceased's will and power. Even Elibariki Lyimo (P.W.3), the Land Officer who approved the disposition, was emphatic that he would not have done so had he known that the deceased's thumb-mark had been fraudulently obtained. In the final analysis, I am satisfied that the plaintiff succeeded in proving fraud.

The state of the law is that a contract founded on fraud will not be cancelled if there is affirmation or acquiescence. That is why in *Clough* v. *London and North Western Ry. Co.*, [1871] L.R. 7 Exch. 26 at p. 34, it was said that where there is delay in repudiating such a contract it would probably be treated as conclusive evidence of an election to recognise the contract. In the instant case the plaintiff first learnt of the defendant's activities in October, 1975. That same month he wrote to the Regional Land Development Officer objecting to any disposition. And that was before the defendant had actually submitted her deed of transfer to the Land Office. Unfortunately, the plaintiff got no reply to his letter. Then the disposition was approved on 8 September, 1977 and registered on 3 October, 1977. When this came to the plaintiff's attention he immediately reapplied for letters of administration which were granted on 10 April, 1978. He filed this suit on 11 April, 1978. It is clear to me, therefore, that the plaintiff never acquiesced in the fraud. On the contrary, he reacted with expedition at every material event. I am satisfied that he merits the relief sought by him.

In conclusion, it needs only be recorded that fraud vitiates everything—even judgements and orders of the court. It taints the transaction and all its ramifications. For that reason, in this case, not only was the transfer void, but void as well were the approval by the Land Officer and the registration by the Registrar of Titles. It similarly ought to go on record that although the deed of transfer alleged a consideration of shs. 16,000/-, it seems that no consideration was furnished by the defendant. This is again readily inferrable from her letter, Exh. D2. However, the plaintiff did not plead this issue, presumably because the transaction was in writing and registered. I am therefore not called upon to discuss the matter in this judgement. I will straight away, as I now do, enter judgement for the plaintiff with costs and set aside the transfer. Accordingly, it is ordered that the Land Register shall be rectified under s.99 of the Land Registration Ordinance, Cap. 334 by cancelling the memorial registered against Certificate of Title No. 12108 as Filed Document No. 67373.

Judgement for plaintiff.

DOTTO D/O MALAMLA *v.* LUKELESHA LYAKU (LUGAKINGIRA, J.)

DOTTO D/O MALAMLA *v.* LUKELESHA LYAKU

[HIGH COURT OF TANZANIA AT MWANZA, (Lugakingira, J.)]

MISCELLANEOUS CIVIL CASE 1 OF 1978

Civil Practice and Procedure—When a Primary Court Magistrate can exercise his casting vote—Section 8(2) of Magistrates Court Act, Cap. 537—No power to override assessors.

Civil Practice and Procedure—Special case for opinion—Magistrate is uncertain of the legality of orders of another magistrate of same jurisdiction.

Family Law—Whether the court can grant separation in a petition for divorce—Section 82 of the Law of Marriage Act, 1971.

Family Law—Whether a decree of separation is transitory and can be granted for a specific period.

Family Law—Whether separation is an automatic licence to divorce or evidence that marriage has broken down—Section 107(2) (f) of Law of Marriage Act, 1971.

The petitioner applied for divorce before the primary court which was strongly opposed by the husband. The two assessors unanimously rejected the petition. However the magistrate purporting to exercise his casting vote under s.8(2) of the Magistrate's Court Act ordered that the parties be separated for a period of one year and if they were not yet reconciled by that time the court would grant divorce. The parties appeared before another primary court magistrate after one year for divorce. Being not sure of the legality of the order of his predecessor the primary court magistrate stated this special case for opinion.

Held: (i) primary court magistrate has no power to override the two assessors when they have decided in the majority;

(ii) where a magistrate is uncertain of the legality of orders of another magistrate of the same jurisdiction on a matter referred to him on the same can state a special case for opinion;

(iii) court can grant decree of separation in lieu of divorce and *vice versa* only where the petitioner for divorce has prayed in the alternative;

(iv) a decree of separation is not a transitory decree but a complete and independent decree which cannot be granted for a specific period;

(v) separation whether voluntary or by a court order however long it may have continued, is not a automatic licence to divorce.

Order accordingly.

No case referred to:

February 23, 1978.**LUGAKINGIRA, J.:** This was a special case stated under s. 79 of the Law of Marriage Act, 1971. The petitioner, Dotto d/o Malamla, sought divorce in the primary court at Karumwa in Geita district. The petition was strenuously opposed by the respondent husband, Lukelesha Lyaku. At the close of the trial the two assessors were unanimous in rejecting the petition. They were of the opinion that there was no evidence upon which to find that the marriage had irreparably broken down. It transpired that the petitioner was herself a deliberate deserter and sought to capitalise on her own wrongs. The assessors therefore advised that the petition be dismissed.

The trial magistrate, J. N. J. MANGWELA, ESQ., concurred in the findings of the gentlemen assessors. But he was of the view that since the court could not compel cohabitation, the parties had to be separated. He therefore purported to exercise his casting vote under s.8(2), Cap. 537, as amended by Act No. 18 of 1969, and ordered the parties separated for a period of one year from 27 January, 1977. He further ordered that if the parties were not reconciled by 27 January, 1978, that would be evidence that the marriage had irreparably broken down and the court would have to grant divorce.

The parties were never reconciled. Accordingly, on the 1st February, 1978, they presented themselves before the court ostensibly to be divorced. This time the court was presided over by J. MUSHOKORWA, ESQ. After hearing the parties and going through the record, he was uncertain whether the action and orders of his predecessor were legally in order. He therefore refrained from granting divorce and stated a special case for the opinion of this court. The special case may be summarised in the following questions:—

(1) whether the trial magistrate properly exercised his casting vote under s.8(2), Cap. 537;
(2) whether the court could grant separation in a petition for divorce;
(3) whether the court could grant separation for a specific period; and
(4) whether the court was obliged to grant divorce at the expiration of the period of separation.

I will deal with these questions *seriatim*. The parties elected not to appear and be heard by this court.

1. It may be desirable to set out the provisions of s.8(2), Cap. 537, for ease of reference. It states:—

> (2) All matters before a primary court shall, in the event of a difference of opinion between a magistrate and the assessors or any of them, be decided by the votes of a majority of the magistrate and the assessors present, and in the event of an equality of votes the magistrate shall have a casting vote in addition to his deliberative vote.

In normal circumstances the situation envisaged above would never arise because, as practice shows, the magistrate is usually assisted by two assessors. If there is one or two dissenting voices the vote would in any case be two to one and the majority would carry the day. I will therefore take an example where the

magistrate is assisted by the three assessors. The provision means that if two assessors and the magistrate agree but one assessor dissents, the majority would carry the day. If, on the other hand, one assessor and the magistrate agree but the remaining two assessors dissent, there would in that event be an equality of votes. Then the magistrate would have a second vote—the casting vote—and that would give a majority to his side which would thus carry the day.

In this case the trial magistrate was unfortunately confused. He thought that this casting vote meant the power to override the decision of the majority. There was in fact no opportunity available for the magistrate to exercise the casting vote for and had to decide the matter according to the views of the two assessors.

He was, of course, not precluded from expressing his dissent, but even such dissent could not be made the decision of the court. In short, the trial magistrate had no power to override the two assessors and his decision was null and void.

2. It does not appear that the court can grant separation in a petition for divorce and *vice versa*. The court has to determine the issue actually before it. The opposite would be true where separation or divorce, as the case may be, were sought in the alternative. It is therefore provided by s.82 of the Marriage Act that:—

> It shall be lawful to include in any petition for matrimonial relief a prayer in the alternative for any other matrimonial relief.

In other words, a petitioner for divorce may in the alternative pray for separation and *vice versa*. It is only in this event that the court may decree separation in lieu of divorce, but not otherwise. The petitioner in this case prayed for divorce only. She did not pray for separation as an alternative relief. It was therefore unlawfully gratuitous of the trial magistrate to decree separation.

A closer scrutiny of the orders of the trial magistrate suggests that he was alluding to s.110(2) of the Marriage Act. The subsection provides for the adjournment of proceedings for a period not exceeding six months for further inquiries or further attempts at reconciliation to be made and for the court to direct that such inquiries or attempts at reconciliation be made by a Conciliatory Board. I say that he alluded to this because he said,

> . . . mke aishi kwa wazazi wake kwa muda wa mwaka mzima ili kupata uchunguzi zaidi. Baraza la Usuluhishi lipewe jukumu la kuchunguza ndoa hii ili kufahamu ni nani mkosaji. . .

That is, literally,

> . . . the wife should stay with her parents for a period of one year for further inquiries. The Conciliatory Board is directed to inquire into this marriage to discover who is the guilty party . . .

It is evident that this allusion was misplaced. Section 110(2) provides for adjournment of proceedings, but the trial magistrate decreed separation and emphasised it by saying that the petitioner be granted a certificate to that effect. Further, s.110(2) provides for adjournments not exceeding six months but the trial magistrate decreed separation for twelve months. His action cannot therefore be

explained in the terms s.110(2). And it being separation which he actually decreed, his direction to the Conciliatory Board was superfluous.

In all considerations, therefore, the trial magistrate erred in granting separation.

3. A decree of separation cannot be granted for a specific period. It is not a transitory decree; it is a complete and independent decree in itself. For that reason it may subsist even for the parties' lives. Presumably the trial magistrate had in mind the decree nisi previously granted under s.16(1) of the repealed Matrimonial Causes Ordinance, Cap. 364. If it was so, he was still in error. The decree nisi was expressly abolished by s. 89 of the Marriage Act. Hence, even if the magistrate had been correct in granting separation, which he was not, he was wrong in specifying a period therefore.

4. The court is not obliged to grant divorce and cannot do so by reason only that the parties had been separated and have not been reconciled. Separation, whether voluntary or by a court order, and however long it may have continued, is not an automatic licence to divorce. When it is intended to secure divorce, and assuming the parties had been judicially separated, the aggrieved party has to present a fresh petition. He or she can then adopt the fact of separation and the failure at reconciliation as one of the grounds upon which the petition is founded. As rightly pointed out by the learned magistrate who stated this case the court may under s. 107(2)(f) of the Marriage Act accept as evidence that the marriage has broken down the fact of voluntary or judicial separation where it has continued for at least three years. But that is only evidence that the marriage has broken down. It is not sufficient evidence that the marriage has irreparably broken down. There has to be further evidence to prove this fact, such as cruelty or adultery committed subsequent to separation. In any case there has to be a petition for divorce. The parties cannot just present themselves to the court, as they did in this case, hoping for an automatic decree. The trial magistrate thus erred in ordering and advising the parties so to present themselves and in thinking that the court was then obliged to decree divorce.

In summary, the action and orders of the trial magistrate were all wrong in law. I hope that he has not succumbed to similar indulgences in similar cases. I must also complement his successor for bringing this matter up. In view of the foregoing, and in terms of r.44 of the Law of Marriage (Matrimonial Proceedings) Rules, G.N. 136/71, I set aside the judgement and orders of the trial magistrate dated 27 January, 1977 and I direct the present magistrate to enter judgement according to the majority decision at the trial.

Order accordingly.

PAULO ALFRED AND ANOTHER *v.* GERVACE MARIANUS (LUGAKINGIRA, J.)

PAULO ALFRED AND ANOTHER *v.* GERVACE MARIANUSI

[HIGH COURT OF TANZANIA AT MWANZA (Lugakingira, J.)]

CIVIL APPEAL 161 OF 1976

Haya Customary Law—Sale of land by female—Whether permissible.
Haya Customary Law—Sale of land by female—Requirement of consent to the sale by competent clansmen.

After being given her portion of land as inheritance the second appellant sold it without obtaining consent to the sale of the clan shamba from competent clansmen.

Held: (i) women inheriting clan shambas have a life interest only which dies with them;

(ii) among the Bahaya clan shambas may be sold even by women provided consent of clansmen to such sale has been obtained;

(iii) it is only the clan heads who may provide consent to the sale of clan shambas by women.

Appeal dismissed.

No Case referred to:

December 1, 1980. **LUGAKINGIRA, J.:** This case was pleaded with all the attributes of illiteracy but I think the primary court skilfully sorted out the mess. It was a combined action against the administration of a deceased's estate and sale of part of the estate.

An old man, one Valentine, died in June 1973. He left a shamba which was divided up between his daughters, his only children, Semfroza and Sabina. But Sabina was dissatisfied with the distribution. The administrator, Petro Bishoke the deceased's brother, carried out the distribution without reference to the deceased's written will which was known to exist. Sabina complained to the Ward Secretary who referred her to the Customary Land Tribunal at Bukoba. The tribunal found itself without jurisdiction and referred her to the primary court at Kashasha. After filing the suit at Kashasha, but before it was heard, Sabina received information, which turned out to be true, that Semfroza had sold her share of the shamba to Paulo Alfred. The court ordered Paulo to be joined in the suit. In all these complaints, and in this suit, Sabina was represented by Gervace Marianus. Unfortunately, it is the latter's name rather than Sabina's which appears and has been maintained on the record. The defendants were Petro Bishoke, the administrator, Semfroza Valentine, the co-heir and vendor, and Paulo Alfred, the purchaser. Unfortunately again, Petro died while the hearing was going on.

The primary court found that Petro had properly administered the estate because Sabina had not refused, but had accepted and made use of, the portion of the shamba given her. The suit was therefore unsuccessful as regards the administration. But the court went further and held that the sale between Semfroza and Paulo was fraudulent and illegal. It set it aside, vested the whole shamba in Sabina and advised Paulo to look for Semfroza for his money. Paulo and Semfroza appealed to the district court on the issue of the sale but the court upheld the decision of the primary court and dismissed the appeal. They then appealed here. They contend that Semfroza had a right to sell her share and had legally sold the same.

Before going into the merits of the appeal I will first dispose of one matter which has come to my attention. On 29 October, 1974, the primary court granted an injunction to the respondent restraining the appellants from injuriously dealing with the suit shamba. On 18 December, 1974 Pauli applied to the same court to rescind the injunction and asked the court to visit the shamba and make an inventory. The court reserved its decision pending the visit to the shamba and ordered Paulo to provide transport on 28 December, 1974. On that date, however, Paulo did not turn up at the court. The visit was therefore put off and the court waited for Paulo's next move. It turned out that Paulo had decided to abandon his application in the primary court and to take the matter direct to the district court. On 28 February, 1975, the district court purported to rescind the injunction in what was called Civil Appeal No. 12/1975.

I must say, with respect, that the action of the district court was contrary to law and procedure. There was in law no appeal properly so called. Paulo's application to the primary court had not been decided one way or the other. There was in the event no decision from which to appeal to the district court. Presumably the district court imagined that it had power to entertain an appeal from an order granting an injunction as such. If it did so, which seems to have been the case, it was still in error. Rule 17(7) of the Primary Courts Civil Procedure Rules, G.N. 310/1964, provides that "The court may at any time for good cause vary or rescind any order made under this rule". In r.2 thereof "court" is defined to mean "a primary court". It is evident, therefore, that the party aggrieved by an order of an injunction made by a primary court may apply to the same court to rescind the order but cannot appeal against that order. The jurisdiction of the district court is limited to appeals against the primary court's refusal to grant an injunction or against its refusal to vary or rescind its injunction.

Further, one of the reasons given by the district court for rescinding the injunction was that it was granted without the parties being heard. This was a misdirection on the law. Rule 17(2) provides,

> Upon receiving an application under this rule the court may examine the applicant and if it is satisfied that grounds exist for ordering an injunction the court may make such order.

It is clear from the above that an application for an injunction is essentially *ex parte*, that is, it may be heard in the absence of the opposite party. The court is not

even obliged to examine the application himself but may proceed on the application alone. This contrasts greatly with 0.37, r.3 of the Civil Procedure Code, 1966 applicable in the District Courts and the High Court; which requires notice to be given to the opposite party except where it appears that the object of granting the injunction would be defeated by the delay. In this case, therefore, the primary court proceeded properly when it granted the injunction without hearing the opposite party and even without examining the respondent/applicant. I accordingly hold that the decision of the district court in the so-called Civil Appeal No. 12/1975 was both void for its irregularity and wrong in law.

I will now turn to the appeal. We have seen that the suit was both against the manner of the administration of the deceased's estate and the sale of part of the estate. On the first leg thereof, I am in agreement with the decision of the primary court even if for different reasons. And as that issue has never been a subject of appeal I do not have to state my reasons. I will go straight into what concerns the appellants, namely the sale.

The appellants contend that Semfroza had a right to sell and did legally sell. I am afraid she had no such right. Women inheriting clan shambas have a life interest only which dies with them. They cannot sell such shambas. Among the Bahaya such shambas may be sold even by women only with the consent of clansmen. This is a logical proviso for it is the clansmen who have the reversionary interest in the shamba on the demise of the female heir. But in the present case, Semfroza herself admitted that she did not obtain such consent, stating: "Wakati nikiuza shamba Sabina mdai sikumwita, wala sikuwaita banyaruganda (clansmen)". It was the first appellant, Paulo, who alleged the contrary saying that the clansmen gave their consent. He referred to the sale agreement and pointed to the signatures of Cleophas Mpungu and Nicola Petro. These were alleged to be Semfroza's and Sabina's clansmen. It does not appear, however, that any of these gave consent as such to the sale or had the power to do so. Cleophas stated at the trial that he was just called by Paulo to see him buy Semfroza's shamba. He categorically denied to have been a party to the sale, saying, "mimi sikuwa miongoni mwa waliokuwa wanadai shamba". And even at the close of his evidence he made it clear that no clan elder was present at the sale, saying again, "pale shamba likiuzwa hapakuwepo mkuu wa ukoo hata mmoja". As for Nicola, it is evident from the agreement of sale that he signed the same as secretary only. Besides, it appears that he had no authority to give consent even if he purported to do so. According to one assessor, Marco Theodore, "Nicola asingelisimamia uuzaji wa shamba na hali baba yake Petro akiwepo". Nicola was the son of Petro Bishoke, the administrator. The second assessor concurred with the view of his colleague. This view of the assessors brings to light an important aspect of Haya law. It is not, according to this view, every clansman who can validly consent to the sale of a clan shamba; it is only the clan heads who may do so. I think this explains why Cleophas did not count himself among such competent clansmen, although he was recorded as an elderly man of 65 years, for he was not a clan head. It also explains why Semfroza stated that there was no clansman around, by which she must have meant a competent clansman. I therefore accept Semfroza's own word that the sale was carried out without consent. In that event, the courts

below directed themselves properly when they held that the sale was void. I also accept the view that the sale was fraudulent and might have been intended to defeat Sabina's claim. Semfroza entered into this transaction just a month or so after the property was vested in her and, according to her own admission, she did so fully aware that Sabina was contesting the administration. What is even more interesting, she sold the shamba for shs. 8,000/- allegedly to pay a fine of shs. 250/- imposed on her son in some criminal case. Leaving alone the necessity of selling the shamba for such a paltry fine, Semfroza's son is gainfully employed as a civil servant and had no right or interest in the suit shamba.

In the light of the foregoing, I find that the courts below came to the right decision. I uphold the same and dismiss the appeal with costs. The whole shamba indeed vest in Sabina as Semfroza has demonstrated her unworthiness even to part thereof. Paulo, if so minded, may look to Semfroza for the refund of his money, if the law permits.

Appeal dismissed.

SEIF ISMAIL *v.* R. (MAINA, J.)

SEIF ISMAIL *v.* R.

[HIGH COURT OF TANZANIA AT DODOMA, (Maina, J.)]

CRIMINAL APPEAL 59 OF 1979

Insurance—Motor Vehicle Insurance Ordinance—Driving an uninsured vehicle—Special reasons against mandatory disqualification from driving or holding or obtaining a driving licence—Section 4(2) Cap. 169.

The appellant was charged with and convicted of, among other offences, driving a motor vehicle which was not insured against third party risks. He was sentenced to a fine of shs. 1,000/- or five months' imprisonment in default and was disqualified from driving or holding a driving licence for 12 months. On appeal against the disqualification order the court was invited to consider and decide whether being employee driver constituted a special reason under s.4(2) of the Motor Vehicle Insurance Ordinance, Cap. 169.

Held: (i) to amount to special reasons under s.4(2) of the Motor Vehicle Insurance Ordinance, Cap. 169, the reasons must be special to the offence and not to the person;

(ii) it is a reason special to the offence if an employee driver drives his employer's uninsured motor vehicle.

Appeal allowed.

Cases referred to:

(1) *R.* v. *John Gedeon and Another* [1957] E.A. 664.
(2) *R.* v. *John Mhanze,* [1966] H.C.D. n.62.
(3) *Rashid* v. *R.,* [1972] H.C.D. n. 306.
(4) *Athumani* v. *R.,* [1971] H.C.D. n. 121.

September 8, 1980. MAINA, J.:-The appellant, Seif Ismail, was convicted of three traffic offences one of which was driving a motor vehicle which was not insured against third party risks. He was sentenced for this offence, to a fine of shs. 1,000/- or five months' imprisonment in default and he was disqualified from driving or holding a driving licence for twelve months. This appeal is against the disqualification order.

The facts as admitted by the appellant were that on 7.4.1979 the appellant was found driving a lorry property of Kigwe Ujamaa Village and that the insurance policy in respect of this vehicle had expired since February 1979. The appellant pleaded guilty and in mitigation explained that he was mere driver and that the village committee had not met to authorize renewal of the policy.

The law (s.4(2) of Motor Vehicles Insurance Ordinance Cap. 169 of the laws) provides for mandatory disqualification from driving for a person convicted of driving uninsured vehicle unless there are special reasons. What are special reasons depend on the facts of the case but the authorities are clear that to amount to special reasons, the reasons must be special to the offence and not to the person (see for example, *R.* v. *John Gedeon and Another,* [1957] E.A. 664). The question is whether there were special reasons in this case. When this court was faced with a similar situation like this one in *R.* v. *John Mhanze,* [1969] H.C.D. n. 62, it was held that special reasons existed and the court said: "it requires little imagination to envisaged the result of a driver telling this employer he wishes to see the insurance policy before he could drive the vehicle—even in these days when the position of an employee is protected by legislation". The order for disqualification was set aside. Again in *Rashidi* v. *R.,* [1970] H.C.D. n.306, ONYIUKE, J. (as he then was) said "I do not think it would be reasonable to expect the appellant to confront his employers and ask them to satisfy him that his particular vehicle was insured". Special circumstances also were found to exist in *Athumani* v. *R.,* [1971] H.C.D. n.121 when the court said: "it is a circumstance special to the offence if an employee driver drives his employer's uninsured motor vehicle". The responsibility to insure a motor vehicle is that of the employer.

In the present case in which the learned state attorney does not support the disqualification order, it is clear the appellant drove his employer's motor vehicle which was not insured. The employers sat back and let the appellant drive the vehicle. The appellant, as a mere driver, could not be expected to refuse to drive the uninsured vehicle and insist that he must see the insurance policy first. These circumstances are special to the offence and the appellant should not have been disqualified from driving.

This appeal is allowed. The order for disqualification imposed on the appellant is set aside.

Appeal allowed.

JACKSON SIMON MANITU *v.* REPUBLIC (MAINA, J.)

JACKSON SIMON MANITU *v.* REPUBLIC

[HIGH COURT OF TANZANIA AT DODOMA, (Maina, J.)]

CRIMINAL APPEAL 85 OF 1979

Criminal Law—Robbery with violence—snatching and throwing out of a train window a suit-case and pushing complainant away so as to run away—Time factor.

Appellant was charged with and convicted of robbery with violence. On appeal he contended that the violent push he administered on the complainant was for the purpose of resisting arrest and not retaining the suit case and asked the court to substitute the conviction of theft.

Held: (i) per s.285 of the Penal Code:—

"any person who steals anything, and at or immediately before or immediately after the time of stealing uses or threatens to use actual violence in order to obtain or retain the thing stolen or to prevent or overcome resistance to its being stolen or retained, is guilty of the felony termed 'robbery'";

(ii) by violently pushing the complainant away immediately after stealing the suit-case he was not only resisting arrest but also seeking the retain the stolen suit-case;

(iii) it is not necessary that at the time of using violence an accused person must have in his possession the stolen property. What is important is the time factor and the fact that actual violence is used in order to retain the stolen property.

Appeal dismissed.

No case referred to:

S. A. Kharbush, for the Republic.

Appellant absent, represented.

December 19, 1979. MAINA, J.: The appellant Jackson Simon Manitu was charged with, and convicted of the offence of robbery with violence contrary to s.285 of the Penal Code and he was sentenced to the statutory seven years' imprisonment.

The facts of this case as established by the prosecution evidence are that on 28.3.1979 at about 6.45 a.m. the complainant Theopista Mugashigwe (P.W.1) was inside the train at Gulwe Railway Station. She had just received her suit-case from a friend when suddenly the appellant snatched the suit-case and threw it out of the train. The complainant held the appellant by the shirt but the appellant pushed her away and managed to jump out of the train and disappeared with the bag. Before the train left the Railway Station P.W.1 Theopista raised alarm, describing her suit-case and the features of the appellant. P.W.3 Mchiwa Matanya who was outside the train heard the complainant's screams.

The appellant was later traced in the house of P.W.4 Donald Mazengo that same morning. He admitted he had stolen the suit-case which he later showed in the bush but all its contents were not recovered.

At his trial the appellant admitted he stole the complainant's suit-case and all its contents as alleged but denied it was robbery with violence. He repeats the same in his memorandum of appeal and asks this court to substitute the conviction to one of theft.

As it can be seen above the facts of the case are not in dispute. The only matter for consideration by this court is whether the facts constitute the offence of robbery with violence or that of stealing. Mr. Kharbush learned state attorney supported the conviction for robbery with violence because he said that the appellant had used violence in order to retain the suit-case he had stolen. The appellant, on the other hand, points out in his memorandum of appeal that as he had thrown the suit-case out of the train, and complainant was pushed away thereafter, that violence applied by the appellant was for the purpose of resisting arrest and not for purpose of retaining the suit-case.

The definition of robbery with violence is provided by s.285 of the Penal Code which reads:—

> Any person who steals anything, and at, or immediately before or immediately after the time of stealing uses or threatens to use actual violence to any person or property in order to obtain or retain the thing stolen or to prevent or overcome resistance to its being stolen or retained, is guilty of the felony termed robbery.

There is no dispute the appellant stole the complainant's suit-case and its contents. At the time of stealing or immediately before, he did not use or threaten any violence. That is also not in dispute. Immediately after the theft he used violence against the complainant in that when the complainant held him by the shirt, the appellant pushed her and he was able to run away from the train. When he used this violence by pushing the complainant, the suit-case was already stolen and was out of the train. The question is whether the appellant pushed the complainant in order to resist arrest or in order to retain the suit-case he had stolen. I think it was both. The appellant had stolen the suit-case and he threw it out of the train.

He wanted to run straight out of the train in order to pick up the suit-case he had just stolen, when the complainant held him by the shirt and he pushed her away. This was immediately after he had stolen the suit-case. He pushed the complainant away in order to jump out of the train and pick up the suit-case he had just stolen. This he succeeded to do. So by using the violence against the complainant immediately after the theft, the appellant was able to retain the suit-case he had stolen a few seconds earlier. I do not think that it was necessary for the appellant to have in his possession the stolen property at the time he used violence against the complainant in order to amount to robbery. What I consider important is the time factor and the fact that actual violence was used in order to retain the thing stolen.

If the appellant had succeeded in stealing the suit-case and carry it away without using any violence on the complainant, he would have been guilty of stealing only. But because of the violence he used on the complainant immediately after he had stolen the suit-case, and that violence was used in order to retain the thing stolen, on my interpretation of s.285 of the Penal Code, the appellant was guilty of robbery. The conviction was, on the facts, properly registered.

The sentence is the minimum prescribed by law and it is therefore not appellable.

In the result, therefore, and for the reasons given above, this appeal fails and it is dismissed in its entirety.

Appeal dismissed.

THE MANAGER—IMARA GUEST HOUSE *v.* EGNAS KAGANDA

[HIGH COURT OF TANZANIA AT DODOMA, (Maina, J.)]

CIVIL APPEAL 9 OF 1980

Contract—Obligations of keeper of boarding house or private hotel in relation to property of a guest.

Contract—Employee's negligence causes loss to property of a guest in a boarding or guest house—Whether employer liable.

While lodging in Imara Guest House the respondent had his radio cassette stolen. It was proved that the radio cassette was stolen while respondent was not around having locked his door. The trial magistrate found that either an employee of the owner of the guest house stole the radio cassette or that he negligently left the door open thereby giving an opportunity to thieves to enter the room and steal. The trial magistrate found the manager of the guest house vicariously liable for the negligence of his employee.

On appeal appellant raised four grounds of appeal arguing that he was not liable at all for the loss of the radio cassette.

Held: (i) the keeper of a boarding house or private hotel is under an implied contract to take reasonable care for the safety of property brought in the house by a guest;

(ii) the employer was vicariously liable for the negligence or acts done by his employee in the course of the employer's business or within the scope of employment.

Appeal dismissed.

Cases referred to:

(1) *Morris* v. *C. W. Martin & Sons Ltd.*, [1965] 2 All E.R. 725.

F. S. Chambakare, for the appellant.

Respondent absent, unrepresented.

September 29, 1980. **MAINA, J.:** This appeal arises out of the decision of the district court of Singida which ordered the appellant to pay to the respondent shs. 2,200/- being the value of a radio cassette plus costs of the suit.

The respondent Egnas Kaganda was in transit to Moshi in October, 1979 and he had to spend two nights in Singida. According to the respondent, he arrived in Singida on 4.8.1979 and he spent the night at Imara Guest House. His name was duly entered in the register of guests and he paid the required charge and he was given a receipt. He expected to travel to Moshi on 5.8.1979 but he could not get a vehicle for Moshi that day. So he again paid shs. 30/- as charges for another night and he was given a receipt. Both receipts were tendered in court as Exhibits. On 6.8.1979 the respondent found a vehicle which would take him to Moshi. He went to Imara Guest House to collect his personal belongings. He was surprised when he unlocked the door and found out that his radio cassette was missing. He suspected the room attendant who had the duplicate key to the room. But the management disclaimed responsibility. The respondent filed the suit and the trial court held the appellants liable to vicarious liability.

The learned counsel for the appellant has argued three main grounds of appeal. Firstly, he submitted that the trial magistrate was biased by not giving the appellant sufficient time to file defence. He submitted that the learned trial magistrate should have given the appellant 21 days within which to file written statement of defence. I have perused the record.

The plaint was filed on 1.10.1979 and the court ordered that Summons for Disposal of Suit should issue and fixed 3.10.1979 as the mention date. When the parties appeared in court on 3.10.1979 the appellant had filed his written statement of defence and as the respondent did not wish to file a reply, the case was fixed for

hearing on 4.10.1979 and the hearing proceeded accordingly. Now, under Order V r.1 of the Civil Procedure Code, 1966, a court has discretion when making orders for summons to the defendant, either to issue summons to appear commonly known as "Summons for Disposal of Suit" or summons to file defence, commonly known as "Summons for Orders". When Summons for Disposal of Suit is issued the defendant is required to appear with his witnesses and documentary exhibits ready for hearing. But when Summons for Orders is issued, the defendant is required within 21 days to file a written statement of defence. So a defendant can only insist on the 21 days within which to file a defence when the court has issued a "Summons for Orders". When a Summons for Disposal of Suit has been issued as in this case, and the defendant wishes to get more time within which to file his defence, he can apply to the court. The fact that the appellant was able to file his defence without applying to the court for an extension of time, would show he did not require more time to file a defence. I cannot see how the trial magistrate can be branded biased merely because he made an order for summons for disposal of suit to issue. No application was made to him for more time to file defence. The summons was properly issued and it was within the discretion of the trial magistrate.

The appellant's counsel argued one ground of appeal and that was that there was no evidence the respondent was occupying the room in the Imara Guest House. The whole Guest House had been reserved for members of the Tanzania People's Defence Forces and therefore according to the learned counsel, the respondent did not stay there. On reading the record, I find clear evidence, which does not even appear to be disputed that the respondent registered in the Imara Guest House on 4.8.1979 and he was issued a receipt for the accommodation charges he paid for one night. When, on 5.8.1979, he failed to get transport to proceed to Moshi, he again paid money for a second night and he was given a receipt. The Manager Saad Said who is the appellant, admits in his evidence that the two receipts were issued by his employee Masoud who was on temporary basis.

Masoud had the authority to let rooms to guests and to receive the charges thereof and issue receipts. The appellant admitted further that although the whole Guest House was reserved for Tanzania People's Defence Forces members, on the two days for which the respondent paid money, room No. 10 was not occupied by T.P.D.F. members. There is further the evidence of Benedict Bernard (P.W.2) who used to visit the respondent at Imara Guest House and found the respondent occupying room No. 10 from 4.8.1979 till 6.8.1979. If the register for guests was not properly recorded the respondent cannot be held responsible for the omission. The evidence establishes quite clearly that the respondent was a guest in Imara Guest House from 4.8.1979 till 6.8.1979.

The last ground of appeal is that the respondent did not declare the radio cassette to the management and in any case a radio cassette was outside the normal use of the Guest House and therefore the appellant as manager of the guest house cannot be held liable for the loss or theft of the radio cassette. One thing which has to be made clear straight away is that on the evidence, there is no doubt that the respondent had a radio cassette when he was occupying the room in the

appellant's guest house. The respondent produced the receipt for the radio cassette and called a witness, Benedict Bernard who was with the respondent most of the time and used to see it in the room. The witness was with the respondent on 6.8.1979 when they went to the room to collect the respondent's personal belongings and they found that the radio cassette was missing. Whoever took the radio cassette used a duplicate key or found the door open, entered and stole it. The respondent had locked the door before he left. It was still locked when he later went there and discovered the theft. He suspected the appellant's employee who had the duplicate key. The employee was arrested by police but released later. There are two possibilities. Either the employee stole the radio cassette or left the door open and someone entered the room and stole it. The question is whether the appellant can be held liable for the wrong done by his employee in those circumstances.

The respondent did not declare his radio cassette to the management. But the evidence is clear that the radio cassette was in the room and it was stolen from therein. As I said earlier, either the employee stole it or negligently left the door open and it was stolen. The general principle of vicarious liability is that an employer is liable for the acts done by his employee while in the course of the employer's business or within the scope of employment.

If the employee in this case left the door open, and someone entered and stole the radio cassette, that was a negligent act indeed for the respondent as a guest in the "Guest House" had a right to expect that his properties were safe. The management owed him a duty to protect his personal belongings. If an employee is negligent in the court of his duties and damage is caused, the injured person is entitled to be compensated by the employer.

The appellant's counsel submitted that the radio cassette, unlike clothes, is outside the normal use of a lodging house; and if it was stolen the appellant could not be held liable. If I understood learned counsel properly, what he was saying was that if a guest's clothes are stolen from a lodging house due to negligence of an employee, the employer shall be held liable because it is expected that a guest will have brought clothes there. But a radio cassette should be excluded. I do not see the logic for this distinction. The liability of an employer under such circumstances was discussed by LORD DENNING, M. R. in *Morris* v. *C. W. Martin and Sons Ltd.*, [1965] 2 All E.R. 725. In that case, the plaintiff fur was stolen while it was with the defendants for cleaning. The person who stole it was one of the defendants' employees. LORD DENNING, M.R. reviewed the cases on vicarious liability and discussed the question of how far a master is liable for the theft or dishonesty by one of his servants. His Lordship held that "once a man has taken charge of goods as a bailee for reward, it is his duty to take reasonable care to keep them safe; and he cannot escape that duty by delegating it to his servant. If the goods are lost or damaged, whilst they are in his possession, he is liable unless he can show . . . that the loss or damage occurred without any neglect or default or misconduct of himself or any of his servants to whom he delegated his duty". At p.735, His Lordship discussed the specific question of liability of a keeper of a boarding house or private hotel, when he said,

> Although there may be no bailment, nevertheless circumstances often arise in which a person is under a contractual duty to take care to protect goods from theft or depredation. The most familiar case is the keeper of a boarding house or a private hotel.
>
> He is under an implied contract to take reasonable care for the safety of property brought in the house by a guest. If his own servants are negligent and leave the place open so that thieves got in and steal he is liable. So also if they are fraudulent and collaborate with the thieves.

I do not think that a distinction should be made of what type of property a guest is entitled to receive compensation if the property is stolen. Once the guest has proved that the particular property was in fact brought in the hotel and it was stolen or lost through negligence of one of the employees, the employer is liable. In the instant case, the respondent was a guest in the appellant's guest house. The radio cassette was left in the room when the respondent locked the door and went out to look for a vehicle to take him to his destination. The disappearance of the radio cassette in the room, was either due to theft or negligence by one of the appellan't servants. There was no breaking of the door. Under the circumstances, the respondent is entitled to compensation for his lost radio cassette and the appellant is liable to pay this compensation. The loss was caused by his employee.

I agree with the decision of the trial court and, for the reasons given, above, this appeal is dismissed with costs.

Appeal dismissed.

NYAMHANGA BHOKE *v.* ROBI NYAMHANGA

[HIGH COURT OF TANZANIA AT MWANZA, (Lugakingira, J.)]

CIVIL APPEAL 50 OF 1976

Family Law—Whether damages are payable to a wife upon breakup of marriage.
Family Law—Dowry—Whether to be paid only in cattle under Kuria Customary Law.

The appellant had eloped with the respondent and they had cohabited for about three months. Later the parents of the respondent refused to receive dowry in terms of cash and insisted it be paid in cattle. The parents took the respondent back home and thereafter the respondent sued for damages claiming that the appellant had wasted her time. Both the primary court and the district court granted damages. The appellant was dissatisfied with that decision and appealed.

Held: (i) damages are not awarded to a wife upon the breakup of marriage and the only remedy is to petition for divorce or maintenance.

(ii) There is no law which obliges dowry to be paid in cattle only.

Appeal allowed.

No case referred to:

November 3, 1977, **LUGAKINGIRA, J.**: The appellant eloped with the respondent and they cohabited for about three months. He could not agree with the respondent's parents on the manner the dowry was to be paid. They wanted cattle according to local custom while the appellant was prepared and offered to pay cash. They refused and took the respondent away. Then the respondent commenced this action claiming two cattle on the ground that the appellant had wasted her time. It was allowed by the primary court holding that it was maintainable under Kuria law. The appellant's appeal to the district court was dismissed in what I am reluctant to call a judgment. He further appealed here. To illustrate my anxiety about the "judgment" of the district court it is only fair to quote it in full:—

JUDGMENT

Appellant in the District Court of Serengeti Bhoke Nyamhanga field a petition that the dowries for shs. 1,000/-, but the father of the respondent refused appellant to pay the money as dowries. He said this was adultery.

The lower court on hearing this case it ordered appellant Bhoke Nyamhanga to pay her 2 cattle as he stayed with respondent as he just wanted to cheat her and have sexual intercourse with her. On hearing this appeal and both parties were present.

In my view therefore I do not see any reason for this appeal. Appellant is to pay two cows to appellant (sic) as ordered by the lower court.

Appeal dismissed.

The appellate magistrate is known for his difficulties with languages, especially the English language; but that is no excuse for his failure or inability to address his mind to the matters in issue. He makes it almost sound as if the appellant's liability was not open to discuss. The question in this case was, basically, whether damages are payable to a wife upon the break up of a marriage. I hold that they are not. Her remedy is to petition for divorce and or maintenance. In this case also if ever there was anyone who wasted the respondent's time it was her own parents. It is they who refused to accept dowry in cash and then removed her from the appellant's home. They may have considered themselves as enforcing a right but there is no law in this country which obliges a man to furnish dowry in cattle. The alleged custom of the Kuria is therefore unenforceable. It does not supersede para one of G.N. 276/63 which stipulates that bridewealth is the payment of domestic animals, *money* or other commodities. There is no exception

for any community as to what would constitute bridewealth. Should parents refuse to accept cash, as they did in the present case, neither they nor their daughter can claim compensation for the free cohabitation which results from their intransigence.

I therefore find this appeal quite deserving and I allow it accordingly. The judgments and orders of the lower courts are set aside. The parties will bear their respective costs.

Appeal allowed.

DINAH MUTAHYABARWA *v.* RAJAB ADAM (LUGAKINGIRA, J.)

DINAH MUTAHYABARWA *v.* RAJAB ADAM

[HIGH COURT OF TANZANIA AT MWANZA, (Lugakingira, J.)]

CIVIL APPEAL 242 OF 1975

Land Law—Customary law—Of the Bahaya—Encroachment of public right of way—Distinction between ilembo" and "omuhanda".

Land Law—Customary law—Of the Bahaya—A public path since time im-, memorial—Cannot, unilaterally, be closed or narrowed.

The appellant sued the respondent for encroaching a pathway leading to her shamba and house. The primary court gave judgment for her ordering the respondent to pull back. The district court reversed the judgment on the ground that the pathway could not be categorised as the appellant's "ilembo", that is the road leading directly from a person's house to the boundary of his *shamba*. Moreover, the appellate magistrate argued that the path was not closed since it was merely narrowed by the respondent's encroachment. On appeal to the High Court.

Held: (i) the path could not be categorised as "ilembo". However, there was overwhelming evidence that it was a public way since time immemorial and as such categorised as "omuhanda". Thus carrying the same antecedents on user as does the "ilembo";

(ii) the "omuhanda" is a public right of way that cannot be closed or narrowed; for in both instances the right is infringed upon;

(iii) the "omuhanda", as a public right of way, cannot be closed unless the public so agrees or actually abandons its use;

(iv) the appellant's claim was against the respondent's encroachment of a public right of way—"omuhanda".

Appeal allowed.

No case referred to:

July 25, 1977. **LUGAKINGIRA, J.:** The appellant sued the respondent for encroaching upon a pathway that leads to her shamba and house. She was successful in the primary court at Rubale. The respondent was ordered to pull back. On appeal to the district court at Bukoba the latter court reversed this decision on the ground that the path was not the appellant's "ilembo" (the road leading directly from a person's house to the boundary of his shamba) and that, in any case, the path was not closed even if encroached upon.

I think that the appellate magistrate misdirected himself. The trial magistrate who visited the site made these observations:—

> Mahakama imetembelea njia na kuona mdaiwa aliacha mbuga toka kwenye shamba lake akalima penye njia ya mdai alilima viazi na kupanda migomba kidogo akisonga njia kiasi ambacho wanaopita pale wanaweza kukanyaga mazao hayo, ikiwa watakwepa kuyakanyaga lazima wasonge upande wa mashariki kuacha njia na kupita kwenye majani.

He then drew a sketch which illustrated these observations clearly.

Admittedly, the part of the path encroached upon is outside the appellant's *shamba* so that it does not qualify to be called "ilembo". But that is not the end of the matter. There was overwhelming evidence that the path has been a public way since time immemorial. Such a patch is called "muhanda" in local parlance and carries with it the same entecedents on user as does the "ilembo". It cannot be unilaterally closed. The following paragraphs from Cory and Hartnoll are instructive:—

> 2. *Omuhanda*
>
> 711. These are paths which have long been in customary use for the fetching of water, to grazing grounds, as fishermen's paths from village to village; they are all public rights of way.
>
> 712. Should such a patch run through private property, the owner of the land may not close the path unless he makes another in its stead at his own expense.

I am satisfied that the path in question is "omuhanda". This, like the "ilembo", cannot be closed, unless of course the public so agree or abandon its use. It is meaningless to differentiate "closing" and "narrowing" such path, for in both cases it is an infringement upon a public right of way. In this case the respondent did not deny narrowing the patch but said he had not closed it. He can do neither. It is in fact noted that he did it without any apparent reason, but probably to pick up a quarrel, for he jumped vacant land that immediately adjoins his own *shamba*.

In these circumstances I find that the primary court had come to the right decision. I will therefore allow the appeal of Dinah Mutahyabarwa and set aside the judgment of the district court. The respondent is ordered to pull back forthwith with the supervision of the primary court. He will also bear the appellant's costs here and in both courts below.

Appeal allowed.

R. *v.* SALUM JUMA AND ANOTHER (MAINA, J.)

R. *v.* SALUM JUMA AND ANOTHER

[HIGH COURT OF TANZANIA AT DODOMA, (Maina, J.)

CRIMINAL REVISION 13 OF 1980

Insurance—Motor Vehicle Insurance Ordinance—Driving an uninsured vehicle—Special reasons against mandatory disqualification from driving or holding or obtaining a driving licence—Section 4(2) Cap. 169

The first accused, a mechanic, after repairing a tractor belonging to the second accused drove it with the latter's permission. The tractor was not insured against third party risks as required under the Motor Vehicle Insurance Ordinance, Cap. 169. Both accused were charged with contravening the provisions of the ordinance, convicted, sentenced and disqualified from driving or holding or obtaining driving licences.

The revisional court considered whether the disqualification order imposed on the first accused was proper.

Held: (i) the responsibility of insuring the tractor rested upon the second accused, the owner thereof;

(ii) having permitted the tractor to be driven without an insurance policy in force, the second accused is disqualified from holding or obtaining a driving licence under s. 4(2) of Cap. 169;

(iii) as the first accused is not the person responsible for insuring the tractor, that constitutes a special reason for not disqualifying him.

Order accordingly.

Cases referred to:

(1) *Ali Hussein Gulamali* v. *5.*, T.L.R. 379.

(2) *Juma King'ombe* v. *R.*, [1969] H.C.D. n. 179.
(3) *Yahaya Mohamed* v. *R.*, [1967] H.C.D. n. 308.

D. C Mbezi for first accused.

Second accused unrepresented.

November 3, 1980. **MAINA, J.:** The two accused persons Salum Juma and Daudi Rechipya were charged with traffic offences before the Mpwapwa District Court. They pleaded guilty and were sentenced to pay fines. The record showed that one of the counts facing the accused persons was in connection with driving, and permitting the tractor to be driven, without a third party insurance policy. Although the accused pleaded guilty, were convicted and sentenced, the provisions of s.4 of the Motor Vehicle Insurance Ordinance was not complied with.

Under s.4 of the Motor Vehicle Insurance Ordinance Cap. 169, a person convicted of driving a motor vehicle or permits a motor vehicle to be driven without there being, in force a policy of insurance against third party risks shall in addition to any punishment, be disqualified from holding or obtaining a driving licence for a period of twelve months from the date of conviction unless the accused can advance special reasons. The provisions of this section are mandatory. Unless there are special reasons the accused persons are liable for driving disqualification. The learned district magistrate did not ask the accused persons to advance special reasons and did not make the disqualification order as required.

Before this court, Mr. Mbezi, learned counsel for the first accused Salum Juma submitted that the first accused is a mechanic who was driving the vehicle in the course of repairing it and in the circumstances there exists special reasons. Mr. Mbezi also said that the first accused depends on driving for his livelihood and to disqualify him would mean depriving him of his means of livelihood. The second accused Daudi Rechipya who is the owner of the tractor told this court that he does not know how to drive and he does not hold a driving licence.

That the first accused drove the second accused's tractor, with the latter's permission, for the purpose of repairing it, is not disputed. The law requires that both should be disqualified from holding or obtaining a driving licence because it was being driven without a policy of insurance being in force. However, they can only be saved from disqualification if there are special reasons. To amount to special reasons, the reasons must be special to the offence and not to the person.

As regards the second accused Daudi Rechipya, he is the owner of the tractor and the responsibility to ensure there was a policy of insurance in force rested spuarely on him. He permitted the first accused to drive the tractor when there was no insurance policy in force in respect of this tractor. The second accused has not submitted any reasons why he should not be disqualified from driving or obtaining a driving licence. Accordingly, it is ordered under s.4(2) of the Motor Vehicle Insurance Ordinance Cap. 169 that the second accused be and is hereby disqualified from holding or obtaining a driving licence for a period of twelve months, effective from 21 March, 1980 the date of the conviction.

I now turn to the first accused. The reasons advanced by the learned defence counsel that the first accused depends on driving for his livelihood are reasons special to the person and not special to the offence. The learned counsel submitted further that because the first accused was driving the tractor while testing it that should be taken as special reason not to disqualify him. To this I will refer him to the decision of this court in *Ali Hussein Gulamali* 1 T.L.R , 379 in which it was held that driving a vehicle while testing it even if it is marked "ON TEST" does not amount to special circumstances to exempt an accused person from being disqualified. In the *Gulamali* case, however, the accused was the owner of the vehicle. Likewise in the case of *Juma King'ombe* v. *R.*, [1969] H.C.D. n. 179 the accused too was the owner of the vehicle who was testing the uninsured vehicle and it was held that special reasons did not exist.

In the present case, however, the first accused is not the owner of the vehicle. He is a mechanic and he was driving the uninsured tractor which belonged to the second accused. The first accused was testing the tractor in the course of repairing it. In the case of *Yahya Mohamed* v. *R.*, [1967] H.C.D. n.308 the accused who was a mechanic was found driving an uninsured vehicle which he had been repairing and which he was taking to the owner. This court held that the conviction and sentence imposed were sufficient penalty, and in the circumstances, the additional penalty of disqualification should not be imposed. Now, in the instant case, the first accused was not the owner of the vehicle. It has been held in several cases by this court that the responsibility to insure a motor vehicle is that of the owner and he is the person who should always be charged and when convicted be dealt with accordingly. It cannot be expected of a mechanic to ask every person who takes a vehicle for repair whether it is insured. A Mechanic has a right to assume that a vehicle he is repairing is adequately insured. The conviction and sentence of fine imposed on the first accused are sufficient penalty. As he is not the person responsible for insuring the tractor, I consider these are special circumstances for not disqualifying him. Accordingly I order no driving disqualification against the first accused.

To sum up, the second accused Daudi Rechipya, the owner of the tractor who permitted it to be driven without insurance policy against third party risks is disqualified from holding or obtaining a driving licence for twelve months effective from 21 March, 1980. No disqualification order is being made against the first accused who was mere driver.

'er accordingly.

JOHN SIMA *v.* R.

[HIGH COURT OF TANZANIA AT DODOMA, (Maina, J.)]

CRIMINAL APPEAL 188 OF 1979

Criminal Law—Using abusive language to militiamen—Whether militiamen are expected to exercise professional restraint to avoid breach of the peace.

The appellant was charged with and convicted of using abusing language to militiamen. On appeal the court considered whether abusive language was capable of causing a breach of the peace and whether militiamen are expected to exercise professional restraint in such circumstances.

Held: (i) the abusive language used by the appellant was revolting and likely to create a breach of the peace;

(ii) there was a likelihood of the militiamen resorting to violence, as unlike policemen, they are not expected to act with professional restraint.

Appeal dismissed.

Cases referred to:

(1) *Volter Hopp* v. *R.*, [1967] H.C.D. n. 91.
(2) *Salum Sefu* v. *R.*, [1969] H.C.D. n.177.
(3) *Nelson Kamanga and Another* v. *R.*, [1971] H.C.D. n.181.

October 16, 1980. **MAINA, J.:** The appellant, John Sima, was convicted by the District Court at Singida of using abusive language and he was sentenced to a fine of shs. 600/- or six months' imprisonment in default. He is now appealing to this court.

Briefly the prosecution case was as follows. On 23.6.1979, at about 9.00 p.m., the appellant insulted his landlady, Tausi Salum (P.W.3) and threatened to beat her up. Tausi sent one Masudi to call militiamen. Two militiamen Salum Ng'wandi (P.W.1) and Shabani Mkhandi (P.W.2) who were on patrol in the town, proceeded to Tausi's house in response to the report made to them by Masudi. On arriving at Tausi's house, the two militiamen found the appellant and Tausi at the courtyard. The appellant was still insulting Tausi. Salum intervened and requested the appellant to cool down. The appellant turned to Salum and said: "kuma ya mama yako, mkundu wa mama yako. Mkundu wa baba yako. Mboro yako. Unalinda huku mkeo anatombwa nyumbani". Freely translated into English, these words mean: "your mother's vagina. Your mother's anus. Your father's anus. Your penis. You are patrolling when your wife is having sexual intercourse at home" These words are revolting, and the appellant was arrested on the sport. He had been covering himself with a blanket which he threw away. He was taken to Police Station naked. According to the witnesses, the appellant was smelling alcohol.

In his defence the appellant said he was in his house and he had a quarrel with his wife who had helped Tausi (P.W.3) to sell local liquor.

The appellant had instructed his wife not to help Tausi in selling local liquor. After this quarrel, the appellant entered his house and slept. He was in the house when the militiamen knocked at the door entered the house and arrested him. He was sent to the Police Station naked. Godfrey Michael (D.W.2) who was in another room in the house said he went out of his room after he heard noises and he found the appellant already under arrest. This witness said that he found that the appellant had a blanket on. In the memorandum of appeal, the appellant repeats what he told the trial court. He complains that the witnesses told lies against him.

The three witnesses for the prosecution were very consistent in their evidence on what transpired after the militiamen arrived at the scene. The appellant has complained they all told lies. He does not suggest any reasons. The learned trial magistrate saw and heard the witnesses as they gave evidence. He was impressed they were witnesses of truth. I do not see any reason to disagree. If the appellant was sent to the Police Station naked, it was because he had thrown away the blanket with which he had covered himself when the militiamen arrived at the scene. He was not taken out of his house naked. Even his defence witness Godfrey Michael said that the appellant had a blanket on. The appellant was not dragged from his room naked and sent to Police Station for no reason. He had, according to the prosecution witnesses used abusive language to the militiamen who had gone to the scene in response to his landlady's request.

Having held, as the district court did, that the appellant did use the abusive language as alleged, the only issue is whether the words were likely to cause a breach of the peace. Both Salum (P.W.1) and Shabani (P.W.2) told the trial court that they were annoyed by the words used by the appellant and Salum was ready to fight. As a militiaman, he exercised restraint. As this court said in *Volter Hopp* v. *R.*, [1967] H.C.D. n.91

> the purpose of the statute is to prevent public disturbance as a result of hearing offensive language

In the *Volter Hopp* case, the appellant had said: "Why have you not finished your work? What is wrong with the African brain? African brain is the same as my anus". These words were obscene and clearly offensive and this court held that they were likely to cause a breach of the peace. In the instant case there can be no doubt that the words ultered by the appellant were obscene and were likely to create public disturbance. Salum and Shabani exercises restraint and avoided a disturbance. Apart from Salum and Shabani, there were other people present who could have reacted violently at hearing the obscene language.

I have also considered whether the fact that the appellant spoke the words in the presence of militiamen could lessen the likelihood of breach of the peace. In the case of *Salum Sefu* v. *R.*, [1969] H.C.D. n.177 in which the appellant was charged with creating disturbance in a manner likely to cause a breach of the peace and it was established that the appellant did in fact create the disturbance in a Police Station, in the presence of Police Officers, this court said:—

The persons present who could have been provoked were the police and it could not be suggested that they could act with anything but due professional restraint. it follows that in all the circumstances of this case, it was most unlikely that there was threat to the peace.

The decision in the *Salum Sefu* case was upheld in the case of *Nelson Kamanga and Another* v. *R.*, (1972) H.C.D. n.181 in which the accused had used abscene language in the presence of three police officers. In both cases, the convictions were quashed because it was held most unlikely that the police officers would have, on hearing the utterances of the accused, resorted to physical violence and thereby created a breach of the peace. I agree with these decisions in every respect. In the instant case, however, Salum Ng'wandi (P.W.1) and Shabani Nkhandy (P.W.2) are militiamen and not police officers. Salum Ng'wandi, for example, is a process server at the district court and he was patrolling the streets that night in his other capacity as a militiaman. It is, in my view, wrong to expect militiamen to act with the professional restraint of police officers.

There was likelihood of these militiamen resorting to violence on hearing the abscene language used by the appellant. In any case, there were other people present, apart from the militiamen and these could have resorted to physical violence.

The conviction was well supported by the evidence. The sentence cannot be considered as excessive. For the above reasons, this appeal is dismissed.

Appeal dismissed.

KILEJEKA FUEDA v. RICHARD MSEYA

[HIGH COURT OF TANZANIA AT DODOMA, (Maina, J.)]

CIVIL APPEAL 20 OF 1980

Criminal Practice and Procedure—Complainant's witnesses in criminal case not paid expenses by Republic—Complainant pays expenses—Whether complainant entitled to recover the expenses incurred from the accused person.

In prosecuting a criminal case against the respondent, the appellant incurred expenses for himself and witnesses he called. The Republic did not meet the witnesses' expenses. Appellant sued the respondent in a primary court to recover his expenses and won. On appeal the district court reversed the decision. The appellant, dissatisfied, appealed to the High Court.

Held: where witnesses for the prosecution have not been paid by the Republic, the complainant who pays them is entitled to recover from the accused person.

Appeal allowed.

No case referred to:

April 23, 1980. **MAINA, J.:** The appellant Kilejeka Fueda, was the complainant in Criminal Case No. 25 of 1970 at Mima Primary Court in which the respondent Richard Mseya was charged with, and convicted of stealing two head of cattle belonging to the appellant. The appellant then filed a civil suit at the Chipogoro Primary Court claiming from the respondent the sum of shs. 500/- which the appellant had incurred for food and fare for himself and the witnesses for the prosecution who gave evidence in the criminal case. The primary court awarded the appellant his expenses as claimed, but the district court reversed that decision on the ground that it was the responsibility of the Republic to pay the witnesses their expenses.

There is no dispute that the respondent was convicted of stealing the appellant's cattle. There is also no dispute that the appellant incurred expenses for himself and for the prosecution witnesses in the court of the trial of that criminal case. It has also not been disputed that those witnesses for the prosecution and the appellant himself were not paid their expenses by the government. The issue before the court was whether the appellant was entitled to recover those expenses from the respondent. Under normal circumstances, witnesses for the prosecution are paid their expenses by the Republic. But in this case it was established and not disputed that the witnesses were not paid their expenses by the Republic and that it was the appellant himself who was a complainant in that case who paid these witnesses. It was proved therefore that the appellant had incurred a loss as a result of the respondent's criminal act of stealing the appellant's cattle.

Under s.5(1) (b) of the Primary Courts Criminal Procedure Code which appears as the third schedule to the Magistrate's Courts Act, Cap. 537, primary courts have the power to award costs against the accused person. A complainant is entitled to recover his expenses incurred when a criminal case ends in his favour. As the primary court did not make an order for costs in the criminal case in which the appellant was the complainant, the appellant was perfectly entitled to file the civil suit against the respondent who was the accused person in the criminal trial and the primary court rightly awarded the appellant his costs. Normally witnesses for the prosecution are paid their expenses by the Republic, but where the witnesses have not been paid by the Republic, the complainant who pays them is entitled to recover from the accused person. This is particularly so in primary courts where the complainant is expected to send his witnesses to the primary court.

As regards the amount which the appellant was entitled to, the primary court in a well reasoned judgment found that the appellant had established his claim for shs. 500/-. At the hearing of this appeal, the respondent said he was prepared to pay to the appellant shs. 350/- only. But the evidence on records shows that the

appellant had incurred the sum of shs. 500/- he claimed to be refunded. He called witnesses who gave evidence of the various sums they received from the appellant to pay for the fare and food when they attended the primary court to give evidence in the criminal trial. The appellant too spent money for his personal expenses being fare and food while attending court in respect of the criminal case. The primary court was satisfied that the appellant had spent the sum of shs. 500/- and on my own view the primary court was entitled to reach that conclusion, from the evidence on record.

This appeal is allowed with costs. The decision of the district court is reversed and that of the primary court restored.

Appeal allowed.

MAHONA v. UNIVERSITY OF DAR ES SALAAM

[HIGH COURT OF TANZANIA AT DAR ES SALAAM, (Kisanga, J.)]

CIVIL CASE 83 OF 1977

Labour Law—Termination of employment—Two pieces of legislation providing procedure to follow—Which of the two legislation to follow—University of Dar es Salaam Act, 1970—Security of Employment Act, Cap. 574.

Labour Law—Appeal to Minister under Security of Employment Act—Effect of not supplying the other party with a copy of memorandum of appeal—Determination of an appeal ex-parte—Duty of Minister—Section 43 Security of Employment Act.

Labour Law—Natural Justice—Minister deciding a case without hearing one of the parties—Breach of principle of natural justice.

Labour Law—Termination of employment—Procedure not followed—Minister agrees with termination and orders accordingly—Minister's order null and void—Section 27(1) Security of Employment Act not applicable.

Labour Law—Acceptance of terminal benefits—Whether estoppel to lodging further complaint.

Labour Law—Tetermination of employment—Procedure not followed—Principle of natural justice breached—Order of Minister declared null and void—Remedy open to plaintiff.

Labour Law—Declaration that termination was invalid—Effect on plaintiff's rights.

Labour Law—Order by Board or Minister to reinstate employee—Employer's refusal to comply—Effect on employer.

The plaintiff an employee of the defendant had his services terminated on disciplinary grounds. He appealed to the Conciliation Board against his termination and won. The defendant referred the matter to the Minister. The plaintiff

was not supplied with a copy of the memorandum of appeal by the defendant to the Minister; nor before deciding the case did the Minister give the plaintiff an opportunity to be heard. The Minister reversed the Conciliation Board's decision and ordered that plaintiff be paid terminal benefits. After taking his terminal benefits the plantiff filed a suit in the High Court challenging his termination and seeking a declaration that his termination was invalid because laid down procedures were not followed either under the University of Dar es Salaam Act, 1970 or the Security of Employment Act Cap. 574. Plaintiff further challenged his termination on the ground of breach of principles of natural justice in that the Minister did not afford him an opportunity to be heard. The court considered the above grounds and also considered the effect of declaring a termination of employment invalid. The court further considered the effect of an employer refusing to reinstate an employee after having been ordered to do so by the Board or Minister or the Court.

Held: (i) in the present case the defendant could have validly terminated the plaintiff's employment by following the procedure as provided for under either the University of Dar es Salaam Act or under the Security of Employment Act because there is nothing in either act to exclude the application of the other;

(ii) the defendant, by failing to supply to the plaintiff a copy of memorandum of appeal sent to the Minister failed to comply with the procedure set out in Form No. 7 of First Schedule to the Security of Employment Act;

(iii) before the Minister proceeded to determine the appeal *ex-parte* he had a duty to ascertain whether or not the plaintiff wished to submit any memorandum by way of his defence (s.43 Security of Employment Act procedure not followed);

(iv) there was a breach of natural justice in the present case in that the grounds of appeal to the Minister were not made known to the plaintiff and he was not given an opportunity of being heard before the Minister proceeded to determine the appeal; this rendered the Minister's order null and void;

(v) the purported termination of the plaintiff's employment was void and it is declared that the plaintiff has at all material times continued to be in the employment of the defendant;

(vi) since the Minister's order was null and void payments of terminal benefits were done erroneously; such payments do not act as stoppel against the plaintiff pursuing his legal right in seeking a declaration that the termination of his employment was invalid;

(vii) once it is declared the plaintiff was legally in the defendant's employment up to the present day, he is entitled to his employment up to the present day;

(viii) if an employer refuses to reinstate or re-engage an employee as ordered by a Board or Minister on a further reference, such employer shall pay to the employee statutory compensation plus twelve months' wages;

(ix) the order of declaration which the plaintiff has obtained in this case has essentially the same effect as an order of reinstatement made by a Board or by the Minister.

Judgment for the plaintiff.

Cases referred to:

(1) *Errington* v. *Minister of Health*, [1935] 1 K.B. 249.
(2) *Surinder Singh Kanda* v. *Government of the Federation of Malaya*, [1962] A.C. 322.
(3) *Ridge* v. *Baldwin*, [1964] A.C. 40.
(4) *Anisminic* v. *Foreign Compensation Commission*, [1968] 2 Q.B. 862.
(5) *Hypolito Cassiano De Souze* v. *Chairman and Members of the Tanga Town Council*, [1961) E.A. 377.

P. R. Dastur, for the plaintiff.
Lubulila, for the defendant
A. R. Mlewa, Amicus curiae.

April 5, 1979. **KISANGA, J.:** The plaintiff Isaac Mahona was employed, on permanent terms, by the defendant, the University of Dar es Salaam, as a Field Work Organizer, and was attached to the Faculty of Medicine with Professor Makene, the Dean of that Faculty, as his immediate superior officer. By reason of certain instances connected with the plaintiff's discharge of his duties, Professor Makene became dissatisfied with his performance and wrote to him twice or more requiring him to correct himself but he did not comply. Following such conduct Professor Makene wrote to the plaintiff's employer i.e., the Chief Administrative Officer, University of Dar es Salaam, and lodged a number of complaints against the plaintiff with recommendation for a disciplinary action against him. Acting on such a recommendation, the employer decided to terminate the plaintiff's services on grounds of disobedience to superiors and neglect of duty, and he proceeded to do so under the provisions of the Security of Employment Act (Cap. 574). The decision to terminate the plaintiff's services was taken after the matter was duly referred to the Workers' Committee of the University. The plaintiff appealed against this decision to the Conciliation Board which decided in his favour and directed that he be reinstated, but the employer refused to comply and instead appealed further to the Minister for Labour and Social Welfare. The Minister reversed the Board's decision, directing the termination of the plaintiff's services and payment of terminal benefits to the plaintiff. This decision was made by the Commissioner for Labour in the exercise of powers delegated to him by the Minister vide General Notice No. 283 of 1971. Although the plaintiff duly received his terminal benefits; he was dissatisfied with the decision of the Minister and so, *inter alia*, he complained to the Attorney General who in turn advised him to file a suit against his employer for wrongful termination of his employment.

The main ground advanced in the plaint is that the plaintiff's dismissal was invalid because it was not effected in accordance with the privisons of the University of Dar es Salaam Act 1970 which lays down the procedure governing such dismissals. The plaintiff therefore asked for a declaration that his dismissal was invalid and that he has at all material times continued to be in the defendant's employment. In answer to that the defendant stated in effect that the plaintiff's employment was legally terminated by the order of the Minister for Labour and

Social Welfare and that under the Security of Employment Act, this court has no jurisdiction to entertain the suit.

Before me the plaintiff was represented by Mr. Dastur, advocate, and the defendant was represented by Mr. Lubulila of the Tanzania Legal Corporation. Five issues were framed to which both counsels agreed and these were as follows:—

(1) Was the plaintiff's dismissal from his employment valid?
(2) Which law governed the plaintiff's dismissal, the Security of Employment Act 1964 or the University of Dar es Salaam Act 1970?
(3) Whichever law applied, was the procedure as laid down by such law followed in dismissing the plaintiff?
(4) Has this court jurisdiction to hear the claim?
(5) Is the plaintiff entitled to the declaration he has asked for?

At some stage after the commencement of the proceedings I invited the Attorney General or his representative to attend as '*Amicus Curiae*', and Mr. Mlewa, State Attorney, did attend in that behalf.

I think it is necessary to start with the second issue as to which law was applicable to terminate the plaintiff's employment. Because the preliminary objection as to the jurisdiction of the court necessarily depends on that issue. That is to say should it turn out, for instance, that the Security of Employment Act was not applicable in terminating the plaintiff's employment, then the decision of the Minister and the related question of court's jurisdiction would no longer arise or be relevant. Section 29 of the University of Dar es Salaam Act 1970 provides that:—

> The powers of dismissing or terminating the appointment of any officer by way of disciplinary action or of punishing any officer otherwise than by dismissal or termination of his employment for any disciplinary offence are vested in the Council.

Section 32 of the Act goes further and provides that:—

> Notwithstanding the provisions of s.29, the power to dismiss an officer of the University by way of a disciplinary action shall not be exercised unless:—
> (a) a disciplinary charge has been made against such officer; and
> (b) the officer has had an opportunity to answer such charge; and
> (c) an inquiry has been held into the charge in accordance with the provisions of the regulations made by the Council in that behalf.

The University Council has made regulations published as *Terms and Conditions of Service* which were put in evidence as Exhibit p.13, and paragraph 20 thereof provides as follows:—

TERMINATION OF APPOINTMENT ON DISCIPLINARY GROUNDS

(a) *General:* Any employee on permanent or contract terms may be dismissed on grounds of misconduct, or if he neglects or refuses for any cause

(except ill-health not caused by his own misconduct) to perform any of his duties. On such dismissal, the employee will forfeit all privileges under his terms of service.

(b) *Procedure:* If a Head of Department is dissatisfied with the work/conduct of an employee on permanent or contract terms, he shall prepare a report stating the grounds on which he recommends dismissal and shall submit it to the relevant Appointing Authority. The Chief Administrative Officer/Chief Academic Officer will inquire fully into the case, and after hearing any grounds upon which the employee seeks to exculpate himself and hearing such evidence and allowing such questions as is quitable, will take such disciplinary action as he considers necessary subject to appeal to the Appointing Authority.

In all the proceedings under sub-sections (b) in this section, the Disciplinary Code as specified in the Second Schedule of the Tanzania Security of Employment Act, 1964 or any other relevant law currently in force will be followed.

The evidence showed that in terminating the plaintiff's employment there was very little compliance with the procedure as laid down by these provisions of the University of Dar es Salaam Act. Indeed there was compliance only to the extent that Professor Makene, the plaintiff's Head of Department, reported on, and recommended the dismissal of, the plaintiff. Thereafter, it is quite clear from the evidence that the defendant purported to follow the procedure laid down under the Security of Employment Act.

Mr. Dastur contended that the plaintiff's employment could be terminated only in pursuance of the provisions of the University of Dar es Salaam Act which provisions were enacted specifically to govern the employees of that institution. Mr. Dastur pointed out that the University of Dar es Salaam Act (1970) is a later Act than the Security of Employment Act (1964) and stressed the view that parliament must have intended that the University of Dar es Salaam Act should apply to the exclusion of the Security of Employment Act, otherwise it would be pointless or superfluous for parliament to enact such provisions. Admittedly this argument is attractive and has some force, but I find myself unable to accept it. In the first place the University of Dar es Salaam Act does not say that the provisions of the Security of Employment Act shall not apply to the employees of the University. If it was intended to exclude the application of the Security of Employment Act from applying to the employees of the University generally, it was only too easy for parliament to say so, but it did not. But that is not all. The term 'employee' is defined in s.4(1) of the Security of Employment Act as having the meaning ascribed to it in the Employment Ordinance with specified exceptions. Under s.2 of the said ordinance, employee means:—

Any person who has entered into or works under a contract of service with an employer whether by way of manual labour, clerical work, or otherwise and whether the contract is expressed or implied or is oral or in writing.

As indicated earlier, the Security of Employment Act as amended from time to time goes on to specify a number of exceptions to this definition, but looking

through them these exceptions do not include the employees of the University of Dar es Salaam as such. Thus I could find nothing which would exclude the provisions of the Security of Employment Act from applying to employees of the University of Dar es Salaam as such. On the contrary I am of the view that the term "employee" as defined under the Employment Ordinance is sufficiently wide to include employees of the University of Dar es Salaam generally. Perhaps it should be pointed out that a particular employee or employees of the University might fall within one or the other of the specified exceptions, for instance, where an employee is, in the opinion of a labour officer, employed in the management of the business of the University of Dar es Salaam. But this is another matter altogether, and it is not the same thing as saying that the employees of the University of Dar es Salaam generally are not subject to the provisions of the Security of Employment Act, which is what Mr. Dastur contends.

It would seem to me that where, as in this case, parliament makes provisions for employment in relation to a particular institution which provisions are similar to those made under the Security of Employment Act, then unless the contrary is expressed it would be open to apply the provisions of either act, provided that such provisions are applied correctly. Thus in the present case the defendant could, in my opinion, have validly terminated the plaintiff's employment by following the procedure as provided for under either the University of Dar es Salaam Act or under the Security of Employment Act because there is nothing in either act to exclude the application of the other. That, therefore, disposes of the second issue as framed.

This brings me to the next question as framed in the third issue i.e., whichever law applied, was the procedure as laid down by such law followed in dismissing the plaintiff? As stated earlier there was very little compliance with the provisions of the University of Dar es Salaam Act. For the defendant it was vigorously contended that there was compliance with the procedure found under the Security of Employment Act, and it is now necessary to ascertain the validity of that contention. It will be remembered that the plaintiff appealed to the Conciliation Board against the termination of his employment and the Board allowed his appeal but the defendant refused to re-instate him and instead appealed further to the Minister.

All this was done in accordance with the provisions of the Security of Employment Act. But the plaintiff testified, and the defendant confirmed, that when the defendant appealed to the Minister he did not supply to the plaintiff a copy of the grounds of appeal so sent to the Minister. Thus the defendant failed to comply with the procedure as set out in Form No. 7 under the First Schedule to the Security of Employment Act which requires the employer to supply the employee with a copy of the grounds of appeal which he submits to the Minister. Not only that. The Minister proceeded to determine the appeal on the basis of the defendant's memorandum alone without giving the plaintiff a chance to put forward his case. Again this was in breach of s.43 of the Security of Employment Act which provides, among other things, that the parties to a reference to the Minister shall be entitled to submit memoranda in support of their respective cases.

Mr. Lubulila for the defendant argued that although the plaintiff was not supplied with a copy of the defendant's grounds of appeal to the Minister, he was, nevertheless, aware of the appeal having been lodged. Here learned counsel was referring to a letter dated 12th July, 1976 written on behalf of the Commissioner for Labour addressed to the defendant with a copy to the plaintiff (Exhibit D.6) in which the defendant was directed to pay the plaintiff half his salary every month pending the determination of the appeal by the Minister. But the simplest answer to Mr. Lubulila's argument seems to be this: Although at some stage the plaintiff became aware that the defendant had appealed to the Minister, this did not take away the defendant's obligation to supply a copy of that appeal to the plaintiff. For, although the plaintiff was aware of the appeal having been lodged, he did not know the contents or grounds of such appeal. In other words the plaintiff did not know what the case against him was at that stage, and therefore, he could not work out a reply thereto. Under s.43 of the Security of Employment Act, which I have just referred to, the plaintiff was entitled to submit to the Minister a memorandum in support of his case. I think that before the Minister proceeded to determine the appeal "*ex-parte*" as he did, he had a duty to ascertain whether or not the plaintiff wished to submit any memorandum by way of his defence. It should be emphasized that where the statute prescribes the procedure to be followed, that procedure must be followed. I also take the view that where a party claims that the procedure laid down by the statute was followed, the burden is on that party to prove the allegation. So that in the instant case since the defendant contends that there was compliance with the procedure as laid down under the Security of Employment Act, the burden is on him to prove that the plaintiff was supplied with a copy of the grounds of appeal and that he was afforded the opportunity to submit his memorandum to the Minister. This, however, the defendant has failed to do.

Mr. Dastur for the plaintiff submitted that such non-compliance with the provisions of the Security of Employment Act were sufficiently fundamental such as to constitute a breach of natural justice with the result that the Minister's order was rendered null and void and of no effect. In support of this submission he referred me to an English decision in the case of *Errington* v. *Minister of Health*, [1935] 1 K.B. 249. In that case a Local Authority made a clearance order under the English Housing Act 1930 and submitted the same to the Minister for confirmation. Objections were taken by the owners of the properties so affected by the order and under the provisions of the act the Minister was required to cause a public local inquiry to be held in order to look into the objections. Such a public local inquiry was duly held but it did not finalize the matter. Subsequently a private inquiry was held in the absence of the owners of the properties in question and information received at such an inquiry was taken into account in confirming the order by the Minister. It was held that the Minister, in considering whether or not to confirm the order in the light of the objections raised, should be regarded as exercising quasi-judicial functions and that in the exercise of such powers, he must act in accordance with the rules of natural justice, that is to say, he must hear both sides and must not hear one side in the absence of the other. The same principle was applied by the Privy Council in the case of *Surinder Singh Kanda* v. *Govern-*

ment of the Federation of Malaya, (1962) A.C. 322 in which the appellant, an employee, was not given the opportunity of being heard in the course of disciplinary proceedings against him which resulted in his dismissal from his employment.

There can be no doubt in my mind that there was a breach of natural justice in the present case in that the grounds of appeal to the Minister were not made known to the plaintiff and he was not given an opportunity of being heard before the Minister proceeded to determine such appeal. Mr. Dastur stressed that this breach was sufficiently fundamental so as to render the purported decision of the Minister invalid, and for this submission he again relied to the two cases of *Errington and Surinder Singh Kanda* cited earlier. I am in entire agreement and perhaps one might also mention in addition, the more recent cases of *Ridge* v. *Baldwin,* [1964] A.C. 40 and *Anisminic* v. *Foreign Compensation Commission,* [1968] 2 Q.B. 862 in which it was held in effect that a breach of the requirements of natural justice is an error which goes to jurisdiction and renders the decision void.

Once I hold, as indeed I do, that there was a denial of natural justice which rendered the purported order of the Minister void and of no effect, the question that follows is, what next? Mr. Lubulila submitted that that was the end of the matter as far as the courts were concerned. In other words according to him the courts cannot go further than that because under s.27 of the Security of Employment Act, which I shall refer to in some detail later, the decision of the Minister is final and conclusive. He contended that although the Minister's order may have been irregular or faulty, that was unfortunate but the court cannot interfere with it because the jurisdiction of the courts is expressly ousted. Mr. Dastur, of course, opposed this submission and further relied on the two cases of *Errington* and *Surinder Singh Kanda* cited earlier in which application for certiorari was granted. Mr. Mlewa representing the Attorney-General and appearing as "*amicus curiae*" supported Mr. Dastur's submission and emphasized the view that where there has been a denial of natural justice the court has power to interfere with the purported order of the Minister. In this respect he further referred me to the Tanzania case of *Hypolito Cassiano De Souza* v. *Chairman and Members of the Tanga Town Council,* [1961] E.A. 377 in which an employee of the Tanga Town Council was dismissed from employment in circumstances which amounted to a breach of natural justice and it was held by the Court of Appeal that the purported decision to dismiss the employee was no decision and that certiorari could not lie.

The relevant provisions of s.27 of the Security of Employment Act which Mr. Lubulila relied on as ousting the jurisdiction of the courts provide:—

> 27.—(1) The decision of the Minister on a reference to him under s. 26, and, subject to any decision on a reference to the Minister therefrom, the decision of a board on a reference to it under this part:—
>
> (a) shall be final and conclusive; and
> (b) shall be binding on the parties to the reference, and the relationship between the parties in consequence of the matters in respect of which the reference was made shall be determined accordingly;

I think that this provision applies only where there has been a real decision of the Minister and not merely a purported and invalid or inoperative decision. It should be made clear that in dealing with the matter, the court is not inquiring into whether or not the Minister arrived at the correct conclusion in making the order. All that the court is concerned with is whether or not the procedure prescribed by the statute for arriving at such a decision was followed and, as has been indicated sufficiently, I am quite satisfied from the evidence that it was not followed in the instant case, with the result that the purported decision was rendered void or no decision at all. I, therefore, agree with the submission that in the circumstances the court would be entitled to interfere in as much as there was no real decision here.

Mr. Lubulila contended further that since the plaintiff accepted the payment to him of his terminal benefits as ordered by the Minister, he (the plaintiff) thereby waved his right to complain against the Minister's decision. In other words the plaintiff was now estoppel from lodging this claim. With respect to the learned counsel I cannot agree because it seems to me that the conditions necessary for estoppel have not been satisfied. The Minister's purported order was no order at all. So that there was nothing which really happened to terminate the plaintiff's employment. That being so there was no valid ground for the purported payment of the plaintiff's terminal benefits. The basis for the payment was void. The position seems to be essentially one where the payment was made to the plaintiff in error. To my mind such erroneous payment cannot prevent the plaintiff from pursuing his legal right in seeking a declaration that the termination of his employment was invalid. In other words the fact that payment of money was thus made to the plaintiff in pursuance of the invalid order is quite a different matter which cannot affect the plaintiff's legal right. I think that such payment could only be a matter to be taken into account in assessing whatever entitlement may be due to the plaintiff.

In the alternative Mr. Lubulila submitted that following the denial to the plaintiff of natural justice, it is now open to this court either to remit the matter back to the Minister with a direction that he deals with it in accordance with the law or, the court itself, to proceed to deal with it in accordance with the law in the same way as the Minister would have done. However, I find myself unable to accede to this request for two reasons: First, I have not been able to find, and counsel did not refer me to, any provision in the law which sanctions such a course. And second, these proposals are not the remedies which are asked for in the plaint.

The next question to be considered is what remedy is open to the plaintiff. In most of the cases cited above the court granted certiorari; in a few of them also it granted certiorari and mandamus. But in the present case the prayer is not for such remedy. The plaintiff has asked for a declaration that his dismissal is invalid and that he has at all material times continued to be in the employment of the defendant. In the case of *Ridge* v. *Baldwin* cited earlier in this judgment the appellant asked for a declaration that his dismissal from his employment was void and of no effect on two grounds one, of which was that he was given no opportunity of being heard. The court granted the declaration. The facts and circumstances of that case were similar to those of the present case. On that account I am of the view that the remedy by way of a declaration which was open to the employee there is

equally available to the plaintiff in this case, and it is accordingly declared that the purported termination has at all material times continued to be in the employment of the defendant.

Last but not least is the question as to the scope and extent of this declaration, and I wish to acknowledge here and now that this point has caused me much difficulty and anxiety. Mr. Dastur made it clear that the declaration as sought was intended to mean that the plaintiff was in the continuous employment of the defendant up to the present day, and that he was entitled to all his emoluments for all this time. But considerable doubt was expressed as to the correctness of this view. For, it is undisputed that the plaintiff has not been working since the purported termination of his employment in April, 1976. That is to say, for approximately three years now the plaintiff has rendered no services to the defendant, and so there would be little or no justification for him to demand payment for having done no work. In another sense this would amount to unjust enrichment. The force of this argument becomes more apparent, perhaps, if one imagines that the plaintiff could go on claiming his emoluments in full for an indefinite period as long as the matter has not been finalized. On the other hand it could be argued also that the plaintiff did not contribute to the creation of this unsatisfactory situation. He did not opt to absent himself from the defendant's employment and there was no suggestion that he took up any alternative employment. He was prevented from rendering his services to the defendant by the wrongful acts of the defendant himself and the Minister. Why should he be penalized for the consequences which he did not bring about? But what is more is this: Once it is declared that the plaintiff was legally in the defendant's employment up to the present day, it seems only fair and reasonable to say also that he is entitled to his emoluments up to the present day. To say otherwise would not accord with logic and common sense. It would produce strange results. In these circumstances I am constrained to uphold Mr. Dastur's submission that the plaintiff is entitled to his emoluments and benefits up to the present day.

During these proceedings also the defendant indicated sufficiently that he had no intention of re-instating the plaintiff whatever be the results of the case. Should he decide to stick to that view I consider it desirable to say something further by way of guidance as to the rights and obligations of the parties in the event of that eventuality happening. Unfortunately I could not find any direct authority on the point either from the provisions of the Security of Employment Act or in the decided case. But I thought that s.40A(5) of the Security of Employment Act as amended by Act No. 1 of 1975 provides some guide. It says that:—

> (5) Where a re-instatement or re-engagement has been ordered under this section and the employer refuses or fails to comply with the order—
>
> (a) in the case of an order made by a board against which no reference has been made to the Minister, within twenty-eight days of the order being made; or
>
> (b) in the case of an order made by the Minister on a further reference to him, within fourteen days of the order being made by the Minister,

the employer shall be liable to pay the employee compensation of an amount equal to the aggregate of—

(i) the statutory compensation computed in accordance with s.35; and

(ii) a sum equal to twelve months' wages at the rate of wages to which the employee was entitled immediately before the termination of his employment or, as the case may be, his dismissal,

and such compensation shall be recoverable in the same manner as statutory compensation the payment of which has been ordered under s. 39.

Essentially this sub-section is saying this: If an employer refuses to re-instate or re-engage an employee as was ordered by a board or by the Minister on a further reference, such employer shall pay to the employee statutory compensation plus twelve months' wages.

It is quite clear that statutory compensation and an equivalent of twelve months' wages become payable after the employer refuses to comply with the order requiring him to re-instate the employee. Now, the order of declaration which the plaintiff has obtained in this case has essentially the same effect as an order of re-instatement made by a board or by the Minister. Because in either case the idea is to put the employee back in his employment, and in both cases the employees are equally entitled to wages and other benefits. Thus if the defendant now elects not to take back the plaintiff, the position becomes analogous to one where he refuses to re-instate an employee after he was ordered to do so by a board or by the Minister. I could really see no basis for drawing any distinction between the two situations. By the same analogy I think that the consequences as set out in the sub-section quoted above should follow.

In short should the defendant decide not to take the plaintiff back, then he should be liable to pay to the plaintiff statutory compensation plus an equivalent of twelve months' wages at the rate of wages which the plaintiff was drawing per month immediately before the termination of his employment. I hardly need to mention that in paying such compensation the defendant would be entitled to take into account the payments which were wrongly made to the plaintiff by way of terminal benefits.

However, in the event of the defendant deciding to re-instate the plaintiff, a similar analogy may be drawn from the provisions of s.40A(4) of the Security of Employment Act whereby the defendant would have discretion to deduct wages in respect of the number of days on which the plaintiff was absent from work, but all the other entitlements and benefits of the plaintiff would remain intact.

In the result, I would give judgment for the plaintiff with costs.

Judgement for the plaintiff.

SILVANUS LEONARD NGURUWE *v.* REPUBLIC

[COURT OF APPEAL OF TANZANIA AT DAR ES SALAAM (Mwakasendo, Makaime and Kisanga, JJ.A.)]

CRIMINAL APPEAL 34 OF 1981

Criminal Practice and Procedure—Sentencing—Powers of the Court of Appeal to alter sentence:

Criminal Practice and Procedure—Sentencing—Prevalence of a particular type of offence in an area of the jurisdiction of the court—Whether a ground for a sentence of more than usual severity.

The appellant was convicted of manslaughter on his own plea of guilty and was sentenced to twelve years' imprisonment. He appealed against sentence upon the ground that it was manifestly excessive.

It was contended for the appellant that the non-vicious conduct of the appellant, his advanced age, the two pre-trial years he spent in remand custody, his plea of guilty and his spirit of contrition were factors which ought to have been considered by the learned trial judge before imposing sentence.

For the Republic it was contended that the type of crime for which the appellant was charged and convicted of was prevalent in the area within the jurisdiction of the trial court and called for severe sentence.

Held: (i) it is trite law that the court of Appeal cannot alter a lawful sentence imposed by the High Court on the mere ground that if it was sitting as a trial court it would have imposed a different sentence;

(ii) before the court can interfere with the trial High Court's sentence, it must be satisfied either that, the sentence imposed was manifestly excessive, or that the trial judge in passing the sentence ignored to consider an important matter or circumstance which he ought to have considered, or that the sentence imposed was wrong in principle;

(iii) prevalence of an offence is a factor which a trial court should always take into account when assessing sentence, but it would be contrary to principle to consider this factor either as the predominant or the only factor that must guide the court in its consideration of sentence;

(iv) the learned trial judge was wrong in considering only the factor of prevalence of the offence in the area of its jurisdiction and ignoring the other factors when assessing sentence.

Appeal allowed. Sentence reduced to 8 years.

No cases referred to.

S. J. Jadeja for the Appellant.
E. Uronu for the Republic.

August 18, 1982. **MWAKASENDO, J.A.**, read the following considered judgment of the court: The appellant, Silvanus Leonard Nguruwe, pleaded guilty to manslaughter before the High Court sitting at Mtwara. The learned trial judge convicted him on his own plea and sentenced him to twelve years imprisonment. He is appealing against the severity of this sentence.

It is, of course, trite law that this Court cannot alter a sentence imposed by the High Court on the mere ground that if we were the judges trying the case we might have passed a somewhat different sentence. Before we can interfere with the trial High Court's sentence, the appellant must satisfy us either that the sentence imposed is manifestly excessive or that the judge in passing sentence ignored to consider an important matter or circumstance which he ought to have taken into consideration or that otherwise, the sentence imposed is wrong in principle.

Mr. Jadeja, learned Counsel who appeared before us for the appellant, argued for the reduction of the sentence imposed by the High Court on the ground that the sentence of twelve years imprisonment was manifestly excessive in all the circumstances of the case. He drew our attention to some of the circumstances which the counsel contended were not considered by the judge when passing sentence. Counsel vigorously argued that if the learned trial judge had taken into account all the circumstances disclosed in the case he would not have felt it his duty to impose a sentence of twelve years imprisonment.

We will now refer to those circumstances which were not considered by the judge when assessing sentence. One of such circumstances which were referred to us by Mr. Jadeja in his submissions is the fact that the learned trial judge did not give due weight to the fact that although the appellant was clearly guilty of assaulting the deceased, his conduct could not properly be described as vicious in view of the prosecution's own concession that the appellant hit the deceased only once with a stick. The other factors which, in our view, were material to the assessment of an appropriate sentence in the case but which, once again, the judge appears not to have considered are: the advanced age of the appellant; the period of two years which the appellant spent in remand custody before being brought to trial; and lastly, the fact that the appellant pleaded guilty to manslaughter thereby saving the trial court and the Republic from needless trouble and expense both in time and money. Further by pleading guilty, the appellant clearly demonstrated spirit of contrition which, in our view, was a circumstance entitling him to a consideration of a more lenient treatment by the trial High Court.

However, Mr. Uronu, learned state attorney appearing for the Republic has submitted that the learned trial judge was justified in the circumstances of the case to impose the sentence of twelve years imprisonment having regard to the prevalence of this type of offence in the area of jurisdiction of the trial High Court. With respect, while we agree with the learned state attorney that the prevalence of a particular class of crime in an area of the Court's jurisdiction may be a ground for a sentence of more than usual severity being imposed on an offender, we think the learned state attorney's submission is in other respects misleading and takes a

very narrow view of the problem before the Court. Prevalance of an offence is indeed a factor which a trial court should always take into account when assessing a proper sentence to impose in any particular case; but it would be contrary to principle to consider this factor either as the predominant or the only factor that must guide the court in its consideration of sentence. That is where, in our opinion, the learned trial judge erred in the instant case. All the circumstances to which we have referred in this judgement were equally important in the consideration of sentence and all of them ought to have received his careful attention before deciding on sentence. For these reasons, we think we are entitled to interfere with the sentence imposed in this case.

We accordingly, allow the appellant's appeal against sentence, set aside the sentence of twelve years imprisonment and substitute therefore a sentence of eight *(8)* years imprisonment. It is so ordered.

Appeal allowed.

HANIF ALI LADAK AND ANOTHER *v.* REGIONAL PRISONS OFFICER

[HIGH COURT OF TANZANIA AT ARUSHA (Mnzavas, J.)]

MISCELLANEOUS CRIMINAL CAUSE 4 OF 1979

Deportation Ordinance—Detention pending deportation—Ss. 2 and 5 Deportation Ordinance (Cap. 38)—Deportation order not appellable—Detention pending—Deportation lawful.

Deportation Ordinance—Identification of deportee—Certainly of identity necessary.

The two applicants were arrested and detained pending fit opportunity for their deportation. Their advocates filed an application for habeas corpus alleging that the applicants were unlawfully detained in Karanga Prison. The advocates for the applicants further alleged that one of the applicants was not properly identified because his name was different from that mentioned in the deportation order under which he was being held. The Order was produced for inspection by the court. Subsequently an affidavit sworn by the Area Commissioner was tendered in court showing that the name on the deportation order also belonged to the said applicant according to information from his village.

Held: (i) under s.3 of the Deportation Ordinance a deportation order duly signed by the President is not appellable against;

(ii) a person served with a deportation order is lawfully detained if he is put in custody or prison until fit opportunity for deportation occurs;

(iii) there was no reason for doubting the identity of the second applicant and therefore no reason to differ with the affidavit of the Area Commissioner that the second applicant was also known by the name mentioned on the deportation order.

Application dismissed.

Case referred to:

Liversidge v. *Sir John Anderson* [1942] A.C. 206.
Shayo and *Osinde* for Applicants.
Mlawa for the Respondent.

March 22, 1979. MNZAVAS, J.: This is an application for a writ of habeas corpus under section 349 of the Criminal Procedure Code. On 2.3.79 when the matter came up Mr. Osinde applied for an adjournment to enable the applicants to file more affidavits in support of their application. Adjournment was granted up to 12.3.79.

On 12.3.79 two more affidavits were filed. One filed by 1st applicant's mother and the other filed by the second applicant's father. Like the affidavits by the applicants and their advocates, these affidavits also alleged that the applicants are unlawfully detained in Karanga Prison.

On this day Mr. Osinde told the Court that he had just been informed by Mr. Mlawa, learned counsel for the Regional Prisons Officer, the respondent, that both applicants have been detained under the Deportation Ordinance, Cap. 38 of the laws. The learned counsel for the applicants again asked for an adjournment to enable them to prepare themselves on the ground that they had been taken by surprise by the learned state attorney.

Mr. Mlawa argued that both applicants were detained by warrant of the President of the United Republic and under his seal until such time as their deportation was effected. It was submitted that under Sections 2 and 5 of the Deportation Ordinance, Cap. 38, both applicants were lawfully detained. The Republic further argued that once a person is served with a deportation order under section 2 of the Ordinance such order is not appellable to the Court. The order was produced for examination by the Court and by the learned defence counsel. The Republic opposed the application for adjournment. In reply, and after examining the schedule to the order, Mr. Osinde argued that the name Augustin Minja shown in the schedule and purporting to say that it is the name of the second applicant is not his name and that it refers to another Minja and not to second applicant. It was submitted that the second applicant has never been known by the name of Augustin Minja but only by the name of Heaven Matayo Minja.

In support of this argument the Court was referred to second applicant's affidavit and that of his father.

In my ruling I pointed out that in so far as the first applicant, Hanif Ali Ladak, was concerned, he appeared in that name in the schedule to the deportation order signed by his Excellency the President of the United Republic of Tanzania.

This being the position and as clearly stated under Section 3 of the Deportation Ordinance, the Order is not appellable. The application in so far as the 1st applicant was concerned was accordingly dismissed.

As for the second defendant, Heaven Matayo Minja, the Court conceded with the learned defence counsel's argument that the name appearing in the schedule to the Deportation Order is that of one, Augustin Minja, and not Heaven Matayo Minja. Although the Regional Prisons Officer told the Court that the second applicant was also known as Augustin Minja in his locality, the Court felt that it is possible that the name Augustin Minja appearing in the schedule could well be referring to a different Minja and not the second applicant; and bearing in mind that this was a case where the power of the Executive and freedom of the individual were in conflict the Court ordered the learned state attorney to effect further investigations regarding second applicant's identification from administrative authorities and adjourned the matter to 20.3.79.

On 20.3.79 the learned state attorney produced a sworn affidavit of the Moshi District Area Commissioner to the effect that exhaustive investigations both within the District and the village in which the second applicant lives have shown that the second applicant, Heaven Matayo Minja, is also known as second applicant, Heaven Matayo Minja, is also known as Augustin Minja and that both *names are* of the second applicant.

To start with I would like to mention that every society must have power to arrest, to search and where necessary to detain those who break its laws or who in onw way or another are dangerous to the peace and tranquility of the society—But all the time efforts must be made to strike a true balance between personal freedom on the one hand and the security of the society on the other. It is the task of the law to keep the necessary balance.

In the present case learned counsel for the applicants have insisted that the second applicant is unlawfully detained.

Let me remind the learned defence counsel that the Deportation order against the second applicant was issued under section 2 of Cap. 38 which says *inter alia*:—

> Where it is shown by evidence on oath to the satisfaction of the President, that any person is conducting himself so as to be dangerous to peace and good order in any part of Tanganyika. . . or is intriguing against Government, the President may, if he thinks fit by order under his hand and official seal order that person to be deported from any part of the Territory to any other part of the Territory.

In section 3 of the Ordinance the law says:—

> Any appeal will not lie from any order of deportation under this Ordinance.

This being the language of the law it is amply demonstrated that once the President is satisfied on evidence on oath that any person is conducting himself so as to be dangerous to peace and good order and orders that person to be deported, the Court has no power to question the correctness, legality or propriety of the

order. Under Section 5 of the Deportation Ordinance a person served with a deportation order is lawfully detained if he is put in custody or prison, until a fit opportunity for his deportation occurs.

It is therefore clear in so far as the law is concerned that had it not been for the uncertainty regarding identification of the second application, the Court would have had no hesitation in dismissing second applicant's application in the same manner as it did in respect of the 1st applicant.

Now the question to be answered by this Court is this:

> Has the second applicant been properly identified by the administrative authorities as the very person the administration showed by evidence on oath, to His Excellency the President as the person who has been conducting himself so as to be dangerous to peace and good order in the District of Moshi?

The Area Commissioner has on oath reported to the President that the second applicant is one of those people falling in the category of people under section 2 of the Deportation Ordinance. Admittedly the schedule to the deportation order has shown the name of the 2nd applicant as Augustin Minja whereas he and his father say that the applicant is and has always been known as Heaven Matayo Minja. In response to the request by this Court to have the question of identity of the 2nd applicant be further probed the Area Commissioner has once again sworn an affidavit on oath that she has through her investigations right into the village level further confirmation that Augustin Minja is the one and the same person as Heaven Matayo Minja.

I see no reason to differ with the Area Commissioner's sworn affidavit that the second applicant is known in the village he lives as Augustin Minja, the name given in the schedule to the deportation order. It is my view that we, the Judges, should always pay regard to the gravity of the decisions taken by those who are responsible for forming the life of the nation under the hard pressure of reality. This is especially so when the court takes into consideration that the test under which both applicants came to be detained is purely subjective.

The subjective test was fully discussed in the decision by the House of Lords in the case of *Liversidge* v. *Sir John Anderson*, [1942] A.C. 206 in which it was held that as the Secretary of State was empowered to make an order for the detention of any person if "he has reasonable cause to believe" such person to be of hostile origin or associations . . . the courts could not question his order to detain such person. It is the same with this case; and as I have already demonstrated above this Court would not have entertained second applicant's application had it not been for the initial uncertainty of second applicants' identification. Now that I am fully satisfied that the Administrative Authorities in the District have no doubt regarding second applicant's identity this Court has not power to question the decision of His Excellency the President, based as it is, under Section 2 of the Deportation Ordinance. Indeed as I have already mentioned above this court's jurisdiction in such matters is ousted by section 3 of the Ordinance; which is to the effect that "an appeal shall not lie from any order of deportation ordinance."

The role of courts in society is to keep order and to do justice. Courts must not, as it was said by one learned English Judge, "thwart the laws of the land by overlegalistic constrictions." If I do not mention some of the arguments advanced by learned counsel for the applicants in detail it is not through lack of respect to the learned counsel, rather it is because that on the evidence I am satisfied and I agree with the learned state attorney's argument that like the first applicant, Hanif Ali Ladak, the second applicant, Heaven Matayo Minja, is lawfully detained under the Deportation Ordinance, Cap. 38 of the laws.

It therefore follows as night follows day that this application must also fail, and it is accordingly dismissed.

Application dismissed.

SAMWEL KUBEJA *v.* REPUBLIC (MROSO, J.)

SAMWEL KUBEJA *v.* REPUBLIC

[HIGH COURT OF TANZANIA AT MBEYA (Mroso, J.)]

MISCELLANEOUS CRIMINAL APPLICATION 15 OF 1981

Administrative Law—Habeas Corpus application—Confinement in a fenced area at a Resettlement Centre—Whether tantamount to unlawful detention—Resettlement of Offenders Act No. 8 of 1969.

The applicant was initially the subject of a valid deportation order but was subsequently served with a resettlement order to resettle at Songwe Resettlement Centre. While at the Centre he was confined in a fenced fort and kept under close guard by armed prison officers. The applicant considered this confinement to be unlawful detention and filed a habeas corpus application.

Held: (i) prison authorities have no power to impose conditions of confinement on settlers contrary to the existing law;

(ii) an individual must not be deprived of his freedom more than the law clearly stipulates;

(iii) it was proper for the Minister for Home Affairs to serve a deportee with a resettlement order which automatically rendered the deportation order inoperative;

(iv) the confinement of the applicant in a securely fenced area constantly guarded by armed prison officers is unlawful because it offends the spirit of the Resettlement of Offenders Act.

Application granted.

No cases referred to.

A. J. Saffari for the Republic.

August 20, 1981. **MROSO, J.:** This application is by a Chamber summons which is partly in the following words:—

> Chamber Application in respect of unlawfully (sic) detained in fenced fort Under Deportation Order.
>
> Whereby Samwel Kubeja is unlawfully detained in a fenced fort under deportation order.

The summons was obviously drafted by a lay person but from his address to me it seems clear that the applicant who was initially the subject of a valid deportation order was subsequently served with a resettlement order to resettle at Songwe Resettlement Centre with effect from 31 December, 1980. On arriving at Songwe Centre he was confined in what he calls "a fenced fort" and kept under close guard by armed prison officers. I could also gather from his address to me and from his affidavit that he considers this confinement as tantamount to unlawful detention and contrary to the letter and spirit of the Resettlement of Offenders Act and the regulations made thereunder. It would appear therefore that he is asking this court to make orders in the nature of *habeas corpus* directing that the undue restrictions imposed on him be removed.

At the hearing of this application learned state attorney as well as the officer in-charge of Songwe Resettlement Centre appeared and addressed me. The officer in-charge has admitted that since the applicant was received at the centre he had been kept under confinement in an area which is fenced with barbed wire and guarded by armed prison officers. He explained that such are the conditions imposed on all new settlers for a probationary period of at least a year before they are allowed to lead the normal life of settlers. Those stringent conditions of confinement have been imposed because of an alleged high incidence of escapes by settlers. He cited directions of the Principal Commissioner of Prisons, Ref. HQC. 57/XIII/88 of 18th July, 1981, as authority. Incidentally, the applicant was kept in confinement long before the circulation cited was issued.

The Principal Commissioner of Prison's circular was made available to me for perusal. It refers to previous directives issued following a seminar said to have been held at Morogoro. It does not however say who had issued those previous directives but reiterates them as being in the following terms, *inter alia*:—

> (1) Kila Kambi lazima lijenge sehemu ya mapokezi ya wahalifu ambayo itakuwa na mabweni na kuzungushwa uwa na seng'enge utakaosaidia ulinzi wa wahalifu wazoefu ambao ni wageni.
>
> (2) Kila mkazi mpya atawajibika kukaa katika sehemu ya mapokezi kwa muda si chini ya mwaka mmoja chini ya ulinzi. Shughuli zote katika mwaka huo atakuwa anazifanya huku analindwa na huku

anachunguzwa tabia yake kama atafaa kuaminiwa baada ya kumaliza mwaka.

Learned state attorney, Mr. Saffari, is of the view that although it is questionable whether the Principal Commissioner of Prisons could issue the directions contained in the circular referred to supra, thinks however that the officers in-charge of the resettlement centres can make use of paragraph 8 of the Resettlement of Offenders Regulations, G.N. 133 of 1969, to impose on settlers the kind of restrictions the applicant is complaining of. I could notice, however, that even in so arguing, the learned state attorney appeared luke-warm and not wholly convinced by his own argument.

The Resettlement of Offenders Regulations, G.N. 133 of 1969, were made by the Minister for Home Affairs, acting under section 18 of the Resettlement of Offenders Act, No. 8 of 1969 for the better carrying out of the provisions and purposes of the Act. Regulation 8 of the said Regulations says:—

(1) Settlers shall be housed in such a manner as the officer in-charge may determine:

Provided that the number of settlers occupying any room shall be such as to avoid over-crowding, the minimum of thirty square feet being allowed per person, and due regard shall be made to the health of the settlers.

(2) A settler who has been permitted to have his spouse join him at the resettlement centre shall be given separate quarters for the residence by himself, his spouse and other dependants, if any.

(3) It shall be the duty of all the settlers and their dependants to keep all rooms, quarters and other premises occupied by them, clean.

I have read and re-read these paragraphs quoted above but with sincere respect to the learned state attorney I must regret that I cannot share his understanding of it. It seems to me that the paragraph merely means what it says, which is that, as a practical measure, settlers must accept what reasonable accommodation the officer in-charge of a centre is able to give them. Settlers may have to share their accommodation provided health factors are taken into consideration. I am therefore unable to read into that paragraph a meaning that officers in-charge of centres have powers to imprison new settlers for at least a year before they can lead the normal life of settlers under the Resettlement of Offenders Act.

The problem of settlers escaping from resettlement centres is of course a very real one and proper ways and means must be sought to eliminate or at least reduce the incidence. It may perhaps even be necessary that new settlers be closely observed and further curtailment of their freedom be imposed for some time before they can be allowed to lead the normal life of a settler under the Act. But it is my considered view that officers in-charge of centres cannot impose imprisonment conditions on settlers like the applicant under authority of either paragraph 8 of

the Regulations, G.N. 133 of 1969 or the circular letter from the Principal Commissioner of Prisons which was shown to court or even from directions arising from seminars of prison officers.

It seems to me that if it were considered necessary to impose on new settlers the kind of stringent conditions of confinement as have been imposed on the applicant resort has to be made to the legislature. It cannot be said too often that the freedom of an individual is sacrosanct within the confines of the law. It follows that an individual must not be deprived of his freedom more than the law clearly stipulates. His freedom must not be taken away on mere grounds of expediency.

The Deportation Ordinance, Cap. 38 of the Laws provides that a deportee, like what the applicant was initially, may be detained in custody or in prison, if necessary, until a fit opportunity for his deportation occurs. Thus, under that ordinance the legislature allowed for temporary detention of a deportee for what has been interpreted in numerous cases of this court, to be a reasonable period necessary to make arrangements for the deportation order to be carried out.

The Minister of Home Affairs is entitled to serve a deportee with a resettlement order under section 8 of the Resettlement of Offenders Act, N. 8 of 1969 and once such an order is served, the deportation order is automatically spent.

Under section 11 of the Act it is provided that where the Minister is of the opinion that a person on whom the Minister is of the opinion that a person on whom a resettlement order has been served may not comply with such order he may apply to a resident magistrate of the area for a warrant of arrest of such person and after the arrest the person may be detained in custody (again for a reasonable period only) *pending* his transportation to the resettlement centre specified in the order.

Section 17 of the Act and regulation 17 of the Regulations provide for the offences for which a settler and or dependants at a centre may be liable to prosecution before a court of law and the power by a court of law to impose appropriate sentences, which include imprisonment.

I can find nowhere in the Act or in the regulations made under it so far where powers are given to either the Minister or the officers in-charge of centres to detain in custody or in prison any settler for any length of time. It would appear that once a settler is at his centre he should only be subject to the usual conditions of residence, the need to obtain prior leave before going out of the centre, observe the conditions for receiving visitors, or letters or living with dependants. Beyond those general conditions of discipline the settler is expected to lead as normal a life as possible at the centre.

In view of the above facts and observations I am of the firm view that the confinement in a securely fenced area of the resettlement centre to which the applicant has been placed and where he is constantly guarded by armed prison warders is unlawful. Further, the alleged directions said to have emanated from seminars of prison officers and the circular from the Principal Commissioner of Prisons referred to earlier in this ruling are declared to be ultra vires and of no legal effect. The applicant should therefore be removed forthwith from the fenced confinement at the Songwe Resettlement Centre and be allowed to lead the normal

life of settlers unless and until the resettlement order is reviewed by the relevant competent authority according to law.

Application granted.

CELESTINE KILALA AND HALIMA YUSUFU *v.* RESTITUTA CELESTINE KILALA

[HIGH COURT OF TANZANIA AT DODOMA (Maina, J.)]

MATRIMONIAL APPEAL 1 OF 1979

Family Law—Conversion of monogamous marriage into a polygamous one—Whether change of religion by one party to the marriage constitutes conversion—s. 11(5) of the Law of Marriage Act, 1971.

Family Law—Adultery—Parties living together under erroneous belief that they are legally married—Technical adultery.

Family Law—Compensation or damages for adultery—Matters to be considered on computation.

Family Law—Division of assets or dissolution of marriage.

Family Law—Custody of children—Welfare principle applicable.

The first appellant and the respondent got married in a Roman Catholic Church in 1961. In 1977 the first appellant travelled to Zanzibar and when he returned he informed the respondent that he had changed religion to a Moselm and married the second appellant according to the Islamic law. After the failure of the church authorities to reconcile the parties the respondent left the matrimonial home. She later successfully petitioned for divorce in the district court. The court also ordered the appellants to pay damages for adultery. The appellants dissatisfied with the decision of the trial court appealed to the High Court.

Held: (i) change of religion by one party does not change the status of a monogamous marriage into a polygamous or potentially polygamous marriage unless both parties make a declaration changing their religion on their own free will;

(ii) where a married man does marry a woman and they live as husband and wife under the erroneous belief that they are legally married, their cohabitation amounts to technical adultery;

(iii) in assessing quantum of damages for adultery there is a need to differentiate technical adultery from adultery by people who have not gone through any form of marriage;

(iv) as the evidence disclosed that the house was built exclusively by the appellant with his own funds and the household property bought by him with his own money, the respondent was not entitled to any share therein;

(v) in deciding custody of children the fundamental principle of law that is applicable is the welfare of the children and as they were over seven years in age and were schooling in Zanzibar living with the mother of the appellant, their custody should not be changed.

Appeal allowed.

No case referred to.

D. C. Mbezi for the Appellant.
F. S. Chambakare for the Respondent.

March 3, 1981. **MAINA, J.:** The respondent Restituta Celestine Kilala successfully petitioned for divorce at Dodoma District Court. In the petition the two appellants, Celestine alias Abdallah Kilala and Halima Yusufu were joined as the first and second respondents, respectively. The District Court, after dissolving the marriage between the respondent and the first appellant, made orders for custody of the children, maintenance and division of the matrimonial properties and for payment of shs. 8,000/- to the respondent as damages for adultery. This appeal is against the order for dissolution of the marriage between the first appellant and the respondent, and also against the other reliefs granted.

The evidence established that the first appellant Celestine alias Abdallah Kilala and the respondent Restituta were married in a Catholic Church in Sumve, Kwimba District in 1961. It was therefore a Christian marriage. The first appellant was a Medical Assistant and the respondent was a Primary School teacher. Their marriage was blessed with six children, the eldest was born in 1962 and the youngest in 1971. They worked and lived in various places and finally they moved to Dodoma, on transfer. The first appellant was now a Divisional Secretary while the respondent was still a Primary School teacher. In 1977 the first appellant travelled to Zanzibar and when he returned in April 1977 he informed the respondent that he had changed his religion to a Moslm and had married the second appellant Halima Yusufu according to Islamic law. The marriage was celebrated in a Mosque in Zanzibar and the documents for the first appellant's change of religion and the marriage certificate were tendered in court as Exhibits. The respondent referred the matter to Church leaders including the Bishop of the Catholic Church in Dodoma for reconciliation. But the first appellant would not submit to the jurisdiction of a Reconciliation Board constituted by Catholic religious leaders. The matter could not be discussed any further in order to reconcile the parties. Eventually the respondent left the matrimonial home.

The first appellant said that after he was married to the respondent in 1961, the respondent lived an immoral life by committing adultery with several men including their house servant. Even after they moved to Dodoma, the respondent

continued living an immoral life, and drank excessively with other men during the night and she would return home late at night, drunk.

For fifteen years the first appellant had to put up with this, and finally they separated when the first appellant changed his religion and married the second appellant. In her evidence, the second appellant said that she did not see the point of paying compensation or damages for adultery when she was married to the first appellant.

The first issue, as the learned Senior Resident Magistrate framed it was whether the two appellants committed adultery when they were living as husband and wife. There is no doubt that the appellants were married and were living together as husband and wife. The learned trial Magistrate held that the marriage is valid under the law. The learned trial Magistrate held that the marriage was void. The learned Senior Resident Magistrate argued that since the first appellant had contracted a valid Christian marriage with the respondent, and that marriage has not been dissolved, or changed into a polygamous marriage, the first appellant was incapable under the law to contract another marriage.

There is no doubt that the marriage between the first appellant and the respondent was a monogamous marriage and section 15 of the Law of Marriage Act provides that "no man while married by a monogamous marriage shall contract another marriage." That marriage could have been converted into a polygamous or potentially polygamous marriage under section 11 of the Law of Marriage Act by "a declaration made by the husband and wife that they each of their own free will agree to the conversion." The first appellant and the respondent did not make any such declaration and their marriage contracted in Sumve in 1961 remains a monogamous marriage.

The first appellant was of the impression that because he had changed his religion from a Christian to a Moslem, then he was able to contract a Moslem marriage with another woman. In my view, change of religion by one party does not change the status of his marriage. Section 11(5) of the law of Marriage Act provides that: "No marriage between Christians which was celebrated in a Church in Christian form may, for so long as both the parties profess the Christian faith, be converted from monogamous to polygamous . . ." It is evident therefore that the first appellant could not, by changing his religion, change the status of his marriage with the respondent. That marriage remained monogamous and the first appellant was incapable of contracting a valid marriage with another woman. The first and second appellant were therefore living in adultery notwithstanding that they had gone through a form of marriage under Islamic law. If the appellant wanted to bring his marriage with the respondent to an end he could have filed a petition for divorce and once that marriage was dissolved, he would have gone ahead and contracted a marriage with the second appellant. Since he did not do that, he was technically living in adultery with the second appellant.

The learned Counsel for the appellants submitted that the marriage broke down irreparably but it was due to the respondents adultery. As the learned Senior Resident Magistrate said in his judgement, it is inconceivable that the first appellant would have tolerated his wife's adultery for fifteen years, if really his wife, the respondent, was committing adultery for so many years and with so many

men as alleged. I would agree with the learned trial Magistrate that the first appellant's act of contracting marriage with the second appellant is what caused the break down of the marriage. If the respondent had committed adultery on so many occasions as alleged, the first appellant would have taken legal steps like petitioning for divorce. The marriage between the respondent and the first appellant broke down due to the first appellant's marriage to the second appellant which marriage, I have held, was null and void. The first appellant's marriage to the second appellant was invalid and their relationship was the adulterous one.

Learned Counsel for the appellants submitted that the second appellant did not know that the first appellant and the respondent were married. That cannot be true. The second appellant was a teacher at Chamwino where the respondent also worked as a teacher. The first appellant was living with the respondent. The second appellant told the trial Court that the respondent signed the attendance register using the first appellant's surname. That was sufficient for the second appellant to know that the respondent was the first appellant's wife. Yet the second appellant went ahead and married the first appellant. Even if the second appellant did not know that the respondent and the first appellant were married, she (the second appellant) would have found out their relationship, for, she said she saw the respondent signing her name in the school register using the first appellant's name. The second appellant is a school teacher like the respondent. The parties were all residents of Chamwino where they were working and it is inconceivable that the second appellant and the respondent were married. I agree with the learned trial Magistrate that the second appellant knew that the first appellant was married to the respondent and she is liable for damages for adultery.

On quantum of damages for the adultery, the Senior Resident Magistrate reduced the amount from shs. 20,000/- claimed to shs. 8,000/-. From the facts of this case, the adultery between the appellants was technical. The first appellant believed that by changing his religion, that would convert his monogamous marriage to a polygamous marriage. He went ahead and married the second appellant believing he was entitled to do that by simply changing his religion from a Christian to a Moselm. As I have tried to analyse the matter, the first appellant was acting under an erroneous belief that by becoming a Moslem, his marriage with the respondent became a polygamous marriage. By going through the marriage with the second appellant and living with her, the first appellant was technically committing adultery with the second appellant. But in my opinion, this is different from adultery by people who have not gone through any form of marriage. It is for these reasons that I consider shs. 8,000/- excessive and reduce it to shs. 2,000/- only.

On the division of the matrimonial property, the learned Senior Resident Magistrate said that "the house at Sumve and the personal effects acquired between the petitioner and the first respondent to be divided equally between them. At the hearing of this appeal, learned counsel for the appellants asked for additional evidence to be recorded to establish on whose name the properties were acquired and how much the wife contributed towards the acquisition of the properties. Both the first appellant and the respondent gave the additional evidence as applied. It came out in the evidence that the first appellant built the house with

money which he said was his own. The respondent alleged that they had a joint bank account but she had no documents to prove that. She said she spent her salary to prove that. She said she spent her salary to buy food while the first appellant spent his salary to build the house at Sumve.

But the first appellant said there was only a proposal to open a joint bank account. That proposal did not materialise and each party operated a separate bank account. The house at Sumve is not yet completed and the first appellant spent the shs. 18,000/- he was paid as bonus when he resigned his post of Medical Assistant in Zanzibar.

There was further evidence of furniture which the first appellant said were his personal properties, all of which he acquired in his personal name. The Singer Sewing Machine was taken away by the respondent when she left the matrimonial home.

Under Section 114(1) the Law of Marriage Act, the court can order division of matrimonial properties acquired by the parties during the marriage by their joint efforts, when granting or subsequent to the grant of a decree of divorce or separation. But one of the factors to be considered is under section 114 (2) (b) of the Law of Marriage Act, the extent of the contributions made by each party in money, property or work towards the acquiring of the assets. My interpretation of this provision is that not every property in the matrimonial home is liable for distribution between the parties just because the marriage has been dissolved. It must be proved that the properties to be divided between the parties was acquired by their joint efforts. Now, the first appellant's allegation that the house at Sumve was built with his own money, the money he was paid as bonus by his former employers, has not been seriously challenged. There was the allegation by the respondent of a joint Bank account but this was not proved. What the respondent's parents did was to assist the first appellant in acquiring the plot on which the house is constructed. The plot was acquired by the first appellant and he started construction. There is no evidence that the respondent contributed anything by way of money, materials or labour towards the acquisition and construction of the house. The fact that the house was acquired during marriage life is not proof that it is joint property.

As regards the household properties, these included a Radiogram, a Sewing Machine, a dining table, steel chairs, three cupboards, a portable radio and a Philips player. The first appellant said that he bought all these with his money and when the respondent left the matrimonial home she took the Singer Sewing Machine with her. The first appellant was not prepared to give the respondent any of these few pieces of furniture. Since these properties were acquired by the first appellant with his own money, I can see no basis for distributing these properties equally between the respondent and the first appellant. The respondent took with her the Singer Sewing Machine when she left the matrimonial home. She also took all her personal belongings.

On the issue of custody of the children, it is noted that all the children are above the age of seven years as the eldest was born in 1962 while the youngest was born in 1971. So the presumption that it is in their interest to live with their mother, the respondent, does not apply. These children are in Zanzibar and they

go to school there. The first appellant has been sending money to his mother for the maintenance of these children who are staying with her.

It is a fundamental principle of law in case of custody that what is of paramount importance is the welfare of the children. Since the children in this case are above the age of seven years and they have been living in Zanzibar where they go to school, to change custody will affect them to their own detriment. The first appellant being the father of these children has the ability to pay for their education and I can see no reason to deny him custody. Their mother, the respondent, can and should, as of right, have access to these children when convenient, for example, when they are on holidays. For these reasons the order awarding custody of the children to the respondent is set aside and it is ordered that the first appellant should have custody of the children. In view of this, the order requiring the first appellant to pay money to the respondent for the maintenance of the children is set aside. The respondent is employed as a teacher with a monthly salary of over shs. 900/- and she can maintain herself with that salary.

On the question of costs, I consider that in view of the nature of these proceedings, the parties should bear their own costs.

Appeal allowed.

WILFRED MAHENDEKA *v.* REPUBLIC (KATITI, J.)

WILFRED MAHENDEKA *v.* REPUBLIC

[HIGH COURT OF TANZANIA AT MWANZA (Katiti, J.)]

CRIMINAL APPEAL 275 OF 1978

Criminal Practice and Procedure—Charge—Wilful obstruction of a police officer in due execution of duty—s. 243(b) Penal Code, Cap. 16—Omission of the word wilful—Charge defective.

Criminal Practice and Procedure—Search—Requirements—s. 118 of Criminal Procedure Code, Cap. 20—s. 34 of Police Force Ordinance, Cap. 322.

Criminal Law—Mens rea—Obstructing a police officer in due execution of duty—Mens rea an essential ingredient.

Police Force Ordinance—Search—Requirements—s. 34, Cap. 322.

The appellant was charged with and convicted of obstructing a police officer in the due execution of his duty. The appellant pushed away, and refused entry into his house a police corporal who wanted to search his house but who had no search warrant and could not procure a ten-cell leader on demand by the appellant. He challenged his conviction on the ground that his action did not amount to an offence under s. 243(b) of the Penal Code in that the intended search was

illegal and that, as such, he was entitled to resist it. The appellate court examined the charge and considered the grounds of appeal.

Held: (i) the word "wilful" in a charge of obstructing a police officer in due execution of his duty is essential; its omission renders the charge defective as there is no such offence known in the Penal Code;

(ii) the offence of wilful obstruction of a police officer in the due execution of his duty is not absolute; *mens rea* must be proved;

(iii) s. 118 of the Criminal Procedure Code, Cap. 20, requires that a search must be made on a warrant;

(iv) s. 34 of the Police Force Ordinance, Cap. 322 empowers a police officer not below the rank of sub-inspector to conduct search without warrant or issue a search order to a subordinate provided:

(a) he reasonably believes that undue delay will impede, inhibit or defeat the success of the investigation;

(b) he has recorded in writing the grounds of his belief; and

(c) he has specified the thing for which the search is to be made;

(v) the police officer obstructed in this case did not fulfil any of the conditions under s. 118 of the Criminal Procedure Code, Cap. 20 or s. 34 of the Police Force Ordinance, Cap. 322.

(vi) the appellant had a lawful execuse in disallowing a policeman who had neither the search warrant or order nor the necessary rank to search his house.

Appeal allowed.

No case referred to.

February 27, 1979. KATITI, J.: In a trial, before Ukerewe District Court, Wilfred Mahendeka Kulora found himself convicted, and sentenced to eight months imprisonment. Being dissatisfied with the judgment and sentence, Wilfred Mahendeka Kulora, herein to be referred to as the appellant, is appealing against conviction and sentence. The ground that merits respect, that the appellant gives, is that there was no offence committed, as the intended search was illegal.

The facts in summary are that, at 8 a.m. on 2/8/1978, Kabingo Market Store was found broken into. The checking revealed that shs. 300/- had been stolen. As is normally the case, the Police were informed, and investigations commenced. Rumours soon spread, that the appellant was one of the suspects. With untamed enthusiasm, Detective Corporal Paulo, accompanied by other civilian enthusiasts rushed to the appellant's home, where Corporal Paulo (PW. 4) demanded to search the appellant's house. The appellant demanded the presence of his own Ten-Cell Leader, and a Search Warrant before the search could be done. As none of these were available, he refused to have his house searched, and resisted the Police Officer's forceful attempt, to search the house by pushing him away. The appellant was therefore, arrested, charged, subsequently convicted, and sentenced to eight months imprisonment.

It is, from these facts, that the appeal comes about. In dealing with this appeal, I have a nagging worry generated by the defect, in the charge, and its resultant effect, on the appellant, as the trial went on: To have the issue appreciated, hereunder is how the charge was framed:—

STATEMENT OF OFFENCE: Obstructing a Police Officer in the executing of his duty c/s 243(b) of the Penal Code Cap. 16 Vol. I of the Laws.

PARTICULARS OF OFFENCE: Wilfred Mahendeka Kulola, on 3rd day of August, 1978, at about 12.00 hours at Kabingo, within the District of Ukerewe in Mwanza Region, did obstruct No. 37143 D/Cpl. Paulo, a Police Officer, for searching his house for the offence of Store breaking and stealing, was strongly suspected, who at the time, he was acting in the executing of his duty.

I must make it clear in the first place, that in attacking the charge, I am not after literary excellence, but to show how the charge, did not contain, all the elements that the law requires, to find a conviction against the accused persons, under the Section. The relevant section/subsection 243(b) says, and I reproduce the same hereunder:—

> (b) assaults, resists or wilfully obstructs any Police Officer in the due execution of his duty or any person who acting in aid of such officer . . . shall be guilty of a misdemeanour and is liable to imprisonment for five years.

It is to be observed that, the word "Wilfully" is significantly part of the subsection, and equally to be observed, is the fact, that it was omitted in the charge against the appellant, under the same section. I strongly point out here, that I shudder to think, that the word —"wilfully" is meant to be a decorative luxury in the subsection, for I view the subsection, demands, that the prosecution prove three elements, to have the accused convicted as charged. That is, it is my view, that the prosecution must prove—

(1) That there was an obstruction of a Police Officer.
(2) That the officer was at the time, acting in the due execution of his duty and
(3) That the person obstructing, did so wilfully.

In this case, the charge as preferred, makes the third element a dispensable relaxable luxury, but thereby depriving the appellant opportunity to defend himself on the totality of the charge, and equally meaning the prosecution, not proving the charge offence as required. It is my view therefore, that the charges as set out, was charging the appellant for no offence, that the Penal Code knows of.

As I have just pointed out, the term "wilfully" in the subsection, is significant. There should always be the question, whether the obstruction was wilful, considering the liekly possibilities. For while I take "wilful" to mean "intentional", I also think, it may connote, something which is done to a Police Officer, without lawful excuse, thereby making it more difficult, for a Police Officer to carry out his

duty. I have pointed out, how the omission of the third element in the charge, prejudices the accused in the sense that, it is made to him to appear, that lawful excuse, is no defence. Assuming here therefore, that that charge had properly indicted the appellant, could we say the offence was proved beyond reasonable doubt.

The finding that PW. 4 was a Police Officer, was on the evidence unavoidable, and that, the pushing of PW.4 by the appellant amounted to an obstruction was equally unimpeachable. But was the obstruction, without lawful excuse?

PW.4 as Police Officer went to search the appellant's house; forcefully, but the appellant's condition precedent for his house being searched, was mainly the presentation of a search warrant, and the presence of his ten-cell-leader, and none of these were available. We no doubt appreciate, that a Police Officer has the obligation and duty to take steps for the keeping of peace, for the prosecution of crime, for detection of crime, and bringing the offenders to justice, and protecting property from criminal injury. While this is very true, does the law play laiss'ez-faire, allow indiscriminate violation of the citizens privacy—in his own kingdom—his house, in the pursuit of the above objectives? It seems, the law of this country under section 118 of the Criminal Procedure Code, does treat certain areas, like a building, or house with respect, and may be searched, by a Police Officer when armed with a search warrant, issued by the Court, where it has been proved on oath to the Court, that in fact, or, according to reasonable suspicious, property or anything, in respect of which an offence has been committed, for which investigation is necessary, is in the said building. The requirement of oath, signifies that, on no trivial ground, should a building or a house be searched, presumed as it should be, that one taking an oath is serious.

It seems to me, that I should cast my nets wider. I imagine, that speed, dispatch and ingenuity are necessary in the detection of, and prevention of crime, and I should think, that strict compliance with the provisions of section 118 of the Criminal Procedure Code Cap. 20, could sometimes impede, inhibit or even defeat the successful pursuit of Police duties, where the question of searching houses and homes arise, particularly demand dispatch of action, and undue delay, does the law, provide a Police Officer with any shorter cut i.e. give him a free hand, the interference with which renders the citizen liable to imprisonment, rendering a house owner more or less a tenant at will, at a sight of Police Officer? Section 34(1) (2) and (3) of the Police Force Ordinance Cap. 322, does seem to supply the answer. Under the provisions of sub-section (1) of section 34 of Cap. 322 a Police Officer not lower in rank than a sub-Inspector, may conduct a search of a house, or building without search Warrant, issued under section 118 of the Criminal Procedure Code Cap. 20, if he reasonably believes, that anything necessary for the investigation of an alleged offence, must be obtained without undue delay, and the said thing is in his area of jurisdiction, and has recorded in writing the grounds of his belief, and as far as possible, has specified the thing for which the search is to be made. Where such officer, is for some reason unable to conduct the search, sub-section (3) of section 34 Cap. 322, provides, that such officer may issue a search order, therein specifying the place to be searched, and the thing for which

the search is to be made, to an officer subordinate to him, and recording the reasons for so doing, after which such subordinate officer may therefrom search for such thing in such a place. The above provisions, must mean, that a Police Officer below the rank of sub-Inspector, is not competent to search a building, either without a search warrant, or without a written order for searching, specifying the place to be searched and the thing for which the search is to be conducted, from Police Officer not being lower in rank, than a sub-Inspector.

Coming back to earth—this case, all that the appellant wanted was either a search warrant, which to him could equally be a search order. The Police Officer PW.4, with all his enthusiasm was just a Corporal, who had neither the search Warrant, nor the search order from Sub-Inspector, or Police Officer of Senior rank for conducting the search, but wanted to search by show of force. He was a Police Officer, who neither, complied with the provisions of section 118 of the Criminal Procedure Code Cap. 20, nor with the provisions of section 34(1) and (3) or Cap. 322—the Police Ordinance. I therefore now, relevantly come to the question—did the appellant, not have a lawful excuse in refusing to allow a search of his house by this officer? If we are going to hold, that, that the steps stipulated in sections 118 of Cap. 20, and 34 of Cap. 322, are not meant to be sheer rituals, and that police powers are and should be given by statute, we must hold that a legal search may be conducted in a building or house in any one of the three circumstances—(a) where any Police Officer is armed with a Search Warrant issued under Section 118 of Cap. 20(b); (b) where a Police Officer not being lower in rank than a sub-Inspector on reasonable grounds, consider it necessary to search without undue delay under sub-section 34(1) of Police Ordinance Cap. 322, and (c) where an officer below the rank of a Sub-Inspector has received an order in writing, authorising and specifying the place to be searched, and the article or thing, for which the search is to be made; in which case he can proceed to search. The method used in this case by PW.4 is not acknowledged by the law, and we cannot condemn the citizen who refuses to be put ajar the doors of his house, on the command of anybody in Police uniform. In my view the appellant had a lawful excuse in disallowing a Policeman, who had neither, the search warrant or search order, nor the necessary rank to search his house.

Therefore I allow this appeal, quash conviction, and set aside the sentence. The appellant to be set free unless, he is otherwise lawfully held.

Appeal allowed.

KARANJA WAIHENYA *v.* S. MARAI

[HIGH COURT OF TANZANIA AT MWANZA (Katiti, J.)]

CIVIL APPEAL 14 OF 1975

Land Law—Installed aids of business or trade over or in a house by a tenant—Whether fixtures.

Land-lord and Tenant—Tenant effects improvements over or in a house at his own cost—Tenant quits and leaves premises—Landlord re-enters—Right of tenant to remove fixtures evaporates.

Land-Lord and Tenant—Rights of an outgoing tenant against an incoming tenant in relation to improvements effected by the outgoing tenant.

A tenant effected improvements over or in a house at his own cost as aids of his business or trade. Later he sold the business to an incoming tenant who was afterwards ordered to vacate the premises because he defaulted in rent payments. The second tenant claimed compensation from the owner of the premises for the value of the aids of business or trade effected over or in the house, which he said he bought from the former tenant. The trial court allowed the tenant's claim in part. The landlord appealed and the tenant cross-appealed claiming the disallowed part of his claim. The appeal court considered the meaning in law of aids of business or trade effected in a house, the rights of the outgoing tenant against the landlord and the rights of the outgoing tenant against the incoming tenant.

Held: (i) aids of business or trade—internal wash basins, water taps thereon, ceiling boards fixed to the house, flush toilets and cesspits—Qualify to be termed fixtures;

(ii) to constitute a fixture the article should be let into, or united to the land, or, be substantially connected with the land, or building that is built on it.

(iii) where a tenant merely quits, and leaves the premises, and the landlord re-enters, the tenant's rights to remove fixtures evaporates, and the fixtures belong to the landlord;

(iv) in principle a tenant is entitled to sell his fixtures (removable) or be compensated for his immovable fixtures, by incoming tenant, as they are his properties;

(v) the tenant in this case has no right to compensation for the value of immovable fixtures because he did not pay for them; he has no right to the movable fixtures against the landlord but may seek redress against the former tenant from whom he bought the fixtures which he did not enjoy.

Appeal allowed.

Cross-appeal dismissed.

Ed. Note: It is not clear in this judgement whether the meaning of fixtures follows that at Common Law; or whether fixtures are unexhausted improvements under the Land Ordinance, Cap. 113 (Tanzania).

July 22, 1977. **KATITI, J.:** Karanja Waihema, the cross-appellant in this appeal, filed an action in Tarime District Court, claiming a total of shs. 2,686/20, being the costs, equivalent to the value of fixtures, and related improvements, effected over, or, in the appellant's house, that, he had rented for business purposes, only to be evicted under the order for vacant possession, before he did the intended trade.The District Court, allowed the claim to the tune of shs. 1,936/20, holding that shs. 750/- disallowed, was the amount contributed by the appellant. He grudges the amount so disallowed, and hence this cross-appeal.

The appellant also aggrieved, has appealed to this court. Mr. Matemba, advocate for the appellant has argued that the articles or improvements, the costs or value of which the cross-appellant claimed, were in the house before the cross-appellant took over the house. Mr. Matemba added, that the Health Officer testified to this effect. Mr. Matemba was all vehemence, when he further submitted that earlier or, as the same house had been used as a hotel, and bar, then the latrines and toilets must have been there when the cross-appellant took over. Alternatively, Mr. Matemba said, that in any case, as the said improvements were effected without the blessings of the appellant, he cannot be held liable to pay for them.

The facts are that in 1970 PW. 2 Paul Kamau bought a beer store business, from the appellant. In 1971 he converted the said house into a lodging for which he obtained a licence. Later, he added a bar business thereon, and got a bar licence for the same. It seems therefore, that PW.2 Kamau was the appellant's tenant, who on evidence used to pay shs. 200/- per month as rentals. Although Kamau was obviously in partnership with the cross-appellant in the business, the known tenant was Paul Kamau PW. 2. In the very year Paul Kamau sold his $^2/_3$ share business, to the cross-appellant and went to Kenya. The evidence does not come out rather clearly, as to whether, there was any change in the amount of rent that the cross-appellant continued paying. It suffices however, to know, that the cross-appellant, was subsequently evicted on a vacant possession order, upon the cross-appellant's failure to pay rent.

It is after that case, that the cross-appellant filed a suit that led to this appeal. The cross-appellant said he installed—

(1) Two wash basins worth ..... Shs. 300/-
(2) Water Tapes worth ..... Shs. 400/-
(3) Ceiling boards worth ..... Shs. 200/-
(4) A fixed barshelf worth ..... Shs. 160/-
(5) Flush toilet plus cesspit worth ..... Shs. 1,686/20

This crystalises into a total of shs. 2,686/20, the amount claimed.

I must pursue the question whether the claimed improvements were done by the cross-appellant, or, the previous tenant. To go too far, is to risk time wasting.

PW.2 Paul Kamau seems to unequivocally supply a credible answer. As to who installed the above, PW. 2 has to say, and I quote him:

> In 1971 I decided to convert the premises into a lodge to make business as a going concern. I called a health officer, who instructed, me to put a ceiling board in the three rooms and to paint the same. The defendant told me it was up to me to meet the costs. I constructed the ceiling boards and I was ultimately given a licence for the lodge. I also decided to open a bar. I was told to construct basins for washing glasses and a cesspit for the toilet. Again, the defendant said the costs were to be met by me. I incurred the costs and I was ultimately given a bar licence.

It seems quite obvious, that between the appellant the landlord and Kamau PW.2 the tenant, was no contractual obligation relating to the payment of costs incurred in installing, the above improvements. I am therefore unprepared to accept, that this was to be taken care of by the monthly rentals. It also appears categorically unquestionable that, the above improvements were not effected by the cross-appellant, but by PW.2 Paul Kamau, before their partnership came into existence.

I would have nonsuited the cross-appellant at this stage, if I were not minded to consider his pleadings broadly. Supposing, the improvements were effected by him, would the landlord be liable to pay for their value. It is here, that, I must seek to know what these claimed improvements mean in law. As the list stands, almost all the items are either built in, or, fixed to the land, and in my view they constitute fixtures. To constitute a fixture, I think the article questioned, should be let into, or, united to the land, or, be substantially connected with the land, or, building that is built on it. I think internal wash basin, water taps thereon, ceiling boards fixed to the house, flash toilets and cesspits qualify quite easily to be termed fixtures.

From the excerpt by PW.2, the above were installed as aids of business, or trade. The question as to what happens, upon Kamau's ceasure to be a tenant of the appellant does not seem irrelevant. I contemplate, that in this business world, where tenant has used his capital in making improvements for carrying on business, he must be doing so with certainty that he will have the fruits of his expenditure, in the course of the continuation of his tenancy, or, at the end of it. That is, he must be able to take away the removable without occasioning wastes, the same should ensure to the revisioner, subject to payment of compensation, for the improver by the one who is granted the land. This means in this case, the cross-appellant would have to rent the house subject to such terms for payment for improvements he found there, where the outgoing tenant has so demanded. And where the tenant merely quits, and leaves the premises, and the landlord re-enters, the tenant's right to remove fixtures evaporates, and the fixtures belong to the landlord, as the right to remove severable fixtures continues during his tenancy, and during such further period of possession by him as a tenant, as after that, he would be a trespasser.

In this case, subject to contractual stipulation, the cross-appellant would have to compensate Kamau PW.2. I had earlier indicated, that I was taking the cross-appellant's pleadings broadly, to accommodate him, as he appears lay to a disturbing degree.

In his examination-in-chief, in fact, he had this to pay:—

> Paul Kamau gave me a receipt for all the articles, I bought from him including the disputed articles, and others not disputed.

It is here that we gather, that in fact he bought some of the above items from Kamau PW.2. And reference to Exhibit P.1 shows that he bought—ceiling boards for shs. 140/-, water pipes and taps for shs. 300/-, basins for shs. 20/-, and counter for shs. 158/-, PW. 2 Kamau does, or did admit, to have sold the same to the cross-appellant.

In principle a tenant is entitled to sell his fixtures (removable) or be compensated for his immovable fixtures, by incoming tenant, as they are his properties. The fixtures so purchased, or, the compensation agreed upon, for unremovable fixtures, may be specified in a schedule to the new lease, that is explicitly unequivocal about the incoming tenant's liberty, to remove if removable, the fixtures bought. In this case, as Kamau PW.2 sold the above mentioned fixtures, to the cross-appellant, the same were properties of the cross-appellant, at the time he was evicted. And as they appear to be improvements of a permanent nature, except the counter, which he can remove, the cross-appellant should have been compensated, to the tune of shs. 140/- ceiling boards, water pipes and taps shs. 300/-, basins shs. 200/-,, 640/-. He should have no claim for compensation, for the cesspit nor flash toilets, as he never paid for them, and were abandoned by Kamau who claimed, no compensation, or, anything for the same, nor were they part of the partnership purchase deal.

But the question is still who would compensate the cross-appellant? Is it the appellant in the nature of this case? The appellant and Kamau, seem to have agreed between them, that Kamau do the improvements for his own trade and his own costs, and Kamau did that, with no anticipation, that the appellant would be liable for such costs. It is because of this understanding, that Kamau lays no claims to the costs, for the construction of the cesspit, and the flash toilets. And because such, were the intentions of the parties before the cross-appellant came in, liability against the appellant cannot emerge just from nowhere, nor can mere take over by the cross-appellant, assign liability against the appellant.

On the other hand, if the fixtures were removable, and the landlord—appellant refused the cross-appellant to remove the same, then, the cross-appellant would have been at liberty, to bring an action in trover—refusal to allow removal of fixture, without lawful justification against the appellant. But these are unremovable fixtures, and, according to the intentions of the appellant and Kamau, the appellant was never intended to assume costs, for the improvements of the same. The cross-appellant's failure to pay rent frustrated his continued enjoyment, of the same and if anything, the cross-appellant's recourse would be to

seek remedy from Kamau, and not the appellant. It therefore behoves me to say, that the landlord has no liability to meet. I allow the appeal with costs, and dismiss the cross-appeal with costs.

Appeal allowed.
Cross-Appeal dismissed.

ANDREW SANIYA *v.* KALISTI KALEKEZI

[HIGH COURT OF TANZANIA AT MWANZA (Lugakingira, J.)]

CIVIL APPEAL 33 OF 1978

Land Law—Customary Land Law—Haya customary law—Attachment of property for sale to satisfy a judgment debt

Land Law—Customary pledges—Whether property in a pledged shamba can pass to the pledgee without a court order on the pledger's failure to repay in time.

For the settlement of a judgment debt in his favour, the respondent obtained at the Muleba Primary Court an order for the attachment and sale of the appellant's *shamba*. A third-party filed objection proceeding claiming that the appellant had pledged the shamba to him and that the property became his as the appellant had failed to redeem the *shamba*. He further claimed that the *shamba* had already been handed to him on the authority of the Ward Executive Officer. In the District Court, at Bukoba, it was held that the pledgee could not have acquired the property without first getting a Court Order to that effect, notwithstanding that the Ward Executive Officer allegedly handed over the *shamba* to the pledgee. The pledgee appealed to the High Court at Mwanza against the District Court's finding.

Held: (i) where money is loaned upon a pledge of property on condition that the property vests in the pledgee, if the loan is not repaid in time the property does not pass unless there is a court order to that effect. *(Jacob Tibikikula* v. *Daudi Justinian* [1968] HCD n. 134 followed);

(ii) Haya Customary Law does not allow self-help on the part of the pledgee;

(iii) the *shamba* still vested in the appellant and should be sold to realise the respondent's money in satisfaction of the judgment debt. The pledgee may look to the appellant for any remedy.

Appeal dismissed.

Case referred to:
Jacob Tibifikula v. *Daudi Justinian* [1968] HCD n. 134.

June 5, 1979. **LUGAKINGIRA, J.:** In an ex-parte judgment the Primary Court at Muleba found that Andrew Saniya was liable to Kalisti Kalekezi in the sum of shs. 1,200/-. There being no appeal from that judgment or settlement of the decree an order was made for the attachment and sale of Andrew's shamba. When this came to the knowledge of a person called John Kalima he objected in the same court stating that the shamba had been pledged to him by Andrew for a loan of shs. 750/- and that when payment was not forthcoming the shamba was handed to him by the Ward Secretary in accordance with the terms of the pledge. He produced in his support the original pledge agreement and a letter from the office of the Ward Secretary. The Primary Court upheld the objection. Kalisti appealed to the District Court of Bukoba which reversed the decision of the Primary Court. It held, and I quote, "The only way, John had, was supposed to do (sic) was to file his case in Court. And the Court only in the right authority to enforce the agreement. There is nobody else to enforce any agreement. For this, the Ward Executive Officer had no right to. hand the shamba to John." This decision aggrieved John Kalima who appealed here.

With respect, the District Court was correct. A pledgee cannot be permitted to take the pledgor's land in what sounds like a self-help process. That would be contrary to law and public policy. A similar situation arose in *Jacob Tibifukula* v. *Daudi Justinian* [1968] HCD n. 134 and this Court held that where money is loaned upon a pledge of property on condition that the property vests in the pledgee if the loan is not repaid in time, the property does not pass unless there is a court order to that effect. I am in complete agreement with this decision. Indeed, it does not appear that the customary law of the Haya tribe contemplates a process other than court action. In paras 1182 and 1183 of Cory& Hartnoll it is thus provided:—

> 1182. If the time limit expires and the plantation is not redeemed the amount of money due can be claimed by the mortgagee as a common debt.
>
> 1183. In this case the plantation must be auctioned, and if the price realised is less than the amount due the remainder may be claimed as a debt.

It is evident, therefore, that even customary law does not permit self-help. And the logic behind the rule is obvious. To permit such informality could occassion injustice to the pledgor, for he may well lose property for an amount less that its value. And as I have just observed self-help of this kind is contrary to public policy. It could open the gate for rapacious money-lenders to take undue advantage of their less fortunate countrymen with adverse social consequences. It could be an impediment to our goal of evolving an egalitarian society.

For these reasons I find that the District Court came to the right decision. I uphold the same and dismiss the appeal. The shamba still vests in Andrew and it should be sold to realise Kalisti's shs. 1,200/-. John Kalima may look to Andrew for any remedy. I make no order for the costs of this appeal as the parties elected to absent themselves at the hearing.

Appeal dismissed.

PANCRAS ALEXANDER *v.* REPUBLIC (MFALILA, J.)

PANCRAS ALEXANDER *v.* REPUBLIC

[HIGH COURT OF TANZANIA AT MWANZA (Mfalila, J.)]

CRIMINAL APPEAL 16 OF 1980

Criminal Law—Forcible detainer—Squatter's rights—Whether squatter has a right of first refusal on a surveyed plot.

Land Law—Forcible detainer—Squatter's rights—Right of first refusal—Whether exercisable on a surveyed plot.

Criminal Practice and Procedure—Revision—District Court's revisional powers—Whether a conviction may be substituted for an acquittal.

Criminal Practice and Procedure—Revision—Limitation period for exercising revisional powers—s. 18(2) Magistrate's Courts Act, Cap. 537.

Natural Justice—A party's right to be heard.

The appellant, a squatter, had his plot surveyed and allocated to another person. He refused to move out claiming that he had the right of first refusal on the plot as such allocation of the plot to another person was wrongful. He was prosecuted in a primary court for forceable detainer but was acquitted and allowed to continue occupying the plot.

After two years the District Magistrate called the file and revised the proceedings. On the date of hearing of the revision the appellant had not been notified. The Magistrate reversed the decision of the Primary Court and ordered the appellant to vacate the surveyed plot. The appellant appealed against the order of the revisional court. The high court considered whether a squatter on a surveyed plot had a right of first refusal. The Judge also considered other aspects of the proceedings of the revision.

Held: (i) the appellant was not entitled to continue squattering on that plot after it had been surveyed and allocated to the complainant;

(ii) although the findings of the District Court were correct they cannot be allowed to stand because the proceedings were irregular in that:—

(a) under s. 18(2) of the Magistrates' Courts Act a revisional court is not empowered to substitute a conviction for an acquittal;

(b) under s. 18(4) of the Magistrates' Courts Act the limitation period for revising the proceedings in a primary court is 12 months after termination of the proceedings; the proceedings of the District Court two years later were null and void;

(c) the District Court could not make an order against the interests of the appellant without giving him an opportunity to be heard;

(iii) if the district court thought the decision of the primary court was perverse it should have advised the complainant to approach the D.P.P. to appeal under s. 16 of the Magistrates' Courts Act.

Appeal allowed. Proceedings in district court quashed.

No case referred to.

September 8, 1980. **MFALILA, J.:** This case originated in the Primary Court at Ilemera Mwanza District. In that Court the present appellant Pancras Alexander was charged with the offence of forcible detainer contrary to s. 86 of the Penal Code. The particulars alleged that the appellant without a colour of right held possession of a plot belonging to the complainant one Abdalla Walakai.

The prosecution case in the Primary Court revealed that the plot in dispute i.e. No. 185 Block A IX at Mwaroni Kirumba area in Mwanza township was allocated to the complainant by the Land Office and the relevant documents were duly issued to him. It would appear however that at the time of this allocation the appellant was a squatter on the plot and apparently he decided to enforce his rights as a squatter on the plot and apparently i.e. to be given the right of first refusal on the plot. As this was not given to him he refused to vacate the plot to enable the complainant to develop it. He was therefore arrested and prosecuted for forcible detainer.

In his defence the appellant made wild allegations which were also irrelevant against officials of the Land Office apparently as justification for his actions. Surprisingly the Primary Court acted on these wild and irrelevant allegations, found him not guilty and acquitted him. The Primary Court did not end there, they told the appellant to remain on the plot and virtually ordered the Land Office to give an alternative plot to the complainant. This was on 30/5/78. The matter was left to lie there until 6/3/80 when the Senior Magistrate in-charge of Mwanza District Court wrote to the Primary Court at Ilemela calling for the record of this case. The record was duly sent and upon receipt of the record the same Senior Magistrate ordered the opening of revisional proceedings. This he was entitled to do under s. 18 of the Magistrates' Courts Act Cap. 537. The proceedings opened on 2/5/80 when hearing was set for 10/5/80. For some unexplained reason nothing happened on this date until 17/5/580 when the proceedings came before the Court in the presence of the appellant. The hearing date was set for 22/5/80 and the appellant was ordered to appear on that date. Again for reasons which are not stated in the file, the proceedings were brought forward for they opened on 19/5/80 apparently without notice to the appellant for he was absent in Court. On the same date the Magistrate wrote his order revising the proceedings and findings in the Primary Court. After discussing the case at length the District Magistrate held:

> According to the evidence at hand it is obvious that the rightful owner of the disputed plot is the complainant one Abdallah Walakai since so far his certificate of occupancy has not been revoked by the President as I have stated above.
>
> In the circumstances therefore I hereby order that the accused one Pancras Alexander should have to move from that plot No. 185 Block A IX forthwith.

It was against this order made by the District Court in revisional proceedings that the appellant appealed.

If the proceedings in the district had been proper I would not have had the slightest hesitation in dismissing this appeal, for quite clearly the appellant has no business to continue squattering on that plot after it had been surveyed and allocated to the complainant. The Primary Court which was wrongly influenced by his wild claims should have convicted and punished him as the first gentleman assessor had advised. But since the proceedings in the District Court were irregular, its findings though correct cannot be allowed to stand.

First, the District Court should have realised that it was dealing with a case in which the accused had been acquitted by the Primary Court thus very much restricting its revisional powers as provided under s. 18(2), i.e. it could not substitute a conviction for an acquittal. In the instant case by holding the way it did and ordering the appellant off the land, the District Court was in fact convicting him substituting a conviction for an acquittal. This the Court could not do. If the Court thought the decision of the Primary Court perverse as I think it was, they should have advised the complainant to approach the State-Attorney's Chambers for the D.P.P. to appeal as provided under s. 16 of the Magistrate's Court Act.

Secondly the District Court could not make an order against the interests of the appellant without giving him an opportunity of being heard. The hearing should have taken place on 22/5/80 in the presence of the appellant as ordered earlier.

Thirdly the District Court revised the proceedings in the Primary Court in contravention of sub-section (4) of s.18 of the Magistrate's Court Act i.e. 12 months from the termination of the proceedings in the Primary Court. They were therefore null and void.

For these reasons this appeal must be allowed and hereby quash the entire proceedings in the District Court, and I have no alternative except to let stand the unjust decision of the Primary Court. But I think it is still possible for the D.P.P. to appeal against the decision of the Primary Court by applying to the District Court for extension of time.

Appeal allowed

THE DIRECTOR OF PUBLIC PROSECUTIONS v. MARTHA EVARIST AND ANOTHER

[HIGH COURT OF TANZANIA AT MWANZA (Mfalila, J.)]

MISCELLANEOUS CRIMINAL CAUSE 3 OF 1978

INQUEST—Where evidence shows someone has to answer for a death—What coroner to do.

The D.P.P. applied for an order to quash an inquest and substitute therefore a proper verdict. The deaths occurred by use of Police Firearms. The depositions before the Coroner had revealed that the deceased who was living in adultery with another person was shot by her husband who shot himself before arrest. The Coroner held that the deaths would not have occurred by use of Police firearms without collusion or negligence on the part of the police and stayed the verdict.

Held: where there is evidence showing that there is someone alive who should answer for the death the Coroner should certify his opinion under s. 25 of the Inquests Ordinance to the Inspector General of Police and submit to him a copy of the proceedings.

Coroner's order set aside.

No case referred to.

August 6, 1980. **MFALILA, J.:** This is an application under s. 28(1)(d) of the Inquests Ordinance, and was filed by the Senior State Attorney Mwanza on the instructions of the Director of Public Prosecutions. But the prayer in the application was as confused as the application itself. The application was purportedly made under sub-section (1)(d) which provides for the quashing of the entire Inquest, but the prayer was for an order that Inquest No. 32 of 1977 by the District Court at Mwanza be quashed and a proper verdict be substituted thereof. However during the hearing of this application Mr. Ojare who appeared for the Director of Public Prosecutions prayed that the verdict entered by the learned Coroner be quashed and a proper verdict entered in its place. In the circumstances the application should have been made under s. 28(1)(c) which provides as follows:—

> quash the verdict in any Inquest substituting therefor some other verdict which appears to be lawful and in accordance with the evidence recorded or included as hereinbefore in this section provided;

The depositions revealed that on 10th May 1977 tragedy struck the house of one Lupi Sadoti (Deponent No. 1). For some time he had been living in adultery with the deceased woman Marth Evarist, who had fled from her matrimonial home to live with him. She was at the time of her death the lawful wife of the deceased man Mohamed Rajabu. Mohamed Rajabu as expected did not like the

idea of his wife and mother of his six children leaving him to go and live with another man. He made every effort to get her back including the intervention of her parents, but all to no avail. He even threatened to kill both her and her lover if she did not heed his request to return without success. Finally on 10th May 1977, he armed himself with pistols obtained from the Police and Proceeded to Sadoti's house intending to kill both his wife and Sadoti. When he arrived at the house only Martha was present, he shot her through the heart and she died instantly. When Police arrived but before they could arrest him, he shot himself through the brain and died. On the basis of this evidence the learned Coroner found and held and I quote him:

> In my view, both on principle and in accordance with the balance of the evidence the deaths would not have occurred by use of Police firearms if there was no collusion or if there was no gross criminal negligence on someone's part and someone has a case to answer.

Having so held, the Coroner proceeded to make the following startling order:—

> I hereby stay the verdict of this inquest as someone on his part has a case to answer, and until the truth has been established, the verdict may not be given.

The Coroner left his order hanging, he did not say how the truth was going to be established.

The Director of Public Prosecutions complained that this order staying the verdict was unlawful and that even if there was evidence showing that there is someone alive who should answer for these deaths, all that the Coroner should have done was to certify his opinion under s. 25 of the Inquests Ordinance to the Inspector-General of Police and submit to him a copy of the proceedings. However as there was no evidence to this effect he asked this court to quash the order and enter appropriate verdicts.

I am in complete agreement with the Director of Public Prosecutions. First of all there was no evidence of a collusion between the Police and the killer Mohammed Rajabu who as the depositions showed was a trusted Police informer. There was also no evidence of criminal negligence on the part of any Police Officer relating to the way in which Mohamed Rajabu obtained the firearms. Lastly even if there was such evidence, what the learned Coroner should have done was to transmit his opinions to the Inspector-General of Police under s. 25 of the Ordinance and stay the proceedings. It is thus clear that the Coroner's order was not only ineffective and destined to achieve nothing, but unlawful.

Accordingly it is set aside and in its place substituted a verdict to the effect that the deceased Martha Evarist died following her unlawful killing by the deceased Mohamed Rajabu who died by his own hand, i.e. suicide.

The file should now be closed and the necessary action taken regarding its custody.

Coroner's order set aside.

Bi. ASTERIA GWALBERT *v.* ABDU SELEMAN AND ANOTHER (MUNYERA, J.)

Bi. ASTERIA GWALBERT *v.* ABDU SELEMAN AND ANOTHER

[HIGH COURT OF TANZANIA AT MWANZA (Munyera, J.)]

CIVIL APPEAL 10 OF 1979

Limitation—Land Law—Haya Customary Law—Redemption of clan land—Whether the period for redemption of clan land is to be guided by Haya Customary Law or the Limitation Rules of 1964, G.N. 311/64.

The dispute concerned the redemption of clan land. A member of an 11 member clan had sold clan land in Buhaya to the appellant on 11/4/68. On 16/5/77 the respondent, the elder brother of the latter, filed a suit in the Karabagaine Primary Court to redeem the *shamba* as the consent of other clan members had not been obtained prior to the sale. The Primary Court and the District Court of Bukoba found for the appellant and ordered the respondent to pay the appellant shs. 12,370/- as the redemption price. The appellant contested that according to the Haya Customary Law the period of limitation for the redemption of clan land was 3 months and the suit was well out of time, moreover she had much developed the land for the 9 years she had stayed in it. The respondents argued that the Haya Customary Law has been superceded by the Limitation Rules of 1964 which provide for a time limit of 12 years.

Held: (i) for action concerning redemption of clan land under Haya Customary Law, the applicable time is 3 months as the 12 years period under the Limitation Rules, 1964, concerns recovery of land under adverse possession and not redemption of land;

(ii) the respondents failed to prove that they brought their action within three months to redeem the land.

Appeal allowed.

Cases referred to:

(i) *Martin* v. *Tibashuwamu* [1968] HCD n. 412.
(ii) *Byabato* v. *Lwehabura* [1974] LRT n. 25.
(iii) *Bitenge* v. *Haji Abdu Selemani* [1975] HCD n. 43.

November 5, 1979. MUNYERA, J.: This is a second appeal which is against the concurrent decisions of the two courts below. The dispute is about redemption of clan land in accordance with Bahaya Customary Law. On 11/4/68 the appellant bought a piece of land from one Ahmad Selemani. On 16/5/77 the respondent Abdu Selemani, the elder brother of Ahmad Seleman (whom I will refer as

the seller) filed as suit in Karabagaine Primary Court to redeem the *shamba*. He argued that it was a clan land and could not be sold without the consent of clan members. The trial court found that the *shamba* in dispute was part of the clan land and that the respondent was allowed to redeem it by paying the purchase price plus compensation to the purchaser, the appellant, total amount being shs. 12,370/-. The appellant was dissatisfied and appealed to the District Court of Bukoba but she lost. She now appeals to this court. Her main complaint is that it is a long time since she bought the shamba and she has developed it a great deal. That the respondent did not seek to redeem the *shamba* within three months as provided for by the customary law. In reply to her memorandum of appeal the respondent argued (para 8) that his action for redemption was in time as the period allowed by the customary law rules is 12 years not 3 months. Even if the period be 3 months, he argued, the action was still in time as he lost no time after he got the news of the sale of the *shamba*.

It appears that there is no consensus of judicial opinion as to the period within which to redeem clan land. From long ago the Bahaya customary law (as restated by Corry & Hartnoll) recognised three months within which to seek redemption. But in *Martin* v. *Tibishubwamu* [1968] HCD n. 412 and in *Byabato* v. *Lwehabura* [1974] LRT n. 25 it was decided that the three month limitation has been superseded by the Customary Law Limitation of Proceedings Rules, GN 311/64, which provide (para 6) the period of 12 years within which to bring an action for recovery of possession of land. Despite those decisions, in *Bitenge* v. *Haji Abdu Selemani* [1975] HCD n. 43, it was decided that the period is three months. On my part I have some opinion to give on this controversy.

I would like to say that the 12 years rule is an import of the former Indian Limitation Act, the act itself being the creation of English Common Law. It was aimed at adverse possession. Even in the Customary Law Limitation of Proceedings Rules, this 12 years rule is there to enable the recovery of land in adverse occupation. The question is whether the appellant can be said to be in adverse possession of the respondent's land. Adverse possession is interpreted in law books as "act inconsistent with the rights of the true owner." In this particular case; who was the true owner of the land before its sale to the appellant? It belonged to the clan members. The respondent stated during the hearing of this appeal that their clan consists of eleven members including himself and the seller of the disputed land. It goes without saying that the seller also had property in the land. If he had none, he would have been jailed as a thief. So when he sold that land to the appellant he passed the property in it to her. It was therefore a lawful sale. The appellant cannot be said to be in adverse possession. It is because the Bahaya law has a rule that allows invalidation of sales such as this one, otherwise the respondent would have had no remedy against the appellant. The Bahaya law wisely recognises this position. That is why they talk of redemption not recovery. You don't have to reddem land adversely occupied by a squatter. You simply evict the squatter. For the above reasons I am of the opinion that the term "recovery of possession" in para 6 of the schedule to the Customary Law Limitation Rules is not the same as the term "redemption of clan land" used in Bahaya land law. The limitation rules do not provide the period of limitation in

cases of redemption. Under rule 5 the courts have discretion to accept or reject such action. But the Bahaya law has already settled the period of limitation as 3 months from the day the sale is known to the clan. A very fair rule of law. I find that the period allowed for redemption of clan land is 3 months.

The final point is whether the respondent's action for redemption was within the 3 months limit. It is understood that the land was sold in April 1968 and the respondent filed redemption suit in April 1977, a period of 9 years from the date of the sale. He argued that he was in the army stationed in Biharamulo. He said he did not know of the sale till 1973. Even then he did not file the suit till 1977 because the appellant was not to be seen. It must be born in mind that as soon as the appellant bought the *shamba*, she moved in and erected a permanent house and left her mother to live in there whenever she (appellant) was away. The *shamba* is in the same village in which the respondent and his clan live. It is unbelievable that the clan did not know that a stranger had moved in the land. As to respondent's argument that he was in the army in Biharamulo, I would say that soldiers go on leave at intervals. The respondent cannot say that he never visited his village from 1968 to 1973 as he alleged. He did not state the circumstances which prevented him. Even if I accept that he did not know of the sale till 1973 the reasons why he delayed the action till 1977 are not convincing. In reading the judgments of both courts below I discovered that these courts never tried to consider the period of limitation seriously. They seem to have acted mechanically because the *shamba* was a clan land and the respondent had the right to redeem it. In conclusion I find that the respondent's redemption suit was time barred. I allow the appeal. set aside the decisions of the two courts below and substitute thereof the order dismissing the respondent's suit. The appellant to have her costs of this appeal and at the two lower courts.

Appeal allowed.

FESTO MUGANDA v. KABOBO OLYEBA

[HIGH COURT OF TANZANIA AT BUKOBA (Katiti, J.:)]

(PC) CIVIL APPEAL 82 OF 1978

Haya customary law—Inheritance—Land orally willed to niece—Half-brother challenges the will—Whether niece can inherit.

Haya customary law—oral wills—Prerequisites for validity.

Appellant, cousin of one Asha who owned a piece of land claimed that the piece of land had been orally willed to him. The will was witnessed by three persons. Respondent, a half-brother of Asha challenged the will arguing that his

mother for whom Asha bought the shamba had willed it to him and that he had been in occupation for 30 years. The Primary Court decided for the appellant. The District Court reversed the lower court's decision. On appeal to the High Court.

Held: (i) Respondent's mother was not the owner of the *shamba* and therefore could not bequeath it by will;

(ii) an oral will must be witnessed by at least four persons, at least two to be kinsmen and at least two to be unrelated to the testator;

(iii) although the above rule demands at least four witnesses to prove an oral will, in this case three persons testified; ignoring the numerical technicality the oral will was proved;

(iv) according to Bahaya customary law the appellant had the right to inherit his paternal aunt's property.

Appeal allowed.

Cases referred to:

(i) *Mbarwohi* v. *Mbarwohi* [1970] HCD n. 183.

(ii) *Deusdedid Kashanga* v. *Bi paite Rwabigene* [1968] HCD n. 165.

November 30, 1979. **KATITI, J.:** In a family tree, in which the parties are separated by family branches, with a common root, the said parties found themselves at logger-heads with one another, on the question of inheritance of a *shamba*. Before coming to the necessary issues, a narration of the case's history is perhaps necessary. The ancestor Balemile had two issues—that is Olyeba Balemile, and Iluganyuma Balemile.

Iluganyuma Balemile married Nahangizi, with whom he had five children—(1) Mganda, (2) Asha, (3) Kigemba, (4) Chahomiki, (5) Kwamwebaba. Relevant hereafter, are Asha, Olyeba, Mganda and Festo Mganda; Kigomba and Nshangizi. It is not clear whether, it was by wife inheritance, or, divorce, but it is certain, or that Nshangizi found herself married by Olyeba Balemile, a brother of Iluganyuma, with whom she had a son Kabobo Olyebaba the respondent herein. So that vis-a-vis Mganda, Asha, Kigamba, Chahomiki and Kamwebaba, Kabobo Olyeba was in respect of their mother, their half brother, although a cousin on their father's side. So that paternally, while Asha and her brothers and sisters originated from one father Iluganyuma, the respondent Kabobo Olyeba originated from Olyeba meaning family-wise, they all no longer came from the same family tree branch. I emphasize these distinctions as subject to proof of alleged wills, they help in the application of customary laws, of inheritance in this case.

Asha had no child, and it is not known whether she ever was married. All we know is that she had some kind of employment and I shall not impute marriage on her, in the absence of evidence. Mganda had a son Festo Mganda who is the appellant in this case. It is not known as to when Olyeba, the newly acquired husband of Nshangizi, died, but it is clear he did die, and Nshangizi found her life uncomfortable where she was. Asha therefore bought a *shamba*, which is the subject of litigation, so that, her mother could live therein. It is not anywhere in evidence that *Asha* bought this *shamba*, to be the property of Asha's mother, and I

have no reason to create that evidence myself, or, anybody else. A house was built therein, through the help of Kabobo Olyeba herein the respondent, and Asha, Nshangizi, and Kigamba had opportunity to live there. This house got burnt, and again through the assistance of the respondent, another house was built. Again we don't on evidence know whether, the respondent was helping up in the building on payment or voluntary basis. It is perhaps not unreasonable to think he was being paid. Asha died in 1945, Nshangizi died in 1959 and Kigamba died in 1976. All this time, the respondent used to help in the *shamba* in which Kigamba and Nshangizi were, without demur from the appellant.

It is after 1976, that, as the respondent went into occupation, that the appellant filed an action in Bukoba Primary Urban Court, claiming that the *shamba* was his, his aunt Asha having willed it to him. The respondent on the other hand, maintained that, the *shamba* was his because it was willed to him by his mother Nshangizi.

The Primary Court unanimously held that, as per customary laws of the place, an aunt has a right to will her *shamba* to the appellant. The District Court up-set this, saying the property should remain with the respondent, because blood-wise he was nearer Asha as a brother, and that he had been in the *shamba* for over 30 years, without objection by appellant. The above raise the following issues—i.e. mainly:

(1) whose *shamba* was this? If it was the property of Asha;
(2) Whether Asha did in writing, or, orally will, the *shamba* to the appellant, and
(3) If issue (2) be positive, was Nshangizi's alleged will, if any, valid?
(4) If nobody wrote a will at all, how should the property be distributed.

The first issue is, whose *shamba* was it? There is no challenge from any quarter that it was Asha who bought the *shamba*. It is also not subject to dispute, that what motivated Asha into buying this *shamba* was, to have her mother live comfortably and indeed, Asha's mother did live therein. Asha is not recorded to have had any other immovable property, nor , is she recorded to have bought the same, as the property of her mother. In such circumstances, it must be taken that the *shamba* was her own property. I therefore answer issue No. 1 positively.

The 2nd issue pursues the appellant's contention that before her death, Asha wrote a will, bequeathing the said *shamba* to him. *Was there such a will*? We must concede, what is for generations has been accepted, that, a woman is entitled to dispose of her property by will, unless of course the said property is inherited immovable property. All we are trying to find out here is not Asha's capacity to will her property, but whether she actually did by written will. It was contended that the said will was burnt in the house. If I have to pursue the first version, that the will was burnt in the house, the question that was not minutely followed by the lower courts, I make one concession that indeed Asha's house was burnt. But she lived for quite some time after that, and built another house, and lived on for a long time before her death. If indeed she had had written a will, which is said to have been burnt in the house, meaning she had earlier considered her writing of a ' was significant, she would in my view, have written another one, after the

first destruction, if destroyed by fire, at all. Further if it is true, that she had written any, none of the appellant's witnesses saw it. In any case, if she had written it, she would not have stayed with it personally, as this would have defeated the purposes of it—who would have known its whereabouts. The witnesses of the appellant are also conflicting on whether, there ever was any written will—for instance Salum Balya aged 98, testified that he was not aware of any written will, and equally, Yohana was unaware of any such written will. It is my conclusion from above, that Asha never wrote a will at all.

Was there any oral will? It had been in *Mbwarohi* v. *Mbarwohi* [1970] HCD n. 183, and in *Deusdedit Kashaga* v. *Bi Paite Rwabigene* [1970] HCD n. 165, that as per G.N. No. 368 section 11 of Schedule of 1963, which applies in this place under G.N. No. 605 of 1963, that an oral will must be witnessed by at least four persons, at least two of whom must be kinsmen and at least two unrelated to the testator. Although this was again not minutely pursued by the lower courts, the evidence persistently shows, that Asha did tell Christina Mganda, her sister before the operation, Salum Balya a neighbour, and a man clan member, Yohana another Asha's sister, that her *shamba* would be inherited by the appellant. Although the above rule demands at least four witnesses to prove an oral will, and in this case we have three, I consider that a numerical technicality should not tie me down. I am satisfied that late Asha did tell witnesses that the said *shamba* would go to the appellant.

Once again I am at liberty to answer issue No. 2 positively.

Even if I would have on technical ground held the oral will unsustainable, having held that the *shamba* belonged to late Asha, the respondent's mother would in law not be entitled to bequeath the said *shamba,* as per paragraph 15 on heirs of women, by Corry Hartnoll, the property of an unmarried woman does on her death pass to the father, failing which to the eldest full blood brother, or eldest full blood sister, and 4th eldest brother (half brother). This should mean, in so long as, the first two classifications, plus their off-springs are alive the half brother cannot take precedent over them. This means again, the respondent, whatever he and his witnesses said, could not have inherited from his mother, as first the *shamba* did not belong to her, and secondly, in view of the above, she is taken to have been in charge of the *shamba* during her life time, which upon her death, must revert to the paternal side as above shown. This means Nshangizi did not have the capacity to bequeath, the property that did not belong to her to the respondent, and her will, if any, was invalid.

Further as the assessors in the Primary Court held, which was apparently misunderstood by the District Court according to the Bahaya customary law the appellant, had the right to inherit his paternal aunt's property. The District Court unfortunately was impressed by the relationship which it constructed to be, that the respondent was blood-relationship-wise nearer late Asha, than the appellant. I think again this was a misconstruction. For the true position, was that the appellant belonged to the same branches origin with Asha, while the respondent came from an independent branch, that is further in blood distance (Kisibu). So that it is more natural for the appellant to inherit his paternal aunt's property, than

a half brother/cousin to inherit late Asha's property. So that, even from sheer blood relationship, the customary law of the place favours the appellant.

There was a contention, that the respondent had been in occupation for 30 years. This is not supported by evidence. All we know is that, the respondent used to build houses or even help in the *shamba*. This does not mean effective occupation and in any case, it may well be he was being paid for service rendered, nand of course he did not do all this with an eye to inheriting the said *shamba*. For the above reasons, I have found myself differing with the District Court, and agreeing with the Primary Court. I allow this appeal, with costs, set aside the District Court's judgment and re-instate, that of the Primary Court, which must be executed accordingly.

Appeal allowed.

BONIFACE KAGARUKI AND ANOTHER *v.* IDRISA RAMADHANI (KATITI, J.)

BONIFACE KAGARUKI AND ANOTHER *v.* IDRISA RAMADHANI

[HIGH COURT OF TANZANIA AT MWANZA (Katiti, J.)]

CIVIL APPEAL 22 OF 1972

CONTRACT—Sale of goods—Sale by description—Part of the goods not complying with the description—Rights of the buyer.

SALE OF GOODS—Sale by description—Part of the goods not complying with the description—Whether buyer has a right to reject all the goods.

SALE OF GOODS—Sale by description—Part of the goods examined—Buyer has not intimated to reject them within reasonable time—Whether he may reject.

Appellants contracted with the respondent that the latter make and burn 20,000 bricks and supply them to the appellants who agreed to pay 13 cents for each brick. Respondent supplied all the 20,000 bricks, 13,500 of which were examined by the appellants before delivery but the remaining 6,500 bricks were not examined before delivery. Appellants paid the respondent for the 13,500 but refused to pay for the 6,500 bricks contending that they did not answer the description agreed upon. When the respondent sued them for the balance of the price the appellants sought to reject all the 20,000 bricks and claimed refund of the money they had paid the respondent. The trial magistrate decided that the appellants could not reject the 13,500 bricks which they examined before accepting m. The appellants appealed to the High Court.

Held: (i) as the evidence revealed that at the time of the delivery the buyer inspected and approved the bricks, this was not a case of sale by description but of ascertained goods;

(ii) a buyer who does an act amounting to an acceptance within the meaning of ss. 36(1) and/or 37, Sale of Goods Ordinance, cannot reject the goods even if he had had no reasonable opportunity of examining them;

(iii) the appellants by failing to intimate to the respondent within reasonable time that they rejected the 13,500 bricks, did accept them within the meaning of ss. 36(1) and/or 37, Sale of Goods Ordinance, Cap. 214, and therefore could not reject them;

(iv) since the appellant had no opportunity of examining the 6,500 bricks, and since no subsequent conduct signifying acceptance was exhibited, no acceptance can be deemed and therefore the appellants were entitled to reject them.

Appeal dismissed.

Cases referred to:

(1) *Spencer Trading Co. Ltd.* v. *Devon*, [1947] 1 All E.R. 284.

(2) *Re an Arbitration between Moore and Co. Ltd. and Landauer and Co.* [1921] 2 K.B. 519.

(3) *Parley* v. *Whipp* [1903] 1 Q.B. 513.

(4) *Arcos Ltd.* v. *E.A. Ronaansen & Co.* [1933] All E.R. 646.

(5) *Saunt* v. *Belcher & Gibbons, Ltd.*, [1920] All E.R. 142.

E. Matemba for the appellants.

January 19, 1979. **KATITI, J.:** In Bukoba District Court, the respondent Idrisa Ramadhani filed a Civil action, seeking payment of shs, 1,270/-, from the appellants Boniface Kagaruki and Aloys Kagaruki, as an unpaid balance, on the contractual sum of shs. 2,600/-, for 20,000, burnt bricks he had manufactured for, to the premises of the second appellant, at the latter's initiative and instance. The claim was partly successful—in that, the District Court found, that the respondent had only delivered 13,500 bricks of the right description, for which he was entitled shs. 395/- more, but rejected his claim on 6,500 bricks, the second appellant was entitled to reject, because they did not answer the agreed upon description.

The appellants dissatisfied, have appealed against that decision. Mr. Matemba, learned Counsel for the appellants, did before me, pour a lot of eloquency, contending that, as the bricks did not answer the description given by the appellants, and contractually accepted by the respondent, the appellants were entitled to reject all the bricks, and seek a refund of the money, they had paid to the respondent. Mr. Matemba, had no shortage of authorities—like *Spencer Trading Co. Ltd.* v. *Devon* (1947) 1 All E.R. 284, and *Re an Arbitration between Moore and Co. Ltd. and Landauer and Co.* (1921) 2 K.B. 519, for the rejection proposition. I shall later relate the above authorities, to the case in point.

Let us first be clear about the facts. It was on 10th of September, 1967, when, with express authority from the second appellant, his brother, the first appellant

and the respondent, in writing Exhibit 'A' contractually came to terms, that the respondent manufacture and well burn, 20,000 bricks, measuring 10". 5". 3 1/2" each, at thirteen cents each, and deliver the same, at the premises of second appellant, transport costs included. The respondent would be paid a total of shs. 2,600/- for work done. After the respondent had done, what he considered his part of the contract, differences emerged between them, and hence the respondent filing a suit, seeking to be paid the balance of shs. 1,270/-; claimed he had only been paid shs. 1,330/-, out of the total sum.

While the appellants admitted, the terms of the contract were as testified by the respondent, they traversed and denied, that the bricks were delivered as contractually agreed upon, or, alternatively, that the said bricks, did not answer the description agreed upon, and that therefore they were entitled to reject the whole supply, and that the amount, which they had paid the respondent shs. 1,360/-, and not shs. 1,330/- as claimed by the respondent, be refunded by the respondent. From the above, the trial Court, framed issues rightly in my view, and hereunder, are the issues I shall go by.

(1) Did the respondent deliver any bricks, and if so how many?
(2) Did all the bricks, or part thereof, answer the description agreed upon?
(3) If only part thereof corresponded with the description is the appellant, entitled to reject them all?
(4) If only part thereof corresponded with the description is the appellant, entitled to reject them all?
(5) What reliefs, if any, are the parties, otherwise, entitled to?

As did the District Court, I am bound to answer the first part of the first issue positively, and I shall show why. In the nature of things, facts and figures do not respond to whims, and change accordingly. The respondent's testimony supported by Fredrick Ferdinand, PW. 1, Vedasto Simeo PW.3, Fulgence Ikwabi PW.4, and Hatib Doka PW.2, show that the respondent did deliver 3,000 bricks in 1967, 4,500 bricks in June, 1968, 6,000 bricks in September, 1968, and 6,500 subsequently. It was also the respondent's reliable evidence, that the 13,500 bricks were first inspected by the first appellant, before they were delivered, at the second appellant's premises. There is evidence that the 6,500 were not inspected by the appellant at all. It is therefore, a finding that is beyond impeachment that the total of bricks delivered, was 20,000, 13,500 of which were inspected and approved, by the first appellant, before actual delivery at the second appellant's premises. It is therefore a finding of fact that, a total of 20,000 bricks were delivered.

Sequently touching the issues, Mr. Matemba, did point out relevantly, that this was a situation of sale by description. Was it? It is the law, I think, that where goods are described by the contract, and the buyer contracts in reliance on that description, there is a sale by description. It was with the above in mind, that CHANNEL, J. in *Varley* v. *Whipp* [1900] 1 Q.B. 513 at 516, said that the term "...le of goods by description" must apply to all cases, where the purchaser has not seen the goods, but is relying on the description alone. In the instant case, the ap-, ...nts, were obviously relying on description, and the situation, was therefore a

sale by description. It follows therefore, that as dictated by the provisions of s. 15 of the Sale of Goods Ordinance, Cap. 214, there was an implied condition in the contract, that the bricks correspond with the agreed upon description, failing which, the buyer would be entitled to reject the same. Emphasizing, the importance of compliance with description, LORD ATKIN relevantly observed, in *Arcos Ltd.* v. *E.A. Ronaasen & Co.* [1933] All E.R. Rep. 646 at page 650.

> If the written contract, specifies conditions of weight, measurements and the like, those conditions must be complied with. A ton does not mean about a ton, or, a yard about a yard. Still less when you descend to minute measurements, does half an inch, mean about half an inch. If the seller wants a margin he must, and in my experience, stipulate for it . . . But apart from this consideration, the right view is that conditions of the contract, must be strictly performed. If a condition is not performed, the buyer has a right to reject.

The above excerpt, augurs well with Mr. Metemba's submissions, urging rejection of bricks. But I hink, self-congratulation is perhaps premature, at this stage, for the bricks ordered were still unascertained goods at the time of the contract, and rejection would depend on whether the goods have been delivered or not. Unascertained goods, should in my view be goods defined by description only, as distinct, from specific goods identified, and agreed upon, at the time the contract is made. In the executory contracts, where the goods are not ascertained, or, may not exist at the time of the contract, no property in the goods, can pass to the purchaser by virtue of mere contract. But where the goods have been selected, and appropriated by the seller, and have been approved, and assented to by the buyers, then the case stands to the vesting of property, into the buyer, very much in the same position as upon a contract for the sale of goods, which are ascertained, at the time of the contract. And once the goods have been assented to them, there is no implied condition as regard defects, which examination would have revealed—see s. 16(b) of the Sale of Goods Ordinance Cap. 214.

In this case, the trial court accepted rightly in my view, that whenever, each instalment of the 13,500 bricks were brought, the first appellant, would climb into the lorry, count and examine the same, before allowing the respondent, to deliver the same bricks, at the second appellant's premises. Thus if the said 13,500 bricks, were half burnt, and of the size that violated the agreed upon description, the first appellant, could not have allowed delivery of the same. While we are at this point, it is useful to note, that, the first appellant, was with authority, acting on behalf of the second appellant, and we cannot allow the second appellant, to challenge the first appellant's authority in doing the same. For the *maxim qui facit per alium, facit per se* rules that when a principal, which the second appellant was, given an agent express authority, to contract on his behalf, and do everything relating to the same, he is bound as regards third parties, by all the acts of the agent, which the first appellant was, which are done within the limits of that authority. In this case therefore, the first appellant, having inspected examined and counted, and finally allowed delivery of 13,500, the second appellant is bound by the acts, and he is

convictions, but with the fairness demanded of the profession, came down with a concession, that the sentence were generally on the high side.
cession, that the sentence were generally on the high side.

The evidence accepted by the trial court was that, as information came upon PC Shillangila of Geita Police Station, that the appellant was selling batteries above the controlled price, PW. 2 Jackson Subuga was given shs. 20/- to go to the same shop to buy batteries, Expel and cooking oil. Back came PW.2, with only four batteries and a change of shs. 10/- after being told by the appellant that, there was no Expel nor cooking oil. This meant that each battery was being sold at shs. 2/50 instead of shs. 1/75 that both the prosecution and the defence claim is the controlled price for each battery. The story goes, that the search conducted in the appellant's shop subsequently, on the authority of the search warrant, revealed 94 National batteries, and unearthed from some hiding place were, expel, snow firetubes, maxam tooth paste, superghee. It is after this that upon the appellant being told to take the said goods out of the shop, that he assaulted PW.1 by punching him twice. The above is supported by PW.2 and hence the appellant's conviction, upon the court's satisfaction that the prosecution witnesses were credible.

The trial magistrate found the offences proved beyond reasonable doubt and hence his unflinching conclusion to convict. It is while I am here, that Mr. Rugarabamu's submissions that PW.2 never bought anything from the appellant's shop, becomes relevant. While I am not declining to give due respect to the submission, I am on the evidence unable to find merits in the same, for as was the District Court, I am satisfied that the credible evidence of PW. 1 and PW.2, does unflinchingly establish that, PW.1 bought batteries at 2/50 each, from the appellant's shop. Equally my God fearing and justice intoxicated conscience, cannot lead me to the point disturbing the trial court's findings, that PW.1 was while on this job assaulted by the appellant. It naturally follows hence, that submissions that the case was concocted against the appellant cannot, sieve like, hold any waters. I cannot see, nor does the appellant see how and why, PW.1 and PW.2 should for sheer enjoyment of it, begin concocting a story of such a dimension. I don't therefore believe there was any concoction. I believe as did the District Court that goods enumerated in the charge had been hidden and that the appellant refused to sell some of them to PW.1.

Mr. Rugarabamu did untiringly submit to this court, that the appellant's shop was searched in the presence of a civilian—called Martin. He urged this court to hold that, since this person was not called as a prosecution witness, the appellant was prejudiced thereby. I had thought, Mr. Rugarabamu probably had an authority for such a bold proposition. In fact he had none. In any case it is no where the law in this country, that failure to call as a prosecution witness, a person who had witnessed the search, does prejudice the accused, nor is it the law—through case law or statute, that such a person should always be called as a prosecution witness. It is therefore my view the appellant was not prejudiced thereby. I hinge on the feeling, without in any way imposing any burden on the defence, that if such person was thought significant for the defence then good counsel seems to suggest, that the said defence ought to have called him.

However having come this far, I also feel a gnawing temptation, in thinking that perhaps Mr. Rugarabamu, had in mind the provisions of s. 122 of the Evidence Act, that permits an inference, that the evidence which could be and is not produced, would if produced, be unfavourable to the person who withholds it. He wants me thereby I conjecture to infer that a Mr. Martin who did not testify, would if he had done so, been unfavourable to the prosecution in his testimony, and lead to acquittal. If this was in the mind of the learned counsel, all I have to point out is that, although the prosecution must call witnesses essential to the unfolding of the narrative, on which the prosecution is based, it is not bound to call witnesses, irrespective of considerations of number and reliability. Further, it is not the law of this country that the prosecution discharge the functions of both the prosecution and defence in the pursuit of calling witnesses. Nor would it make sense for the prosecution to call witnesses of doubtful reliability, nor is it sensible to call every one of the witnesses who could testify to the same or repeating facts which the prosecution desires to prove. From them the prosecution may choose some witnesses at its discretion. In this case, the Mr. Martin would only repeat what PW.1 and PW.2 said, and since whether or not a case to be proved beyond reasonable doubt, does not necessarily depend on the number of witnesses, I cannot see where the prosecutor went wrong in exercising discretion not to call a Mr. Martin. I cannot therefore see how the appellant could have been prejudiced, and he was in fact, not prejudiced.

The trial magistrate's findings of fact, that the appellant sold a battery at shs. 2/50 each, that the articles enumerated in the relevant charge, and that PW.1 was assaulted by the appellant standing obviosuly on good foundation have suffered attacks by the learned advocate. I consider it meet to put to the test the conviction on each count. The offence under the first count falls under the provisions of s. 194A(1) of the Penal Code, which demands the following elements to be proved, before conviction—

(a) The accused must be a person who carries on business of selling goods of any description either by wholesale, or, retail, and
(b) has the goods in stock and
(c) refused to sell the whole, or , any quantity thereof, to any person offering to purchase the same.

In this case, we have it credibly established that the appellant had among other merchandise, (cooking oil) superghee, and expel, and yet the appellant told PW.2 that he did not have such items, when he in fact had the same in stock. It is in my view very reasonable to construe in appellant's conduct a refusal to sell to PW.2. The conviction was therefore a deserved reward, and as the sentence was a fine of shs. 1,000/- or six months imprisonment, hardly excessive considering that the maximum is shs. 100,000/-, I shall not interfere with the same. The appeal on the same is disallowed.

On the 2nd count, the appellant was convicted for selling batteries above the maximum price—i.e. he sold each at shs. 2/50 instead of 1/75 the claimed fixed price. He was fined shs. 40,000/- or five years imprisonment. I understand and in fact take serious consideration of the fact that hoarding and unilateral price-hiking

therefore deemed to have examined, counted and accepted delivery himself, of the same.

The above related to the law, it appears it is the effect of the provisions of s. 36(1) of the Sale of Goods Ordinance, Cap. 214, that once the buyer of the goods had had opportunity to, and, or, has actually examined the same, he is, unless he rejects the same, within reasonable time, deemed to have accepted the same, and he cannot be allowed to reject the same.

In other words, when a party to a contract, becomes aware of a breach of a condition precedent, by the other, he is entitled within a reasonable time to consider, what he will do, and failure to reject out right, does not prejudice his right to reject, if he exercises it, within reasonable time. He may during that reasonable time, make inquiries as to the commercial possibilities, in order to decide, what to do, on first learning for the first time of the breach of condition, which would entitle him to reject. Thus s. 36(1) of the Sales of Goods Ordinance, gives a buyer to whom the goods have been delivered, goods which he had not previously examined, a reasonable opportunity of examining them, before he is deemed to have accepted the same. Once he has examined the same, without intimation he is rejecting the same, he is deemed to have accepted the same, and rejection, would not be entertained. As I pointed out herein above, the first appellant examined 13,500 bricks, and allowed deliveries in 1967 and 1968, and not until 1972, in his defence did he claim, he was entitled to reject them, on the ground that they did not answer the description. This we cannot allow as he had had the bricks for over four years at his house, and had thereby led the respondent into the thinking, that the same had been accepted. It is therefore my view, that at least 13,500 bricks corresponded with the description agreed upon and the buyers had accepted them.

Alternatively, the appellants are also deemed to have accepted the 13,500 bricks, under the provisions of s. 37, of the Sale of Goods Ordinance, Cap. 214. For while under s. 36 of the Sale of Goods Ordinance, acceptance is deemed whereby, the buyers examination is not accompanied by rejection, within a reasonable time, in fact the evidence does also show actual and active acceptance, after examination by the first appellant, under the provisions of s. 37 of the Sale of Goods Ordinance Cap. 214. That is, independently of s. 36, the appellants would still, be taken to have unequivocally accepted the same 13,500 bricks, under the provisions of s. 37 of the Sale of Goods Ordinance Cap. 214, especially under two of its three arms, whereby acceptance, is deemed. Under s. 37, acceptance would be signified in three ways—

(1) by intimation by the buyer, to seller that he has accepted the goods,
(2) when the goods have been delivered, and the buyer has done an act, in relation to them, which is inconsistent with the ownership of the seller, and
(3) when after the lapse of reasonable time, he retains the goods without intimating, to the seller, that he has rejected the goods.

In this case, the evidence above, does undoubtedly support, the proposition that the first appellant, after counting, examining the bricks, did intimate his acceptance of the bricks, and hence the delivery by the respondent. Further, even if there was a

contention, that the appellants did not examine the same, in so long as we have acceptable evidence, that the appellants had reasonable time to examine them, they accepted the goods, if after such reasonable time for examination, they retained the bricks, without, telling the seller, that they had rejected them under the third arm of s. 37. In this case, not only did the appellants fail to reject the bricks within a reasonable time, but kept quiet, till in 1972—over four years after, when in their defence, woke up to the idea of rejection. Again rejection cannot be allowed at this juncture. The above significantly shows, that s. 36 is ruled by and must be read in the light of, s. 37, so that the buyer, who does an act amounting to an acceptance, within the meaning of s.37, cannot reject the goods even though, he had had no reasonable opportunity of examining them. From the above therefore, it seems Mr. Matemba, failed to persuade me to follow the view, that the appellants have a right to reject the 13,500 bricks.

It is while I am here, that I have to relate Mr. Matemba's authorities to the case. In the case of *Spencer Trading Co. Ltd.* v. *Devon Fixol and Stick Phast Ltd. Third Parties* [1941] 1 All E.R. 284 a suit for damages was successful, as the seller supplied adhesive substances that did not correspond to the description agreed upon. This case does not apply to the case in point, as there is no claim for damages, because of the breach of an implied condition, that the goods answer the description agreed upon. In *Re an Arbitration Between Moore and Co. Ltd. and Landauer and Co.* [1921] 2 K.B. 519, in a contract for Sale of Australian fruits parked "in thirty tins a case," the seller parked in twenty four tins a case, and upon a finding, that the goods tendered did not correspond to the description, the buyer was entitled to reject the goods. I think it is nobody's proposition, that the appellants, would in no circumstances be entitled to reject the bricks. Such a holding would be bruising the law. The issue is when? The buyer would be entitled to reject the goods within a reasonable time, after delivery, if the goods do not correspond with the description, as was the case in the latter case above. But in the present case, not only did the appellants inspect, count and accept delivery of the 13,500 bricks, meaning to them, nothing was wrong, but also, even if they did not correspond with the description, they never intimated to the seller, that they were rejecting them, because they did not correspond with the description, till after the seller had instituted proceedings to seek payment. As I have already said above, a case for rejection has not been made out.

Now I come to the 6,500 bricks. The evidence obviously shows, the same to have been delivered at the premises of the second appellant, without, the first appellant seeing and examining them. The same were on the evidence of Yakobo Gerald, and Vedasto, found not properly baked or burnt, and not of the size and description agreed upon. Mr. Matemba's contention was that, these were not examined, nor, delivery allowed and that acceptance cannot be imputed. This argument, seems to be pregnant with merits, in my view. Although as a general rule, the place of delivery is prima facie, the place of examination, but the general rule, is always liable to be displaced, by circumstances of a particular case, depending on the wishes of the parties—See *Saunt* v. *Gibbons, Ltd.* [1920] All E.R. Rep. 142. In this case, the respondent and the first appellant, had established an understanding whereby, the respondent, would go through the first appellant,

who would examine, and count the bricks, and then allow delivery. But in respect of the 6,500, the first defendant had no such occasion of examining the same—the bricks were just delivered, and as no subsequent conduct signifying acceptance, was ever exhibited, no acceptance can be deemed, and as obviously, the said bricks did not answer the description, the appellants were entitled to reject the same, and he is allowed to do so.

We finally come to the issue of as to how much the respondent had been paid. This issue was well answered—that the appellant had been paid a total of shs. 1,310/- — 280 + 150 + 230 + 100 + 50 + 500. Since the respondent did supply 13,500 bricks worth shs. 1,755/- (13,500 × 13 cents), then obviously the respondent should be paid his balance of shs. 445/-. On the whole, the case was well dealt with by the trial court.

Appeal dismissed.

MASHAURI NDOSHI *v.* REPUBLIC (KATITI, J.)

MASHAURI NDOSHI *v.* REPUBLIC

[HIGH COURT OF TANZANIA AT MWANZA (Katiti, J.)

CRIMINAL APPEAL 102 OF 1979

Criminal Law—Hoarding—Essentials of —Penal Code, ss. 194A (1) (2)(b) and 4.

Criminal Law—Selling goods above the maximum price—Regulation of Prices Act, 1973, ss. 20 and 26.

Criminal Practice and Procedure—Charge—Failure to cite an order fixing the maximum price—Whether defect fatal to the charge.—Regulations of Prices Act 1973 s. 20.

Criminal Practice and Procedure—Alternative verdict—Circumstances under which it is permitted—Whether a person accused of assaulting a Police Officer in the due execution of duty can be convicted of assault.

The appellant was charged with and convicted of three offences, namely: Hoarding c/s 194A of the Penal Code; selling above the maximum price c/s 20 and 26 of the Regulation of Prices Act 1973 and assaulting a Police Officer in the due execution of his duty c/s 243(b) of the Penal Code. The appellant appealed against the convictions and sentences.

Held: (i) failure to call the civilian who witnessed the search did not prejudice the appellant and the prosecution had no duty to call him;

(ii) hoarding is committed where any person, who carries on business of selling goods of any description either by wholesale, or retail having the goods in stock refuses to sell the whole or any quantity thereof to any person offering to purchase the same;

(iii) on a charge of selling above the maximum price the charge must contain the order or government notice which fixes the maximum price; failure to disclose the relevant order renders the charge defective, and in the absence of such evidence, the charge was not proved;

(iv) as the officer enforcing provisions of Regulation of Prices Act was below the rank of Assistant Inspector and was not authorised in writing to act under the Act, he was not in due execution of duty and the appellant cannot be convicted of assaulting a Police Officer in execution of duty;

(v) a person charged of a major offence can be convicted of a minor offence if the circumstances embodied in the major offence necessarily and according to the definition of that offence constitute the elements of the minor offence and that the accused is given notice of all the circumstances constituting the minor offence;

(vi) a person charged of assaulting a Police Officer in due execution of duty can be convicted of assault causing bodily harm.

Appeal allowed in part.

Cases referred to:

(1) *Republic* v. *Maxwell and Glancy*, 2 Cr. App. r. 26.

(2) *Ali Mohamed Hassan Mpanda* v. *Republic* [1963] E.A. 294.

(3) *Wachira s/o Njenga alias Kiberege s/o Njenga* v. *Republic* (1954) 21 E.A.C.A. 394.

Rugarabamu for appellant.

L. Ojare for Republic.

September 24, 1979. **KATITI, J.:** For the offences of (1) hoarding, (2) selling above the maximum prices, and (3) assaulting a Police Officer in the due execution of duty, Mashauri Ndoshi, the appellant in this appeal, was sentenced to a fine of shs. 1,000/- or 6 months imprisonment on first count, shs. 40,000/- or 5 years imprisonment on 2nd count, and shs. 30,000/- or 12 months imprison on third count. Thoroughly shaken, and aggrieved, the appellant is appealing against both convictions and sentences. His learned advocate Mr. Rugarabamu, had several fronts to harp on. Mr. Rugarabamu's first complaint, was that there was no evidence that PW.2 ever bought anything from the appellant's shop. He contended in support of his client, that the case was a fabricated and concocted one because there was no love lost between the appellant and the prosecution witnesses, and that the failure by the prosecution to call one Martin to give evidence prejudiced the appellant. On the third count, Mr. Rugarabamu's submission was loudly that, there was no evidence showing or even tending to show, a police officer was assaulted. And finally, the sentences, were an obvious front for concentrated attack—that the sentences were manifestly excessive. Mr. Ojare, the Counsel appearing for the Republic, on the other hand, persuasively supported the

are now, some of the wars this country is fighting. But, whatever our sentiments are, or may be, the law demands that punishment should only follow where crime has been proved to have been committed, if we want to avoid sacrificing individual freedoms, at the alter sentiments and mob-mournings. Relevantly talking about the 2nd count, we have the form of the charge to consider. We have the charge citing only two sections. We have s. 20, an offence creating section. We also have in the charge,—s. 26 a penalty section. The combination of the two sections in effect mean, that anybody who sells or hires any price controlled goods or services, above the maximum price, or, maximum hire charge, shall be guilty of an offence, and be liable to a fine not exceeding fifty thousand shillings, or, to imprisonment for a term not exceeding five years or to both such fine and imprisonment. It follows in my view, that for conviction purposes (a) the goods or services (price controlled) must have had their maximum prices fixed by the Commissioner, and (b) the accused must have sold goods, or, let on hire the service, at a price exceeding the price fixed for it. Reading Section (2) that defines "price controlled goods, and price controlled service", together with Section 16, price controlled goods or price controlled services, are such goods, or, services, whose maximum prices, have been fixed and published by notice in the Gazette, or whose prices are deemed to have been issued under Regulation of Prices Act 1973. It follows in my further view, that such notice must accompany ss. 20 and 26 of the Act, in the charge showing the maximum price fixed, and the number of the notice, for reference. In this case, we only have the offence creating section and the penalty section. We do not have the maximum price fixing notice, and speculation as to the maximum price allowed becomes a pond for us to gropingly wade through. Although in this case both the appellant and PW.1 said shs. 1/75 was the maximum price for a battery, it is my view, that neither the appellant's nor PW.1's nor the combination of the two constitute the law, an assistance on which would have been given by the notice easily referred to. The chance of the appellant admitting shs. 1/75 as the price because the police say so, though wrong, are not easily ruled out. I unfortunately find that, it was not proved that first the battery is price controlled, and secondly, that said price has been violated. I therefore quash the conviction, and set aside the sentence thereon. The appeal is allowed on the same.

The last count—assaulting a Police Officer in the execution of duty. That is, that while PW.1 on hoarding and price inspection, the appellant assaulted him by punching him. Mr. Rugarabamu, while intently challenging the conviction, no meaningful efforts were made by him, to show how the conviction was wrong. Mr. Ojare on the other hand, was for wholesale support for the conviction. While we must concede that a fracas took place, and PW.1 suffered what PF.3 describes as harm, the question whether PW.1 a Police Officer was in the execution of his duty, when he was assaulted is still crucial. In the pursuit of this question, I make my confession, that the question of whether or not a Police Officer, is acting in the execution of his duties had always been a vexed one, and has exercised the minds of many. While it is the law that, it is not necessary to prove that the accused knew that the person assaulted is a Police Officer, and whereas it is not also necessary that the accused should know that such officer was in the execution of

his duty—see *Republic* v. *Maxwell and Clancy* 2 Cr. App. r. 26, it is equally the law that a Police Officer is not acting in the execution of his duty, if he is in fact committing an illegal act regardless of his motive.

Further, the police powers are not all embracing—covering every field of national life, regardless of demanded specialisations, or, technicalities. The legislature may, for one reason or another, legislate on a particular aspect, but place the enforcement thereof, in the hands of institutions other than the Police Force, the customary law enforcement institution,—or, place such enforcement powers in the hands of a Police Officer of a described rank. Where the legislature so decides, any purported enforcement of the statute involved, by persons or person, or, institutions deliberately avoided by the legislature, expressly or by implication, cannot be said to have been in the execution duty. This brings me to the Regulation of Prices Act No. 19 of 1973. Part V of the Act, contains the enforcement provisions, and particularly relevant is Section 27 of the said Act. The section inter alia provides:—

> Section 27(1)
>
> The Price Commissioner, any Assistant Price Commissioner, any price Inspector, any Police Officer of or above the rank of Assistant Inspector, or, any person authorised in writing by any of the foregoing in that behalf shall have the power—
>
> (a) to enter and inspect any premises in the occupation, or under the control of any trader, manufacturer, produces commission agent, clearing and forwarding agent, or other person supplying price controlled goods or rendering price controlled service;
>
> (b)
>
> 27(2)
>
> Upon entering any premises in pursuance of the powers conferred by the Section, the person authorised to enter the said premises shall, before proceeding to exercise any of the other powers conferred by subsection (1) of this Section, inform the person present on such premises who is, or, who reasonably appears to be for the time being in charge of such premises of his intention to exercise his powers under this section.

A studied construction of the above provisions, shows that it is the Price Commissioner, the Assistant Price Commissioner, Price Inspector, a Police Officer of or above the rank of Assistant Inspector, and any other person authorised in writing by any of the foregoing, that have the powers for the enforcement of provisions, inter alia, regarding the compliance with controlled prices. It follows that a Police Officer below the rank of Assistant Inspector, is excluded in the enforcement of the Act's provisions unless he is by writing so authorised by officials above mentioned. It further logically follows that PW. 1 had without such written authority, no powers to enforce the Act and did what he did in PW.1's shop, not in the due execution of duty. I hasten to add, that when he was assaulted he was not in the due execution of duty.

But PW.1 suffered bodily harm as the PF.3 ably shows. Should the appellant go scot free on this count? The question is whether s. 241 of the Penal Code, is available for alternative application, under the authority of s. 181(1) of the Criminal Procedure Code Cap. 20. The careful reading of this subsection, shows that the governing phrases are—*"a combination of some only of which constitute a complete minor offence, and such combination is proved, and the remaining particulars are not proved. . ."* Could we from the above provisions say, that, an offence of assault causing actual bodily harm c/s 241 would be a minor offence where the major offence is assaulting a Police Officer in the due execution of duty? A situation almost similar to this was considered in the case of *Ali Mohamed Hassani Mpanda* v. *Republic* [1963] E.A. 294. In that case, on major charge of obstructing a Police Officer in due execution of duty c/s 243 (b) of the Penal Code Cap. 16, the question was, whether or not, the accused could be convicted of the offence of assault occasioning bodily harm c/s 241 of the Penal Code Cap. 16 under the authority of s. 181(1) of the Criminal Procedure Code Cap. 20. The answer came in the negative, that an essential constituent of the minor offence of assault occasioning bodily harm is not an essential constituent of the major offence of obstructing a Police Officer in the due execution of duty, and that the charge as drawn did not give the appellant notice of all that constituted the offence, of which he was convicted, since it contained no allegation of assault.

In coming to this, the court applied principles applied in the case of *Wachira s/o Njenga alias Kiberege s/o Njenga* v. *Republic* (1954) 21 E.A.C.A. 398. That is, in determining whether an offence is minor, first the circumstances embodied in the major charge must necessarily and according to the definition of the offence imputed by that charge constitute the minor offence, of which the accused is to be convicted. It follows from the above two principles, that a minor offence is arrived at by method of substraction—i.e. from a mass of particulars, only some providing a minor offence, although the totality of all the particulars do not prove the major or charged offence. Applying the above to the present case, we have the major charge—being, assaulting a Police Officer in the due execution of duty c/s 243(b) of the Penal Code Cap. 16. The evidence adduced, has failed to show, that the said Police Officer, was in the due execution of duty. But he was assaulted and bodily harm was the consequence. Whether it is a Policeman of a civilian, assault has the same characteristics—does not assume different dimensions because one is in uniform, or bears the label—Police Officer, and whether the offence falls under section 243(b) when applicable, or under s. 241 of the Penal Code assault is the significant and most important common element, so that even if an accused is finally convicted under s. 241 of the Penal Code, although he was not charged with it, he cannot successfully argue that, he had no notice of the same I would therefore conclude, that although the offence under s. 241 of the Penal Code is not minor, where the charge is obstruction a Police Officer in the due execution of duty, and therefore s. 181(1) of the Criminal Procedure Code Cap. 20, is not applicable as held in *Ali Mohamed Hassani Mpanda* (Supra), it certainly is, where the major charge is assaulting a Police Officer in the due execution of duty as assault is a persistent element, and the accused has notice of facts that even constitute a minor offence. I convict the appellant therefore under s. 241 of the Penal Code

Cap. 16.

I consider sentence on the same—of shs. 30,000/- or 12 months imprisonment to be beyond the ordinary. Considering that the said Police Officer, was purporting to do, what the law has not given him mandate to do, I am disposed to set aside the sentence that was imposed, but award a sentence of just six months imprisonment. The appeal is successful to the extent above shown but otherwise dismissed.

Appeal allowed in part.

WAMBURA SIRATI *v.* HAMISI SAMBEKA
[HIGH COURT OF TANZANIA AT MWANZA (Mfalila, J.)]

CIVIL APPEAL 115 OF 1979

Family Law—Divorce—Refund of bride price—Whether a portion is refundable where there are children—Rule 52B—not absolute—Court has discretion—Rule 54.

The appellant sued the respondent for return of his bride price in the primary court as the respondent's daughter had deserted the appellant. The Primary court ordered the respondent to return a portion of the dowry. The respondent appealed to the District Court and his appeal was allowed. The appellant was dissatisfied with that decision and appealed to the High Court.

Held: (i) the rule that no portion of bride price is refundable because there are children born out of that marriage is not absolute;

(ii) the court has discretion to apportion blame for the breakup of marriage and to determine which of the parties is fully to blame in deciding issue of refunding bride price;

(iii) in the circumstances of this case the respondent's daughter was wholly and wilfully to blame for the breakup of the marriage;

(iv) the primary court properly used its discretion under Rule 54 to determine the portion of bride-price refundable.

Appeal allowed.

No case referred to.

November 11, 1980. **MFALILA, J.:** In the Primary Court at Ikizu Serengeti District the appellant sued the respondent his father-in-law for the return of his bride price amounting to 24 cows, 1 goat and shs. 291/- which he paid when he married his daughter. He told the Primary Court that the respondent's daughter had deserted him and that on this ground their marriage had been dissolved.

The respondent did not dispute the claim except he asked the Court to take into account, in setting the amount of bride price refundable, the fact that the appellant had lived with his daughter for 16 years and they had six children four of whom were alive.

The Primary Court fixed the amount refundable at 14 cows after taking into account all the factors, and ordered the respondent to refund this amount. Against this decision the respondent appealed to the District Court arguing that the amount was too much considering the time the marriage had subsisted and the number of children born of this marriage. The District Magistrate accepted this argument and held that under Rule 52(B) no portion of bride price is refundable because children had been born of this marriage. Against this decision the appellant appealed arguing with some justification that the decision of the District Magistrate was unfair for it ignored the fact that the respondent's daughter was wholly to blame for the break-up of the marriage.

I think with respect that the learned District Magistrate misread the import of Rule 52B. This rulse is not absolute. Rule 54 gives discretion to the Court to consider how much bride price should be refunded notwithstanding the provisions of Rule 52 A and B. This invariably must happen where the Court has to apportion blame for the break up of the marriage and to determine which of the parties is fully to blame under Rules 58—60. In the instant case, quite clearly it is the respondent's daughter who was wholly to blame for the break up of this marriage. She left the matrimonial home along with her small children for no reason except perhaps to go and live with another man. Indeed this must be so for the respondent readily admitted in the Primary Court his liability to refund. The only question was how much.

For these reasons the District Magistrate erred in applying absolutely Rule 52B. In the circumstances of this case, that the respondent's daughter was wholly and wilfully to blame for the break up of the marriage, the Prime Court properly used the discretion provided under Rule 54 and determined the portion of the bride price refundable. The amount they fixed is not unreasonable at least I cannot think of a better figure.

For these reasons I allow this appeal. The judgement and orders of the District Court are set aside. Those of the Primary Court ordering the refund of 14 head of cattle are restored. The appellant will have the costs of this appeal.

Appeal allowed.

AUGUSTINI KAYOZA *v.* ISSA SHABANI

[HIGH COURT OF TANZANIA AT MWANZA (Katiti, J.)]

CIVIL APPEAL 122 OF 1979

Torts—Compensation for loss of trees on land held under customary law—Land governed by statute—Whether claim maintainable.

Statute—The Villages and Ujamaa Villages (Registration, designation, and administration) Act 1975—Effect on land held under customary law.

The respondent filed an action against the village chairman and two other villagers claiming compensation in respect of trees allegedly felled by them on land of which he claimed ownership under customary law. The piece of land had come under the jurisdiction of the village by virtue of the Villages and Ujamaa Villages (Registration, designation and administration) Act 1975. The respondent claimed that the Act had not superseded his customary rights to the land.

Held: (i) the evidence did not establish any right of ownership of the respondent in the land;

(ii) where land is allocated for use of a village under the Villages and Ujamaa Villages (Registration, designation and administration) Act 1975 such land becomes the property of the village council which enjoys the mandate to determine its use.

Appeal allowed.

No cases referred to:

May 21, 1980. **KATITI, J.:** Perturbed, by the conduct of his fellow villagers, who he thought had trespassed upon his rights by felling trees in the forest that, he thought was his, the justice seeking respondent—Issa Shabani filed an action in Kamachumu Primary Court, seeking shs. 1,500/- as compensation. Augustini Kayoza, Ibrahim Mashata, Cleophace Matukuli, Kalori Mikezi all residents of Magokora village were the respondents. As deep in their hearts, the respondents believed, that the forest in question was the property of the village,—by virtue of its registration and designation as such. Augustini Kayoza the chairman of the village Council took up the leadership to argue on behalf of others, and even the village establishments that the forest was the village property, it being one of the natural resources in the village.

The respondent on the other hand contended, building his case on inheritance. It was his case that, the respondent's father was given the same forest by late chief Pwogi. The respondent added, that he later inherited the same from his father. The Primary Court having heard both parties, unanimously verdicted, that the forest in question was never the property of the respondent at all. The Court unanimously pointed out that, the then local authority, the respondent's father and later the respondents, being employees as forest over-seers. They concluded, that with the

chiefs trapping of power plucked to status below formality, then such forest became Government property. The Primary Court, therefore dismissed the suit.

The Primary Court, did not go into the effect of the Villages and Ujamaa Villages (Registration, designation, and administration) Act 1975, obviously for reason that the said Court may have only heard about it, but had never cast a reading eye on the same. The respondent appealed to the District Court, successfully. Although the reply to memo of appeal questioned the applicability, or, non applicability of the statute cited above, the District Court, either by oversight, or, neglect, never made any reference to it. The District Court concluded that, as the respondent had had undisturbed occupation of the same, for over twenty two years, he could not be unseated. The District Court allowing the appeal, ordered that the compensation sought, be paid with costs.

The appellant is now appealing from that judgment and order. Having read this long memo of appeal that knows no law of precision, I am satisfied, that the village establishment's chairman claims ownership of the contested forest—by virtue of its being a Ujamaa village, owning all the natural resources under its own jurisdiction. I think verily, that this case stands or falls depending on the following issues?

(1) Whether the respondent, or, his father, did own the said shamba?
(2) If he did not own it as such, the 2nd question is whether, upon the demise of chiefs administration, such forests, became Government property.
(3) If answer (2) is positive, what would be the position, if, the same fell within the areas of the Ujamaa village.
(4) If the answer to (1) is positive, what is the legal position, if the said piece of land falls within the Ujamaa village territory?

First come, first served is issue No. 1, whether the respondent's father, was granted the forest in question by the chief—the said shamba only to be inherited, by the respondent? The evidence pertaining to this, had apart from the testimony of the respondent, been scanty. The respondent's witnesses, did testify that the forest belonged to the respondent because the said respondent, had had occasion to allow them to cut trees therefrom. The respondent emphasizing that, his ownership of such property was derived from inheritance, tendered a "To whom it may concern", paper. When the respondent was arguing his case, he drew my attention to an exhibit that was apparently also shown to the District Court. This paper apparently signed by Omukama Pwogi III, inter alia says:— "Nimempa Mkungu Shabani Kahampa zawadi yake ya msitu kuumiliki na kuuchukua kabisa..."

It is this document that was shown to the District Court, and it wording above had a guiding influence on the Magistrate. This document however was a photostat copy. The record however shows the document tendered before the Primary Court was before the appeal returned to the respondent. Why this was done, when an appeal was obviously imminent, we may never know. But the appellant drew my attention to the different of wording in photostat copy, and the first document that was tendered in the Primary Court.

Fortunately, the Primary Court had reproduced the same in his judgment and I do reproduce same hereunder:—

Kianja chifedom
Ref. N. F.3/36, Naith Luk.
Kiamazi, Kianja
2nd March 1955
Gombolola Kamachumu.

Mintarafu ya misitu ya Mukama Mwenyere, ambayo hata na wewe unayo orodha yenyewe, sasa nakufahamisha kwamba msitu No. 16 ambayo uko katika kijiji cha Makongoro, sasa, nimempa mamlaka Mkungu Shabani Kahampa kuutunza.

Tafadhali asisumbuliwe wal[illegible] pasipo yeye huyu Shabani.

Vile vile na mlinzi wa mis[illegible] wasimsumbue Mkungu Shabani tangu leo

Shabani atautunza [illegible]

Sign. Pwogi III
MUKAMA WA KIANJA

Nakili kwa:
Bwana Bernado Mujengengoma—
Ruhanga, mlinzi wa misitu yangu.

Mkungu Shabani Kahampa
Mlinzi wa misitu No. 16.

The reading of the two, will obviously show that while the photostat copy reveals there was one absolute grant, according to the one above reproduced, the respondent's father was not more than an observer of the same. When out of curiosity, I asked the respondent about the difference in wording, the respondent charged the magistrate of having maliciously altered the same. But having read his memo of appeal, nowhere did the respondent complain about the alleged alterations at all. Having given sufficient consideration to the evidence as a whole, I am satisfied, that the document whose contents were reproduced by the trial Magistrate, were about the right and truthful transaction. I accept therefore that, the respondent's father was no more than favoured foreman or an overseer of the forest. That means, after the demise of his father Kiremas, the respondent's continuation of doing what his father had been doing did not mean he became owner of the same. It is concluded therefore that the respondent did not inherit the same. If we take it, as logically we should, that the respondent, may all along been holding duty as he did under the authority of the chief, be it Pwogi III, or, his successor, whose traditional powers and functions overwhelmed his subjects, and

who held tribal land on trust for his people, the year 1969, witnessed that end. That is the African chiefs Act 1969. Act 1969 read together with African chiefs (Repeal) Act 1963 abolished (a) traditional functions, powers and authority of chiefs, and (b) functions, power or authority conferred upon such chief by customary Law. That if, the respondent derided himself by thinking the least, that he was an overseer as was his father, under the chief's authority, then by the above statute, no more authority could still be flowing into the respondent, with the chiefs out, then the said forests could only be run under the local council, and ownership could not at all vest into the hitherto overseer.

Now having answered issues (1) and (2) that the respondent did not inherit or otherwise own this forest, and that the forest became property of local council, what legal status does the same acquire, it is fell within the territorial ambrace of the Ujamaa village?—the question persued by issue No. 3. While the answer appears obvious, my intention is to bring home, how the law would normally treat the same. Sub-paras (1), (2) and (3) of the para (5) of the Directions made by the Minister under subsection 4 of s. 23 of the Villages and Ujamaa Villages (Registration, designation and administration) Act 1975, have the following to say; -

> 5(1) The land for use of a village shall comprise such areas of land as may be reserved for the purpose and allocated to the village by the District Development Council.
>
> 5(2) Subject to availability of arable land, the village Council, shall alot a piece of farmland, to every kaya in the village according to the need and ability to develop it. The village council shall have power to determine the structural pattern of farms in the village, and the use thereof.
>
> 5(3) Subject to the availability of land, every kaya, shall be entitled to an allotment of at least one acre of land, for the purpose of building thereon dwelling houses, and for other domestic purposes.

From the above provisions, I read no more and no less meaning, than that where land had been incorporated to a village area, by the allocating authority—the District Development Council, then such land, be it forest, comes under the Jurisdiction of the village council, which is given mandate to determine its use. It follows on heels, that if the forest in question had reverted to the local council, it became property of the village in question—Makongoha, upon its allocating to this village, by the relevant District Development Council. By such allocation, the village council assumes power over it, and have the liberty to determine on how to use the same. If this was the case, and I am sure it was, then those allowed by the village establishment to use the forest, woods for the purposes approved, were at liberty, to cut down the said trees. The property or forest was not the property of the respondent at all, and that being the case, and I am sure, the same being to his knowledge, no investment was or could be put in, as to even entitle the respondent to any compensation. The above being the case issue (4) as to what would have been the position if the forest was indeed the respondent's

property, becomes unnecessary to deal with. From what the above shows, this appeal must be and is allowed with costs—the District Court's judgment set aside and reinstated is the Primary Court judgment.

Appeal allowed.

DEOCRAS LUTABANA *v.* DEUS KASHAGA (NYALALI, C.J.)

DEOCRAS LUTABANA *v.* DEUS KASHAGA

[COURT OF APPEAL OF TANZANIA AT MWANZA (Nyalali, C.J., Mwakasendo and Kisanga, JJ.A.)]

CIVIL APPEAL 5 OF 1981

Haya Customary Law—Bequest of clan land by females—Whether permitted under Haya Customary Law.

Haya Customary Law—Disposition of holdings by female heirs—The law applicable.

Basing on paras 20 and 31 of the 2nd Schedule to G.N. 436 of 1963 the High Court Judge at Mwanza decided that according to Haya Customary Law a woman can bequeath clan land provided such bequest is to a clansman. The appellant dissatisfied with the decision appealed to the Court of Appeal of Tanzania arguing that the learned high court judge overlooked certain provisions of Haya law prohibiting female testators from disposing of inherited clan land. It was contended that the judge did not consider "Rules Governing the Inheritance of Holding by Female Heirs, 1944."

Held: (i) under Haya customary law a woman can inherit her deceased father's landed property with the exception of family or clan land which she can use for her life without selling or bequeathing to any person other than members to whom the right to the land reverts on her death;

(ii) rule 13 of the "Rules Governing the Inheritance of Holdings by Female Heirs, 1944" forbids a female heir who has inherited rights in land under Rule 6 to bequeath the said land or any rights in it or its produce to any child of hers or to any other person whomsoever;

(iii) it is erroneous to regard paragraphs 31 and 32 of Cory & Hartnoll as a correct statement of the Haya Customary Law of Inheritance to clan land in view of the statutory provisions contained in the "Rules Governing the Inheritance of Holdings by Female Heirs, 1944",

Observations: (ii) "Rules Governing Inheritance of Holdings by Female Heirs, 1944" supersede similar provisions in Cory & Hartnoll: *Customary Law of the Haya Tribe.*

(ii) The Rules are to be read and applied subject to the rules contained in the Customary Law Declaration Law of Inheritance G.N. 436 of 1963.

Appeal allowed.

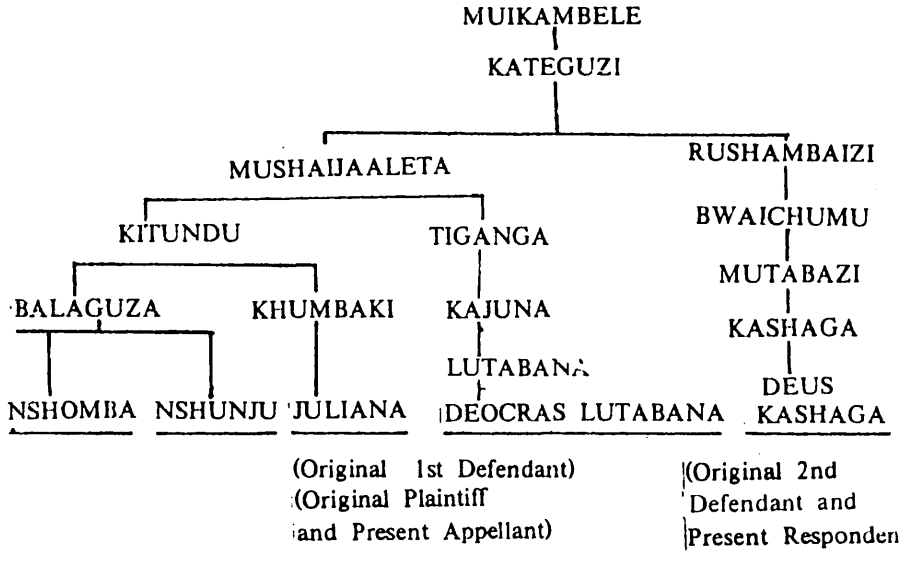
Cases referred to:

(1) *Kyakuhaile* v. *Kikanja and Others [1971]* HCD No. 185.
(2) *Bi Amina Kanyao* v. *Bi Saida Mitabuko* [1962] L.C.C.A. 39/1962.
(3) *Bi Verdiana Kyabuje* v. *Gregory Kyabuje* [1968] HCD 499.

J. S. Rweyemamu, for appellant.

September 8, 1981. MWAKASENDO, J.A. read the following considered judgment of the Court: The appellant, Deocras Lutabana, and the respondent, Deus Kashaga, are members of the Bayango clan of Kamachumu area in Muleba District. The case from which this appeal arises was filed in the Kamachumu Primary Court in 1976 by Deocras Lutabana claiming a right of inheritance to a piece of land which one Juliana Ichumbaki (the original first defendant) had bequeathed to the respondent, Deus Kashaga (original second defendant). Juliana and Deocras Lutabana were descended from the same paternal ancestor one Mushaijaaleta. Juliana and Luatabana were therefore members of the same "Ihiga" or "Shina," which is a subdivision of a clan, in this case, a subdivision of the Bayango clan. Deus Kashaga, on the other hand, though of the same Bayango clan, belongs to a different "Ihiga" being descended from one Rushambaizi. Rushambaizi and Mushaijaaleta were brothers, their father being one Kateguzi.

See their geneological chart below for ease of reference:



The Primary Court of Kamachumu found as a fact that the land in dispute was clan land which had been inherited by Juliana following the death of one Nshunju, her paternal cousin. The Primary Court also found that the respondent, Deus Kashaga, a man belonging to a different "Ihiga" from that of Juliana and the appellant Deocras Lutabana, could not inherit the land in dispute, as this was prohibited under the appropriate rule of the Bahaya Customary Law of inheritance. The Primary Court, therefore, adjudged the appellant as the rightful heir to the land in dispute. On appeal, the District Court affirmed the decision of the Primary Court. Kashaga then appealed to the High Court.

LUGAKINGIRA, J., while accepting the decision of the two lower courts as sound, was of the view that the decision of the Primary Court could not be sustained because the decision "ignored a number of undisputed background facts", which he enumerated as:—

> First of all, Juliana took and adopted the appellant since 1957. Secondly, she did so during the life time and with the concurrence of her late brother, one Costa. Thirdly, the appellant stayed with or looked after Juliana to the exclusion of all clansmen, including Costa (deceased), Shuzali Majungu (DW.3) and Petronia Karaba (DW.4). Finally, the respondent was aware of all these things and events but did not raise a finger until Juliana was on her death bed.

The learned trial Judge having considered the holding in the case of *Kyokuhaile* v. *Kikanja and Others* [1971] HCD No. 185 and referred to paragraphs 31 and 32 of Cory & Hartnoll: *Customary Law of the Haya Tribe,* concluded that Juliana Ichumbaki "did not err in what she did", presumably, because according to the learned Judge, females in the Bahaya Society "may and do bequeathed clan land so long as it is bequeathed to the right people". Consequently, the learned Judge set aside the decision and orders of the two lower courts and duly declared Deus Kashaga as the lawful heir to Juliana's property.

The case has come before us upon a certificate issued by the High Court which says: "Let the Court of Appeal decide whether, in view of paras 20 and 31 of Inheritance Rules (G.N. 436/63) the bequest of the clan land to the respondent by the woman Juliana was valid".

Although this is the question of law certified to us for determination, Mr. Rweyemamu, learned counsel for the appellant, submitted that the issue certified to the Court was too wide in scope. He said that the real issue before the Court was whether a female member of the Bahaya Society had a right to bequeath clan land to any person at all. We think there is some justification in Mr. Rweyemamu's criticism of the certifying Judge in leaving for our consideration an indeterminate question of law. We think it proper to confine our decision to the much narrower issue proposed by counsel for the appellant.

Mr. Rweyemamu, dealing with the issue before the Court, submitted that the learned High Court Judge erred in construing paragraphs 20 and 31 of the Government Notice No. 436 of 1963 as permitting Juliana to override the prohibition imposed upon female testators under Haya Customary Law which is to the effect that no female can dispose of land she has inherited by will: "A

woman is entitled to dispose of her property by will, with the exception of land she has inherited"—Vide paragraph 65, page 17 of Cory & Hartnoll: *Customary Law of the Haya Tribe*. As the land in dispute was clearly inherited clan land, we are satisfied that the only way Juliana could have dealt with the land was in accordance with the *"Rules Governing the Inheritance of Holdings by Female Heirs*, 1944", which are statutory Rules promulgated by the Chiefs of Bukoba by virtue of powers contained in s. 15(1) of the Native Authority Ordinance, Cap. 72. Thogh this enactment has been repealed, the Orders, Rules and By-laws made under Cap. 72 have been saved by subsequent legislation—See s. 167(1) of the Local Government Ordinance, Cap. 333, s. 8 of the Decentralisation of Government Administration (Interim Provisions) Act, 1972, Act No. 27 of 1972. We should perhaps observe in passing that the "Rules Governing Inheritance of Holdings by Female Heirs, 1944", supersede similar provisions in Cory & Hartnoll: *Customary Law of the Haya Tribe* and further, that these Rules are to be read and applied subject to the Rules contained in the Customary Law Declaration—Law of Inheritance, Government Notice No. 436 of 1963, with which there is, of course, great similarity. See R. W. James & G. M. Fimbo: Customary Land Law of Tanzania, pp. 194—210 and p. 216.

We may now turn to examine the "Rules Governing the Inheritance of Holdings by Female Heirs, 1944" in more detail. According to Rules 4 and 8 a female descendant of a deceased is entitled to inherit self-acquired property of the deceased if he has left no male issue. A female descendant however, is not entitled to inherit clan land. She is only entitled to the use and enjoyment of the fruits from the clan land. See Rule 6 which provides:

> The daughter or daughters of a deceased who dies without surviving male or female descendants in the direct line shall inherit the full and unqualified right of user, for the period of heir or their life subsequent to the inheritance, of any holding held by the deceased, at the time of his death, under the system of clan tenure well-known in the Bukoba District.

Rule 10 lays down the method of dealing with land acquired as above. The Rule reads:

> Any clan-holding, of which the life time user has passed under the provisions of these rules to a female heir or heirs shall revert at the death of the said heir or heirs to the possession of their father's clan and shall be apportioned by the clan-council to that male or female member of the clan, who, in the decision of the clan-council, is the nearest according to Haya customary or promulgated law.

Rules 11 and 12 deal with ownership of clan-holding by daughters when the paternal clan becomes extinct and Rule 13 prohibits the disposal or attachment of usufructuary rights of female heirs. Rule 13 reads:

> Except when the status of a clan holding has been altered in the circumstances provided for by Rule 11 above, no female heir who has inherited rights in land under Rule 6 may in any way bequeath the said land or any rights in it or in its produce to any child of hers or to any other persons

whomsoever; nor may she sell or otherwise permanently dispose of such land, or any part of it, during her possession of it; nor render the land or its produce liable to any encumbrances which shall last beyond her lifetime. Further, no rights in a clan holding, whether of purchase or of mortgage or of residence, nor any interest in or profit from a clan holding or its future produce which may be claimed by any person subsequent to the death of any female heirs to have been conveyed by her to him during her lifetime, shall be in any way binding upon the clan to which the land has reverted under Rule 10 above or shall be recognized or admitted by any Native Court.

It may be observed here that the provisions set out supra are similar in content to paragraphs 20 and 31 of the Customary Law Declaration No. 4 of 1963, Government Notice No. 436 of 1963. By these provisions it seems beyond dispute that a woman in Haya Society can inherit her deceased father's landed property with the exception of family or clan land which she can use for her life without selling or bequeathing to any person other than clan members to whom the right to the land reverts on her death in accordance with the provisions of Rule 10 of the "Rules Governing the Inheritance of Holdings by Female Heirs, 1944".

Applying the principles enunciated in the Rules discussed above to the facts of the present case, it seems quite clear to us that while Juliana was entitled to a life interest in the clan land she had inherited from her paternal cousin, she had no disposable rights in the land. Thus, in accordance with the provisions of Rule 13 supra and paragraph 20 of Government Notice No. 436 of 1963, Juliana had no power or right to bequeath the clan land she had inherited from Nshunju to the respondent, Deus Kashaga. The position is the same whether the respondent was her adopted son, as she and the respondent claimed at the trial, or her own natural born child. Rule 13 is quite emphatic in its terms as to leave no doubt whatsoever on this point: "No female heir who has inherited rights in land under Rule 6 may in any way bequeath the said land or any rights in it or in its produce to any child of hers or to any other persons whomsoever".

In the course of his judgment, LUGAKINGIRA, J., discussed paragraphs 31 and 32 of Cory & Hartnoll. He said:—

> It is para 32 above which makes relevant the background facts enumerated in the third paragraph of this judgment. I need not repeat them in full. Suffice it to say that from 1957 to 1976 Juliana knew of no relative but the appellant. The respondent admitted this, though insultingly, saying: 'Kwa kuwa mdaiwa N. 2 alimpa mdaiwa Na. 1 marupurupu mengi ndicho kishawishi cha mdaiwa Na. 1 kumpa mdaiwa Na. 2 shamba linalozungumziwa'. What is more, Juliana bequeathed the shamba to a clansman, albeit a distant one and, most important of all, she received the consent of other clansmen. In the light of this and in the light of Cory's para 32, I am satisfied that Juliana Ichumbaki did not err in what she did. I find that her will was valid and hold accordingly.

Our brief comment on this holding of the learned Judge is that it is quite erroneous to regard paragraphs 31 and 32 of Cory & Hartnoll as a correct statement of the

Haya Customary Law of Inheritance to clan land in view of the statutory provisions on this subject contained in the "Rules Governing the Inheritance of Holdings by Female Heirs, 1944". See observations by Mr. Justice SPRY in the case of *Bi Amina Kanyao* v. *Bi. Saida Mitabuko* discussed in R. W. James & G. M. Fimbo: Customary Land Law of Tanzania, pp. 215 & 216.

In conclusion, we wish only to add that we are quite aware of the hardships caused to female members of the Bahaya Society by what appears to be a male oriented system of family or clan tenure. The disabilities which female members of that society have to suffer are completely unjustified and inexplicable in modern day Tanzania. But having said that, we are counselled to heed the warning of Mr. Justice HAMLYN in the case of *Bi Verdiana Kyabuje v. Gregory Kyabuje* [1968] HCD 499 when he said:

> Now however much this Court may sympathise with these very natural sentiments, it is in cases of this nature bound by the customary law applicable to those matters. It has frequently been said (and has been commented upon right up to decisions of the Privy Council) that it is not for Courts to overrule Customary Law. Any variations in such law as takes place must be variations initiated by the altering customs of the community where they originate. Thus, if a customary law draws a distinction in a matter of this nature between males and females, it does not fall to this Court to decide that such law is inappropriate to modern development and conditions. That must be done elsewhere than in the Courts of law.

With these concluding remarks, we answer the question of law certified to us thus: The learned High Court Judge erred. Juliana Ichumbaki having inherited the clan land in dispute had no more than a life interest in the land, which she could neither sell nor bequeath to the respondent, Deus Kashaga or "to any other persons whomsoever".

We accordingly allow this appeal by Deocras Lutabana, set aside the judgment and orders of the High Court and restore therefore the judgment and orders passed in this case by the trial Primary Court of Kamachumu. The appellant, Deocras Lutabana, will have his costs in this Court and in the courts below.

Appeal allowed.

TITOS KORNELIO *v.* GEOFREY B. MSHANA AND Bi. BERTHA A. HASSAN.

[COURT OF APPEAL OF TANZANIA AT ARUSHA (Nyalali, C.J., Mwakasendo and Kisanga, JJ.A.)]

CIVIL APPEAL 3 OF 1980

Land Law—Customary Law—Arusha Customary Land Law—Transfer of Land—Identification of land authority for the purposes of consent to land transfer—Effect of failure to comply with consent provisions.

Administrative Law—Ultra vires—limits of official action by statutory bodies—when officials are protected from legal action—meaning of "purported execution of functions".

Administrative Law—Delegation of powers—Executive functions—Non-delegable under Cap. 333.

Estoppel—By conduct—Whether there can be estoppel against a statute.

The appellant, a Chairman of a Ward Development Committee, had allegedly entered and destroyed developments on the respondent's land through a decision of his Committee. The Committee had doubted the validity of the original sale to the respondents as not having adhered to the consent provisions as provided in the local government statutes. The respondents, who were the plaintiffs in the High Court, argued that the Arusha District Council's Chief Executive Officer had consented to the sale and the appellant was a witness to it. The High Court decided for the respondents. The appellant appealed challenging the High Court's findings and decision, arguing, *inter alia,* that s. 16 of the *Ward Development Committee Act, 1969,* protected him and that the land transaction was not properly consented to according to the law.

Held: (i) that s. 16 of Act 6 of 1969 protects an officer who acts *bona fide* in excess of jurisdiction in matters related to the functions of the Committee. Land transactions between individuals is not related to the established functions of the Committee, therefore the appellant is not protected.

(ii) that according to the Native Authority (Consolidation) Order, 1959 (Made under s. 9 of Cap. 72; saved by s. 167(1)(f) and (2) of Cap. 333) transactions in land require the consent of the Land Authority which according to Rule 12 of the 1959 Order and s. 167(1)(b) of Cap. 333 is the Arusha District Council. The council under powers of s. 32(1) of Cap. 333 delegated its authority to its *Land and Natural Resources Committee.* Nobody can act as a delegate of the Committee as consent to sale of land is an executive function, and such functions are non-delegable (vide s. 33(1) of Cap. 333).

(iii) that estoppel cannot be applied against the Land Authority as there is no estoppel against statutory provisions (*J. K. Chatrath and Another* v. *Shah Cedar Mart* [1967] E.A. p. 97 per DUFFUS, J.A.).

(iv) that where a transaction of land does not comply with statutory provisions the sale is rendered invalid or in other words 'inoperative' (R. 14 of the *Arusha Native Authority (Consolidation) Order, 1959),* i.e. null and void and cannot pass any legal title;

(v) that where there is failure of legal title to pass and the purported transferee's entry to the land is not by force and trickery such transferee becomes a mere licensee of the owner as the transaction is valid *inter se.* Since this was the case in the present instance the appellant's actions were that of a trespasser as such rightly condemned to pay damages and costs in restoring the land to the respondents.

Appeal dismissed.

Cases referred to:

(i) *Broad Smith* v. *Draeger* [1901] 2 Ch. 86.
(ii) *J.K. Chatrath and Another* v. *Sha Cedar Mart* [1967] E.A. p. 97.
(iii) *Mistry Amr Singh* v. *Serwano Wafunira Kulubya* [1963] E.A. p. 408; [1963] 3 All E.R. 499; [1963] 3 W.L.R. 513; [1964] A.C. 142.
(iv) *Sajan Singh* v. *Sardara Ali* [1960] A.C. 167.
(v) *Mlay* v. *Phoneas* [1963] E.A. 563.
(vi) *The National Bank of Commerce* v. *Manubhai Shankarbhai Desai and Others* [1969] HCD No. 206.

J. C. D'Souza for the appellant.
W. A. L. Mirambo for respondents.

October 8, 1982. **NYALALI, C. J.:** The following considered judgment of the Court was read. The appellant Titos Kornelio and one Lokaji s/o Meitoris were jointly sued in the High Court at Arusha by the respondents for damages amounting to shs. 37,500/70 plus interest in respect of agricultural land situated at Loruvani Ward in Arusha District. The suit against Lokaji s/o Meitoris was dismissed and judgment entered in his favour and he later gave evidence for the respondents. The learned trial judge gave judgment in the sum claimed less shs. 9,000/- being the value of the agricultural land in question and made an order vesting the land in question into the respondents, plus the costs of the suit. The appellant was aggrieved by the judgment and decree of the High Court and hence this appeal to this Court. The appeal was argued by Mr. J. C. D'Souza, learned advocate for the appellant while the respondents, who were the plaintiffs in the High Court, were represented in this appeal by Mr. W. A. L. Mirambo, learned advocate.

From the proceedings in this court and the trial High Court the following primary facts appear not to be in dispute between the parties. The appellant was at all material times a Chairman of Loruvani Ward Development Committee within the jurisdiction of Arusha District Council; one Lokaji s/o Meitoris (PW.2) had, under Customary Law, a piece of agricultural land within the jurisdiction of Loruvani Ward Development Committee; on the 7th March 1972, the said Lokaji

s/o Meitoris made an application in writing to the Arusha District Council for permission to sell his agricultural land to the respondents; on the 10th March, 1972, the Executive Officer of Arusha Meru District Council wrote a letter Ref. No. L.20/3/Vol. 9/59 (Exhibit D.I.) to Lokaji s/o Meitoris; on the 11th March, 1972, the respondents paid a sum of shs, 9,000/ to the said Lokaji s/o Meitoris being the agreed purchase price of the agricultural land in question; the land was already planted with both annual and perennial crops such as maize, chillies, onions, bananas and timber trees; payment of the purchase price was made at the offices of the Arusha District Council and the transaction was reduced into writing which was witnessed by the appellant; the respondents thereafter took possession of the land and quickly began to build a house and to plant various crops and trees on it; on the 3rd April, 1972, the appellant, as Chairman of the Loruvani Ward Committee wrote to the Arusha District Council a letter of complaint; on the 8th April, 1972, the Executive Officer of the Arusha District Council wrote a letter Ref. No. L.20/3/Vol.IX/119 (Exhibit P.7) to the said Lokaji s/o Meitoris concerning the sale of his land and the letter was copied to the Chairman of Loruvani Ward Development Committee with special reference to his letter to complaint; between the 15th April, 1972, and 27th May, 1975, various meetings were held to deal with the problem concerning the sale of the land in question; the last of these meetings which was held on the 27th May, 1975, was that of Loruvani Ward Development Committee and was chaired by the appellant. It resolved to destroy what the respondents were building and the crops and trees planted by the respondents; the resolution of the committee was carried into effect.

Similarly, the proceedings in this court and in the trial High Court appear to show that the following primary and secondary facts are in dispute between the parties: The respondents allege that the Arusha District Council approved the sale of the land in question as required by law, but the appellant subsequently engineered opposition to the sale of the land and participated in the destruction of the respondents' building, crops and trees by the Ward Development Committee. The respondents assert that such destruction is not justified in law and the respondents are entitled, therefore, to damages and possession of the land.

On the other hand, the appellant denies that the appropriate consent by the Arusha District Council was given, and denies involvement in the destruction of the respondents' crops, trees and building. In the alternative, the appellant asserts that as Chairman of the Loruvani Ward Development Committee, he is protected from legal action by the provisions of s. 16 of the Ward Development Committee Act. No. 6 of 1969.

The issues framed at the trial were three, that is:—

1. Have the plaintiffs any claim or cause of action against the second defendat, in law? (2nd Def. is the present appellant).

2. Did the second defendant cause the damage to the plaintiffs' property? If so to what damages are the plaintiffs entitled? and

3. Were the plaintiffs entitled to occupy the land sold to them by the 1st defendants? (the 1st defendant was Lokaji s/o Meitoris).

We will begin with the first issue framed by the trial High Court. The appellant contended that he is immune from legal action by virtue of the provisions of s. 16 of the Ward Development Committee Act, 1969, which states:—

> 16. No matter or thing done by any member, officer, servant or agent of a Committee shall, if done bona fide, in the execution or purported execution of the functions of the Committee, subject any such persons to any action, liability, claim or demand whatsoever.

The learned trial judge considered the provisions of this section and found that the appellant was involved in the destruction of the respondents' crops and building but he acted without malice. Since there is no cross-appeal in this case it is not open to this court to investigate this finding and come to a different conclusion. The learned trial judge, after finding that the appellant had no malice, proceeded to consider the other limb of s. 16 and stated:—

> Turning now to the other aspect, the defendant is to enjoy the protection if what was done on the relevant day was in the execution or purported execution of the functions of the Ward Development Committee. Now, as pointed out by Mr. Kapoor, s. 5 of the Ward Development Committees Act, 1969 outlines the functions of such Committees.
>
> 5—(1) A Committee may:—
>
> (a) Subject to the approval of the Minister, initiate schemes for the development of the area constituting the Ward;
>
> (b) do such other acts and things as the Minister may direct.
>
> (2) For the purposes of sub-section (1) a scheme for the development of the area constituting a Ward includes a scheme—
>
> (a) for agricultural or pastoral development;
>
> (b) for the construction of roads or public highways;
>
> (c) for the construction of works or buildings for the social welfare of the people residing within such area;
>
> (d) for the establishment of any industry;
>
> (e) for the construction of any work of public utility.

The learned judge continued by stating:

> Looking at sub-section (2) it does not appear that Ward Development Committees are given the function of approving, controlling or otherwise supervising over the sale of land by an individual. The omission should be no surprise for, such function is vested in another body, namely, an authority created under the Local Government Ordinance. As regards paragraph (b) of sub-section (1) there does not appear to be any order of the Minister empowering the Loruvani Ward Development Committee to deal with land transactions between individuals. It follows, therefore, the defendant and the villagers were not acting or purporting to act within the powers conferred on the Ward Development Committee by the Act. Accordingly, they cannot

properly seek immunity under it and, in the result, I find the defendant to be liable for the damage.

This conclusion by the learned trial judge forms the basis of one of the grounds of appeal in the Memorandum of Appeal submitted by the appellant to this Court. That grounds states:—

> The Hon. High Court erred in law in depriving the appellant of the protection granted to him by s. 16 of the Ward Development Committee Act 1969 for having already found that appellant acted without malice, he erred in not taking into consideration that s. 16 covers not only acts in the execution of the duties of the Ward Committee but also in the purported execution of the same.

In his submissions before this court. Mr. D'Souza, learned advocate for the appellant, argued in effect that the purported execution of the functions of the Ward Development Committees covers actions by the Ward Development Committee which are outside its functions established under s. 5 of the Act. With due respect to the learned advocate, we do not think that he is right in his contention. Unfortunately, the learned trial judge did not attempt to define the meaning of the expression "the purported execution of the functions of the Ward Committee". There are two ways of looking at this problem; firstly, by construing "the purported execution of the functions of the Committee" as referring to actions done in excess of jurisdiction of the Committee but relating to the established functions of the Committee; or secondly, as referring to actions done by the Committee in excess of jurisdiction and unrelated to the established functions of the Committee. For example, if the Ward Development Committee 'Schemes for the development in an area' but without the approval of the Minister, such action would be done in excess of the Committee's jurisdiction but would relate to the established functions of the Committee. But if the Committee sits as a court of law and in so doing tries and convicts a suspected murderer and sentences him to suffer death by hanging, such an action would be both in excess of jurisdiction and unrelated to the established functions of the committee. Can it be said that a Ward Development Committee in both these examples would be purporting to execute its function? We would say that only the first example qualifies.

We are supported in this approach by the views of KEKEWICH, J. in the case of *Broad, Smith* v. *Draeger* [1901] 2 Ch. 86 where he considered the meaning of the expression "purporting to be" in relation to a will or Codicil and stated:—

> What is the meaning of the expression 'purporting to be' a Will or Codicil? . . . The question here is whether a document which is in form and substance a will, but which, because it was not executed as such fails to be a Will in a legal sense, is or is not a document which 'purports' to be a will. This document is on the face of it a disposition of property made in contemplation of death, and it only fails to be a will because the maker did not comply with the requirements of the Wills Act, that the witness should be present when she signed it. I think, therefore, that I must hold that this document . . . is one which 'purports' to be a Will.

In the present case the learned trial judge concluded that it was not one of the established functions of the Loruvani Ward Development Committee to deal with land transactions between individuals. On the evidence adduced at the trial and on a proper construction of the provisions of s. 5 of the Ward Development Committee Act 1969, Act No. 6 of 1969 the learned judge was correct in his conclusion. It must follow, therefore, that the actions of Loruvani Ward Development Committee in general, and those of the appellant in particular, in destroying the crops and building of the respondents were not done in a purported execution of the functions of the Loruvani Ward Development Committee and consequently not protected by the provisions of s. 16 of the Act.

We will now move on to the third issue considered by the learned trial court and leave the second issue for consideration at the end. The learned trial judge after quoting the relevant Rules regarding transactions of land within the area stated:—

> Looking at these rules it does not appear to me that they were violated by the parties to the sale agreement. The defendant as the Ward Chairman, the chairman of the Land Committee and the C.E.O. had all been consulted and they had consented to the sale. It is not clear what more was needed in order to comply with the rules. If it was confirmation by the Land Authority it would seem from the letter of consent written by the C.E.O. that the Chairman of the Land Committee, presumably on its behalf, had assented. There being no suggestion that the C.E.O. and chairman of the Land Committee could not have played the consenting and confirming roles on behalf of the Land Authority, I am satisfied in this transactions there had been sufficient compliance with the rules and, accordingly, I find the sale to have been valid.

These views of the learned trial judge form the basis of another of the appellant's grounds of appeal where he complains that:

> The Hon. High Court erred in law in holding that the transaction in issue in the suit was a valid sale under the Arusha Native Authority (Consolidation) Order 1959 made under the Native Authority Ordinance Cap. 72 and s.167 (1)(f) of the Local Government Ordinance in that there was no evidence that the appellant was acting as agent of the Land Committee or that the Land Committee sat and approved the transaction.

The important point for consideration here is whether the rule or order relied upon in this case as governing transactions of land held under customary law in the locality has any legal force and whether the Land Authority stated therein consented to the sale of land by Lokaji s/o Meitoris to the respondent.

It is common ground that the relevant order or rule is the Arusha Native Authority (Consolidation) Order, 1959, made under s. 9 of the Native Authority Ordinance, Cap. 72 of the Laws. The relevant provisions of that order state:—

> 12. The Arusha Native Authority is the Land Authority of Arusha Chiefdom.
> 13. It is forbidden to occupy unoccupied land in Arusha Chiefdom without the permission of the Land Authority.

14. It is forbidden to buy or sell land in Arusha Chiefdom without the consent of the Land Authority which shall maintain a written record of the terms of the approved transaction. Any sale conducted in contravention of this order is invalid.

It is common ground that the Arusha Native Authority had jurisdiction over the land in question and that it had power to make the order cited. There is support for this view. In their source book, titled 'Customary Land Law of Tanzania' Professors James and Fimbo, state at page 448 of their 1973 Edition:

> The power of Native Authorities to promulgate restrictive laws was contained in s. 9, paragraphs (j) and (q) and 16 of the Native Authority Ordinance (Cap. 72, 1947 ed.)

The Arusha Native Authority (Consolidation) Order, 1959, does not appear to have been published in the Official Gazette, but under the provisions of s. 11 it was not necessary to publish such order in the Official Gazette.

It is beyond dispute that the Native Authority Ordinance ceased to operate in Arusha District upon the establishment of the Arusha District Council on 1st April, 1962 by virtue of an instrument published under Government Notice No. 131 of 1962 and issued under s. 4 of the Local Government Ordinance Cap. 333. The cessation of the Native Authority Ordinance does not however appear to have affected the continued existence of the Arusha Native Authority (Consolidation) Order, 1959, as it appears to have been saved by the provisions of s. 167 (1)(f) and (2) which state:—

> (f) any notice, order, rule or by-law, made by Township Authority, Minor Settlement Authority or Native Authority formerly constituted within the area of such District Council by virtue of the provisions of any Ordinance ceasing to have effect under paragraph (a) of this section shall unless it is expressly or by necessary intendment therein otherwise provided remain effective and in force until such time as it is amended, revoked or replaced by a by-law or notice made or issued under the provisions of this Ordinance by any District Council which has power within such area to make or issue such by-law or notice, and such notice, order, rule or by-law by a Township Authority may be enforced by such District Council as though made by such District Council.
>
> (2) for the purposes of paragraph (f) of sub-section (1) of this section any notice, order or rule made by a Township Authority, Minor Settlement Authority or Native Authority described in the said paragraph under the Township Ordinance, the Minor Settlements Ordinance or the Native Authority Ordinance, as the case may be, shall deemed to be a by-law made under this Ordinance by the District Council in the area of which such Township Authority was formerly constituted.

It is true that the Native Authority Ordinance under which the Order regulating transactions of land was made, was repealed without savings by the

Native Authority Ordinance (Repeal) Act, No. 14 of 1963; but the Arusha Native Authority (Consolidation) Order, 1959, was by then governed by the provisions of s. 167 (1)(f) and (2) of the Local Government Ordinance since 1st April, 1962 and remained "effective and in force until such time as it is amended, revoked or replaced by a by-law or notice made or issued under the provisions of (that) ordinance by any District Council which has power within such area to make or issue such by-law or notice". The Arusha District Council apparently did not replace or repeal the relevant rules of the Arusha Native Authority (Consolidation) Order, 1959. This means that those rules continued to be deemed as rules made by the Arusha District Council.

The Decentralization of Government Administration (interim provisions) Act No. 27 of 1972 provided for the dissolution and replacement of District Councils and other local authorities by a District Development Council, by order published in the Gazette.

Section 8 of that Act provides for the effect of dissolution of local authority and states under sub-section (1) (a) (c):—

> (a) All the powers and functions vested to the local authority immediately before the effective date shall vest in the District Development Council and, subject to the provisions of this Act and of any regulations made under this Act and of any District Development Council may exercise such powers and functions to the same extent as they could have been exercised by the local authority immediately preceding the effective date.
>
> (b) All by-laws made by the local authority and in force immediately before the effective date shall continue in force as by-laws made by District Development Director or where by an order made under sub-section 2 the function of making such by-law is transferred to any other person or authority, such other person or authority.

By Government Notice No. 252 of 1974 District Development Councils were established throughout the country with effect from 25th October, 1974. So with effect from that date, the Consolidation order of 1959 continued to be in force as by-law made by the Arusha District Development Director.

So, it can be said that at the time when Lokaji s/o Meitoris sold the agricultural piece of land in question to the respondents on the 11th March, 1972, the Arusha Native Authority (Consolidation) Order, 1959, still had legal force under the Local Government Ordinance, Cap. 333 and so transactions of land held under customary law in the locality concerned required the consent of the Land Authority. What was the 'Land Authority' at the material time? Rule 12 of the Consolidation Order 1959 names the Arusha Native Authority as being the Land Authority. But by virtue of s. 167 (1)(b) of the Local Government Ordinance, Cap. 333, references to 'Native Authority' are to be construed as reference to 'District Council'. It follows therefore that the Arusha District Council was the Land Authority at the material time for purposes of the Arusha Native Authority (Consolidation) Order, 1959.

It is apparent from the evidence adduced at the trial which is supported by the same Book of Professors James and Fimbo that the powers of the Land Authority were in fact being exercised by a committee of the Arusha District Council that is, the Land and Natural Resources Committee. According to Professors James and Fimbo, this Committee consisted of eleven (11) councillors, including the District Agricultural Officer as an ex-officio member. According to the learned authors, the District Council delegated the powers of a Land Authority to that Committee. Undoubtedly, the council had power to delegate authority to any of its committees by virtue of the provisions of s. 32 (1) of the Local Government Ordinance Cap. 333. It is common ground that there was a committee vested with the powers of the Land Authority.

The question that arises in this case is whether the appropriate Committee consented to the sale of land by Lokani s/o Meitoris to the respondents. The learned trial judge considered this aspect of the case and stated: —

> The defendant as the Ward Chairman, the Chairman of the Land Committee and the C.E.O. had all been consulted and they had consented to the sale. It is not clear what more was needed in order to comply with the rules. If it was confirmation by the Land Authority it would seem from the letter of consent written by the C.E.C. that the Chairman of the Land Committee could not have played the consenting and confirming roles on behalf of the Land Authority I am satisfied in this transaction there had been sufficient compliance with the rules and accordingly, I find the sale to have been valid.

It is apparent that the learned trial judge concluded that the appropriate Committee approved the sale on the basis that the appellant, as the Ward Chairman of Loruvani Ward Development Committee together with the Chairman of the Land Committee, as well as the Chief Executive Officer of Arusha District Council consented to the sale. Granted that the appellant as well as the Chairman of the Land Committee and the Chief Executive Officer approved the sale, does it follow that such approval by these three people amounted to approval by the appropriate Committee? On the evidence adduced at the trial and on the opinion of Professors James and Fimbo, these three persons did not constitute the appropriate Committee.

The learned trial judge appears to have thought that the chairman of the Land and Natural Resources Committee was acting on behalf of the Committee itself. With due respect to the learned trial judge, there is no basis for such view. Firstly, there is absolutely no evidence to suggest that the Chairman had authority to act on behalf of the Committee. Secondly, since the Committee's authority is delegated to it by the District Council, the Committee cannot in turn delegate without express permission on the principle of *'Delegatus non potest delegare'* that is, a delegatee cannot delegate.

Moreover the appellant together with the Chairman and District Executive Officer could not have acted as a sub-committee of the appropriate committee since s. 33 (1) of the Local Government Ordinance expressly excludes executive functions from delegation to a sub-committee. The approval of transactions of sale of land is an executive function.

Furthermore, the conduct of these officials cannot give rise to an estoppel against the Land Authority. It is established law that there is no estoppel against statutory provisions. As DUFFUS, J. A. stated in *J. K. Chatrath and Another* v. *Shal Cedar Mart* [1967] E.A. page 97:

> The doctrine that there can be no estoppel against a statute simply means that an estoppel cannot render valid something that one law makes innvalid; so that if a statute declares a transaction to be invalid or expressly declares that something should not be done then the doctrine of estoppel cannot be used to override the specific directions of the law.

The evidence adduced at the trial shows that as a result of mounting agitation against the sale of the agricultural land in question, the Land Authority never met to consider Lokaji s/o Meitoris' application for consent to the sale. The application was overtaken by events and remained pending until the filing of this suit. This situation has given this Court great anxiety with the result that the court took the unusual step of delaying judgment and of asking the Land Authority to consider the pending application. Under the provisions of s. 8 (1)(a) of the Decentralization of Government Administration (interim provisions) Act No. 27 of 1972, the powers and functions of the Land Authority are vested in the District Development Council. On that basis, the Court asked the Aru-Meru District Development Council to consider the pending application. By letter Ref. No. AC/ARUM/CJ1/2/2/28 dated 1st March, 1982, the court was informed by the Aru-Meru District Development Director to the effect that the Council had considered the application and refused to approve the sale. The Director's letter was sent and received together with the minutes of the Council's deliberations. It is now settled that the Land Authority has not given its consent to the sale of land. What effect does the lack of consent have on the transaction and the parties? Rule 14 of the Arusha Native Authority (Consolidation) Order, 1959 states:

> It is forbidden to buy or sell land in Arusha Chiefdom without the consent of the Land Authority which shall maintain a written record of the terms of the approved transaction. Any sale conducted in contravention of this Order is invalid.

The issue of failure by a transaction to comply with legal requirements is not a rare phenomenon either in this country or in other common law countries. There are numerous authorities on the point. These authorities appear to fall into three broad groups. The first group concerns prohibited transactions which are specifically made criminal. A good example of this group of authorities is the case of *Mistry Amr Singh* v. *Serwano Wofunira Kulubya* [1963] E.A. p. 408; [1963] 3 All E.R. 499; [1963] 3 W.L.R. 513; [1964] A.C. 142. This case dealt with a transfer of land without statutory consent which was statutorily prohibited and specifically made criminal. The Privy Council concurred with the judgment of the Court of Appeal for Eastern Africa in holding that the defendant, who was the transferee of the land, acquired no rights whatsoever in that land. The Court of Appeal for Eastern Africa stated at page 413 of [1963] E.A.:

> The defendant did not have and could not show any right to the property. In view of the terms of the legislative provisions he could not assert

that he had acquired any lease hold interest. For the same reason the defendant could not assert that he had any right to occupy. As a non-African he had no right without the consent in writing of the Governor to occupy or enter into possession of the land or to make any contract to take the land on lease.

It seems that in this class of legally defective transactions, no property rights can pass. The rule is keeping with public policy reflected in the well known saying that crime does not pay. As stated in paragraph 1031 of CHITTY ON CONTRACTS, 24th Edition:

> It is clear . . . that no person can obtain, or enforce any rights resulting to him from his own crime. Neither can his representative claiming under him, obtain or enforce any such rights. The human mind revolts at the very idea that any other doctrine could be possible in any system of jurisprudence.

The transaction which is the subject of the present case does not however fall within the scope of this first group of authorities, since the transaction, though prohibited by Rule 14 is not specifically made a criminal transaction.

The second group of authorities concerns prohibited transactions which are neither specifically made criminal nor are their legal consequences specifically declared. A good example of the authorities is another Privy Council case, that is *Sajan Singh* v. *Sardara Ali* [1960] A.C. 167. That case dealt with a transactions of sale of a motor vehicle which was prohibited under Regulation 2 of the Regulation of Motor vehicles Regulations, 1965 of the then British Colony of Malaya. There is nothing in the Advice of the Privy Council to suggest that those regulations contained any specific provisions which made such prohibited transaction criminal or declared its legal consequences. Although the prohibited transaction of sale was preceded by a criminal conspiracy to deceive the Commissioner for Road Transport, it was held that property in the motor vehicle passed to the transferee under the prohibited transaction.

Again the case at hand does not fall within the scope of this second group of authorities since Rule 14 of the Arusha Native Authority (Consolidation) Order 1959 contains a provision which specifically provides for the legal consequences of the prohibited transactions.

The third and last line of authorities deals with transactions which do not comply with the provisions of the law but which are not specifically declared to be criminal transgressions but the legal consequences of which are specifically declared. This can be illustrated by several cases decided in this country by the High Court. The first case is *Mlay* v. *Phoneas* [1963] E.A. 563. The case concerned an agreement of sale of land under which the purchaser entered into occupation of the land. The transaction required the consent of the Commissioner and Lands under section 19 (1) of the Freehold Titles (Conversion) and Government Leases Act which states:— "A disposition of a Government Lease shall not be operative without the consent of the Commissioner".

PLATT, J. stated at p. 568 of the report:

> I take it then, that the meaning of inoperative, is not "voidable", as the defendant argued in the instant case, but that, in so far as the agreement con-

cerns the disposition of the Government leasehold property, it is "void", but may still be of some effect as far as collateral agreements.

The second case is *the National Bank of Commerce* v. *Manubhai Shankarbhai Desai and others* [1969] HCD No. 206. The case concerned an application to attach property in land before judgment in a pending suit. There was an agreement under which the land was about to be sold apparently to defeat the plaintiff if he become judgment creditor. The transaction required consent of the Commissioner of Lands under s. 19(1) of the Freehold Titles (Conversion) and Government Leases Act mentioned earlier. GEORGES, C. J. stated at page 189 of the report:

> Two matters arise for consideration . . . first, the second defendant's arguments showing cause why the property should not be attached and why he should not be asked to provide security, and secondly, objector's claims that the property is hers and not subject to attachment. Both these arguments have one element in common the assertion that the objector (purchaser) has an interest in the property attached. I am satisfied that she has none. The Freehold Titles (Conversion) and Government Lease Act, Cap. 523, s. 19(1) provides "A disposition of a Government lease shall not be operative without the consent of the Commissioner". Sub-section (2) defines disposition and this includes—"a deed, or arrangement or declaration of trust binding any party thereto to make any such disposition aforesaid, including a deed or agreement, entitling a party thereto to require a disposition to be made". The Commissioner's consent was not obtained. It is therefore inoperative and could pass no interest.

The two cases show that where a transaction is required by statute to be made in a particular manner and the statute declares the specific legal consequences of non-compliance, it is a matter of interpreting the statute as to what those consequences mean. The word, 'inoperative' was thus interpreted to mean that the defective transaction is ineffective to pass any rights in the land concerned, though it could be effective in respect of collateral agreements.

Let us not turn to Rule 14 of the Arusha Native Authority (Consolidation) Order, 1959. It contains a provision which declares the specific consequences of unauthorized transaction of sale thus: "Any sale conducted in contravention of this Order is invalid"

What then does the term 'invalid' mean. It certainly cannot mean consequences which are lesser than those envisaged by the term 'inoperative' in s.19 of the Freehold Titles (Conversion) and Government Leases Act. It certainly means null and void, and as such, it cannot pass any legal title to hold land falling within the scope of rule 14.

This means in effect that the transaction of sale between Lokaji s/o Meitoris and the respondents did not not transfer any legal title to the respondents. The legal title remained vested where it had been, that is, in the hands of Lokaji s/o Meitoris.

However, it is common ground that the respondents entered into actual occupation of the land. They did not do so by force or trickery, but were permitted in

broad daylight by Lokaji s/o Meitoris to enter into possession. There is nothing in the Arusha Native Authority (Consolidation) Order, 1959 which prohibited Lokaji s/o Meitoris from allowing the respondents to enter into possession of that land. What the Order prohibits is a sale without the consent of the Land Authority and occupation of unoccupied land without the consent of the Land Authority. The question then is what rights did the respondents acquire under Lokaji s/o Meitoris' permission? We are satisfied that the respondents acquired rights which are in the nature of a licence. This provides the answer to the third issue framed by the trial judge.

Once the position of the respondents is established as being similar to that of a licence, it must follow that the appellant's actions in entering and destroying the responsents' improvements on that land, are those of a tresspasser, since he had no title to that land. So, the learned trial judge was correct on the second issue in condemning the appellant to pay the damages and costs and in restoring the land to the respondents. With respect we uphold that decision, and dismiss this appeal with costs in this Court and the Court below.

Appeal dismissed.

EDOM GODFREY MLINGA *v.* REPUBLIC

[COURT OF APPEAL OF TANZANIA AT DAR ES SALAAM
(Mwakasendo, Makame and Kisanga, JJ.A.)]

CRIMINAL APPEAL 9 OF 1981

Criminal Law—Corruption—Adequate consideration—Property bought—Computation of value—What valuer should consider.

Criminal Procedure and Practice—Failure to give correct assessment of value of property—Fatal.

Appellant was charged with obtaining advantage without adequate consideration contrary to s. 6 of the Prevention of Corruption Act, 1971. It was alleged that the appellant who was a public officer purchased from one Nurali Jaffer Ibrahim a house at Turiani for shs. 9,000/ which amount he knew or ought to have known to be inadequate. The conviction of the appellant in the trial court relied on the strength of the evidence of a valuation surveyor. The High Court dismissed the appeal. Appellant appealed to the Court of Appeal of Tanzania.

Held: (i) where marked value of any property is to be determined the valuer should inform himself of the local conditions and the market value of other properties in the area at the material time;

(ii) failure of the prosecution to give correct assessment or any evidence on the value of the property to the satisfaction of the court is fatal.

Appeal allowed.

Cases referred to:

1. *Baxter* v. *Gapp & Co. Ltd.* [1939] 2 All E.R. 752.

M. A. Lakha for the appellant.
E. Mwipopo for the respondent.

November 6, 1981. **MWAKASENDO, J.A.** read the following considered judgment of the Court: The appellant, Edom Godfrey Mlinga, was charged before the District Court of Morogoro with an offence of corruption in that he, as a public officer, obtained advantage without adequate consideration contrary to s. 6 of the Prevention of Corruption Act, 1971, Act No. 16 of 1971. The particulars of the offence as shown in the charge sheet read as follows:

> On unknown dates in 1976, he bought a house at Turiani for shs. 9,000/- — a price which he had reason to believe to constitute an inadequate consideration, from one Nurali Jaffer Ibrahim who he had reason to believe to have been concerned in any matter with himself as a public officer.

The learned district magistrate accepted the evidence of one Shashu Lugelye (PW.4) who described himself as a Valuation Surveyor working with the Anti-Corruption Squad and on the strength of Lugelye's evidence found that the appellant in purchasing the house at Turiani for shs. 9,000/- obtained an advantage at a consideration which he knew or ought to have known to have been inadequate in terms of the provisions of s.6 of the Prevention of Corruption Act, 1971. He accordingly convicted him and sentenced him to five years' imprisonment and directed the house in question to be forfeited to the United Republic. The appellant's appeal to the High Court was dismissed and hence his appeal to this Court. Mr. Lakha, learned counsel appeared for the appellant before us and Mr. Mwipopo, learned senior state attorney, represented the Republic.

As already stated, the learned trial district magistrate found the appellant guilty of the charge laid against him on the basis of the evidence of Shashu Lugelye (PW.4) who testified that on instructions received from his superiors he went to Turiani and there carried out a valuation survey of the house allegedly bought by the appellant from one Nurali Jaffer Ibrahim at a price of shs. 9,000/-. Going by the rental of the house which was given to him as shs. 2,400/- per annum, Shashu Lugelye computed the value of the house to be shs. 35,111/-. He said this was the market value of the house in 1976. Incidentally it is incorrect to say that the house was bought in 1976 for it is clear from the evidence adduced by the purchaser and vendor at the trial that the agreement of sale was made in 1975 and not in 1976 as Shashu Lugelye asserts in his evidence. Mr. Lakha, for the appellant, strongly criticised Shashu's method of computation of the market price of the house in question. He submitted that the method adopted by Shashu in arriving at the market value of the house at the time the transaction took place is seriously defective and one which no experienced valuation surveyor would follow. With respect, we think Mr. Lakha's submissions on this point are sub-

stantial and sound. Quite clearly in our view of the evidence on record, Shashu's valuation cannot be said to be a competent and careful appraisal of the property, the subject-matter of the charge, at the time when the transaction of sale took place, that is, in 1975. We would even go further and say that the sum of shs. 35,111/- is not a correct assessment of the value of the property at the time when he carried out the valuation survey, that is, in 1977. We say so because we are satisfied that no competent professional valuer could assess the market value of any property without first informing himself of the local conditions and the market value of other properties in Turiani area at the relevant time in 1975. In our considered view, we think that that is what a competent and careful valuer would be required to do before arriving at a correct assessment of the value of the property at the material time. This method of assessment of the market value of property has been approved by the courts in many cases but suffice here to refer only to the case of *Baxter* v. *Gapp & C. Ltd.* [1939] 2 All E.A. 752. The observations made in that case by DU PARCO, L. J. at page 758 could equally be made in connection with the evidence of Shashu Lugelye, the Anti-Corruption Squad valuer. DU PARTCO, L.J. said:

> I think that upon investigations one finds that it is quite plain that he paid no regard to matters which were of the most vital importance. I think that it is an important feature of the case that Mr. Gapp admittedly had no special knowlege of the value of property in Maidenhead or that district, although no doubt he is an experienced valuer generally speaking. It is plain enough, I think, that, if one can imagine a valuer being taken blindfold to some destination unknown to him and then led into a house and asked to value it, he would quite properly say: 'Before I value this house, you must tell me where I am. You must tell me where it is situated. Is it in a town, or near a town? Is it in a suburb? Is it near the sea, or is it near a river? Then, having been told that, unless he knew the place, he would desire to make inquiries as to the value of local properties. That seems to be elementary and common sense. It follows, therefore, that if a valuer has no local knowledge, he must inform himself.

In the instant case, since the question whether the appellant bought the house at a price less than the going market value of the house in 1975 depended on what was the correct assessment of the market value of the house at the relevant time and since on the evidence on record we have no way of telling what this value was, we are of the considered view that the prosecution's failure to satisfy us on this vital point in the case is fatal to the prosecution's case.

We accordingly allow this appeal, quash the conviction, set aside the sentence and the order of forfeiture and direct that the appellant, Edom Godfrey Mlinga, be released from prison forthwith unless he is lawfully held therein on some other matter.

Appeal allowed.

STANLEY KALAMA MARIKI *v.* CHIHIYO KWISIA w/o NDERINGO NGOMUO

[COURT OF APPEAL OF TANZANIA AT ARUSHA (Nyalali, C.J., Mwakasendo and Kisanga, JJ.A.)]

CIVIL APPEAL 53 OF 1977

Land Law—Attachment and sale of land pursuant to a court decree to settle a judgment debt—Challengeable on proof of undue hardship—S.48 of Civil Procedure Code, 1966.

Civil Practice and Procedure—Appeals procedure—Appeals lie at the instance of the aggrieved party—An order striking out an application made under Order 6 Rule 16 of the Civil Precedure Code, not appellable under s. 74, 75; Order 40 of Civl Procedure Code.

Civil Practice and Procedure—Appeals Procedure—The memorandum of appeal must be accompanied by a copy of the Order appealed against (Order 39 r. 1(1); Order 40 r. 2 Civil Procedure Code).

The appellant had bought the land in dispute in a public auction, the land being so sold pursuant to a Court Order for attachment and sale. The respondent, being the judgment debtor's mother, objected to the sale arguing that the land was hers. The trial magistrate in 1974 overruled her objection indicating that her son was the true heir, and the sale to the appellant was finalised in 1976. In 1977 the appellant applied for an injunction order from the district court to restrain the respondent from her constant interference. The Court struck out the application as it felt the respondent could be prosecuted as a trespasser. The respondent appealed to the High Court contesting the appellant's occupation of that land. The High Court granted the respondent occupation of land. The appellant appealed against the High Court's decision.

Held: (i) that no appeal can be made by a party who is not aggrieved by a decision. The respondent was not an aggrieved party against the appellant's application which was struck out by the District Court;

(ii) even if the respondent was the aggrieved party an application made under Order 6 r. 16 of the Civil Procedure Code is not appellable to the High Court. Appellable orders are specified under ss. 74, 75 and Order 40 of the Civil Procedure Code;

(iii) that a party who is not a party to any proceedings concerning an issue to be adjudicated upon cannot be made a party on that issue on appeal;

(iv) that a party who is desirous to appeal out of time ought to apply to the appellate court for extension of time, the High Court in the present instance wrongly entertained the appeal as there was no such application;

(v) that a memorandum of appeal must be accompanied by a copy of the order appealed from (vide Order 39 r. 1(1) and Order 40 r. 2 of the Civil Procedure Code). It is established procedure of our Courts that where such a copy is not attached the appeal is rendered incompetent;

(vi) that s. 48 of the Civil Procedure Code (as amended by Act No. 11 of 1976), *inter alia*, prohibits the attachment and sale of land which is used by an individual whose livelihood is wholly dependent upon the use of that land. But as the appellant had purchased the land prior to the amendment, it did not affect this transaction;

(vii) the courts should not be called upon to revive stale claims or to assist a party who does not act reasonably promptly (in this case lapse of four years);

(viii) that where an innocent purchaser for value has gone into occupation and effected substantial developments on land the courts would be slow to disturb such a purchaser and would desist from reviving stale claims.

Appeal allowed.

No cases referred to.

October 5, 1982. The following considered judgment of the Court was read by **KISANGA, J.A.:** This appeal arises from the High Court at Arusha setting aside the attachment and sale of land which had been effected pursuant to an order of the district court at Moshi. We must remark at the very outset that the conduct of this matter at the High Court level was extremely confused and confusing, and was full of omissions and irregularities. In order to bring this out clearly, we propose to set out the history and facts of the case in some detail.

Sometime in 1973, one Francis Msechu advanced shs. 10,200/- to a person called Elisonguo N. Ngomuo. This took place here in Dar es Salaam. Elisonguo failed to repay the loan and so Francis successfully sued him for it. The decree was obtained from the district court of Dar es Salaam, but because it could not be satisfied here, it was transferred to the district court at Moshi where it was duly registered as Misc. Civil Case No. 9 of 1973 *Francis t/a Congo Bar* v. *Elisonguo N. Ngomuo.* It was sought to satisfy the decree by attachment and sale of Elisonguo's land which was situated at Kondeni, Mwika in Moshi District. Notice to settle the terms of sale duly issued and in pursuance of it a consent order was recorded stating, *inter alia*, that Elisonguo's land was to be divided into two parts one of which was to be sold to satisfy the decree.

In the meantime, however, Chihiyo Kwisia, the respondent in this appeal, lodged an objection to the proposed attachment and sale. In support of the objection, she stated that Elisonguo was her son but that the land in question was not his but hers; it having been left to her by her deceased husband who was also Elisonguo's father. The trial magistrate however, overruled the objection and held that the land was Elisonguo's property which had been duly vested in him by an order of the Mwika Primary Court pursuant to an application by Elisonguo to that court that he be adjuged the heir to his deceased father and that the estate of the latter be duly handed over to him. The order of the district court overruling Chihiyo Kwisia's objection was made on 17.1.1974 and following it the attachment and sale proceeded, the actual sale taking place by public auction in June, 1976. It is to be specially noted that from the date of overruling the objection in January, 1974 until the conclusion of the sale in June, 1976, that is, a period of

two and half years, Chihiyo Kwisia never appealed against the order overruling her objection.

The said land was sold to Stanley K. Mariki, the appellant in this appeal. After buying the land, Stanley proceeded to develop it by putting up a building on it etc., but as he was doing so, Chihiyo Kwisia caused interference. Whereupon he applied to the district court at Moshi for an injunction to restrain Chihiyo Kwisia. This application was titled Misc. Civ. Case No. 2 of 1977 *Stanley Mariki* v. *Chihiyo Kwisia N. Ngomuo.* In a ruling dated 12.2.77, the district court struck out the application on the ground that it was unnecessary because Stanley was lawfully in occupation of the land and that Chihiyo Kwisia was a trespasser who might well be prosecuted for a criminal offence. But Chihiyo Kwisia continued to interfere with Stanley's occupation of the land. Furthermore, and this is strange, she filed in the district court notice dated 5.4.1977 of her intention to appeal against the decision in Misc. Civ. Case No. 2 of 1977 which struck out Stanley's application for an injunction against her. Now, this is where the confusion starts. It is not apparent what she intended to appeal about. No appeal could lie at her instance in that case because the order striking out Stanley's application cannot be said to have aggrieved her. In the meantime, Stanley made a further application, to the High Court this time, for an injunction to restrain Chihiyo Kwisia from her continued interference. The High Court duly granted the application pending the hearing and determination of an appeal if any. Once again, it is not apparent from which decision the High Court envisaged a possible appeal.

Then more confusion followed. Chihiyo Kwisia filed in the High Court a memorandum of appeal stating that the appeal arose from Misc. Civ. Case No. 2 of 1977 in which, as has already been shown, the district court struck out Stanley's application for an injunction against her. The appeal was duly registered in the High Court as Civ. App. No. 53 of 1977 *Chihiyo Kwisia N. Ngomuo* v. *Stanley Mariki.* On perusing the said memorandum, it clearly seeks to challenge the order of the district court which overruled her objection in 1974, because the memorandum refers specifically to the attachment and sale of the land in question as being improper and illegal. It raises no other issues. Quite clearly, this was grossly misconceived because attachment and sale was never an issue in Misc. Civ. Case No. 2 of 1977 from which the appeal arises. In other words, Stanley was never a party to any proceedings involving a attachment and sale of the land in question. Nevertheless, the High Court proceeded to hear the appeal and, in the course of doing so, permitted counsel for one of the parties to call a number of witnesses whose evidence it duly recorded. The learned judge does not say, and we have not been able to discover, which provision of the law sanctioned such recording of evidence. At the end of it all, the learned judge duly wrote a judgement in which he held that the attachment and sale of the land in question was both unlawful and illegal. He accordingly set it aside and ordered the return of the land to Chihiyo Kwisia, subject, however, to the latter compensating Stanley for the developments which he had effected on the land.

Very briefly, that is the historical background to this matter. It is at once grossly misconceived and muddled up. First, Chihiyo Kwisia could not have appealed against the order of the district Court in Misc. Civ. Case No. 2 of 1977

striking out Stanley's application because she was not an aggrieved party. If anything, it was Stanley who might have complained about the striking out of his application for an injunction to restrain her. But even if she were the aggrieved party, the order was not appealable. The order striking out the application was made under Order 6, r.16 of the Civil Procedure Code. The provisions of ss. 74 and 75 read together with Order 40 of that Code set out a list of Orders which are appealable to the High Court, with an express provision that no orders are appealable save as provided therein. But the order in question which, as has been stated, was made under r. 16 of Order 6 of the Code, is not one of those specified as appealable. On that ground therefore, the appeal before the High Court was clearly incompetent and it ought to have been dismissed.

Secondly, the suit in Misc. Civ. Case No. 2 of 1977 from which the purported appeal arose, did not involve any question of attachment and sale of land. The only issue which was involved there was a simple prayer by Stanley for an injunction. Stated more broadly, Stanley who was made the respondent in the appeal before the High Court, was never a party to any proceedings in which the issue of attachment and sale of the land in question was adjudicated upon. That being so, he cannot now, out of the blues, be made a party to that issue on appeal. As indicated earlier, that issue was raised and decided by the district court in Msc. Civ. Case No. 9 of 1973 in which Chihiyo Kwisia had objected to Francis's application to attach Elisonguo's land but the objection was overruled in early 1974. Stanley came into the picture only after that issue was duly decided; he came into the picture as a purchaser of the land in question at a public auction. Therefore, although the issue of attachment and sale did touch upon the land in question, it is clear that that issue could not be raised against Stanley, because when Stanley came into the picture, it was no longer an issue as it had already been raised and duly decided upon. The purported appeal therefore was grossly misguided because it involved an issue to which Stanley, against whom it was raised, was a complete stranger. That was another ground of objection to the purported appeal.

Thirdly, Chihiyo Kwisia did not appeal against the order which overruled her objection early in 1974. She permitted the sale to proceed to conclusion, and continued to sleep on her legal rights until the purchaser established himself and completed building a house on the land. She made a come back to the courts only after a very long period of four years had elapsed. More will be said about this aspect later on in this judgment but for the moment it suffices to say that if Chihiyo Kwisia was minded to revive the issue of attachment and sale after such a long lapse of time, she ought to have applied to the High Court for leave to appeal out of time. This, however, she did not do, and to the extent of such omission it is clear that the matter was not properly before the High Court and that that court wrongly entertained it.

That is not all. There is yet a fourth point and that is that the memorandum of appeal did not comply with the provisions of Order 39 r. 1 (1) read together with Order 40 r. 2 of the Civil Procedure Code. The combined effect of those provisions, in so far as is applicable to the present case, is that on appeal from an order of the court, the memorandum of appeal shall be accompanied by a copy of the order appealed from. But the memorandum of appeal in the instant case was

not so accompanied. The established practice of our courts has been that where a memorandum of appeal is not accompanied by a copy of the order appealed from, this renders the appeal incompetent. On that ground, the purported appeal in the present case ought to have been dismissed accordingly.

The irregularities and omissions dealt with so far were so glaring that one can find little excuse for them, especially because Chihiyo Kwisia who was largely responsible for them was duly represented by counsel in the High Court. The said irregularities and omissions taken together or individually were fatal. On account of these, the appeal was either incompetent or it was not properly before the court, and therefore it ought to have been dismissed. That then was sufficient to dispose of this appeal and to hold that the judgment of the High Court was invalid and hence, ineffectual in as much as it proceeded upon illegalities.

But even if the appeal were properly and legally before the High Court, the conclusion arrived at by that court was, to a large measure, erroneous. In setting aside the attachment and sale, the learned judge held that such attachment and sale was illegal and *ultra vires* because it contravened the provisions of s. 48 of the Civil Procedure Code 1966 as amended by Act No. 11 of 1966. His reference to Act No. 11 of 1966 was obviously an over-sight because that Act which is titled "The Solicitor-General (transfer of Duties and Powers) Act", has nothing whatsoever to do with attachment and sale of land. What the learned judge really had in mind was Act No. 11 of 1976 which is titled "Written Laws (Miscellaneous Amendments) Act". That Act, among other things, amended s. 48 of the Civil Procedure Code by prohibiting the attachment and sale of land which is used by an individual whose livelihood is wholly dependent upon the use of such land. Thus, the learned judge argued that Chihiyo Kwisia and her two daughters depended wholly for their livelihood upon the land in question, and so under the provisions, the said land could not be attached and sold. With due respect to the learned judge, however, this was a misdirection. While the learned judge was hearing this matter, the appellant Stanley stated that he had purchased the land in question at a public auction on 9.6.1976. He was not contradicted or challenged by Chihiyo Kwisia or her counsel. But the provision of Act No. 11 which prohibits the attachment and sale of such land was passed by Parliament only in July, 1976. That provision therefore could not apply to transactions such as this one which was concluded before its enactment. The provision would so apply if it was made to operate retrospectively, but on perusing it, there is no indication that such was the case.

The only other ground relied upon by the High Court to set aside the attachment and sale was that although Elisonguo had been adjudged by the court to be the lawful heir to his deceased father and had the land duly transferred to him as part of his inheritance of his father's estate, this die not make Elisonguo the exclusive owner of such land. Elisonguo held the land for the benefit of himself and all the other members of his deceased father's family. So that Elisonguo could not dispose of the land by sale without the consent of the rest of the members of the family. For the purposes of the present appeal, it is not necessary for us to decide whether this proposition of law by the learned judge is right or wrong because our decision does not turn on that point. That is to say, even that proposition is right,

we think that upon viewing the case as a whole and considering all the circumstances, that proposition could not be relied upon to arrive at the conclusion which the learned judge did.

First, the parcel of land which was attached and sold was only a half of the entire land which Elisonguo inherited from his later father. The other half was left to the use of Chihiyo Kwisia and her two daughters. At the time of the attachment and sale, Elisonguo was already of age and had a family of his own. As such, he was entitled to a portion of the land where he and his family would live. In other words, if he had decided to apportion the land in such a way that he and his family occupied one piece leaving the other piece to Chihiyo Kwisia, his mother, and her two daughters this could not be objected to. But as far as Chihiyo Kwisia was concerned, this is essentially what happened here. Elisonguo's portion of land, instead of being available for him and his family to live on, was sold by court order in order to satisfy the decree against him, while the remaining portion was left to Chihiyo Kwisia and her two daughters. Thus, so long as Chihiyo Kwisia retained her portion of land, she could not properly be heard to complain when that portion belonging to her son, Elisonguo, was disposed of. In these circumstances, the attachment and sale of the land in question, cannot be said to have caused by undue hardship to Chihiyo Kwisia that might warrant interference.

Secondly, Chihiyo Kwisia was extremely dilatory in pursuing the matter. As has already been shown, her objection was overruled in 1974 and the sale was concluded two and a half years later in 1976. All this time she did not appeal. The purchaser of the land went into occupation, developed the land and completed putting up a building on it while she continued to sit by. It is only after all these things were done that she thought it fit to return to the courts and to revive the matter in 1977, that is after a lapse of four years. The courts should not be called upon to revive stale claims or to assist a party who does not act reasonably promptly but who rather chooses to sleep on his rights for unduly long. There is need also to view the matter from the point of view of the purchaser. The purchaser lawfully and in good faith, bought the land and has been in occupation of it for a considerable length of time developing it. We think that where there has been such inordinate delay and, as a result of it, an innocent purchaser for value has gone into occupation and effected substantial development on the land, the courts should be slow to disturb such a purchaser.

Thus, the learned judge wrongly invoked the provisions of s. 48 of the Civil Procedure Code as amended by Act No. 11 of 1976. Again, he did not take into account the fact that the attachment and sale did not cause any undue hardship to Chihiyo Kwisia. She was not left destitute because only half of the land was sold while she retained the other half. Furthermore, and this is even more important, the learned judge did not address himself at all to the issue of the inordinate delay on the part of Chihiyo Kwisia in reviving this matter, and he did not consider the fact that by reason of such inordinate delay, Stanley had effected substantial development on the land. Had he properly directed himself on all these matters, we feel certain that he could not have come to the conclusion which he did even assuming that the appeal was validly and properly before him.

For all these reasons, we are satisfied that the purported judgment of the High Court was ill-founded both in law and on fact, and it is accordingly set aside. The appeal is therefore allowed with costs in this Court and in the court below.

It would appear from the record of the High Court that Chihiyo Kwisia re-occupied the disputed land during the pendency of this appeal. It would appear also that Chihiyo Kwisia has not paid any compensation to Stanley as was ordered by the High Court. In those circumstances, it is further directed that Chihiyo Kwisia shall forthwith hand over vacant possession of the land in question to the appellant Stanley.

Appeal allowed.

THE DIRECTOR OF PUBLIC PROSECUTION v. JAFFARI MFAUME KAWAWA (NYALALI, C.J.)

THE DIRECTOR OF PUBLIC PROSECUTION v. JAFFARI MFAUME KAWAWA

[COURT OF APPEAL OF TANZANIA AT DAR ES SALAAM
(Nyalali, C.J., Makame and Kisanga, JJ.A.)]

CRIMINAL APPEAL 21 OF 1980

Prevention of Corruption—Construction—Public officer under s. 6 of the Prevention of Corruption Act, 1971—Defined under s. 2 of the same Act.

Prevention of Corruption—Construction—Consideration—Valuable consideration—Natural love and affection excluded—S.6 of the Prevention of Corruption Act, 1971.

Prevention of Corruption—Construction—Adequate consideration—Promise to pay interest free loan—Natural love and affection—Excluded—S.6 of the Prevention of Corruption Act, 1971.

Prevention of Corruption—Construction—Advantage—Disaster aid and assistance—Moral and social duty excluded—S.6 of the Prevention of Corruption Act, 1971.

Prevention of Corruption—Construction—Advantage—Public Officer—Things not legally entitled to—S. 6 of the Prevention of Corruption Act, 1971.

Criminal Law and Procedure—Appeal—Memorandum of appeal lodged out of time—Sufficient explanation—Important points of law involved—Rule 8 of the Court of Appeal of Tanzania Rules, 1979.

Criminal Law and Procedure—Second appeal—Misdirection or non-directions—Proper for court to interfere on matters of fact.

Criminal Law—Corruption—Ingredients of the offence—S.6 of the Prevention of Corruption Act, 1971.

Court of Appeal Rules—Anpeal lodged out of time—Rule 8—Important points of law involved—Sufficient explanation for the delay to be given.

Respondent was charged with obtaining advantage without adequate consideration contrary to s. 6 of the Prevention of Corruprtion Act, 1971 and being in possession of property corruptly acquired contrary to s. 9(1) of the same Act. It was alleged that the respondent, an Immigration Officer in charge of Mwanza and neighbouring regions, in 1970 investigated the nationality of one Abdallah Mbarak Baleth, a businessman resident in Shinyanga and processed his passport application in 1971 and 1973. Later in December 1975, the respondent received an interest free loan of shs. 20,000/- from him. On 21st of May 1976 the respondent helped him to process passports for her two daughters. The trial court acquitted him on two counts but convicted him on one count. On appeal to the High Court, his appeal was allowed. The appellant was aggrieved hence this appeal.

Held: (i) memorandum of appeal can be lodged to the Court of Appeal out of time on application giving sufficient explanation for delay and where the offence involves important points of law;

(ii) where a second appeal is brought under s. 5(7) of the Appellate Jurisdiction Act, 1979 on a point of law the second appellate court can evaluate evidence afresh and make its own findings of fact where there are misdirection or non-directions by the first appellate court;

(iii) constituent ingredients of an offence of corruption under s. 6 of the Prevention of Corruption Act, 1971 are: (a) the accused must be a public officer; and (b) solicits, or accepts or obtains or agrees to accept or attempts to obtain for himself or for any other person any advantage; and (c) there is no lawful consideration given by him or her or he or she knows or has reason to believe that the lawful consideration which he or she gives is inadequate; and (d) knows or has reason to believe that such advantage is from a person who has been or is likely or about to be concerned with him in any matter or transaction as a public officer or having any connection with his official function or of any public officer to whom he is subordinate or has reason to believe to be interested to be related, to, acting for or on behalf of the person so concerned, or having such a connection;

(iv) "consideration" must be valuable and not good, meritorious or moral consideration based on natural love and affection;

(v) "adequate consideration" means that consideration which is not less than the value of the accepted thing;

(vi) advantage under s. 6 of the Act is something which the public officer is not entitled to get and what is obtained by him as of right is not advantage under the section; where aid and assistance is received by the public officer under a social or moral duty towards him, it does not amount to advantage under the scope of s.6;

(vii) [illegible] in this case received a loan to buy a car he had obtained an

(viii) promise to pay an interest free loan coupled with natural love and affection is not adequate consideration.

Appeal allowed.

Case referred to:

1. *Haining* v. *R.* [1970] E.A. 620.

E. K. Mwipopo for the appellant.
L. G. Haule for the respondent.

October 9, 1982. **NYALALI, C.J.**, read the following considered judgment of the court: From the proceedings in this court and in the two courts below, it is common ground that the respondent Jaffari Mfaume Kawawa was charged in the district court at Dar es Salaam on three counts with the offence of obtaining advantage without adequate consideration contrary to s. 6 of the Prevention of Corruption Act, 1971 in the first and second counts; and with being in possession of property corruptly acquired contrary to s. 9(1) of the same Act in the third count. He was acquitted on counts one and three but was convicted on count two and was sentenced to 4 years imprisonment. He appealed to the High Court against the conviction and sentence. The Director of Public Prosecutions cross-appealed to the High Court against the acquittals on counts one and three and against the sentence on count two. The High Court dismissed the cross-appeal but allowed the appeal against conviction and ordered the release of the respondent from jail. The Director of Public Prosecutions, hereinafter called the D.P.P., was aggrieved by the decision of the High Court and hence this appeal to this Court. Mr. Mwipopo learned senior state attorney, represented the D.P.P. in this appeal whereas the respondent was represented by Mr. Haule, learned advocate.

Furthermore, it is common ground that the D.P.P. did not lodge his memorandum of appeal within the period of 14 days prescribed by Rule 65(1) of the Court of Appeal of Tanzania Rules, 1979, hereinafter called the Rules. Mr. Mwipopo applied under Rule 8 of the Rules for the D.P.P. to be allowed to lodge the Memorandum of Appeal out of time. The application was supported by Mr. Mwipopo's affidavit. Two supplimentary affidavits by two other officials of the D.P.P.'s office were filed on the directions of this Court. Mr. Haule opposed the application. We allowed the application but reserved our reasons. However during the hearing of the appeal, Mr. Mwipopo decided not to pursue the appeal in respect of the acquittals on counts one and three.

It is common ground also that all times material to this appeal, the respondent was an Immigration Officer-in-charge of Mwanza region. The other neighbouring regions including Shinyanga region were subordinate to the respondent's Mwanza office. Respondent had authority to extend the duration of passports. PW.2, namely, Abdallah Mbarak Baleth was a businessman resident in Shinyanga region.

It is undisputed that early in the 1970's, PW.3 met the respondent in the course of official duties at Salawe in Shinyanga region when the respondent in-

vestigated PW.2's nationality. Moreover, it is common ground that in 1971, the respondent processed PW.2's application for a passport and forwarded the application to the headquarters of the Immigration Department at Dar es Salaam. Thereafter the respondent and PW.2 became friends and they frequently used to go hunting together. On the 16th June, 1973, the respondent extended the duration of PW.2's passport for 3 years until 1976. In December 1975, the respondent got an interest-free loan of shs. 20,000/- from PW.2. He promised to repay it from the proceeds of his motor vehicle insurance claim. On 21st May, 1976, the respondent processed application for passports for Farida and Anisa, both of whom were the daughters of PW.2. The applications were forwarded by the respondent to his head office in Dar es Salaam. Exhibit J. is a passport which was issued to Farida in consequence of the applications. At the time of the trial of this case, the respondent had repaid a sum of shs. 9,400/- out of the loan of shs. 20,000/-. The balance remained unpaid.

Also from the proceedings in this court and the two courts below, the following primary and secondary facts are either in dispute or are the subject of divergent positions by the two contending sides. The prosecution asserts that after getting the loan of shs. 20,000/- in December 1975, the respondent on the 21st May, 1976 extended the duration of PW.2's passport for about 5 years until 1981. Furthermore the prosecution asserts that the loan of shs. 20,000/- gave the respondent an advantage for which he gave no adequate consideration in exchange. Furthermore, Mr. Mwipopo has urged this court to assess the evidence afresh so as to come to its own conclusions in matters of fact, on the ground that the first appellate judge miserably failed to re-evaluate the evidence on record.

The respondent on his part is doubtful whether he extended PW.2's passport after getting the loan. Furthermore he contends in effect that the loan was given in consideration of the love and affection based on strong ties of friendship between him and PW.2 Mr. Haule has submitted that the first appellate court properly discharged its duties on the evidence and there is no basis for this court's interference.

The first point for consideration concerns the reasons upon which we allowed the D.P.P.'s memorandum of appeal to be lodged out of time. The affidavits filed in support of the D.P.P.'s application show that the D.P.P. lodged his notice of intention to appeal within the prescribed time, on 28th January 1980, and the court record of the case was supplied to the D.P.P.'s office where it was received by registry clerk on the 19th January 1982. Thereafter, there was a departure from the D.P.P.'s normal office procedure. Someone misplaced the court record in the civil section instead of putting it in the criminal section. The court record was further misplaced in a shelf normally used for keeping files which are put away. The court record was discovered there on the 12th March, 1982 in the course of a thorough search ordered by the D.P.P. as a result of information received from the Court of Appeal Registry. The memorandum of appeal was subsequently lodged in the registry of this court thirteen days later, on 25th March, 1982.

Mr. Mwipopo submitted that in terms of Rule 8 of the Rules good or sufficient reason existed for allowing the memorandum of appeal to be lodged out of time. He argued in effect that on the facts the D.P.P. is not to blame for the delay.

Moreover he submitted that the appeal involves very important points of law.

Mr. Haule on the other hand contended that the D.P.P. must be held responsible for the delay in appealing. As to the legal issues involved, these, he submitted in effect, were fully and satisfactorily dealt with by the two courts below.

In our considered opinion, the facts raise at least a very strong suspicion that somebody in the D.P.P.'s office deliberately misplaced and put away the court record with a view to frustrating the D.P.P.'s right of appeal. In our view, this state of affairs is a sufficient explanation for the delay. However, before we decided to allow the memorandum of appeal to be lodged out of time, we had also to be satisfied that this late second appeal involves important points or point of law. As we shall demonstrate in the course of this judgment, there are important points raised by this appeal. Sufficient reason thus existed for allowing the D.P.P. to lodge his memorandum of appeal out of time.

The next important point for consideration and decision in this case is whether it is proper for this court to evaluate the evidence afresh and come to its own conclusions on matters of fact. This is a second appeal brought under the provisions of s. 5(7) of the Appellate Jurisdiction Act, 1979. The appeal therefore lies to this court only on a point or points of law. Obviously this position applies only where there are no misdirections or non-directions on the evidence by the first appellate court. In cases where there are misdirections or non-directions on the evidence, a court of second appeal is entitled to look at the relevant evidence and make its own findings of fact.

In the present case, the learned first appellate judge reproduced in full the long judgment of the trial court and apparently adopted it as his own in its entirety—colons and commas included—except in so far as it concerned conviction on the second count.

It is apparent that the approach of the learned first appellate judge is inherently wrong since it was bound to direct him only to the evidence as considered in the judgement of the trial magistrate and preclude him from dealing fully with the evidence on record. This is exactly what happened. As we shall demonstrate in this judgment, there are several non-directions and misdirections on a large area of the evidence on record. Such being the position, we are of the firm view that this court is duty bound in justice, to evaluate the evidence afresh and come to its own conclusions on matters of fact concerning the appeal.

Another important point for consideration and decision is what ingredients or elements constitute the offence created under s. 6 of the Prevention of Corruption Act No. 16 of 1971. The section reads:

> Any person who being a public officer, solicits, accepts or obtains or agrees to accept or attempts to obtain for himself or for any other person, any advantage without lawful consideration or for lawful consideration which he knows or has reason to believe to be inadequate, from any person whom he knows or has reason to believe to have been or to be or to be likely or about to be concerned in any matter or transaction with himself as a public officer, or having any connection with the official function of himself or of any public officer to whom he is subordinate or from any person whom he knows or has reason to believe to be interested in or related to or acting for or

on behalf of the person so concerned, or having such a connection, shall be guilty of an offence and shall be liable to imprisonment for a term not exceeding 7 years or to a fine not exceeding shs. 20,000/- or to both such imprisonment and such fine and in addition the court may order that the amount or value of any advantage received by him or any part thereof be forfeited.

It is apparent that a person commits an offence under s. 6 of the Prevention of Corruption Act 1971 when:

(a) He or she is a public officer; and

(b) He or she solicits, or accept or obtains or agrees to accept or attempts to obtain for himself or for any other person any advntage; and

(c) There is no lawful consideration given by him or her or he or she knows or has reason to believe that the lawful consideration which he or she gives is inadequate; and

(d) He or she knows or has reason to believe that such advantage is from a person:—

(i) who has been or is or is likely or about to be concerned in any matter or transaction with him or her as a public officer, or having any connection with his or her official function or the official of any public officer to whom he or she is subordinate; or

(ii) whom he or she knows or has reason to believe to be interested in or related to or acting for or on behalf of the person so concerned, or having such a connection.

There is no difficulty about who is a public officer for purposes of s. 6 of the Act. He or she is defined under s. 2 of the Act. The definition clearly covers the accused/respondent in this case as an employee of the government. As to the term "advantage" used under the provisions of s. 6 of the Act, it is also specifically defined under the Act as:

means gift of any property, movable or immovable, loan, free, reward or favour, and includes valuable considered of any kind, discount, commission, rebate, bonus, deduction or percentage and also employment or services in any capacity;

The term "consideration" is not defined under the Act. We must therefore look elsewhere for its meaning. The International of Laws and General Clauses Act, 1972 (Cap. 1) contains no definition of "consideration". However in JOWITT'S DICTIONARY OF ENGLISH LAW, 2nd Edition, Vol. I it is stated that:

The consideration in a contract, conveyance or other legal transaction is an act or promise by which some right, interest, profit, or benefit accrues to one party, or by which some forbearance, detriment, loss or responsibility is given, suffered or undertaken by the other, in return for which the party who receives the benefit, or for whom the detriment is suffered, promises or conveys something to the other (*Currie* v. *Misa* [1875] L.R. 10 Ex. 162). Thus is a

contract of sale, the money paid or agreed to be paid by the purchaser is the consideration to the vendor, and the property sold is the consideration to the purchaser. So, if a person forgoes a legal right, as by forbearing to take legal proceedings, that is a detriment to him which may form a consideration for payment or promise by the person against whom he might have enforced the right (*miles v. N.Z. Alford Estate*, [1886] 32 Ch. D. 266). The consideration is said to move from the party who produces the benefit or suffers the detriment of which it consists and to move to the other party . . .

"Good" consideration is such as that of blood, or of natural love and affection, being founded on motives of generosity, prudence, and natural duty; hence "good" consideration is sometimes opposed to "valuable" consideration, i.e. one by which some benefit accrues to the promisor or some detriment to the promisee.The only purpose for which a good consideration in this sense was effectual was to support a convenant to stand seized to uses (q.v.) and rebut the presumption of a resulting trust on a voluntary conveyance . . . Marriage is "valuable" as opposed to "good" consideration. It is not the same as "consideration of blood" which as between grantor and grantee may support a simple or bare conveyance to the grantee but which is merely voluntary against creditors . . .

At the present day, convenants to stand seized being unknown, "good" and "valuable" as applied to consideration are sometimes used as synonymous terms, while that which is strictly called "good" consideration is now sometimes called meritorious or moral consideration.

In our considered opinion we are satisfied that this statement represents the correct legal meaning of the term "consideration" and that it applies to the provisions of s. 6 of the Act. Furthermore, we are satisfied that under the present state of the law, consideration for the purposes of s. 6 has to be valuable consideration and that good consideration in the sense of natural love and affection is not valuable consideration.

As to what constitutes "adequate consideration" for purpose of s. 6, the matter has been considered before in such cases as *Haining* v. *Republic* [1970] E.A. 620. In that case the Court of Appeal for East Africa, in an appeal originating from this country and involving the interpretation of s. 6 of the Prevention of Corruption Ordinance which has now been replaced by s. 6 of the Prevention of Corruption Act, 1971 stated at page *624*:

It seems to us reading s. 6 as a whole, that when it refers to accepting any valuable thing for a lawful consideration which the recipient knows to be inadequate, "inadequate" must mean less than the value of the thing accepted, and value will ordinarily mean the price which a willing purchaser would pay to a willing vendor. In the case of a loan, the "adequate" consideration will be not merely the promise to repay, but also the promise to pay interest at least the lowest rate of which the borrower could have borrowed elsewhere, taking into account of course any security he could offer, his general credit worthiness, current rates of interest and any other relevant fac-

tors. Any other interpretation would mean that the recipient was receiving the equivalent of a gift, in the different in price or in the rate of interest, and that is just what the section is intended to prevent.

The next important point for consideration and decision in this case is one of fact, that is, whether after getting th interest free loan of shs. 20,000/- in December 1975, the appellant did extend the duration of PW. 2's passport. The learned trial magistrate considered the point and stated:

> After obtaining the loan the accused had dealings with Mr. Bulleth in that he forwarded documents of Mr. Bulleth's children recommending that they be granted passports and he even extended the passport of Mr. Bulleth to 1981. Although the accused doubted the signature on Mr. Bulleth's passport, I found no reason to doubt the signature because of the following reasons. The signature was identified by Yakobo Rashid who knew him for a long time. The witness called by the accused Leonard Feruzi was shown to be unreliable by the way he answered questions in cross-examination. He admitted having committed irregularities in the Immigration Department which led to his being interdicted and eventually he was retired in the public interest.

The first appellate judge differed with the trial magistrate on the matter of identification of the signature in Bulleth's passport and it was solely on that basis that he quashed the conviction on the second count. In a rare expession of his own opinion he stated:

> And as the genuineness of the appellant's alleged signature on the said documents was challenged by the defence before the close of the prosecution case, I would have expected the prosecution to seek the assistance of handwriting experts. This they have not done. The record shows that the prosecution case was led by very competent officers. The prosecution must therefore have realized the importance of calling expert evidence in such situation. I am therefore inclined to attribute the non calling of handwriting expert. (sic) It would therefore be very risky to depend on the evidence of the naked eye in such cases. In this case the existence of forgeries of the appellant's signature at the material time was brought to the notice of the prosecution and the court. It was therefore imperative on the part of the prosecution to have sought technical evidence. I find that this piece of evidence has left reasonable doubt on the prosecution case. This appeal against conviction and sentence on count two is for the above reasons allowed in its entirety.

We notice that the learned first appellate judge committed serious misdirections and non-directions in interfering with the findings of the trial magistrate. Firstly, the record shows that it is not correct that the defence challenged the Authenticity of the signature before the close of the prosecution case. The record shows that PW.5 (or) (Yakobo Rashidi) who claimed to identify the signature was not cross-examined on the matter which indicates that the defence was not challenging the authenticity of the signature. Moreover the appellant cast doubts about the signature in Bulleth's passport only when he was being cross-examined in his

defence which indicates that his doubts were an afterthought made in desperate defence. Again his assertion that there were occasions when his signature was forged was made under his re-examination. The learned first appellate judge failed to direct his mind to this fact. We are satisfied that had he done so, he would have concluded as we do that this assertion was also an afterthought.

Furthermore, the learned first appellate judge failed to direct his mind to the provisions of s. 49 of the Evidence Act under which the evidence of PW.5 (or 6) of identification of respondent's handwriting was given. That witness claimed to be acquainted with the signature of the respondent. His assertion was borne out by respondent's own admission concerning the respondent's signature appearing on page 5 of Exhibit I and which was identified by the same witness. We are satisfied that had the learned first appellate judge properly directed his mind to all these matters, he would have concurred with the finding of the leearned trial magistrate that the respondent did in fact extend the duration of PW.2's passport for 5 years after PW.2 had given him the interest free loan of shs. 20,000/-.

Furthermore, the learned first appellate judge failed to consider the evidence concerning the respondent's other official dealings with PW.2. There was credible evidence to the effect that the two children of PW.2 applied for a passport and the respondent processed the applications and made a recommendation in their favour.

Perhaps the most important point for consideration and decision in this case is whether the learned trial magistrate was correct in convicting the appellant on the second count. We are bound to examine whether the elements of the offence charged are fully established by the evidence on record. There is no problem about the first element since it is common ground that the respondent, as an Immigration Officer was a public officer as defined under s. 2 of the Act.

With regard to the second element, it is common ground that the respondent obtained an interest-free loan of shs. 20,000/- from PW.2 and that a loan is included in the definition of "advantage" as stipulated under s. 6 of the Act. However there was evidence adduced to the effect that PW.2 and the respondent were friends and it is Mr. Haule's submission that the loan was given to the respondent on friendly terms and that the law does not preclude public officers from the normal functioning of the society of which they are members. This is our view raises the broader issue of whether the giving of a valuable thing to a public officer amounts in all circumstances to giving such public officer an advantage as defined under s. 6 of the Act. Does a public officer who gets free medical treatment from a doctor at a public hospital under our national health service obtain an advantage as defined under s. 6 of the Act? Clearly in such a situation the doctor is under an existing legal duty to give free medical treatment and the public officer has a legal right to get such treatment. Can the public officer be said to have obtained an advantage by getting what he is legally entitled to get? We do not think so. In our considered opinion, an advantage as defined under s. 6 of the Act must be something which the public officer is not entitled to get.

The position is basically the same as in the cases where a person is regarded as having given no consideration by doing what he is already duty bound to do. Thus in paragraph 127 of CHITTY ON CONTRACTS, Vol. I, 22nd Edition it is

stated: "If a person is under a public duty to perform some act he furnishes no consideration by performing or promising to perform that act."

So far so good; but what about the situation where a public officer's house is struck by lightning causing death to some members of his family and destruction to his property with the result that members of the community in which he lives, including friends and relatives feel compelled to give him valuable aid and assistance. Is such aid and assistance to be treated as an advantage obtained or accepted by the public officer within the scope of s. 6 of the Prevention of Corruption Act? Undoubtedly, those who give the aid and assistance do so under a moral or social duty towards that public officer. In our considered opinion such aid and assistance does not amount to an advantage obtained or accepted by the public officer within the scope of s. 6 since under those circumstances that public officer has a moral or social right to get the aid and assistance.

In the present case it is common ground that the respondent solicited and obtained the loan of shs. 20,000/- from PW. 2 for the purpose of buying a car to replace another one which was involved in an accident and was a total write-off. Can it be said that the circumstances were such that the respondent had a legal, moral or social right to be given the loan? Clearly there was no legal duty on the part of PW.2 and no legal right to get the loan on the side of the respondent. Moreover, the loan was not a disaster relief fund and so, the respondent had no moral or social right to get it. It was thus an advantage obtained within the scope of s. 6 of the Prevention of Corruption Act.

As to the third element concerning the absence of lawful consideration or the inadequacy of consideration in respect of the advantage, it is common ground that the respondent promised to repay the interest-free loan. On the authority of *Haining* v. *Republic* already mentioned, it is established that a promise to repay a loan amounts to lawful consideration for the loan for purposes of s. 6 of the Prevention of Corruption Act. there was therefore lawful consideration given in the present case. But did such promise to repay the loan amount to adequate consideration?

Mr. Haule has submitted in effect that the promise to repay the loan coupled with natural love and affection of friendship between PW.2 and the respondent constituted adequate consideration. But we have already found that under the present state of the law consideration for the purposes of s. 6 has to be valuable consideration and that good consideration in the sense of natural love and affection has to be excluded. The respondent is therefore left only with his promise to repay the loan. Mr. Mwipopo has submitted in effect that the promise was inadequate consideration for the loan and that the respondent knew or had reason to believe that the consideration was inadequate. On the facts of this case and in the light of *Haining*'s case, we are satisfied that Mr. Mwipopo is correct.

With regard to the fourth element of the offence charged, it is common ground that prior to obtaining the loan, the respondent had investigated PW.2 about his citizenship status apparently in 1971. In the same year he processed PW.2's application for a passport. It is Mr. Mwipopo's contention in effect that at the time of the loan, PW.2 was a person whom the respondent knew or had

reason to believe to have been "concerned in any matter or transaction with himself as a public officer".

On the other hand Mr. Haule has submitted in effect that the time lapse between respondent's official dealings with PW.2 in 1971 and the making of the loan in 1975 is such that the respondent had forgotten those dealings at the time he asked for the loan. Admittedly this submission has some force but in view of the evidence to the effect that PW.2 and respondent were frequently in social contact during this period, we are satisfied that at the time of the loan, the respondent was aware of his earlier official dealing with PW.2.

But that is not all. Mr. Mwipopo submits in effect that at the time of the loan, the respondent knew or had reason to believe that PW.2 was "likely to be concerned in a matter or transaction with himself as a public officer", that is, PW.2 was likely to have matters concerning the Immigration Department processed or dealt with by the respondent in his capacity as an Immigration Officer.

We think this issue has to be determined on the facts as proved. It is common ground that at the material time PW.2 resided and carried business in the Shinyanga region and that the Shinyanga office of the Immigration Department was subordinate to the respondent's office at Mwanza. PW.2's application for a passport was processed by the respondent. It is common ground also that the respondent had powers to extend the duration of a passport. He had extended PW.2's passport for three years expiring in 1976. So, on these facts, it can be said that in the ordinary course of things, the matter of further renewal or extension of PW.2's passport was likely to come before the respondent and that at the time of the loan in December 1975, he had good reason to believe so since, on his own admission, "In 1975 the Zones were abolished with effect from July. However we still had more powers at Mwanza than at Shinyanga. I could extend passport".

At the trial and in this appeal, it is contended on behalf of the respondent that the matter of extending the duration of a passport is in effect automatic with no room for discretion on the part of the Immigration Officer concerned. On the facts we are unable to agree. In 1973, the respondent extended PW.2's passports for 3 years, but in 1976, after obtaining the loan, he extended the passport for 5 years. The loan appears to have influenced the respondent's decision.

That is the position in so far as PW.2's passport is concerned. As to the aspect concerning passports for PW.2's daughters, Mr. Haule argued that the respondent's role concerning the applications was merely that of a conduit pipe, that is, he merely verified the application and then forwarded them to headquarters in Dar es Salaam for decision. Furthermore, Mr. Haule submits that such conduct of the respondent does not fall within the scope of s. 6 of the Prevention of Corruption Act 1971. We have found Mr. Haule's line of argument attractive but we have to be realistic. In public institutions, the deceptively powerless role of a messenger or low ranking clerk of handling and passing on documents up and down the decision making ladder of officials is, as everyone knows, very crucial. A corrupt or negligent messenger or clerk can delay or misplace a file or document until some inducement is offered or given. Such a public officer thus has power to block or interfere with or influence one way or another the normal flow of business and there is thus no basis for excluding him from the scope of s. 6.

We must now ask ourselves whether at the time of the loan in December 1975, PW.2's daughters were likely to seek travel documents through the respondent in the foreseeable future. It is common ground that PW.2 and his daughters were Tanzanians of Arab origin. But that is all—there is no further primary evidence to support a reasonable inference that PW.2's daughters were about or likely to seek travel documents through the respondent.

However, it would appear that on account of the official conduct of the respondent regarding PW. 2 both before and after the loan, the fourth element of the offence charged is fully established. The respondent was thus properly convicted by the trial court on the second count and the High Court erred in interfering with the conviction which is hereby restored.

With regard to the sentence Mr. Haule concedes that the provisions of the Minimum Sentences Act, 1972 were not complied with. Under s. 5(4) of that Act, where a person is convicted of an offence under s. 6 of the Prevention of Corruption Act, 1971, and "The value of the advantage accepted, given, solicited, offered or promised, exceeds the sum of five thousand shillings, the court shall sentence such person to imprisonment for a term of not less than five years". The record of this case shows that the trial court sentenced the respondent to 4 years imprisonment. Clearly that sentence was illegal, since the value of the advantage in this case is shs. 20,000/-. We therefore sentence the respondents to five years imprisonment. We direct that in computing this sentence, allowance should be made for the period that the respondent served in jail between the date of his conviction by the trial court and the date of his release on order of the High Court.

Appeal allowed.

THE DIRECTOR OF PUBLIC PROSECUTION *v.* WILBERT MOSHI

[COURT OF APPEAL OF TANZANIA AT DAR ES SALAAM,
(Mwakasendo, Makame, Kisanga, JJ.A.)]

CRIMINAL APPEAL 31 OF 1980

Criminal Procedure and Practice—Notice of hearing of appeal—Duly served—Accused does not appear—Court proceeds—Rule 73(6) of the Court of Appeal of Tanzania Rules, 1979.

Criminal Procedure and Practice—Trustworthy witness—Conflicting testimony of witness at trial—Whether appellate court can interfere.

Respondent was charged with an offence of corrupt transaction with agent contrary to s. 3 of the Prevention of Corruption Act, 1971. It was alleged that the respondent who was a Detective Corporal obtained from one Idrisa Bakari a bribe

of shs. 1,000/- so that he could help his friend who was involved in a criminal case. The Anti-Corruption Squad was informed and proceeded to trap the respondent. Two divergent and conflicting testimonies were given by the two sides in the district court which convicted the respondent. He was acquitted by the High Court hence this appeal.

Held: (i) where the respondent duly served with notice of hearing of the appeal does not appear on the day of hearing, the appeal would proceed without him;

(ii) when the decision of the trial court turns on the conflicting testimony of witnesses and the belief to be reposed in them, the appellate judge should defer to the judgement of the trial magistrate unless it is plainly clear that the decision was definitely wrong.

Appeal allowed.

No case referred to:

E. Mwipopo for the appellant.

December 1, 1982. **MWAKASENDO, J.A.,** read the following considered judgment of the court: The respondent Wilbert Moshi, a detective corporal with the Tanzania Police Force at Mbeya, was charged before the District Court of Mbeya with an offence of Corrupt Transaction with Agent contrary to s. 3 of the Prevention of Corruption Act, 1971, Act No. 16 of 1971. He was found guilty of the offence and sentenced to three years imprisonment. His appeal to the High Court was successful and hence the Republic's appeal to this court. The respondent, although duly served with notice of hearing of the appeal, did not appear on the day of hearing and the case proceeded without him under the provisions of subrule 6 of Rule 73 of the Tanzania Court of Appeal Rules, 1979. Mr. Mwipopo, senior state attorney, argued the appeal before us on behalf of the Republic.

The facts grounding the case may be told shortly as follows. At the material time one Erick Nyonyoma, a stock controller with the Mbeya Regional Trading Company (hereinafter referred to simply as "the RTC") was facing a criminal charge before the District Court of Mbeya. The charge related to his duties at the RTC. The respondent Wilbert Moshi, who knew Nyonyoma, was assigned the duty of escorting the suspect to court. It was alleged by the prosecution that it was in the course of the performance of such escort duty that the respondent, Wilbert Moshi, offered to help Nyonyoma in removing from the police investigation file all the exhibits which implicated him in the criminal charge and handing them to him, if Nyonyoma would pay him shs. 1,000/-.

Since Nyonyoma did not give evidence we do not know what his reaction to the respondent's proposition was but he was certainly not disinterested, for, as we note from the evidence, a day or two later we find him meeting the respondent at the Mbeya Community Centre for a further discussion of the respondent's offer. To this meeting Nyonyoma brought his friend and co-worker one Idirisa Bakari

(PW.2). Idirisa Bakari, the principal witness for the prosecution at the trial, told the court what took place at this meeting. He said that the respondent offered to help Nyonyoma in his difficulties by removing from the police investigation file the exhibits implicating him in the criminal charge and handing them over to him upon the latter paying him shs. 1,000/-. It is in evidence that following this meeting at the Mbeya Community Centre, Idirisa Bakari went to see Mahenge (PW.3) of the Anti-Corruption Squad Office in Mbeya and informed him about the respondent soliciting a bribe from Nyonyoma. Before taking any police action on the matter, Mahenge wanted to know the identity of the respondent and accordingly Idirisa Bakari was advised to arrange to meet the respondent at the Mbeya Community Centre so that the Anti-Corruption Squad Officers could have an opportunity to witness the meeting and know the identity of the respondent. Idirisa Bakari did as instructed and his subsequent meeting with the respondent was duly observed and noted by Mahenge. It was after that that it was decided by Mahenge to lay a trap for the respondent.

The trap itself was quite simple. It was agreed that on a pre-arranged date, at a time and place, agreed upon, Idirisa Bakari would hand over to the respondent a sum of shs. 1,000/- in currency notes provided to him by the Anti-Corruption Squad Officers who would be there to witness the transaction and arrest the respondent. The date and time set for the execution of the trap was 9th January, 1979 at 10.00 a.m., and the place, the Mbeya Golf Grounds near the Tanzania Breweries Building. It is in evidence that on the material day Idirisa Bakari met the respondent at the Mbeya Golf grounds and that upon Idirisa Bakari handing over to the respondent shs. 1,000/- in currency notes, he was given an envelope in which he later found a blank piece of paper and a land allocation form. This handing over was seen by the Anti-Corruption Officers who arrested the respondent as he was walking away from the scene. The numbers of the currency notes found on the person of the respondent upon his arrest tallied with the numbers of the notes previously given to Idirisa Bakari by the Anti-Corruption Squad Officers. A number of witnesses were called by the prosecution to say either that they had seen Idirisa Bakari handing over the money to the respondent or that they had witnessed the counting of the money and were satisfied that the numbers of the currency notes found on the respondent tallied with those previously written on a piece of paper by the Anti-Corruption Squad Officers.

The respondent, giving evidence in his defence, denied soliciting for a bribe from either Nyonyoma or Idirisa Bakari but admitted receiving shs. 1,000/- from Idirisa Bakari which he said he had been asked by Idirisa Bakari to give to a fellow police officer by the name of Germanus. The respondent was quite emphatic that Idirisa Bakari gave him the money in question at the RTC premises and that one Temba (D.W.3) was present when this transaction took place. Temba, in his evidence confirmed, more or less, the account given by the respondent. This then was the evidence placed before the trial senior district magistrate and upon which he had to find a decision in the case.

Looking at the judgment of the trial court it seems to us clear that the senior district magistrate fairly and thoroughly considered all the evidence placed before him before coming to a decision. Faced, as he was, with two divergent accounts of

have held so. Therefore I shall give the appellant the benefit of that doubt and accordingly quash the conviction and set aside the sentence on both counts.

This brings me to the points of law which are involved. As was stated earlier, the second count of occasioning loss to a specified authority was stated in the alternative to the first count of stealing by public servant. Incidentally, it is noted that the prosecution did not wish to adopt a similar course in relation to the third count of stealing by public servant. That is to say, the prosecution did not prefer an alternative charge of occasioning loss to a specified authority even though the circumstances of the alleged theft here were exactly the same as those obtaining in relation to the alleged theft on the first count. I have not been able to discover the reason for this difference in treatment. The learned state attorney who appeared at the hearing of this appeal suggested that this was a mere oversight on the part of the Director of Public Prosecutions. That may will be so. But to revert to the main point under consideration, although I have acquitted the appellant on the counts of stealing by public servant, I am satisfied that there was sufficient evidence to support conviction for the alternative charge on count two of occasioning loss to a specified authority. On the other hand, as was pointed out earlier, the trial magistrate acquitted the appellant on that count after convicting him on the first count of stealing by public servant. Now the question is, can this court enter a substituted conviction on the second count for occasioning loss to a specified authority? Mr. Shinganya the learned state attorney who argued the appeal contended very strenuously that it was proper for this court to enter such a substituted conviction.

It is now settled law that where there are alternative counts and conviction is entered on one count then no finding should be made on the other. This was laid down by the Court of Appeal in the cases of *Wachira Njega v. R.*, (1954) E.A.C.A. p.398 and *Adamu Mwambalafu v. R.*, [1966] E.A. p.459. It is clear therefore that the trial magistrate erred in acquitting the appellant on the alternative count. That is to say once he convicted on the first count then he should not have made a finding on the second alternative count. Then Mr. Shinganya took the view that since the acquittal on the alternative count was recorded erroneously, such acquittal was unlawful and must be regarded as if it did not exist. So that, he contended, it would be perfectly legitimate for this court to enter a conviction on that count since there was, in effect, no acquittal recorded on that count. Mr. Shinganya did not refer me to any authority for this view and I have not been able to discover one. I must confess that I have found considerable difficulty in deciding on this submission. I am unable to accept Mr. Shinganya's view that the erroneous acquittal on the alternative count could be regarded as if it did not exist. The acquittal was one that was recorded by a court of competent jurisdiction. As such it was an order of the court having all the qualities and implications that an order of a court of competent jurisdiction can have. It is true that the order was recorded in contravention of a rule of practice by the courts that once a conviction is entered on the first count no finding should be made ont he alternative count, but to my mind that does not render it any less a court order. To my mind the acquittal, once it was recorded, although erroneously, must remain a court order of acquittal unless and until it was set aside by a superior court. Let us take a hypothetical example to

illustrate this point. Suppose the appellant were now to be charged on the alternative count of occasioning loss to a specified authority on which he was acquitted erroneously. The learned state attorney was of the opinion that the appellant could successfully maintain a plea of *autrefois acquit,* and I think he is right. The position would have been different if the proceedings before the trial court were null and void, say, for want of jurisdiction. In such a situation it would be proper to treat the position as if there had been no trial at all, and to treat any purported order of acquittal as if it was not made at all. In such circumstances if the appellant were charged with the alternative count of occasioning loss to a specified authority, the plea of *autrefois acquit* could not be open to him. To conclude on this point therefore I would repeat what I said earlier on that in my opinion once the acquittal was recorded, although erroneously, it remained a court order of acquittal unless and until it is set aside by a superior court.

This brings me to the next question and that is whether this court can now set aside the order of acquittal which, as demonstrated, was erroneously recorded, and substitute a conviction accordingly during this appeal by the prisoner. Mr. Shinganya seemed to answer the question in the affirmative, but the authorities appear to go contra. In the case of *Wachira Njenga v. R.*, cited above, after the court had held that once a conviction is recorded on the first count no finding should be made on the other count, it went on to say at p.404 of the report,

> for it leaves it open, where the alternative count charges a cognate and minor offence, for a Court of Appeal to substitute a verdict of guilty of that offence, *a course which the court could not adopt if a verdict of an acquittal had been recorded on the alternative count.*

The underscoring is my own. By the words which I have underscored, the Court of Appeal is saying that if an acquittal is recorded on the alternative count, then if the appellate court thinks that was the count on which conviction should have been entered, that court would be unable to enter such alternative conviction because of such an acquittal.

Now, what is the explanation for this rule? In other words why should an appellate court be unable to act where an acquittal has been recorded on the alternative count? First of all it seems plain that such incapacity cannot arise in the cases where the Republic is the appellant. For in such cases it is competent for the appellate court, exercising its appellate powers, to set aside the acquittal and substitute a conviction. This, however, it cannot do where, as in the present case, the prisoner has appealed because the prisoner did not and would not appeal *against* an acquittal. Where the prisoner has appealed the appellate court might interfere with the acquittal only in the purported exercise of its revision powers. But the question is, could the appellate court validly interfere with the acquittal in the exercise of its revisional powers? The powers of superior courts on revision are conferred by s.329 of the Criminal Procedure Code. But sub-section (4) of that section expressly forbids the superior court to convert an order of acquittal into one of conviction. Thus it is clear that where the prisoner appeals the appellate court cannot, in the exercise of its revisional powers, interfere with an order of acquittal. Thus it would

what is supposed to have taken place, we think that quite naturally, the magistrate had to come to a firm view as to which of the two accounts he believed and would be prepared to act on. In the event, after a careful and fair analysis of the evidence deposed in the case, he disbelieved the version of events narrated by the respondent and his witnesses and accepting that given by the prosecution witnesses, he convicted the respondent and sentenced him as already stated. On appeal to the High Court, however, the learned first appellate judge, raised a number of questions upon which, it seems, he reached the view that the conviction of the respondent could not safely be sustained. Mr. Mwipopo before us has argued that the learned High Court judge erred in so doing. The question which now arises is whether the learned High Court judge was right in allowing the appeal by the respondent. We will now consider this question.

At p.34 of the record of appeal, the learned High Court judge refers to the first of several matters which according to him raised a doubt in his mind as to the correctness of the decision of the learned senior district magistrate. He puts the matter thus:—

> It is said, appellant solicited for the bribe when the two were alone, in the first place. In my view it seems it was Nyonyoma alone to confirm the truth or otherwise of the allegations, and to explain to the court the circumstances surrounding the alleged soliciting, if at all. No acceptable explanation was offered as to the omission to call Nyonyoma as a witness.

With respect, we do not think the learned judge is right in saying that the matter to which he alludes in the above extract was fundamental to the decision of the court in the case. In the first place, although, as he says, when the respondent first mooted the idea of helping Nyonyoma in his difficulties upon the latter paying him shs. 1,000/-, only the two of them were present, this incident, in our view, is only important in so far as it lays the background to the subsequent meeting at Mbeya Community Centre at which Nyonyoma, the respondent and the witness, Idirisa Bakari, were present. And, as it seems to us, it was at this meeting that the respondent made his intentions plainly clear that he was soliciting for a bribe from Nyonyoma or his friend, Idirisa Bakari. We do not think it was a matter of any consequence to the respondent if the money he wanted was produced by Nyonyoma himself, his relatives or the witness, Idirisa Bakari. And as regards the failure of the prosecution to call Nyonyoma, we do not think the prosecution can be faulted in the instant case for deciding not to call him as a witness. In any case, we do not think Nyonyoma, who did not take any further part in the events giving rise to the present case, would have added anything useful or material to the prosecution's case.

The second matter which appears to have influenced the learned High Court judge in allowing the respondent's appeal is plainly set out in the following extract of the learned judge's judgment. He states the matter as follows:—

> By the evidence of P.W.2 (Idirisa Bakari), he and Erick Nyonyoma met at the Community Centre on another day. It is said, appellant repeated his demand this time directing it to the two—for shs. 1,000/- allegedly in exchange with documentary evidence, then in the police case file, as stated

above. Appellant denied this allegation too. And the record does not show the circumstances under which the three met and why appellant solicited the bribe from the two when the case in court concerned Erick Nyonyoma alone. In my view this allegation ought to have been confirmed and/or clarified by Erick Nyonyoma. Like the other one the point was fundamental. For the two related to the allegation of soliciting for bribe which was the cause of the alleged trap that resulted in the appellant being apprehended and charged with corruption. The point ought therefore to have been laid before the court. In either case the evidence of Erick was crucial.

The learned High Court judge also discussed two other matters which, like the matters referred to in the extracted passages supra, were manifestly matters of fact. As it will no doubt be observed, the matters raised by the learned High Court judge as justifying him in interfering with the decision of the trial district court, were matters which related to a conclusion which the learned senior district magistrate had arrived at as to which of the witnesses, both of the prosecution and the defence, whom this type of case, where, as in the instant case, the decision turns on the conflicting testimony of witnesses and the belief to be reposed in them, we think, in accordance with long established principle, an appellate judge should defer to the judgment of the trial magistrate's decision was definitely wrong. Without expressing any opinion as to what judgment we would have given in the instant case if we had seen and heard the witnesses ourselves, we are satisfied that there is no material on the record of the present case which could have justified the learned appellate High court judge in differing from the findings of the very experienced senior district magistrate who saw and heard the persons who gave evidence in the case.

In the result we allow this appeal; quash the judgment and set aside the order passed by the High Court and restore therefore the decision and order passed by the trial district court. And for the avoidance of doubt, we direct that the respondent be forthwith committed to prison to serve the remainder of his sentence. We order accordingly.

Appeal allowed.

MAGAZI KILUNGA *v.* R. (KISANGA, J.A.)

MAGAZI KILUNGA *v.* R.

[COURT OF APPEAL OF TANZANIA AT MWANZA,(Nyalali, C.J.; Mwakasendo, and Kisanga, JJ.A.)]

CRIMINAL SESSIONS CASE 16 OF 1980

Criminal Law—Murder—provocation—Belief in witchcraft—Whether sufficient provocation to constitute defence to murder.

Criminal Practice and Procedure—Assessors—Failure by court to explain duty of assessors—Whether prejudicial to accused.

The appellant appealed against the conviction and sentence of murder on the ground of provocation by witchcraft. The appellant also complained on appeal that failure by the court to explain to the assessors their duty had prejudiced his defence case.

Held: (i) belief in witchcraft *per se* does not constitute provocation in law;

(ii) it is a rule of practice that the trial judge should explain the duties of assessors before proceeding to hear the evidence, failure to do so is not necessary fatal to the proceedings.

Appeal dismissed.

No case referred to:

R. M. Patel, for appellant.

September 8, 1981. **KISANGA, J.A.,** read the following considered judgment of the court: The appellant who was convicted of murder and sentenced to death is now appealing against both conviction and sentence.

The appellant was formerly married to the deceased but they had divorced or separated, although they continued to live in the same village. The evidence further shows that sometime before the day of the incident the appellant's cattle strayed into the deceased's shamba and caused damage there. Upon the matter being referred to the elders, the appellant was adjudged to pay compensation to the deceased in respect of the said damage. On the day of the incident the deceased went to the house of the appellant to demand payment of this compensation but the appellant slashed her with a panga killing her instantly.

The appellant relied on the defence of provocation by witchcraft. He claimed that prior to the fateful day he had consulted a witchdoctor who informed him that the deceased, through her co-wife, had put medicine in the appellant's bed which medicine was supposed to make him go mad or commit suicide. It may be noted, however, that the said co-wife, Rahabu Kudema (PW.4), in her evidence denied to have been instructed by the deceased to send any medicine to the ap-

pellant. The appellant went on to say that when on the day of the incident he asked the deceased about this, she denied to have put any such medicine in the appellant's bed, whereupon the appellant got annoyed and slashed her to death.

The learned trial judge, after analysing the evidence for both sides, held that there was no provocation in law and accordingly he convicted the appellant as charged.

Mr. R. M. Patel, advocate representing the appellant appeared and argued the appeal before us. His main ground was that:—

> . . . the learned judge erred in law by not considering provocation in accordance with law and facts of the case.

We think that this complaint is without foundation. It is evident that the trial judge in his judgment devoted considerable time and space considering the issue of provocation, and at the end of it he held that that defence was not open to the appellant. Looking through the evidence, we are satisfied that he properly directed himself on that issue and arrived at the right conclusion.

Mr. Patel also complained that the learned trial judge did not adequately direct the assessors on the question of provocation. Admittedly the learned judge's direction to the assessors is contained in a very brief note. It says:—

> Gentlemen Assessors, the facts are very clear and have been admitted by the accused. The only point for consideration is whether there are grounds for provocation as alleged by the accused. I will not say any more at this point. May I have your views.

It is quite clear from this that the trial judge did leave the issue of provocation to assessors for their consideration. It is equally true that the facts of the case were simple and straight-forward, and the issue of provocation was raised within very narrow compass. In those circumstances, there was no practical necessity of compiling detailed and exhaustive notes for summing up to the assessors. We think that the learned trial judge must have been satisfied that considering the simplicity of the facts and the well defined limits within which the defence of provocation was couched, the assessors would have no difficulty in considering and deciding on the issue of provocation. We are fortified in this view by the fact that the opinions of the assessors as recorded show that they understood the issue before them, duly considered it and gave their views accordingly.

And lastly, Mr. Patel complained that after assessors were selected the trial judge did not explain their duties to them. It is true that there is no note on the record to indicate that the duties of assessors were explained to them. It is now an established practice in this country that in trials before the High Court the judge explains to the assessors their duties before proceeding to hear the evidence. The object of this exercise is to try to ensure that the accused person has fair trial, for example, by directing the assessors that in handling or considering the case before them they should act only on the evidence received in court and not on any extraneous information or matter. But this rule is one of practice, not of law. So that while it is always desirable that the trial judge should explain the duties of assessors, we think that a breach of that rule is not necessarily fatal. It has not

been shown or even suggested to us that the assessors did, or omitted to do, anything by reason of the trial judge's failure to outline their duties to them. Indeed, glancing through the record there is nothing to support any such view or suggestion. Therefore the omission by the trial judge to outline the duties of the assessors to them cannot be said to have prejudiced the appellant in any way, and it was curable.

In the result, we are satisfied that this appeal is without merit and is accordingly dismissed.

Appeal dismissed.

HASSAN MZEE MFAUME *v. R.*

[COURT OF APPEAL OF TANZANIA AT DAR ES SALAAM, Mustafa, Makame and Kisanga, JJ.A.)]

CRIMINAL APPEAL 80 OF 1977

Criminal Practice and Procedure—Failure of an appellate court to re-evaluate evidence and to consider material issues involved therein—Procedure to be followed on appeal.

The appellant was convicted of forgery and obtaining money by false pretences. His appeal to the High Court was dismissed. He appealed against the order of the High Court alleging that the High Court had failed to re-appraise the evidence before the trial court as a result of which the appellant lost a chance of acquittal.

On appeal.

Held: (i) a judgment should always set out or indicate the reasons for the judgment;

(ii) a judge on first appeal should re-appraise the evidence because an appeal is in effect a rehearing of the case;

(iii) where the first appellate court fails to re-evaluate the evidence and to consider material issues involved on a subsequent appeal the court may re-evaluate the evidence in order to avoid delays or may remit the case back to the first appellate court.

Appeal allowed.

Cases referred to:

(1) *Mahenge* v. *R.*, Criminal Appeal No. 3 of 1978., (unreported).

M. A. Lakha, for appellant.

E. Mwipopo, for Republic.

August 11, 1981. **KISANGA, J.A.,** read the following considered judgment of the court: The appellant was convicted on a total of twenty counts, ten of which were for forgery and the remaining ten being for the related offences of obtaining money by false pretences. He was sentenced to five years' imprisonment on each count of forgery and to a further five years' imprisonment on each count of obtaining money by false pretences; and all the sentences were made to run concurrently. His appeal to the High Court was dismissed, hence the present appeal.

Mr. M. A. Lakha appeared for the appellant and argued the appeal before us. His main ground was that the learned High Court Judge failed to re-appraise the evidence; thus leaving so many matters unconsidered and that had he done so he would have acquitted. Thus Mr. Lakha urged that by reason of such failure on the part of the learned judge, the appellant lost a chance of acquittal.

The judgment of the High Court consists merely of a reproduction in full of the judgment of the trial court together with a very brief concluding remark in the following terms:—

> After reading the record and after considering the appellant's submissions before this court, I am satisfied that there was sufficient evidence before the lower court justifying the appellant's conviction. I also do not consider the sentences to be excessive.

Mr. Lakha's complaint is quite justified. It would seem obvious that this kind of judgment is not helpful at all. It does not set out the reasons for the decision. It proceeds as though the matter were on order for summary rejection and yet having regard to the nature of the evidence and the issues involved, there is nothing which could possibly have warranted dealing with the matter summarily. This court has on a number of occasions in the past expressed disapproval of this mode of rendering a judgment. We can hardly over-emphasize the need to set out or indicate the reasons for the judgment. This is necessary because the parties or their counsel are entitled to know why their case was decided one way or the other. It is necessary also because in the event of an appeal, like this one, it facilitates the task of ascertaining whether or not the decision was erroneous. Indeed where no grounds for the judgment are given it becomes increasingly difficult to resist a claim that the decision in such a judgment is faulty. For, except in the clearest of cases, one cannot say for certain whether in arriving at the decision the judge considered the evidence at all or, if he did, what view he took of the evidence and the material issue on which the decision ought to be based. It is stressed once again that a judge on first appeal should re-appraise the evidence because the appeal before him is, in effect, a re-hearing of the case, and that in the course of doing so he should set out or indicate the grounds for his decision.

Given that the first appellate court failed to re-evaluate the evidence and to consider material issues involved therein, the question now arising is what should this court do? Mr. E. L. K. Mwipopo, the learned senior state attorney appearing

for the respondent Republic, at first observed that the proper thing to do is to remit the matter back to the High Court and to require the judge there to perform his duty as was required of him. However, Mr. Mwipopo took the view that he did not feel like pressing this point too far because he was aware of the decision in the case of *Mahenge* v. *R.*, Criminal Appeal No. 3 of 1978 (unreported) involving a somewhat similar situation in which the Court of Appeal for East Africa declined to send the case back to the High Court and instead affirmed the convictions. Perhaps it should further be pointed out that this court would have power under s. 3(2) of the Appellate Jurisdiction Act, 1979, to step into the shoes of the High Court in such circumstances. The sub-section provides that:—

> For all purposes of and incidental to the hearing and determination of any appeal in the exercise of the jurisdiction conferred upon it by this Act, the Court of Appeal shall, in addition to any other power, authority and jurisdiction conferred by this act, have power, authority and jurisdiction vested in the court from which the appeal is brought.

It is apparent that acting on this provision this court may properly exercise the powers of the High Court to re-evaluate the evidence in the instant case. Indeed in the circumstances of this particular case, this is the most appropriate course to adopt in order to avoid any further delays in this appeal which has been pending since 1977. But this does not mean that this court will step into the shoes of the High Court in every case where the High Court fails to perform its duty. It will all depend on the circumstances of each case, and there may well be cases where it will be considered more appropriate to remft the case back to the High Court to be dealt with there.

Coming now to the appeal itself, although the appellant was convicted on twenty counts, the prosecution had led evidence tending to implicate the appellant on two counts only, and such evidence may be summarised as follows:— The complainant, one Mohamed Kilewa (P.W.1), is a semi-literate businessman who maintained a savings account with the National Bank of Commerce, City Drive Branch in the city of Dar es Salaam. Because of his semi-literacy, when he went to deposit or withdraw money he used to seek help from members of staff at the bank to fill in the forms while he did the signing only; and the appellant who was a messenger at the bank was one of the persons who helped him thus on a number of occasions. It was alleged that the appellant forged withdrawal forms in the name and signature of the complainant and that on the strength of them he withdrew money from the complainant's account.

In convicting the appellant the trial magistrate relied on two pieces of evidence. First, there was the undisputed evidence that the appellant used to help the complainant to fill in withdrawal forms. Then there was the evidence of Asha Kigui P.W.5), a bank clerk, to the effect that on 19.4.1974 the appellant presented to her a withdrawal form for shs. 900/- which bore the name and signature of the complainant and also an endorsement by the complainant that the money be paid to the bearer (the appellant). According to this witness the appellant also presented the complainant's pass book along with the withdrawal form and she accordingly checked and passed them for payment.

In his judgment the trial magistrate also found that on 17.4.1974 the appellant had, in similar circumstances, presented to this witness another withdrawal form for shs. 990/- for processing for payment. But this was a misdirection on the evidence because all that the witness said about this withdrawal form was that she checked and passed it for payment, but there is no mention or indication whatever as to who brought it to her. Her evidence here is quite different from what she said regarding the withdrawal form of 19.4.1974 for shs. 900/- where she stated quite categorically that the form was brought to her by the appellant. There was, therefore, no evidence adduced tending to implicate the appellant on the counts relating to the shs. 990/- withdrawn from the complainant's account on 17.4.1974. As stated earlier the evidence as adduced tended to implicate the appellant only on the two counts of forgery and obtaining money by false pretences relating to shs. 900/- withdrawn from the complainant's account on 19.4.1974.

The question now is whether the evidence as adduced was sufficient to sustain the appellant's conviction on these counts. The evidence that the appellant used to help the complainant to fill in withdrawal forms, it is possible that the withdrawal form in question was filled in by someone other than the appellant.

The evidence of Asha (P.W.5) that the appellant presented to her the withdrawal form in question for processing for payment involves considerable difficulty. The prosecution evidence makes it abundantly clear that at the time of processing the withdrawal form in question and also at the time of effecting payment on it, the withdrawal form was duly accompanied by a pass book. But the complainant testified, and the magistrate believed him, that his pass book was in his custody at all material times. It is reasonable to infer from this, therefore, that some pass book, other than the complainant's own was used in order to process and effect payment from the complainant's account. Then the question that arises is: who supplied the pass book which was used for the purpose? The appellant was shown to be a mere messenger whose duty was to carry customers' pass books from one point to another in the bank. But that cannot warrant the conclusion that he had access to the stock of pass books and that he issued a pass book which was used during this transaction.

Furthermore, it would appear that the witness Asha (P.W.5) whose evidence tends to implicate the appellant, was a person with an interest of her own to serve in the matter. Mr. Mwipopo, the learned advocate for the respondent resisted this suggestion and submitted that the witness was an independent one. Whether a witness is independent or not, we think, depends on whether there are circumstances in the case which render him an accomplice or a suspect in the alleged offence. In the instant case Asha was shown to have handled and dealt with a forged withdrawal form and a forged passbook which were used to effect payment of money from the complainant's account. In those circumstances it is apparent that Asha would have every reason to wish to implicate the appellant with the alleged forgery and obtaining the money by false pretences because if the appellant is acquitted she herself would fall to be suspected of those offences. In other words, Asha would have a motive for implicating the appellant in order to save her own skin. It is on that account that we find ourselves unable to uphold Mr. Mwipopo's submission that Asha was an independent witness.

Once it is held that Asha was a witness with an interest of her own to serve, then her evidence requires close scrutiny and, as a matter of preduce, corroboration. However, we can find nothing in the record to corroborate her evidence.

We are, therefore, satisfied that the evidence as adduced did not connect the appellant sufficiently with the offences charged. Accordingly, we allow the appeal, quash the convictions and set aside the sentences. It seems unnecessary to make an order for the appellant's release because it appears from the record that the appellant has finished serving his sentence in which case he should be out of prison by now.

Appeal allowed.

ZINGANISHA MANENO V. R. (KISANGA, J.A.)

ZINGANISHA MANENO v. R.

[COURT OF APPEAL OF TANZANIA AT MWANZA. (Nyalali, C. J.; and Mwakasenuo, Kisanga, JJ.A.)]

CRIMINAL APPEAL 84 OF 1979

Criminal Law — Murder — Causation.
Evidence — Confession to a ten cell leader — Whether a person in authority — Admissibility — Evidence Act 1967, ss. 27(3).

The appellant was convicted of murdering his father and was sentenced to death by the High court on the basis of a confession made to a ten cell leader and other circumstantial evidence. On appeal, it was contended on behalf of the appellant that the confession was inadmissible it having been made before a person in authority, namely a ten cell leader.

Held: (i) a ten cell leader is not a person in authority within the provisions of ss. 27 — 33 of the Evidence Act 1967, hence a confession voluntarily made to a ten cell leader is admissible;

(ii) a person who poisons food which kills those who feed on it is deemed to have caused the deaths of the deceased.

Appeal dismissed.

No case referred to:

S. R. Kahangwa, for appellant.

September 8, 1981. **KISANGA, J. A.,** read the following considered judgment of the court: The appellant was convicted of murdering his father and was sentenced to death by the High Court sitting at Bukoba. He is now appealing against both conviction and sentence.

The evidence as adduced by the prosecution shows that the appellant and his parents especially his father, the deceased, did not get on very well with each other. He always quarrelled with the deceased and on one occasion he threatened to kill him. On the day of the incident the appellant's mother had reprimanded the appellant for stealing some flour from one Masunga, and in answer to such a reprimand the appellant uttered a threat to her to the effect that she would see. In the late afternoon of that day the appellant's mother started to cook the evening meal. After setting the pot on the fire she went to shamba leaving the contents thereof to boil or cook. She also left the appellant at home.

On her return from shamba she soon got the meal ready and served it to the members of the family. The appellant, however, was not there; she did not find

him when she returned from shamba. On eating the food the family was seriously affected. The appellant's mother and her small children vomitted. A family dog which ate the vomit died on the spot, and the deceased who did not vomit also died straight away. Before this meal the deceased was well and was not prone to illness.

The appellant who had disappeared for three or four days after the incident was brought back home by the village cell leader, and on being asked if it was he who had killed his father he agreed. He went on to produce from his own room a bottle which, according to his defence at the trial, contained poison.

In his defence at the trial the appellant completely denied the charge and put up an *alibi*. He further said that the said bottle containing poison had been kept in the house by the deceased himself and that he (the appellant) produced it after being beaten up. After a careful review of the evidence before him the trial judge rejecting the appellant's *alibi*, came to the conclusion that it is the appellant who caused the death of the deceased, his father, by poisoning him.

We have had occasion to adjourn the hearing of this appeal in order to ascertain the designation of one K.L. Bhatt who signed a chemist's report for the Chief Chemist which report was admitted in evidence at the trial and on which the prosecution sought to rely in their endeavour to establish the cause of death of the deceased. It transpires, however that the said K.L. Bhatt could not be found as it appears that he has already left the country on completion of his contract. At the resumed hearing, therefore, counsel were asked to argue the appeal afresh and address their minds to the question whether the conviction could stand if the said chemist's report is excluded as indeed it ought to be excluded.

Mr. S. R. Kahangwa, advocate, appearing for the appellant submitted that the conviction could not stand. He contended that the trial judge relied on the confession to the cell leader which was involuntary and hence inadmissible. We can find no substance in this argument. The learned trial judge specifically directed himself on this question and found that the confession was voluntary. This finding is amply supported on the evidence. Mr. Kahangwa further submitted that at any rate the confession ought to be held inadmissible on the ground that it was made before a cell leader who was a person in authority. We were referred to no authority for this proposition. This case was tried before the coming into force of Act No. 19 of 1980 which amends the law relating to confessions under the Evidence Act, 1967. The issue of confession under that act is governed by the provisions of ss. 27 —34 inclusive. But upon reading those sections there is nothing to suggest that the confession in this case was or should be held inadmissible, once the trial judge found, in our view rightly, that the confession was made voluntarily. We could find no other provision of the law under which the said confession might be considered to be inadmissible.

Once the confession was held to be admissible then this piece of evidence together with the production of the poison by the appellant himself, his disappearance from home after the death of the deceased and his positive lying that at

the material time he had gone hunting with Petro Malomo (P.W. 2) were sufficient to found the conviction.

The appeal is therefore without merit and we dismiss it accordingly.

Appeal dismissed.

ABDI AHMED *v.* R.

[COURT OF APPEAL OF TANZANIA AT ARUSHA, (Mustafa, Mwakasendo and Makame, JJ.A.)]

CRIMINAL SESSIONS CASE 54 OF 1976

Criminal Law — Manslaughter — Causation — Death as a result of running away from a fight — Whether accused caused the death thereof.

Criminal Practice and Procedure — Assessors — Failure of trial court to invite assessors to express their opinions — Consequences of such failure — Criminal Procedure Code, s. 283.

The appellant was charged with and convicted of manslaughter for unlawfully causing death. It was established on evidence that the deceased died as a result of falling into a deep ravine while attempting to run away from a fight into which he was engaged with the accused. At the end of the trial the judge summed up to the assessors and put specific questions to them. However, the judge did not call upon them to express their opinions orally as to the case generally or to any specific questions of fact addressed to them as required by the law.

Held: (i) a person is deemed to have caused the death of another, *inter alia*, if he creates in another's mind an immediate sense of danger which causes such a person to try to escape, and in doing so he injures himself;

(ii) the evidence in this case does not show that the appellant created in the mind of the deceased an immediate sense of danger which caused him to try to escape and fall in the ravine;

(iii) when the case on both sides is closed, it is the duty of the judge to sum up the evidence to the assessors and then to require each of them to state his opinion orally as to the case generally and as to any specific question of fact addressed to the assessor and to record such opinion.

Appeal allowed.

Cases referred to:

(1) *Reg. v. Halliday* [1889] 61 L.R. 701
(2) *R. v. Lewis* [1970] Crim. L.R. 647
(3) *R. v. Mackie* [1973] Crim. L.R. 54
(4) *Washington Odingo v. R.* [1954] 21 E.A.C.A. 392
(5) *Lamambutu s/o Makalya and Another v. R.* [1958] E.A. 706.
(6) *Mehar Singh Bansel v. R.* [1959] E.A. 813
(7) *Selemani s/o Ussi v. R.* [1963] E.A. 442
(8) *Msaro Galime v. R.* [1964] E.A. 488
(9) *Mdiu Mande v. R.* [1965] E.A.
(10) *Rajabu Salum v. R.* [1965] E.A. 365

J. C. D'Souza, for appellant

F. G. Mlawa, for Republic

November 21, 1979. **MWAKASENDO, J. A.,** read the following considered judgement of the court: The appellant, Abdi Ahmed, appeals from his conviction and sentence of 5 years' imprisonment imposed for manslaughter by the High Court of Tanzania sitting at Arusha. The facts relating to the charge laid against the appellant in this case can shortly be stated as follows: Fatuma Abdi (P.W. 2), who was the employer of the deceased, Jumanne Ismail at the material time testified before the trial court that on the 21st day of August, 1975, the deceased accompanied by an old man came to her house. They found the appellant, her son, at home. Shortly afterwards, the deceased and the appellant Abdi Ahmed got into an altercation relating to the loss of a goat belonging to her. And in no time this dispute led to a fight between them. The witness was quite categorical in her evidence that neither her son nor the deceased was using any weapon in fighting. Failing to stop the fight, Fatuma left them and returned to her tasks inside the house. Later however, on being informed by her son that the deceased had fallen into a ravine near her house, she went to a nearby market to report the incident to the police. Then she led a policeman, one Zakayo (P.W. 3), to the ravine at the bottom of which they discovered the deceased seriously injured. Zakayo described what happened after the finding of the deceased at the bottom of the ravine and it is to this narrative that we now turn. Zakayo told the trial High Court that after carrying the deceased to the compound of Fatuma's house he requested the appellant who was then in the process of starting a lorry, to help in taking the deceased to hospital. The appellant however, instead of rushing the deceased to hospital as requested decided to run away in the lorry, leaving his mother and the policeman to seek help from a passing motorist. When overtaken at a petrol station along the road the accused explained his flight and apparent disregard for deceased's life saying: "It is true the police asked me to help take the deceased to hospital. I did not escape, but I went to add petrol. That is what we had agreed with the policeman". That may be so but as we are satisfied that nothing really crucial to the case turns on this alleged flight by the appellant we find it unnecessary to discuss this point any further.

Be that as it may, it was on the basis of these facts that the appellant was arrested and charged with unlawfully causing the death of the deceased. The appellant in his defence testified on affirmation that on the day in question he and the deceased got into an altercation over a lost goat and that this verbal slanging match soon turned into a fight with sticks. Since what happened in the course of this fight is of the utmost importance in the determination of this appeal we think it proper to set out in full appellant's account, indeed, the only account we have on record as to what happened when he and the deceased were fighting:-

> When Jumanne did not give an explanation I informed him that I would take steps to produce him to police station. He started to argue and started the quarrelling. When the quarrel started, I had a stick containing a knife. Jumanne had a stick. Jumanne tried to strike me but I stopped him and we struggled over the sticks until I overwhelmed him. The stick I had I took and threw it down. As to the stick which deceased had, it also remained with me and I put it down. Deceased then decided to escape by running away towards a ditch near our home. As the area is surrounded by a wire fence I did not bother to chase deceased but watched until he fell into a ditch. When I heard a cry I followed and found him fallen in a ditch. As I was returning to look for help I was apprehended by police.

Then the appellant went on:-

> It is not true that I told the magistrate that I chased deceased. I told him that the deceased ran on his own accord. I told the magistrate that I followed deceased. The magistrate may have forgotten as it is a long time past. I told the magistrate how far deceased had gone before I followed him and I told the magistrate that my intention of following the deceased was in response to the cry and I went to give deceased help. I did not threaten deceased with any weapon. When deceased started to run the two sticks were at the scene of quarrel, on the ground. There was no path in the direction taken by the deceased. The ditch is not visible from my home because of shrubs. It was a sharp ditch.

It is, of course, common ground in this case that on the narrative of events which, we hope, we have succinctly described above, the appellant could only be held criminally responsible for the deceased's death if and only if the prosecution succeeded in proving that —

(i) the deceased in the moments immediately before falling to his death in the ravine was in fear of being hurt physically;
(ii) his fear caused him to try to escape from the appellant;
(iii) while doing so he met his death;
(iv) the fear was reasonable and caused by the appellant; and
(v) the conduct of the appellant which caused the fear was unlawful, in that he either used excessive force on the deceased or he threatened to do so.

LORD COLERIDGE, C.J., stated the principle involved in this type of case as long ago as 1889 when in the case of *Reg. v. Malliday*.(1889) 61 L.R. 701 he said;

> If a man creates in another's mind an immediate sense of danger which causes such a person to try to escape, and in doing so he injures himself, the person who creates such a state of mind is responsible for the injuries which result.

Undoubtedly, the principle enunciated by Lord COLERIDGE in *Reg. v. Halliday* and consistently applied by English courts — see *R. v. Lewis* [1970] Crim. L.R. 647 and *R. v. Mackie* [1973] Crim. L.R. 54;— is the law of England but, after serious deliberation on the matter we have reached the view that the law of Tanzania on this subject is the same as the law of England. With that said, we turn to consider the only question which in our view arises in this case, that is, whether on the evidence on record the present appellant unlawfully created in the mind of the deceased an immediate sense of danger because of which the deceased tried to escape and in so doing fatally injured himself. Mr. D'Souza, learned counsel for the appellant, in a forceful and if we may add, helpful argument, urged us to say that the learned trial judge (as he then was) erred in law in holding that the deceased met his death while trying to escape from the appellant who was chasing him brandishing or threatening him with an unsheathed sword. Counsel further submitted that the learned trial judge's conclusion on the sword incident and the ensuing chase could not, on a fair and proper consideration of the undisputed facts on record, be said to be the only reasonable, indeed only irresistible inference that could and had to be drawn from the facts established in the case. We think counsel's submissions on these points are sound. Mr. Mlawa, learned counsel for the respondent Republic while firm in his support of the decision of the trial High Court was unable to offer any good reason why he thought Mr. D'Souza's submission on the points at issue are faulty. We are not in the least surprised.

When discussing the points raised by Mr. D'Souza in this appeal the learned trial judge in his charge to the assessors dealt with the matter thus:

> It is the prosecution case that the quarrel actually developed into a fight between the accused and the deceased in the course of which the accused attempted to use his sword and the deceased had to run for his life while being chased by the accused, and as a result the deceased fell into the deep and sharp ravine where he was seriously injured.

With respect, we cannot see how the evidence placed before the trial High Court by the prosecution could on any reasonable hypothesis lend itself to such a construction. Indeed, we see nothing on the evidence on record which could lead the trial High Court to conclude that "the accused attempted to use his sword and the deceased had to run for his life while being chased by the accused". The only evidence we have on the point is that given by the appellant wherein he denies using the unsheathed sword or any sword at all in the course of his fight with the deceased. Appellant's evidence on this aspect of the case being uncontroverted by any other evidence on record it is our view that any attempt to explain away appellant's version of the events leading to the death of the deceased can be highly

speculative at best. In the course of the summing up the learned trial judge also made certain observations relating to the fight:

> From P.W. 2's evidence (the mother of the accused), if you accept her evidence it would appear that the fight between accused and deceased was a hot one, otherwise PW. 2 by virtue of her status and relationship to accused would have succeeded in stopping the fight. It is also common ground that the deceased must have known of the existence of the deep and sharp ravine nearby and must therefore have known of the danger of running towards it.

While we agree that it is incomprehensible why the deceased decided to run towards the ravine the existence of which he knew, we do not think it safe to conclude from this that the deceased must have taken this fatal step because he was fleeing from the appellant who was holding a long unsheathed sword. In our view, there is clearly no evidence to support such a conclusion. In this regard we note that the learned trial judge has dealt with the matter under discussion in more or less similar terms in his judgment. Suffice here to refer to only two passages in the judgment dealing with the points at issue. The first passage is to be found on page 28 of the record of proceedings. It reads:-

> It is the prosecution case that the quarrel between accused and deceased developed into a fight in the course of which the accused unsheathed his sword and attempted to use it against the deceased, who had to run away for his life, while being chased by the accused who was wielding his sword until deceased fell into the deep ravine, while attempting to avoid being slashed by the accused.

And the other passage to which we would like to refer is on page 29 of the record of proceedings, the last paragraph but one, and reads:-

> Accepting the evidence of P.W. 2 I am led to conclude that there was a fight between the accused and the deceased and that this fight was a hot-one otherwise P.W.2 by virtue of her status and relationship to accused would have succeeded to put an end to the fight when she intervened. I am also led to infer that the fight got hotter and hotter with the passage of time after P.W. 2's departure with the result that the accused and deceased were not content to fight by using their bare hands and instead the accused got hold of his sword-stick and the deceased got hold of another stick.

With respect to the learned trial judge, we think the conclusion reached by the trial High Court, as demonstrated by the two passages from the judgement set out *supra,* cannot be supported by the evidence produced at the trial. We are in any event of the considered view that on a proper evaluation of the evidence on record it cannot be said with any degree of certainty that the prosecution in this case proved their case against the appellant beyond all reasonable doubt. In the circumstances we think it will be unsafe to sustain the appellant's conviction for manslaughter and we accordingly allow this appeal, quash the conviction, set aside

the sentence and direct the appellant to be discharged from prison forthwith unless he is being held therein on some other lawful matter.

However, before finally laying this case to rest, we wish to comment briefly on one important matter to which our attention had been drawn in the course of hearing this appeal. After summing up to the assessors the learned trial judge put three specific questions to the assessors. The questions and the answers which the assessors gave appear on page 23 of the record of proceedings and read as follows:-

Court: Are you of the opinion that there was a fight between the deceased and accused?

1st Assessor: Yes, there was a fight.

2nd Assessor: Yes, there was a fight between them.

Court: Did the deceased fall into the ravine while running to save his life from another danger?

1st Assessor: Yes, the deceased ran into the ravine to save himself from the danger of the knife which the accused had.

2nd Assessor: Yes, the deceased was running to save himself from the knife as we have already heard the accused ... following the deceased to apprehend him and take him to police.

Court: Is the accused guilty of the offence of manslaughter for which he is charged?

1st Assessor: The accused is guilty of the offence of killing without lawful justification.

2nd Assessor: Yes, the accused is guilty.

While there can be no objection to the trial judge putting specific questions to the assessors we think that in the instant case the learned trial judge departed from the accepted procedure as laid down by the Court of Appeal for East Africa in the case of *Washington Odingo v. R.*, (1954) 21 E.A.C.A. 392 in which it was said that:-

(a) there is no objection to the trial judge putting specific questions to the assessors after the conclusion of the address, but, before doing so, he ought at least, to remind them of the salient points in the evidence before requiring them to answer.

(b) Where the opinion of the assessors is recorded in the form of specific answers to questions they must also be asked to state their opinion on the case as a whole and on the general issue as to the guilt or innocence of the accused person.

The decision in *Washington Odingo's* case was followed and emphasised by the Court of Appeal for East Africa in subsequent cases decided by the court — see judgments of that court in *Lamambutu s/o Makalya and Another v. R.*, [1958] E.A. 706 at p. 714; *Mehar Singh Bansel v. R.*, [1959] E.A. 813; *Selemani s/o Ussi v. Republic*, [1963] E.A. 442 at p.445; *Msaro Galime v. Republic*, [1964] E.A. 488; *Mdiu Mande v. Republic*, [1965] E.A.; and *Rajabu Salum v. Republic*, [1965] E.A. 365 at p. 369.

To conclude, we wish to call attention of trial judges to the fact that the ruling in the case of *Washington Odingo* is now a statutory requirement — see sub-section (1) of s. 183 of our Criminal Procedure Code, Cap. 20 of the Laws, which provides:-

> 283—(1) When the case on both sides is closed, the judge may sum up the evidence for the prosecution and the defence, and shall then require each of the assessors to state his opinion orally as to the case generally and as to any specific question of fact addressed to him by the judge, and shall record such opinion.

Appeal allowed.

CHIKALA MWAJA *v.* BALALA MASAKA

[COURT OF APPEAL OF TANZANIA AT DAR ES SALAAM, (Mwakasendo, Makame and Kisanga, JJ.A.)]

CIVIL APPEAL 17 OF 1981

Customary Law — Wagogo Customary Law — Inheritance of deceased father's wife by son — Whether permissible in the light of the provisions of the Law of Marriage Act, 1971.

Law of Marriage Act — Whether customary law relating to inheritance of a deceased father's wife by a son is allowed under the Act, ss. 14 (3); 38(1)(b) Law of Marriage Act, 1971.

Respondent sued appellant to recover 16 head of cattle paid by his deceased father when marrying his wife whom the respondent inherited after his father's death. After cohabitation for some time the wife refused to continue the relationship with the son. The lower courts entertained the view that a son could inherit his deceased father's wife under the Wagogo Customary Law. On appeal to the Court of Appeal of Tanzania the court reversed the decision of the lower courts.

Held: no rule of customary law permitting a son of a deceased father to inherit that father's wife or wives can any longer be recognised as an applicable rule of customary law in view of the provisions of s. 14(3) of the Law of Marriage Act 1971 read together with the provisions of s.3A of the Judicature and Application of Laws Ordinance, Cap. 453.

Appeal allowed.

No case referred to:

D.C. Mbezi, for the appellant.

September 13, 1982. **MWAKASENDO, J. A.,** read the following considered judgment of the court: The facts grounding this appeal are very brief and may be stated as follows. The respondent, Balala Masaka, is the son of one Masaka s/o Saka now deceased. On the death of Masaka s/o Saka the respondent inherited his deceased father's junior wife, one Mbeyu d/o Masenyeta, presumably under some rule of Kigogo Customary Law. The respondent and Mbeyu lived together as man and wife for a period of one and half years after which the latter refused to cohabit with the respondent. There upon the respondent filed a suit in the Kipanga Primary Court, Dodoma district, claiming from Mbeyu's uncle the refund of 16 head of cattle paid to him as Mbeyu's bride price by the respondent's father twelve or so years before his death. The primary court entered judgment for the respondent and ordered the appellant, Chikala Mwaja, to refund the 16 head of cattle allegedly paid as bride price for Mbeyu by the appellant's father. The district court on appeal reduced the award to 12 head of cattle. This judgment was upheld by the High Court Dodoma — hence appellant's appeal to this court.

Appellant's main ground of appeal argued before us by Mr. D.C. Mbezi, learned counsel, is that since under the Law of Marriage Act, 1971 the respondent and Mbeyu were within the prohibited relationships, any purported marriage between them was a nullity. With respect, counsel's submissions on this point have the support of that law — see ss. 14(3) and 38(1)(b) of the Law of Marriage Act, 1971. We should perhaps add that no rule of customary law permitting a son of a deceased father to inherit that father's wife or wives can any longer be recognised as an applicable rule of customary law in view of the provisions of s. 14(3) of the Law of Marriage Act, 1971 as read together with the provision of s.3A of the Judicature and Application of Laws Ordinance, Cap. 453 which provides that:-

> Notwithstanding the provisions of this Act the rules of customary law and the rules of Islamic Law shall not apply in regard to any matter provided for in the Law of Marriage Act, 1971.

For the foregoing reasons we allow this appeal with costs, set aside the judgment and decree of the High Court. If the appellant has already paid the 12 head of cattle to the respondent the same should be returned to him. We order accordingly.

Appeal allowed.

ZAKAYO PWERE *v.* REPUBLIC

[HIGH COURT OF TANZANIA AT DODOMA, (Kisanga, J.)]

CRIMINAL APPEAL 191 OF 1976

Evidence — Fictitious bank account opened — Bank pass book for the account found in appellant's house — Whether appellant operated the fictitious account.

Criminal Law — Forgery — Fictitious account opened — Appellant found to have operated the account — Writings on payment vouchers and cheques relating to the fictitious person — Whether forgery perpetrated.

Criminal Law — Theft — Fictitious account opened — Appellant found to have operated the account — Act of taking or receiving monies from the account — Whether theft.

Evidence — Handwriting expert — Operating a bank account under a fictitious name — Bank pass book found in appellants house — Whether handwriting expert need be called.

Criminal Law — Forgery — Payment voucher purports to show a certain person is entitled to payment — Such person is in fact entitled to such payment — Whether any falsehood — Whether forgery.

Sentencing — Offences planned and skilfully carried out — whether minimum sentence adequate.

The appellant, an accountant, opened a fictitious bank account and operated it. He used to process payments for certain persons and deposited the same in the fictitious account. When searched a bank pass book for the fictitious account was found in the appellant's house. He was charged with and convicted of forgery and theft. His sentences were to run concurrently, the longest period being for stealing by servant, 5 years, being the minimum for that offence.

The appellant raised many grounds of appeal. The learned judge considered them all.

Held: (i) once it is established that the pass book was found in the appellant's possession, it follows that it was the appellant who was operating the bank account in the name of A. A. Ally using this pass book;

(ii) the writings on the payment vouchers and the cheques relating to the fictitious person were forgeries;

(iii) the act of taking or receiving monies under the fictitious name amounted to theft;

(iv) once it is established that the appellant was operating the bank account in the name of A. A. Ally, it matters not whether he was using his own hand or some one else's hand to do the writing; hence no need for evidence of a handwriting expert;

(v) a charge of forgery cannot stand where there is no falsehood in the document;

(vi) a minimum sentence would not be appropriate for offences which are planned and carried out systematically with maximum skill;

(vii) order for compensation should be made to take effect immediately it is made.

Appeal allowed in part. Substantive sentence enhanced.

No cases referred to:

Appellant present, unrepresented.

A. A. Temba, for the Republic.

November 12, 1977. **KISANGA, J.:** The appellant was charged with 15 counts of forgery contrary to s. 337 of the Penal Code. He was charged on a further count with stealing by servant contrary to ss. 271 and 265 also of the Penal Code. He was convicted on all the counts and was sentenced to 5 years' imprisonment on the 16th count of stealing by servant, five years' imprisonment on the 13th count of forgery and 3 years' imprisonment on each of the remaining counts of forgery; all the sentences to run concurrently. He has now appealed.

The facts of the case are fairly long and complicated but may be briefly summarised as follows:- The appellant was working for the Mbeya Cooperative Union and was assigned the duties of accountant to the Distribution Department of that Union. When transporters carried goods for the union, his duty was to process payment to such transporters. In this connection he would prepare a payment voucher in the name of the particular transporter which payment voucher must be supported by such documents as an invoice and a goods received note. In doing this job the appellant was being assisted by one Michael Majaliwa (P.W.8), an accounts clerk who worked directly under him. After the payment voucher was prepared, the appellant submitted it for authorization to the Distribution Manager, one Yusuf Lasenga (P.W.9). The payment voucher is thus submitted along with the supporting documents. After the authorization the payment voucher is returned to the appellant who then makes out the cheque payable to the particular transporter. The appellant was also assisted by P.W.8 in writing out these cheques. After the cheque is drawn up it is submitted, together with the supporting documents, to the union's Chief Accountant, the General Manager and the Regional Cooperative Officer for signature. After these signatories have signed, the cheque is returned to the appellant who accordingly hands it to the particular transporter. Where the transporter preferred hard cash, however, the appellant took the cheque to the sales office of the distribution department where he exchanged it for cash and gave the proceeds thereof to the transporter.

During December 1973 both P.W.9 (the Distribution Manager) and P.W.8 (the accounts clerk) were away on leave and so the appellant performed their duties as well as that of his own. Temporary clerk or clerks were employed to assist him with writing out the payment vouchers and the cheques. However, when P.W. 9 and P.W. 8 resumed work in January, 1974 the appellant

declined to hand over to them their respective duties. He locked up the books in his drawers thus making it impossible, for instance, for P.W.8 to prepare payment vouchers. As a result there were many transporters who were asking for payment. Faced with such a situation the general manager authorized the breaking of the appellant's drawers from which the books for payment vouchers, cheques etc., were taken and payment to transporters resumed. A day or two later the appellant disappeared from the office and never came back. The whole conduct of the appellant aroused suspicion following which an investigation was ordered into his work.

The investigation revealed that six cheques of varying amounts were issued in favour of a transporter by the name of A. A. Ally. One of these cheques (Exhibit G. for shs. 2,955/-) was endorsed in favour of the Distribution Department of the Union and P.W. 7 who was then in charge of the sales office of that department exchanged that cheque for cash, giving the cash to the person presenting it, and accordingly deposited the cheque in the account of the distribution department. A seventh cheque (Exhibit J. for shs. 2,955/- was drawn in favour of another transporter, one H.N. Shah (P.W.11) but was endorsed in favour of A. A. Ally. H.N. Shah (P.W. 11) denied to have thus endorsed the cheque in favour of the said A.A. Ally or to have received the cheque at all. He added that it was true that the union owed him the money but that he had not received the cheque despite repeated demands. The union had duly paid all the seven cheques amounting to shs. 25,907/- to A. A. Ally but no one, even the appellant, knew who this A. A. Ally was. Some of the cheques were written by the appellant and some were written by one Damas who was employed temporarily to assist the appellant when P.W.8 and P.W.9 were away.

The police made a search at the bank where they found a bank account belonging to one Abdu Antony Ally which was opened on 26.10.1973. The account holder has two addresses, P.O. Box 154 Mbeya and P.O. Box 243 Musoma. All the cheques as were referred to above were deposited in this account except cheque (Exhibit G. for shs. 2,955/-) which was made payable to the distribution department because that department took it in exchange for hard cash. As well as deposits, there were also withdrawals from this account on diverse dates.

In the course of further investigation, the police went to search the appellant's house. The appellant was absent because, according to his wife, he was on safari to Musoma, his home district. However, the wife allowed the police to conduct the search which was witnessed by a civilian, one Lawrence Sagala (P.W. 12). In the course of the search the police came to a locked cupboard and the wife said that she did not have the key to it as the appellant had taken it; whereupon the police decided to force it open. In it they found, among other things, a bank pass book in the name of Abdu Antony Ally of P.O. Box 154 Mbeya; and some money to the tune of shs. 800/-. The entries and withdrawals in the pass book correspond with those found in the account of Abdu Antony Ally at the bank.

The appellant whose gross salary was shs. 840/- per month was having deductions from his salary so that between July 1973 and December 1973 his average net salary was only shs. 222/- per month. It appears that these deductions were in respect of a refund of a double payment for disturbance allowance which

was made to the appellant when he was transferred from Tabora, his previous station, and also in respect of other monies which the appellant owed to the Tabora Cooperative Union by way of loan and salary advance. Indeed owing to his low financial position, the appellant in July 1973 requested the Mbeya Cooperative Union for a shs. 950/- loan for the maintenance of his house but his application was turned down because he was already saddled with other debts. Yet in December 1973 the appellant bought a motor cycle for shs. 7,007/50 and paid it off by three instalments only in a matter of just one week, telling the dealer that he got a loan from the union. Two of these instalments correspond with the withdrawals as shown in the bank account and the bank pass book of A. A. Ally. Thus on 11.12.1973 both the account and bank books show a withdrawal of shs. 1,000/- and on the same day the appellant paid shs. 1,000/- as initial deposit for his motor cycle. And on 17/12/1973 there is a withdrawal of shs. 4,000/- while the appellant on the same day paid shs. 3,400/- as a second instalment for the motor cycle. There is further correlation between the next and last instalment and the encashment of the cheque (Exhibit G) which was made payable to the distribution department in exchange for hard cash. The said cheque (Exhibit G for shs. 2,955/-) was exchanged for cash on 17.12.1973 and on 18.12.1973 the appellant paid shs. 2,207/50 as final instalment for his motor cycle.

The appellant in his defence vehemently denied the charge. While he admitted to have signed some of the payment vouchers he denied to have written any of the cheques in question. He sought to show that at the material time his financial position was sound in that he had more than sks. 18,000/- in hard cash when he left Tabora on transfer to Mbeya in around June 1973. He completely denied any suggestion that the bank pass book bearing the name of A.A. Ally was found in his house, and he denied operating any account in that name. He levelled a lot of criticism on the procedure adopted by the police in searching his house, for instance, by not calling the local ten cell leader to witness the search and by not asking his wife to sign on the list of things recovered during the search. He called his wife who supported him on the allegation that the bank pass book was not found in their house and that the conduct of the search by the police was unprocedural.

He complained further that only his fellow employees were called to give evidence as to his handwriting on the payment vouchers and the cheques. In his opinion such evidence was useless, and that a handwriting expert should have been called. Indeed he stressed that evidence of such handwriting expert was most essential especially as to the handwriting of the person operating the account of A. A. Ally since that handwriting was not identified by any prosecution witness.

On the whole the appellant took the view that since the union did not maintain any list of permanent transporters, it is possible that A. A. Ally was one of the transporters who rendered services to the union and was duly paid for them even though his identity cannot be established. In support of this contention he observed that the payments to A. A. Ally were processed and checked by a number of people. These included the accounts clerk who prepared the payment vouchers, the appellant himself who authorised payment by signing the payment voucher, the distribution manager who further authorised payment by counter-signing the

payment voucher, and the three signatories, that is, the Chief Accountant, the General Manager and the Regional Cooperative Officer who signed the cheques. Thus the appellant contended that if the payments were bogus they could not have passed through all these persons without being detected. In this connection he observed further that the chief accountant was not called as a witness and contended that if he were called he would confirm the view that the payments were genuine. The appellant concluded by saying that the whole case was a frame up. P.W.2, the general manager and P.W.9, the distribution manager, were determined to ruin the people from Musoma generally and the appellant in particular, while P.W.8, the accounts clerk sought to put the appellant in trouble so that he could succeed to his post.

The appellant filed a memorandum of appeal containing 17 grounds and when he appeared in person to argue the appeal he filed many more additional grounds such that it took two solid days to hear his appeal. All the grounds of appeal, however, were essentially a repetition of his defence at the trial and they raised nothing new really.

The learned trial magistrate after evaluating the evidence for both sides accepted the prosecution version and found the case against the appellant proved on all the counts. After a careful study of the record, I am of the view that the magistrate's conclusion was justified except on count 14 as I shall show later on.

The most important piece of evidence in the whole case is the possession of the bank pass book in the name of A. A. Ally. The trial magistrate held that it was found in the drawer at the appellant's house and in my opinion he was titled to hold so. For, like himself, I can find no substance in the appellant's allegation that P.W.2, 8 and 9 were determined to ruin him; there is nothing in the evidence to support such allegation. Equally unfounded is the appellant's further allegation that these witnesses conspired with the police officers who searched his house and the civilian witness (P.W.12) who witnessed the search to plant the bank pass book in his cupboard. Once again there is nothing in the evidence to support such a suggestion. I could find no ground whatsoever on which to reject or even to suspect the evidence of the police officer (P.W.1) and civilian witness (P.W.12) that the book was found in the appellant's cupboard. I am therefore satisfied that the appellant's allegation on this point was rightly rejected.

Once it is established that the pass book was found in the appellant's cupboard or possession, it follows that it was the appellant who was operating the bank account in the name of A. A. Ally using this pass book. That is the only reasonable conclusion to be drawn because otherwise it is not apparent for what purpose he was keeping that book. Indeed this conclusion is supported by the fact that the withdrawals on 11.12.1973 and 17.12.1973 as shown in the pass book correspond with the dates on which the appellant paid instalments for the purchase of his motor cycle. Such coincidence cannot have been merely fortuitous, rather it supports the view that the appellant was using that book to operate the account in the name of A. A. Ally, and to use the money to transact his businesses. But since the appellant confirms that he does not know any person by the name of A. A. Ally then it means that A. A. Ally is a fictitious person, and the trial magistrate was justified in so holding. It follows further that convictions were

inevitable because the writings on the payment vouchers and the cheques relating to the fictitious person were forgeries and the act of taking or receiving monies under such a name amounted to theft.

In the light of this most, if not all, of the appellant's contentions necessarily break down. For instance, his complaint that the chief accountant was not called as a witness cannot be of much avail because even if he were called he could not derogate from the finding that the bank pass book was found in the appellant's possession and the conclusions that follow from there. Similarly the appellant's contention that no handwriting expert was called is neither here nor there. Because once it is established that the appellant was operating the bank account in the name of A. A. Ally, it matters not whether he was using his own hand or some one else's hand to do the writing. Again since the appellant cashed or deposited the cheques into the account (A. A. Ally) operated by himself, then he must know those cheques and the relevant payment vouchers were processed until the cheques eventually reached him. This is more so because he was himself one of the persons concerned with the processing of payments in the distribution department, and in such circumstances it is, in my opinion, impossible to see how the cheques could find their way into his possession without himself knowing how they were processed.

I would like at this juncture to say a word about the system of checking payments in the appellant's office. The evidence shows that while some cheques were made payable to A. A. Ally, the supporting documents relate to another name. For example, a cheque was drawn in favour of A. A. Ally but the supporting documents relate to one A. Sinagi. Yet the payment was checked and duly passed by all the officers concerned including the general manager and the regional cooperative officer. To say the least, this was most unfortunate. Because the regional cooperative officer (P.W.10) claimed that he would not sign a cheque if the supporting documents did not relate to it. On the other thand the general manager (P.W.2) stated that he would check the payment only when he was suspicious, otherwise he simply signed the cheque relying on the head of the section to have done the necessary checking. It is quite clear from all this that there was no effective checking of payments in the distribution department. Had the officers concerned been more diligent in their duty of checking, at least some of the losses could be avoided. But this does not make the case against the appellant any less. Because although these officers for one reason or other, passed the payments wrongly, this does not make the appellant any less liable for receiving the payments so irregularly passed, so long as the payments themselves were unlawful or illegal. In fact, the impression I get from reading the record is that the appellant exploited this weakness, of absence of any effective check system, to have the cheques processed and passed as they were and to use them as he did. That being so, it is immaterial, in my opinion, whether he used his own hand or someone else's to write the payment vouchers or the cheques in question.

I therefore think that convictions for forgery and theft were justified except, as indicated earlier, that on count 14. On that count the appellant was charged with forging a payment voucher purporting to show that one H.N. Shah was entitled to a payment of shs. 2,955/- for transporting salt. But H. N. Shah

testified that he rendered services to the union for which he had not received payment despite repeated demands. In that case therefore the charge cannot stick because since the prosecutions themselves confirmed that H.N. Shah was entitled to payment, then I can see no falsehood about the payment voucher authorising payment to him. The charge could succeed only by showing that H. N. Shah was to entitled to the amount as stated in the payment voucher or any part thereof, bu such was not the case. I am therefore satisfied that the charge on that count was misconceived and accordingly the conviction and sentence relating to it cannot stand and are set aside.

The learned trial magistrate criticised the framing of the forgery counts in that they were based on s.337 of the Penal Code which is a punishment section instead of being laid on s.335 which creates the offence. At the hearing of the appeal the appellant took up and stressed on this point contending that since the charges were based only on the punishment section, it meant in effect that there were no charges before the court on which the convictions could be said to be based. The magistrate after pointing out this apparent irregularity went on to say that the error did not amount to a miscarriage of justice. In using the expression "did not amount to a miscarriage of justice" it would seem that he was invoking the provisions of s.346 of the Criminal Procedure Code in order to say that the error was curable. If that is so then he was in error because the provisions of that section can be prayed in aid only by a court exercising appellate or revisional jurisdiction, not original jurisdiction as was the case here. But that apart, what the magistrate said was in itself correct because the particulars of offence in each count made it abundantly clear what the charge against the appellant was, and the appellant could have been under no misapprehension about it whatsoever.

But it would seem that the prosecution were not, in fact, wrong in basing the charges under the punishment section because what they did is sanctioned by the law. Section 138 of the Criminal Procedure Code provides,

> 138. The following provisions shall apply to all charges and in formations and, notwithstanding any rule of law or practice, a charge or a information shall, subject to the provisions of this code, not be open to o jection in respect of its form or contents if it is framed in accordance with th provisions of this code.

The Second Schedule to the Criminal Procedure Code is based on this section a it sets out specimen charges or informations. In that schedule it is shown that charge of forgery, where the document involved is a will, can be brought und s.338 of the Penal Code which is a punishment section without any reference s.335 of the Code which creates the offence of forgery. Thus by analogy it wo seem that the charges in the present case, where the documents involved are specified, could properly be brought under s.337 which prescribes general puni ment for forgery.

And lastly, the learned trial magistrate used another expression which te to suggest that he shifted the onus of proof onto the defence. Thus at one stag his judgment he said,

> Turning to the evidence of the accused, I find that he has never tendered any evidence just on a balance of probabilities to show that A. A. Ally was not a fictitious person.

At another stage he again said,

> It is on my view that the accused has failed to give evidence only on a balance of probabilities to make him cleared of the charges ....

The reading of these two passages gives the impression that the accused had a duty to give evidence on a balance of probabilities which duty he failed to discharge.

But it is elementary in criminal practice that the burden is on the prosecution to prove their case against the accused, and the standard of proof is one beyond a reasonable doubt. In few cases only does that burden shift on to the defence, for instance, where the accused raises the issue of insanity in his defence or where the statute specifically places that burden on him. In such cases the onus is on him to prove the particular issue involved. But the standard of proof is not one beyond a reasonable doubt; it is one merely on a balance of probabilities which is lower than the former. Thus in the present case the expression "on a balance of probabilities" was therefore an error. It should be stressed that under our law as it stands today no duty is cast on the accused to prove his innocence. His innocence is always presumed until the contrary is established by the prosecution. So that even where the accused chooses to say nothing in his defence, as it sometimes happes, the magistrate cannot automatically convict. He must consider the evidence as adduced by the prosecution to see if it is sufficient to sustain a conviction. If it is, then he can convict, but if it is not then he must acquit even though the accused said nothing in his defence. In these circumstances therefore the magistrate should have directed himself by using words to the effect that in his opinion there was nothing in the accused's defence or in the evidence as a whole which raised any reasonable doubt as to the guilt of the accused. I am also satisfied that his failure to direct himself properly did not occasion any failure of justice because had he done so he would necessarily have come to the conclusion which he did.

Having upheld conviction on all the counts except count 14, I now come to consider the issue of sentence. The appellant was sentenced to a substantive term of five years' imprisonment. This is the minimum punishment prescribed under the Minimum Sentences Act. However, the offences were planned and carried out very skilfully, and they were not easily detectable. Indeed, had the bank pass book not been discovered on time, the appellant would have drawn all the money in the fictitious account and then throw away the book which would be the end of the matter and he would not be discovered. I am of the view that a minimum sentence would not be appropriate for offences like these which were planned and carried out with maximum skill. Again the offences were committed systematically over a period of time. The court cannot have sympathy for a person who consciously engages in a systematic criminal conduct as the appellant did.

Furthermore, the amount involved (shs. 25,907/-) is quite considerable. But what is even more important is that there is at present a public appeal throughout

this country to wedge a war against persons who steal from such institutions as the appellant did because such thefts are increasing at an alarming rate and are seriously undermining the economic development of the country. I think it would not be consonant with such appeal to impose just the minimum sentence prescribed.

In all the circumstances I think that a stiffer sentence is called for to meet the gravity of the situation. Accordingly the sentence on count 16 for stealing by servant is enhanced from 5 years' imprisonment to 8 years' imprisonment. This sentence is to run concurrently with the sentences on the other counts which are not disturbed.

The trial magistrate made a compensation order which is somewhat confused. And in order to avoid any possible doubt it is accordingly ordered as follows:- The balance of shs. 10,592/- now standing to the cridit of A. A. Ally (fictitious) is to be forfeited to the liquidator for the Mbeya Co-operative Union, and the relevant bank pass book is also to be handed to such liquidator. The shs. 800/- which was recovered from the appellant's house also is to be forfeited to the said liquidator. Since the appellat stole a total of shs. 25,907/- this leaves a balance of shs. 14,515/- owing from him. The appellant therefore is to compensate the union in this sum. The magistrate ordered the appellant to pay the compensation after finishing serving his sentence. But this court has said time and again that there is no justification whatever for such a direction. Such order for compensation should be made to take effect immediately it is made. One of the reasons for this is that the appellant may have property or valuable assets even though he is in prison. Now, to direct that he should not compensate the victim until he finishes serving the prison term amounts to compelling the victim to postpone the enjoyment of his property for such a term as the appellant remains in jail. Quite clearly there can be no justification for thus denying the victim the enjoyment of his labour and toil. But what is even worse is that an unscrupulous prisoner who has property may easily use such a direction to defeat the claim of his victim by disposing of the property while he is in prison. For, so long as there is an order that compensation is payable after completion of the prison sentence the victim cannot intercept to save the situation by seeking to enforce the compensation order in his favour, and to the extent that is so he is clearly prejudiced. The courts should therefore refrain from making this sort of direction whose only effect is to prejudice the victim of the offence. Accordingly, it is directed that the compensation order against the appellant for shs. 14,515/- is to take effect immediately, and once again the money is to be paid to the liquidator for the Mbeya Co-operative Union.

In the result the appeal is allowed to the extent that the conviction and sentence on count 14 are set aside and the substantive sentence is enhanced from 5 years' imprisonment to 8 years' imprisonment.

Appeal allowed in part.
Sentence enhanced.

JOSEPH LUPOGO v. REPUBLIC

[HIGH COURT OF TANZANIA AT DAR ES SALAAM (Kisanga, J.)]

CRIMINAL APPEAL 107 OF 1977

Criminal Practice and Procedure — Charge — Accused found with a number of pistols — Whether charge under National Security Act, 1970 or Arms and Ammunition Ordinance (Cap. 223).

National Security — Being in possession of a number of pistols—Whether a matter affecting the security of the State.

National Security — Evidence — Burden of proof under s.8(1) National Security Act 1970.

Evidence — National Security Act 1970 — Section 8(1) — Burden of proof.

Criminal Practice and Procedure — Right of accused to address court after examining defence witness (ss. 208, 281 and 163 Criminal Procedure Code).

The appellant was convicted of being in unlawful possession of offensive weapons contrary to s. 8(1) of the National Security Act, 1970 and was committed to the high court for sentencing. Meanwhile he appealed against his conviction.

On appeal he argued that he ought not be charged under the National Security Act but under the Penal Code, because being in possession of pistols was not a matter affecting state security. The appellant further argued that the prosecution failed to prove that he had the pistols for any unlawful purpose. The learned high court judge also considered the right of an accused person to address the court after examining a defence witness.

Held: (i) where a person is found with offensive weapons, whether the charge is to be brought under the National Security Act, 1970 or Arms and Ammunition Ordinance, Cap. 223 will depend on the facts and circumstances of each case;

(ii) appellant's possession of the pistols and the circumstances surrounding such possession amounted to an activity which was prejudicial to the interests of the Republic or incidental to or connected therewith;

(iii) the charge was rightly brought under the National Security Act;

(iv) under s.8(1) of the National Security Act, 1970 once the prosecution has proved possession, the burden shifts on to the accused person to prove that his possession is lawful.

(v) when ss. 208, 281 and 163 of the Criminal Procedure Code, Cap. 20, are read together they mean that if an accused person calls and exmines a defence witness, then the accused is entitled to address the court first and the prosecutor has the right of reply.

Appeal dismissed.

No cases referred to.

Appellant present, unrepresented.

B. Lutainduka, for the Republic.

November 12, 1977. **KISANGA, J.:** The appellant Joseph Lupogo and three others were jointly charged on two counts of stealing by public servant contrary to ss. 270 and 265 of the Penal Code, and being in unlawful possession of offensive weapons contrary to s.8(1) of the National Security Act. His co-accused were acquitted on both counts. He was acquitted on the first count but was convicted on the second count and was committed to this court for sentence vide s.5A of the Criminal Procedure Code; in the meantime he appealed against his conviction.

The facts of the case are short and simple and they may be stated as follow:- The appellant was employed as a driver by the T.P.D.F. and was attached to the Special Duty Unit of the T.P.D.F. The police received information that some members of the T.P.D.F. wanted to sell arms and so they arranged a trap in which their informer was to pose as a buyer of such arms. Then on the material night the police took their positions while the informer went to the appellant's home to transact the business. It was further agreed that after the informer has concluded the deal he should give a certain signal to the police signifying the presence of the arms. Acting on such signal as given by the informer, the police arrested the appellant and went to search his room. They called in the ten cell leader, who also happened to be the appellant's landlord, to witness the search. In the course of the search the police came to a locked cupboard and they asked for the key to it but the appellant said he did not have it. The police threatened to force it open, whereupon the appellant produced the key. On opening the cupboard the police found in it 39 pistols and the appellant, on being asked, said he knew nothing about them.

In his defence the appellant vehemently denied the charge, claiming in effect that the pistols were planted in the cupboard by the police. After due consideration of that defence, however, the learned trial magistrate rejected it, and I am satisfied that he was entitled to do so having regard to the overwhelming evidence which was before him.

The appellant has filed four grounds of appeal. The first two raise points of law while the remaining two raise points of fact. In the first ground the appellant complains that he was wrongly charged under the National Security Act instead of under the Penal Code. I should point out that I perused through the Penal Code in an attempt to find a provision under which the appellant might have been charged on the facts as disclosed but without success. I think that what the appellant meant here was not the Penal Code but the Arms and Ammunition Ordinance (Cap. 223); that was the nearest enactment that I could find. In order to bring out the appellant's argument very clearly, I propose to set out below the relevant provision of the two enactments. Section 8(1) of the National Security Act under which the appellant was charged says,

> 8(1) Any person who without lawful authority or excuse, the burden of proof whereof shall lie upon him, has in his possession or is in or upon any premises occupied by him any offensive weapon or any offensive material shall be guilty of an offence and liable on conviction to imprisonment for a term not exceeding ten years.

The provision under the Arms and Ammunition Ordinance which I thought was relevant is s. 13(1) which provides,

> 13 — (1) Except as may be allowed by regulations, no person shall possess, except in a public or private warehouse, or use or carry any firearm or ammunition unless in possession of a licence (in this ordinance referred to as an arms licence) in respect of such firearm and ammunition.

Section 31(2) of the Ordinance provides that any person who contravenes the above section shall on conviction be liable to imprisonment for a maximum of one year or to a fine not exceeding shs. 4,000/- or to both. It is quite clear therefore that the appellant would wish to have the charge brought under the Arms and Ammunition Ordinance in order to take advantage of the light sentence imposed under that ordinance.

But his reason for saying that the charge was brought under the wrong act is this. He says that the purpose of the National Security Act, under which he was charged, is to safeguard the security of the State. But, he contends, the mere finding of pistols in his room cannot be construed as a matter affecting the security of the State. Unfortunately the trial magistrate did not consider this submission because the appellant was not given opportunity to raise it even if he had wished to do so. I shall comment on this aspect later on but for the moment I wish to acknowledge that the point raised by the appellant is not an easy one to resolve. Because it seems that on the face of it the charge could be brought under the relevent provisions of either the National Security Act or the Arms and Ammunition Ordinance as set out above, but the question is how to determine which of the two is actually to apply.

Quite clearly the answer to this question cannot be a simple one. Mrs. Lutainduka, learned state attorney appearing for the Republic, submitted that whether the charge is brought under one or the other of the two provisions will depend on the facts and circumstances of each case. With reaspect I agree, and I do not think that it would be practical to lay down a hard and fast rule about it. A glance through the preamble to the National Security Act appears to support this view That preamble reads,

> An act to make better provision relating to State Security; to deal with espionage, sabotage and other activities, prejudicial to the interests of the United Republic; and for purposed incidental thereto or connected therewith.

Unfortunately it has not been possible to refer to copies of the Hansard because at the time of drafting this judgment I am away from Dar es Salaam. Now, looking

at the preamble, while it is clear that the Act is designed to deal with matters of State Security, the term State Security is not defined anywhere in the Act. The preamble merely mentions some aspects of State Security, namely, espionage and sabotage but then it goes on to use a very wide expression, "... and other activities prejudicial to the interests of the United Republic". Yet it does not stop there. It goes on to say that the act is designed also to make provision for purposes incidental to or connected with State Security which again is a very wide thing. Thus it is apparent that the content of State Security is not specified. In other words the content of State Security is not static, and there is no fixed list of matters which constitute it. Undoubtedly the legislature deliberately left the position fluid in order to allow for flexibility and adaptability of the statut to changing circumstance. For, the society is not static, and as it develops and passes through defferent times, certain matters become aspects of State Security which were not so before and thus changing the content of State Security. In such circumstances the duty cast upon the courts becomes explicit; they have to construe a particular matter at any given time and say whether or not it is an aspect of State Security or a matter incidental to or connected therewith. Thus the question which arises squarely in relation to this appeal is whether possession of a large number of arms (39 pistols) by the appellant was a matter which was within the spirit of the National Security Act, as epitomised in the preamble, so as to warrant bringing the prosecution for the offence under that Act.

It is common knowledge that in recent years there has been in this country a big wave of offences involving the use of firearms. In some cases bandits have broken into the premises of shopkeepers and stolen money and goods while killing or seriously injuring the owner of the watchman. In other cases employees including police escort, when taking the employer's money to or from the bank, have been ambushed and wounded while the bandits made away with the money. This is to mention only very few examples but instances of offences involving the use of firearms are abundant.

One of the primary duties of the State is to maintain peace and order in the country. This includes ensuring the safety of the person and property of its citizens, and also the safety of its own property and that of various institutions throughout the country. So that the rising wave of offences involving the use of firearms is clearly a matter of great concern to the State because such a wave affects the safety of life and property and hence development generally of the country. To illustrate this point one only needs to recall the last Budget Session of Parliament when members of parliament raised this issue and inquired into how the bandits were getting the firearms with which they committed the offences and how that would be stopped, and in reply the government, *inter alia*, made it clear that they were constantly endeavouring to find means of combating this unhappy situation — one of the ways of doing so being to try to prevent firearms from getting into the hands of bandits or unauthorised persons. It follows that the State has a great interest in maintaining peace and order in the country, and anything which frustrates the attainment of that goal or which contributes to or promotes the existing rising wave of offences involving the use of firearms is clearly an activity

which is prejudicial to the interest of the State in maintaining such peace and order in the country.

The appellant was in possession of some 39 pistols and was prepared to release them, by selling them, to unauthorised members of the public. Nobody knows how those unauthorised members of the public would use the pistols. The appellant could not give any assurance that such unauthorised members of the public would not use the pistols to commit offences, because on the evidence all that the appellant was interested in was the money and he was not concerned with how the pistols would be used. Nor could the Republic prudently assume that the pistols would not be used by such unauthorised persons to commit offences. In my opinion, therefore, the appellant's conduct amounted to an activity prejudicial to the interest of the Republic, because, at least, it defeated or frustrated the efforts and endeavours of the Republic to stop or prevent firearms from getting into the hands of bandits or unauthorised persons lest such persons used such arms to commit offences and thus disturb peace and order in the country. Even if I were to hold that the appellant's conduct did not amount to an activity prejudicial to the interest of the Republic, I would certainly hold that it was an activity which was incidental to or connected therewith for exactly the same reason as advanced above. Whichever view I take, however, it is clear that the appellant's conduct comes within the spirit of the National Security Act. The interest of the Republic in maintaining peace and order is clearly within the purview of the National Security Act which is much wider in scope then the Arms and Ammunition Ordinance which merely requires possession of an arms licence. Accordingly I hold that the charge was rightly brought under the National Security Act.

In the second ground of appeal the appellant says in effect that the prosecution failed to prove that he had the pistols for any unlawful purpose; such as unleashing a war or organising a large scale armed robbery. But the prosecution had no obligation to do so. The provisions of s.(1) of the National Security Act under which the charge was laid were set out at the beginning of this judgment. Upon a glance through those provisions it is quite clear that the only duty cast upon the prosecution is to prove possession. Once the prosecution has done that the burden shifts on to the appellant to prove that his possession was lawful. I should add, however, that the appellant need not prove that issue beyond a reasonable doubt; it is enough if he proves it merely on a balance of probabilities. But the appellant did not attempt to give any explanation to justify his possession of the pistols — indeed he denied any knowledge of them. In those circumstances, he failed to discharge the burden which was on him. Not only that. As I held before, his possession of the pistols and the circumstances surrounding such possession amounted to an activity which was prejudicial to the interests of the Republic or incidental to or connected therewith. He has said nothing, and there is nothing in the evidence, to rebut that view. In the light of these matters I can see no merit at all in his complaint.

The third and fourth grounds repeat his defence at the trial that the case was a frame up but, as I said before, this was adequately dealt with by the learned trial magistrate and I would have nothing to add. In the third ground also there are allegations of torture, but I propose to deal with that aspect later on.

At the hearing of the appeal I allowed the appellant to argue an additional ground. He said that the police did not call the informer who was said to have posed as a buyer of the pistols from him. He contended that such failure was fatal because it goes to show that it is that informer who planted the pistols in the appellant's cupboard using some duplicate key, and the prosecution were scared to call him because he would say so. The appellant had raised this point at the trial and the police made it clear that they were prepared to call the informer if so required by the court. It seems however, that the court did not consider the evidence of such informer essential and so the informer was not called. I cannot say that the magistrate was wrong in taking that view. Because the appellant was convicted on the evidence of the police officers who arrested him and searched his house, and the ten cell leader who witnessed the search. Once the magistrate believed their evidence, as he did, that evidence was sufficient to found the conviction and it was not necessary to call the said informer even though the police were prepared to disclose him. I have given thought to the appellant's allegation that it is this informer who planted the pistols in his cupboard using some duplicate key but I could find nothing to support that view. For, to say the least, if the appellant was unaware of the pistols in his cupboard, why did he at first refuse to produce the key to that cupboard and did so only after the police threatened to break it? Certainly such refusal can only be consistent with the view that he knew the pistols to be in the cupboard and he was desperately trying to prevent their discovery. I would accordingly dismiss this ground of appeal as having no substance.

There is one point of procedure which the appellant has not raised but which I think is worth mentioning. The appellant gave evidence in his defence and called one defence witness. After that he closed his case and asked to address the court but he was refused. In refusing his application the trial magistrate stated,

> I find, after considering the circumstances of the case, that there is no need to make any submission. The accused would like to say something concerning the evidence but as I said the court will see to it. Application refused.

The learned magistrate was clearly in error. Section 208 of the Criminal Procedure Code provides that,

> 208. The prosecutor or his advocate and accused or his advocate shall be entitled to address the court in the same manner and order as in a trial under the provisions of this code before the High Court.

And s.281 of the code relating to trials before the High Court says,

> 281. If the accused person, or any one of several accused persons, adduces any evidence, the prosecutor shall be entitled to reply subject to the provisions of s. 163.

Section 163 merely elaborates on the circumstances in which the prosecutor's right of reply is exercisable. When the three sections, that is, 208, 281 and 163 are

read together they mean that if an accused person calls and examines a defence witness, then the accused is entitled to address the court first and the prosecutor has the right of reply. In the present case, therefore the appellant was entitled to address the court and the prosecution was entitled to reply. Consequently, the refusal of the appellant's application amounted to a denial of a right which he had under the law. The magistrate's view that there was no need for the appellant to address him on the evidence because he himself would see to that was patently wrong. Because, to say the least, the appellant might have a point which is not so apparent from a mere reading of the evidence. An example of this is the appellant's submission on appeal that the charge was wrongly brought under the National Security Act instead of the Arms and Ammunition Ordinance. The magistrate did not see this point. Yet had the appellant been given opportunity he might have raised it and he would be entitled to have the magistrate's decision on it. Whatever reasons there might be, I think that the accused should always be allowed to exercise his right to speak which he has under the law if he so chooses. This is one way of ensuring that the accused has had a fair trial in the sense that he had fully exercised his right to be heard. It would also be consistent with the principle that justice should not only be done but should also be seen to be done.

But although the magistrate thus erred, I am satisfied that the error did not occasion a failure of justice. Because whatever points the appellant was unable to submit before the trial magistrate for his consideration, he had ample opportunity of submitting them on appeal, and indeed he adequately did so during the two days this appeal lasted.

In the result I am of the view that the appellant's conviction is amply justified, having regard to the evidence and all the circumstances of the case. That conviction is accordingly upheld and the appellant's appeal against it is dismissed.

The offence committed was a very serious one. The large number of pistols which the appellant had in his possession and which he was prepared to release into the hands of unauthorised members of the public constituted a great threat to the peace and security of life and property of the citizens of the United Republic and the property of the United Republic itself including that of the various institutions in the country. This is particularly so at a time when there is a rising wave of offences involving the use of firearms. Viewed in that light, I think that a severe sentence is called for. Accordingly the appellant is sentenced to eight (8) years' imprisonment.

That would have disposed of the matter but there are one or two points which appear to warrant a mention. Both at the thrial and at the hearing of this appeal the appellant made allegations that he was subjected to acts of torture during the investigation into his case. He has mentioned those alleged acts of torture, and if it is true that such acts were committed, this would be a matter warranting consideration. The appellant has also complained of unlawful confinement during the period between 17.9.1975 and 20.12.1975. He claims that after his arrest on 17.9.1975 he was totally confined in a secret place for three months without being taken to court and without even his family knowing where he was. This state of affairs continued until 30.12.1975 when a preventive detention order was served upon him and he was then removed to Ukonga prison. He was

taken to court only on 18.11.1976 — some 14 months after the date of his arrest. Once again if this allegation is true, I think it is a matter which causes some anxiety and concern. In the circumstances I propose that a copy of the proceedings in this case be submitted to the Director of Public Prosecutions for his information and consideration whether to direct investigation into the allegations or for any other action which he may think fit.

Appeal dismissed.

DR. ASHWINKUMARI CHAMPSI KESARIA *v.* MRS. KUNDAN ASHWINKUMAR C. KESARIA (KISANGA, J.)

DR. ASHWINKUMARI CHAMPSI KESARIA *v.* MRS. KUNDAN ASHWINKUMAR C. KESARIA

[HIGH COURT OF TANZANIA AT DAR ES SALAAM, (Kisanga, J.)]

MATRIMONIAL CAUSE 7 OF 1976

Family Law — Divorce — Domicil — Abandonment of domicil of origin — Acquiring domicil of choice — Burden of proof — Evidence — Intention to live permanently — Standard of proof — Court jurisdiction s. 77(3) of Law of Marriage Act, 1971.

Petitioner field a petition seeking to divorce the respondent. The parties are Tanzanian nationals of Indian origin who are resident in England. The petitioner was born in Tanzania and obtained part of his education in this country. He later went to England where he did his advanced level certificate and did one year pharmacy course. Thereafter he proceeded to Nairobi University College to study medicine. After graduation the petitioner came back home and hurriedly married the respondent in April 1975 and they went together to England where the petitioner is pursuing a post-graduate course in Surgery. The respondent raised a preliminary objection that the court had no jurisdiction as the applicant was domiciled in England.

Held: (i) the domicil of a person broadly means the country in which a person has his permanent home;

(ii) where it is undisputed that one's domicil of origin is Tanzania the burden of proof is on the one who alleges to prove that the person has abandoned that domicil and acquired a domicil of choice;

(iii) evidence of express declaration or which may be inferred from acts, events or circumstances in the life of a person is relevant in ascertaining his intention to live permanently in the domicil of choice;

(iv) in discharging the burden of proof on allegation of change of domicil the standard of proof required is higher than on mere balance of probabilities;

(v) to discharge the standard of proof one needs to prove both that the petitioner formed an intention to live permanently out and it was coupled with actual residence in that country.

Objection overruled.

Cases referred to:

(1) *Kanji Navanji Lakhani v. Salim Muhamed bin Name*, [1960] E.A. 358.
(2) *Gulbenkian v. Gulbenkian*, [1937] 4 All E.R. 618.
(3) *Field v. Field*, [1964] E.A. 44.

M.A. *Lakha*, fot the petitioner

K. L. Jhaveri, for the respondent

June 29, 1977. **KISANGA, J.:** This is a case in which the petitioner is seeking to divorce his wife. Both parties are Tanzanian nationals of Indian origin. They contracted the marriage in question in Tanzania but they later moved to England where they are now residing. Before the hearing commenced Mr. Jhaveri, appearing for the respondent, raised an objection that this court has no jurisdiction to entertain the petition, his ground being that the parties were domiciled in England. Whereupon I granted leave to have the matter argued as a preliminary point. The petitioner was represented by Mr. Lakha.

The petitioner's case was to the following effect:

The petitioner who gave evidence testified that he was born in Tanzania in 1947, and he obtained his education in this country, up to School Certificate 'O' Level. He then went to England in 1964 where he obtained his 'A' Level Certificate and did one year in Pharmacy. Then in 1968 he secured admission into the then Nairobi University College where he studied and graduated as a doctor in 1974 and completed his internship in 1975. When he was doing his internship he was trying to secure a place in the U.K. to do a post-graduate course in Surgery leading to the degree of F.R.C.S. He was also making travelling arrangements to the U.S.A. for a similar purpose.

On completing his internship in March 1975 he came to Tanzania on 2nd April, 1975, where he found arrangements in progress being made for the marriage between himself and the respondent. The marriage was arranged by the families of the petitioner and the respondent. The parties got engaged hurriedly on 13th April,

1975, and they married on the Registrar's Special Licence on 25th April, 1975. In his application to the registrar the petitioner said as a reason for the Special Licence that the parents of both himself and the respondent were anxious to have them married as soon as possible as the petitioner was proceeding to the U.K. for further studies without delay. In the meantime the petitioner received from the British General Medical Council a letter dated 23rd April, 1975, informing him that as from 1st June, 1975, there would be a change in the regulations governing temporary registration for doctors who qualified outside the U.K. This fact affected the petitioner because he had to be registered temporarily in the U.K. to work as a doctor at a hospital which offered teaching facilities for the F.R.C.S. degree course. Thus on receiving this information from the British General Medical Council the petitioner sought to leave in a hurry for the U.K. in order to beat the dead line because registration under the new regulations starting from 1st June, 1975, was made more difficult.

Therefore, the petitioner and the respondent left Tanzania for Nairobi on 5th May, 1975. They had received wedding presents from relatives and friends but they did not carry any of those with them; they left them all behind with the petitioner's mother — some of the gifts were exhibited in court. In Nairobi they stayed with the petitioner's friend for only four or five days. During such stay the petitioner obtained a re-entry pass into Kenya for both himself and the respondent, made inquiries at the U.S.A. Embassy about his application for a visa into the U.S.A. and bought return tickets to London for both himself and respondent. The tickets were for a chartered flight which made them a lot cheaper than those of an ordinary service flight. The petitioner maintained bank accounts in Dar es Salaam and in Nairobi. That of Dar es Salaam had shs. 40/- only since 1970 and that of Nairobi had a balance of about shs. 15,500/- being the money which the petitioner had earned during his internship period. He used some of this money to purchase tickets and a few other things, and on his departure to London he had run down the account to about shs. 2,500/-. While he was in London he used some of that money to settle a claim by his previous employer, the Kenya Ministry of Health, and at the moment there is a balance of only about shs. 500/-. During his first days in England he continued to make enquiries about his visa into the U.S.A. While he was waiting for the visa he also tried to register as a doctor in the U.K., but after he secured his registration on 20th July, 1976, he no longer bothered about the visa into the U.S.A. He has a work permit which is renewable from time to time depending on the duration of the job which he is doing in connection with his studies. He has got no house or other immovable property in England, he gets his accommodation at the hospital where he is working. He is earning about £190 per month and he is operating an external current account which enables him to get his money out of the country easily without having to seek permission from the Central bank.

The petitioner's father died in 1969 but his mother is living. She has a house in Dar es Salaam and the petitioner has retained a room in that house. The petitioner's two eldest brothers are residing in Dar es Salaam while other two elder brothers are residing in England from about 1975. The petitioner stated that his plan was to pursue a course of studies anywhere leading to the F.R.C.S. degree

and to come back to Tanzania on a successful completion of it. As a doctor he has not registered in this country but he intends to do so on his completion of the present course. He denied vehemently any suggestion that he intended to settle in any country where he got a place to study for the F.R.C.S. degree.

The respondent's account was similar in many respects except on the essential issue as to the petitioner's intention on leaving Tanzania. She testified that shortly before their engagement the petitioner disclosed to her that he intended to live permanently in Kenya, U.K. or U.S.A. When the respondent stated that she preferred to live in the U.K. because her sister was there, the petitioner concluded that after their marriage they would live there permanently, and consistent with that view when they were leaving the country after their wedding the petitioner asked her to pack all her clothing and not to leave any behind. There are a few other points on which the respondent's account differs from the petitioner's. For instance, the respondent said that on leaving Tanzania they carried with them most of their wedding presents which included jewellery worth about shs. 45,000/-. According to her the petitioner had about shs. 29,000/- in his bank account at Nairobi before the purchase of the tickets, and in addition to their tickets from Nariobi to London the petitioner also bought return tickets from London to New York for both himself and herself. Again according to the respondent, when they reached London the petitioner proposed that they open a joint bank account with the Building Society which would enable them to buy a house on mortgage. The respondent added that the petitioner's intention on leaving Tanzania was to settle permanently in the U.K. and that the question of his studies was only incidental, that is, he would do the course of studies only if he got a chance. That is a short summary of the facts involving this matter.

It is quite clear that this objection is based on s. 77(3) (a) of the Law of Marriage Act, 1971. The relevant part of that section provides;-

Section 77(1) ....

(a) ...

(b) ....

(c) ....

(2) ....

(3) Any person may petition the court for a decree of annulment or a decree of divorce if he or she —

(a) is domiciled in Tanganyika; or

The domicil of a person may be defined broadly as the country in which that person has his permanent home; and any person can have only one domicil at any given moment of time. Mr. Jhaveri's contention is that the petitioner is not domiciled in this country. This follows from the respondent's allegations in her answer to the petition that the petitioner is domiciled in the U.K. If this allegation is true, then the objection must be sustained and the petition must be struck out, as a Tanzanian court would have no jurisdiction to hear it.

It is common ground that the petitioner's domicil of origin is Tanzania, and the only point at issue is whether the petitioner has abandoned that domicil and acquired a domicil of choice. For the respondent it is contended that the petitioner has abandoned his domicil of origin and has now acquired one of choice in the

U.K. The petitioner, however, vehemently denies that and insists that at no time has he ever changed his domicil of origin. Both counsel are agreed that once it is undisputed that the petitioner's domicil of origin is Tanzania, then the burden is on the respondent to prove that the petitioner has acquired a domicil of choice in the U.K. by showing that the petitioner formed an intention to live permanently in the U.K. the issue of forming such intention is one of fact which may be ascertained from evidence of express declaration by the petitioner or which may be inferred from evidence of acts, events, or circumstances in the petitioner's life. Both counsel were also agreed that there is a presumption against a change of domicil of origin and that he who alleges any such change has the burden to prove it. For these propositions both counsel referred me to Halsbury's Laws of England, 3rd Edition Volume 7 at page 18 paragraph 33 which reads:-

> Presumption of law is always against a change of domicil which must in every case be proved with perfect clearness by the person alleging it.

The author of that passage cites a number of English cases which decided this point. In addition, Mr. Lakha further referred me to a decision of the High Court of Uganda which is in line with the English authorities. That is the case of *Kanji Naranji Lakhani v. Salim Muhamed bin Name*, [1960] E.A. 358. That was case of contract involving a person whose domicil of origin was Quaiti, but who subsequently acquired a domicil of choice in Uganda, and the question to be decided was which law governed his capacity to contract, it being claimed that at the time of such contract he was a minor. In the course of his judgment Sir AUDLEY MCKISACK, C. J., said at p. 360 of the report:-

> ... the presumption of law is always against a change of domicil,

and in that case it was found that the presumption was not displaced or rebutted. Although these cases are not of Tanzanian origin, they are, however, very persuasive. I think that they are good law which may be followed with advantage by our own courts.

Once it is settled that the burden is on the person who alleges a change of domicil to prove it, the next question that arises is what standard of proof is required to discharge that burden. Generally speaking the standard of proof in civil cases has been on a balance of probabilities. There are, however, certain categories of cases where, by way of exception, a higher standard of proof is required, and it seems clear that cases involving the issue of a change of domicil of origin fall into such categories. Paragraph 33 of Halsbury's Laws of England quoted above says that a change of domicil of origin must be proved with perfect clearness by the person alleging it. The expression 'with perfect clearness' to my mind means something more than on a mere balance of probabilities. This was brought out very clearly in the English case of *Gulbenkian v. Gulbenkian*, [1937] 4 All England Reports, page 618 in which the issue of domicil arose in the course of divorce petition and in which it was held at page 628 of the report that:-

> ... the burden cast upon those who seek to aver that the domicil of origin has been superseded by a domicil of choice is exceedingly heavy.

The Court of Appeal for Eastern Africa adopted a similar approach in the case of *Field v. Field,* [1964] E.A. p.44 again involving a divorce petition and in which the question was whether the respondent had changed his domicil of origin which was in England and acquired a domicil of choice in Kenya. At page 45 of the report, the court said:-

> The change from domicil of origin to one of choice is always a serious matter and the standard required is accordingly a high one.

Thus it is clear that the burden is on the respondent wife to prove that there has been a change of the petitioner's domicil of origin, and the standard of proof required is a high one. That being so, I have now to consider whether, having regard to the evidence as adduced, that burden is discharged. To discharge that burden it must be shown that the petitioner formed the intention to live permanently in the U.K. and that such intention was coupled with actual residence in that country. These are the two essential requirements. Both requirements must be proved; proof of one only cannot do. On the other hand, once the two requirements are met, it is immaterial that the duration of the petitioner's residence in the U.K. was only a short one. In considering whether that burden is discharged in this case it must be pointed out that there was only one witness giving evidence for either side. This poses a difficult question of credibility because where the two stories are at variance there are often no good grounds, in the circumstances of this case, for preferring one to the other. The matters on which the respondent relied to prove a change of petitioner's domicil may be summarised as follows: First, there was the petitioner's alleged declaration of his intention to settle in the U.K. This, of course, was denied by the petitioner. In support of such denial the petitioner put in evidence a photostat copy of Income Tax Return Form dated 11th November, 1975, in which he had declared that he intended to remain in the U.K. only until he completed his further education. Mr. Jhaveri did not object to the admissibility of this copy of the form. But the said copy is not certified as being a true copy of the original. Furthermore, the petitioner said that he photocopied it soon after completing the original and before posting it to the Income Tax Office. I am inclined to think that not much weight should be attached to this copy. If the petitioner wanted the court to rely on it, he should seek to have it certified by the appropriate authority as being a true copy of the original. When this piece of evidence is thus discounted, there is left only the word of the respondent as against that of the petitioner and there is nothing to suggest that the respondent's story should be preferred. In this respect it is pertinent to note that according to the respondent the conversation in which the petitioner made the alleged declaration took place in the presence and hearing of the respondent's sister one Miss Vibha Tanna. Miss Tanna, however, was not called and it is not known why she was not called. In such circumstances at least there can be no ground for preferring the respondent's story to that of the petitioner.

The respondent contended that the petitioner's principal aim was to settle in the U.K. and that the question of his studying for the degree of F.R.C.S. was only incidental. This view, however, is contradicted by the petitioner's application to the

Registrar of Marriages for Special Licence to marry in which he stated, *inter alia*, that he was marrying hurriedly because he had to go for further studies without delay. This would appear to show that further studies was his principal, if not his only, aim in going to the U.K.

There was overwhelming evidence that the petitioner was educated in this country only up to School Certificate 'O' level and that from 1964 to the date of the proceedings he has been receiving education in England and Kenya. Mr. Jhaveri contended that such long absence from Tanzania was a pointer of the petitioner's intention to live permanently outside that country. For my part, however, I am not persuaded that this is necessarily so. I think that absence from a person's country of domicil, however long, cannot by itself lead to the conclusion that that person has abandoned his domicil of origin. There must be a clear intention to settle in another country, but no evidence of any such clear intention was adduced in this case.

The evidence also showed that the petitioner after his first degree, did not serve his internship in Tanzania and even after finishing his internship he did not wish to study for the higher degree in Tanzania. The petitioner claimed that he made due enquiries with the Tanzanian Ministry of Health about the possibility of serving his internship in this country but he was told that this would not be easy since he had qualified from Nairobi. He also made similar enquiries about the possibility of his doing post-graduate studies in Surgery but he was told that no such course was available in this country then. I do not believe that the petitioner made any such enquiries as he alleges. He could not produce any written communication touching on the matter, as he claims that the enquiries were made only verbally. Quite clearly, this was an important matter touching on the petitioner's future career. I do not think that the petitioner would have made only a casual and verbal enquiry about such an important matter. Furthermore, the fact that the petitioner does not know the person or persons whom he contacted for this purpose at the Ministry of Health on both occasions clearly goes to show that no such enquiries were made. For, one would expect the petitioner to know at least the actual designation of the persons whom he contacted in the Ministry. But although the petitioner is disbelieved on these points, this is not sufficient to lead to the conclusion that the petitioner intended to abandon his domicil in Tanzania. For, it is quite possible for a person to spend most or even all his student days in a foreign country or countries and then return to his country of origin on completion of his studies.

It was shown that the petitioner is not registered as a doctor to practise in this country, and Mr. Jhaveri contended that this was because the petitioner did not intend to make Tanzania his permanent home. But the petitioner said that he hopes to register as soon as he returns to this country on completion of his F.R.C.S. course, adding that he saw no point of registering any earlier. I think the petitioner's explanation is sound. Because granting that the petitioner was going overseas for further studies, one cannot see much point in his registering as a practitioner here while he would not be available to practise in fact. Furthermore, registration involves payment of a fee, but the petitioner being a student of little or no means and only recently married could ill afford such an item when there were

more pressing needs. I think in those circumstances it would not be too much to expect him to postpone such registration to some future date as he did.

Mr. Jhaveri further contended that the petitioner has got practically no property, movable or immovable, in this country. Therefore, Mr. Jhaveri continued the petitioner has got very little ties or connections with this country, and this was indicative of his intention not to make Tanzania his permanent home. I think that there is not much force in this argument. Since the petitioner has been studying all this time, one cannot expect him to have acquired any property. It is true that he maintained a bank account in Kenya but he said that this was made up of the money which he earned when working in the hospital during his internship period for one year. At the moment also he is maintaining a bank account in England, but again he said this is made up of the money which he is earning from the hospital where he is working and receiving his further training. I could find nothing unusual in the petitioner's banking his money in the country where he earned it.

There was evidence that after arriving in England the petitioner made a proposal to the respondent to open a joint account with the Building Society. According to the respondent the petitioner said that this would enable them to buy a house on mortgage but the petitioner says that he preferred an account with the Building Society because it offered a higher interest rate. He went on to say that his proposal for the joint account with the respondent was made only as an ordinary arrangement between himself and his wife, but it had nothing to do with the buying of a house. Thus the respondent claims that the petitioner was making plans to buy a house but the petitioner denies any such suggestion. Since it is only one person's word against that of another, I could find no good reason for preferring one to the other. But what is even more is this. The petitioner testified that he has a current account, and the only account with the bank in England. That account is in the external department which makes it easy to take out his money from England without having to make an application to the Central Bank. This piece of evidence was not challenged, and it was contended for the petitioner that this was a fact which negatived any allegation of the petitioner's intention to live permanently in the U.K.

Again, the respondent testified that on leaving Tanzania the petitioner asked her to take with her all her clothes as they did not know when they would be back if at all. But it would seem that nothing much turns on this because three to four years, which is the estimated duration of the petitioner's course, is a long time. It was very proper, I think, to advise the respondent to take all her clothes because otherwise they would, for one reason or another, become useless after such a long time. The respondent added that they also carried with them most of their wedding gifts including jewellery worth about shs. 45,000/-. The petitioner, of course, denied this. He said that they left behind with his mother all their wedding gifts and he produced in court some of them. Even if it is accepted that the parties took with them most of their wedding gifts including jewellery as alleged, I could find nothing unusual in that, because such gifts or items were of assistance to the parties as a young couple in their endeavour to make a living in a new country during the petitioner's period of study there.

And finally, Mr. Jhaveri contended that if the petitioner did not intend to leave Tanzania for good he would have left the respondent behind while he went alone to study in the U.K. To this I should say that perhaps that is a traditional way of life in some communities, but what the petitioner did in taking his wife with him, in the circumstances, was quite acceptable in the modern way of life and I could find no fault with it. Indeed, ordinarily one would not expect the petitioner to separate from his wife after such a short time following their wedding because to do so would amount to undue hardship for both himself and the respondent. Furthermore, one might take the view that it was in the petitioner's interest to take his wife with him who would provide companionship and comfort in his venture into a new country with all the uncertainties about his future education ahead of him.

Those were some of the most important factors relied on to prove the petitioner's change of his domicil of origin. However, I am of the opinion that whether taken individually or collectively they are not sufficient to warrant any such conclusion, especially bearing in mind the high standard of proof which is required. From the evidence as adduced it may be said that the petitioner has his eyes open, and that he may choose to settle in some other country such as U.K., U.S.A. or Kenya but it has not been proved that he has settled permanently in any one of these countries, and so long as that is so he retains his Tanzanian domicil of origin. That is to say he does not lose his Tanzanian domicil of origin unless and until he is shown to have acquired a domicil of choice in a particular country, which is not the case here.

Thus I am satisfied that the respondent has not succeeded to prove to any degree her allegation of the petitioner's change of his domicil of origin. I, therefore, rule that on the evidence as adduced the petitioner, though currently resident in England, is domiciled in Tanzania, and therefore in terms of s. 77(3) (a) of the Law of Marriage Act, 1971, this court has jurisdiction to hear the petition.

Accordingly, the objection is overruled and the case may proceed to hearing on the merits.

Objection overruled.

NIZZAR GULAMHUSSEIN *v* KURWA IDDI (KISANGA, J.)

NIZZAR GULAMHUSSEIN *v.* KURWA IDDI

[HIGH COURT OF TANZANIA AT DAR ES SALAAM, (Kisanga, J.)]

CIVIL APPEAL 1 OF 1977

Contract — Oral agreement to repair player — Parties agreed for new spares fitted the removed old parts to be handed to the owner of player — Repairer did not hand over removed old parts — Effect of such a breach on the main agreement.

Respondent sued the appellant to recover a record player which she sent for repairs to the appellant who refused to hand it over unless she paid shs. 386/- comprising of shs. 346/- total value of spare parts and shs. 40/- labour charges. Respondent refused to pay the amount on the ground that the appellant did not show her the removed old parts as agreed between them. The primary court decided in favour of the appellant. The district court reversed the primary court's decision. A further appeal was lodged with the High Court.

Held: (i) appellant did not breach the main agreement, to repair the player; but he breached the collateral agreement to preserve and show to the respondent the used parts which he removed and replaced;

(ii) if it can be established *'aliunde'* that new spares were in fact supplied to the player then the parties should be held to their respective rights and obligations under the main contract.

Judgment of district court quashed. Primary court ordered to examine the player to establish whether new spare parts were in fact fitted.

No cases referred to:

July 7, 1977. KISANGA, J.: The respondent, Kurwa Iddi, sued the appellant to recover a record player worth shs. 940/-. The Mwambao Primary Court allowed the claim but on appeal, the District Court at Bagamoyo reversed that decision, hence the present appeal to this court.

At the trial the respondent testified that her record player was out of order and so she approached the appellant to put it right instructing him specifically to repair the main switch only at an agreed price of shs. 55/- being made up of shs. 15/- the cost of an adapter which, it would appear, was necessary for the repair of the said main switch, and shs. 40/- labour charges. But when she went to collect that player she was surprised to hear the appellant demanding from her a total of shs. 386/- being the cost of a number of spare parts and labour supplied by him. The appellant had listed these spare parts on cash sale receipt No. 872 (which was later admitted in evidence) and showed their total value as shs. 346/- to which he added shs. 40/- labour charges thus arriving at the grand total of shs. 386/-. The respondent refused to pay the money because, she claimed, she did not authorize

any repairs other than that of the main switch, and also because there was no proof that the appellant did in fact fit into the player the new spares as listed.

In his defence the appellant stated that the respondent showed the player to him and asked how much it would cost to repair it but he told her that he would have to open the player and examine the defects in it before he could give the answer. The respondent was agreeable to such an inspection and after such inspection the appellant duly advised her of the defects and the spares which would be required to put the player right, whereupon she duly authorized him to purchase such spares and carry out the repairs. After buying the spares the appellant showed them and their respective prices to her and she agreed that they be fitted into the player and further promised to pay for both the spares and services in the sum of shs. 386/-.

The primary court magistrate sitting with his two assessors found for the appellant whose evidence was duly supported by his two witnesses. The district magistrate, however, reversed that decision and found for the respondent on the ground that the appellant did not in fact fit new spares into the player as he alleged. Accordingly he ordered that the respondent be given her player on payment of shs. 55/- which, as was stated earlier, is what the respondent was prepared to pay and which consisted of shs. 15/- being the price of an adapter and shs. 40/- being labour charges. At the hearing of this appeal both parties who appeared in person repeated their respective arguments advanced in the lower courts. person repeated their respective arguments advanced in the lower courts.

There was sufficient evidence to show that the respondent did authorize the repairs which the appellant effected on her player. This was clearly stated by the appellant and his two witnesses. It was also stated by the respondent's own witness, Shabani Juma (P.W.2) who in answer to re-examination by the respondent said:-

Wewe ulimwambia (mdaiwa) anunue vyombo vya player.

It is further confirmed by the respondent herself who in her cross-examination by the appellant stated:-

> Nilikubali kuongeza vitu hivyo unavyodai thamani yake shs. 386/- bali nilikataa kulipa kwa kuwa mdaiwa hakunionyesha vya zamani.

From the evidence therefore I am quite satisfied that the respondent did authorize the appellant to carry out the repairs at the agreed price of shs. 386/-, and it seems that the only question which falls to be decided is, did the appellant in fact fit the new spares into the player as he claims?

But before attempting to answer this question, I think it is necessary to examine more closely the agreement entered into by the parties with a view to ascertaining its precise scope and extent. One thing is clear that the parties did agree on the repair of the player for a payment of shs. 386/-. But the respondent, in the extract taken from her evidence as quoted above, claimed that she refused to pay because the appellant did not show to her the used parts which he alleged he removed from the player and replaced with new ones. This in turn poses the question, was the appellant under any obligation to show to the respondent the

used parts so removed and replaced? Was there any agreement, express or implied, to that effect? The appellant's own witness, Robert Imara (D.W. 3) testified that part of the agreement between the parties was that the appellant should keep and hand to the respondent the used parts. This is what the witness said.

> ... mdai alisema kuwa vitu vipya aviweke, na vya zamani pia amwekee aje achukue.

It is clear therefore that under the terms of the agreement the appellant had an obligation to keep and hand to the respondent the used parts which he removed from the player and replaced with new ones, but it is abundantly clear also that he did not discharge that obligation. To the extent of such omission or failure the appellant was clearly in breach of part of the agreement which breach would provide justification for complaint by the respondent, for, it would seem that the effect of such breach was that the respondent could not now be certain whether or not new spares were in fact fitted in her player.

The next question to consider is, what is the effect of that breach on the agreement as a whole? It is quite plain that the part of the agreement which the appellant was in breach of was essentially a side or collateral agreement only. The main agreement was to repair the player and as a side or collateral agreement it was also provided that the appellant should preserve and show to the respondent the used parts which he removed and replaced. The two agreements were quite separable and distinct, and the main agreement could be performed or carried out quite independently of the other. Having regard to the evidence on record and to the submissions by the respondent at the hearing of this appeal it is plain that the side or collateral agreement was designed solely as a means of enabling the respondent to check whether or not the main agreement was performed i.e., whether or not new spares were in fact fitted into the player. Now, the question is, does a breach by the appellant, of the collateral agreement entitle the respondent to deny or disown her obligation under the main agreement? In other words does failure by the appellant to show to the respondent used parts necessarily mean that no new spare parts were in fact fitted into the player, and therefore the appellant, automatically loses his rights under the main agreement? I think that if it can be established "*aliunde*" that new spares were, in fact, supplied to the player then the parties should be held to their respective rights and obligations under the main agreement. For, what really matters is the intention of the parties. The clear intention of the parties here was to have the player repaired and, as stated earlier, the collateral agreement was designed only as a measure to secure the performance of the main agreement. Thus if the court could be satisfied from other evidence that the player was in fact repaired as agreed by the parties then, in my opinion, the respondent should be held liable to pay for such spares and services as were necessary for the purpose, and it matters little that the old parts so removed and replaced were not shown to her. To my mind to hold otherwise would amount to enriching the respondent at the expense of the appellant which clearly offends against the principles of justice and equity. If of course, it is shown that the appellant supplied only some and not all the spares as he claimed, this amounts to

part performance only of the main agreement and therefore the respondent should be held liable only to the extent of such part performance, that is to say, she should be liable to pay only for such spares and services as were actually supplied by the appellant.

Although the appellant did not show to the respondent any used parts which he removed from the player, it seems nevertheless that he did in fact fit new spare or spares into the player. Indeed even the district magistrate who was most sceptical about this matter found that the appellant did fit a new adapter into the player even though the appellant did not produce the used adapter which was replaced. For, it was on the basis of such finding that the district magistrate ordered that the appellant be paid shs. 55/- comprising, as stated by the respondent, shs. 15/- the price of the adapter and shs. 40/- labour charges. One may legitimately pose a small question here. If the appellant did not produce the old adapter but the magistrate, nevertheless, accepted that a new adapter was, in fact, fitted in as claimed by the appellant, then on what ground did he reject the appellant's contention that he also fitted the other spares into the player? Furthermore it was shown that the player which was out of order, as clearly stated by the respondent, is now in working order. This would tend to support the appellant's allegation that he did supply the spares and services as he claims or at least some of them.

In the light of all these matters therefore I am unable to uphold the decision of the district magistrate who found for the respondent and awarded possession of the player to her. That judgement is therefore set aside. Furthermore I also think that it would be proper to remit the case back to the primary court which tried it with a direction to examine the player in question in an attempt to ascertain whether or not new spares as listed by the appellant were, in fact, fitted in it. For this purpose the court may receive additional evidence from the parties and their witnesses, if any, or from court witnesses, to ascertain whether new spares were fitted into the player. As I have indicated sufficiently in the preceding paragraphs, I consider such a course to be necessary for a just determination of this matter in as much as it seeks to ensure fair play between the parties. If at the end of that exercise the court is satisfied that new spares were fitted into the player as listed by the appellant then the judgment of that court shall remain intact and the parties shall be bound by it. If, however, the court finds that only some of the spares were fitted into the player, then the judgment of that court is to be varied such that the respondent is to pay to the appellant only for such spares as were actually fitted into her player, including the services rendered for the purpose, and no more.

Each party shall bear his/her own costs of this appeal.

Decision of district court quashed.

GEORGE KUMWENDA *v.* FIDES NYIRENDA (KISANGA, J.)

GEORGE KUMWENDA *v.* FIDES NYIRENDA

[HIGH COURT OF TANZANIA AT DAR ES SALAA, (Kisanga, J.)]

CIVIL APPEAL 10 OF 1977

Administration of deceased's estate — Primary court's jurisdiction in administration cases.

Administration of deceased's estate — Where primary court made order of administration but had no jurisdiction — What High Court to do.

The primary court in Temeke granted an application for letters of administration to the appellant in respect of the estate of his deceased brother a Malawian, who died intestate. The primary court further made an order for the sale of a house forming part of the estate of the deceased.

The respondent, widow of the deceased, appealed to the district court challenging the appointment of the appellant as administrator and also challenged the order of sale of the house. The district court magistrate said nothing about the respondent's objection to the appointment of the appellant as administrator, but set aside the order of sale of the house with a direction that the said house be owned and controlled by the respondent and her mentally unsound daughter.

On appeal to the High Court the judge considered the propriety in handling the matter and whether the primary court had jurisdiction to entertain the application.

Held: (i) the order for the sale of the house was wrongly made because no one had applied for it;

(ii) the direction by the district court magistrate that the house should be under the ownership and control of the respondent and her child was wrongly made;

(iii) the district court magistrate ought to have considered, and decided on, the objection raised by the respondent relating to the appointment of the appellant as administrator of the estate of the deceased;

(iv) a primary court has jurisdiction in administration cases if three conditions are satisfied:-

(a) the matter is of a civil nature;

(b) the law applicable to it is either customary law or Islamic law. (Section 14(1)(a)(i) and para 1(1) of 5th Schedule to the Magistrates' Courts Act, 1963);

(c) the deceased at the time of his death had a fixed place of abode within the local limits of the court's jurisdiction;

(v) in this case it appears the law applicable to the distribution of the deceased's estate was either customary law of the deceased's tribe in Malawi or the Christian law.

(vi) since s. 14(1)(a)(i) excludes the primary court's jurisdiction over proceedings affecting the title to or any interest in land registered under the Land Registration Ordinance, the Temeke Primary Court's order for administration was invalid in so far as it related to the house built on a plot registered with the land office.

Appeal allowed in part.

No cases referred to:

June 3, 1977. **KISANGA, J.:** The appellant George Kumwenda in this case applied for letters of administration in respect of the estate of his later brother one Morton Kumwenda, a Malawian national, who was living at Temeke but died intestate in Malawi. The Primary Court at Temeke granted the application and further made an order for the sale of a house forming part of the estate of the deceased. The respondent who is widow of the deceased appealed to the district court against both the appointment of the appellant as administrator of the deceased's estate and also against the order of sale of the house. The district magistrate set aside the order of sale of the house with a further direction that the said house shall be under the ownership and control of the respondent and her daughter, Emma, who is mentally unsound. The court, however, said nothing about the respondent's objection to the appointment of the appellant as administrator. The appellant now appeals against the decision of the district court which set aside the order of sale of the house.

It must be pointed out at once that the handling of this matter by both courts below was not entirely satisfactory. In the first place the appellant stated clearly before the primary court that he applied for letters of administration. There is nowhere either in his application form or in his oral statement before the court where he said that he applied for an order of sale of the house in question, and indeed this question was never put to the assessors for their consideration. Therefore the order for the sale of the house was wrongly made because no one had applied for it, nor do I think that in the circumstances of this case it was open to the court to make such an order of its own motion especially when it was apparent that there was a possible objection to it and that the interested parties had not been given opportunity to be heard. The proper thing to do in the circumstances was for the court to grant the order for administration and no more. Then after such grant if the administrator ran into problems or if any interested party felt that any particular asset or assets should be dealt with in a particular way, it was open to such a party to apply to the court for direction accordingly and the court would give such direction after making appropriate investigation into the claim. Thus the order for the sale of the house was wrongly made and the district court rightly set it aside although, I should add, it did so on different grounds.

But, as we said earlier, the district court went further to order that that house should be under the ownership and control of the respondent and her child. I think that this was equally wrong. This logically follows from the view that there had been no application to the court by anyone for direction as to how the said house

should be dealt with. Not only that. Such an order tends to defeat the whole purpose of appointing an administrator. For, if the appellant's appointment as administrator is upheld, then such an order would tend to limit his powers to deal with the deceased's estate. To my mind this would not be proper unless it were shown that it was necessary to thus limit his powers in order, say, to avert unjust distribution of the deceased's estate, which was not the case here. Accordingly I would set aside the direction of the district court vesting ownership and control of the house in the respondent and her daughter.

Lastly, the district magistrate did not consider the respondent's objection to the appointment of the appellant as administrator. This was clearly wrong. Because the respondent expressly raised that objection in her address before the district magistrate and she was certainly entitled to a ruling on the point. It cannot be said that when the magistrate awarded, though wrongly, ownership and control of the house to the respondent and her daughter, this necessarily amounted to upholding the respondent's objection. For, it was shown that the deceased had some other property apart from the house. So that while the house was placed under the ownership and control of the respondent and her daughter, it was still necessary to consider whether or not to uphold the appointment of the appellant as the administrator of the rest of the deceased's estate. Therefore I have now to consider the legality or propriety of the appointment, by the primary court, of the appellant as the administrator.

The primary court assumed jurisdiction over this matter apparently in pursuance of the powers conferred by s. 14(1)(a)(i) of the Magistrates' Courts Act and paragraph 1(1) of the fifth schedule to that act (Powers of Primary Courts in Administration Cases). The relevant portion of s.14(1)(a)(i) of the Magistrates' Courts Act provides,

14.—(1) A primary court shall have and exercise jurisdiction —

(a) in all proceedings of a civil nature —

(i) where the law applicable is Customary law or Islamic law.

And the relevant portion of paragraph 1(1) of the fifth schedule (Powers of Primary Courts in Administration Cases) reads,

> 1. — (1) The jurisdiction of a primary court in the administration of deceaseds' estates, where the law applicable to the administration or distribution of, or the succession to, the estate is Customary law or Islamic law, may be exercised in cases where the deceased at the time of his death, had a fixed place of abode wihing the local limits of the court's jurisdiction.

As was stated earlier, the deceased was a Malawian national and it is quite apparent that although he died in Malawi, he had his fixed place of abode in this country. Furthermore it is undisputed that both deceased and his widow (the respondent) were Malawians and that both of them professed the Christian religion.

Now, applying the law to the facts of the case the results are as follows:- According to s 14(1)(a)(i) of the act and paragraph 1(1) of the Fifth Schedule as reproduced above, a primary court had jurisdiction if two conditions are satisfied,

namely, (a) the matter is of a civil nature and (b) the law applicable to it is either Customary law or Islamic law. These are two conditions precedent which must be satisfied before a primary court can validly exercise jurisdiction. In the instant case condition (a) is satisfied because the matter of application for letters of administration is clearly one of a civil nature. For the sake of completeness I might add that under paragraph 1(1) of the Fifth Schedule there is a further requirement to be met before a primary court can exercise jurisdiction, and that is that the deceased at the time of his death had a fixed place of abode within the local limits of the court's jurisdiction. This requirement also was satisfied because the deceased had his permanent home in Temeke district. But the question is whether condition (b) has been satisfied i.e., whether the law applicable is either Customary law or Islamic law. One thing which is certain is that the law applicable in the distribution of the deceased's estate here is not Islamic law for, at least the deceased did not subscribe to the Islamic faith. But it is less certain whether the law applicable is Customary law or Christian law. It is true the primary court, in assuming jurisdiction, proceeded on the basis that the law applicable was Customary law of the tribe of the deceased. But on the other hand the district magistrate appears to have taken the view that Christian law could be applicable. For, he said this in his judgment,

> Apart from the law governing Christian marriages which considers that the spouses are one and are only separated by death, I find it is wrong to include any other third party to the property owned by the two. In short the property of Morton (the deceased) is hers (respondent's) and *vice versa*.

In these circumstances and indeed viewing the case as a whole it appears to me that there is room for saying that the law applicable to the distribution of the deceased's estate was either the Customary law of the deceased's tribe in Malawi or the Christian law. But the information which is available so far is not sufficient from which to discover the deceased's way of life and hence to decide which of the two laws would be applicable. This point is of further importance in that if, having regard to all the relevant facts and circumstances of the case it is shown that Christian law was applicable, then quite clearly the primary court could have no jurisdiction in the matter because its jurisdiction is limited to cases in which the law applicable is either Customary law or Islamic law.

There is one further matter which appears to cause some anxiety. The house of the deceased which was the subject matter of the discussion above was discribed as No. 46 Changani Street, and at the hearing of this appeal both parties confirmed to me that the plot on which the house is standing is registered with the Land Office. But the proviso to s. 14(1)(a)(i) which confers civil jurisdiction on primary courts reads,

> Provided that no primary court shall have jurisdiction in any proceedings —
>
> (A) affecting the title to or any interest in land registered under the Land Registration Ordinance;

It is clear that the house in question forms part of the deceased's registered land. It is apparent too that an order for administration affects the house in that it enables the administrator to deal with the house in various ways, for instance, by alienating it to some beneficiary. Now the question is whether the primary court was competent to make an order for administration affecting this house or, indeed to make an order for the sale of that house as it did. It would seem to me that the answer to this question is in the negative. Because once s.14(1)(a)(i), which is the source of the court's civil jurisdiction, excludes the court's jurisdiction over this category of cases, it is difficult to think that the court can have jurisdiction over such cases in matters of administration of estates which constitute part only of its civil jurisdiction.

I therefore think that the primary court's order for administration was invalid in so far as it related to the house in question. If the appellant's appointment as administrator were to be upheld he could not validly deal with this house; it seems that he would have to apply further to the appropriate court having jurisdiction for letters of administration in relation to the said house.

In the light of all these matters therefore I think that this is a fit case in which to direct that in terms of s.88(1)(b) of the Probate and Administration Ordinance (Cap. 445) that ordinance should apply. The case involves complicated issues such as I have indicated above. It also involves conflicting interests among the beneficiaries. For instance the appellant claims that the estate belongs to all members of deceased's clan while the respondent alleges that it belongs to the deceased's child or children alone. In such circumstances I think that it is necessary to give this direction in order to enable the court to investigate fully the issues and the conflicting claims and hence arrive at a just decision and fair distribution of the estate. Accordingly in terms of s. 89(2) of the Probate and Administration Ordinance (Cap. 445) the record is sent back to the Primary Court of Temeke for revocation of its order for administration. After such revocation, the application should be lodged afresh in the district court, and it is further directed that the district court shall exercise original jurisdiction in accordance with the provisions of the administration (Small Estates) Ordinance (Cap. 30).

Appeal allowed in part.

INSPECTION NOTE (MR. JUSTICE CHUA)

INSPECTION NOTE

[THE HIGH COURT OF TANZANIA AT MWANZA, (Mr. Justice Chua)]

Criminal Law — Sentence — Wildlife Conservation Act — Minimum sentence under s. 62(2)(a) — No discretion to district magistrate to impose lesser sentence.

June 11, 1982. **CHUA, J.,** made the following inspection note in the District Court of Tarime Criminal Case No. 417 of 1981, *Republic v. Marwa s/o Musahe:* The accused was charged with unlawful possession of 10 kgms of zebra meat c/s 62(2) of the Wildlife Conservation Act (Act No. 12/74). He pleaded guilty and was sentenced "to a term of imprisonment which expires at the rising of this court"

Although the learned senior district magistrate found that the circumstances of the case deserved a lenient sentence he nevertheless had no option in meting out less than the minimum sentence imposed by law. Section 62(2)(a) of the Wildlife Conservation act provides:

> (2) Any person who contravenes any of the provisions of this section shall be guilty of an offence and shall be liable on conviction
>
> (a) where the trophy which is the subject matter of the charge or any part of such trophy is part of an animal specified in part I of the First Schedule to this act and the value of the trophy does not exceed five thousand shillings to imprisonment for a term of not less than two years but not exceeding seven years or to a fine of not less than twenty thousand shillings but not exceeding one hundred thousand shillings.

There is no doubt that a zebra is a specified animal under part I of the first schedule and the meat was less than 5,000 shillings in value (although no evidence was adduced on its value). That being the case the trial magistrate was bound to impose the minimum sentence. Failing that the trial magistrate could have referred the case to the High Court which has discretion to impose a lesser sentence than the minimum. Section 79(1) of the act provides:-

> Where in any trial for an offence for which a minimum sentence of imprisonment or fine is prescribed the court is satisfied that having regard to any special mitigating factor a sentence of imprisonment or fine of a term or amount, as the case may be, less than the minimum term or amount prescribed should be imposed, the court may —
>
> (a) if the trial is before the High Court, pass such sentence of imprisonment or fine as it deems fit.
>
> (b) if the trial is before a court other than the High Court, the court may commit the accused for sentence by the High Court with a recommendation for leniency and stating the ground therefore and the High Court shall thereupon proceed to pass such sentence as it may deem fit.

It is clear that the subordinate courts have been deprived of power to impose any sentense other than the minimum. The sentence of the learned senior district magistrate was therefore *ultra vires*. It is accordingly set aside.

There were mitigating factors in the case. The accused was 60 years old and his explanation that he picked the meat from the remains of a zebra that had been killed by a lion was accepted as true. In exercise of the powers of revision and the discretion conferred upon this court by s.79(1)(b) of the Wildlife Conservation Act, I substitute for the sentences set aside, an order that the accused be absolutely discharged under s.38(1) of the penal code.

INSPECTION NOTE

[THE HIGH COURT OF TANZANIA AT MWANZA, (Mr. Justice Chua)]

Criminal Law — Procedure — Charge of incest by males — Consent required under s.158(1) and (2) of Penal Code — No consent — Accused should be discharged.

June 3, 1982. **CHUA, J.**, made the following inspection note in the District Court of Serengeti Criminal case No. 316 of 1981, *Republic v. Thomas s/o Masurura*: On 11.11.1981 the learned district magistrate made the following order:-

> I have discovered that the charge should not have been commenced without the sanction of the Director of Public Prosecutions. I therefore close my file.

There is no doubt that under s.160 of the Penal Code the consent of the Director of Public Prosecutions is required for a prosecution to lie under s.158(1) and (2) of the Penal Code. That being the case the learned magistrate had the power of rejecting the charge when it was first brought to his court on 31.8.1981 under the provisions of s.89 of the Criminal Procedure Code which stipulates:-

> Where the magistrate is of opinion that any complaint or formal charge made or presented under s.88 does not disclose any offence, the magistrate shall make an order refusing to admit such complaint or formal charge and shall record his reasons for such order.

Having failed to reject the charge at the first instance, the trial magistrate was not barred from exercising the same powers later. The appropriate order ought therefore have been to reject the charge and discharge the accused person leaving the prosecution with the option of charging the accused at a later stage if and when they received the necessary consent.

KISIRI MWITA s/o KISIRI *v.* REPUBLIC

[HIGH COURT OF TANZANIA AT MWANZA, (Chua, J.)]

CRIMINAL APPEAL 26 OF 1981

Evidence — Evidence of a child of tender years — voire dire examination — Effect of omission to conduct it before swearing in a child of tender years.

The appellant and another person were charged with and convicted of cattle theft. The learned trial magistrate based his conviction on the evidence of a 13 year old child who gave evidence on oath although no *voire dire* examination was conducted before swearing him in. A 6 year old young brother of this 13 year old child was dismissed from giving evidence on the ground of being too young to give evidence. On appeal the learned high court judge considered whether the conviction was proper on the basis of the evidence given.

Held: (i) the trial magistrate was wrong in dismissing the six year old child from giving evidence before conducting a *voire dire* examination (s.127(1) Evidence Act, 1967);

(ii) a *voire dire* examination must be conducted before swearing in a child of tender years (s. 127(5) of the Evidence Act, 1967 as amended by Act No. 19 of 1980);

(iii) omission to conduct a *voire dire* before swearing in a child of tender years has the effect of bringing that evidence to the level of unsworn evidence of a child and, therefore, needs corroboration to support a conviction;

(iv) the learned senior district magistrate erred in not conducting a *voire dire* before rejecting the younger brother of John Marego as a witness and erred further in swearing in John Marego (13 years) without first establishing whether he knew the nature of an oath.

Conviction quashed. Retrial ordered.

Cases referred to:

(1) *Kibangeny Arap Kolil v. R.*, [1959] E.A. 92.
(2) *Fransisco Matuvu v. R.*, [1961] E.A. 260.
(3) *Sakila v. R.*, [1967] E.A. 403.
(4) *Joseph v. R.*, [1971] H.C.D. n. 58.
(5) *Oloo Gai v. R.*, [1960] E.A. 86.

September 11, 1981. **CHUA, J.:** Kisiri Mwita Kisiri and Busese Mtui Salilo were jointly charged with cattle theft c/s 268 and 265 of the Penal Code. They were convicted and sectenced to 5 years imprisonment. Being dissatisfied they have appealed against the conviction and their appeals are consolidated.

The whole of the prosecution case was based on the evidence of John Marego a boy aged about 13 years. The evidence of his younger brother was not taken on the grounds that he was too young. The first question that has to be settled by this court is whether the trial magistrate correctly applied the law in rejecting the witness. The record of the court shows the following; "P.W. 2 is one John a small boy aged about 6 years (according to P.W.1). Court: after interviewing the said boy I am satisfied that he is too young to give any credible evidence. Nor will he know what he says in court. In the circumstances have dismissed him". It will be noted that the trial magistrate has not recorded the substance of his interview. The result is that this court has been deprived of the opportunity to form its own view of the effect of the interview. For it is from the actual questions and answers that the court makes a decision under s.127(1) of the evidence act which provides: that "all persons shall be competent to testify unless the court considers that they are prevented from understanding the questions put to them, or from giving rational answers to those questions by reason of tender years, extreme old age, disease (whether of body or mind) or any other similar cause".

The next question that has to be resolved is whether the trial magistrate was right in swearing John Marego without first conducting a *voire dire* to determine whether he understood the nature of an oath and what is the effect of the omission. The answer to the above questions depends on the legal position of the evidence of "children of tender years". The expression "child of tender years" has been interpreted time without number, to mean "any child of an age or apparent age of under fourteen years", although essentially it remains "a matter of the good sense of the court". A leading authority on this point is the case of *Kibangeny Arap Kolil v. R.*, [1959] E.A. 92. It is also pertinent to note that the Tanzanian Evidence Act has been amended by act 19/80 which became effective from 1.12.1980 and under s.127 sub-section 5 the expression child of tender years means "a child of or below the apparent age of 14 years". In this case John Marego was found to be 13 years old and therefore is a child of tender years. It follows therefore that a *voire dire* had to be conducted before deciding to swear him. Section 127(2) of the Evidence Act provides: "where in any criminal cause or matter any child of tender years called as a witness does not, in the opinion of the court, understand the nature of an oath, his evidence may be received, though not given upon oath or affirmation, *if in the opinion of the court to be recorded in the proceedings* he is possessed of sufficient intelligence to justify the reception of his evidence and understands the duty of speaking the truth" (emphasis is mine).

The effect of omitting a *voire dire* before swearing in a child of tender years is quite drastic according to well settled authorities. In the cases of *Kibangeny Arap Kolil v. R.*, [1959] E.A. 92 *Francisco Matovu v. R.*, [1961] E.A. 260 *Sakila v. R.*, [1967] E.A. 403 and *Joseph v. R.*, [1971] H.C.D. n.58 both the defunct East African Court of Appeal and the Tanzania High Court have held that the omission to conduct a *voire dire* before swearing in a child of tender years has the effect of bringing that evidence to the level of unsworn evidence of a child and therefore a conviction cannot be sustained by such evidence unless it is corroborated by some other independent evidence.

I am aware of the case of *Oloo Gai v. R.*, [1960] E.A. 86 in which it was held *inter alia* that whilst it would have been better for the trial judge to record in terms that he had satisfied himself that the child understood the nature of an oath, it was sufficient that he made that finding in his judgment, but the facts of that case were distinguishable from the present one. Firstly in the *Oloo Gai's* case the judge in the proceedings recorded the following: "Ambingu d/o Ambet, appears to be about 12 years of age, goes to school, appears to be intelligent and understands proceedings. Satisfied knows truth from falsehood. States a Catholic and goes to the Catholic church". In the present case there was no attempt to interview the witness at all. Secondly under the Tanzania Evidence Act s. 127(2) the court has to record in the proceedings the contents of the *voire dire* whereas in Kenya s.19(1) of the Oaths and Statutory Declarations Ordinance which was relevant in the *Oloo Gai's* case does not specifically mention this requirement and therefore it appears to be more of a rule of practice in Kenya rather than a statutory obligation to record the *voire dire*.

Now coming to the evidence of John Marego, it was to the effect that on 12.11.1979 at about 6.00 p.m. he and his younger brother had been looking after 25 heads of cattle. When they were taking the cattle to river Mori for water three persons suddenly appeared. The two appellants were in that group and started driving the cattle away while the 3rd person held them and threatened to kill them if they raised an alarm. He noticed how they cut off a cow-bell and threw it away as they drove the herd. They were held until dusk when they were escorted and ordered to go home. It was in evidence that John Marego knew the appellants before that day and that indeed the 1st appellant was his cousin; and that immediately after the theft he reported to the police and mentioned the names of the appellants.

Both appellants denied the charge and set up *alibis* which were rejected by the trial court. The trial magistrate after warning himself of the danger of convicting on the strength of uncorroborated evidence of the child of tender years convicted the appellants because he noted that he had taken the evidence of John Marego upon oath. As I have endeavoured to show in this judgment the learned senior district magistrate erred in not conducting a *voire dire* before rejecting the younger brother of John Marego as a witness and erred further in swearing in John Marego without first establishing whether he knew the nature of an oath. The result is that the evidence of John Marego in law requires corroboration and there is none in the case.

In the interest of justice I quash the convictons and set aside the sentence but order that the appellants be retried before another magistrate of competent jurisdiction.

Conviction quashed.
Retrial ordered.

SAIDI ALI MASWANYA *v.* AFRICAN BUYER AND TRADER (PUBLICATIONS) LTD. AND OTHERS

[HIGH COURT OF TANZANIA AT DAR ES SALAAM, (Kisanga, J.)]

CIVIL CASE 115 OF 1976

Torts — Defamation — Defamatory statement — Meaning of.
Torts — Libel — Innuendo or interpretation.
Damages — Defamation — Assessment of damages for defamation.

The plaintiff sued the defendant and three others claiming damages for libel published in their book. The plaintiff had served in responsible government positions including that of Minister of Home Affairs in the Government of Tanzania. The alleged defamatory statement was to the effect that the plaintiff, as Minister of Home Affairs was... "responsible for the increased Muslimisation of the police force", and that ".... He may have clashed with TANU leadership by pressing for too rapid Muslimisation of the police force ...." Despite several demands for an apology the defendants neglected or refused to oblige.

Held: (i) a defamatory statement is, *inter alia* one which tends to lower a person in the estimation of right thinking members of the society generally;

(ii) in considering whether the words were defamatory in their ordinary or hidden meaning the court will look at the effect in the mind of reasonable man in the community;

(iii) in assessing damages for libel, the court will take into account factors such as the status of the plaintiff, the extent of the circulation of the publication and the conduct of the defendant.

Judgment for plaintiff — Injunction ordered.

No cases referred to:

M.A. Lakha, for plaintiff.

June 12, 1979. **KISANGA, J.:** The plaintiff, Saidi Ali Maswanya in this case is claiming damages for libel. The first defendant is a limited liability company incorporated in England and also the publisher of a book entitled "Who's Who in Africa". The second and third defendants, both residents in England are the editors of the said book, and the fourth defendant is a limited liability company incorporated in Tanzania and distributor in this country of the said book.

The plaint was filed in this court on 17.07.1976. On 20.12.1976 summonses were issued and addressed to the first, second and third defendants at their known address in England namely, Wheatsheaf House, Carmelite Street, London EC4Y OAX but they (the summonses) were not returned. On 10.5.1977 this court tried to communicate with the defendants at the same address asking them to

acknowledge or deny receipt of the summonses but there was no response either. On application by the plaintiff, the process was effected by substituted service throught publication of a notice in the issue of "The Times" newspaper of London dated 6th May, 1978. Still there was no response to such notice, and therefore upon application by the plaintiff leave was granted to prove the case "ex parte".

The plaintiff alone gave evidence. He said that at present he is the Executive Chairman of the Tanzania Tobacco Authority and that by virtue of that office he is also responsible for seeing that the policies of the party (C.C.M.) are implemented within his corporation. Previous to this and starting as far back as 1952 he had held various responsible positions in both the Party and the Government. He was Minister for Home Affairs from June 1967 to April 1973. Some time after he had ceased to hold that portfolio, a friend drew his attention to a publication about himself (the plaintiff) appearing in the book "Who's Who in Africa", at p.510 of the 1973 edition, under the heading, "Maswanya: Saidi Ali — former Minister for Home Affairs from June 1967 to April 1973". The said publication reads,

> He was also respondible for the increased Muslimisation of the police force.

and further down the passage it says,

> .... He may have clashed with TANU leadership by pressing for too rapid Muslimisation of the police force, but this has traditionally been a Muslim preserve.

He claimed that the words quoted have caused him much grief; they have injured his character, credit and reputation and that they have put him in public scandal, odium and contempt.

On seeing such publication he instructed an advocate who on 13.10.1975 duly wrote to the defendants asking for an apology. The defendants replied stating that they were looking into the matter. A reminder was sent to which the defendants replied on 29.1.1976 that they were still investigating the matter and asked for another one week after which they would give a definitive reply. Nothing has been heard from them since, hence the filing of the suit.

In his prayer, the plaintiff asks for damages for the libel contained in the words quoted above. He also asks for an injunction to restrain the defendants or their agents from further printing or publishing or distributing any copies of the book containing the said libel. The plaintiff further states that he is no longer claiming from the fourth defendant with whom he has already settled the matter out of court. That was a brief summary of the plaintiff's case.

The first question I have to decide is whether the words complained of constitute defamation, and without any hesistation, I answer that question in the affirmative. For, the plaintiff as Minister for Home Affairs in the Tanzania Government was entitled to enjoy the confidence which the people and Government of Tanzania reposed in him that he would act fairly in directing the Home Ministry. To say that he was responsible for the increased Muslimisation of the police force and that he may have clashed with the Party leadership on that account would

clearly mean that he was practising discrimination in favour of Muslims to which religious group he himself belongs. Unless this allegation is substantiated, the effect of it would be, at least, to lower him in the estimation of the right-thinking members of the Tanzanian society generally who thought and believed that he acted fairly in his work. This is so especially in a Tanzanian society which denounces all forms of discrimination and believes in equal opportunity for all regardless of such considerations as race, sex or religion. Thus I am satisfied that the plaintiff has proved his case, and I so hold.

This brings me to the issue of damages, and I wish to acknowledge at once that this is a very difficult matter. Assessment of damages for libel is generally a difficult matter, but the issue here becomes even more so because it involves a Government Minister. I have not been able to find any precedent for such a case, and indeed counsel stated that he also did not. However, counsel suggested that an award of Tanzanian shillings 200,000/- would meet the justice of the case. I think there is no doubt at all that the office of a Government Minister is clearly a very high position in any country. So that any defamatory imputations made to the holder of such office, which imputations have not been substantiated, ought to attract an award commensurate with such a high office. Assessment of damages also should take into consideration the extent of the publication of the proved libel. The book containing the libel in this case shows that it covers some 47 African countries. This is clearly a very wide coverage; it is a factor which, in my view, could not advocate for an award of small or nominal damages. The conduct of the defendants also is a relevant consideration. The plaintiff asked for an apology but the defendants refused to make one. When the suit was filed, the defendants would not respond to summonses. The defendants would not even respond to a communication by this court when this court went out of its way and wrote to them asking them whether or not they received the summons. Quite clearly the defendants were both unco-operative and disdainful. In my opinion such conduct and attitude of the defendants would certainly aggravate the quantum of damages. Therefore, taking into account all these considerations, I do not think that the amount of damages as suggested by counsel is too big. Accordingly I allow the claim and award to the plaintiff Tanzanian shillings 200,000/- in damages with costs.

As indicated earlier, the plaintiff in his prayer also asks for an injunction to restrain the defendants and each of them by themselves or their agents or servants or otherwise from further printing, circulating, distributing or otherwise publishing any copies of the said book containing the said libel. The prayer is granted and an order to issue accordingly.

Judgment for plaintiff.

Injunction ordered.

MAIKO MALYA *v.* BIBI SESILIA PAUL

[HIGH COURT OF TANZANIA AT DAR ES SALAAM, (Kisanga, J.)]

CIVIL APPEAL 24 OF 1977

Land Law — Landlord and Tenant — Sufficiency of notice to vacate tenancy premises in a month to month tenancy — Application of English Law — Section 2(1) of the Land (Law of Property and Conveyancing) Ordinance, Cap. 114.
Land Law — Landlord Tenant — Protected tenants under the Rent Restriction Act, Cap. 479 — When can a tenant be evicted under conditions of s.19 of Cap.479 — When is notice unnecessary under s.26(1) of Cap.479.

The appellant was the original defendant in a suit whereby the respondent had sued him for an order to recover possession of tenancy premises due to rent arrears (for 9 months) and bad behaviour. The resident magistrate had decided for the respondent (i.e., the original plaintiff). On appeal the appellant contested the validity of the notice as it ran from mid-month to mid-months; also that the appellant was a protected tenant at law; and that the respondent was not the actual landlady as she could not *ipso facto* become such by the mere death of the original owner. The last ground was dismissed by the court as her ownership was not contested in the course of her evidence at the tral and in fact the appellant's witness had supported her title. The court dealt with the first two grounds.

Held: (i) a periodic tenancy of month to month can be terminated by a notice of a duration equal to the period of the tenancy, in this case by serving a one month's notice;

(ii) where there is no evidence on what the parties agreed as to the time for commencement of the month to month tenancy the fact that rent was payable at the end of the month would invite a determination to the effect that tenancy ran from the 1st day of the calendar month to the end of that month;

(iii) under the *Rent Restriction Act*, Cap. 479, eviction for non-payment of rent is only possible where the court is satisfied that it is reasonable in all circumstances to make such an order as per s.19 (1)(a), (2). The court would not make an order where the default was unintended or lasted only for a short time;

(iv) where landlord obtains a court order for possession against the tenant under grounds specified in s.19(1) of Cap.479 then he need not serve any notice to the tenant. (s.26(1), Cap.479);

(v) in the present case the appellant intentionally defaulted in rent payment for nine months, misbehaved generally and moreover had alternative accommodation; as such the order for possession was valid. Though the notice was bad in law it was unnecessary as a court order for repossession had been made in favour of the landlady.

Appeal dismissed.

Case referred to:

(1) *Lemon v. Lardeur* [1946] K.B. 613.

January 26, 1979. **KISANGA, J:** The appellant Michael Mallya in this case is a tenant of a room in a house owned by the respondent landlady in the city of Dar es Salaam. Following a suit filed by the respondent, the Resident Magistrate's Court of Dar es Salaam made an order for possession against the appellant who has now appealed to this court. In this appeal the appellant was represented by Mr. Rahim while both at the trial and in this court the respondent was represented by Mr. Mkondya.

The appellant was served with a notice to quit which was in the following terms:-

> Nakupa Notice ya mwezi mmoja kuhama katika nyumba yangu kuanzia leo tarehe 13.1.1977 hadi 12.2.1977.
>
> 1. Hujalipa kodi ya nyumba kwa muda wa miezi 9 toka Mei 1976.
> 2. Huna nidhamu kwa wapangaji wengine na mwenye nyumba pia.
> 3. Kushitakiana mahakamani sina imani na ukaaji wako katika nyumba yangu.
>
> (Sgd.)
> CECILIA PAUL

The trial magistrate ordered possession against the appellant on the ground that he (the appellant) had been in arrears with his rent for over 9 months and that he was guilty of a troublesome conduct vis-a-vis the respondent.

Mr. Rahim filed and argued three grounds of appeal which may conveniently be set out as follows:-

(1) The learned resident magistrate ought to have held that the Notice issued by the respondent purporting to call upon the appellant to vacate the suit premises was bad and invalid in law.

(2) The learned resident magistrate erred in law in failing to hold that the appellant was not liable to eviction from the suit premises as a tenant protected by law.

(3) The learned resident magistrate erred in law in holding that the respondent became the landlady *ipso facto* on the death of the actual landlady in 1971 and further erred in law in entertaining proceedings initiated by the respondent on this ground.

I propose to deal with the last ground first. The facts leading to that ground were these:- It was common ground that the original owner of the suit premises died in 1971. Then the respondent claims that following such death she inherited the house from the deceased who was her aunt. Mr. Rahim's complaint, therefore, was that it was not sufficient for the respondent merely to allege that she inherited the house from her aunt; she had to prove it. However, I cannot see much merit in this argument. In the first place, the respondent made this claim about her inheriting the said house in the course of her evidence at the trial. But she was neither challenged nor contradicted on the matter, and to my mind the ap-

pellant or his counsel cannot properly be heard to challenge the aspect of inheritance now. Indeed far from being challenged, the respondent appeared to be supported on this issue by the appellant's own witness, Sekela Mwaipopo (D.W.4), who testified that the respondent had inherited the house from the late Mama Gabriel. In the circumstances therefore I am quite satisfied that Mr. Rahim cannot have intended to raise or press this ground of appeal seriously, and I would accordingly dismiss it.

Next, I turn to consider the first ground. As was shown earlier, the respondent sought to terminate the tenancy by serving a month's notice on the appellant. Mr. Rahim's contention, however, is that such notice was invalid and, therefore, did not terminate the tenancy. He took the view th t the notice should have been made to expire at the end of the month and not on some day during the month.

It would seem clear from the evidence that the tenancy between the appellant and the respondent is a periodic one from month to month. This is borne out by the fact that the rent was made payable every month. It is also settled law that a periodic tenancy may be terminated by notice of a duration equal to the period of the tenancy. Thus, for instance, a monthly tenancy such as in this case may be brought to an end by serving one month's notice. But what is not clear here is, when does the tenancy commence. Does it commence on the first of the month and end at the end of that month or does it commence in the middle of the month and end in the middle of the following month? There was no evidence adduced as to what the parties agreed on this point. The only evidence available here shows that rent was payable at the end of every month. In such circumstances I think that the tenancy is to be deemed to commence from the first of a month and to end at the end of that month. That therefore is the view which I take in the instant case. In the absence of any evidence as to what the parties agreed, it is to be deemed that the tenancy starts from the first of a month and ends at the end of that month.

And this brings me to the question, what is a valid notice to terminate such a tenancy which commences fromt he first of a month and ends at the end that month?

As stated earlier, Mr. Rahim submitted that in such a case a valid notice must be made to expire at the end of that month, and in this connection he referred me to an English decision in the case of *Lemon v. Lardeur*, [1946] K.B. 613. In that case there was an agreement for a four-weekly tenancy. The landlord or his agent sought to terminate the tenancy by giving one month's notice as from the 1st of a month. It was held that the notice was invalid because it did not expire at the end of the current period of the tenancy.

In answer to that, Mr. Mkondya made two brief submissions. First, he contended that although the notice was made to expire on 12.2.1977, it should be deemed to expire at the end of that month, and the appellant should have taken it to be so. He therefore took the view that the notice was valid and sufficient to bring the tenancy to an end. I asked him if he had any authority for this proposition but he had none. For my part I find it difficult to accept this view. For, when a notice is made to expire on a particular date of the month and nothing happens after the issuing of such notice to amend it, then the party issuing it

clearly intends it to expire on the specified date. I could find no basis whatsoever for putting any construction on it such as that suggested by Mr. Mkondya that it is to be deemed to expire at the end of that month. Any such construction would clearly defeat the express intention of the party issuing the notice. I think the court would not be entitled to do that kind of thing.

Alternatively, Mr. Mkondya submitted that the requirement that the notice should be made to expire at the end of the current period of the tenancy is a mere technicality. He urged that the court should disregard such technicalities and adopt a practical approach with a view to doing substantial justice. I have given due consideration to this argument but once again I find myself unable to accept it even though, I must admit, I have some sympathy for it. Perhaps I should first of all point out that the rule as laid down in *Lemon's* case is not altogether a mere technicality as Mr. Mkondya submits; the rationale of it seems to be this:- When a periodic tenancy, say, a monthly tenancy is made or deemed to commence from the first of a month and to expire at the end of that month, then any notice which is made to expire on a day other than at the end of the month is bad because on that day there is already a period of the tenancy which is continuing. Thus in the instant case, for instance, the notice which was made to expire on 12.2.1977 was objectionable because on that day there was already the monthly tenancy which according to the agreement was continuing and was to end at the end of February, 1977. Such notice therefore violates the term of the tenancy which makes it a monthly tenancy expiring at the end of the month (of February), and accordingly it would be objectionable.

But that is not all. *Lemon's* case which lays down the rule that the notice should be made to expire at the end of the current period of the tenancy is an English decision which ordinarily would be persuasive but not binding on our courts. But Mr. Rahim further referred me to the provisions of s.2(1) of the Land (Law of Property and Conveyancing) Ordinance (Cap. 114) which would appear to suggest that the courts of this country have to follow English law on this subject. That sub-section provides:-

> Subject to the provisions of this ordinance, the law relating to real and personal property, mortgagor and mortgagee, landlord and tenant, and trusts and trustees in force in England on the first day of January, 1922, shall apply to real and personal property, mortgages, leases and tenancies, and trusts and trustees in the Territory in like manner as it applies to real and personal property, mortgages, leases and tenancies, and trusts in England, and the English law and practice of conveyancing in force in England on the day aforesaid shall be in force in the Territory.

As far as I could ascertain, this sub-section has not been repealed. It would therefore seem that the English law of landlord and tenant is applicable to this country in which case the decision in *Lemon's* case is binding on this court. In these circumstances therefore I would uphold Mr. Rahim's submission that the notice by the respondent landlady was invalid and hence insufficient to terminate the tenancy.

This brings me to Mr. Rahim's second ground that the appellant was a person who was protected under the Rent Restriction Act. In considering this ground, it must be conceded that the suit premises were ones to which the Rent Restriction Act applies. It is to be borne in mind too that the respondent in her pleading claimed possession not only by virtue of the notice to quit but also on the ground of default in the payment of rent, and troublesome conduct, on the part of the appellant. Section 19 of the Rent Restriction Act sets out a number of grounds on which possession may be ordered against a tenant. Section 19(1)(a) of that Act as amended by Act No. 57 of 1966 is relevant to the facts of this case and it provides that:-

> 19. — (1) No order or judgment for recovery of possession of any premises to which this Act applies, or for the ejectment of a tenant therefrom, shall be made or given unless —
>
> (a) any rent lawfully due from the tenant has not been paid, or any other obligation of the tenancy (whether under the agreement of tenancy or under this Act) so far as the same is consistent with the provisions of this Act has been broken or not performed;

This provision is couched in such a way that the tenor and spirit of it is clearly to protect the tenant. But my true understanding of it is that a tenant who defaults paying his rent is, on the face of it, liable to have an order for possession made against him, and that he can avoid such consequences only if his case falls within the ambit of the provisions of sub-section (2) of s.19 of the Act as amended by Act No. 57 of 1966. That sub-section in so far as it relates to the facts of this case provides:-

> (2) In any case arising under sub-section (1), no order for the recovery of possession of premises shall be made unless the court is satisfied, by or on behalf of the landlord, that having regard to all the circumstances of the case it is reasonable to make such an order....

To my mind these two sub-sections read together mean that a tenant who defaults in the payment of rent is liable to have an order for possession made against him, subject only to the court being satisfied that it is reasonable in all the circumstances of the case to make such an order. The court's decision whether or not it is reasonable to make the order will depend on the facts and circumstances of each case. Thus, for instance, the court might not readily make the order where the default was unintended or lasted only for a short time. But the position would be different where the default was intentional and went on for a long time.

In the instant case it is undisputed that the appellant was in arrears with his payment of rent for months. In his defence the appellant claimed that he failed to pay his rent because the respondent refused to accept it and insisted only on having possession of her room. The landlady of course refuted any allegation that she refused to accept rent. The learned trial magistrate found that the appellant failed to pay rent because of his own default and not because the respondent refused to accept it. I think he was entitled to come to that conclusion. Because

both parties agree that at one time the landlady did complain to the C.C.M. office, *inter alia,* that the appeliant did not pay the rent. Following such complaint the appellant was directed to pay his arrears of rent which he did for some time until October 1976. From that time onwards he neither paid his arrears nor the current rent.

If it is true that the respondent refused to accept rent and arrears of rent paid by the appellant, then why should she have complained to the C.C.M. office, in the first instance, that the appellant was not paying his rent and that he should be made to pay the same? And once the C.C.M. office had directed the respondent to recover arrears of rent, what would make her now refuse to recover arrears of rent, what would make her now refuse to accept payment of such arrears which she had asked for? And if it is true that the respondent refused to accept rent and insisted on having possession of her room, why did the appellant not report back to the C.C.M. office which had directed him to pay the rent to her?

Yet it is significant to note that the appellant is not consistent in his allegation that the respondent was refusing to accept rent. At some stage in his defence he changed his story and said that in November 1976 he went to the home of the respondent to pay the rent but she was not there. Now the first question to ask is, if it is true that the respondent was absent, how did the other tenants (who were shown to be several) managed to pay their rent to her? But what is more is this. The appellant stated further that during the month of December the respondent was present and on 31.12.1976 he went and saw her at her house in connection with some other matter. Now the question is, if he could not pay his rent in November because the respondent was absent, what prevented him from paying it in December when he knew that she was at home and he in fact found her there? In my opinion the learned trial magistrate was quite justified on the evidence to find that the appellant failed to pay the rent and arrears of rent on account of his own default and not because the respondent was absent or refused to accept the same.

Thus the evidence makes it plain that the appellant's default in the payment of rent was not unintentional. The appellant neglected to pay the rent even after the C.C.M. office reminded or directed him to do so. He persistently neglected to pay the rent for over nine months wheich is a long time. To my mind this would not be a fit case where the court might exercise discretion not to make an order for possession. On the contrary I think that an order for possession would be perfectly reasonable here. Such an order would enable the respondent to find an alternative tenant who is prepared to meet his obligation of paying rent promptly and regularly which rent the respondent is lawfully entitled to recover.

There was overwhelming evidence that the relationship between the parties as landlady and tenant has been strained. It has been characterised by the use of abusive language and such like conduct by one party to the other. Indeed according to the appellant himself, he was on one occasion taken to court on account of such conduct as against the respondent and he was found guilty and duly warned I think that an order for possession in such circumstances would be reasonable. It would serve to bring to an end the friction and disharmony which now exists between the parties. It would enable either party to find an alternative tenant or

landlord, as the case may be, with whom he or she can live or exist in harmony.

In addition to all this the appellant has two alternative accommodations. He stated that in addition to the room in the respondent's house he has another room in Temeke. On the other hand, he added his family lives in Moshi and they rarely stay in Dar es Salaam. In such circumstances, I am of the opinion that an order for possession is unlikely to cause any hardship to the appellant, and for that reason it could not be said that it would be unreasonable to make such an order.

In the final analysis, therefore, I am of the view that this is a case in which possession could properly be ordered against the appellant under s. 19(1)(a) of the Rent Restriction Act and that the appellant could not claim protection under sub-section (2) of s.19 of the act. Therefore Mr. Rahim's second ground of appeal fails.

I still have to consider one last question, and that is this:- I have made a finding that the purported notice to quit was invalid and so it was insufficient to terminate the tenancy. But was this fatal to the claim since there was already a default in the payment of rent as has been sufficiently demonstrated above? In other words, was the notice to terminate the tenancy really necessary here? Unfortunately both counsel in their arguments did not address their minds to this question. But I think it is necessary to decide on that question because the result of this appeal depends to a great extent on it, as will be shown presently. Section 26(1) of the Rent Restriction Act provides that:-

> 26. — (1) A tenant who, under the provisions of this act, retains possession of any premises shall, so long as he retains possession, observe and be entitled to the benefit of all the terms and conditions of the original contract of tenancy, so far as the same are consistent with the provisions of this act, and shall be entitled to give up possession of the premises only on giving such notice as would have been required under the original contract of tenancy, or, if no notice would have been so required, then, notwithstanding any provision to the contrary in any wtitten law, on giving not less than one month's notice:
>
> Provided that, notwithstanding anything in the contract of tenancy, a landlord who obtains an order for the recovery of possession of any premises or for the ejectment of a tenant retaining possession as aforesaid shall not be required to give any notice to quit to the tenant.

It would appear from this sub-section that when a tenant retains possession under the provisions of the Act, then this landlord cannot make him give up possession unless he (the landlord) has given him a notice to quit. But the proviso to the sub-section seems to make it clear that no such notice is required when the landlord obtains an order for possession against the tenant. In other words I think it means that when, as a result of court process, a landlord obtains an order for possession against the tenant under any of the grounds specified in s. 19(1) of the Act then he need not give any notice to quite to the tenant.

Now, applying the sub-section to the facts of this case, the respondent landlady claimed in court and obtained an order for possession against the appellant on the ground, *inte alia,* of non-payment of rent. As was shown earlier on

such cause of action is sanctioned by s.19(1)(a) of the act when read together with sub-section (2) of that section. Consistent with the proviso to s.26(1) of the Act, therefore, no notice need be given to the appellant in such circumstances. So that although the respondent purported to give notice to the appellant which notice turned out to be invalid, such a notice was really not necessary and consequently the fact of its being invalid was immaterial or even irrelevant. If I had held that the notice was necessary either under the terms of the contract of tenancy or by virtue of the Rent Restriction Act, then I would have proceeded to consider the effect of its being invalid and I might well have found for the appellant. But as it is now, for the reasons I have endeavoured to give above I am of the view that the question of the invalidity of the notice does not arise.

In the result I am of the view that judgement of the learned resident magistrate ordering possession against the appellant was well founded both in law and on the facts, and I see no good reason to interfere. That judgement is therefore upheld and accordingly the appeal is dismissed with costs.

Appeal dismissed.

RUBEN S/O OTIM v. REPUBLIC

[HIGH COURT OF TANZANIA AT DAR ES SALAAM, (Kisanga, J.)]

CRIMINAL APPEAL 326 OF 1977

Road Traffic — Driving into a no entry — Whether careless use of a motor vehicle — Section 50 of the Road Traffic Act, No. 30 of 1973.

Road Traffic — Driving into a no entry — Whether any offence has been committed.

The appellant was charged with, among others, careless use of a motor vehicle. He was convicted. The appellant had driven into a no entry road. On appeal he argued that driving into a no entry road does not constitute careless use of a motor vehicle. The learned judge considered whether driving into a no entry road can constitute any offence at all.

Held: (i) the conduct of the appellant, driving into a no entry road, did not disclose the offence of careless use of a motor vehicle;

(ii) the appellant's conduct disclosed the offence of failing to comply with the direction of a traffic sign (ss. 117(2)(d) and 113(1) Traffic Act, G.N. 524, 1965).

Appeal allowed in part.

Case referred to:

(1) *Abdulrasul Sabur v. Republic*, [1958] E.A. 126.

Marandu, for the appellant

A. Suleiman, for the Republic

October 30, 1978. **KISANGA, J.:** The appellant was charged with and convicted on two counts of careless use of a motor vehicle and using a motor vehicle on a road while its condition was defective contrary to ss. 50 and 39(1) respectively of the Road Traffic Act. He was sentenced to two thousand shillings fine or six months' imprisonment on the first count and to five hundred shillings fine or two months' jail on the second count. He has now appealed.

The charge as laid in the first count says:-

Offence Section and Law:

Careless and use (sic) of a motor vehicle contrary to ss. 50, 27(1)(b) and 63(2)(d) of the Road Traffic Act No. 30 of 1973.

Particulars of Offence:

Ruben Otimu charged, on the 17th day of November, 1976 at about 12.45 hours along Nkomo Street within the township, District Region of Morogoro being the driver of a motor vehicle with registration No. TAA 257 Volkswagen did drive the said motor vehicle on the public road carelessly, to wit, while approaching Morogoro/Dar es Salaam road, drove through a no entry.

Essentially the charge alleges that the appellant used the motor vehicle on public road carelessly in that he drove into a no entry road. Mr. Marandu who represented the appellant in this appeal submitted that the act of driving into a no entry road did not constitute or disclose the offence charged. On the other hand Mrs. A. Suleiman, the state attorney appearing for the Republic, maintained that the charge was well founded and correctly laid. I am inclined to agree with Mr. Marandu's submission. The term "careless" connotes failure to exercise due care, or failure to take precaution. But it is not true that a person who drives into a no entry road necessarily fails to exercise care or to take precaution. For instance, a person may deliberately ignore a no entry sign and drive into the road which is so prohibited. This would not amount to carelessness. On the other hand it would be a conscious act of contravening a traffic sign, and indeed the person doing such act might be acting very carefully in order to avoid, say, running down a pedestrian or colliding with another vehicle coming from the opposite direction. I am therefore of the view that the conduct of the appellant here did not disclose the offence of careless use of motor vehicle contrary to s.50 of the Road Traffic Act under which the charge was brought.

The next question is whether the appellant's conduct as alleged disclosed any offence at all under the Road Traffic Act. Mr. Marandu declined to express any opinion here and to that extent he was not very helpful. Mrs. Suleiman's position, of course, is understandable. Once she maintained though errorneously as I have

indicated sufficiently, that the charge was well founded and properly laid, she could not be expected to be of any assistance on this point. It seems to me that the appellant's conduct disclosed the offence of failing to comply with the direction of traffic sign. Section 117(2)(d) of the Road Traffic Act provides that:-

> All traffic signs erected or installed under (the Traffic Ordinance) shall continue in force and shall be deemed duly erected or installed under this act.

The Traffic (Traffic Signs) Rules 1965 were enacted under the Traffic Ordinance and published as G.N. No. 524 of 1965, and one of the signs erected thereunder is the "NO ENTRY" sign. That sign therefore is deemed to be duly erected under the Road Traffic Act. Section 113(1) of the Road Traffic Act in so far as it relates to the facts of this case provides:-

> 113. — (1) Every person who contravenes or does any act forbidden by this Act ... and the contravention ... is not made an offence under any other provision of this Act..., shall be guilty of an offence and shall be liable on conviction to a fine not exceeding two thousand shillings or imprisonment for a term not exceeding six months or to both such fine and imprisonment.

In so far as I have tried to ascertain, the contravention of a no entry sign is not made an offence under any other provision of the Act, and so I think it can properly be made an offence under this section. That is to say the charge might properly have been laid under ss.117(2) (d) and 113(1) of the Act.

The next question to consider is whether the error of preferring the charge under s.50 instead of under ss. 117(2)(d) and 113(1) of the Act as indicated was fatal. A similar question arose in the case of *Abdulrasul Subur v. Republic*, [1958] E.A. 126. That also was a traffic case in which the appellant was charged with driving in excess of speed limit. The charge, however, cited a wrong section of the law, but the particulars of the offence gave all necessary details of the offence alleged. It was held that since the particulars adequately informed the appellant of the offence with which he was charged, the error did not cause a failure of justice and it was curable. However the conviction was quashed on some other ground. In the instant case the particulars of offence make it very clear that the charge was that of driving into a no entry road, and the appellant can have been under no misapprehension at all about it. It would therefore follow that the error was harmless because it occasioned no failure of justice and consequently it was curable.

There was some evidence on which the trial magistrate could have found, as he did, that the appellant drove into a no entry road. Indeed Mr. Marandu did not seek to challenge this finding in any serious sense, his main ground of appeal being that the act of driving through a no entry road could not found a conviction under s.50 of the Road Traffic Act on which the charge was based. Accordingly I would, in the circumstances, substitute the conviction under ss.117(2)(d) and 113(1) of the said Act and uphold the same.

It is noted that the sentence of shillings 2,000/- fine or six months' imprisonment imposed on this count is the maximum prescribed under s.113(1). This was totally wrong and there was no justification whatever for it. The appellant was a first offender and there is nothing which could be said to amount to

aggravating circumstances in the commission of the offence. Quite clearly the sentence was manifestly excessive. Accordingly I would interfere and reduce that sentence to shs. 200/- fine, It would serve no useful purpose to impose a prison term as an alternative because the appellant had opted to pay the fine. However it is further directed that the sum which he paid in excess of shs. 200/- on this count be refunded to him.

On the second count it was alleged that the appellant drove his motor vehicle when it was defective. The said defects were: a tyre worn out to canvas, a defective head-lamp and defective stoplights. The prosecution called a motor vehicle inspector (P.W.1) who duly supported the charge by stating that he inspected the appellant's vehicle and found these defects. In his memorandum of appeal however the appellant complains that he was not afforded an opportunity to cross-examine this witness, and he filed an affidavit in support thereof. No counter affidavit was filed in rebuttal. On the other hand the record shows that at the end of the examination-in-chief of P.W.1 the magistrate made the following endorsement:- "XXD accused:- No". On the face of it this endorsement tends to suggest that the appellant was afforded the opportunity to cross-examine the witness but he did not wish to do so. But I could not be certain about this view especially as the prosecution have chosen not to file any counter-affidavit. If the appellant's allegation in the affidavit was completely unfounded, one would certainly expect the prosecution to file counter-affidavits of the trial magistrate and or the public prosecutor to the same effect. In the absence of any such counter-affidavits I could find no good ground for completely dismissing the appellant's complaint as having no substance in it. Mrs. Suleiman appearing for the Republic sought to apply for an adjournment to enable the Republic to file such counter-affidavits but Mr. Marandu properly objected to the application on the ground that the prosecution had more than one year since the appeal was lodged and they have given no reason at all for not filing such counter-affidavits then. I accordingly disallowed the application for adjournment.

The appellant's defence was that on the day of the incident he drove over a pit or ditch as he was going to work, and his intended cross-examination of the vehicle inspector (P.W.1) way to try to show that the defects in the head lamp and in the stoplight were, or could have been, caused during such mishap. As it is now, I do not know what P.W.1's opinion would be on the matter, and in such circumstances the appellant is entitled to the benefit of the doubt. However, P.W.1's opinion would have made no differences as regards the defective tyre which the appellant in his own evidence admitted to have been worn out to canvas. Therefore I would uphold the conviction on the second count only to the extent of driving a motor vehicle with a defective tyre, and the fine of five hundred shillings imposed in respect of that count is accordingly reduced to shillings 100/-. Once again it is directed that any sum which was paid by the appellant in excess of shs. 100/- on this count be refunded to him.

In the result the appeal is partly allowed to the extent as indicated.

Appeal allowed in part.

AKBERALI A. MANJI AND OTHERS *v.* MRS. SAKERKHANU J. SELEMAN

[HIGH COURT OF TANZANIA AT DAR ES SALAAM, (Kisanga, J.)]

CIVIL APPEAL 21 OF 1977

Land Law — Landlord and Tenant — Rent Restriction Act, Cap. 479 — Increase of Standard Rent without recourse to the Rent Tribunal (ss.16(1)(a)(i) and 17(2)(a) of Cap. 479) — Increase of rent by resorting to the tribunal (ss.17(i)(n) and 4(2)(a) of Cap. 479).

Civil Practice and Procedure — Limitation of time for appeals from the Rent Tribunal — Interpretation of Rule 4 of the Rent Restriction (Appeals) Rules, 1962, G.N. 357 of 1962 — Treatment of the tribunal's decisions falling under the ambit of order 20 rule 1 of the Civil Procedure Code, 1966.

This is an appeal by twelve tenants occupying the suit premises that had been the subject of increase of standard rent as granted by the rent tribunal upon the application of the respondent landlady. The tribunal had granted the increase upon her submission that the tenancy premises had not been subjected to any rent increases for 18 years notwithstanding increases in rates and taxes. The tenants appealed on the ground that the increase in rent accepted by the tribunal was much more than the actual increase in rent and taxes. The respondent on her part submitted a preliminary objection that the appeal was out of time as the *Rent Restriction (Appeals) Rules*, 1962, G.N. 357 of 1962, provided a limitation period of 30 days for appeals. The tribunal gave its ruling on 19th February, 1977 and its order was dated 25th February, 1977 yet the appellants lodged their appeal on 6th September, 1977. The appellants contested that they were notified on the decision on 11th August, 1977 and had lodged their appeal on 6th September, 1977, well within the 30 days from the notification. The preliminary issue was whether time started to run from the date of the decision or on the date when the decision was communicated to the appellants.

Held: (i) that the preliminary objection ought to be dismissed as G.N. 357 of 1962 is silent on when time starts running in connection with the tribunal's decisions, whereby Order 20 Rule 1 of the *Civil Procedure Code*, 1966, applies to require such decision to be pronounced to the parties. As such the effective date for the running of the limitation period starts on the date when the decision has been notified to the appellant;

(ii) that rent increases above standard rent due to increase in rates and taxes can be made by serving due notices to the tenants by the landlord without having resort to the tribunal (vide ss.16(1)(a)(i) and 17(2)(a) of Cap. 479). However, the increase must be limited to the extent of the increase in rates and taxes;

(iii) that the power for the tribunal to increase standard rent is conferred by ss. 7(1)(n) and 4(2)(a) of Cap. 479 and the tribunal's discretion is wide depending on the evidence and circumstances presented to it for the justification of the increase;

(iv) that the respondent's application to the tribunal can be deemed to have been made under ss.7(1)(n) and 4(2)(a) of Cap.479. In that event the tribunal erred in its determination of the increase of standard rent as it had not determined what the original standard rent at the prescribed date was supposed to be.

Appeal allowed.

Cases referred to:

(1) *Sagarmal Marwari v. Lachmisaran Misir,* A.I.R. Patna, 1923, p.129.
(2) *Qutab Din v. Mahanda and Others,* A.I.R. 1935 Lahore p.895.
(3) *Somani v. Desai,* [1973] L.R.T. n.55.

October 14, 1978. **KISANGA, J.:** The respondent landlady in this case applied to the rent tribunal for an increase of the standard rent. Her application was granted, but the tenants have now appealed against that decision. In this appeal the tenants, numbering twelve in all, were represented by Mr. R. C. Kesaria while the landlady was represented by Mr. M. J. Raithatha. At hte beginning of the hearing, Mr. Raithatha took a preliminary objection on the ground that the appeal was out of time. After hearing arguments for both sides, I overruled the objection and proceeded to hear the appeal on the merits. In this judgment I propose first to give my reasons for overruling Mr. Raithatha's objection.

The ruling of the tribunal is dated 19th February, 1977 and its extracted order is dated 25th February, 1977, but the appeal was lodged only on 6th September, 1977. Rule 4 of the Rent Restriction (Appeals) Rules 1962 published as G.N. 357 of 1962 provides as follows:-

> No appeal to the High Court from an order, decision or determination of a tribunal shall be made later than thirty days from the date of such order, decision or determination:
>
> Provided that the High Court may for any good and sufficient cause grant any person leave to appeal out of time. When any such leave is granted the High Court shall specify the date by which the appeal shall be lodged.

Mr. Raithatha, therefore, submitted that the appeal was out of time because it was lodged well over thirty days after the decision of the tribunal, and so it could not be entertained unless this court grants an application to extend the time. In answer to that Mr. Kesaria stated, and he was not challenged, that the decision of the tribunal was communicated to his clients only on the 11th August, 1977 and, as pointed out earlier, he lodged the appeal on 6th September, 1977. He therefore contended that the appeal was in time because it was within thirty days of the date on which the tribunal's decision was notified to the appellants. Thus the question to be decided is whether for purposes of an appeal from the decision of a tribunal under the Rent Restriction Act, the period of limitation begins to run on the date on which such decision is made or on the date on which that decision is notified to the party appealing.

Mr. Raithatha vigorously contended that time begins to run from the date of the decision, and not from the date of its notification to the appellant. According to him once the tribunal makes a decision, time begins to run as from that date, and after 30 days have expired an appeal would be time barred even though the parties were not aware of the existence of such a decision of the tribunal. In this respect Mr. Raithatha referred me to an Indian decision in the case of *Sagarmal Marwari v. Lachmisaran Misir*, A.I.R. Patna 1923 p.129 based on Order 20 Rule 1 of the Indian Code of Civil Procedure which is almost identical with our own Order 20 Rule 1 of the Civil Procedure Code. In that case the trial judge wrote and signed a judgment on 17th of January but that judgment was not read or communicated to the parties until 10th February. On appeal the issue of limitation arose and it was held that the limitation period began to run on 10th February, when the judgment was pronounced and the parties knew the effect of that judgment whether it would be necessary to appeal or not. But Mr. Raithatha took the view that the Civil Procedure Code which comprises Order 20 Rule 1 does not apply to the instant case which arises from the Rent Restriction Act except to the extent as provided for under s.11(4) of the Rent Restriction Act. Section 11(4) of the Rent Restriction Act reads:-

> The Chief Justice may make rules governing any such appeals to the High Court and providing for the taking of further evidence, the fees to be paid, the scale... of costs of any such appeal, the procedure to be followed and the manner of notifying a tribunal or the parties of an appeal, and until any such rules are made and subject to any such rules when made the provisions of the Indian Code of Civil Procedure shall apply as if the order, decision or determination of the tribunal was a decree of a court exercising original jurisdiction.

As mentioned before, rules have already been made under s.11(4), namely the Rent Restriction (Appeals) Rules 1962 cited above. And if I understand Mr. Raithatha correctly he is saying this: Under r.4 the appeal must be lodged within 30 days of the decision of the tribunal, but the word "pronounced", appearing in Order 20 Rule 1 of the Civil Procedure Code, cannot be read into this rule. In other words, under r.4 the relevant date is that on which the tribunal makes its decision, but that rule cannot be interpreted or construed to mean the date of notifying the decision to the parties so that for appeal purposes the limitation period might be deemed to begin to run from there.

Mr. Kesaria submitted that Order 20 Rule 1 of the Civil Procedure Code was applicable here. In this respect he referred me to an Indian decision in the case of *Qutab Din v. Mahand and Others*, A.I.R. 1935 Lahore p.895. That decision also was based on Order 20 Rule 1 of the Indian Code of Civil Procedure which, as observed earlier, is almost identical with our own Order 20 Rule 1 of the Civil Procedure Code, and it was to the effect that a judgment which has not been pronounced does not operate as a judgment but merely as minutes or memoranda made by the judge who wrote the same.

Mr. Kesaria further referred me to s.9(10) of the Rent Restriction Act which provides that the proceedings of a tribunal shall be deemed to be judicial proceedings. Therefore he submitted in effect that Order 20 Rule 1 of the Civil Procedure Code should apply which lays down the procedure to be followed respecting the outcome or results of a judicial proceeding.

On perusing the Rent Restriction (Appeals) Rules 1962, it is clear that they make no provision as to what to do about the decision of a tribunal once it is made. That is to say there is no indication at all that the decision of a tribunal is to be pronounced or communiated to the parties. According to Mr. Raithatha there is nothing to permit any construction or interpretation that the parties are to be notified of such decision, and therefore there can be nothing to warrant any suggestion that for appeal purposes the limitation period begins to run from the date such decision is notified to the appellant. I find it difficult to accept such submission. When the law provides for machinery for hearing disputes of the parties it seems that one would also expect it to make provision for notifying the parties the results or outcome of such litigation. This is clearly the object of Order 20 Rule 1 of the Civil Procedure Code which requires the judgment to be pronounced. So that Mr. Raithatha's contention that Order Rule 1 does not apply to proceedings brought under the Rent Restriction Act, with great respect, appears to me to be artificial and unrealistic. For, as pointed out earlier, s.9(10) of the Rent Restriction Act provides that the proceedings of atribunal shall be deemed to be judicial proceedings. In such circumstances I am inclined to agree with Mr. Kesaria that the provision of Order 20 Rule 1 would apply to such proceedings, which are deemed to be judicial, and I can see no valid ground for drawing a distinction.

The application of Order 20 Rule 1 as indicated above would appear to be permitted by s.11(4) of the Rent Restriction Act which was set out earlier and which says in part that,

> ... subject to any such rules when made the provisions of the Indian Code of Civil Procedure shall apply as if the order, decision or determination of the tribunal was a decree of a court exercising original jurisdiction.

That is to say, since r.4 of the rules as made under s.11(4) of the Rent Restriction Act are silent on what to do about the decision of a tribunal, then Order 20 Rule 1 of the Civil Procedure Code, which superceded Order 20 Rule 1 of the Indian Code of Civil Procedure, should apply to require that such decision of a tribunal shall be pronounced. I am also of the view that for the purpose of an appeal, such a decision does not become operative unless and until it is pronounced or notified to the parties. For, if a tribunal has reached a decision but such decision has not been pronounced or notified to the parties, it would be completely unrealistic to expect a party to appeal against such decision the effect of which he does not know. Thus I hold that for the purpose of an appeal the limitation period starts to run only on the date on which the decision of a tribunal was notified to the appellant.

As pointed out earlier, in the instant case it was not disputed that the appellants were notified of the decision of the tribunal only on 11.8.1977 and the ap-

peal was lodged on 6.9.1977. Accordingly I would say that the appeal was in time in that it was lodged within thirty days of the decision, as stipulated under r.4 of the Rent Restriction (Appeals) Rules, and therefore there was no need to file an application for leave to appeal out of time. It is for these reasons that I overruled the objection.

Turning now to the appeal on its merits. The facts of the case are short and simple. The respondent is the landlady of premises situated at Mrima Street Plot No. 142/21 in the city of Dar es Salaam to which the provisions of the Rent Restriction Act apply. The twelve appellant are her tenants, some of them renting flats of different sizes and others renting offices also of different dimensions. As stated earlier, the landlady applied to the tribunal for an increase of rent on the ground that there has been no increase of the rent since the premises were let some eighteen years ago, while land rent and site rates have gone up by about ten times. In 1974 land rent was shs. 476/- per year but at the time of the suit it had gone up to shs. 4,925/- per year. The tribunal granted the application. It permitted various increases on the different types of accommodation resulting in a total increase of shs. 16,728/- per year.

Mr. Kesaria took objection to this award. His main ground of appeal which was set out in ground (1) of his memorandum of appeal reads:-

> The landlord is entitled (under s.16(1)(a)(i) of Cap.479) to an increase of such amount by which the rates or taxes payable by the landlord have been increased since the premises were let.

Accordingly, he argued, the tribunal should have permitted a total annual increase of shs. 4,449/- only which is arrived at by subtracting the 2974 land rent from the present land rent i.e., 4,925/- - 476/- = 4,449/-. In other words Mr. Kesaria agrees in principle to an increase in rent but objects to the magnitude or extent of such increase as effected by the tribunal.

Before considering the merits of the complaint it seems necessary to make one or two preliminary observations on some aspects of this submission by Mr. Kesaria. It would appear that the power of the tribunal to increase standard rent is not conferred by s.16(1)(a)(i) of the Rent Restriction Act as submitted by Mr. Kesaria. The relevant part of that subsection provides:-

> 16.-(1) The amount by which the increased rent of any premises may exceed the standard rent shall, subject to the provisions of this Act, be as follows:-
>
> (a)(i) in the case of premises upon which the rates or taxes payable by the landlord have been increased since the premises were let to the tenant, by such amount of any such increase as is from time to time paid by the landlord;

The point becomes clear when this provision is read together with s.17(2)(a) of the Act which says:-

> Notwithstanding any agreement to the contrary, where the rent of any premises is increased, no such increase shall be due or recoverable until or in respect of any period prior to the following unless-

(a) in the case of any increase permitted under paragraph (a) of subsection (1) of s.16, a date one clear week after the service of notice in writing by the landlord upon the tenant of his intention to increase the rent;

The instant case is not one in which the landlady sought to increase rent by serving notices on her tenants of her intention to do so. Therefore the case did not come within the purview of s.16(1)(a)(i) of the Act as contended by Mr. Kesaria. Mr. Raithatha submitted that the combined effect of the provision of ss.16(1)(a)(i) and 17(2)(a) of the Act as quoted above is to confer power on a landlord to increase the standard rent without having to resort to a tribunal. With that submission I respectfully agree. The effect of this distinction is clear as will be demonstrated a little later on in this judgment.

The power of a tribunal to increase standard rent is conferred by s.7(1)(n) of the Rent Restriction Act which provides:-

7.—(1) The tribunal shall, in relation to every rent restriction area, have power to do all things which it is required or empowered to do by or under the provisions of this Act, and without prejudice to the generality of the foregoing shall have power —

....

....

....

(n) to allow any increase of the standard rent of any premises which a tribunal is empowered to allow under the provisions of this Act;

Section 4(2)(a) of the Act lays down the principle which shall guide the tribunal when exercising its power to alter the standard rent. The relevant parts of that subsection read:-

Notwithstanding anything contained in the foregoing provisions of this section —

(a) In the case of any premises in regard to which a tribunal is satisfied that in the special circumstance of the case it would be fair and reasonable to alter whether by way of increas for reduction the amount of the standard rent as ascertained in accordance with subsection (1), the tribunal may assess the standard rent of such premises at such figure as the tribunal shall in all the circumstances of the case consider reasonable;

Thus it is quite apparent that a landlord may effect an increase in the standard rent under ss.16(1)(a)(i) and 17(2)(a) of the Act simply by serving notice on his tenant of his intention to a tribunal for the purpose. But as I said before the effect of pursuing one or the other of the two courses is clear. Where the landlord acts under the provisions of ss. 16(1)(a)(i) and 17(2)(a) of the Act, he can increase the standard rent only on the ground that rates or taxes payable by him have been increased, and the amount of increase is also limited only to the extent to which the rates or taxes have been increased. But if he applies to the tribunal un-

der ss.7(1)(n) and 4(2)(a) of the Act, the power of the tribunal to increase the standard rent is not limited or restricted to a particular ground, and there is no restriction as to the amount of increase which it can order.

Having said that I now turn to consider the merits of Mr. Kesaria's ground of appeal which is essentially that the amount of increase of the standard rent as assessed by the tribunal was too big or excessive. In order to do so it is necessary to examine in detail the approach adopted by the tribunal in effecting the increase in rent, and for the sake of clarity I shall quote the following passage from the ruling of the tribunal:-

> It has now become clear from the proceedings that the premises are in fact mainly used for residential purposes, ipso facto, the prescribed date is 1st July, 1959.
>
> Since the suit premises were not let on the prescribed date the tribunal, therefore, determined... the standard rent reasonably as if these premises were let on the prescribed date but s.4(2) provides exceptions viz. Section 4(2)(a) the tribunal is satisfied that there are special circumstances of the case which warrant fair and reasonable alternation of the amount of the standard rent by way of increase in accordance with subsection (1) on grounds that:
>
> (a) Rent paid by the tenants has remained the same for more than 18 years now;
>
> (b) during this period land rent and service charges have increased periodically from shs. 476/- to shs. 4,925/- per annum.
>
> (Evidence on these two points is available). It is on these grounds and evidence on record and after visiting the suit premises the tribunal decided that the standard rent shall be fixed as follows.

Then the tribunal went on to quote the old rent and the new rent in substitution thereof in respect of the various types of accommodation.

It is at once apparent that there is some confusion here. By relying on the provisions of s.4(2)(a) of the Rent Restriction Act the tribunal was clearly seeking to exercise its powers to increase standard rent. But the question is, was there any standard rent ascertained as yet? At the hearing of this appeal neither counsel touched on this question, and arguments proceeded on the assumption that there was standard rent already determined and that the only question to be decided was the extent to which such standard rent should be increased. The tribunal found that the prescribed date for the suit premises was 1.7.1959. It also found that the suit premises were not let at that (prescribed) date. There was evidence to support these findings. Therefore, it would seem that the next step was to ascertain the standard rent i.e., the rent which the premises would have been let on 1.7.1959. The tribunal did not do this, what it did was to treat as standard rent the rent which was charged, say, in 1972 or 1973 when a tenant was let into possession of the premises. This would seem to be clearly wrong. It amounts to putting the cart before the horse. The rent charged in say 1972 or 1973 could not be the standard rent on which to base assessment of an increase of the standard rent. In these circumstances, therefore, I am of the view that there was no base on which the

tribunal could have proceeded to assess the increase in the standard rent as it purported to do. To reiterate, the tribunal should have first of all ascertained the standard rent i.e., the rent at which the premises would have been let on 1.7.1959. The procedure for doing this was set out very clearly by ONYIUKE, J. in the case of *Somani v. Desai*, [1973] L.R.T. n.55. Having ascertained the standard rent, the tribunal could then proceed to assess the increase in the standard rent, and in so doing it was to be guided by the principles set out in s.4(2)(a) of the Rent Restriction Act quoted above.

As stated earlier, the application in the instant case was based on the ground that there had been no increase of rent over the past eighteen years while taxes and rates had gone up from shs. 476/- to shs. 4,925/- per year. It has also been pointed out that this was a ground which entitled the respondent landlady under the provisions of ss.16(1)(a)(i) and 17(2)(a) of the Rent Restriction Act to increase the standard rent, without having to resort to the tribunal, merely by serving the requisite notices on the tenants of her intention to increase the standard rent. But I think that the landlady could validly choose to apply to the tribunal under the provisions of ss.7(1)(n) and 4(2)(a) of the Act instead of exercising her right under ss.16(1)(a)(i) and 17(2)(a) to increase the standard rent. She might exercise such option if, for instance, she considered that she would secure a bigger rent increase in so doing, and I could find nothing in law which would prevent her. Thus in my opinion the present application may properly be deemed to have been brought under the provisions of ss.7(1)(n) and 4(2)(a) of the Rent Restriction Act even though this was not so stated expressly. The reading of subsection 4(2)(a) set out above, makes it very clear that in order to justify an increase in the standard rent when an application is made to a tribunal, the applicant must satisfy the tribunal that there are special circumstances which would warrant ordering an increase. What amounts to special circumstances is a question of fact depending on the facts of a particular case, and in the instant case it was for the tribunal to decide whether the increases in rates and taxes with no corresponding increases in rent as claimed by the respondent landlady amounted to aspecial circumstances.

In the result the appeal is allowed. The order of the tribunal whereby it purported to increase the standard rent is set aside. The matter is remitted back to the tribunal with a direction that the tribunal shall first determine the standard rent and, on the basis of that, proceed to assess the increase thereof according to law as indicated above. The parties shall bear their own costs of this appeal.

Appeal allowed.

AMIDA D/O SHABANI *v.* ALFANI MTENGA

[HIGH COURT OF TANZANIA AT DAR ES SALAAM, (Kisanga, J.)]

MATRIMONIAL CIVIL APPEAL 5 OF 1978

Family Law — Decree of annulment — Relevant on voidable marriages — Section 96(1) of the Law of Marriage Act, 1971.

Family Law — Subsisting marriage — Subsequent marriage — Void ab initio — Declaratory decree follows — Section 94(2)(a) of the Law of Marriage Act, 1977.

Civil Practice and Procedure — Declaratory decree — Power of court to order division of matrimonial property under s.114 of Law of Mariage Act, 1971 not applicable.

The appellant was married to one Yahaya Mgonigani under Customary law marriage since 1964. While the marriage was still subsisting the appellant moved and lived with the respondent for four years in a purported marriage. The respondent did petition to divorce the appellant. The primary court declared the marriage a nullity for want of capacity to marry on part of the appellant and annuled it. The appellant was dissatisfied hence this appeal.

Held: (i) decree of annulment is relevant only to a voidable marriage which remains valid for all purposes unless and until one of the spouses opts to avoid it and the court duly annuls it;

(ii) where the marriage is void "ab initio" the court grants declaratory decree that the marriage was not valid for want of capacity to marry;

(iii) powers of the court to order division of matrimonial property under s.114 of the Act lies only on a valid marriage and not a void marriage after a declaratory order.

Declaratory order granted.

No case referred to:

July 6, 1978. **KISANGA, J.:** The appellant is a woman who lived with the respondent from 1973 upto 1977 when the respondent filed a petition for divorce against her, and she contested the suit. The primary court magistrate sitting with his assessors found that the appellant, before coming to live with the respondent, was previously married, under customary law, to one Yahaya Mgonigani since 1964 and that marriage was still subsisting. They therefore held that the purported marriage between the appellant and the respondent was a nullity for want of capacity to marry on the part of the appellant, and consequently they proceeded to annul it. In doing so the magistrate stated that he relied on s.96(2) of the Law of Marriage Act.

I am satisfied that the findings and the conclusion of the trial court were amply justified on the evidence, but I think that the section of the law relied on was inapplicable. Section 96(2) of the Law of Marriage Act which the magistrate relied on provides;

> The court shall have power to grant a decree of annulment in respect of any marriage contracted outside Tanganyika or in any foreign Embassy, High Commission or consulate in Tanganyika where the court is satisfied that any of the conditions specified in s.36 or, as the case may be, s.37 has not been complied with.

It is at once apparent that this sub-section may be invoked only if the marriage in question was contracted outside Tanganyika or in any foreign Embassy, High Commission or consulate in Tanganyika. The purported marriage of the parties in the instant case, however, took place at Mlimba in Kilombero District and therefore it could not come within the ambit of the sub-section.

But there was a further error which was even more basic than that. Upon reading s. 96(1) of the Act, it seems clear that the decree of annulment is relevant only to cases of voidable marriages. That sub-section, for the purpose of this argument only reads:-

> [The court shall have power to grant a decree of annulment in respect of any marriage which is voidable under the provisions of s.39.] A voidable marriage is valid unless and until one of the spouses exercises his or her option to avoid it and the court duly annuls it. Such would be the case, for instance, where at the time of the marriage either spouse was incapable of consumating the marriage. If no spouse takes steps to avoid such a marriage them it remains a valid marriage for all purposes. But in the case of a void marriage such as in the instant case, the marriage was void "ab initio". In other words it is as if there had been no marriage at all from the very begin-x ning. A decree of annulment under s.96 of the Act, therefore, could not be applicable here where there has been no valid marriage at any given moment of time. I am therefore satisfied that the decree of annulment in this case was granted in error.
>
> It appears that in the circumstances the court might properly have granted a declaratory decree under s.94(2)(a) of the Act. That sub-section provides:-
>
> Without prejudice to the generality of sub-section (1), the court may,
> (a) on the petition of any person who was a party to a ceremony purporting to be a marriage, whether such ceremony took place in Tanganyika or any other country, grant a decree declaring the ceremony to have been or not to have been a valid marriage for the purpose of the law of Tanganyika;

Consistent with that view, and acting on this provision of the law, I would accordingly set aside the purported decree of annulment and substitute therefore a declaratory decree to the effect that the purported marriage between the appellant

and the respondent was not a valid marriage for want of capacity to marry on the part of the appellant by reason of her prior existing marriage.

But the matter does not end there. The trial magistrate, after granting the purported decree of annulment, went further to make an ancilliary order for the division of the matrimonial property of the parties. The power to order division of matrimonial assets is conferred by s.114(1) of the Law of Marriage Act which provides:-

> 114. — (1) The court shall have power, when granting or subsequent to the grant of a decree of separation or divorce, to order the division between the parties of any assets acquired by them during the marriage by their joint efforts or to order the sale of any such asset and the division between the parties of the proceeds of sale.

On the face of it, this sub-section means that the court may order division of matrimonial assets following the grant of a decree of separation or divorce. But in the present case the principal decree granted was, or purported to be, one of annulment, not one of separation or divorce. And the question is whether the sub-section can be construed to mean that it empowers the court to order division of matrimonial assets following the grant of decree of annulment. However since I have held that the decree of annulment was granted in error, it becomes not necessary now to determine that question. Perhaps that question may arise for consideration in the future.

The immediate question for consideration, however, is whether the said order can now stand in the light of the declaratory decree which I have substituted. Once again on the literal interpretation of it, the sub-section may be invoked following the grant of a decree of separation or divorce. The sub-section does not say that it may be invoked following a declaratory decree such as in the present case. It seems also that it cannot be construed to mean that it was intended by parliament to apply to such situations. For, if parliament had any such intention, it was only too easy to say so. But what is more is this. I think that the object of s.114(1) of the Act is to try to ensure fairness between a man and woman who have been parties to a valid marriage, and to my mind before invoking the provisions of that sub-section it must be shown as a condition precedent that the parties whose property it is sought to divide are spouses to a valid marriage which has been dissolved by the court or which is still subsisting but the parties are living apart pursuant to a decree of judicial separation. But as stated earlier a void marriage is by definition one where there was no marriage at all from the very beginning. That is to say a void marriage does not satisfy the condition precedent. Thus s.11(1) of the act cannot be invoked following a declaratory decree that a purported marriage between the parties was not a valid marriage. For these reasons I am satisfied that the purported order for the division of the matrimonial property in the instant case cannot be allowed to stand, and it is accordingly set aside.

The further order placing the child of the parties (Shida do Halfani) in the appellant's custody and requiring the respondent to pay shs. 50/- per month to the appellant in respect of that child's maintenance appears to be sound. Although the

appellant at the hearing of this appeal complained that the child's maintenance award was too small, I find no good grounds for varying it.

In the result, the appeal fails. No order for costs is made.

Declaratory order granted.

JUMANNE SALUM PAZI *v.* REPUBLIC

[HIGH COURT OF TANZANIA AT DAR ES SALAAM, (Kisanga, J.)]

CRIMINAL APPEAL 261 OF 1977

Criminal Practice and Procedure — Trial without jury — Duty of first appellate court.

Criminal Law — Persons jointly charged — Impossible to ascertain which one committed the offence — Acquittal.

Criminal Law — Persons jointly charged — If common intention to commit the offence established — Conviction.

The appellant was jointly charged with another person, the first accused, with unlawful possession of government trophy. The trial magistrate found that the offence was committed but could not ascertain which particular one of the two committed the offence. He convicted both of them on the ground that he believed the prosecution evidence and disbelieved the defence evidence.

On appeal the learned state attorney urged the judge to allow the appeal on the ground that the trial court did not consider defence evidence at all. The learned High Court judge considered the duty of the first appellate court in such instances.

Held: (i) this court, being the first appellate court, must consider the evidence, evaluate it itself and draw its own conclusion (*Pandya v. R.*, [1957] E.A. 336, *Selle and Another v. Associated Motor Boat Co. Ltd., and Others* [1968] E.A. 123 and *Okeno v. R.*, [1972] E.A. 32, followed);

(ii) where two or more persons are jointly charged with an offence and it is impossible to ascertain which particular one committed the offence then all of them must be acquitted unless there be established on the part of the accused persons common intention to commit the offence charged;

(iii) the evidence showed that the appellant had interest in the bags in question and took part in making arrangements to transport them to Dar es Salaam, as such he was a joint possessor of the bags;

(iv) the appellant, as joint possessor, was a principal to the commission of the offence.

Appeal dismissed.

Cases referred to:

(1) *W. J. Lockhart-Smith v. R.*, [1965] E.A. 211 ,
(2) *R. V. Frederick Marriott*, [1924] 18 Cr. App. R. 74
(3) *R. v. Laski and Shaw*, [1959] Crim. L.R. 791.
(4) *R. v. Anthony David Frast and George Talbot Hale*, 48 Cr. App. R. 284.
(5) *Tatu Taijiri v. R.*, [1970] H.C.D. n.289.
(6) *Coghlan v. Cumberland*, [1892] 1 Ch. 701.
(7) *Scott v. Musial*, [1959] 2 Q.B.D. 429.
(8) *Denkerrai Ramkrishan Pandya v. R.*, [1957] E.A. 336.
(9) *The Glannibanta*, [1876], 1 P.D. 283.
(10) *Selle and Another v. Associated Motor Boat Co. Ltd., and Others*, [1968] E.A. 123.
(11) *Okeno v. R.*, [1972] E.A. 32.
(12) *Juma Salum and Another v. R.*, [1972] H.C.D. n.163.

S. J. Jadeja, for the appellant.

M. Shinganya, for the Republic

April 10,1978 **KISANGA, J.:** The appellant and another person, whom I shall refer to as the first accused, were jointly charged with and convicted of being in unlawful possession of Government Trophy contrary to s.67(1) and (2)(b) of the Wildlife Conservation Act, and were each sentenced to 3 years' imprisonment. The appellant has now appealed against both conviction and sentence. He was represented in this appeal by Mr. Jadeja and the respondent Republic was represented by Mr. M. Shinganya, state attorney.

Mr. Jadeja filed four grounds of appeal which essentially amount to two namely, that:-

(1) the trial magistrate did not consider the appellant's defence at all; and
(2) the prosecution evidence as adduced was not sufficiently reliable or adequate to sustain the appellant's conviction.

Mr. Shinganya, the learned advocate for the Republic also did not seek to support the appellant's conviction on the sole ground that the trial magistrate failed to consider the appellant's defence. I propose to deal with Mr. Shinganya's submission first because it raises a point of law on which the rest of the appeal lies. Mr. Shinganya submitted that the magistrate's failure to consider the appellant's defence was an incurable wrong. In other words, the error was fatal to the conviction, and nothing could possibly be done about it; indeed he went further to say that the error was so fatal that not only must the conviction be quashed, but that not even a re-trial could be ordered. It therefore becomes apparent that this submission forms the backbone of the entire appeal because if it is upheld, this would necessarily lead to quashing the conviction even without having to consider or refer to the evidence. And it is for this reason that I propose to deal with it first.

In support of his submission that the magistrate's failure to consider the appellant's defence was an incurable error, Mr Shinganya relied on a number of decisions of this court, but it will be sufficient to refer to only two of them. First he cited the case of *W. J. Lockhart - Smith v. R.*, [1965] E.A. p. 211. In that case the appellant was charged with contempt of court in the district court. The trial magistrate convicted him and in doing so he (the magistrate) said that he disbelieved the defence because he believed the prosecution. On appeal to the High Court WESTON, J. held that such error was incurable and accordingly he quashed the conviction. He relied for that view on English decisions in the cases of *R. v. Frederick Marriott*, (1924) 18 Cr. App. R. 74, R. *v. Laski and Shaw*, [1959] Crim. L.R. 791 and *R. v. Anthony David Frost and George Talbot Hale*, 48 Cr. App. R. 284 which are to the effect that in a trial with a jury the judge, in his summing up, must put the defendat's case to the jury for their consideration. In the cases of *Marriott* and *Frost and Another* convictions were quashed. In the case of *Laski and Shaw* the jury after retiring to consider their verdict, came back to ask for further guidance. Accordingly the trial judge gave them such further guidance but in doing so he did not repeat the appellants' defences to them. On appeal such failure was criticised but the conviction was upheld on the ground that the jury had not forgotten the defences i.e., they were still having or keeping in their minds the appellants' defences as put to them by the trial judge when he addressed them in the first instance. On the authority of these cases then the conviction in the case of *Lockhart - Smith* was quashed, as was said earlier, on the sole ground that the trial magistrate did not take into consideration the appellant's defence. This decision was followed in the case of *Tatu Taijiri v. R.*, [1970] H.C.D. n. 289 in which the trial magistrate convicted the accused for corrupt transaction without, however, considering the defence, and on appeal to this court EL-KINDY, Ag. Judge, quashed the conviction on that ground alone. Mr. Shinganya urged me to follow these discisions and allow the appeal in the present case.

The principle as laid down in the three English cases on which the decisions in *Lockart - Smith* and *Taijiri* were based, applies in cases of trial with a jury. But in cases of trial without a jury different principles apply. In the English case of *Coghlan v. Cumberland*, [1892] I Ch. 704 there was an appeal from the decision of a judge dismissing a suit for rescission of contract on the ground that the plaintiff had failed to prove the misrepresentation relied upon. In the course of dealing with the matter, the Court of Appeal said,

> The case was not tried with a jury, and the appeal from the judge is not governed by the rules applicable to new trials after a trial and virdict by a jury. Even where, as in this case, the appeal turns on a question of fact, the Court of Appeal has to bear in mind that its duty is to rehear the case, and the court must consider the materials before the judge with such other materials as it may have decided to admit. The court must then make up its own mind, not disregarding the judgment appealed from, but carefully weighing and considering it; and not shrinking from overruling it if on full consideration the court comes to the conclusion that the judgment is wrong.... When the question arises which witness is to be believed rather than another, and that

question turns on manner and demeanour, the court of Appeal always is, and must be guided by the impression made on the judge who saw the witnesses. But there may obviously be other circumstances, quite apart from manner and demeanour, which may show whether a statement is cridible or not; and these circumstances may warrant the court in differing from the judge, even on a question of fact turning on the cribility of witnesses whom the court has not seen.

Again in the case of *Scott v. Musial*, [1959] 2 Q.B.D. 429 the Court of Appeal was considering an appeal against an award of damages by jury but in the course of doing so it said something which is relevant to the issue in the present case, namely this:-

In the present case there was a jury. It is now said that their award was excessive. In considering this matter the approach of the court is different from its approach in cases tried by a judge alone. Where there is an appeal from the decisiof of a judge sitting alone the appeal is by way of rehearing. The rehearing applies to the issue of damages as well as to other issues.

Thus, the principle that emerges from these two English cases is that a first appeal from a judge sitting without a jury is by way of rehearing. But that principle had for quite some time been recognized and accepted in East Africa by the Court of Appeal for Eastern Africa as being part of the law of this country. Indeed this was so even before the case of *Lockhart - Smith* was decided. In the case of *Dinkerral Ramkrishan Pandya v. R.*, [1957] E.A. 336 the Court of Appeal for Eastern Africa was dealing with a second appeal in which the appellant had been convicted f breaking and entering an office and stealing therein, and his first appeal to the High Court had been unsuccessful. One of the questions for consideration and determination by the Court of Appeal was, what is the role or duty of a first appellate court, and in answering that questions the court cited with approval the passage from the case of *Coghlan v. Cumberland* reproduced above, and another similar passage in the case of *The Glannibanta*, [1876] 1 P.D. 283 and proceeded to declare as follows:-

In our view the principles declared in those passages are basic and apply with equal force to a first appeal from a conviction by a judge or magistrate sitting without a jury in any of the jurisdiction of this court.

The Court of Appeal followed its decision in *Pandya's* case in the subsequent case of *Selle and Another v. Associated Motor Boart Co. Ltd., and Others*, [1968] E.A. 123 and more recently in the case of *Oken v. R.*, [1972] E.A. 32.

In the present case the trial which was before a district magistrate was without a jury, and the principles to be applied are those as laid down by the Court of Appeal in the cases which I have just referred to above. That is to say, this court, being the first appellate court, must consider the evidence, evaluate it itself and draw its own conclusion. So that where, as in this case, it is alleged that the trial magistrate failed to consider the appellant's defence, this alone cannot

constitute a valid ground for allowing the appeal and quashing the conviction automatically as the learned state attorney contends. If the court did that it would be failing in its duty. It has to consider and evaluate the evidence itself and, in the process, consider the appellant's defence, or indeed any other matter, which the trial magistrate may have failed to take into account in considering his judgment. In the light of these authorities of the Court of Appeal, therefore, it becomes very clear that I cannot follow the decision of this court in the cases of *Lockhart - Smith* and *Taikiri* as was urged upon me by the learned state attorney. Perhaps I might point out that even EL-KINDY, J. himself in a subsequent judgment declined to follow his own earlier decision in *Taijiri's* case which Mr. Shinganya relies on. Thus in the case of *Juma Salum and Another v.r.*, [1972] H.C.D. n. 163 in which the appellant were convicted of robbery with violence, the learned judge, after referring to the cases of *Pandya* and *Okeno* and the principle laid down therein, reviewed the evidence himself and, finding that it supported the charge, upheld the conviction. Thus there could be very little point in counsel citing *Taijiri's* case.

Having said, that, I now turn to the facts of the case which may be briefly summarized as follows:-

On the day in question the first accused went to a bus stand in Morogoro town and said that he was travelling to Dar es Salaam. He then directed the bus from there to the appellant's home to pick some bags of rice from there to be transported to Dar es Salaam. On arriving at the appellant's home he informed the appellant, whose one leg is lame, that he had brought the bus. Then he (the first accused) and the turn boys loaded three bags of rice on the bus and just as they were leaving the appellant asked the first accused to pay shs. 5/- loading charges to the turn boy. At some point on the way the bus was stopped and upon inspecting the three bags they were found to contain not only rice but also elephant tusks — thirteen in all. On being asked, the first accused claimed that the three bags belonged to the appellant who had requested him to convey them to Dar es Salaam.

In his defence the appellant denied the charge. He stated that while he was away, the first accused who is his friend brought the three bags of rice to his home and kept them there. When the appellant returned home the first accused informed him of the bags and said that he had kept them at the appellant's home because his own house was too far away from the place where he had bought them, and added that he would be going to Dar es Salaam on the following day. On the following day the first accused brought a bus, loaded his three bags on it and went away.

The trial magistrate after summarising the evidence for both sides merely said that he believed the prosecution evidence and disbelieved the defences of the accused persons which consisted of throwing the blame on each other. I agree with counsel for both sides that the approach adopted by the magistrate here was wrong. The magistrate should not have started off by accepting the prosecution evidence first. His duty was to consider the evidence as a whole and to see if there was anything in the accused's defence, or indeed in the other evidence including that of the prosecution witnesses, which raises any reasonable doubt as to the guilt of the accused. As was shown earlier on in this judgment this court must

discharge that duty, and I shall now proceed to do exactly that. In doing so perhaps I should point out that in this case the decision as to which evidence is to be believed and which is not to be believed does not depend on the observation of the manner and demeanour of witnesses. And therefore this court would be in just as good a position as the trial court to evaluate and assess the evidence as recorded even though it had not the advantage of seeing the witnesses.

Mr. Jadeja contended that the evidence before the court is so inadequate and unsatisfactory that it is not possible to say which of the accused persons was the guilty man. In such circumstances, he submitted, the appellant was entitled to an acquittal. I take the view that where two or more persons are jointly charged with an offence and it is impossible to ascertain which particular one committed the offence then all of them must be acquitted unless there be established on the part of the accused persons common intention to commit the offence charged. Mr. Jadeja conceded that in the present case either the appellant or the first accused was guilty of the offence charged but that it was impossible to say which particular one was the guilty person. For my part, however, I think the crucial question is whether or not there was joint possession of the tusks by the accused persons, because if it is shown that there was such joint possession of the tusks then it would necessarily follow that the accused persons had a common intention to commit the offence unless there be justification or excuse for such possession.

When the first accused led the bus to the appellant's home he duly informed the appellant that he had brought the bus. This goes to suggest that the appellant had an interest in the first accused's act of bringing the bus there. Because if he had no interest in the matter i.e., if the first accused merely brought the bus there to collect his own property, that is, the three bags, then why should he find it necessary to inform the appellant that he had brought the bus? Again there was the evidence of Juma Ngayonga (D.W.3) that after the bus arrived at the appellant's home, the appellant had a conversation with the turn boys of the bus after which the turn boys proceeded to load the three bags on the bus. I accept the evidence of this witness and find that such conduct of the appellant is indicative of a person who had an interest in the bus coming to his home and taking away the bags. Because if the bus merely came to collect the property of the first accused, why should he, the appellant, go to talk to the turn boys on this business which did not concern him? But what is even more significant is this. After the bags were loaded on the bus and as the bus was leaving, the appellant asked the first accused to pay shs. 5/- to the turn boy as loading charges. Once again the question is, if the appellant had no interest in the whole business and had nothing to do with the three bags then why should he take the trouble and pain of seeking to ensure that the turn boy was accordingly paid for the service he rendered in loading those bags on the bus? To my mind the only reasonable conclusion which can be drawn from these points is that the appellant had an interest in the bags in question and took part in making arrangements to transport them to Dar es Saam. Thus I find as a fact that the appellant was at least in joint possession, with the first accused, of the bags in question and the elephant tusks contained therein. This in law constituted the appellant a principal to the commission of the offence and I

could find nothing in his defence or in the evidence as a whole to justify or to tend to justify or excuse his possession of the said tusks.

The conviction was therefore justified on the evidence and it is accordingly upheld; and the sentence imposed is the minimum prescribed by law. In the result the appeal is dismissed in its entirety.

Appeal dismissed.

SELEMANI RASHIDI AND OTHERS *v.* REPUBLIC

[HIGH COURT OF TANZANIA AT MTWARA, (Kisanga, J.)]

CRIMINAL APPEAL 117 OF 1975

Evidence — Accomplice evidence — Requires corroboration to sustain conviction — Matter of practice

Evidence — Confession of co-accused — Whether may support a conviction — Section 33 Evidence Act, 1967 — Meaning of "take into consideration".

The appellant and two others were charged with and covicted of being in unlawful possession of government trophy. The basis for convicting the third of the appellants was a confession by a co-accused implicating him.

On appeal convictions of the first two appellants were upheld but that of the third was quashed.

Held: (i) as a matter of practice accomplice evidence requires corroboration to support a conviction;

(ii) as a matter of practice a conviction should not be based solely on the confession of a co-accused;

(iii) the words "take into consideration", in s.33 of the Evidence Act, 1967 mean that such evidence is of the weakest kind and can only be used as lending assurance to other evidence against a co-accused;

(iv) the conviction of the third appellant cannot stand having been based solely on the confession of his co-accused.

Appeals by 1st and 2nd appellants dismissed.

Appeal by 3rd appellant allowed.

Cases referred to:

(1) *Rozer v. R.*, (1971) H.C.D. n. 42.

(2) *Fabiano Obedi and Others v. Uganda*, [1965] E.A. 622.

(3) *Swai and Others v. Republic*, [1974] E.A. 373.
(4) *Gopa v. R.*, [1953] 20 E.A.C.A. 318.
(5) *Ezera Kyabanamaizi v. R.*, [1962] E.A. 309.
(6) *Asoka v. R.*, [1973] E.A. 222
(7) *Anyuma Omolo v. R.*, [1953] 20 E.A.C.A. 218.
(8) *Anyango v. R.*, [1968] E.A. 239.

Appellants absent, unrepresented

M. Shinganya, for the Republic

October 13, 1976. **KISANGA, J.:** The two appellants and one Juma Issa Mtendani were jointly convicted of being in unlawful possession of government trophy contrary to s. 67(1) of the Wildlife Conservation Act and they were each sentenced to 3 years' imprisonment. On examining the file it is noted that all of them gave notices of appeal but it appears that the memorandum of appeal of Juma Issa Mtendani was not received, or if it was received, it was misplaced. I therefore propose to proceed with the matter as if all of them have appealed.

The appeal of Selemani Rashidi is completely devoid of merit because it was proved and he admitted that he was found in possession of a leopard's skin, and his only defence was that it was brought to him for drying by the co-accused persons. His conviction therefore was sound and the sentence imposed cannot be said to be manifestly excessive such as to warrant interference by this court. That sentence is accordingly confirmed.

The conviction of Juma Issa Mtendani also was justified because he went about looking for a customer to buy the leopard's skin which he said he was keeping with the appellant Selemani Rashidi and, acting on such information the police duly found the skin in possession of Selemani. In other words Juma Issa Mtendani was in constructive possession of the leapord's skin and this was sufficient to found his conviction. For the reason as intimated earlier, the sentence imposed on him is hereby confirmed.

As for the appellant Juma Hassan Umbaliche, however, the position seems different. The only evidence tending to implicate him was that of his co-accused, Selemani Rashidi, who testified that this appellant was among the persons who brought the leopard's skin to him. The appellant of course denied the allegation and there was no other evidence whatsoever connecting him with possession of the skin. It is clear that the evidence of Selemani implicating the appellant is accomplice evidence and under s.142 of the Evidence Act such evidence is receivable against a co-accused. That section reads;

> 142. An accomplice shall be a competent witness against an accused person; and a conviction is not illegal merely because it proceeds upon the uncorroborated testimony of an accomplice.

But this court has repeatedly held that as a matter of practice accomplice evidence requires corroboration — see for instance *Rozer v. R.*, [1971] H.C.D.

n.42. In that case BIRON, J. state the rule most succintly,

> There is no rule of law that the evidence of an accomplice requires corroboration, but rather the contrary as expressly laid down in s.142 of the Evidence Act 1967.... It is however a salutary rule of practice to require corroboration of the evidence of an accomplice.

Again in the case of *Fabiano Obedi and Others v. Uganda*, [1965] E.A. 622 the Court of Appeal held that where the judge failed to direct himself on the need for corroboration of accomplice evidence and there being in fact no evidence except accomplice evidence against the appellant the appellant's conviction must be quashed. In the instant case the trial magistrate merely stated in his judgment that he accepted the evidence of Selemani Rashidi but he made no reference whatever to the need for corroboration and, as I mentioned before, he could find no such evidence of corroboration even if he had sought to do so. I consider that this was a serious non-direction which renders the conviction of Juma Hassani Umbaliche completely unsupportable.

It is true that while Rashidi Selemani implicated his co-accused the said Juma Hassani Umbaliche in his evidence, he himself confessed fully to the offence charged. Thus Mr. Shinganya, the state attorney appearing for the Republic submitted that in terms of s.33 of the Evidence Act 1967 as repealed and re-enacted by the Administration of Justice (Miscellaneous Amendments) Act No. 26 of 1971, the confession of Rashidi in so far as it related to his co-accused Juma Hassani Umbaliche, could be taken into account as against the co-accused and to found conviction of that co-accused. Sections 33 of the Evidence Act provides,

> 33.—(1) When two or more persons are being tried jointly for the same offence or for different offences arising out of the same transaction, and a confession made by one of such persons affecting himself and some other of such persons is proved, the court may take into consideration such confession as against such other person.

In support of that submission he referred me to the decision of this court (per MFALILA, J.) in the case of *Swai and Others v. R.*, [1974] E.A. 373. In that case the only evidence against the appellant Swai consisted of extra-judicial statements made by his three co-accused implicating him. On appeal, the learned judge quashed the appellant's conviction first because the extrajudicial statements were not proved in court and second, because those extra-judicial statements were merely exculpatory or self-serving statements which did not amount to confessions. But the learned judge went on to hold that in a proper case he would, acting under s.33 of the Evidence Act, convict an accused person solely on the confession of a co-accused implicating both himself and the accused person. This is what the learned judge said in his judgment at p.381 of the report,

> I would therefore say that the requirements to be applied to extra-judicial statements, whether retracted or not sought to be used against accused per-

sons other than their makers under s.33 of the Evidence Act, are first to determine and make a finding whether such a statement amounts to a confession, secondly the extra-judicial statement must be proved in court, and thirdly it must be corroborated in material particulars unless the court is otherwise satisfied as to its truth. Once the statement is found to possess these requirements, it can be used as evidence, that is to say in the words of the section itself, the court may take it inot consideration as evidence agaisnt the other accused person implicated in it in considering the guilt or otherwise of such other accused person. If the court is satisfied after hearing all the evidence that the confession is as true to such other accused as it is to its maker, then I can see no reasons for the court to refrain from convicting such other accused. But the court must find and accept its truth.

I will therefore conclude this part of the judgment by stating that in a proper case, a court of law can act and convict solely under the evidence proved and admitted under s.33 of the Evidence Act.

In other words, in the case before him the learned judge makes it quite clear that he would have upheld the appellant's conviction if the extra-judicial statement of the co-accused had been proved in court, and if they amounted to confessions and if he accepted them to be true.

But the Court of Appeal has on numerous occasions held that a confession by an accused person can only be used as lending assurance to other evidence against the co-accused, and that it cannot be used as the basis for the prosecution case. See for example *Gopa v. R.*, (1953) 20 E.A.C.A. 318 and *Ezera Kyabanamaizi v. R.*, [1962] E.A. 309. Before s.33 of our Evidence Act was enacted, the authority for taking such statements into account against a co-accused was s.30 of the Indian Evidence Act which formerly applied to this country and which provided that,

> Where more persons than one are being tried jointly for the same offence, and a confession made by one of such persons affecting himself and some other of such persons is proved, the court may take into consideration such confession as against such other persons as well as against the person who makes such confession.

The learned judge took the view that the principle that such evidence can only be used to lend assurance to other evidence was developed with reference to certain aspects which were peculiar to s.30 of the Indian Evidence Act, and therefore he himself set out to interpret s.33 of the Tanzanian Act free from such influences. His reasoning is well demonstrated by the following extract from his judgment at p.380 of the report.

> It is clear then that the view on confessions admitted for use in the circumstances provided under s.30 of the Evidence Act, that they can do no more than lend assurance to other evidence, was developed under the influence of three factors all of which are peculiar to that Act. The first factor was the view that these confessions are not evidence within the meaning of

s.3 of that Act and that consequently they can neither stand alone nor be supported by other evidence, they can only be used in support of other evidence. The second factor was the false comparison that was made by the text writers between admissions under s.21 and confessions under s.30. The third and last factor was what is clearly a manifestation of dislike for this section by those who had to administer it is India, who regarded it as anything from dangerous to extra-ordinary. My task therefore is to interpret the phrase "may take into consideration" in s.33 of our Evidence Act free from these Indian influences, the aim being to arrive at an interpretation which will ensure a just decision, just, in the sense that the section is neither a loop-hole through which the guilty escape nor a snare for the innocent.

Thus according to the learned judge there is or there should be, a difference in approach when interpreting the words "may take into consideration" as used in s. 33 of the Tanzania Act to mean that a person may now be convicted solely on the confession of a co-accused. But before his own decision in *Swai's* case the Court of Appeal itself had occasion to consider the meaning of that same expression "... may take into consideration", as used in the Tanzanian Act. This was in the case of *Asoka v. R.*, [1973] E.A. 222. In that case a co-accused made a confession involving both himself and the appellant. The trial judge properly considered such a statement as evidence against the appellant but the Court of Appeal criticised him for putting too much reliance on such evidence. To use the very words of the Court of Appeal at p.224 of the report,

> The judge was correct in considering this statement as evidence against the appellant, and we agree that the weight to be placed on such a confession must vary with the circumstances of each case, but the judge clearly misdirected himself and placed far too much reliance to these confessions when he said:
>
> 'I would rely on it to found a conviction even without the supporting circumstantial evidence on record'.

Nevertheless the appellant's conviction was upheld because there was other overwhelming evidence on which the trial judge would have necessarily convicted. But referring to s.32 of the Kenya Evidence Act and the Indian Evidence Act which formerly applied to this country, the Court of appeal said that both sections were similar to s.33 of the Tanzanian Act and the Court re-affirmed the interpretation which it has put on the words "take into consideration" as used in the said sections to mean that such evidence is of the weakest kind and can only be used as lending assurance to other evidence against a co-accused — see *Anyuma Omolo v. R.*, [1953] 20 E.A.C.A. 218, *Anyango v. R.*, [1968] E.A. 239 and *Gopa's case. Therefore, in the light of the authorities, I could find nothing to really* suggest that there has been a change in approach to the interpretation of the words "take into consideration" as used either in s.30 of the Indian Evidence Act of in [illegible] of the Tanzania Act. It would seem plain from the foregoing that the ap-

proach on the matter is the same as laid down by the Court of Appeal in the various authorities referred to above. That being so, I consider myself bound by those authorities. So that I cannot now uphold the conviction of the appellant Juma Hassani Umbaliche which was based solely on the confession of his co-accused, because in *Asoka's* case such a course was expressly declared by the Court of Appeal to be a misdirection. I might also and that even if I had the option, I see no good reason for departing from the rule of practice as laid down by the Court of Appeal because I think that the rule does provide an important safeguard against possibilities of convicting the innocent. Thus for example an accused person who has committed an offence may make a true confession of that offence. That is well and good and he may properly be punished for it. But he may for different motives which may not be apparent decide to implicate an innocent person. He may do so, for instance, out of an old grudge or some misunderstanding or purely out of malice simply in order to get a companion in sufferance. Such possibilities could not be ruled out and should it happen then there be no doubt that it amounts to a serious miscarriage of justice. For these reasons I regretfully decline the invitation by the learned advocate for the respondent to follow the views fo my learned brother MFALILLA, J. in *Swai's* case that conviction of an accused person could be based solely on the confession of a co-accused.

In the result the appeals of Selemani Rashidi and Juma Issa Mtendani are dismissed in their entirety. But the appeal of Juma Hassani Umbaliche is allowed. His conviction is quashed and sentence set aside, and he is to be released unless otherwise lawfully held in custody.

Appeals by 1st and 2nd appellants dismissed.
Appeal by 3rd appellant allowed.

REPUBLIC *v.* JOHN KATUA

[HIGH COURT OF TANZANIA AT MTWARA, (Kisanga, J.)]

MISC. CRIMINAL CAUSE 3 OF 1975

Criminal Practice and Procedure — Application for leave to appeal out of time — Late for about 3 years to lodge appeal — Trying to secure services of counsel — Whether sufficient reason to grant application.

Criminal Practice and Procedure — Alternative counts — Conviction entered on one court — No finding to be made on the other.

Criminal Practice and Procedure — Acquittal erroneously recorded — Whether to be regarded as not existing.

Criminal Practice and Procedure — Order of acquittal erroneously made — Whether appellate court may set it aside — Whether appellate court may substitute a conviction during appeal by appellant.

Criminal Practice and Procedure — Acquittal erroneously recorded — Whether an acquittal within the meaning of s. 329 (4) of Criminal Procedure Code, Cap. 20.

Criminal Practice and Procedure — Whether occasioning loss to a specified authority is a cognate and minor offence to stealing by public servant.

The appellant was charged on the first and third counts with stealing by public servant and on the second count with occasioning loss to a specified authority. The second count was in the alternative to count one. He was convicted on two counts of stealing by public servant and the trial magistrate entered an order of acquittal on the alternative count.

After about three years from the date of conviction the appellant lodged his appeal accompanied by an application for leave to appeal out of time on the ground that the delay was due to his attempts to secure services of counsel. The learned high court judge rejected this ground but admitted the appeal because it raised points of law.

On appeal the judge considered whether where there are alternative charges and a conviction is entered on one count, a finding should or should not be made on the other. The court further considered whether an acquittal erroneously recorded is an acquittal, and whether an appellate court may substitute a conviction where an acquittal was made erroneously and the appeal is by the appellant. The high court had also to decide whether occasioning loss to a specified authority is a cognate and minor offence to stealing by public servant.

Held: (i) trying to secure services of counsel for three years is no good ground for granting an application for leave to appeal out of time;

(ii) the evidence raised reasonable doubt as to the guilt of the appellant; the appellant was not guilty of the offence of stealing by public servant;

(iii) where there are alternative counts and conviction is entered on one court then no finding should be made on the other;

(iv) the trial magistrate erred in acquitting the appellant on the alternative count of occasioning loss to a specified authority;

(v) an acquittal once recorded though erroneously, by a court of competent jurisdiction, must remain a court order of acquittal unless and until it is set aside by a superior court;

(vi) where an acquittal has been recorded on the alternative count, the appellate court is not to enterfere with such acquittal because a superior court cannot in the exercise of its revisional powers convert an acquittal into a conviction;

(vii) a charge of occasioning loss to a specified authority is not a cognate and minor offence to that of stealing by public servant.

Appeal allowed.

Cases referred to:

(1) *Wachira Njega v. R.*, [1954] E.A.C.A. 398.
(2) *Adamu Mwambalafu v. R.*, [1966] E.A. 459.

Appellant, absent, unrepresented.

M. Shinganya, for the Republic

October 8, 1976. **KISANGA, J.:** The appellant was charged on three counts altogether under the Penal Code. On the first and third counts he was charged with stealing by public servant contrary to ss.270 and 265. The second count was in the alternative to count one and it charged him with occasioning loss to a specified authority contrary to s.284A(1), and consent of the Director of Public Prosecutions to prosecute for that offence was duly given. The appellant was convicted as charged on the two counts of stealing by public servant but was acquitted on the alternative count and he was sentenced to concurrent prison terms of five years. He appealed against the conviction and sentence on both counts.

The conviction was entered on 13.7.1971 but his memorandum of appeal, duly accompanied by an application for leave to appeal out of time, was not lodged in court until 3.7.1975. In support of his application the appellant in his affidavit stated in effect that he was late to lodge the appeal in time because he was trying, through his brother in Morogoro, to secure the services of counsel. To my mind this could not amount to a ground for granting the application. For, I am not persuaded that a person acting reasonably could take two to three years looking for an advocate. Even assuming that the appellant was looking for an advocate outside the country, it seems apparent to me that if he acted reasonably it would take him much shorter time during which to know whether or not he would get an advocate. However, I decided to grant the application because on perusing the record I thought that points of law were involved. Thus the matter was set down for hearing, the idea being to hear the appeal itself. Attempts were then made to serve the appellant with the notice of hearing but without success. After the last adjournment the court was informed that the appellant had in fact finished serving his sentence and was already released from prison, whereupon a further attempt was made to serve him at his home village and this was successful. Thus at very long last the appeal was heard accordingly although in the appellant's absence as he opted not to appear.

Very briefly the facts of the case were as follows: The appellant was a police constable and at the material time he was stationed in Tunduru. On 11.1.1971 he was on duty at the Tunduru police station as the charge room officer from 3.00 p.m. to 11.00 p.m. He had taken over the charge room from another police officer one Nonosius Mapunda (P.W.9) and among the things which he took over from P.W.9 were two cash boxes belonging to TANU and Judiciary respectively which had been deposited there for safe custody. The cash box for judiciary contained shs. 6,094/40 in hard cash and other valuable documents, altogether totalling shs. 8,000/-, while the cash box for TANU contained shs. 4,044/70 in hard cash and

other documents, altogether totalling shs. 6,000/-. When the appellant wanted to hand over the charge room to his relief at 11.00 p.m. the two boxes were found missing. On 15.1.1971 the two boxes were found broken and thrown in a fish pond. All the moneys which were in the boxes were missing and there were only the papers and the documents lying around. In his defence the appellant denied the charge and claimed that the two boxes were not among the items which he took over from P.W.9.

The trial magistrate rejected the appellant's defence and I cannot say that he erred in so doing. The evidence of P.W.9, supported as it was by the handing over document duly signed by the appellant, provided ample proof that the appellant did take over the two boxes. But there was evidence from both the prosecution and the defence to the effect that on examining the wall at the back of the building, it was found to bear foot marks at a point directly under the window which was only about two feet above the ground. It is not clear from the evidence as recorded whether this window was shut or not but it would appear from the evidence as summed up by the magistrate that the window was open. This is what he said at page 2 of his judgment,

> ... also tried to trace the boxes from the bush around the district offices building and then they noticed a foot-print on the wall showing that someone had climbed the wall and had entered in the charge room through a back window which was not covered as glass was broken.

Thus the evidence, which the magistrate did not reject, indicates that there was a possibility of a person having entered the charge room through the window at the back. The trial magistrate should have considered that possibility and say whether it did raise any reasonable doubt in his mind. This he did not do and he referred to this aspect of the case only when summarising the prosecution evidence as shown above. To the extent of such omission therefore the magistrate was in error. The appellant in his evidence said that at some stage he locked the charge room, because it was too hot, and then he and the other persons who were present remained seated outside. This evidence was not contradicted. In the face of such evidence it is possible that someone may have gained access into the charge room through the back window and removed the cash boxes when the door to the charge room remained locked and the appellant and the other persons were sitting outside it. So that had the magistrate considered this aspect of the evidence, he might have found that it did raise a reasonable doubt, but since he did not consider it, I am unable to say that the appellant was not prejudiced thereby.

There was overwhelming evidence that after the appellant had assumed duty on the material day he did not leave the police station, nor was he seen taking anything out of the police station. What is more, there is no evidence of any conspiracy between himself and some other person or persons to steal the cash boxes. In these circumstances it would be impossible to say that the evidence as adduced implicated the appellant sufficiently such as to warrant the convictions of stealing by public servant. In all the circumstances I am of the view that there was a reasonable doubt as to the guilt of the appellant, and the trial magistrate should

seem to me that the principle laid down by the Court of Appeal that where an acquittal has been recorded on the alternative count, the appellate court would be unable to interfere with such an acquittal has its roots in the rule that a superior court cannot, in the exercise of its revisional powers convert an acquittal into a conviction.

Mr. Shinganya further contended that hte rule under s.329(4) of the Criminal Procedure Code forbiding superior courts to convert an acquittal into a conviction applies only where the acquittal was properly entered. In the instant case however the acquittal was erroneously recorded and therefore, Mr. Shinganya contended, this was not an acquittal within the meaning of s.329(4) of the Crimina Procedure Code and consequently the case was not within the ambit of that subsection. I am unable to accept this view. Section 329(4) of the Criminal Procedure Code does not define or qualify an acquittal. As I said before I think that an acquittal, once it is recorded, although erroneously, by a court of competent jurisdiction remains an order of acquittal unless and until it is set aside by a superior court. This therefore was an acquittal within the meanign of s.329(4) of the Criminal Procedure Code. But as I have endeavoured to show, in the circumstances of this case i.e., where the prisoner has appealed, the principle laid down in *Wachira's* case referred to above read in conjunction with the provisions of s.329(4) of the Criminal Procedure Code operates to forbid this court to interfere with the acquittal. For these reasons I am unable to accept Mr. Shinganya's submission that this court could interfere with the acquittal. It is suggested that what should have been done was that once it seemed to the prosecution that the appellant was erroneously acquitted ont he alternative count, then the prosecution should have sought to appeal or cross-appeal. If that were done then this court would exercise its appellate powers to quash the conviction on the first count, set aside the acquittal on the alternative count and condider to substitute a conviction therefor.

Now, assuming that the prosecution had appealed or cross-appealed, there is still to be considered the question whether the alternative charge was cognate and a minor offence. Because according to the passage which I quoted earlier on from the judgment in *Wachira's* case, the Court of Appeal appears to be saying that before a conviction could be recorded on the alternative count the alternative charge must be cognate and a minor offence. That part of the judgment reads,

> ... for it leaves it open, where the alternative count charges a cognate and minor offence, for a Court of Appeal to substitute a verdict of guilty of that offence....

But in its subsequent decision in the case of *Adamu Mwambalafu* referred to earlier the same court appears to have relaxed this requirement. In that case the appellant was charged with arson on the first count and with attempted murder on the second alternative count. He was convicted on both counts. On appeal the conviction on the alternative count was quashed while that on the first count was affirmed. In doing so the court said at p.462 of the report,

> We are of opinion that the charges of arson and attempted murder int he case now under consideration were not cognate such as could properly be charged in the alternative, but were charges alleging two separate and distinct offences. Nevertheless, the Director of Public Prosecutions has the control of criminal proceedings, and if he chooses to charge two counts in the alternative, the trial must proceed on that basis. The Director is alleging, in such a case, that the accused is guilty of either the offence charged in count I or the offence charged in count II, and in such circumstances it is our opinion that, if the court decided to convict on one count, and does convict, it is precluded from convicting on the other count, for the simple reason that the Director, has, in effect, only charged the commission of one offence.

Thus although the charges were not cognate and therefore could not properly be treated as alternative, the court is saying that this is only an irregularity which did not vitiate the trial. The passage makes it very clear that conviction may be entered on one or the other of the counts even though the charges are not cognate. Applying this principle to the present case, I am of the view that the alternative charge of occasioning loss to specified authority was not a cognate and minor offence to that of stealing by public servant. These appear to me to be distinct and separate offences which could not properly be charged in the alternative. But the Director of Public Prosecutions having chosen to prefer the charges in the alternative the trial must proceed on that basis provided only that if the court records a conviction on either count then it is preduded from recording a conviction on the other count. In other words had the trial court not recorded an acquittal on the second alternative count, I would be quite prepared to record a conviction on that count and to quash the conviction on the first count even though the alternative count is not a cognate and minor offence.

In the result the appeal is allowed. Conviction on counts one and three for stealing by public servant are quashed and sentences set aside, and with great reluctance I refrain from interfering with the order of acquittal.

Appeal allowed.

ABRAHAM WILSON SAIGUKAN AND TWO OTHERS v. R.

[HIGH COURT OF TANZANIA AT DAR ES SALAAM, (Kisanga, J.)

CRIMINAL APPEAL 187 OF 1976

Criminal Practice and Procedure—Charge—Variance between the charge and the evidence with respect to the time at which the offence was committed—Whether irregularity necessitates amendment of charge—Criminal Procedure Code, s. 209(2).

Criminal Practice and Procedure—Expert evidence—Non-compliance of expert handwriting report with statutory requirements as to authenticity—Whether report admissible in evidence.

Evidence—Corroboration—Evidence of witness interested in exonerating herself—Whether testimony can be acted on without corroboration.

The appellants were jointly convicted of stealing by servant c/s 271 and 265 of Penal Code. The conviction of the third appellant was based on the uncorroborated evidence of a witness who was interested in exonerating herself; that of the third appellant was based on the testimony of a handwriting expert. The expert purporting to have written the report was not called to give evidence in court. On the other hand, the report did not comply with the provisions of s. 154C (1) of the Criminal Procedure Code. Its admissibility was challenged on appeal. There was some considerable variance between the charge and the evidence in respect of the period during which the offence was alleged to have been committed by the second appellant.

Held: (i) variance between the charge and the evidence adduced in support of it with respect to the time which the alleged offence was committed is not material and the charge need not be amended for such variance if it is proved that the proceedings were in fact instituted within the time, if any, limited by law for the institution thereof;

(ii) for a report of a handwriting expert to be admissible it must be made by a person duly appointed by the Director of Public Prosecutions;

(iii) evidence of a person with an interest of his own must be approached with care and should not be acted upon unless corroborated by some other independent evidence.

Appeal allowed.

Cases referred to:

(1) *Dengwa Masiku* v. *R.*, [1967] H.C.D. n. 454.
(2) *Bartholomeo Daniel* v. *R.*, [1969] H.C.D. n.300.
(3) *T. Othiambo* v. *R.*, Dar es Salaam Criminal Appeal No. 236 of 1976 (unreported).

T. J. R. Tarimo, for appellant.
A. K. Essack, for second appellant.
M. J. Raithatha, for first appellant.
Mlay and *Jeraj* for Republic.

February 21, 1978. **KISANGA, J.:** The three appellants and two others whom I shall refer to as the 4th and 5th accused were jointly charged with stealing by servant contrary to ss. 271 and 265 of the Penal Code. The 4th accused was acquitted. The appellants and the 5th accused were convicted—the 5th accused being convicted in "absentia"—and were each sentenced to three years' imprisonment. The three appellants have now appealed against both conviction and sentence and their appeals are consolidated; as for the 5th accused, however, it would appear that he is still at large. At the hearing of the appeal the appellant Shoo was represented by Mr. Tarimo the appellant Saiguran by Mr. Raithatha, the appellant Mgaya by Mr. Essack and the respondent Republic by Mrs. Mlay and Mr. Jeraj.

As a preliminary remark I wish to point out that this was a long and complicated case involving technicalities of banking, and that the handling of it by both the police and the trial magistrate was most unsatisfactory in many respects. The case was poorly investigated and badly presented; some pieces of information which were clearly essential to prove the case were either left out during the investigation or, if obtained, were not adduced in evidence. The evidence as adduced was so badly recorded that in most cases it did not make sense. For a start, the handwriting was illegible such that myself and all the three counsels for the appellants and the state attorney appearing for the Republic could not make anything out of the scripts as typed out by the registry staff, and upon application from the bar I remitted the record back to the trial magistrate to have the proceedings retyped under her personal supervision. But even then the proceedings as re-typed involve yet another problem of language and in many parts I have had to guess what the magistrate really means. Glancing through the record it becomes very apparent that the learned magistrate failed to have any firm grasp of the case. Admittedly she made some effort to try to evaluate and to appreciate the evidence but without much success, I am afraid, as a result of that she came to conclusions which were unfounded as will be demonstrated later in this judgment.

The facts of the case is so far as I could make out may be briefly summarized as follows:— The appellants together with the 4th and 5th accused were employed in various capacities by the National Bank of Commerce (N.B.C.) Morogoro branch. The appellant Shoo was the supervisor of the foreign exchange department with the 4th and 5th accused working directly under him as clerks, while the appellant Saiguran was working as a cashier and Mgaya was a clerk in the Zonal Office. The Mikumi wildlife Lodge maintained a current account with this branch of the bank and on diverse dates it deposited in that account foreign currencies and foreign bills or cheques. The procedure for depositing foreign currency was as follows:— The customer writes out a paying-in-slip stating the foreign currency which he wishes to deposit and hands both the currency and the slip to a clerk at the counter of the foreign exchange department. The clerk in turn prepares in

triplicate a foreign currency purchase form and works out the equivalent of such currency in Tanzanian money. The clerk then takes both the foreign currency and the purchase form to the supervisor for scrutiny and if satisfied he (the supervisor) signs this purchase form in approval. The supervisor then takes both the foreign currency and the purchase form to the treasury custodian who records the money in a foreign currency register and keeps the currency in the strong room. The original of the purchase form is handed to the customer, the duplicate is sent to the waste department and the triplicate is retained in the department as a file copy. The customer's account is accordingly credited with the equivalent in Tanzanian money as shown on the purchase form.

As stated earlier, the Mikumi Wildlife Lodge paid into its current account various amounts of foreign currencies on different dates. Its account was duly credited with equivalent amounts in Tanzanian money. But it turned out or it appeared that this was done not simply by crediting the account with equivalent amounts in Tanzanian money, but rather it was done by someone physically depositing into the account Tanzanian hard cash of equivalent amounts on the same day, and removing from the bank the foreign currencies together with all or most of the related documents such as the purchase forms. In other words it seems that the acts of removing the foreign currencies and the related documents and of paying into the account on the same day Tanzanian money equivalent to the foreign currencies so removed were designed to make the transactions appear as if they did not involve any foreign currencies but only Tanzanian currency. Only Mikumi Wildlife Lodge would know that the deposits were made in foreign currencies because it retained the paying-in-slip and a copy of the purchase form, but a person examining the records at the bank would get the impression that the deposits were made in Tanzania money and that no foreign currencies were involved. This is so because, first the documents relating to depositing foreign currencies were removed or misplaced, second the deposits were supported by such documents as cash tickets which were used only when depositing Tanzanian currency and third because these deposits were reflected in the waste sheets under the column "cash received" which was applicable only to a deposit made in Tanzania currency. The net effect of the whole operation seemed to be this:— Neither the bank nor the Mikumi Wildlife Lodge lost anything. For, the account of Mikumi Wildlife Lodge was duly credited with equivalent amounts in Tanzanian money of the foreign currencies it deposited, and the amounts of Tanzanian money paid in hard cash to that account did not come from the bank. However, the foreign currency was removed and stolen, thus depriving the State of such money which it needed so badly for purposes of foreign exchange.

A somewhat similar procedure is followed when depositing foreign cheques or bills. A customer makes out a paying-in-slip in respect of the cheque or bill he wants to deposit and presents both the cheque and the slip to a clerk at the counter of the foreign exchange department. The clerk refers the cheque to the supervisor who in turn refers it to the manager or assistant manager and if they are satisfied as to the genuineness of the cheque and the identity of the holder, they give authority to deal with it. Whereupon the clerk prepared in triplicates a bills negotiated form in which he works out the equivalent of the cheque in Tanzanian

money. He then submits both the cheque and the form to the supervisor who examines it and if he finds it correct he signs it and returns both the cheque and the form to the clerk. The original of the form is given to the customer, the duplicate goes to the waste department and the triplicate is retained in the department as a file copy. Then a clerk reverses the cheque and enters it in a foreign cheques register after which both the cheque and the register are sent to the supervisor. The supervisor checks the entry and if he is satisfied that it is correct he signs it accordingly. The customer's account is accordingly credited with the equivalent in Tanzanian money of the foreign cheque so deposited and eventually the foreign cheque is sent to the correspondent bank abroad.

The Mikumi Wildlife Lodge paid into its account various foreign cheques on different dates and its account was duly credited with equivalent amounts in Tanzanian money for these cheques. However, it transpired or it appeared that this was done not simply by crediting that account, but by physically paying into that account Tanzanian money in hard cash equivalent to the foreign cheques and removing from the bank the foreign cheques and the documents relating thereto such as the bills negotiated forms. Such that it is the Mikumi Wildlife Lodge alone that could know that the payments in were made in foreign cheques because of the originals of the bills negotiated forms issued to it evidencing the payment, but a person conducting a check at the bank got the impression that the transactions involved local currency because the payments were accompanied by such documents as cash tickets which were used only when the bank accepted deposits in Tanzania currency. Once again neither the bank nor the Mikumi Wildlife Lodge lost anything because the latter's account was duly credited with Tanzanian money equivalent to the foreign cheques paid in, and such Tanzanian money used for the purpose was not the property of the bank. However, as stated earlier, the Republic was deprived of the foreign currency accruing from the foreign cheques which currency it needed badly for the purpose of foreign exchange. The foreign currencies and the value of the foreign cheques so stolen were said to be equivalent to Tanzanian shs. 17,579/80, and it is the prosecution case that the appellants acting in concert with their co-accused stole the same.

The appellant Shoo in his defence denied the charge. He admitted receiving the various amounts of foreign currencies specified on the documents bearing his signature. He received these in his capacity as supervisor of the foreign exchange department, but he claimed that he duly handed such currencies to one Miss Fatuma Sunderji (PW.3) who was the treasury custodian at the time. As for the foreign cheques or bills, he said in effect that these may have been removed from the bank by some person or persons without his knowledge.

The appellant Saiguran also denied the charge. He stated in effect that he as a cashier had nothing to do with the foreign exchange department. He admitted that as a cashier he did receive the various deposits in Tanzanian currency from the person he cannot recollect who paid them in, in favour of the Mikumi Wildlife Lodge but contended that he had no knowiedge whatsoever that such monies had any connection with the foreign currencies and bills or cheques in question.

The appellant Mgaya in effect said that since he was working in the Zonal Office he could not know or be connected with what went on in the foreign ex-

change department. As indicated earlier, the learned trial magistrate rejected the appellants' defences and, accepting the prosecution evidence, found that the three appellants and the 5th accused jointly planned and stole the foreign currencies and cheques in question.

I shall now consider the case of each appellant in turn. The main piece of evidence implicating the appellant Shoo is that given by Fatuma Sunderji (PW.3) who testified that as a treasury custodian at the material time she did not receive from the appellant the foreign currencies in question for custody. She said that she made no record of such currencies in the foreign currency register and contended that this went to show that she did not in fact receive such currencies. But there was overwhelming evidence that whenever the appellant sent foreign currency to this witness, he did so purely on trust and there was no documentary evidence of such a transaction. Viewed in that light then there was only the word of the appellant as against that of Sunderji. Quite clearly Sunderji was a person with an interest of her own to serve in the matter in the sense that if the appellant was innocent she was the most likely suspect. It has been held on many occasions that the evidence of such a witness must be approached with care. In the case of *Dengwa Masiku* v. *Republic*, [1967] H.C.D. n. 454, for example, the appellant was convicted of stealing some property which was found in the house of one Ali Said. The appellant's defence was that he did not live in that house and that he knew nothing about the stolen property. However the trial court accepted the evidence of Ali Said that the appellant had lived in his (Ali Saidi's) house for the past year and accordingly convicted the appellant. On appeal it was held that Ali Said was a person who had an interest of his own to serve and whose evidence required corroboration. The appellate court however found such corroboration and conviction was upheld. But in the case of *Bartholomeó Daniel* v. *Republic*, [1969] H.C.D. n. 300 involving somewhat similar facts conviction was quashed because there was no corroboration for the evidence of such a person with an interest of his own to serve.

Coming back to the present case then Fatuma Sunderji would have every reason to tell a lie in order to exonerate herself and therefore her evidence implicating the appellant must be treated with care and requires corroboration. In her judgement the trial magistrate made no reference to the need for corrobaration, and to the extent of such omission she was clearly in error. Having said that I have now to consider whether had she properly directed herself on the matter she would have found corroboration of Fatuma Sunderji's evidence. There was evidence that the appellant signed some of the documents relating to the deposits of the foreign currencies, such as the foreign currency purchase forms. But nothing turns on this because the appellant does not dispute receiving the the foreign currencies specified on the purchase forms signed by him. All that he said was that after receiving such currencies he handed them over to Fatuma Sunderji, the treasury custodian. There was also evidence that the appellant signed some of the waste sheets in which the transactions were recorded as if they were deposits made not in foreign currencies but in Tanzanian currency. But this also does not advance the case any further. Because the evidence as adduced was that the equivalents of these foreign currencies were paid into the bank in accordance with

the proper procedure. The payments were duly supported by the correct documents such as cash tickets which were used only when acknowledging deposits in Tanzanian currency and the transactions were duly recorded in the waste sheets as "cash received" which applied only to deposits made in Tanzanian currency. Thus when appellant checked the waste sheets the impression he got was that these deposits were made in local currency, bearing in mind that the documents such as the purchase forms relating to the foreign currencies had been removed or misplaced and there were only documents such as cash tickets relating to deposits in local currency. In those circumstances, what would make him suspect that the entries he was checking in the waste sheets related to deposits made in foreign currencies? Mr. Jeraj one of the state attorney appearing for the Republic contended that when checking the waste sheets the appellant should have remembered that the figures he saw in the waste sheets represented the equivalents of the foreign currencies whose purchase forms he had duly signed in approval earlier in the day. With due respect to the learned state attorney, however, I find this proposition impracticable. For, it is in evidence that on any particular day the appellant signed and approved numerous foreign currency purchase forms; and this was in addition to signing a whole lot of other types of vouchers. I think it would be most unrealistic to expect him to know by heart each purchase form he signed and to recognize its equivalent in Tanzanian shillings when he came across it in the course of his examining the waste sheets. I therefore find that the act of the appellant signing these documents does not in any way corroborate the evidence of Fatuma Sunderji. There is no other evidence tending to implicate the appellant with the theft of the foreign currencies. Thus there is no corroboration of Sunderji's evidence that the appellant did not hand over the foreign currencies to her, and consequently the appellant's conviction relating to the theft of foreign currencies cannot be sustained.

As regards theft of foreign cheques or bills the evidence tending to implicate the appellant was that he duly signed the bills negotiated forms signifying that he not only approved the purchase of such foreign cheques but he also received them. There was also evidence that he signed the foreign cheques register in which the missing cheques ought to have been recorded but they have not been recorded there. But the appellant's defence was that after signing the bills negotiated forms he passed both the forms and the cheques to a clerk for reversing and recording the cheques in the foreign cheques register; he made no note or record whatever of what cheques he so passed to the clerks for this purpose. So that when the foreign cheques register together with the cheques are brought back to him for checking, he cannot discover if the clerk retained some cheque or cheques and omitted to enter the same in the register. All that he can do is to ascertain whether such cheques as are submitted to him have been correctly entered in the cheques register. For my part I find this explanation quite plausible and I see no good reason for rejecting it. There was evidence also that the appellant signed the waste sheets in which the transactions respecting these cheques were recorded as if they were deposits made in Tanzanian currency but my views here would be the same as were expressed earlier when I was dealing with the question of stealing the foreign currencies.

There was no other evidence tending to implicate the appellant Shoo with the alleged theft of foreign cheques or bills either by himself or jointly with others. In this respect it is perhaps pertinent to make one or two remarks respecting the prosecution case generally against the appellant Shoo. There is evidence that the appellant did not sign some of the documents in question. For instance, he did not sign the currency purchase forms dated 31.12.1974 and 18.1.1975 marked exhibit H. and L1 respectively. That is to say there is no evidence to show that the currencies specified in these forms were submitted to the appellant as they ought to have been; there is only the signature of the clerk who attended the customer at the counter. In those circumstances it is inconvertible to see how the appellant could be charged with, let alone be convited for, stealing these currencies jointly with the others because there is nothing to connect him with such currencies. It is also noted that the waste sheet dated 4.1.1975 was checked and passed by someone other than the appellant. But that person was neither charged nor called as a witness. Then it becomes impossible to understand what the prosecution case is there. For, it cannot now properly be maintained that as part of the plan the appellant approved the entries in the waste sheet so as to make it appear that the deposits in question were made only in local currency. Finally, it is common ground that the waste sheets were prepared not by the appellant but by one of the clerks, and that the clerk prepared them from the primary vouchers, such as foreign currency purchase forms, cash tickets etc. But this clerk was not called as a witness. It would seem that this was a material omission. Because if he were called he would have disclosed the source of his information or data from which he compiled the waste sheets. That is to say he would say whether the entries which he made in the waste sheets were of figures obtained from documents relating to deposits of foreign currencies and cheques or from documents relating to deposits of Tanzanian currency. Quite clearly this witness would have advanced the case either for the prosecution or for the defence depending on what he would say, but the prosecution chose not to call him. In all the circumstances therefore I am satisfied that such evidence as was adduced was not sufficient to sustain the conviction of the appellant Shoo.

I now turn to consider the case against the appellant Saiguran. The evidence tending to implicate him was that he, as a cashier, received the deposits in Tanzanian currency which deposits were or seemed to be the equivalents of the foreign currencies and cheques deposited with the bank and subsequently stolen. The prosecution theory was that he, acting with the others, stole the foreign currencies and cheques and in place of these he paid in or received equivalent deposits in local currency in order to cover up the theft. Mr. Raithatha who appeared for this appellant submitted that the deposits made in Tanzanian currency had no connection with the foreign currencies and cheques in question. He took the view that the deposits made in Tanzanian currency were made quite independently of the foreign currencies and cheques, and that it was a mere coincidence that these deposits in Tanzanian currency were equivalent to the foreign currencies and cheques in question. In this respect it should be noted that the bank statement for Mikumi Wildlife Lodge was not put in evidence even though it was available. The prosecutor used it to cross-examine this appellant but the record

makes it clear that that statement was not produced in court, and it is not apparent why. It should be noted further that Arbogust Limo (P.W.9) who operated the bank account on behalf of Mikumi Wildlife Lodge testified that when he deposited the foreign currencies and cheques he also deposited Tanzanian currency, although he could not recall how much. Now, had the bank statement been produced, it would be possible to ascertain whether or not the deposits as made in both foreign and local currencies were reflected therein. This would certainly advance the case one way or the other because if, for example, it turned out that both the admitted deposits in foreign currencies and cheques and the disputed deposits in Tanzanian currency were duly recorded in the bank statement for Mikumi Wildlife Lodge, then quite clearly the case would have been a very different one. But the prosecution for reasons best known to themselves chose not to put the bank statement in evidence and on that account I cannot now come to any definite conclusion on Mr. Raithatha's submission above. Added to that also is the evidence that not all the waste sheets for the relevant dates were produced. As was said earlier, waste sheets are the sheets in which the bank transactions for the whole day are recorded, but the evidence was that only some of the waste sheets for the relevant dates were produced and some were not. Once again such omission was unfortunate. If all the waste sheets for the relevant dates were produced, it would be possible to ascertain whether there were entries in the general ledger column reflecting the deposits which were made in foreign currencies and cheques, and if there were such entries then it is obvious that the case would have been quite different.

But even assuming that the deposits made in Tanzanian currency were the equivalents of the foreign currencies and cheques as deposited by Mikumi Wildlife Lodge, there is no evidence that the appellant was aware of any such connection. Appellant himself testified that the money in Tanzanian currency was paid in by someone whom he cannot remember and that he accepted it in due performance of his ordinary duties as a cashier. That evidence was not challenged or contradicted. The prosecution did not adduce any evidence to show who deposited the money in Tanzanian currency or who allegedly removed from the bank the foreign currencies and cheques together with the documents pertaining thereto. In the circumstances there could be no basis for saying that the appellant was a collaborator in the alleged acts of stealing the cheques and depositing in lieu thereof equivalent amounts in Tanzanian currency. If these acts were committed as alleged, then on the evidence they could very well have been committed by some other person or persons quite independently and without the knowledge of the appellant, in which case the appellant could not be held responsible. There was no other evidence tending to implicate this appellant and therefore I am of the view that the evidence so far adduced was not at all sufficient to implicate him with the alleged offence.

Coming now to the third appellant Mgaya. The only evidence against him was that he wrote out two paying-in-slips (Exhibit J4 and K3) depositing two amounts in Tanzanian currency being the equivalents of two deposits made by Mikumi Wildlife Lodge in foreign currencies. Once again the prosecution theory was that this appellant together with others jointly stole the foreign currencies

deposited in the bank by Mikumi Wildlife Lodge and in lieu thereof deposited the equivalents of these in Tanzanian currency in order to conceal such theft. The appellant, of course denied to have written out the paying in slips. The handling of his case was subjected to a number of specific criticisms by counsel both at the trial and on this appeal. First, the theft which he is alleged to have committed falls outside the period as specified in the charge sheet. The particulars of the charge read,

PARTICULARS OF OFFENCE

> John S. N. Shoo, Abraham W. Saiguran, Jaboc Oswald Mgaya, Isaya Aswile Kamwela and Ramadhani Kibanike between 1st November and 19th December, 1974 at National Bank of Commerce Morogoro in Morogoro Region being persons employed by the said National Bank of Commerce, Morogoro, did jointly steal United States $1,342, Sterling £435 and Sw. Francs 300 totalling Tanzanian shillings 17,579/80, the property of their employer the said National Bank of Commerce.

Thus the allegation is that the theft was committed between 1st November and 19th December, 1974. But the two lots of foreign currencies which the appellant is said to have stolen were lodged in the bank only on 3rd or 4th January, 1975. The question that arises is, could the charge be said to cover the stealing of these two lots? Mr. Tarimo who appeared for the appellant Shoo both at the trial and on this appeal had raised this point at the trial. He took the view that the charge did not cover thefts allegedly committed after the period specified in the charge and suggested to the court to require an amendment to the charge but the magistrate declined saying that there was no need for amendment, and for this view she relied on the provisions of s.209(2) of the Criminal Procedure Code. That subsection reads:—

> Variance between the charge and the evidence adduced in support of it with respect to the time which the alleged offence was committed is not material and the charge need not be amended for such variance if it is proved that the proceedings were in fact instituted within the time, if any, limited by law for the institution thereof.

When the matter was raised again at the hearing of this appeal all the three defence counsels were of the view that this provision applied only where the charge alleges that the offence was committed on a specific date but it turned out on the evidence that it was in fact committed on a different date. They took the view that the provisions did not apply to the present case in which the charge sets out the two dates i.e., 1st November and 19th December, 1974 as limiting the period within which the offences were committed. Although at first I was inclined to the same view, I have on second thoughts come to a different view. I think that the subsection applies equally to the present case. Because the rationale of the subsection is that when the charge alleges, for instance, that a person committed theft on a particular date but the evidence shows that he actually committed it on a dif-

ferent date, this should not affect his case because he had no claim to the stolen property, anyway, whatever be the actual date of stealing it, I think that this reasoning ought to apply equally where the theft is alleged to have been committed during a specified period but the evidence shows that it was committed outside that period. For, I could see no valid basis for drawing a distinction between the two types of cases. I am therefore of the view that the trial magistrate rightly held that the case came within the ambit of s. 109(2) of the Criminal Procedure Code and that it was not necessary to amend the charge.

In support of the charge against this appellant, the prosecution as stated earlier, adduced evidence of handwriting to show that it is the appellant who wrote out the paying-in-slips (Exhibit J4 and K3) depositing to the account of Mikumi Wildlife Lodge two amounts in Tanzanian currency being the equivalents of two lots of foreign currencies duly deposited by Mikumi Wildlife Lodge. There was put in evidence a report by one Harry F. Rwegasira who described himself as "MCHUNGUZI WA HATI". In this report which is extremely brief he merely said in effect that upon examining and comparing the writings submitted to him he formed the opinion that the author of all the writings was one and the same person. The said writings submitted to him consisted of specimen handwritings of this appellant and the two paying-in-slips in question. He does not, however, give any details as to how he arrived at the conclusion that the writings were of one and the same person, and he was not called as a witness either. Yet the magistrate relied on the report to convict the appellant.

There can be little doubt that the magistrate admitted the report in evidence under s. 154C of the Criminal Procedure Code. That section provides,

> 154C.— In any inquiry, trial or other proceedings by or under this Code, a report in the form set out in the Seventh Schedule to this Code, given under the hand of an officer appointed by order of the Director of Public Prosecutions for the purpose, being a report upon any handwriting, or any photographic representation of any handwriting, submitted to him for examination or comparison, together with any photographic prints, enlargements or other annextures referred to therein and signed by such officer, shall be receivable in evidence and such report shall be evidence of the matters stated therein.
>
> (2) The court may presume that the signature to any such report, print enlargement or annexture is genuine.
>
> (3) Where any such report is received in evidence in any trial or proceeding under this Code other than an inquiry, the court shall if the accused or his advocate so requests, and may, if it thinks fit summon and examine the person who made the report or make him available for cross-examination.

Mr. Essack who represented this appellant both at the trial and on this appeal levelled a lot of criticism on the magistrate on this point. He submitted that under s. 154C.—(3) reproduced above the magistrate had a duty to summon the handwriting expert for cross-examination, and in support of that view he referred me

to the decision of NYALALI, C. J. in the case of *T. Othiambo* v. *Republic*, Dar es Salaam Criminal Appeal No. 236 of 1976 (not yet reported) in which the trial court had admitted in evidence, and acted on the report of a handwriting expert without the expert himself being called. On appeal the learned Chief Justice held that when such a report is received under s. 154C of the Criminal Procedure Code, the court has an obligation under subsection (3) to inform the accused of his right to demand that the author of the report be summoned for cross-examination. Since the expert was not called the learned Chief Justice went on, then only little weight could be attached to the report. I have examined the record in *Othiambo's* case and noticed that the accused there was not represented by counsel. And I would entirely agree with the learned Chief Justice that especially where the accused is unrepresented, the court has a duty or obligation under subsection (3) to inform him of his right to demand the calling of the writer of the report for cross-examination. This is so because generally the accused person is not versed in law and, therefore, one would not really expect him to know the rights which he has under the law.

But quite clearly the issue dealt with in *Othiambo's* case was different. It was the duty of the magistrate to inform the accused of his right to have the handwriting expert summoned, while the issue raised by Mr. Essack here is the duty of the magistrate to summon such a witness. On glancing through subsection (3) as reproduced above, it is quite apparent that the two issues are quite different. Under that subsection the obligation of the magistrate to summon the handwriting expert arises only if the accused or his advocate so requests; in no other circumstances is the magistrate under duty to summon him. Then the question is, in the present case did the magistrate's duty or obligation to summon the handwriting expert arise? The answer is clearly no, because neither the accused nor Mr. Essack, his advocate, requested that the handwriting expert be summoned. Therefore, Mr. Essack's complaint here was without foundation.

It is true that under the subsection the magistrate might have summoned the handwriting expert if she thought it fit to do so. But this was a matter which was entirely in her discretion, and it was not a must as Mr. Essack submits. Perhaps one might add that as the appellant was represented by counsel the magistrate might have felt less need to exercise her discretion to summon the handwriting expert on the ground that if the appearance of the handwriting expert was essential to the defence case then Mr. Essack who was entrusted with the duty of safeguarding the interests of the appellant, would have demanded the summoning of such a witness. Needless to say if the magistrate had reason to think that Mr. Essack wrongly failed to demand the summoning of the handwriting expert then the magistrate should, in the interests of justice, exercise her discretion under the subsection and summon him (the handwriting expert) on her own initiative. But if, like Mr. Essack, she also failed to exercise the discretion and to call the witness then I think that Mr. Essack cannot properly be heard to blame her; rather Mr. Essack himself would be mainly to blame for such failure. At the hearing of this appeal the question arose whether in these circumstances it would now be open to me to call the handwriting expert for cross-examination on his report, but having

regard to the course which I propose to take, it is not necessary to decide on that question.

It would seem to me that the more basic question was whether the report itself was admissible in evidence in the first instance, rather than the question of calling its maker for cross-examination. Mr. Essack did not raise this question but when I pointed it out and invited him to argue it he submitted that the report was inadmissible. The report was not in the form set out in the Seventh Schedule to the Criminal Procedure Code as required by subsection (1) of s. 154 of the Code. In particular the report does not show that the maker of it was duly appointed by the Director of Public Prosecutions for such purpose, mentioning the Government Notice bearing such appointment, as required under both the subsection and the Seventh Schedule. Neither the public prosecutor during the trial nor the state attorneys during the appeal were able to point out any Government Notice on which the maker of the report was appointed. In the circumstances, therefore, I am of the view that the conditions precedent for receiving the report were not satisfied and consequently I hold that the report was wrongly admitted in evidence.

Apart from such expert evidence, there was also lay evidence of Calvet Moshi (P.W.5) and Enock Msinga (P.W.3) who claimed to identify the handwriting on the paying-in-slips in question as being that of the appellant. But even assuming that the handwriting appearing on the paying-in-slips is that of the appellant, was this sufficient to found a conviction? It will be recalled that the charge alleges that the appellant and others including the first and second appellants jointly stole foreign currency. In order to prove the charge, therefore, it was necessary to show that the appellant was dealing with foreign currency or that he collaborated with persons who handled or dealt with foreign currency. No such evidence was adduced. On the contrary the evidence is that the appellant was not working in the foreign exchange department. I have also made a finding that the charge against the first and second appellants, who were handling or dealing with foreign currencies and who were charged jointly with the appellant for stealing foreign currency was not proved. So that there is no evidence to establish the nexus between the appellant and foreign currency. In other words there is no indication whatever how the appellant may have come into possession of the foreign currency which he is alleged to have stolen, and any conclusion that the appellant stole foreign currencies and deposited local currency in lieu thereof is purely a matter for conjecture. I am of the view that the absence of any evidence establishing such nexus between the appellant and the foreign currencies allegedly stolen, left a wide gap in the prosecution case. I am further of the view that this gap was sufficiently wide such that the appellant's guilt cannot be said to have been demonstrated beyond a reasonable doubt; and in arriving at that conclusion I also bear in mind the other unsatisfactory features of the case which I referred to earlier on.

In the result I am of the view that the evidence adduced was enough only to cast suspicion on the appellants but was too thin to support their convictions. The

appeals are, therefore, allowed. The convictions of the three appellants are quashed and the sentences set aside. The appellants are to be released unless otherwise lawfully held in custody.

Appeals allowed.

SILVANUS LEONARD NGURUWE *v.* R.

[COURT OF APPEAL OF TANZANIA AT DAR ES SALAAM, (Mwakasendo, Makame and Kisanga, JJ.A.)]

CRIMINAL APPEAL 34 OF 1981

Criminal Practice and Procedure—Sentencing—Circumstances under which an appellate court will interfere with sentence imposed by a trial court.

Criminal Practice and Procedure—Sentencing—Factors to be taken into account in assessing sentence.

The appellant was convicted on his own plea of guilty to a charge of manslaughter and was sentenced to twelve years imprisonment. He appealed on the ground that the sentence was manifestly excessive having regard to the circumstances of the offence.

Held: (i) in assessing sentence the court ought to give careful attention to all relevant circumstances of the case;

(ii) an appellate court will not interfere with trial court's sentence unless it is shown that the sentence imposed is manifestly excessive or that in passing sentence the trial court ignored to consider an important matter or circumstances which it ought to have taken into consideration or that the sentence imposed is wrong in principle;

(iii) the trial judge erred in principle by considering prevalence of an offence as the predominant or only factor to guide him in his consideration of the sentence.

Appeal allowed. Sentence reduced.

No case referred to:

S. J. Jadeja, for appellant.

E. Uronu, for Republic.

August 18, 1982. **MWAIKASENDO, J.A.**, read the following considered judgment of the court: The appellant, Silvanus Leonard Nguruwe, pleaded guilty to manslaughter before the High Court sitting at Mtwara. The learned trial judge convicted him on his plea and sentenced him to twelve years imprisonment. He is appealing against the severity of this sentence.

It is, of course, trite law that this court cannot alter a sentence imposed by the High Court on the mere ground that if we were the judges trying the case we might have passed a somewhat different sentence. Before we can interfere with the trial High Court's sentence the appellant must satisfy us either that the sentence imposed is manifestly excessive or that the judge in passing sentence ignored to consider an important matter or circumstance which he ought to have taken into consideration or that otherwise, the sentence imposed is wrong in principle.

Mr. Jadeja, learned counsel who appeared before us for the appellant, argued for the reduction of the sentence imposed by the High Court on the ground that the sentence of twelve years imprisonment was manifestly excessive in all the circumstances of the case. He drew our attention to some of the circumstances which the counsel contended were not considered by the judge when assessing sentence. Counsel vigorously argued that if the learned trial judge had taken into account all the circumstances disclosed in the case he would not have felt it his duty to impose a sentence of twelve years imprisonment.

We will now refer to those circumstances which were not considered by the judge when assessing sentence. One of such circumstances which were referred to us by Mr. Jadeja in his submissions is the fact that the learned trial judge did not give due weight to the fact that although the appellant was clearly guilty of assaulting the deceased, his conduct could not properly be described as vicious in view of the prosecution's own concession that the appellant hit the deceased only once with a stick. The other factors which, in our view, were material to the assessment of an appropriate sentence in the case but which, once again, the judge appears not to have considered are: the advanced age of the appellant; the period of two years which the appellant spent in remand custody before being brought to trial; and lastly, the fact that the appellant pleaded guilty to manslaughter thereby saving the trial court and the Republic from needless trouble and expense both in time and money. Further by pleading guilty, the appellant clearly demonstrated a spirit of contrition which, in our view, was a circumstance entitling him to a consideration of a more lenient treatment by the trial High Court.

However, Mr. Uronu, learned state attorney appearing for the Republic has submitted that the learned trial judge was justified in the circumstances of the case to impose the sentence of twelve years imprisonment having regard to the prevalence of this type of offence in the area of jurisdiction of the trial High Court. With respect, while we agree with the learned state attorney that the prevalence of a particular class of crime in an area of the court's jurisdiction may be a ground for a sentence of more than usual severity being imposed on an offender, we think the learned state attorney's submission is in other respects misleading and takes a very narrow view of the problem before the court. Prevalence of an offence is indeed a factor which a trial court should always take into account when assessing a proper sentence to impose in any particular case; but it would be contrary to prin-

ciple to consider this factor either as the predominant or the only factor that must guide the court in its consideration of sentence. That is where, in our opinion, the learned trial judge erred in the instant case. All the circumstances to which we have referred in this judgment were equally important in the consideration of sentence and all of them ought to have received his careful attention before deciding on sentence. For these reasons, we think we are entitled to interfere with the sentence imposed in this case.

We accordingly, allow the appellant's appeal against sentence, set aside the sentence of twelve years imprisonment and substitute therefore a sentence of eight (8) years imprisonment. It is so ordered.

Appeal allowed.
Sentence reduced.

SALIM MBEGU *v.* R.

[HIGH COURT OF TANZANIA AT DAR ES SALAAM, (Nyalali, C.J.)]

CRIMINAL APPEAL 12 OF 1977

Criminal Law—Claim of right—Whether defence to criminal trespass—Penal Code ss. 299 and 9.

Criminal Practice and Procedure—Irregularity—Appeal made by a person not convicted—Proper procedure to be adopted—Magistrates' Courts Act, 1963 s.16(1).

The appellant who was carrying on a shop business in partnership with others closed down the premises on which the business was conducted due to some misunderstandings among the partners. He was charged and convicted of criminal trespass in the primary court and was ordered to vacate the shop building. The complainant in the primary court being dissatisfied with the order of the primary court appealed to the district court. The district court varied the order of the primary court and ordered the appellant to vacate the shop building and to hand over its property. The appellant appealed against the order of the district court.

Held: (i) in considering a claim of right the court is not required to find whether the right claimed is recognized in law; it is sufficient for the court to find that the person honestly believed that he had such a right in respect of the property concerned;

(ii) in proceedings of a criminal nature only the person convicted, or in the case of an acquittal, the Director of Public Prosecutions is permitted to appeal to the district court against an order or decision of the primary court;

(iii) where an irregularity goes to the root of the jurisdiction of the court the proceedings are a nullity in their entirety; the appellate court can revise the proceedings.

Appeal allowed.

No case referred to:

M. B. H. Rahim, for appellant.
M. Shinganya, for Republic.

February 2, 1978. NYALALI, C.J.: In this appeal which I heard yesterday the appellant, namely, Salim Mbegu was charged and convicted in the Primary Court of Temeke District, at Temeke, with the offence of criminal trespass, contrary to s.299(d) of the Penal Code, and was ordered to vacate the shop building, which was the subject of the offence, within a period of one month. The complainant in that case in the primary court, namely, Shida Omari was aggrieved by the order of the trial primary court and he appealed to the District Court of Temeke District, and the district court varied the order made by the primary court by directing the appellant vacate the shop building and hand over its property immediately. The appellant was aggrieved by the decision of the district court and is now appealing to this court.

In this appeal Mr. Rahim, learned advocate, appeared for the appellant and Mr. Shinganya, learned state attorney, appeared for the Republic.

I have examined very carefully the evidence adduced in the trial primary court, and the proceedings in the district court, as well as the petition of appeal submitted to this court; and I have also considered very carefully the submissions made by Mr. Rahim and Mr. Shinganya in the course of this appeal; and it appears, on the evidence adduced in the trial primary court, that there is agreement between the parties that there was a partnership shop business situated in a house belonging to the appellant Salum Mbegu, and that P.W.1 (Shida Omari) and P.W. (Saidi Sultani) were tenants of the appellant and in occupation of the house in which the shop was situated. There was also agreement on the evidence of both sides that the partnership shop business was licensed but the licence was issued in the name of P.W.1. The evidence is also in agreement that in February 1977 the appellant closed down the shop upon failure to be paid a sum of money which was owed to him. Some time later the appellant re-opened the shop and carried on its business until a complaint was made by P.W. 1 and P.W. 2 to the authorities.

With regard to matters which are in dispute in this case, it was the complainant's case in the primary court that the shop business was a partnership business between the complainant and P.W.2 and the partnership had rented appellant's house for that purpose.

Furthermore, it was part of the complainant's case in the primary court that appellant deposited a sum of shs. 2,000/- in the shop for safe custody, but later when the appellant wanted to recover the money, the complainant was unable to pay it immediately and asked to be given time to pay it. The appellant, however, refused to give any time and decided to close the shop instead.

On the other hand, it was the appellant's case in the primary court that the shop business was a partnership business between himself, the complainant, and P.W.2, and that the sum of shs. 2,000/- or so was paid by the appellant as his own contribution to the partnership fund and not as a safe-custody deposit as claimed by the complainant. It was part of the appellant's case in the primary court that he latter discovered that the complainant and P.W.2 were mismanaging the shop business, and after failing to persuade them to take remedial measures, he decided to close the shop to protect his interest in the business.

The first point for consideration is whether the appellant was a partner in the shop business. From the evidence adduced in the primary court, it is apparent that the appellant is better off materially than the complainant, and was in a position to rent out a house to the complainant and live in another house. Under those circumstances, I fail to see why the appellant should deposit his money in the shop for safe custody by the complainant instead of keeping the money himself or keeping it in the bank. Furthermore, if the money was deposited by the appellant for safe custody, I fail to see why the complainant used it for running the shop business. It appears, on the evidence, that the money in question was appellant's contribution to the shop business. I find, therefore, that the appellant was a partner in the shop business.

The next point for consideration and decision is whether the appellant can be construed to be a criminal trespasser in closing down the shop. The offence of trespass charged in this case is contained under s.299(a) of the code, and is committed when a person—

> unlawfully enters into or upon property in the possession of another with intent to commit an offence or to intimidate, insult or annoy any person in possession of such property.

The question arises in the present case whether the shop premises were not in the possession of the appellant. Undoubtedly, the facts in this case show that the shop premises were in the possession of the partnership. Since I have found that the appellant was one of the partners, he was, therefore, jointly in possession with the complainant and P.W.2. For that reason, therefore, the conduct of the appellant cannot amount to criminal trespass.

Mr. Rahim, learned advocate for the appellant, has raised another argument why the conduct of the appellant in closing down the shop cannot amount to criminal trespass. Learned advocate cited s. 9 of the penal code which reads:—

> 9. A person is not criminally responsible in respect of an offence relating to property, if the act done, or omitted to be done by him with respect to the property was done in the exercise of an honest claim of right and without intention to defraud.

If I understood well Mr. Rahim, he appears to contend that the act of closing down the shop by the appellant was an act done in the exercise of an honest claim of right to the shop by the appellant. I think, on the facts of this case, it is evident that the appellant closed the shop on the claim that he had the right to do so as one of the owners of the shop business. In considering such a claim of right, the court is not required to find whether such right claimed is recognised by law. It is sufficient for the court to find that the appellant honestly believed that he had such a right in respect of the property concerned.

Since I have already found as a fact that the appellant was a partner in the partnership business, I am led to conclude that the appellant's claim of right to close down the shop for protection of his interest was a honest one. I will, therefore, agree with Mr. Rahim that by virtue of s.9 of the Penal Code the charge of criminal trespass against the appellant was wrong.

The other point for consideration and decision is whether the appeal from the Primary court to the district court was proper. Under s.16(1) of the Magistrate's Courts Act, 1963, it is clearly laid down that in proceedings of a criminal nature only the person convicted or, in the case of an acquittal, the Director of Public Prosecutions is permitted to appeal to the district court against an order or decision of the primary court. In the present case the complainant in the primary court, who appealed to the district court, was neither a person convicted nor was he the Director of Public Prosecutions. So the complainant was not permitted by law to appeal to the district court. It follows, therefore, that the appeal from the primary court to the district court was improper.

The question arises now—What effect does this impropriety or irregularity have on the appeal proceedings in the district court? Since the irregularity goes to the root of the jurisdiction of a district court to hear an appeal from the primary court, and appellate proceedings in the district court cannot be anything else but a nullity. Those proceedings, therefore, must be quashed in their entirety.

The other point for consideration is what orders should this court make in the light of the findings I have made. Under s. 26(1)(d) of the Magistrates' Courts Act, 1963, the High Court has powers to revise proceedings in the primary court—

> 26.—(1) . . .
>
> (a) . . .
>
> (b) . . .
>
> (c) . . .
>
> (d) where it has exercised its appellate jurisdiction in relation to proceedings which originated in a primary court between or against parties not all of whom were parties to the appeal, . . .

Here we have an appeal between Salim Mbegu, who was the accused in the primary court, and the Republic which did not appear in the primary court; and we have also one Shida Omari, who was the complainant in the primary court, but is not a party to this appeal. In other words, we have a case where not all parties in the primary court are a party to the appeal in this court. This court, therefore, has power to revise directly the proceedings in the primary court, and I would proceed to make orders to that effect.

I hereby now, in the exercise of appellate jurisdiction, quash the proceedings in the district court; and in the exercise of the revisional powers of this court, quash the conviction in the primary court, and set aside the order made by that court. This decision does not affect the position of the appellant and the complainant at civil law. The complainant is at liberty to institute civil proceedings subject to the law of limitation.

In the final analysis therefore, this appeal is allowed.

Appeal allowed.

JAMES S/O BULOLO AND ANOTHER *v.* REPUBLIC

[HIGH COURT OF TANZANIA AT MWANZA, (Rubama, J.)]

CRIMINAL APPEAL 29 & 68 OF 1980

Evidence—Failure to consider defence's case—Whether fatal.

The appellants were convicted on a charge of stealing and sentenced each to five years' imprisonment. Prior to conviction the appellants worked together as a driver and turnboy respectively. On 20th January 1979 a railway coach carrying 160 bags of maize was derailed at the Mwanza Regional Trading Company area. The appellants were employed to transport the bags of maize to plot No. 18 Mwanza. However only 80 bags were delivered at plot 18 whereupon the appellants were arrested and charged. In their defence the appellants averred that they collected only 80 bags of maize on the first trip and when they returned for the second trip the premises of the Regional Trading Company were closed. The trial magistrate summarily rejected this allegation saying that the appellants were untrustworthy and convicted them as charged.

Held: (i) failure to consider the evidence of the defence was fatal to the proceedings;

(ii) it is the duty of the court first to collate, analyse and assess the evidence and see how far, if at all, it touches upon every accused person as an individual. The court is not to lump the accused persons together and wrap them up generally in the blanket of the prosecution evidence.

Appeal allowed.

Cases referred to:

(1) *Aminali Ismail* v. *Regina*, 1 T.L.R. 370.
(3) *Rex* v. *Lulakomba s/o Mikwalo and Another*, 3 E.A.C.A. (?).
(3) *Lockhart—Smith* v. *United Republic*, [1965] E.A. 211, 217,
(4) *R.* v. *Frederick Marriot*, (1924), 18 Cr. App. R.74.
(5) *R.* v. *Laski and Shaw*, (1959) Crim. L.R. 796.
(6) *R.* v. *Anthony David Frost and George Talbot Hale*, 48 Cr. App. R.219.

H. J. Ndolezi, for the Republic.

May 7, 1980. **RUBAMA, J.:** Alphonse s/o Vicent and James Bulolo and others not appealing were charged with stealing c/s 265 of the Penal Code and each sentenced to five years' imprisonment.

A railway coach carrying 160 bags of maize was derailed at the Regional Trading Company area. It was decided that the 160 bags of maize be transported by road to Plot No. 18 Mwanza. A lorry registration number TZ41056 was hired for this exercise to be done on 20.1.1979. Only 80 bags of maize were received at Plot 18 from the Regional Trading Company premises although the entire stock of 160 bags had been collected. The first appellant, Alphonse s/o Vicent who was the driver of the lorry together with his turnboys of whom the second appellant, James Bulolo is one, were arrested and eventually charged and convicted of theft of the remaining 80 bags of maize.

The two appellants and others not appealing had stated that they had in fact only collected 80 bags of maize. The Regional Trading Company premises were closed when they had gone for the second trip of the remaining 80 bags of maize.

After hearing the appeal, I allowed the appeal and ordered that the appellants and others not appealing be set free unless they were otherwise legally held on other matters. I now give my reasons.

The learned defence counsel for the second appellant, Mr. Kahangwa had submitted that the learned trial magistrate could not have appreciated defences of the appellants and others not appealing. The learned trial magistrate had stated of these defences:—

> . . . Their defences differ from one accused to another which means they are not trustworthy or they are not to be believed. I here find them guilty and accordingly convict them.

There is merit in the submission by the learned counsel for the defences of the appellants and others not appealing are identical. They all in essence state that they had only gone to collect 80 bags of maize and that they could not collect the remaining lot of 80 bags because the Regional Trading Company premises were closed. Instead they were involved in removing the original lot of 80 bags of maize from Plot No. 18 to the National Milling Corporation premises. This later fact is confirmed by the prosecution evidence. Since the learned trial magistrate did not appreciate the defence he could surely not be taken to have considered it. The defence once appreciated is not manifestly false and deserved to be considered by

the learned trial magistrate. As was stated by ABERNETHEY, J. in *Aminali Ismail* v. *Regina,* 1 T.L.R. 370 on a similar issue:—

> Nor did the learned magistrate deal adequately with the evidence for the defence. In his connection I would refer to the judgment of the East African Court of Appeal in the case of *Rex* v. *Lulakomba s/o Mikwalo and Another,* (3 E.A.C.A.) in which it was held that 'where a defence, not manifestly false, is made the trial judge must put it to the assessors *and to himself* and failure to do so constitutes a miscarriage of justice . . .

The necessity to consider the defence case is again emphasized by WESTON, J., in the case of *Lockhart—Smith* v. *United Republic,* [1965] E.A. 211, 217:—

> Speaking generally for there are exceptional cases, not here relevant, in which the principle does not apply—it is not for an accused to establish his innocence. *It is for the prosecution to prove its case beyond reasonable doubt. It can not do this unless the evidence given by or on behalf of the accused is put into the balance and weighed against that adduced by the prosecution.* The question is whether anything the accused has said on his behalf introduces that reasonable doubt which entitles him to his acquittal.
>
> *The principle is elementary, but fundamental none the less, and authority, if authority be needed for the preposition that failure to take into account and defence put up by the accused will vitiate conviction, is not hard to find.* Thus, for example, in *R.* v. *Frederick Marriot,* (1924), 18 Cr. App. R.74, the Court of Criminal Appeal quashed the conviction of the appellant in that case on the ground—I quote from the headnote—that:
>
> > 'A judge in summing up is bound to put defendant's case to the jury. A mere expression of the view of the judge is not sufficient to despense with the duty of putting the case for the defence to the jury'.—

So important indeed is it that the judge of fact, as the learned magistrate was here, should keep the defence continuously in mind, that in *R.* v. *Laski and Shaw,* (1959), Crim. L.R. 796 where a jury after proper direction had retired and then had returned to ask for guidance on the law and the court had addressed them for ten minutes but had not again referred to the accused's defence, the court of criminal appeal found it necessary to say:—

> 'He (the Commissioner) did not repeat the defences as some judges would have done, but it would be unreal to conclude that the jury had forgotten the defence'.

Even where there is no defence other than a statement by the accused from the dock—I quote the words of PARKER, L. C. J. in *R.* v. *Anthony David Frost and George Talbot Hale,* (48 Cr. App. R. at p.219):

> '. . . it is quite clear today that it has become the practice and the practice and the proper practice for a judge not necessarily to read out to the jury the statement by the prisoner from the dock, but to remind them of it, to tell them that it is not sworn evidence which can be cross-examined to,

but that nevertheless they can attack weight as they think fit, and should take it into consideration in deciding whether the prosecution has made out this case so that they feel sure the prisoner is guilty.' (emphasis supplied)

As already mentioned, the learned trial magistrate did not take into consideration the evidence for the defence and for this reason alone the conviction cannot be allowed to stand.

Mr. Kahangwa further submitted that the learned trial magistrate did not address himself on the issue of common intention. He had stated that the main issue in the prosecution case was the asportation of the remaining 80 bags of maize. On proving this, the prosecution had to establish common intention. I accept this submission. The prosecution did not do this and it appears that the learned trial magistrate was oblicious to this need. The second appellant who was the driver of motor vehicle may be assumed to have been in command, others were turn boys and yet the learned trial magistrate states towards the end of his judgment:—

> They were assigned to carry 160 bags then it was their duty to do so and they did so but they took the second trip a place they know themselves.

This approach by the learned trial magistrate was faulty and on itself was enough to vitiate the conviction. But the above quoted statement by the learned trial magistrate shows that not only that he had not appreciated the individual accused defences the learned trial magistrate did not, as he should have done, consider the defences of each accused independently. This was a misdirection. It is the duty of the courts to first collate, analyse and assess the evidence and *see how far, if at all, it touches upon every accused person as an individual. The court is not to lump the accused persons together and wrap them up generally in the blanket of the prosecution evidence.*

For the various reasons outlined above, the convictions of the appellants and others who had not appealed could not be sustained. I allowed the appeals and ordered that the appellants and others who had not appealed be set free at once unless they were being lawfully held on other matters.

Appeal allowed.

REPUBLIC *v.* RICHARD LEONARD

[HIGH COURT OF TANZANIA AT MWANZA, (Katiti, J.)]

CRIMINAL REVISION 24 OF 1981

Criminal Practice and Procedure—Refusal of Prosecution witness to testify after being sworn in—Whether trial court entitled to rule no case to answer—Section 205 Criminal Procedure Code.

Evidence—Refusal of prosecution witness to testify after being sworn in—Whether witness to be treated as a refractory witness—Section 153 Criminal Procedure Code.

The accused Richard Leonard originally charged with causing grievous bodily harm to one Joel Simon. At the trial the said Joel Simon was called as P.W.1. After being sworn in he refused to testify saying:

> I am the complainant in this case, I would not like my case to be tried by this trial magistrate, because I do not feel like having my case tried by him, and no more.

Consequently the court ruled that there was no case to answer and acquitted the accused.

Held: (i) the trial magistrate erred in holding that there was no case to answer under s. 205 of the Criminal Procedure Code;

(ii) the witness should have been treated as a refractory witness under s. 153 of the Criminal Procedure Code.

No order given.

Case referred to:

(1) *Uganda* v. *Milenge and Another*, [1970] E.A. 269.

December 4, 1982. **KATITI, J.**: Joel Simon, having allegedly suffered grievous harm, sought legal redress, which culminated in the charging of one Richard s/o Leonard, the accused, before Muleba District Court. The prosecution's case commenced, and one Joel Simon was sworn as P.W.1. After he had stated, how he knew the accused, with whom he was living as a neighbour, in the same village, the said P.W.1 startled everyone, when he said the following, and I quote:—

> I am a complainant in this case, I would not like my case to be tried by this trial magistrate, because I do not feel like having my case tried by him, and no more.

The prosecutor reacted in the manner as follows, and I quote:—

> I do not personally see the reason why this case should be adjourned, as this case, is a case of the Republic, more over, this complainant is my witness, and he has mentioned no reason at all. And there is no provision in the law that, gives the witness choice of magistrate, if this key witness cannot agree to proceed, I personally do not find reason why this case should not be tried by you.

The trial magistrate, seems to have reacted in manner that, cannot reasonably be divorced from anger. It was in fact, not at safe distance from anger. He wrote a ruling acquitting the accused, in the manner as follows, and I quote:—

RULING

> In this case, the prosecution, has failed to proceed because his key witness has disclosed, no reason why this case should not proceed. This means there is no case to answer for the accused. And it is my first experience, that a witness of the Republic can object a case, to be tried by a certain magistrate. Had the witness found good reasons for his objection, he would have presented that, through the Public Prosecutor, before they came to court. It is conduct that is to be condemned, and embarrassing situation, that, when permitted, would cause a lot of inconvenience to the court.
>
> If this witness, who is the complainant, had good reasons, he would not have waited till he was sworn in. I conceive this as an act of withdrawal from the case, and I rule out, that, there is no case to answer, for the accused, who is under s. 205 of Criminal Procedure Code acquitted. The charge is dismissed.
>
> Sgd. M. P. M. Mtongore, DM
> 24.04.1981

While I agree, with the trial magistrate that, the conduct of the witness is not a precedented one, one thing is quite clear, and that is though for reasons undisclosed, the said witness had no confidence in the trial magistrate. Be that, as it may, it does not come out at all, as to why the said witness decided to arrogantly keep a black out, as to why he was not prepared to co-operate, and give evidence.

But that apart, it seems the trial magistrate constructed the episode, to mean that the prosecution had failed to proceed, and that there was no case to answer, and hence his acquittal of the accused under s. 205 of the Criminal Procedure Code, Cap. 20. The question that, jumps on heels, is whether first this is true. I have to hastily answer the question negatively, for the record exhibits no equivocations, in disclosing that, at no time did the prosecutor say, or submit that, he was not proceeding with the trial. In fact the prosecutor had already submitted, that after the evidence of P.W.1, he would seek for an adjournment, and the trial magistrate, does not appear, to have disclosed any reservations at all in his attitude,

towards this application. It is therefore not true, that, the prosecutor was unable to proceed, either on that very day, or on the date fixed after the requested adjournment.

If on the other hand, the prosecutor with his/her witnesses, had decided and submitted, he was not prepared to proceed with the trial, not because he had no witness, and without seeking adjournment, then the trial magistrate would have been entitled to apply the provisions of s. 205 of the Criminal Procedure Code Cap. 20. This procedure is sanctioned by the case of *Uganda* v. *Milenge and Another*, [1970] E.A. 269, dealing with the provisions of s. 209 of Uganda Criminal Procedure Code, which is identically worded, with the provisions of s. 205 of our Criminal Procedure Code Cap. 20. It is an authority, which though persuasive, would equally apply to our circumstances. For unless the course advocated by the above authority is resorted to, in circumstances where the prosecutor does not want to proceed there would be a procedural statement. And in exemplification of the dilemma, I shall without qualms, borrow the rationalisation by DUFFUS, V. P. in *Milenge's* case (supra) on the aspect, with which I agree, that runs as follows, and I quote:—

> The question is does s.209 apply? Here the Public Prosecutor, has announced that, his witnesses are present, but he does not intend to call any witnesses, or to proceed with the case, the magistrate regarded, this amounting to "the case of the evidence in support of the charge". There was in fact no evidence called, but what action can a court take, if the prosecutor announces that he is calling, no evidence and is not proceeding with the case? The court cannot itself call the witnesses, and we have stated, it is the duty of the prosecutor to call such witnesses, as he thinks fit, in order to establish his case. Here he has decided to call no witnesses, and we are of the view, that, the chief magistrate was in all the circumstances here justified in his view, that he had closed his case . . . if no evidence is offered by the prosecution, this must be regarded as the close of the evidence in support of the charge, even if in fact no evidence was called. We are therefore satisfied that the chief magistrate acted correctly in acquitting the accused person under the provisions of s. 209.

As afore-said, the position in *Milenge's* case (supra), is different from the case instant, as in this case the prosecutor was prepared to proceed then, or on any adjourned date. It follows therefore that, the trial magistrate was in error to apply s. 205 of the Criminal Procedure Code, to the circumstances of the case.

All the same, I should not be taken to have embarked on serious unfairness to P.W.1, if I describe him as an arrogant, uncooperative character, for treating the court as his own personal forum, and unfortunately subjecting it to his own wishful dictates. While I will not venture to say, he may have had no reason, so long as, he kept a black out on whatever reason he may have had, and as we have no art of reading his minds, he must stand the wrath of our pen. He obviously refused to give evidence, after swearing and being required so to do.

I am verily convinced, that the situation demanded the application of the provisions of s. 153 which reads as follows:—

(1) Whenever any person, appearing either in obedience to a summons or by virtue of a warrant, or being present in court and being verbally required by the court to give evidence—

(a) refuses to be sworn or affirmed; or

(b) having been sworn or affirmed, refuses to answer any question put on him; or

(c) refuses or neglects to produce any document or thing which he is required to produce; or

(d) refuses to sign his deposition, without in any such case offering any sufficient excuse for such refusal or neglect, the court may adjourn the case for any period not exceeding eight days, and may in the meantime commit such person to prison, unless he sooner consents to do what is required of him.

(2) If such person, upon being brought before the court at or before such adjourned hearing, again refuses to do what is required of him, the court may, if it sees fit, again adjourn the case and commit him for the like period, and so again from time to time until such person consents to do what is so required of him.

Thus for any person to qualify as a refractory witness, the following conditions must exist:—

(i) Such witness must have appeared, either in obedience to the summons, or by virtue of a warrant, or is otherwise present in court, and

(ii) He must have been verbally required by the court to give evidence, and

(iii) Having been so required, he must have committed any of the following acts:—

(a) He must have refused to be sworn, or affirmed or

(b) Having been sworn, or affirmed he must have refused to answer any question, put to him or

(c) He must have refused, or neglected to produce any document, or thing which he is required to produce or

(d) He must have refused to sign his deposition, and

(iv) He must have refused or neglected to do the above, without in any such case, offering any sufficient excuse.

Where the above conditions co-exist, then the relevant witness is a refractory witness, and the court may deal with him as provided in s. 153(1) and (2) of the Criminal Procedure Code Cap. 20—i.e., (i) by adjourning the case for period not exceeding eight days, and committing the said witness to prison, unless he sooner consents, to do what he is required, or (ii) by further adjournment, if the said witness still refuses to do what he is required to do, and committing him/her for the like period, and so again from time to time, until such witness consents to do what he is required to:

From the above guiding areas, that P.W.1 was a refractory witness is irresistible. And it is my view that, the trial magistrate should have applied the provisions of s. 153 instead of s. 205 of the Criminal Procedure Code Cap. 20. But be as it has above been said, I find myself irredeamably, and tenaciously chained to the provisions of s. 329(1)(b) of the Criminal Procedure Code Cap. 20, as under these provisions the High Court, has on revision, no power to alter, or, reverse, an order of acquittal, in proceedings originating from subordinate court. The answer lies under the provisions of s. 334—appeal by the Director of Public Prosecutions. For reasons thereof, I am not disposed to give any order.

No order given.

INSPECTION NOTE

[HIGH COURT OF TANZANIA AT MWANZA, (Mr. Justice Chua)]

Criminal Law—Procedure—Accused jumped bail after trial—Sentence can be imposed in absentia.

July 28, 1981. **CHUA, J.**, made the following inspection note in the District Court of Mwanza Criminal Case No. 301 of 1978, *Republic* v. *Joseph S. Methord:* In the Mwanza Criminal Return for the period 16th to 30th June, 1981 it is indicated that the 1st accused was found guilty of robbery with violence but sentence was reserved until he is re-arrested as he had jumped bail.

The attention of the trial magistrate is drawn to s. 202A of the Criminal Procedure Code (Act No. 23/73) which empowers the court to sentence the accused in absention in such circumstances. It is therefore ordered that this record be put before a successor in office of the trial magistrate, with instruction to sentence on the 1st accused in absention in accordance with the relevant provisions of the Criminal Procedure Code.

MOSHI D/O NDEGE *v.* JEREMIA MASAMBA

[HIGH COURT OF TANZANIA AT MWANZA, (Chua, J.)]

MATRIMONIAL CIVIL APPEAL 15 OF 1981

Civil Practice and Procedure—Divorce—Petition—Grounds not on record—Order given—Whether legal.

Family Law—Divorce—Refund of dowry—Whether a legal requirement—Section 41(a) of the Law of Marriage Act, 1971.

Appellant filed a petition of divorce and the magistrate acting on a letter from CCM Regional Chairman ordered divorce to be granted after first refunding dowry.

Held: (i) where the record of the court does not reveal the grounds of petition of divorce any order based on it has no legal backing;

(ii) where an order of divorce is granted it is not a legal requirement that dowry should be returned first.

Appeal dismissed.

No case referred to:

October 28, 1981. **CHUA, J.:** In Civil Case No. 76/76 of Bukwaya Primary Court, Moshi Ndege filed a petition of divorce. The record of the court does not reveal the grounds for the petition nor does it show whether the matter had been referred to a Conciliatory Board as required under s. 101 of the Marriage Act. All the file shows is an order of the magistrate which reads:—

> Kutokana na barua ya Mwenyekiti wa TANU wa Mkoa mdai ameelezwa kwamba apate mahari ndipo aweze kupata talaka.

With due respect the order has no legal backing and would appear to reflect that the trial magistrate has a habit of deciding cases by following suggestions in letters written to him without checking whether those suggestions are in accordance with law. The attention of the trial magistrate is drawn to the provisions of s. 41(a) of the Marriage Act which stipulates:—

> A marriage which in all other respects complies with the express requirements of this Act shall be valid for all purposes, notwithstanding,
>
> (A) any non-compliance with any custom relating to dowry or the giving or exchanging of gifts before or after marriage.

It follows as night follows day that in order to invalidate a marriage it is not necessary that dowry should first be returned, In practice it may be desirable in

exceptional circumstances to have the dowry returned first before divorce is granted but that does not make it legal requirement. Indeed dowry is usually returned after divorce and it is returned by the one who received it or his legal representatives.

Since the record does not show whether or not the petitioner had referred the case to a Conciliatory Board before going to court she is now ordered to do so before she can file a petition in court. The order of the trial court is hereby quashed and if a petition is eventually filed in same court it should be heard by a different magistrate.

Appeal dismissed.

NYANGI GATI *v.* CHACHA MWITA

[HIGH COURT OF TANZANIA AT MWANZA, Chua, J.)]

CIVIL APPEAL 64 OF 1979

Family Law—Divorce—Division of matrimonial property—A peasant couple—How to adduce evidence of contribution—Section 60 of the Law of Marriage Act, 1971.

Family Law—Divorce—Compensation for youthfulness—Services rendered—Not envisaged—Section 114 of the Law of Marriage Act, 1971.

Appellant claimed 20 heads of cattle as her share of matrimonial property jointly earned by tilling the land and growing crops that were ultimately converted into cattle. She was awarded only one heifer by the trial Court. The appellant was aggrieved hence this appeal.

Held: (i) when an environment does not allow for sophisticated means of controlling property it is sufficient to adduce evidence of contribution to the acquisition of property deemed to belong to the husband solely;

(ii) the law of marriage does not provide for compensation for services rendered by wife nor for wear and tear.

Order accordingly.

No case referred to:

October 12, 1982. **CHUA, J.:** In the Primary Court of Magumu the appellant Nyangi Gati claimed for a share of matrimonial property which she assessed to be 20 heads of cattle. The primary court unanimously found that she was entitled to

return of her own articles which she had sent to the matrimonial house on the wedding day and a share in one heifer which apparently was the only property pinpointed by her as having been earned jointly during the period of 10 years that the parties lived together prior to divorce. The share in the heifer was converted to 100/- shillings, it being argued that government price put on a heifer is 200/- shillings. The respondent was aggrieved and appealed to the district court. His appeal was dismissed. The appellant now appeals to this court.

In her memorandum of appeal she avers that the evidence she adduced in the primary court was misconstrued in that she had stated that during the subsistence of their marriage they used to earn one head of cattle each year. I have perused the record carefully but have failed to find any such statement. All she stated in court was that they had sold crops and bought one heifer which she left with the respondent before it had delivered. If she wanted to say that each year they had bought one heifer then she ought to have told the court how many heads of cattle she had left the respondent with. On the other hand in the district court she had changed her story and talked of 2 heads of cattle. Surely this is not the same as saying one head of cattler per year for 10 years which should give the figure of 10 heifers. Taking into account progenies then the number of cattle would have swollen to a considerable figure. The appellant is therefore changing her original story which, I have no cause to suspect, referred to only one heifer.

Apparently the appellant would like to share the 40 heads of cattle which were returned to the respondent after divorce. These cattle cannot be taken as property earned during the matrimonial life because the same number of cattle were paid before the marriage came to existence. The cattle were so to speak a deposit which was refundable when the marriage broke down.

The appellant has averred in her memorandum of appeal that she should be compensated for loss of her youthfulness, and for services she rendered to her husband. But with due respect to the appellant the law of marriage does not envisage mutual compensation for services rendered nor for wear and tear. It deals with property earned through joint efforts. Thus s. 60 of the Act stipulates:—

Where during the subsistence of a marriage any property is acquired,

(a) in the name of the husband or of the wife, there shall be a rebuttable presumption that the property belongs absolutely to that person to the exclusive of his or her spouse.

(b) in the names of the husband and wife jointly, there shall be a rebuttable presumption that their beneficial interests therein are equal.

Of course the type of environment in which the parties lived in this case did not allow for sophisticated means of controlling property such as registration and of course no registrable property was ever mentioned. To give effect to the spirit of the section, in my view it would be sufficient for the appellant to show that she contributed to the acquisition of the property which under customary law is deemed to belong to the husband solely. By adducing evidence that she tilled the land and grew crops which were ultimately converted to cattle I think she has shown that she is entitled to a share in the one head of cattle earned.

Finally I refer to the share that the appellant was offered. She was offered 100/- shillings that being taken as a 50% share in the head of cattle. But as it is well known, a head of cattle is worth considerably more than 200/- shillings in the open market. To be fair to the appellant the head of *cattle*, or any other one head of cattle from the respondent should be sold in public auction and the proceeds shared equally between the parties after deducting any necessary costs incurred in carrying out this order.

To sum up, the appellant is to be paid shs. 270/- being the value of her articles left with the respondent plus half the proceeds from the sale of one heifer to be seized from the respondent. Costs to follow the event.

Order accordingly.

MURANGE MAHENDE *v.* MARICHA MAROSI

[HIGH COURT OF TANZANIA AT MWANZA, (Chua, J.)]

CIVIL APPEAL 38 OF 1981

Family Law—Divorce—Dowry refund—Factors to be considered—Sections 52(B), 55, 57 of the Law of Persons.
Family Law—Divorce—Wife remarried—Whether refund is as of right.

Respondent sued the appellant for return of dowry he had paid when he married the appellant's daughter after divorce. The suit was dismissed by the primary court and allowed by the district court. On appeal to the High Court.

Held: (i) where the court orders refund of dowry it should consider who was responsible for the breakup of the marriage, the duration of marriage and the presence of the children of marriage;

(ii) where the wife is remarried after divorce it does not in itself confer a right on the husband to receive refund of dowry.

Order accordingly.

No case referred to:

November 16, 1982. **CHUA, J.:** In the Primary Court of Ngoreme the respondent Maricha Marosi sued the appellant Murange Mahende for the return of 29 heads of cattle, 30 goats, 200/- shillings, one blanket and one bed-sheet being the dowry he had paid when he married the appellant's daughter who was subsequently divorced. The suit was dismissed with costs on the ground that the respondent's evidence contradicted that of his witnesses. The respondent appealed

to the district court. The district court disagreed with the finding of the primary court and ordered that the respondent be paid 15 heads of cattle. The appellant was aggrieved and hence this appeal.

In the primary court the respondent's evidence was that he paid 34 heads of cattle, 30 goats, 200/- shillings, a blanket, a bed-sheet and one cooking pot. In respect of the cattle and the goats all his witness deposed having witnessed the payment. Yatu Masorio (P.W.4) also saw the other miscellaneous items.

The appellant contended that only 13 heads of cattle were paid and that all of them had been returned. She even talked about her cattle having been attached and kept in a government kraal for purposes of returning the dowry. If that were true she should have called an official of the government kraal to testify on this point. She did not do so. The respondent admitted having received only 5 heads of cattle as return of dowry.

The important point for decision was to decide how many cattle had been paid as dowry and this depended on the credibility of the witnesses. The primary court decided not to believe the whole of the plaintiff's case because the magistrate and the assessors failed to understand why the respondent was claiming for 28 heads of cattle instead of 34. This was unfair because had the magistrate and the assessors asked him to explain they would have been told that 5 heads of cattle had been returned as it became clear in the district court. That was a wrong reason for dismissing the suit.

In the district court the respondent averred that the daughter of the appellant has been married again and 22 heads of cattle paid as dowry. The appellant admitted this fact. If 22 heads of cattle could be paid for a second marriage and after the daughter had delivered 7 children while she lived with the respondent then the allegation that 24 heads of cattle, 30 goats, and miscellaneous items were paid for the first marriage becomes very probable. I would accordingly agree with the learned district magistrate that on a balance of probability the respondent was talking the truth.

There remains the important question of how much of the dowry should be returned. The factors to be considered are:—

(1) Who was responsible for the break-up of the marriage.

(2) The duration of the marriage.

(3) The presence of children of the marriage.

In the primary court the learned primary court magistrate stated in his judgment that the respondent was the one who caused the break-up of the marriage by beating her. In this court the respondent claims that his wife deserted him. It would have been proper for the trial magistrate to have taken a copy of the divorce case as an exhibit which would have removed doubts on this question but since it appears that the divorce case was conducted in the same court I feel it safe to believe the opinion of the trial magistrate regarding the cause of the break-up of the marriage. So s.57 of the Law of Persons becomes relevant. It states:—

> If a husband ill-treats his wife with the object of forcing a divorce the court can decide that none or only a part of the bride-wealth is to be returned even if no children have been born to the marriage.

The next important consideration is the duration of the marriage. Section 55 of the Law of Persons stipulates as follows:—

> When making its assessment the court must further consider the number of years of married life.

The longer the parties have lived together the less the dowry to be returned the rationale being that the husband gets benefit from his dowry as he lives with his wife. In this case the parties lived together for 15 years.

Finally the number of children born in the marriage must be taken into account. Section 52(B) stipulates:—

> If children have been born, whether they are still alive or have since died no bride-wealth or part of it has to be returned. If a woman has a premature birth and the existence of a foetus is proved by a female relative of the husband, the same rule applies.

In this case there were 7 children born 5 of whom are alive.

Taking into account the above factors I would have ordered that no dowry be returned to the respondent had the wife not remarried and fresh dowry to the tune of 22 heads of cattle paid. Of course the fact that the wife has remarried does not of itself confer a right on the husband to receive refund but in the circumstances of this case I find it fair and reasonable to order a token refund of four heads of cattle.

In the result the judgment of the district court is varied by reducing the number of cattle to be returned to 4 consisting of 2 heifers and two cows.

Order accordingly.

MANYAMA MARESA *v.* NYAKWESI MUKANGARA

[HIGH COURT OF TANZANIA AT MWANZA, (Chua, J.)]

CIVIL APPEAL 90 OF 1981

Family Law—Division of matrimonial property—Deceased husband—Childless widow—Para 77 of the Law of Persons.

Respondent filed a suit against the appellant brother of respondent's deceased husband for recovery of property jointly earned with her deceased husband. They had jointly built a house with a 70 iron sheets roofing and acquired 10 heads of cattle. There was no issue to their marriage. The appellant, claiming to be the

lawful heir pulled down the house and took 4 heads of cattle. The respondent was given 2 heads of cattle, household goods and crops in the field. On appeal the learned High Court judge considered the share in the property the childless widow was entitled to under para 77 of the Law of Persons.

Held: (i) where the widow is childless she is entitled to twentieth part of one half of the movable and immovable property for every year of married life after the property has been divided into two equal parts and the debts of the deceased have been paid;

(ii) where it is on perennial crops the childless widow is entitled to part of them in the same proportion and enjoy the usufruct thereof until she marries or dies;

(iii) childless widow is permitted to use the matrimonial house until she remarries or dies and then it reverts back to the deceased husband's family.

Appeal dismissed.

No case referred to:

November 11, 1982. **CHUA, J.:** At Nyambono Primary Court Nyakwesi Mukangara (the respondent) filed a suit against the appellant for recovery of 10 heads of cattle and one house. The primary court dismissed the suit with costs. The respondent appealed to the district court. The district court awarded her 4 heads of cattle and 70 iron sheets. The appellant now wants to have the decision of the district court impeached.

The back-ground to the case is that the respondent was married to one Chamra Maresa from 1948. There was no issue to the marriage. Chamra was an invalid suffering from tuber-culosis which ultimately caused his death in 1978. During the subsistence of the marriage the parties managed to build a house with 70 iron sheets roofing and acquired 10 heads of cattle. After the death of Chamra Maresa, the appellant Manyama Maresa claimed to be the lawful heir of the deceased since he was his brother. He pulled down the matrimonial house and took the 70 iron sheets, and took 4 heads of cattle. Four other heads of cattle were slaughtered in the course of mourning. The respondent was given 2 heads of cattle, household goods like beds, beddings and utensils plus crops which were in the field.

It was part of the case of the respondent that during the long illness of her deceased husband she got no assistance from the appellant. It was also her contention that the person who used to assist her was her own son she had begotten before marrying the deceased.

Now, what is the law governing this dispute. The primary court invoked ss. 27 and 50 of the laws of Inheritance Government Notice No. 436/63 and reached the conclusion that the respondent was not entitled to any share of the estate. But as I shall soon demonstrate the learned trial magistrate did not interpret the law correctly. Section 27 stipulates:—

The widow has no share of the inheritance if the deceased left relatives of his own clan, her share is to be cared for by her children just as she cared for them. (The share of the childless widow, mentioned in para 77 of the Personal law, is not counted as part of her husband's estate).

Since this was a case of a childless widow the learned primary court magistrate ought to have referred to para 77 of the Personal law. He did not do so. That para states:—

77.—(1) The movable and immovable property acquired during the married life shall be divided into two equal parts after the debts of the deceased husband have been paid. The widow shall receive a twentieth part of one half for every year of married life. Regarding the immovable property she shall receive part of the land in the same proportion and shall enjoy the usufruct thereof until she remarries or dies.

(2) As far as perennial crops are concerned, she shall receive part of them in the same proportion and enjoy the usufruct thereof until she remarries or dies.

(3) The widow is permitted to use the house until she remarries or dies.

(4) All immovable property shall revert to the deceased husband's family when the widow remarries or dies.

After the above citation of the law it is now my duty to apply it to the facts proved in this case. To start with the cattle, there was evidence that the total number was 10. According to the formula in subsection (1) the respondent should have got $^1/_{10}$ of half of 10 multiplied by the number of years she lived with the deceased which was 30 years. This arithmetic yields $^1/_{20} \times {}^{10}/_2 \times 30 = 7^1/_2$. As the respondent was already given 2 heads of cattle she is now entitled to $5^1/_2$ heads of cattle.

Taking into account the fact that 4 heads of cattle were slaughtered at the funeral and she already got other properties I consider 4 heads of cattle to be sufficient for her. She should therefore be paid 4 cows in addition to the 2 heads of cattle she already got.

Regarding the house it is clear that so long as the respondent remains unmarried and alive she is entitled to it. It was therefore unlawful for the appellant to have demolished it and removed the iron sheets thereby depriving the respondent of shelter. All the 70 iron sheets plus any other materials which were removed from the house should be restored to the respondent immediately.

To sum up it is ordered that the appellant returns 70 iron sheets to the respondent plus 4 cows. The appeal is dismissed with costs.

Appeal dismissed.

VICENSIO TIBO *v.* SARAPION CYPRIAN

[HIGH COURT OF TANZANIA AT MWANZA, (Mfalila, J.)]

CIVIL APPEAL 158 OF 1981

Customary Law—Haya customary law—Whether a woman can bequeath clan land to a non-clan member.

In this case the appellant challenged the validity of a will made by a woman purporting to bequeath land to a non-clan member. The primary court magistrate dismissed the action on the ground that the appellant had no right to do so because immediate heirs were present. After his appeal was unsuccessful in the district court, the appellant appealed to the high court which considered whether the decision of the primary court was correct and also whether a woman can bequeath clan land to a non-clan member under Haya customary law.

Held: (i) although there were immediate heirs to the land, i.e., the sisters of the deceased, the appellant was right as a male member of the clan to file this action challenging the validity of the will;

(ii) since under Haya customary law family property can be acquired only by inheritance, and since women cannot acquire property by inheritance, if follows that they cannot acquire ownership in it and, therefore, they cannot dispose of such property by will.

Appeal allowed.

No cases referred to:

November 23, 1982. **MFALILA, J.:** This appeal rests on the rights of females to inherit and dispose of clan property within Bahaya customary set up.

In the Primary Court of Bukoba district at Karabagaine, the appellant Vicensio Tibo sued the respondent Sarapion Cyprian challenging the validity of the will by which the respondent inherited the shamba belonging to his late grandmother Amelia Byembona who was the appellant's aunt. The appellant's case against the validity of this will was that his aunt Amelia had no capacity to dispose by will clan land to non-clan members such as the respondent. He said that his aunt Amelia was one of the five daughters of his grandfather Byembona who died leaving no male issue. He left only daughters five in number including Amelia the respondent's grandmother. Therefore when Byembona died, his shamba was inherited by all his five daughters each getting a portion. When any of the daughters died, her portion was inherited by hear surviving sisters until at the time of these proceedings three of these sisters including Amelia had died leaving two surviving sisters. During her lifetime Amelia had lived with and brought up the respondent whom he had taken from his parents at the age of six. She lived with and brought up the respondent and looked after his education until he grew up

and finally got him a wife. During her last years when she was old and ill, the respondent looked after her, taking her to various hospitals until she died. It was I think in recognition of his services to her that she bequeathed her portion of the shamba to him in her will. This is the will which the appellant sought to challenge arguing that the shamba which belongs to the "Abasingo" clan to which he and Amelia his aunt belonged cannot be bequeathed outside the clan to the respondent who belongs to "Abajubu" clan, for this reason he argued Amelia's will bequeathing her portion of the shamba to her grandson the respondent was invalid and asked the court to declare it so, so that it reverts to the Abasingo clan.

In defending the validity of the will, the respondent argued that his grandmother Amelia had every right to bequeath her portion of the shamba to him because he had lived with her since his childhood, and he was the only relative who looked after her during her old age and illness until her death. No member of the clan rendered any assistance to the old lady.

The primary court dismissed the appellant's claim on the basis that he had no legal right to bring such an action as he did not have any claim to inherit Byembona's property. His first appeal to the district court was dimissed, that court holding that the appellant's action was premature as he had first to challenge the validity of the will in court. The appellant further appealed to this court.

I will first deal with the appellant's right to bring this action. He told the primary court that after the death of Amelia and the reading of her will, the clan opposed it as it purported to bequeath clan land outside the clan. The clan therefore nominated him to bring this action on its behalf as they feared that if any of Byembona's daughters did so, this would give them permanent claim over this shamba even entitling them to bequeath it to their children and as females this was undesirable. Inspite of this explanation, the primary court held that the right people to bring this action if at all were Amelia's sisters who were the rightful heiresses of the shamba. But I think with respect that the appellant's right as a male member of the "Abasingo" clan to bring this action challenging the validity of Amelia's surviving sisters to challenge her right to dispose of her portion of the shamba by will, for this would mean also challenging their own rights to do so. Realistically therefore such action could only be taken by the male members of the clan. I am therefore satisfied for this reason that the primary court was wrong to dismiss the appellant's action on the basis that he had no right to do so while the immediate heirs were present.

The district court judgment was confused. The district magistrate dismissed the appellant's appeal on the basis that his action was premature as he had first to challenge the validity of the will in court. I do not know what this means as the present action by the appellant was doing exactly that. Perhaps the district magistrate did not read the appellant's plaint in the primary court which sought the chellange the will by which the respondent inherited their clan shamba.

The next question to be determined is whether the shamba in dispute is clan property. I think this question was not disputed even by the respondent himself. It is agreed by both sides that this shamba which Amelia and her sisters inherited from their father Byembona belongs to the "Abasingo" clan. The next question which follows is whether the late Amelia had the capacity to dispose this shamba

by will. To answer this question, reference must be made to the relevant customary rules governing disposition of clan land. But I think before I come to the question of disposition, I will deal with the guestion whether Amelia and her sisters inherited this shamba from their father or merely had use of it during their lives. Rule 20 of the Declaration of Customary Laws (Second Schedule) provides as follows:—

> (2) Wanawake wanaweza kurithi, isipokuwa ardhi ya ukoo, ambayo wanaweza kuitumia bila kuiuza wakati wa uhai wao. Lakini kama hakuna wanaume wa ukoo ule, Mwanamke anaweza kurithi ardhi hii kabisa.

The position then is females can inherit any property except clan land which they are only allowed to use during their lives, but they can inherit such clan land if there are no male members of the clan. I wish in this rule the word "nyumba" (family) had been used instead of "ukoo" (clan) because then Amelia and her sisters would have been able to inherit their father's shamba for there were no male children in their "nyumba" (family). But the use of the word "ukoo" makes it virtually impossible for any female to inherit a clan shamba for I cannot conceive of any clan without male members. The "Abasingo" clan in the present case not only has its male members, but members who are determined to exert their rights over the properties of the clan. This being the position, Amelia and her sisters could not inherit their father's shamba, they could only use id during their lives. I am now in a position to deal with the question whether the late Amelia had capacity to dispose of her portion of the shamba by will. Family property can only be acquired by iheritance, and since Amelia and her sisters could not acquire their father's shamba by inheritance, it follows that they could not acquire ownership in it. They were merely users, they therefore could not dispose of such property by will, for no one can dispose that which is not his. Therefore Amelia had no capacity to dispose her portion of the shamba by will. On her death her portion reverted to her surviving sisters for their use and when the last of these sisters is dead the land will revert to the clan who will distribute it as they think best.

What then are the rights of the present respondent? At the moment his right to stay in the shamba can only be challenged by the late Beymbona's children who are entitled to actually use the shamba, that is the two surviving sisters. The respondent will therefore continue to live in the shamba so long as the two surviving sisters do not choose to disturb him and I am sure they will not do this in view of the excellent services he rendered to their dead sister Amelia. Amelia's portion cannot go to the appellant as he claims.

For these reasons, this appeal succeedes in the sense that Amelia's will bequeathing her portion of the shamba to the respondent was invalid as she had no capacity to dispose of this clan property. The respondent should however continue living on the shamba unless the two surviving sisters think otherwise. In view of the results of the appeal I will make no order for costs in favour of either party.

Appeal allowed.

PATMAN GARMENTS INDUSTRIES LTD. *v.* TANZANIA MANUFACTURERS LTD.

[COURT OF APPEAL OF TANZANIA AT DAR ES SLAAM, (Mustafa, Mwakasendo, Kisanga, JJ.A.)]

CIVIL APPEAL 15 OF 1981

Land Law—Right of occupancy—Powers of the President to revoke—Whether the court can impugn the validity of the decision by President—Section 10(1) and (2) of the Land Ordinance.

Land Law—Right of occupancy—Powers of the President to revoke—Revocation must be for good cause—Section 10(1) of the Land Ordinance.

Land Law—Powers of the President under s. 10 of the Land Ordinance—Whether executive or judicial or quasi judicial—No longer valid.

Both the appellant, Patman Garments Industries Ltd. and the respondent, Tanzania Manufacturers Ltd., claim to be the lawful occupiers of a piece of land described variously as Plot No. 154 or Plot No. 94 which is situated at Kipawa Industrial Area within the city of Dar es Salaam. The respondents based their claim to the land on a certificate of Right of Occupancy issued to them either on 1st April 1978 or 29th May 1978 by the Directorate of Land Development Services. The offer of the right of occupancy to the land was communicated to them on 29th May 1978 and was accepted on the same day. The appellants claim that they secured the offer of right of occupancy on 24th January 1978 and accepted it on 25th January 1978. However on 5th February 1979 there was a revocation of the right of occupancy granted to the appellant. The High Court found that the right of occupancy granted to the appellant was proper in law but went further to discuss whether the court had power to impugn the validity of the order of the president to revoke a right of occupancy. The appellant was dissatisfied with that decision hence this appeal.

Held: (i) though the President has power under s.10(1) of the Land Ordinance to revoke any grant of right of occupancy for good cause he cannot do so unless the conditions prescribed by law for its exercise are fulfilled;

(ii) the courts have power to review administrative action made with reference to executive functions of the President under the Land Ordinance if he has acted either improperly or mistakenly;

(iii) the decision made by the President revoking the right of occupancy in this case is bad in law because it was made for no good cause and therefore was unlawful;

(iv) the distinction of the power of the President to be either executive, judicial or *quasi-judicial* is no longer valid.

Cross referred to:

(1) *Re H. H.* [1967] 2 Q.B. 617.
(2) *Padfield* v. *Minister of Agriculture, Fishers and Food,* [1968] A.C. 997.
(3) *Schmidt* v. *Secretary of State for Home Affairs,* [1969] 2 Ch. 149.
(4) *R.* v. *Gaming Board, ex parte Benaim,* [1970] 2 Q.B. 417.
(5) *Congreve* v. *Home Office,* [1976] Q.B. 629.

P. R. Dastur, for the appellant.
M. A. Lakha, for the respondent.

March 8, 1982. **MWAKASENDO, J.A.,** read the following considered judgment of the court: The dispute from which this appeal arises relates to a right of occupancy over a piece of land described variously as Plot No. 154 or Plot No. 94 which is situated at Kipawa Industrial Area within the City of Dar es Salaam. As both counsel, Mr. Dastur for the appellant company and Mr. Lakha for the respondent company, have conceded that Plot No. 154 and Plot No. 94 are one and the same plot of land we propose throughout this judgment to refer to the disputed plot as Plot No. 94 or simply as "the land".

At the trial both Tanzania Manufacturers Limited (the respondents) and Patman Garments Industries Limited (the appellants) claimed to be the lawful occupiers of the land. The Tanzania Manufacturers Limited based their claim to the land on a certificate of right of occupancy No. 22378—Exhibit P1 which is now mysteriously missing from the trial court record—issued to them by the Directorate of Land Development Services either on 1st April, 1978 (vide paragraph 3 of the Plaint) or 29th May, 1978 (see Exhibits D10 and P3). The offer of the right of occupancy to the land was communicated to the Tanzania Manufacturers Limited on 29th May, 1978 and accepted the same day. Remarkably, the processing of the certificate of title started on the same day; we obtain this useful information from Exhibit P3 which is a letter from the District Land Officer, Ilala, addressed to Patman Garments Industries Limited on 12th August, 1978. The letter reads:—

> I am sorry to inform you that the above mentioned plot has already been given the one Shamshudin Papat Hirji since 29th May, 1978 by our offer No. ILA/2586/HHK of 29th May, 1978 and the land fees for the above plot shs. 5,352/- has already been paid, and the preparation of the title is almost finished.

The dispatch with which the application by the Tanzania Manufacturers Limited for a right of occupancy appears to have been handled by the Directorate of Land Development Services is without doubt spectacular and a marked contrast to their earlier dilatory dealings with Patman Garments Industries in respect of the same plot. We now turn to consider the story told by Patman Garments Industries Limited.

Pratap K. Pattani (D.W.1), the Managing Director of Patman Garments Industries Limited, gave evidence in court in support of his Company's right to the occupation and use of the land and produced documents to substantiate his Com-

pany's claims to the land. Exhibit D2, a letter addressed to Patman Garments Industries Limited by the Director of Land Development Services fully bears him out. In the letter which is dated 23rd January, 1978, the Director of Land Development Services told Patman Garments Industries Limited:—

> Your application for a long term right of occupancy (later in this letter called "the right") over this plot has been approved. On receipt of the fees and information requested below I will send a certificate for you to sign.. .

On 24th January, 1978 Patman Garments Industries Limited received the Offer of Right of Occupancy from the Director of Land Development Services. The offer was in respect of—

> All that piece of parcel of land containing 4,200 square metres known as Patman's Garments Industries Limited at Kipawa Industrial Area Dar es Salaam City which for the purpose of identification only is shown red on the plan annexed hereto.

The offer then reiterated what the Director of Land Development Services had already told Patman Garments Industries Limited in his previous letter to them—vide Exhibit D2—that their application for the land known as "Patman's Garments Industries Limited" had been approved:—

> Your application for this land (hereafter called "the land") has been approved and I am directed to offer you a right of occupancy (hereafter called "the right") over it on the conditions set out below.

One of the conditions set out in the offer related to the circumstances under which the right of occupancy could be revoked by the President. These circumstances are described in paragraph 9 of the Offer, which reads:—

> The President may revoke the right for good cause or in the public interest or assign failure by the occupier to comply with the conditions expressly or impliedly contained in the right.

The Offer of the Right of Occupancy communicated to Patman Garments. Industries Limited on 24th January, 1978 was accepted by them on 25th January, 1978. On the 5th February, 1979 there was a revocation of the Right of Occupancy over L.D. No. 46100 granted to Patman Garments Industries Limited.

At the trial of the suit a lot of allegations were exchanged between the parties involving the conduct of the parties themselves and, by and large, the various officials of the Directorate of Land Development Services who were concerned with the double-allocation of Plot No. 94. Some of these allegations have been repeated before this court. However, as these allegations and counter-allegations were considered and disposed of by the learned trial judge in his judgment, we think no useful purpose will be served by going over the same allegations again. In any case, the issue before us, as both Mr. Dastur and Mr. Lakha, have readily conceded, is a very brief one—whether the revocation of the right of occupancy held

by Patman Garments Industries Limited in respect of the disputed parcel of land was lawful.

The learned trial judge in his judgment, after discussing at some length the respective claims of the parties to the land, held that the right of occupancy granted to Patman Garments Industries Limited over the land, was perfectly proper in law. He said:—

> In my judgment, I find that the right of occupancy which was granted to the defendant was perfectly good and that there was nothing irregular in the manner it was granted to him. I find that the right of occupancy which was granted to the plantiff on 29th May, 1978 was, at least up to the day the revocation order was made i.e., the day the plaint was brought to court, colourable and inoperative. Whether it acquired any validity subsequent to that order is a matter to be presently determined. And that leads me directly to the question whether the revocation order is sustainable.

The learned trial judge then went on to discuss whether the President's exercise of the power of revocation of the right of occupancy in this case fell under the provisions of subsection (1) or subsection (2) of s.10 of the Land Ordinance, and the concluding, for reasons which are not apparent on the judgement, that the President must have revoked the right of occupancy held by Patman Garments Industries Limited by invoking the provisions of subsection (2) i.e., in the public interest, proceeded to discuss the issue whether the court could impugn the validity of the decision by the President. In the end the learned trial judge was not satisfied that the President had acted either improperly or mistakenly on the matter and accordingly held:—

> (a) that up to the 5th February, 1979 the day the revocation order was made and the plaint filed, the defendant was at law the holder of the right of occupancy over the suit plot; (b) that the revocation order had a double effect—it rendered the defendant's right of occupancy void and the plaintiff's title good; and (c) that from that day, but for the interim order of this court, the plaintiff was entitled to have peaceful possession and to be in lawful occupation of the plot.

The question that arises for determination is whether the learned trial judge is right in this conclusion. To deal with the matter we will start with a brief examination of the law. Section 10 of the Land Ordinance sets out the conditions which must first be fulfilled before the President may lawfully revoke a right of occupancy to land. Section 10 provides, *inter alia*:—

> 10.—(1) It shall not be lawful for the President to revoke a right of occupancy granted as aforesaid save for good cause. Good cause shall include—
> (a) non-payment of rent, taxes, or other dues imposed upon the land;
> (b) abandonment or non-use of the land for a period of five years;
> (c) breach of the provisions of s. 14;
> (d) breach of any term or condition contained or to be implied in the certificate of occupancy or in any contract made in accordance with s. 7;

(e) attempted alienation by a native in favour of a non-native;
(f) breach of any regulations under this Ordinance relating to the transfer of or other dealings with rights of occupancy or interests therein.

10 -(2) Notwithstanding the provisions of subsection (1) the President may revoke a right of occupancy if, in his opinion, it is in the public interest so to do.

(3) Where a right of occupancy is revoked under this section such revocation shall take effect and be valid notwithstanding any provision to the contrary contained in any other written law or any order made or issued by any court prohibiting the occupier from transferring or otherwise disposing of his interest in the land or of any unexhausted improvement existing on the land.

The learned trial judge in the court of considering the powers of the President under the provisions of subsections (1) and (2) of s. 10 discussed the question whether the President's functions under the two subsections were quasi-judicial or executive. He dealt with the matter thus:—

> In my opinion, I would say that the function of the President under subsection (1) of s.10 of the Land Ordinance is a quasi-judicial function. Because, it seems to me, the exercise of his discretion under that provisions must be conditioned by finding of facts such as are set out thereunder. It basically entails the finding that the holder of the right of occupancy has committed some wrong in respect of his title. In my opinion I would say that his function under subsection (2) is purely an executive one and that he is under no duty to act judicially. He could throughout consider the matter from policy standpoint. I am prepared to accept that the revocation order in this case was made under subsection (2). I hold that it was a purely executive action.

With regard to this passage of the High Court judgment, we wish to make only two brief comments. Our first observation is with reference to the trial judge's attempt to distinguish the President's functions under subsection (1) and (2) of s.10 on the basis of whether his functions were judicial, quasi-judicial or executive. We think in determining whether the position of the President in the context of s.10 of the Land Ordinance is judicial, quasi-judicial or purely executive, it is necessary to appreciate that the test in the matter is whether there is a "lis", i.e., a contest, as it were, between two sides, as between whom the President has to come to a determination after consideration of all the facts placed before him. In the present case we can see nothing in the wording of s.10 which imposes on the President any duty to act judicially or quasi-judicially. As in our opinion the functions of the President under s. 10 of the Land Ordinance cannot, even remotely, properly be categorised as being judicial or quasi-judicial proceedings, we think the learned trial judge erred in thinking that the functions of the President under subsection (1) of s.10 were in the nature of a quasi-judicial proceeding. In any case it seems to us irrelevant in a case such as the present, to draw the traditional distinction between judicial and [illegible] executive functions of public officials.

A number of eminent judges have held that such a distinction is not longer valid and should be abandoned. See *Re. H. K.*, [1967] 2 Q.B. 617; *Padfield* v. *Minister of Agriculture, Fisheries and Food*, [1968] 2 Ch. 149; *R.* v. *Gaming Board, ex parte Benaim*, [1970] 2 Q.B. 417.

Our second observation on the above passage is as regards the issue whether the decision of the President in this case fell within the ambit of subsection (2) of s.10. With respect to the learned trial judge, we are unable to find any scintilla of evidence on record on the basis of which he could have held that the decision of the President in this case was made under the power conferred on him by subsection (2) of s. 10. His holding on the matter becomes even more difficult to understand in view of the reasons stated in Exhibit P2.

We have now to determine if the decision of the President on this matter can be sustained under subsection (1) of s.10 of the Land Ordinance. The determination of this crucial point really depends on the true construction of subsection (1). As we have already observed in this judgment, the power of the President to revoke rights of occupancy granted under the Land Ordinance is predicated upon certain conditions being fulfilled or certain events taking place. Subsection (1) provides that breach of any one or more of the terms and conditions expressed or implied in a grant of a right of occupancy may constitute good cause for revoking the grant. The subsection further provides that good cause shall include, among other matters, non-payment of rates and taxes and the abandonment or non-use of the land for a period of five years. See paragraphs (a) to (f) of subsection (1) of s. 10.

Mr. Lakha has valiantly argued before us that the reasons given in Exhibit P2 constituted good cause for revoking the grant of a right of occupancy held by Patman Garments Industries Limited. We found Mr. Lakha's able argument on his point most interesting and, if we may say so, refreshing and helpful, but we are unable to accept it. We are of the view that Exhibit P2 is clearly against him.

Patman Garments Industries Limited have challenged this revocation and have come before this court seeking a remedy. But can this court interfere with the President's decision in this matter?

The learned trial judge answered the question posed in the affirmative. He said:

> But then the question poses. Can it be questioned in court? Professor de Smith says at pp.61-62 of his book (Judicial Review of Administrative Action) that: 'The validity of the exercise of Ministerial or Administrative powers affecting the legal interests of an individual is always open to challenge in the courts (no matter the status of the person who exercises those powers) unless the review has been excluded, directly or indirectly, by the relevant legislation. If the exercise of the powers is predicted on findings of law or facts, the correctness of those findings may be impugned directly or in any appropriate form of collateral proceedings—e.g., by resisting an action or prosecution for an enforcement of the order, by bringing an action for a declaration that the order is null and void, and by suing the actor for a civil wrong'.
>
> Now there is nothing in that subsection to show that judicial review has been excluded and I think, therefore, that the court can properly review an order made under that provisions and where it is established that the order

made was made improperly or mistakenly the court can declare it null and void.

With respect, we think the learned trial judge is correct in saying that courts have power, which they have always had, to review administrative action which is challenged before them. While his discussion on the power of the courts to review administrative action was made with reference to executive functions of the President under subsection (2) of s.10 of the Land Ordinance, we are of the firm view that his reasoning on the matter equally applies to a decision made under the provisions of subsection (1) of the section.

Support for the principle of law stated by the learned author S.A. de Smith, which has been set out supra, is to be found repeated in all the important cases on the subject reported in the Law Reports. Suffice here, to refer to only one English decision which dealt with a matter which is analogous to the case with which we are now concerned. The case is *Congreve* v. *Home Office*, [1976] Q.B. 629. That was a case in which the British Home Secretary claimed to revoke a television licence—an overlapping licence—for which Mr. Congreve, a solicitor in a city firm, had paid a licence fee of £12 in advance. He claimed to revoke the licence by a section in an Act of Parliament which gave him a power to revoke it in certain circumstances. The judge at first instance held that the Home Secretary could do it but the Court of Appeal held that he could not. In the Court of Appeal LORD DENNING, M. R., dealt with the Home Secretary's contention as follows:—

> But now the question comes: can the Minister revoke the overlapping licence which was issued lawfully? He claims that he can revoke it by virtue of the discretion given him by s.1(4) of the Act. But I think not. The licensee has paid £12 for the 12 months. If the licence is to be revoked and his money forfeited—the Minister would have to give good reasons to justify. Of course, if the licensee had done anything wrong—if he had given a cheque for £12 which was dishonoured, or if he had broken the conditions of the licence—the Minister could revoke it. But when the licensee has done nothing wrong at all, I do not think the Minister can lawfully revoke the licence, at any rate, not without offering him his money back, and not even then except for good cause. If he should revoke it without giving reasons, or for no good reasons, the courts can set aside his revocation and restore the licence. It would be a misuse of the power conferred on him by Parliament: and these courts have the authority—and, I would add, the duty—to correct a misuse of power by a Minister or his department, no matter how much he may resent it or warn us of the consequences if we do. *Padfield* v. *Minister of Agriculture, Fisheries and Food*, [1968] A.C. 997 is proof of what I say. It shows that when a Minister is given a discretion—and exercises it for reasons which are bad in law—the courts can interfere so as to get him back on the right road.

With respect we adopt Lord DENNING's reasoning in the above passage. We can find nothing in reason or common sense to indicate that the principle

stated by Lord DENNING is inapplicable to a case involving a revocation of a grant of a right of occupancy.

Now then, applying the accepted principle to the fact of the present case the position appears to be: while the President has power under subsection (1) of s.10 of the Land Ordinance to revoke any grant of a right of occupancy for good cause, he cannot do so unless the conditions prescribed by law for its exercise are fulfilled. The Act states in no unambiguous terms that: "it shall not be lawful for the President to revoke a right of occupancy granted as aforesaid save for good cause". We have, we think, already abundantly demonstrated why the decision made by the President revoking the grant of a right of occupancy held by the appellants, is bad in law. It is unlawful because it was made for no good cause and was, therefore, an unlawful exercise of power conferred by subsection (1) of s. 10. We are, of course, fully aware of the frantic efforts made by some officers of the Directorate of Land Development Services to solve the problem created by them through double allocation of Plot No. 94. Be that as it may, we do not think the power of revocation conferred under subsection (1) of s. 10 of the Land Ordinance was meant for the convenience of any of the officers in the Directorate of Land Development Services.

Mr. Lakha has submitted that the only way to impugn the revocation order was by way of *certiorari* and that the Attorney General must be included if such an order was challenged. In our view, both at the trial and at this appeal the central issue was whether the revocation order was lawful or otherwise. Mr. Lakha had both here and below vigorously argued as to its validity. If Mr. Lakha and/or Land Officers had wanted the Attorney-General to support the order, they could easily have done so. The appellants were confronted with the revocation order when the respondents filed their reply and the appellants book the point that the order was unlawful. An application by way of *certiorari* is one of the means, not the sole means, of challenging such an order, and we are satisfied that in the circumstances of this case, the appellants were entitled to challenge the revocation order in the way it was done.

decree of the High Court and declare that the decision made by the President revoking the appellant Company's grant of a right of occupancy over Plot No. 94 Kipawa Industrial Area, Dar es Salaam, was unlawful and, therefore, null and void. We declare Patman Garments Industries Limited are the rightful owners of the right of occupancy over Plot No. 94 L.O. No., 46100.

Appeal allowed.

ZAWADI ABDALLAH *v.* IBRAHIM IDDI

[HIGH COURT OF TANZANIA AT DAR ES SALAAM, (Mapigano, J.)]

CIVIL APPEAL 10 OF 1980

Family Law—Whether looking after the household and ministering to the welfare of the children alone constitutes joint efforts in acquisition of property under s. 114 of the Law of Marriage Act, 1971.

The appellant, Zawadi Abdallah and the respondent, Ibrahim Iddi were married for 21 years before they divorced. After the divorce the appellant who was a house-wife claimed a share in the properties which she said were jointly acquired by them when their marriage was in existence. She told the court that her contribution was in form of her industry and prudence in keeping the household and thus enabled the family to save money which was used in the acquisition of property. The district court decided in favour of the respondent hence this appeal.

Held: (i) under s. 114 of the Law of Marriage Act, 1971, the term joint efforts is limited to direct contribution by spouse, by way of money, property and work;

(ii) domestic services are not to be taken into consideration when the court is exercising its powers under s.114 of the Law of Marriage Act, 1971.

Appeal dismissed.

Cases referred to:

(1) *Hamid Amir* v. *Maimuna Amir*, [1977] L.R.T. n. 55.
(2) *Rukia Diwani Konzi* v. *Abdallah Issa Kihenya* (Matrimonial cause No. 6 of 1977) (unreported).
(3) *Bateman* v. *Bateman*, The Law Report 1979 FAM 25.
(4) *Egerton* v. *Brownlow*, [1853] 4 N.L.C.T.
(5) *Iddi Kunganya* v. *Ali Mpate*, [1967] H.C.D. n. 49.

M. J. Raithatha, for the respondent.

EDITORIAL NOTE
See Court of Appeal decision in *Hawa Mohamed* v. *Ally Sefu*, Civil Appeal No. 9 of 1983, on the distribution of matrimonial property.

June 6, 1981. **MAPIGANO, J.:** This case raises a point of considerable moment which is the question about the matter and bounds of s. 114 of the Law of Marriage Act, 1971, that bears the rubric: power of court to order division of matrimonial assets. Before I come to discuss that point I will first deal with primary and anterior matters that I think are simple and easily disposable.

The marriage between the parties has already come to an end. It had lasted twenty one years and it was pretty prolific—a child was being born almost every

three years. After the dissolution of the marriage by the primary court at Morogoro Urban the wife Zawadi Abdallah, who is the appellant herein, claimed to be entitled to a share in properties which she said were acquired by them by their joint efforts when the marriage was in existence. The properties in question are real and personal, namely two houses situated in Morogoro township and a motor vehicle, an Isuzu Tipper lorry registered as TZ 15335. The husband Ibrahim Iddi, who is a driver, resisted the claim, asserting that the appellant had not contributed anything towards the acquisition of the three properties. The claim was fully adjudicated upon by the district court in Morogoro. The appellant gave evidence before the court and alleged briefly as follows: (a) that it was through her industry and prudence in the keeping of the household that the respondent managed to save a handsome amount of money by which he built the two houses—she said she went in for spare diets: and (b) that she had assisted him in running a retail shop whose income he applied to construct the buildings and to purchase the lorry.

As indicated above, the respondent disputed the claim. He stated that the appellant had not contributed anything. He emphatically and flatly denied her allegation that she watched and worked in the shop. He said she was a mere house wife without an income. He denied that she was an austere house wife. He said she was receiving and enjoying ample maintenance. He brought two witnesses, D.W.2 Ramadhani Moto and D.W.3 Laurent Mpeka, his shophands, who backed up his assertions. He narrated how he came to acquire the properties. He said he had acquired them through loans which he raised from his employer, the Catholic Diocese of Morogoro. He said that there was still a substantial amount of money to be repaid to the Diocese. His other witness D.W.1 Father Gaspar Bombwe bore him out. The testimony of that witness showed that the Diocese had, between 1965 and 1978, advanced to the respondent three big sums for the purpose of his acquiring the properties in question. The total amount was the relatively staggering sum of over 300,000/, out of which only a small sum has been repaid. Documentary evidence to that effect was produced by the witness and stood unassailed.

The learned district magistrate gave the evidence adduced by the two sides due consideration and in the end he accepted the respondent's contention that the properties had been acquired through the loans he took from the Diocese. He also found that the appellant had been just a house wife who, he said, lived a perfectly unstinted and blissful life. To use the *ipsissima verba* of the magistrate, "she lived a princess life". At any rate, he observed—obviously following the decision of this court in *Hamid Amir* v. *Maimuna Amir*, [1977] L.R.T. n.55—the performance by the wife of her normal domestic chores was not an effort or a contribution within the meaning of s.114 of the Law of Marriage Act, 1971 and counted for nothing at law in considering the question of, division of assets. Because, he said, that was her customary obligation as a wife, just as her tenance was the customary obligation of the respondent as a husband. In the final result, the learned magistrate dismissed her claim. She is dissatisfied and has come to this court on appeal.

In her memorandum of appeal she is repeating what she told the lower court. Appearing for the respondent, Mr. Raithatha, learned counsel, has calmly and

politely submitted that the decision of the learned magistrate is sound and has, therefore, urged that the appeal be dismissed.

The broad question here is whether the district magistrate was wrong in holding that there was no justification for the division of their properties. To start with, I think, in my judgment, that there can be no shadow of doubt that the properties in question were acquired through the loans the respondent procured from his employer. There was concrete proof to that effect. The good parts of those loans still stand unrepaid and it looks as if it will take many years for the respondent to liquidate the debts. That is exactly what drove the learned magistrate to remark that the properties are a liability rather than assets. Indeed one may pause at this point to remark, *en passant*, that the Diocese has been tremendously generous to the respondent. And one may be excused if one wonders why these missionaries have been showering so much money on him instead of applying it on some community development projects. But then this court cannot make it its business to question these people about the way they use their money unless of course there, is suspicion that the law of the land has been transgressed. That remark made, let me continue.

The fact that the properties were acquired through the loans does not however conclude the point before me. The appellant's contention amounts in substance, if not in terms, to a submission that the fact that she was tending to the proper care of the family by itself entitled her to a beneficial interest in the acquests of the respondent, on the basis or assumption that she had indirectly augmented his ability to acquire the properties. Now this gives rise to the important question: when is a spouse to be deemed to have made a contribution towards the acquisition of matrimonial assets within the context of s.114 of the Law of Marriage Act. I think that I had better set out subsection (1) of that section. It runs:—

> The court shall have power, when granting or subsequent to the grant of a decree of separation or divorce, to order the division between the parties of any asset acquired by them during the marriage by their joint efforts or to order the sale of any such asset and the division between the parties of the proceeds of sale.

Subsection (2) sets out the factors which the court much take into consideration when exercising the powers conferred upon it by the above quoted provision. But in my view subsection (2) only comes into play when it has been established that the property in question is jointly owned by the parties i.e., that the asset was acquired by their joint efforts during the subsistence of the marriage.

Different factual situations can be envisaged and I may mention the ones that are quite common place. The first is where both spouses make, direct contributions to the purchase of the property or to the building of an estate. This surely does not present any serious problem. I think this situation is adequately covered by s.114. The second is where it so happens that both spouses take up employment or engage in a trade and by arrangement between them one uses his or her earnings to meet, or more likely to help meet, the expenses of the household, buying food, the children's clothes and the extras, whilst the other applied his or her income to

build up an estate. Here it seems to be reasonable to say that the payment which the one made towards household expenses were designed to enable the other to finance the acquisition of the wealth. The acquisition of that wealth should be regarded as a concerted action and divisible under s. 114. *A fortiori,* and this is the third instance, where the incomes are put into a joint fund, such as a joint banking account, from which all expenses are paid including those in respect of the property. The fourth situation is the one presented by the facts of this case: where only one spouse is earning an income some of which going towards the building of an estate while the other, normally the wife, is full time looking after the household and ministering to the welfare of the children, and making no direct contribution to the acquisition of the property. This is still the norm in Tanzania and is the situation about which we may have two differing constructions put on s.114.

There are those who maintain that under s.114 the term joint effort is limited to direct contribution by a spouse, by way of money, property and work, to the acquisition of the asset in question and that house-keeping and raising the children count for nothing. On the other hand, there are those who take the view that household work must be regarded as part of the joint effort or contribution towards the acquisition of any asset by the husband and that the wife's citing of the husband's marriage vow and the fact that she has been running the home operate to entitle her a slice in her husband's estate. You may, if you prefer, describe the two constructions as *narrow* and *broad,* respectively. The question which I am called upon to answer in this case is which one of those views is correct. This is an important matter and I confess I have not found it all easy. To my knowledge not much has been said about it in this country and there is a paucity of judicial pronouncements on the matter. Such few decisions as there are either way and happily I am not bound by any.

Those who champion the broad view see no valid destination, in principle, between the wife who takes up employment or carries on business or profession and the one who remains at home and devotes her time running the home. They would construe the terms contribution and joint efforts liberally to include domestic services rendered by the full time "domestic" wife. They would advance several reasons to back up their view point. Among the reasons: (1) that it is the philosophy and spirit of our time and that it is quite in harmony with the realities and changed social and economic circumstances; (2) that the domestic work may be more difficult and more valuable to the family than that of a wife who is self-earning; (3) that the husband can hardly conduct his business if his wife does not cook the dinner and mind the children; (4) that in certain instances the wife may have sacrificed her own career on the alter of matrimonial life and if say after twenty or thirty years of marriage her husband, for old man's reasons or no reasons whatsoever (as probably was the position in the case before me), sees fit to banish her, the decree of divorce may have the further undesirable and sad effect of practically thrusting her into destitution; and (5) that in yet certain instance the estate of the husband may have been built up by the industry of the husband and the thrift and prudence of the wife in running the home and that, therefore, it is in conformity with one's sense of justice and fairness that she should share as of right

in the fruits of his success. They would find encouragement and comfort in the words of *Scarman* L. J. which appear in the Medico—Legal Journal, 1966 Vol. 34 at p.19 that:

> It is recognised that a married woman who brought up a family and maintained a home was thereby actually supporting her husband in his bread—winning activities by releasing him from family duty. Quite plainly if the marriage broke down she must have a claim upon the family funds by reason of that vital contribution to the family life. It was here that the law of England (as it then was) went wrong.

Those are, I think, strong and weighty reasons and no doubt that the strict operation of the doctrine of separate property can occasion a great deal of distress to a divorced woman. But we should bear in mind that the whole question is a legal one.

Judge MAKAME for one has taken a stand on the side of the liberal school. Sitting in this court at this place he felt himself prepared and able to say that domestic services a wife renders count. That was in the case of *Rukia Diwani Konzi* v. *Abdallah Issa Kihenya*—Matrimonial Cause No. 6 of 1977. His reading of s. 114 does not square with that of the magistrate who heard this case. The learned judge thought that the section has sufficient width to embrace the broad view. Stated the learned judge:

> There is a school of thought which says that domestic services a housewife renders do not count when it comes to acquisition, and therefore the subsequent possible division, of matrimonial assets . . . I find this view too narrow and conservative and I must confess my inability to subscribe to it. Section 114 of the Law of Marriage Act does not really support the school of thought referred to and is, in my view, capable of accommodating a more liberal interpretation.

A little further on, MAKAME, J. continued:—

> Even in a country like Britain, where salaried married women are quite common, the modern progressive view, with which I wish to associate myself, is that looking after the home and bringing up the children is a valuable contribution. See for example the recent case of *Bateman* v. *Bateman*, The Law Report 1979 FAM 25.

But be it noted that in this respect our statutory law compares unfavourable with the English Law. The perimeters or ambits of the English Law are simply and expressly more extensive. The English case to which the learned judge made reference was an application by the wife for financial provision and adjustment of property in her favour, upon the dissolution of the marriage between her and the respondent. The decision of the court was manifestly predicated upon the provisions of the English Matrimonial Causes Act, 1973, which makes explicit provisions to the effect that in adjusting property rights under that Act, the contribution made by each of the parties to the welfare of the family, is a relevant con-

sideration to be taken into account. So in my respectful opinion the decision in that case can hardly be helpful or persuasive.

As shown, in this case the learned magistrate expressed and followed the narrow interpretation. He argued that since traditionally the looking after the household and caring for the children is the occupation and responsibility of a wife, just as the feeding and clothing the family is the occupation and responsibility of the husband, then that should not be considered as a contribution or joint effort. Was he wrong? At the risk of being deemed a conservative, though I would like to believe that I am not, I must say that on the view that I take of the law I feel compelled to pronounce that the decision of the learned magistrate is, in the final analysis, sound. I share his opinion that under s.114 the housework of a wife and looking after the children are not to be equated with the husband's work for the purpose of evaluating contributions to marital property. I hold as he did that such domestic services are not to be taken into consideration when the court is exercising its powers under the section. I will give my reasons.

First, I think that the broad view is inextricably linked with other matters. It does bring to the fore other issues which are arguably troublesome in regard to which the statute does not appear to make any clear provisions. Two such issues come to my mind. One, there would be in many cases the question whether the matters is to be decided with reference to the matrimonial differences which may in fact have made it necessary to consider the matter—in the light of the principle that no one should be allowed to benefit from his own wrong. To put it interrogatively: will a wife be allowed to benefit from a marriage which she has wrecked? Two, there would be the relationship between the order under s. 114 and the order which the court may make with regard to maintenance under s. 115.

Secondly, and I regard this to be a stronger point, the question can be asked: Is there really anything in law to give any strong colour to the suggestion that is put forward by the liberal school. Certainly it was not part of own law before the enactment of the Law of Marriage Act. See for example *Iddi Kungunya* v. *Ali Mpate*, [1967] H.C.D. n.49. And to be sure, there is no provision in the Law of Marriage Act which says so in terms. That throws up a question of judicial policy. It is this: that where there are no clear rules of law governing matters of such general social importance, matters which directly affect the interests of almost every matrimonial couple and which raise issues that might be the subject of public controversy and on which laymen are as well able to decide as lawyers, can the courts properly proceed on their view of public policy? (There is the warning uttered by a judge over a century and half ago that public policy is a most unruly horse, you can never know where it will carry you). Would it not be to encroach on the province of the Legislature? PATEL, J. thought so. He observed briskly in the case of *Hamid Amir Hamid* (supra) that if the legislature had intended that domestic services performed by a wife be regarded as contribution and joint effort it would have said so in language clear and plain. But the liberal school might put forth the line that the law should be innovative and responsive to societal aspirations. I would embrace that principle. I do understand that judges must

develop the law and indeed it is now generally accepted that sometimes they must, and do, legislate. The myth that common law judges merely enunciate or discover the existing law should now stand discredited. Blackstone was, I think, one of the leading proponents of that theory. However, as the great American judge HOLMES once said, and many subscribe to the view point, the judges should do so only interstitially, and with molecular rather than molar motions. In 1969 (in his paper which he read at the University College Dar es Salaam) Sir CHARLES NEWBOLD, then the President of the Court of Appeal for East Africa, put the point in this way:—

> The power of the judges to make law is a power which can be exercised within very circumscribed limits. The power is exercised in two, fields. The first is where rights and duties of a member of the community are determined by legislation; and in that field the circumscribing limits are the doctrines of equity and the indefinable but real customs and needs of the community . . . Within the field in which rights and duties are specified by legislation a judge's duty is to apply and enforce the legislation and, save as regards subordinate legislation, he cannot challenge the validity or effectiveness of the legislation.

Further, I think perhaps I should read a short passage from the decision of PARKE, B. in *Egerton* v. *Brownlow*, (1853) 4 H.L.C.I., a passage which has been frequently quoted with approval by many judges including Sir CHARLES NEWBOLD:-

> It is the province of the statesman, and not the lawyer, to discuss, and of the legislature to determine, what is best for the public good and to provide by proper enactments. It is the province of the judge to expound the law only; the written from the decisions of our predecessors and of our existing courts, from text writers of acknowledged authority, and upon the principles to be clearly deduced from them by sound reason and just inference; not to speculate upon what is best, in his opinion, for the advantage of the community.

In my considered opinion, I think that if at all there is any grey area in respect of the matter, the appropriate solution to the problem lies in the intervention of the legislature and not in judicial legislation. But is there, a grey area? That leads me to my next point and this is where I would put the emphasis.

I apprehend that to follow the broad view would be to give recognition to the concept of community of property between the husband and the wife—*communio bonorum*—and perhaps with its logical corollary community of loss and debts. And, specifically, it would run directly counter ss.58 and 60(1) of the Law of Marriage Act and empty those two provisions of all meaningful effect. Those sections are some of separate property. They say that subject to the provisions of s. 59 (which relate to matrimonial homes) and to any agreement the parties may make, any property acquired in the name of the husband or of the wife, presumptively belongs exclusively to that person.

There are materials which strongly point to a definite legislative intention that domestic services should not count when the court is dealing with the matter of division of assets under s. 114. In this regard attention should be called to the fact that the Act is based on the work of the Kenya Commission on the Law of Marriage and Divorce which was headed by SPRY, J. A. and which is comprised in the Commission's report of August, 1968. The Act borrows heavily from the draft bill prepared by the said Commission—Appendix VIII to the report. For instance our ss. 58, 60 and 114 are, respectively, exactly the same as ss. 66, 68 and 123 of the draft bill. Now the views and recommendations of the SPRY Commission on the subject now at hand are contained in paragraphs 177—184. It is patently clear that the Commission rejected the broad view and s. 123 of the draft bill must, therefore, be taken to embody or reflect that standpoint. Our Government White Paper—No. 1 of 1969—which preceded the enactment contains nothing which suggests a difference between the ideas of the SPRY Commission and those of the authors of the White Paper. The White Paper has only a few words about the subject. It is the last sentence of paragraph 19 and it merely says that:—

> The proposed law should provide expressly that either spouse may own his or her own separate property, which he or she owned before, or acquired after, marriage.

I am well aware that the SPRY report cannot be treated as authority in any technical sense. But I find it valuable because it provides the background to our law and helps to discover the intention of the legislature. I think I can treat that background as strongly indicating that our legislature adopted the ideas and philosophy contained in that report. It should, therefore, be inferred that the purpose for which s. 114 was enacted by out legislature was not all that broad as canvassed by the liberal schoo[1]. It seems, from a historical perspective, that the section was not designed to help a married woman who has no property or has failed to acquire any during marriage because of household duties. In other words, it was not written into s. 114 that a wife's marital status and duties should *per se* make her a partner in the husband's economic enterprises or gains. That in my opinion, is the true construction of the section.

I am not of course saying that is good law. I am not for instance against saying the fact that one of the ills of the breakdown of marriage is the economic hardship that a woman may have to suffer, where, as is common in Tanzania, the woman has not acquired any property, and I think, therefore that, there is much to commend the liberal view point to serious reflection, and consideration. What I am saying is that the broad view does not comport with the history of the legislation and that the other provisions of the Act would make little sense if that view is adopted. I am saying that if the law is unsatisfactory the proper solution to the problem should be legislative rather than judicial.

In the circumstances this appeal is dismissed. There is nothing else to add beyond observing that the appellant can consider seeking the relief of alimony vide s. 115(1)(e).

Appeal dismissed.

SAMWELI MSIVANGALA *v.* REPUBLIC

[HIGH COURT OF TANZANIA AT MBEYA, (Samatta, J.)]

CRIMINAL APPEAL 1 OF 1979

Criminal Law—Theft—Test for asportation.
Minimum Sentence Act—Minimum sentence for attempted cattle theft—Minimum sentence for cattle theft—Minimum Sentences Act, 1972 ss.4(a) and 5(c).

The appellant was convicted by a primary court magistrate of attempted cattle theft and was sentenced to five years imprisonment. His appeal to the district court failed. The appellant had broken into another person's kraal and driven a bull away from it. He was seen by two people. On its own the bull returned to its owner's kraal.

The learned high court judge considered whether the offence committed was one of attempted cattle theft or cattle theft. He also considered whether the sentence meted was proper.

Held: (i) since the appellant drove the bull from where it was to another place asportation was proved and, therefore, the offence committed was one of cattle theft;

(ii) the minimum sentence for attempted cattle theft is 3 years' imprisonment.

Appeal dismissed.

No case referred to:

S. Kapinga, for the Republic.

September 10, 1982. **SAMATA, J.:** This is a second appeal. The appellant was convicted by the Primary Court of Mafinga of attempted cattle theft, contrary to ss. 265 and 381 of the Penal Code, and was sentenced to a term of five years' imprisonment. His appeal to the District Court of Mufindi district against that decision was unsuccessful, that court holding that the decision did not rob the appellant of justice.

There was no dispute whatsoever at the trial over the fact that on the evening of August, 1978, someone broke into the kraal of one Richard Ngimba and drove away from it one bull. Was it the appellant who did so? The answer of the primary court magistrate and the assessors who sat with him was YES. The learned district magistrate who heard the first appeal approved this answer. I also do. The appellant was, according to the evidence of two independent witnesses—one Samweli Lubalala and Masinzala Nzala—found very near the bull about a quarter of a mile from Richard Ngimba's kraal. He was heavily armed—with two matchets and a spear. He told the two witnesses that he had found the bull in the

bush, and he asked them for their assistance to slaughter it. The witnesses, of course, turned down his unusual request. On its own the bull returned to its owner's kraal.

All these events took place on the very night the kraal was broken into and the bull driven therefrom. The primary court was of the view that these facts did not authorise it to find the appellant guilty of theft. In its settled view these facts disclosed only the offence of attempted theft, because the appellant had not completed his mission of driving the bull to the place he wanted to take it to. The learned district magistrate approved this reasoning. With profoundest respect, I disagree. The law as I apprehend it is that *asportation* need not involve a long distance. The slightest movement will suffice. The true test is whether every atom in the article being moved had left the space which that particular atom had occupied. I venture to point out, without, I hope, any disrespect, that if the law were as the two courts below took or thought it to be, the man on the UDA omnibus would have been tempted to ask his neighbour: Why has the law parted company with common sense? I have always understood it to be one of the duties of courts of justice to strive, as far as is possible, for the non-existence of friction between the law and common sense, so that the former may continue to enjoy the respect and obedience of the common man. Be that as it may, the two learned magistrates, in view of the fact that *asportation* is a technical concept, may find some consolation in the following observation by Mr. Justice Bernard Rotein (of the New York State Supreme Court) in his book TRIAL JUDGE:

> The law will never be entirely clear to any (judicial officer), just as a beautiful woman is always a bit of a mystery to her lover. Were it otherwise, each would lose part of her charm.

I have sufficiently demonstrated, I think, that the appellant should have been convicted of cattle theft and not attempted cattle theft. The conviction must be, and is, varied accordingly. I will be permitted, I hope, to add that the appellant's defence that the case against him was a frame-up was tenuous and rightly rejected by the trial court.

I turn to the appeal against sentence. Both courts below appear to have thought that attempted cattle theft attracted the minimum sentence of five years' imprisonment. This view is, with unfeigned respect, without foundation in law. The minimum sentence prescribed by the wise men and women who sit in the Karimjee Hall for the offence of attempting to commit any of the offences specified in the First Schedule to the Minimum Sentences Act, 1972—including attempted cattle theft—is three years' imprisonment: See s.4(a) of the Act and the 12th paragraph of the Schedule. But, following the variation I have made to the conviction, the sentence of five years' imprisonment meted out to the appellant cannot be disturbed, as it is the minimum prescribed by law for the offence of cattle theft: See s.5(c) of the aforementioned Act.

I realise I have failed to achieve the learned district magistrate's brevity, but I do not regret it. In the upshot, I dismiss the appeal, but subject to what I have endeavoured to state.

Appeal dimissed.

REPUBLIC v. KILENI ZEBADAYO

[HIGH COURT OF TANZANIA AT MBEYA, (Samatta,J.)]

CRIMINAL REVISION 2 OF 1979

Criminal Practice and Procedure—Charge of rape—Girl under 14 years—Whether proper under law—Section 131 of the Penal Code.
Criminal Law—Defilement—Absolute offence—Section 136(1) of Penal Code.

Accused was convicted and sentenced to two years' imprisonment on his own plea of guilty to the charge of rape. It was alleged that the accused raped a 4 to 5 year-old-girl. Later the magistrate referred the case to the High Court for revision minuting that the proper charge was supposed to be defilement and not rape.

Held: (i) a person may be charged with the offence of rape irrespective of the age of the girl because the law does not fix any age below which consent is impossible;

(ii) the offence of defilement is an absolute one and consent constitutes no defence.

Cases referred to:

(1) *Regina* v. *Waziri s/o Musa*, 2. R.L.R. (R) 30.
(2) *R.* v. *Donovan*, [1934] 2 K.B. 498.
(3) *R.* v. *Harling*, [1938] 1 All E.R. 307.
(4) *R.* v. *Howard*, [1965] 3 All E.R. 684.

A. J. Saffari, for the Republic.

May 11, 1981. **SAMATTA, J.:** On October 11, 1977, the accused was charged before the District Court of Mbeya district with rape, contrary to s. 131 of the Penal Code. His plea to that charge was:

It is true I forced her.

The learned magistrate entered it as a plea of guilty to the charge. In accordance with the procedure outlined by MAHON, J., as he then was, in *Regina* v. *Waziri s/o Musa*, 2 T.L.R. (R) 30, at p.31, the prosecutor then gave an outline of the facts of the case. He said:—

The accused is a peasant and lives at Ruanda Usangu in Mbeya district. On 28.09.1977 at about 6.00 p.m. one girl Letisha Nicholus was in her nor-

mal walking, with a young boy, at Warumba village, the accused's village. The accused saw the complainant and the young boy and welcomed them to his home. Just before they reached his home, the accused took them to a vacated house which had two rooms. He ordered the boy to remain in one room and he took the girl to another room when (he) forced out the underpants of the girl and he committed the sexual intercourse with her while the said girl was crying that she was (being) assaulted. The girl, (who) was 4 years old, was totally destroyed in that her vagina was ruptured (sic). (The) said child was taken to Rujewa Hospital for examination and the doctor made his report in PF.3 in which the doctor satisfied that the child was of 4 to 5 years (of age), that she was bleeding, . . . and that the said child had been infested (sic) with gonorrhoea. The accused was also examined on 30.09.1977 and he was found suffering from gonorrhoea.

When he was asked by the learned magistrate to say whether or not he agreed with that outline of facts, the accused said:—

All what the public prosecutor (has) said is right.

The learned magistrate then proceeded to convict the accused as charged. After a plea of mitigation, in which the accused merely said that during the Second World War his age was eight or nine years, a sentence followed, two years' imprisonment and ten strokes of corporal punishment. On the following day the learned magistrate doubted the validity of the conviction. He wrote the following in the case file:—

I have just noted that the charge was wrongly made. The facts to the charge show that the girl was a child of four to five years and thus the correct charge should have been defilement c/s 136(1) of the Penal Code . . . I request your Lordship to revise the conviction and to convict (the accused) under the proper section . . .

That is how this case come to be before this court.

With unfeigned respect to the learned magistrate, I think he strayed into an error in law in entertaining the view, as he did, that, since the victim of the accused's misconduct was a very young girl, a charge of rape could not in law be laid at the accused's door. It is true, of course, that for a charge of rape to succeeded, the prosecutor must prove, *inter alia*, that the accused had the carnal knowledge of his victim without her (real) consent. But, as was observed by SWIFT, L. J., in *R.* v. *Donovan*, [1934] 2 K.B. 498 at p.506:—

. . . consent is a question of fact. The state of a person's mind is a question of fact, . . . it can be ascertained only by considering and weighing the ascertained facts about that person's conduct.

As every lawyer knows or ought to know, the law in this country does not fix any age below which consent in rape or attempted rape is impossible. The matter is a

question of fact in each case. It is perhaps of more than academic interest to observe that the English law is not different from our law on this point: See *R.* v. *Harling*, [1938] 1 All E.R. 307; [1937] 26 Cr. App. Rep. 127; *R.* v. *Howard*, 3 All E.R. 684; [1966] 50 Cr. App. R. 56. In the latter case, delivering the judgment of the Court of Criminal Appeal, Lord PARKER, C. J., after referring to the decision in the former case, said:—

> The court thinks it as well to repeat that it seems to this court that in the case of a girl under sixteen, the prosecution, in order to prove rape, must prove either that she physically resisted, or if she did not, that her understanding and knowledge was such that she was not in a position to decide whether to consent or resist.

In my view the younger the girl is, the easier the task of the prosecutor to establish a charge of rape becomes. Where the alleged victim is, as in the present case, a very young girl, the prosecutor will not be required to lead much evidence beyond the age of the girl to prove the absence of consent. For the protection of girls under the age of fourteen years the legislature created, under s. 136(1) of the Penal Code, the offence of defilement of girls under that age. Unlike in the case of a charge of rape, where the defence of consent is open to the accused regardless of the age of the girl, this offence is an absolute one, the consent of the girl constituting no defence to the charge. Where the girl is below the age of fourteen years an astute prosecutor is not likely to lay a charge of rape at the accused's door; he would, I think, be most anxious to reduce the magnitude of his task in the case by charging the accused with defilement of girls under fourteen years of age.

In my view, for the reasons I have given, the charge of rape the accused faced and was convicted of was not, as the learned magistrate thought, misconceived in law. It was quite a proper charge.

The accused was lucky to have got off with a sentence of two years' imprisonment and ten strokes of corporal punishment only. Rape is a heinous crime; it is more so when it is committed upon a young girl aged about five years. The accused's conduct certainly resembled that of a beast. Bearing in mind that the offence of rape attracts the maximum custodial sentence of life imprisonment, in my opinion it would be difficult almost to the point of impossibility to assert, even for controversial purposes, that, by serving the sentence which was meted out to him, the accused was sufficiently punished. But the accused must have finished serving that sentence in February, 1979.

Though not without regret, I think it would make the law appear as an ass to the man on the UDA omnibus, a thing which it is not, to drag the accused back to the prison after more than two years have elapsed since he regained his personal liberty. I think it would not serve the interests of justice to enhance the sentence at this very late hour. I devoutly hope that the prison authorities succeeded in making the accused believe that he is better out of prison than in it.

KASTOR NG'OWO *v.* REPUBLIC

[HIGH COURT OF TANZANIA OF MBEYA (Samatta, J.)]

CRIMINAL APPEAL 44 OF 1979

Criminal Practice and Procedure—Abstantion of accused before close of prosecution case—Whether court may continue with the hearing in the absence of the accused—s. 202A Criminal Procedure Code.

The appellant was convicted by a district court for robbery with violence. Before the close of the prosecution case the accused jumped bail and could not be traced. The trial magistrate ordered the hearing of the case to proceed and convicted the appellant.

Held: (i) under s. 202A of the Criminal Procedure Code a subordinate court nas a discretion to proceed with a trial in the absence of the accused only if the case for the prosecution is already closed;

(ii) the decision of the trial court, reached after its intentional unsurpation or mistaken assumption of jurisdiction, was null and void.

Appeal allowed. Conviction quashed.

No case referred to.

A. Teemba, for the respondent.

February 10, 1982. **SAMATTA, J.:** Does a subordinate court have jurisdiction to continue trying an accused person *(in absentia)* if he has jumped his bail before the case for the prosecution has been closed? On the answer to this question hinges, I think, the result of this appeal. The appellant was convicted by the district court of Iringa of robbery with violence, contrary to s. 285 of the Penal Code, and was sentenced, in accordance with the provisions of s. 5(b) of the Minimum Sentences Act, 1972, to a term of seven years' imprisonment.

The appellant's trial commenced on September 28, 1978. Three witnesses gave evidence on that day. The hearing was then adjourned to October 3, 1978. On that date the appellant, who had been bailed into the hands of a surety, did not turn up in court. A warrant of arrest was issued against him, but the hounds of justice failed to trace him. After several adjournments the court, on December 20, 1978, ordered that the trial should continue in the absence of the appellant. It cited s. 202A of the Criminal Procedure Code while making that order. The last witness for the prosecution then gave evidence. Three days later the learned trial magistrate delivered his judgment. The appellant was then still at large.

S. 202A of the Criminal Procedure Code, the section which the learned trial magistrate purported to base his order of December 20, is couched in the following language:

> Where in any case to which s. 202 does not apply, an accused being tried by a subordinate court fails to appear on the date fixed for the continuation of the hearing *after the close of the prosecution case* or on the date fixed for the passing of a sentence, the court may, if it is satisfied that the accused's attendance cannot be secured without undue delay or expense, proceed to dispose of the case in accordance with the provisions of s. 210 as if the accused, being present, has failed to make any statement or adduce any evidence, or as the case may be, make any further statement or adduce any further evidence, in relation to any sentence which the court may pass. (the emphasis is supplied).

There is a proviso, but it is not of any relevance to the case now at the Bar. Before it was amended, on December 1, 1980, by s. 2 of the Penal Code (Amendment) Act, 1980, s. 202 of the Criminal Procedure Code read as follows:

> (1) If at the time or place to which the hearing or further hearing shall be adjourned, the accused person shall not appear before the court which shall have made the order of adjournment, it shall be lawful for such court, unless the accused person is charged with felony to proceed with the hearing or further hearing as if the accused were present, and if the complainant shall not appear the court may dismiss the charge and acquit the accused with or without costs as the court shall think fit.
>
> (2) If the court convicts the accused person in his absence, it may set aside such conviction upon being satisfied that his absence was from causes over which he had no control, and that he had a probable defence on the merits.
>
> (3) Any sentence passed under subsection (1) shall be deemed to commence from the date of apprehension, and the person affecting such apprehension shall endorse the date thereof on the back of the warrant of commitment.
>
> (4) If the accused person who has not appeared, as aforesaid is charged with felony or if the court in its discretion refrains from convicting the accused in his absence, the court shall issue a warrant for the apprehension of the accused person and cause him to be brought before the court.

When ss. 202 and 202A (cited above) are read together it leaps to the eye that the draftsman strayed into a minor error. He wrongly assumed that the former section did not deal with offences which then were categorised as felonies. As will have been noted, subsection (4) of the section laid down steps the court had to take if the accused in the particular case was charged with a felony. To bring about harmony

between this subsection and s. 202A one must, I think, take the word and figure "s. 202" in s. 202A to have been meant to read "s.202(1)".

Under common law an accused person who jumps his bail is deemed to have waived his right to be present at his trial, and the court has, under those circumstances, the discretionary power to continue the proceedings in the accused's absence whether or not the accused is charged with a serious offence, and regardless of the stage the trial had reached at the time he absconded. This is undoubtedly a more sensible rule than the one embodied in s. 202A of the Criminal Procedure Code. But I must apply the law as I find it. Under s. 202A a subordinate court has a discretion to proceed with a trial in the absence of the accused only if the case for the prosecution is already closed. In the case now at the Bar the appellant jumped his bail before the case for the prosecution had been closed. It follows that the learned trial magistrate misdirected himself in law in thinking, as he clearly did, that the law allowed him to continue the proceedings in the absence of the appellant. The proceedings which were conducted in the lower court in the absence of appellant are, in the eye of the law, a nullity. Mr. Teemba, counsel for the Republic, pressed on me to hold that the error into which the learned trial magistrate strayed is curable under the provisions of s.346 of the Criminal Procedure Code. With due respect to the learned state attorney, I have the greatest difficulty in persuading myself that there is validity in his argument. As I understand it, the absence of a factor which is a condition precedent to a court of law having a certain jurisdiction to do something causes the court's purported decision on the matter to be a nullity and not a mere irregularity. As a general rule, a decision reached by a court of law following its intentional usurpation or mistaken assuption of a jurisdiction beyond that given to it is not decision in law; it is null and void and not just irregular.

For the reasons I have given, I allow the appeal, quash the purported conviction and set aside the sentence imposed thereon. It might not fully serve the interests of justice to leave the matter there. For the avoidance of doubt it must be pointed out, I think, that the Director of Public Prosecutions is at liberty in law to prosecute the appellant *de novo*. If he chooses to exercise his discretion against the appellant, then the case should be heard by another magistrate of competent jurisdiction. I hasten to point out that this requirement is not meant to cast any aspersions on the learned magistrate whose decision I have declared a nullity. The requirement is made solely because it is felt that, for justice manifestly and undoubtedly to be seen to be done, there should be a fresh mind on the issues of the case.

As a postscript, I desire to bring to the attention of those concerned the importance of eliminating the confusion which has been caused on the application of the two sections of the Criminal Procedure Code I have quoted in this judgment by the abolition, by s.2 of the Penal Code (Amendment) Act, 1980, of the terms "felony" and "misdemeanour". The two sections were fairly reconcilable when the division of crimes into felonies and misdemeanours was recognised by the law. Since the distinction has now been abolished, there is urgent need to reconsider the wording of those sections. Perhaps the best solution would be to repeal the two sections and substitute therefore a single section embodying the common law rule,

which is not only logical but also consistent with the sense of justice of the man on the UDA omnibus or, as he is otherwise known by lawyers, the ordinary man of common sense.

Appeal allowed.

Conviction quashed.

HARITH SAID AND BROTHERS, LTD. v. MARTIN s/o NGAO

[HIGH COURT OF TANZANIA AT MBEYA (Samatta, J.)]

CIVIL CASE 29 OF 1980

Contract—Terms of the contract—Time is of essence—A condition.

Contract—Sale of goods—Sale of specific goods—When property in the goods passes (s. 20 r.1 Sale of Goods Ordinance, Cap. 214).

Sale of Goods—Sale of specific goods—When property in the goods passes (s.20 r. 1 Sale of Goods Ordinance, Cap. 214).

Sale of Goods—Documents of title to goods—Whether a motor vehicle registration card included.

Bills of Exchange—Cheque—A cheque as a conditional payment—Effect.

Road Traffic Act—Road Traffic Act, 1973, non-registration of change of ownership—Whether affects legal position on the question of passing of property.

Kampuni ya Usafiri Sumbawanga, KAUSU, sold a bus to the defendant for shs. 200,000/-. The written agreement showed that defendant was to pay shs. 100,000/- on 3rd May, 1980 by a cheque and the balance was to be paid in three instalments. On the day the contract was concluded defendant wrote and handed to KAUSU a cheque for shs. 100,000/- dated 3rd May, 1980 and also drew three postdated cheques for payment of the three instalments. On the same day defendant took possession of the bus. When the cheque of 3rd May, 1980 was presented for payment on 2nd June, 1980 it was dishonoured. KAUSU seized the bus and invited tenders for the purchase of the bus. The plaintiff's offer was accepted. He paid shs. 305,000/- in cash on September 20, 1980 and was given the bus and the registration card. This took place 45 days after defendant had deposited shs. 100,000/- cash in KAUSU's bank account. By a Court's order the bus was seized by the police from the plaintiff to await directions from it.

In the course of the trial of this case the plaintiff argued that he was the owner of the bus. On the other hand the defendant submitted that he was the lawful owner of the bus. It was argued in favour of the defendant that the bus was specific goods and property in it passed to defendant at the time of the contract of sale.

Held: (i) according to the terms of the contract time was of the essence of the contract and therefore failure by defendant to effect payment on the 3rd May 1980 (the cheque having been dishonoured) amounted to a breach of a condition;

(ii) payment by cheque is in law, as a general rule, only a condition payment; if the cheque is met the payment relates back to the time when it was drawn; if it is dishonoured the debt revives;

(iii) notwithstanding breach of the condition, the property in the bus was intended to, and did, pass to the defendant when the contract was made (s. 20 (r.1) Sale of Goods Ordinance Cap. 214);

(iv) non-registration of change of ownership under the provisions of the Road Traffic Act 1973 does not change the legal position on passing of property;

(v) a motor vehicle registration card is not a document of title for the purposes of the provisions of the Sale of Goods Ordinance.

Defendant adjudged lawful owner of the bus.

Cases referred to:

(1) *Flach* v. *London and South Western Bank, Ltd.* [1915] 31 T.L.T. 334.
(2) *Plunket and Another* v. *Barclays Bank, Ltd.* [1936] 1 All E.R. 653.
(3) *Jayson* v. *Midland Bank, Ltd.* [1968] 1 Lloyds Report 409.

A. P. Dhebar, for the plaintiff.
T. H. M. Mwakilasa, for the defendant.

May 11, 1982. **SAMATTA, J.:** This is a case of some difficulty. It concerns a bus. Its registration number is TZ 38992. Who owns it? This is the substantial question in the case. The plaintiff company asserts that the motor-vehicle belongs to it, having bought it for the sum of shs. 305,000/- from a company known as *Kampuni ya Usafiri Sumbawanga,* which, for the sake of convenience, will hereinafter be referred to as KAUSU, the name by which some of the witnesses referred to it in the course of their evidence. The plaintiff company has prayed for a declaration that it is the lawful owner of the bus, and it has claimed damages from the defendant for the "loss of business" it allegedly suffered as a result of the latter taking possession of the vehicle. The defendant, on the other hand, has disputed that claim, and he has asserted that he is the owner of the vehicle. He has, in addition to claiming damages, sought this court's declaration that the vehicle became his property following his purchasing the same for the sum of shs. 200,000/- from KAUSU. The plaintiff company has denied any liability to the defendant and has asked this court to dismiss the counter-claim with costs.

The facts of the case are not, on the whole, in dispute. On May 3, 1980, KAUSU and the defendant entered into an agreement for the former to sell to the latter the bus for the sum of shs. 200,000/-. According to the contract, which was reduced to writing, the defendant was to pay the price in four instalments by cheques, as follows:

May 3, 1980: shs. 100,000/-
May 31, 1980: shs. 30,000/-
June 30, 1980: shs. 35,000/-
July 30, 1980: shs. 35,000/-

The defendant took physical possession of the bus on the same day the contract was signed, namely, May 3, 1980. On the same day the defendant handed over to KAUSU four cheques drawn in the company's favour. One of the cheques, which was for the sum of shs. 100,000/-, was dated May 3, 1980, while the remainder were post-dated. The first cheque, that is to say, the one for shs. 100,000/-, was presented to the bank on June 2, 1980, but it was returned to the payee (on the same day) with REFER TO DRAWER endorsement on it. The plaintiff company's Board of Directors decided that the contract of sale for the bus be treated as repudiated. It resolved that the bus be seized. This decision was executed a day or two later. The police, apparently acting on the instructions of the Area Commissioner for Sumbawanga district, seized the vehicle and parked it at the Sumbawanga police station. In the second week of August 1980, KAUSU invited tenders, through the DAILY NEWS and UHURU newspapers, for the purchase of the bus. The plaintiff company offered to buy the vehicle for the sum of shs. 305,000/-. The offer was accepted. The vehicle was handed over to the plaintiff company after the purchase money had been dapid. This took place on September 20, 1980, about forty-five days after the defendant had deposited the sum of shs. 100,000/- (cash) in KAUSU's bank account. KAUSU handed over to the plaintiff company the registration card in respect of the bus. The card was supposed to have been handed over to the defendant after he had paid the last instalment of the price. At this time the bus was still registered in KAUSU's name. The plaintiff company did not have possession of the bus for a long period. About twenty days after the company had taken possession of it, the police, in compliance with an order made by this court, seized it. The court's order also required the police to keep the vehicle in safe custody until they were otherwise directed by the court. On all these facts there is no dispute, and I hold and find as a fact that they have been established.

There can be little doubt, in my judgement, that it was the intention of the parties to the first contract, namely KAUSU and the defendant, that the stipulations as to the time of payment of the price should be of the essence of the contract. Each instalment of the price was, according to the terms of the contract, to be paid on a specific date. Any failure by the defendant to pay the instalments on the agreed dates was not, therefore, to be a mere breach of warranty. It would be a breach of a condition of the contract. As already stated, the defendant handed over the cheque for shs. 100,000/- to the plaintiff company on May 3, 1980, that

is to say, on the agreed date. The proposition that, as a general rule, a payment by cheque is in law only a conditional payment, although if the cheque is met the payment relates back to the time when it was handed over, does not require, I think, any citation of authority in support of it. Until it is cleared, a cheque cannot be considered as payment in cash. If it is dishonoured, the debt revives. The cheque for shs. 100,000/- handed over by the defendant was not taken to the bank until June 2, 1980. The General Manager of KAUSU (PW.2) explained the delay by stating that the company's clerk who was responsible for sending cheques to the bank was on safari during the material period. I was impressed by the demeamour of this witness, and I have no hesitation in describing him as a truthful witness. I accept his testimony, including his explanation regarding the delay in presenting the cheque to the bank.

The cheque for shs. 100,000/- (which the defendant handed over to KAUSU) was, as already pointed out, returned to the company with RETURN TO DRAWER endorsement on it. What message does a bank intend to convey when it makes that endorsement on a cheque? The answer is that it intends to say this to the payee of the cheque: "We are not paying; go back to the drawer and ask why", or else, "Go back to the drawer and ask him to pay". The endorsement is universally understood to mean that there were not funds in the drawer's account to meet the cheque: see *Flach* v. *London and South Western Bank, Ltd.* (1915) 31 T.L.R. 334; *Plunket and Another* v. *Barclays Bank, Ltd.* [1936] 1 All E.R. 653; and *Jayson* v. *Midland Bank, Ltd.* [1968] 1 Lloyds Report 409. Applying that meaning to the facts of the case now before me, I think it is beyond rational controversy that the cheque for shs. 100,000/- was dishonoured by the bank. Thus, until June 2, 1980, the defendant had not paid the first instalment due on May 3. KAUSU was, therefore, an unpaid seller. What are the rights of an unpaid seller? The unpaid seller of goods has the right, *inter alia*, to re-sell the goods: see s. 41(1) (c) of the Sale of Goods Ordinance. This right is, however, a limited one. If the property in the goods has passed, and the goods have been delivered, that is to say, the seller has (voluntarily) transferred possession thereof to the buyer, the seller has no right of re-sale. Under those circumstances, his sole remedy against non-payment of the price is by personal action. In the case at the Bar there is no room for debate over the fact that the bus was delivered to the defendant. But did the property in it (the bus) pass to him? I would answer that question in the affirmative. Having regard to the wording of the contract, it seems to me that it can scarcely be contended that it was not the intention of the parties thereto that the property should pass to the defendant before the last instalment of the price was paid. The fact that the change in ownership of the bus had not been registered under the provisions of the Road Traffic Act, 1973, does not, in my opinion, alter the legal position on the question of passing of property. Applying, as I think I am bound to, the rules set out in s. 20 of the Sale of Goods Ordinance, which give guidance as to how the task of determining the question whether or not property in goods has passed to the buyer is to be approached, and bearing in mind the evidence before me, I think I am constrained to conclude, as I do, that the property in the bus was intended to, and did, pass to the defendant when the contract was made. In my judgment this conclusion compels one to hold that, since the

possession of the bus was transferred to the defendant, KAUSU had relinquished the right to re-sell the bus, and it was relegated to its right to sue for payment of the purchase-money and for damages in respect of any loss caused to it by the defendant's default. Mr. Dhebar, for the plaintiff company, says, however, that this is not the end of the matter. He has strenuously contended that the provisions of s. 27(1) of the Sale of Goods Ordinance stand in the way of the defendant's counter-claim. To that submission I now devote my attention. By the sub-section it is enacted that:

> Where a person having sold goods continues or is in possession of the goods, or of the documents of title to the goods, the delivery or transfer by that person, or by a mercantile agent acting for him, of the goods or documents of title, under any sale, pledge or other disposition thereof, to any person receiving the same in good faith and without notice of the previous sale, shall have the same effect as if the person making the delivery or transfer were expressly authorised by the owner of the goods to make the same.

This provision is one of the recognised exceptions to the well-known *nemo dat quod non habet* rule. In an attempt to counter Mr. Dhebar's argument, Mr. Mwakilasa, for the defendant, submitted that the plaintiff company bought the bus in bad faith because, as he put it, it was aware that the bus had been purchased by the defendant. With respect, I feel unable to give countenance to this contention. Assuming, for the moment, that the sub-section relied upon by the plaintiff company is relevant to the case at the Bar, it must be pointed out that there is not even a scintilla of evidence to warrant this court finding validity in Mr. Mwakilasa's argument. It is, I think, a correct proposition to say that the onus to prove the absence of *bona fide* rests upon the party who challenges the same. In the present case the plaintiff company bore no burden to satisfy this court that it purchased the bus in good faith, or to put it differently, that it did not purchase the bus in bad faith. The burden was on the defendant to establish to the satisfaction of the court that the plaintiff company purchased the bus in bad faith. The defendant did not give or adduce any evidence on which this court can base such a finding. Be that as it may, it is my settled view that s. 27(1) of the Sale of Goods Ordinance is entirely irrelevant to this case. I will give my reasons why I hold that view. It is beyond controversy that at the time it sold the bus to the plaintiff company, KAUSU was no longer in possession of it, the motor vehicle having already been delivered to the defendant. But was a document of title to the goods not in KAUSU's possession at the time? Mr. Dhebar would, I think, answer that question in the affirmative, but I entertain no doubt that that answer would not be a right one. S. 27 (of the Sale of Goods Ordinance) provides no definition of the term "document of title to goods". One has, therefore, to fall back on the definition of the term given in s. 2 of the Ordinance. That definition reads as follows:

> "document of title to goods" includes any bill of lading, dock warrant, warehouse-keeper's certificate, and warrant or order for the delivery of goods, and any other document *used in the ordinary course of business as proof of the possession or control of goods, or authorising or purporting to*

authorise, either by endorsement or by delivery, the possessor of the document to transfer or receive goods thereby represented. (Emphasis supplied)

It seems to me that, applying this definition, it cannot correctly be asserted that a motor vehicle registration card is a document of title. It is true that the transfer of ownership of a motor-vehicle has to be registered with the licensing authorities, but that legal requirement does not make a motor vehicle registration card a document of title for the purposes of the provisions of the Sale of Goods Ordinance. It is not irrelevant to point out, I venture to think, that the registration of a transfer of ownership of a motor vehicle has nothing to do with the passing of the property in the vehicle to the buyer. Be that as it may, a motor vehicle registration card is neither a document used in the ordinary course of business as proof of the possession or control of the motor vehicle concerned, nor a document which authorises or purports to authorise, either by endorsement or by delivery, the possessor of it to transfer the motor vehicle concerned. In short, a motor vehicle registration card is not a document of title for the purposes of the provisions of the Sale of Goods Ordinance. The fact that KAUSU was in possession of the registration card relating to the bus at the time it concluded a contract of sale with the plaintiff company does not, therefore, make the provisions of s. 27(1) of the Sale of Goods Ordinance applicable to this case. I am, therefore, bound to reject Mr. Dhebar's contention as being untenable in law. I have also given anxious consideration to the possibility of the doctrine of estoppel as embodied in s. 23(1) of the Sale of Goods Ordinance being invoked against the defendant, but I have arrived at the opinion that there is no material before me which can be used as a peg on which to hang the finding that by his words the defendant represented to the plaintiff company that KAUSU was the true owner of the bus (or had his authority to sell it (the bus)) or that by his conduct the defendant allowed KAUSU to appear as the owner of the bus (or as having his authority to sell it). Apart from other considerations, there is no evidence before this court which challenges the defendant's denial that he was aware, before September 20, 1980, of KAUSU's decision to re-sell the bus. It follows, from the opinions I have just expressed, that in my judgment KAUSU passed no good title (to the bus) to the plaintiff company. The result is that there must be judgment in this case for the defendant, but subject to what I shall presently indicate, and the plaintiff company's claim must be dismissed. The defendant has claimed, *inter alia*, damages for loss of profit which amount to more than one million shillings. In his testimony he asserted that he used to earn about shs. 2,000/- daily when he was running the bus. The claim for special damages cannot be allowed. Unlike general damages, special damages must be strictly proved. I cannot allow the claim for special damages on the basis of the defendant's *bare* assertion, when he could, if his claim was well-founded, easily corroborate his assertion with some documentary evidence. For all one knows, the defendant might have been incurring losses when he was running the bus. The claim for special damages must be, and is dismissed.

For the reasons I have endeavoured to give, I declare and adjudge that the defendant is the lawful owner of the bus Reg. No. TZ. 38992. I shall, therefore,

make an order directing the police to release the said bus to him. He will have his costs of these proceedings. The plaintiff company's claim is dismissed with the usual consequences.

Defendant adjudged lawful owner of the bus.

JULIUS BILLIE *v.* REPUBLIC

[HIGH COURT OF TANZANIA AT MBEYA (Samatta, J.)]

CRIMINAL APPEAL 407 OF 1979

Evidence—Effect of non-production of a thing which is the subject matter of court proceedings.

Appellants were convicted of cattle theft contrary to ss. 265 and 268 of the Penal Code, and each was sentenced to a term of five years' imprisonment. It was established to the satisfaction of the court that the appellants were arrested while having possession of a head of cattle which had earlier been stolen from the complainant's cowshed. One of the issue on appeal was whether the head of cattle in question was supposed to be produced before the trial court as an exhibit.

Held: (i) as a general rule the best evidence rule has no application to the admissibility of evidence of things and that the non-production of a thing which is the subject-matter of court proceedings goes only to the weight and not to the admissibility of the testimony concerning or relating to it.

(ii) that the trial magistrate did not see the head of cattle is of no legal consequence.

Appeal dismissed.

Cases referred to:

(1) *Lucas* v. *Williams & Sons* [1892] 2 Q.B. 113.

(2) *Hocking* v. *Ahlquist Brothers, Ltd.* [1943] 2 All E.R. 722.

(3) *Edward s/o Petro* v. *Republic* [1967] H.C.D. n. 296.

A. J. Saffari, for the respondent.

April 27, 1982. **SAMATTA, J.:** These two appeals, which I have consolidated, are from a decision of the district court of Iringa whereby the appellants were convicted of cattle theft, contrary to ss. 265 and 268 of the Penal Code, and each was sentenced to a term of five years' imprisonment.

Were the appellants, or either of them, found in possession of the head of cattle in question? This was the principal question at the trial, there having been not dispute about the theft of the beast and the fact that it (the beast) was the property of the complainant, one Ngosingwa Mshama. A nephew of the first appellant (Julius Billie) gave evidence for the prosecution. Briefly, his testimony was to the effect that, on August 1, 1979, as he was going to Fuvu auction mart, he met the appellants. They were driving a head of cattle, which at the end of the trial they were convicted of stealing, towards the mart. Not long after they had arrived there the appellants were arrested. The second appellant was also well-known to the witness. The story about the appellants' arrests was corroborated by the member of the People's Militia who effected the arrests. He told the lower court that the complainant pointed at a head of cattle, which the appellants were then in possession of, and complained that it had been stolen from his cowshed on July 24, 1979. On the strength of this complaint, he arrested the appellants. The appellants gave unsworn statements and called no witnesses. The first appellant's statement was a very short one, consisting, as it did , of two short sentences. It was couched in the following words: On 31/7/1979 I left home for Kibogolo to see my uncle. I passed by the Fuvu auction on 1/8/1979 where I was arrested." The second appellant also denied, at least by necessary implication, that he was found in possession of the head of cattle in question. He admitted to have visited the Fuvu auction mart on August 1, 1979, but claimed that he did so for the sole purpose of purchasing a sickle.

In their petitions of appeal the appellants have attacked the lower court's decision from several fronts, but I think none of those criticisms can be used by this court for faulting the decision. One of the points raised is that the head of cattle in question was not produced before the trial court as an exhibit. This assertion is perfectly correct, but I am not disposed to think that the omission affects the validity of the impugned decision. The law is, I think, well established on this matter. As a general rule the best evidence rule has no application to the admissibility of evidence of things. The non-production of a thing which is the subject-matter of court proceedings goes only to the weight and not to the admissibility of the testimony concerning, or relating to, it: see *Lucas* v. *Williams & Sons*, [1892] 2 Q.B. 113; *Hocking* v. *Ahlquist Brothers, Ltd.* [1943] 2 All E.R. 722; and *Edward s/o Petro* v. *Republic* [1967] H.C.D. n. 296, a case which Mr. Saffari, counsel for the Republic, drew my attention to. This is, of course, a general rule, but none of the recognised exceptions to it applies to the case now under consideration. It is not difficult to seek the reason why the law does not, as a general rule, insist on the production of things at a trial. Because a witness claims that he travelled to Pemba by ship it would be absurd to insist on the production of the vessel or the holding of a view of it. It would be even more absurd if in a trial for murder the law insisted on the production of the deceased's body. Both common sense and logic rebel against the idea that there should be such a rule in our law. The law

may not always be a logical science, but it has not failed to recognise that accuracy about things is usually less important than the exact text of a document. It lays down that it is not necessary to account for the non-production of a thing before other evidence of it may be given. Since, in the case now at the Bar, the ownership or identification of the head of cattle was not in issue, I cannot see how the non-production of the beast could possibly be held to be fatal to the lower court's decision. In my judgement it is of no legal consequence that the learned trial magistrate did not see the head of cattle.

The appellants suggested no reason why the first appellant's nephew should have given false testimony against them. There is nothing on the record of the case to warrant this court suspecting, leave alone concluding, that the witness had an axe to grind in this case. Even if there were some misunderstandings between the witness and the appellants or either of them, there would still be the evidence of the member of the guardian of law who effected the arrests for the appellants to grapple with. I respectfully agree with Mr. Saffari, that neither appeal against conviction has any vestige of merit, the doctrine of recent possession having been properly applied. I have no doubt in my mind that the guilt of the appellants was demonstrated to the satisfaction of the law.

The appeals against sentence are also without merit. The sentence each appellant received is the minimum prescribed by law: see s. 5(c) of the Minimum Sentence Act, 1972. No court has even the semblance of power to reduce those sentences.

Appeals dismissed.

PETER ADAM MBOWETO *v.* ABADALLAH KULALA AND MOHAMED MWEKE

[COURT OF APPEAL OF TANZANIA AT DAR ES SALAAM
(Mustafa, Mwakasendo and Makame, JJ.A.)]

CIVIL APPEAL 12 OF 1981

Contract—Sale of shamba by auction—Court Order—Buyer purchased bona fide—Auction properly conducted—Court order later found to have no legal basis—Whether buyer's title defensible because its legal basis is later removed.

Civil Practice and Procedure—Decree—Sale ordered in execution of decree—Sale takes place—Later decree is reversed—Effect on title of bona fide purchaser for value.

Court ordered sale of a shamba in execution of a decree. After sale of the shamba by auction to the appellant, the decree was reversed, so the legal basis for the court's order to auction the shamba was lost. The Court of Appeal for Tanzania considered whether after removal of the legal basis for the auction sale the title of the *bona fide* purchaser could be disturbed.

Held: (i) the appellant had clearly acquired good title to the shamba and that no good reason exists for disturbing his title;

(ii) if a reversal of a decree would invalidate a sale, there would be less inducement to any intending purchaser to buy at an auction sale thus depreciating sale prices and there will also be no degree of certainty as a purchaser cannot be expected to go behind a judgment to inquiry into irregularities in the suit.

Appellant's title confirmed.

Cases referred to:

(1) *Sheikh Ismail* v. *Rajab Rawther* [1907] 30 Mad. 295.
(2) *Pilcher* v. *Rawlins* [1872] 25 L.T. 921.
(3) *Wilkes* v. *Spooner* [1911] 2 K.B. 473.

F. H. Uzanda for the appellant.

February 17, 1982. **MUSTAFA, J.A.**, read the following considered judgment of the Court: This matter started with Mohamed Abdullah Mweke (now 2nd respondent) filing a case against Abdallah Kulala (now 1st respondent) in the Chumo Primary Court at Kilwa for recovery of an alleged loan of shs. 450/- on 24.11.1966. Judgment was given in favour of Mohamed Abdullah Mweke on 27.3.1967. In execution of the decree a warrant of attachment was issued in respect of a coconut shamba belonging to Abdullah Kulala on 11.11.1967. A proclamation of sale was issued and the sale was to take place on 2nd January, 1968. But before the sale could take place Abdullah Kulala appealed against the Primary Court Judgment to the District Court of Kilwa on 12th August, 1968. However Abdullah Kulala's appeal was dismissed with costs. On a new warrant of attachment and proclamation of sale the coconut shamba was sold by public auction on 10th August, 1970 for shs, 1,900/- to Peter Adam Mboweto, the present appellant. A certificate was duly issued and the sale was confirmed. Abdullah Kulala appealed to the High Court set aside the order of the District Court allowed on 24.8.72 and the High Court set aside the order of the District Court and remitted the matter back to the District Court for re-hearing the appeal.

The High Court judge in his judgment deplored the sale, but held that the sale could not be set aside in view of the provisions of Rule 85 of the Primary Court Civil Procedure Rules.

The District Court, in pursuance of the High Court order, heard the appeal *de novo*, and allowed the appeal of Abdullah Kulala. The District Magistrate in his

judgment also deplored the sale of the coconut shamba. He however advised Abdullah Kulala to file a suit to recover his shamba from the new owner.

Abdullah Kulala apparently was not satisfied with that part of the District Court judgment which advised him to file a fresh suit to recover his shamba. Instead of seeking assistance from the courts he approached the President's Office which referred the matter to the Registrar of the High Court on 10th November, 1976.

The learned Chief Justice in the High Court dealt with the matter by way of revision, as no appeal could have been filed because of the great delay. He acted in terms of s. 26(1) of the Magistrates' Courts Act Cap. 537. He held that the question posed was whether "the District Court on appeal after setting aside the judgment and decree of the trial Primary Court on 21st November, 1972 was not bound as a consequence to set aside the sale of the coconut shamba . . ." He held that "that sale could not be allowed to continue to operate after its legal basis had been removed by the District Court. This means the District Court was bound to set aside the sale as a necessary consequence of its own judgment".

He directed the District Court to act accordingly. From that order which was dated 18.7.1979 the appellant Peter Adam Mboweto is appealing to this court.

Mr. Uzanda appeared for the appellant. His main submission was that the Chief Justice erred in directing the District Court to set aside a sale to an auction purchaser who *bona fide* purchased without notice for value. There is no doubt that the appellant purchased the property bona fide at a properly conducted public auction ordered by the court, without notice of any defect, and for value. Mr. Uzanda submitted that the appellant's title in the circumstances was indefeasible. He referred to Mulla 12th Edition page 268 where the learned author states:—

> Effect of reversal of decree upon sale where decree reversed after confirmation of sale. There is a great distinction between decree-holders who come in and purchase under their own decree, which is afterwards reversed or modified, and *bona fide* purchasers who come in and buy at a sale in execution of the decree to which they are not parties, and at a time when that decree is a valid and subsisting decree and when the order for sale is a valid order. A *bona fide* purchaser, who is a stranger to the decree, does not lose his title to the property by the subsequent reversal or modification of the decree. But, where the decree-holder himself is the purchaser, the sale may be set aside if the decree is subsequently reversed or modified. Where the purchaser is a stranger, the judgment-debtor whose property is sold is entitled only to the sale-proceeds of the property if the decree is subsequently reversed. But, where the purchaser is the decree-holder, he is bound to restore the property to the judgement-debtor (d). "A sale in execution of a decree at which a third party becomes the purchaser is upheld, notwithstanding the subsequent reversal of the decree, because otherwise there will be less inducement to intending purchasers to buy at an execution-sale, and consequently less chance of property fetching proper value at such sales (e)". . . But where property sold in execution of a decree is bought by the decree-holder, and it is subsequently re-sold by him to a *bona fide* purchaser for value, such purchaser acquires a good title, though the decree may be sub-

sequently reversed and *Sheik Ismail* v. *Rajab Rawther* (1907) 30 Mad. 295; was cited in support.

Again in A.I.R. Commentaries on the Civil Procedure Code by Chitaley Vol. 2 (6th Edition) at page 1716 the learned author states:—

> In the case of *bona fide* purchasers, the rule is that the sale will be upheld notwithstanding the reversal of the decree, because otherwise there will be less inducement to intending purchaser to buy at an execution sale and consequently less chance of the property fetching a proper value at such sales. Another reason is that a purchaser cannot be expected to go behind the judgment to inquiry into the irregularities in the suit.

Such a sale can be set aside on grounds such as want of jurisdiction to sell the property, fraud or want of saleable interests in the judgment-debtor, but none of these existed in this case.

In England it also appears that an innocent purchaser without notice obtains an indefeasible title, see *Pilcher* v. *Rawlins* (1872) 25 L.T. 921 where a head note reads:—

> A purchaser for value, who acquired a legal estate at a time when he had no actual notice of a prior equity, will not be held to have had constructive notice of that equity because it turns out afterwards that his title to the legal estate must be made out by means of a deed which on the face of it gives notice of the prior equity, that deed having been fraudulently suppressed at the time when he paid his money and took his conveyance.

And in *Wilkes* v. *Spooner* [1911] 2 K.B. 473 a head note reads:—

> The purchaser of land from one who has purchased it for value, without notice, either actual or constructive, of a restrictive covenant, is not bound by the covenant, although he himself had notice of it.

This seems to be in line with the Indian decision in *Sheikh Ismail* v. *Rajab Rawther* quoted in Mulla supra.

In our view the learned Chief Justice did not consider the fact that the appellant was a *bona fide* purchaser, a third party without notice. The appellant had done nothing remotely wrong. He was an innocent party. It is true that Abdullah Kulala on appeal was successful against his opponent Mohamed Mweke. It is also true that in the circumstances the sale of his coconut shamba by court auction was an unfortunate act, and caused loss to Abdullah Kulala. The appellant had already acquired a good title to the shamba, and no good reason exists for disturbing his title in order to assuage the distress to Abdullah Kulala. As has been said in the authorities quoted, if a reversal of a decree would invalidate a sale, there would be less inducement to any intending purchaser to buy at an auction sale thus depreciating sale prices and there will also be no degree of certainty as a purchaser cannot be expected to go behind a judgment to inquiry into irregularities in the suit. These propositions appear to us to be both good sense and good law.

We think that the appellant had acquired a good title to the coconut shamba. We allow the appeal and set aside the order in revision made by the Chief Justice. We hereby confirm the appellant's title to the coconut shamba. As this appeal arose in revisional proceedings we make no order as to costs.

Appellant's title confirmed.

REPUBLIC v. ISHILA KITUNDU

[HIGH COURT OF TANZANIA AT TABORA (Chipeta, J.)]

CRIMINAL REVISION 50 OF 1980

Criminal Practice and Procedure—Case partly heard by magistrate—Magistrate finds he has no jurisdiction—No preliminary inquiry made—Accused committed to high court for trial—Procedure irregular.

Criminal Practice and Procedure—Prosecution requires D.P.P.'s sanction—Sanction not obtained—Case partly heard—A nullity.

The Resident Magistrate after partly hearing a case found that he had no jurisdiction to hear it. He, without making preliminary inquiry, committed the accused to the High Court for trial. The offence committed required D.P.P's sanction but such sanction had not been obtained. The High Court Judge considered the irregularities involved.

Held: (i) the procedure adopted by the subordinate court in "committing" the accused for trial to the High Court was irregular in that it was made before a preliminary inquiry was conducted (ss. 216—246 of the Criminal Procedure Code, Cap. 20);

(ii) the prosecution of the accused in the subordinate court before obtaining sanction of the D.P.P. was irregular. The trial was a nullity *ab initio.*

Proceedings declared null and void.

No cases referred to:

May 12, 1982. **CHIPETA, J.:** In Nzega District Court, one Ishila Kitundu, was purportedly charged with the offence of incest by males c/s 158 of the Penal Code, and the subordinate court purported to try the case.

After recording all the evidence, the learned magistrate proceeded to prepare his "judgment". It was then that he discovered that he had no jurisdiction to try a case of incest by males c/s 158 of the Penal Code. Having discovered the error, the learned magistrate made the following observations and order:

It is at this juncture that I have discovered that this court has no jurisdiction to hear this case. For that matter therefore the whole trial was a nullity. I thus commit the accused for trial before the High Court.

The observation by the learned magistrate that he had no jurisdiction to try the case was quite correct, for the First Schedule to the Criminal Procedure Code expressly precludes a subordinate court from trying such cases. The jurisdiction to try such cases is exclusively conferred on the High Court.

The question that now arises is whether the learned magistrate's order to "thus commit the accused for trial before the High Court" can be said to have been properly made in the circumstances in which that "committal" was made.

Technically, the procedure adopted by the subordinate court in "committing" the accused for trial to the Hich Court, though perhaps expedient, was undoubtedly irregular. All things being equal, such an order could only have been properly made at the end of a preliminary inquiry.

Now, the only provisions which govern conducting of preliminary inquiries are those in ss. 216—246 (both inclusive) of the Criminal Procedure Code. Those provisions differ substantially from the provisions relating to trials in subordinate courts. Since the learned magistrate adopted the procedure in trials before subordinate courts in this matter, he cannot be said to have conducted a preliminary inquiry into the matter, his final purported order of committal notwithstanding. In other words, the entire proceedings before the subordinate court were null and void.

If that had been the only irregularity in the matter, this court would have rectified the matter by nullifying the entire proceedings in the subordinate court and ordering that the subordinate court should proceed against the accused by way of a preliminary inquiry under the relevant provisions.

Unhappily, that was not the only irregularity. S. 162 of the Penal Code provides that no prosecution for an offence under ss. 158 or 160 of the Penal Code must be commenced without the sanction of the Director of Public Prosecutions. In the instant case, there was no such sanction of the Director of Public Prosecutions. *Ipso facto,* there was nothing before the subordinate court to warrant the accused's prosecution. The accused's prosecution, therefore, was null and void *ab initio.*

Even more unfortunate is the fact that by the time these irregularities came to light, a Sessions Case against the accused had already been filed in this Court on the basis of the proceedings in the district court.

These proceedings were then opened in this Court in order to rectify the situation. Meanwhile the D.P.P., on behalf of the Republic, entered a *nolle prosequi* and the accused was discharged.

To sum up, the prosecution against the accused was unlawful and so the entire proceedings before the subordinate court are hereby declared null and void. It is, however, open to the Republic to proceed against the "accused" in the proper manner, should they so wish. But it is hoped that before taking a decision in this regard, they will pay due regard to the fact that the purported accused was in remand custody for about two years; that it is now about four years since his

freedom was restored; and that it is now about six years since the alleged offence was committed.

Proceedings declared null and void.

JACKSON BAMBEMBUYE *v.* REPUBLIC

[HIGH COURT OF TANZANIA AT TABORA (Chipeta, J.)]

CRIMINAL REVISION 40 OF 1979

Sentencing—Where legislation provides for the minimum and maximum sentence—Whether court may impose a sentence less than the minimum prescribed.

Sentencing—Interpretation—"Shall be liable to"—Qualifying words added—Effect on the court's discretion.

The respondent pleaded guilty to a charge of unlawful possession of Government trophy. He was convicted and sentenced to twelve months' imprisonment but the sentence was wholly suspended. The case was admitted for revision to consider whether the sentence imposed was appropriate in the light of s. 67(2)(b) of the Wildlife Conservation Act, 1974 and First Schedule to the Act which attracts an imprisonment term of "not less than three years but not exceeding seven years", and in addition thereto the court may impose a fine . . .

It was argued in favour of the respondent that s. 67(2) carries the phrase "shall be liable" and that that phrase gives discretion to the court to impose a sentence which it deems appropriate in the circumstances. For the Republic it was contended that where the phrase "shall be liable" appears but is qualified then it should be interpreted in the light of the qualifying words.

Held: (i) where in the statutory provisions the phrase "shall be liable to" is qualified by some other words, then the phrase must be construed in the light of the qualifying words;

(ii) in cases falling under s. 67(2)(b) of the Wildlife Conservation Act, 1974, a court cannot impose a custodial sentence of *less* than three years which is the minimum;

(iii) the sentence of the trial court was illegal.

Sentence substituted.

Cases referred to:

(1) *Mattaka and Others* v. *Republic* [1971] E.A. 495.

S. Chaila, for Republic.
P. Ntabaye, for original accused.

July 15, 1982. **CHIPETA, J.:** In Kigoma District Court, the accused Jackson Bambembuye, was convicted on his own plea of "guilty" of the offence of unlawful possession of Government trophy c/s 67(1) and (2) (a) of the Wildlife Conservation Act, 1974, and was sentenced to twelve months' imprisonment, which was suspended for a period of twelve months.

The matter was admitted to revision upon it appearing to this Court that the sentence passed by the learned Senior District Magistrate was illegal.

During the hearing of these proceedings, I permitted both the learned state attorney for the Republic and Mr. Ntabaye, learned counsel for the accused, to be heard in the matter.

There can be no doubt that the conviction was proper in that the accused's plea of "guilty" was clearly unequivocal. The only question for consideration in these proceedings, therefore, is whether or not the sentence passed by the trial court was lawful.

Before I proceed to deal with the submissions of learned counsel, I would like to point out that the charge incorrectly quoted paragraph (a) of subsection (2) of s. 67 of the Wildlife Conservation Act, hereinafter referred to as the Act. The correct penalty provisions for the offence in the instant case are those of paragraph (b) of the subsection, for the value of the trophies in question here was certified to be shs. 10,250/-, that is, far in excess of shs. 5,000/-, and the trophies were the type specified in Part I of the First Schedule to the Act. Both learned counsel appreciated this and so based their submissions on the interpretation of paragraph (b) of subsection (2) of s. 67 of the Act.

Mr. Ntabaye submitted that those provisions are not mandatory. In other words, in his submission, those provisions do not completely oust the discretion of courts to pass such sentences as it considers adequate in a given case. Mr. Ntabaye went on to submit, if I followed him correctly, that since we have only one Minimum Sentences Act, and as that Act does not include offences under the Wildlife Conservation Act, the legislature must have intended that there should be no minimum sentences for offences under the Act, for if it had so intended learned counsel argued, it would have included such offences in the Minimum Sentences Act, just as it did with offences under the Prevention of Corruption Act and the Stock Theft Ordinance.

Mr. Ntabaye had an alternative argument. He submitted, if I followed him, that the use of the phrase "shall be liable on conviction" does suggest that it was never intended that there should be minimum sentences for such offences. He tried to draw an analogy between the use of that phrase in the Act and in s. 39 of the Penal Code, and also relied on the case of *Mattaka and Others* v. *Republic* [1971] E.A. 495 in which those convicted of treason were imprisoned and not sentenced to death although the section provides that a person guilty of treason "shall be liable . . . to suffer death".

Mr. Chaila, for the Republic, submitted that the provisions of paragraph (b) of the subsection provide for minimum sentences and are mandatory, and that Mr. Ntabaye's arguments were too far-fetched.

I will first of all address my mind to Mr. Ntabaye's first argument. As a general rule, I think, it is correct to say that all statutes made in *pari materia*, should be construed as one system and as explanatory of each other, so that when there is an ambiguity in one it may be explained by reference to another statute in the same system. But where the natural meaning of a statute is clear and unambiguous, or where the two statues are not in *pari materia*, it is dangerous to rely on the interpretation of one for that of the other.

Now, to return to Mr. Ntabaye's argument, it is my view that the Minimum Sentences Act is not, and could not have been intended to be, all-embracing. In other words, the Minimum Sentences Act must be deemed to affect only such statutes as are expressly stipulated therein, and there is no provision in that Act which precludes Parliament from providing for minimum sentences for other offences created by later and different statutes. The Minimum Sentences Act, therefore, offers no guide for the construction of the penalty provisions under consideration in the Wildlife Conservation Act—which is a different and later statute.

I now turn to the second of Mr. Ntabaye's arguments. Most of our statutes' penalty provisions contained the phrase "shall be liable to", followed by the nature, type or duration of the punishment for the particular offence. For instance the penalty provisions for the offence of rape provide, in s. 131 of the Penal Code, as follows:—

> Any person who commits the offence of rape *is liable to be punished with imprisonment for life* with or without corporal punishment. (Emphasis added).

The phrase "is/shall be liable to be punished," without more, means, in my view, that the person convicted of the particular offence *may be* punished with the stated punishment, say, life imprisonment in the case of rape. But it does not necessarily mean that he must be punished with life imprisonment.

This analogy applies with equal force to the penalty provisions for the offence of treason c/s 39 of the Penal Code to which the Court was referred. The penalty provisions for that offence are contained in subsection (4) of s. 39 of the Penal Code and read, in part as follows:—

. . . shall be liable on conviction to suffer death.

Those words do not mean that a death sentence is mandatory for the offence of treason. They only mean that, in an appropriate case, a court may pass a death sentence for treason, but it is not bound to do so. *Ipso facto*, *Mattaka's* case (supra) is no authority for the proposition that the language of a statute may not oust the discretion of courts in sentencing.

But where, as in the statutory provisions in the instant case, the phrase "shall be liable to" is qualified by some other words, then that phrase must be construed in the light of the qualifying words. In the present case, the qualifying words are

clear and unambiguous. For ease of reference, let me quote the relevant provisions:—

> 67 (2) Any person who contravenes any of the provisions of this section shall be guilty of an offence and *shall be liable* on conviction
> (b)
>
> (b) Where the trophy which is the subject matter of the charge or any part of such trophy is part of an animal specified in Part I of the First Schedule to this Act and the value of the trophy exceeds five thousand shillings, to imprisonment for a term of *not less than three years but not exceeding seven years and in addition thereto* the court *may* impose a fine of an amount not exceeding one hundred thousand shillings or ten times the value of the trophy whichever is the larger amount. (Emphasis added)

The phrase "shall be liable . . . to" in these provisions have been clearly qualified by the words:—

> Imprisonment for a term of not less than three years but not exceeding seven years. Clearly, therefore, the phrase "shall be liable to" ought not to be read in isolation. It should be read together with the qualifying words of that paragraph.
>
> To my mind, the language of the statute is unambiguous: in cases falling under paragraph (b) of the subsection, a court's discretion in sentencing is expressly ousted to this extent, that it may not pass a sentence of less than three years' imprisonment, nor one that is in excess of seven years' imprisonment. The sentence must be within that range. So, the only discretion the court has in such a case is how much more severe a sentence than the minimum sentence of three years it should impose, and whether or not, *in addition* to such custodian sentence, it should impose a fine.
>
> In short, I take the view that in cases falling under s. 67(2)(b) of the Wildlife Conservation Act, 1974, a court cannot impose a custodial sentence of *less* than three years. In other words, three years' imprisonment for such offences, and in circumstances spelt out in paragraph (b) of the subsection, is the statutory minimum.
>
> For the foregoing reasons, I hold the view that the sentence of the trial court was illegal. The same is accordingly hereby set aside and substituted therefore is a sentence of three (3) years' imprisonment.
>
> It is so ordered.

Sentence substituted.

MUSA NGUSA *v.* REPUBLIC

[HIGH COURT OF TANZANIA AT TABORA (Chipeta, J.)]

CRIMINAL APPEAL 86 OF 1981

Criminal Law—Deception practiced on complainant—Complainant does not willingly part with the money—Whether obtaining money by false pretences or simple theft.

By using deceptive tricks the appellant took some money from the complainant. The evidence showed that the appellant deceptively exchanged an envelope which contained money belonging to the complainant with an envelope which contained an empty sportsman cigarette packet and a thicksheet of paper. The appellant was charged with obtaining money by false pretences, but the trial court convicted him of simple theft. On appeal the learned high court Judge considered, *inter alia*, whether the offence committed was one of obtaining money false pretences or one of simple theft.

Held: since the money passed from the complainant's possession to that of the appellant without the consent or knowledge of the complainant, the offence committed was one of simple theft.

Appeal dismissed.

No cases referred to:.

July 6, 1982. CHIPETA, J.: The prosecution's story was undoubtedly interesting. The appellant, John Ngusa, was charged with the offence of obtaining money by false pretences c/s 302 of the Penal Code, but was convicted of the offence of stealing c/s 265 of the Penal Code and sentenced to five years imprisonment. He now appeals against both the conviction and sentence.

The prosecution's evidence was as follows: on 16th August, 1980, at about 8.00 a.m., the complainant, one Edward Makoye (PW.1) who is a simple peasant, met the appellant along Biafra Street in Maswa township. With the appellant was another person. The appellant and his colleague told the complainant that they were clerks at U.W.T. shop, Maswa, and that they had four cartons of soap and a plough for sale. The complainant, who had with him cash sh. 1,600/-, offered to buy the plough. The appellant then said that he was selling the plough for shs. 700/-. At that point the complainant offered the appellant shs. 1,300/- for both the soap and the plough.

The appellant, however, did not receive the money at that point. Let the complainant tell the rest of the story:

Accused said he needed fifty cents with which to purchase an envelope. I gave accused fifty cents and he bought an envelope. Accused asked me to put the money in the envelope. I put thirteen 100/- currency notes in the envelope. Accused said I could not put the notes properly and he took the envelope from me. I saw him press it with his hands and hand it back to me. I put the envelope in my inside coat pocket. We agreed to meet later outside a primary school nearby, to collect the plough and boxes of soap.

An hour later I found my envelope contained no money but pieces of a cigarette packet. I reported to police station. At about 4.00 p.m. I saw the accused at the pombe shop. I ran to the police station and two policemen accompanied me to the pombe shop. I saw accused on the road and I pointed him out to the policemen. They caught accused and brought him to the police station . . .

I simply put the envelope into my pocket when accused handed it to me. I believed that my money was in it.

When the appellants was searched, he was found in possession of two envelopes in one of his trousers' pockets. In one of the envelopes was found an empty sportsman cigarette packet and a thicksheet of paper. The appellant also had shs. 9/-.

In his defence, the appellant simply stated:

I came to town at 3.00 p.m. and I bought an envelope. I had a letter to write. I was arrested for no reason. I am innocent.

The learned Senior District Magistrate believed PW.1 to be a truthful witness and rejected the appellant's bare protestation of his innocence. From the story of the complainant as to what transpired between him and the appellant, the learned trial magistrate came to the conclusion that the appellant exchanged the envelope which contained the money with the envelope which contained an empty cigarette packet.

On the question as to what offence was committed, and on the basis of the facts as found by him, the learned magistrate took the view that since the money, passed from the complainant's possession to that of the appellant without the consent or knowledge of the complainant, the offence committed could not be that of obtaining money by false pretences but that of simple theft. He accordingly convicted him of theft c/s 265 of the Penal Code.

In his memorandum of appeal, the appellant challenges the learned magistrate's findings of fact and submits that the learned magistrate did not adequately scrutinize the complainant's evidence in view of what the appellant calls "the unrealistic and abnormal" story of the complainant.

During the hearing of this appeal, Mr. Chaila, learned state attorney, declined to support the conviction. He appeared to share the appellant's view that the learned magistrate did not sufficiently evaluate the complainant's evidence—which was the only evidence against the appellant.

The charge levelled at the learned trial magistrate has some merit, but it is not entirely justified, in my view. But assuming that the learned magistrate did not sufficiently scrutinize the complainant's evidence, as a first appellate court, I am entitled to review the evidence and come to my own findings and conclusions and decide, in the end, whether, had the learned magistrate done that which he is said to have omitted to do, he would ro would not have arrived at the conclusions he did.

To start with, was the complainant a credible witness? The complainant, who is a simple peasant, gave a clear description of his encounter with a man who made off with the complainant's money. In my view, his story could only have come from a person who actually experienced what he described. It was not suggested, and there is nothing to suggest, that the complainant, who was a complete stranger to the appellant, had any reason to frame the appellant. This, I think, is reinforced by the fact that he did not wish to implicate appellant's co-accused although the appellant is said to have had a companion. If he was out to victimise anybody he saw, there was nothing to stop him from implicating the appellant's co-accused.

In my considered view, therefore, I believe that the complainant did encounter a man who defrauded him by a very smart trick.

The second question is whether he correctly identified the person as being the appellant. There is ample authority for the proposition that where the evidence against an accused person is that of identification, such evidence must be watertight, and where it is that of a single witness, it must be tested with the greatest care before it can be acted upon.

In the instant case, the incident happened in broad daylight and the complainant and the appellant were together for some time and talked to each other. He saw the person again only a few hours after their first meeting. Clearly, therefore, theirs was not a brief or casual meeting, and the circumstances cannot be said to have been calculated to make identification difficult.

The complainant's evidence was, I think, inferentially corroborated by the fact that the appellant was found in possession of two envelopes one of which contained an empty Sportsman cigarette packed. In his memorandum of appeal, the appellant tries to explain this by saying that "a packet of cigarette to be found empty is something normal after the cigarettes have been finished". That explanation is naive and sins by omission. It is not normal to keep an empty packet of cigarettes; and it is far less so to keep it in an envelope! In my view, the learned magistrate was correct in holding that that piece of evidence inferentially corroborated the complainant's evidence in that it suggested the *modus operandi* of the appellant.

On the basis of the foregoing, I am left in no doubt at all that PW.1 told the court the truth and that what he told the court was substantially what happened.

The next and, I think, the crucial question in this appeal is whether it is the appellant who took the money. The evidence here is, in a sense, circumstantial. If the evidence of the complainant is believed, and I, as did the trial magistrate, believe it, then the inevitable truth is that no other person touched or held the envelope which contained the money except the complainant himself and the ap-

pellant. The presence of an empty cigarette packet in an envelope on the person of the appellant only a few hours after their meeting with the complainant further strengthens the inference drawn by the learned magistrate that money passed to the appellant at the time he purported to insert the money passed to the appellant at the time he purported to insert the money in the envelope and that the appellant passed on to the complainant the envelope containing the empty cigarette packet instead of that which contained the money I defer to that reasoning and conclusion.

The indirect denial by the appellant of a meeting between him and the complainant may, in my view, be added to the complainant's credibility and the appellant's guilt.

On the basis of the foregoing, I take the view that even assuming that the learned trial magistrate did not sufficiently scrutinize and evaluate the complainant's evidence, he would have arrived at the same conclusion he did if he had done so.

As to what offence the facts constitute, I defer to the learned magistrate's conclusion that the facts constituted the offence of simple theft and not that of obtaining money by false pretences. This is so because the complainant did not willingly part with the money at that stage. It would have been a different matter if, as a result of the deception practised on him, he voluntarily parted with the money on the spot hoping to collect the goods later. All that the appellant did merely facilitated the theft.

For the foregoing reasons, and with respect to the learned state attorney, I can see no reason to fault the appellant's conviction.

I now turn to the sentence. The sentence of five years' imprisonment handed out to the appellant is undoubtedly severe for a first offender.

It is now well settled, however, that an appellate court will not interfere with a trial court's exercise of its discretion in sentencing unless it is plain that the sentencing court acted on wrong principles and so arrived at a sentence which is so manifestly inadequate or excessive as to have clearly resulted in a failure of justice, or where the sentence is unlawful. It ought not to interfere merely because the sentence is severe or simply on the ground that had it been trying the case it might have passed a different sentence.

There are cases, of course, where a sentencing court give no reasons for imposing a particular sentence which is, *prima facie*, manifestly inadequate or excessive. In such a case, an appellate court may be entitled to interfere on the ground that the trial court acted on no principles.

In the instant case, the sentence was lawful in that the learned magistrate had jurisdiction to pass such a sentence and the sentence is within the limits prescribed by statute in that the offence carries a maximum sentence of ten years' imprisonment. In sentencing the appellant, the learned magistrate gave good reasons: first, he said that the offence is prevalent in the area and secondly, he appreciated gravity of the loss suffered by the complainant. He then weighed these against the mitigating factor which was that the appellant was a first offender.

These, in my view, were material considerations. To those considerations I would have added the fact that the offence was committed in a very carefully

planned manner, and there was reason to believe that appellant was going to find another victim of his tricks.

For these reasons, the sentence will remain undisturbed. As the same requires confirmation by this Court, it is hereby confirmed.

In sum, this appeal fails and is accordingly dismissed in its entirety.

Appeal dismissed.

JOSEPH FRANCIS KILANGA *v.* REPUBLIC

[COURT OF APPEAL OF TANZANIA AT DAR ES SALAAM
(Mustafa, Mwakasendo and Kisanga, JJ.A.)]

CRIMINAL APPEAL 6 OF 1980

National Security—Being in illegal possession of a single pistol—Whether that can endanger security of the state.

Criminal Practice and Procedure being in illegal possession of a single pistol—Proper charge—Whether under National Security Act, 1970 or Arms and Ammunition Ordinance, Cap. 223.

The appellant was found with, among other things, a pistol for which he had no licence. He was charged under the National Security Act, 1970. On conviction he was sentenced to 8 years' imprisonment. The High Court dismissed his appeal.

In the Court of Appeal of Tanzania their lordships considered whether it was proper to charge the appellant under the National Security Act, 1970 given that he was found in possession of a single pistol. Counsel for the appellant had urged that the offence fell under the Arms and Ammunition Ordinance, Cap. 223.

Held: (i) as the law now stands, it is for the prosecution, in the light of the evidence it has, to decide whether to prosecute an offender under either the National Security Act or the Arms Ordinance;

(ii) the prosecution is not precluded from charging a person under the National Security Act because the number of weapons involved is small.

OBSERVATION: A simple offence of possession of offensive weapon should not be brought under the National Security Act which can result in a heavy sentence.

Appeal dismissed.

No case referred to:

M. J. Raithatha, for the appellant.

February 11, 1983. **MUSTAFA, J. A.,** read the following considered judgement of the Court: The appellant was convicted of being in possession of offensive weapons contrary to s. 8(1) of the National Security Act No. 3 of 1970 and of unlawful possession of uniform contrary to s. 97(1)(d) of the National Defence Act of 1966 in the Magistrates Court, and was sentenced to a total of 8 years' imprisonment. His appeal to the High Court was summarily dismissed.

The facts are not in dispute. He was found in possession of a pistol for which he had no licence, and of a military uniform which he had no right to possess.

The only point at issue raised by Mr. Raithatha for the appellant is whether the appellant was properly charged under the National Security Act. He submitted that illegal possession of firearms which was covered by s. 13 of the Arms and Ammunition Ordinance Cap. 223. It is true that the offence of illegal possession is dealt with in both the National Security Act and the Arms and Ammunition Ordinance. In the Security Act illegal possession of a gun could be punished by a 10 years' sentence whereas that in the Arms and Ammunition Ordinance by one year.

Mr. Raithatha submitted that a person found in illegal possession of a single gun or pistol could only be charged under the Arms and Ammunition Ordinance as such a person could not be said to endanger state security which he maintained is the object of the National Security Act to preserve.

In our view, as the law now stands, it is up to the prosecution, in the light of the evidence it has, to decide whether to prosecute an offender under either the National Security Act or the Arms Ordinance. Even under the National Security Act, a court has the power to impose such sentence as it thinks fit, in the light of the evidence established at the trial. We cannot say that the prosecution is precluded from charging an offender under the National Security Act if the number of weapons involved is small. There is some force in Mr. Raithatha's argument that a simple offence of possession of offensive weapons should not be brought under the National Security Act which can result in a heavy sentence; but that is a matter more of policy than of legal interpretation.

Appeal dismissed.

LAURENT JOSEPH AND ANOTHER *v.* REPUBLIC

[COURT OF APPEAL OF TANZANIA AT ARUSHA
(Nyalali, C. J., Mwakasendo and Makame, JJ.A.)]

CRIMINAL APPEAL 23 OF 1979

Criminal Practice and Procedure—Effect of non-representation by counsel in murder case..

Criminal Practice and Procedure—Lack of representation by counsel in the case of one of several accused charged with murder—Appeal Court orders retrial for the convict who was not represented by counsel—Effect on the appeal by the other convicts.

The four appellants were convicted of murder and condemned to suffer death. On appeal it was found out that one of the convicts was not represented by counsel during the hearing of the case. The Court of Appeal of Tanzania considered the effect of lack of representation by counsel in a murder case. The Court also considered the effect on the appeal by those represented by counsel after it had ordered retrial of the convict not represented by counsel during the trial.

Held: (i) since it cannot be said that if the appellant, who was not legally represented during trial, had been legally represented a different picture would not possibly have emerged, a new trial for the appellant, represented by counsel, is necessary;

(ii) although the trial of the appellant who were legally represented cannot be faulted on the ground of non-representation, since the retrial of their fellow appellant might give rise to certain factors which might affect the other appellants differently, there should be a retrial for all the appellants.

Proceedings by trial court quashed. Retrial ordered.

No cases referred to.

F. B. Mahatane, for the appellants.
Ntabaye, for the respondent.

November 22, 1979. **MAKAME, J.A.,** read the following considered judgment of the Court: These four appellants and eight other persons were charged with the murder of one Peter Hamisi. On the first day of appearance all the twelve accused were represented by Mr. Msiska, learned counsel, who, on that occasion, expressed the view that there was a conflict of interest and successfully applied for three advocates to be assigned. On the second occasion the representation was thus:

Mr. Msiska for Accused 1, 2, 4 and 5;
Mr. Shayo for Accused 6, 7, 8 and 9; and
Mr. Mawalla for Accused 10, 11 and 12.

It is immediately evident that Accused 3 Valerian Michael was left out as no counsel appears to have been assigned for his defence on that occasion. According to the record, he was present in Court and he entered a plea of Not Guilty accordingly.

At an early stage in the proceedings a *nolle Prosequi* was entered in respect of four accused persons and these included all the three advocated for by Mr. Mawalla, so naturally Mr. Mawalla dropped out. The remaining eight accused were re-numbered, the accused Valerian Michael remaining Accused 3 as before. He was one of the four who were eventually convicted and condemned to death.

Mr. Mahatane appeared for all the appellants before this Court. One of the grounds he raised was this one of lack of representation of accused Valerian Michael, now appellant 2, and we invited Mr. Mahatane to address us on this point first as it appeared to us important to dispose of that one before proceeding to hearing learned argument on the other grounds. He convincingly submitted that the second appellant was not afforded the services of learned counsel and so he should be re-tried. Mr. Ntabaye, learned Principal State Attorney initially resisted but eventually he conceded and went along with Mr. Mahatane.

We have carefully searched the record. At first we thought the omission was merely *lapsus calami* and optimistically hoped that we would later on in the trial record glean a sure indication that the accused Valerian Michael was in fact represented. However, nowhere during the course of trial, in cross-examination as well as in the addresses at the end, have we found any specific reference to Valerian such as would lead us to conclude that in fact he was represented or given opportunity to cross-examine witnesses for the prosecution and that the omission was a mere slip of the pen. Like all the other seven accused, the appellant Valerian made an unsworn statement and no one led him. While we have no reason to think that he was deliberately denied the services of learned counsel, the fact still remains that he was left out between two stolls. We cannot say that if he had been legally represented a different picture would not possibly have emerged. A new trial for Valerian, represented by Counsel, is necessary in our view.

The question next arising is whether a new trial for the other appellants, whose trial cannot be faulted on the same scope as Valerian's, would be necessary. We think so. We feel that if we should at this stage proceed to hear and determine the appeal on behalf of the other three appellants a new problem might arise, and it is this: Valerian's defence in the new trial might bring to light certain factors which might affect the other appellants differently and we might as a result have different views about the appellants. In that event we would be impotent and unable to give effect to our eleventh-hour opinion as well as we will have disposed of the three appellants' appeal without the benefit of Valerian's story, properly told. Because of the foregoing we agree with Mr. Mahatane that there should be a new trial for all the appellants, a course Mr. Ntabaye was not opposed to.

We accordingly quash the proceedings and order a trial *de novo* before a different judge.

We wish to take the opportunity to observe that the trial record should have indicated clear compliance with the provisions of s. 278 of the Criminal Procedure Code.

Proceedings by trial court quashed. Retrial ordered.

BUKULUKULU NDOMA v. REPUBLIC

[COURT OF APPEAL OF TANZANIA AT MWANZA
(Nyalali, C. J., Mwakasendo and Kisanga, JJ.A.)]

Criminal Law—Defence-Self-defence—Accident.

The appellant was charged with and convicted of murder by the High Court. The evidence showed that the appellant used a pounding stick to hit his wife, the deceased who died on the spot. In the Court of Appeal counsel for the appellant contended that he hit the deceased in self defence while defending himself from his mother-in-law who was attacking him. Counsel for the appellant also raised the defence of accident.

Held: (i) where self-defence is pleaded, the conduct which induces the fatal injury must have come from the deceased and not from some third person;

(ii) in this case the defence of self-defence is misconceived because the deceased was an innocent person;

(iii) in this case the defence of accident fails because the appellant directly and deliberately hit the deceased on the head using a pounding stick.

Appeal dismissed.

No case referred to:

R. W. Rugarabamu, for the appellant.

September 7, 1981. KISANGA, J. A., read the following considered judgement of the Court: This is an appeal against conviction for murder and a sentence of death imposed by the High Court sitting at Tabora.

The deceased in this case was the appellant's wife. Both the appellant and the deceased lived in Mwakabasa village, Nzega District. One day the deceased left the appellant's home and went to visit her parents who lived in another village. She spent the night at her parents' home and on the following day the appellant

followed her, arrived there during the day time. He stayed on until evening. His wife, the deceased, and his mother-in-law prepared a meal and duly served him. After the meal the appellant enquired from his wife as to where they were going to sleep that night, but the prosecution and the defence gave different versions of what followed or happened after that.

The prosecution story as given by the appellant's mother-in-law was very brief. She said that upon the appellant asking where he and the deceased would sleep that night, the deceased replied that they would sleep in the children's house. Whereupon the appellant picked up a pounding stick and struck the deceased with it twice on the head. The deceased fell down and died on the spot.

As stated earlier, however, the appellant's account was different. He said that in answer to his enquiry, the deceased refused to find a place for him to sleep in. Then his mother-in-law abused him using some vulgar language but he was not angered or annoyed by such abuses. Then his mother-in-law picked up a stick and threw it to him. He went on to say that he in turn picked up that same stick and threw it at his mother-in-law. The stick struck someone whom he does not know. Then his mother-in-law picked up a spear and on seeing this he ran away.

The Post Mortem Examination report shows that the deceased sustained a smashed fracture of the skull involving the frontal bone, the frontal parietal and occipital bones. The learned trial Judge after due evaluation of the evidence before him accepted the prosecution version. He found that considering the nature of the injury sustained, the appellant must have inflicted it by hitting the deceased directly on the head using the pounding stick. He accordingly convicted the appellant as charged.

Mr. R. W. Rugarabamu, advocate, represented the appellant in this appeal. He filed two grounds of appeal but at the hearing he pursued only one and abandoned the other. In the said ground of appeal the learned advocate complained that:—

> The learned trial Judge failed to give consideration to the defence of 'Self-defence' and erroneously convicted the appellant of murder.

Mr. Rugarabamu contended that the appellant injured the deceased while he was engaging, or struggling with his mother-in-law and that had the learned trial Judge so directed himself he might have acquitted the appellant on the charge or he might have found him guilty of the lesser offence of manslaughter.

Self defence has been provided for under s. 18A of the Penal Code as amended by Act No. 14 of 1980. That section says that:—

18A.—(1) Subject to the provisions of this Code every person has the right—

(a) to defend himself or any other person against any unlawful act of assault or violence to the body.

The rest of the section is not applicable to the facts of the present case. It seems to [illegible] the plain meaning of this provisions is this: Where self-defence is pleaded,

it has to be shown that the deceased committed an unlawful act of assault or violence to the body, and that as a result of such conduct the prisoner inflicted the fatal blow on the deceased. In other words, the conduct which induces the fatal injury must have come from the deceased and not from some third party. Applying that principle to the facts of this case, it becomes at once apparent that the defence of self-defence is misconceived because the deceased was an innocent person. She did not put up any unlawful conduct which induced the appellant to inflict the fatal injury or her.

Mr. Rugarabamu conceded to this position but relied instead on the defence of accident. He submitted that his client was struggling with his mother-in-law during which he accidentally inflicted the fatal blow on the deceased. If this is in fact what had happened there might be room for considering the defence of accident. But as stated earlier the learned trial judge found that the appellant hit the deceased directly on the head. This finding is supported sufficiently by the evidence and we see no reason to differ. We are satisfied that the appellant directly and deliberately hit the deceased on the head using a pounding stick, and that there was no question of hitting her accidentally.

The defence of accident therefore fails and the appeal is accordingly dismissed.

Appeal dismissed.

ELIAS KIGADYE AND OTHERS *v.* REPUBLIC

[COURT OF APPEAL OF TANZANIA AT DAR ES SALAAM
(Nyalali, C. J., Mustafa and Kisanga, JJ.A.)]

CRIMINAL APPEAL 13 OF 1981

Criminal Law—Causation—Deceased who had been suffering from T.B. were beaten to death—Whether death due to natural causes.

Two of the appellants were convicted of aiding and abetting in the manslaughter of two deceased persons. Five other appellants were convicted of complicy in the manslaughter of the two deceased who were beaten to death.

In the Court of Appeal of Tanzania counsel argued that because the evidence showed that the two deceased had been suffering from tuberculosis they both could have died from bleeding due to tuberculosis and not necessarily due to the beatings. Moreover the appellants said they were not aware of what happened at the interrogation camp.

Held: (i) the evidence adduced at the trial clearly established that the beatings certainly contributed to and/or accelerated the death of both the deceased even if they were suffering from T.B.;

(ii) the deaths of the deceased were a direct result of the beatings;

(iii) the 1st and 6th appellants were properly convicted of aiding and abetting in terms of s. 22 of the Penal Code because they were fully aware of what was happening at the interrogation camp;

(iv) the 3rd appellant was rightly convicted of complicity in the manslaughter of one deceased in terms of s. 23 of the Penal Code because evidence revealed that he played an active role in interrogating the deceased;

(v) the 4th and 5th appellants were rightly convicted on the basis of common intention in terms of s. 23 of the Penal Code since they were actually involved in the interrogation proceedings and they were members of the 5th March meeting;

(vi) the 7th and 8th appellants were justifiably convicted on the basis of common intention in terms of s. 23 of the Penal Code because they were members in the 5th March meeting and could not but have known of what had happened at the interrogation sheds and of the deaths resulting from the beatings.

Appeals dismissed.

No case referred to:

M. A. Lakha, for the appellants.

March, 1983. **MUSTAFA, J.A.,** read the following considered judgment of the Court: The seven appellants together with another person who has since withdrawn his appeal, were charged jointly in the High Court with two counts of murder, one of Twiga Nindwa and one of Kangombe Kaliji. The 1st appellant Elias, the Regional Security Officer of Shinyanga, was convicted of aiding and abetting in the manslaughter of the two deceased and was sentenced to 5 years imprisonment on each count, concurrent. The 3rd appellant Gangata, the O.C.D. Bariadi, was convicted of complicity in the manslaughter of Twiga Nindwa, but was acquitted on the count of murdering Kangombe, and was sentenced to 8 years imprisonment. The 4th appellant, Mdachi, the 5th appellant Kalindaga, both security officers from Dar es Salaam, the 7th appellant Kitumbo, R.C.O. Kigoma and the 8th appellant Tunguja, R.C.O. Coast, were all found guilty of complicity in manslaughter on both counts and each was sentenced to 8 years imprisonment on each count, concurrent. The 6th appellant Kinong'o, R.C.O. C.I.D. Shinyanga was found guilty of aiding and abetting in the manslaughter on both counts, and was sentenced to 5 years imprisonment on each count, concurrent. The 2nd appellant withdrew his appeal.

The seven appellants have appealed against these convictions and were represented by Mr. Lakha. The brief background to the incidents which gave rise to the trial is as follows: In 1975, there was a spate of unsolved killings in the Shinyanga and Mwanza Regions. The situation became very grave and a joint meeting of the Shinyanga and Mwanza Regional Defence and Security Committees was held at Shinyanga on 24th January, 1976. It was a very high level

meeting and was chaired by the then Prime Minister and 2nd Vice President. It was decided at that meeting that all suspected murderers, together with witchdoctors and habitual criminals were to be apprehended and interrogated, and that the Security Service was to assist the Police in the operation.

The Shinyanga arrests began on 21st February and ended on 3rd March, 1976. In all 523 suspects were arrested in the Region.

~~At the request of the 1st February and ended on 3rd March, 1976. In all 523 suspects were arrested in the Region.~~

At the request of the 1st appellant Elias, the then Inspector General of Police arranged for and sent an interrogation team consisting of Security and Police Officers to Shinyanga. The team included all the present appellants, with some other members. On 5th March, 1976 the interrogation team met with all the appellants, except for 3rd appellant Gangata, present. The prosecution had alleged that the March meeting decided on the strategy method and manner of interrogation to be used, whereas the appellants alleged that at that meeting all they did was to introduce themselves to one another and did nothing else.

In the interrogation began on 8th March and went on for 10 days. About 50 suspects were interrogated each day. The interrogation site chosen was at Mwang'holo, some 15 miles from Maswa township, at an abandoned cotton buying centre, away from human habitation. There was tight security around the area, and all unauthorised persons were kept away by police cordons. There was a large force of police at the site.

The abandoned cotton buying centre consisted of 3 buildings. The smallest one was used as an office and the other two used for interrogation purposes.

There was ample evidence which established that the interrogation proceeded as follows. The 500 odd suspects had been remanded in custody by the courts at the Shinyanga, Maswa and Malya prisons. The suspects, who consisted of men and women of all ages, were taken in tipper lorries each day and deposited outside one of the two sheds. The suspects were then ordered to strip completely and squat on the ground. In the meantime a pepper-cum-lemon solution was brewing in the shed infront of which the suspects had squatted. The naked suspects were then ordered into the shed. As they entered, they were beaten with sticks on their backs. Inside the shed they were made to lie on their backs. Then one of the suspects would be made to stuff the pepper-cum-lemon solution in the eyes, nostrils, mouth, anus and genitals of the suspects. The suspects in the meantime would remain lying on their backs, with one leg raised, awaiting their turn to be called to the other shed for interrogation.

The suspects would be called out in ones or twos. The route from the pepper-cum-lemon solution brewing shed to the interrogation shed was lined with policemen on both sides and the suspects would be beaten with sticks all the way as they travelled to the interrogation shed. The suspect in the interrogation shed was made to lie on a stone, and then he would be beaten. The sticks used for beating were of all sizes, some thin, some thick. The beating administered in this shed was very severe and brutal. The suspect was then returned to the pepper-cum-lemon brewing shed and would be beaten along the route on the way back.

The beating was on the body, the chest and back, but it would appear that the head of the suspect was exempt.

After this interrogation, 109 suspects were recommended for detention, 10 suspects had died and the rest released. Twiga and Kangombe were among those who died.

The first and possibly the most important ground of appeal raised by Mr. Lakha was whether the two deceased could have died from natural causes. On the evidence adduced Twiga could have suffered from tuberculosis and Kangombe obviously was suffering from the disease. It was submitted that both could have died from bleeding due to tuberculosis, i.e. from natural causes.

As regards Twiga, the medical evidence concerning his condition was given by PW.5 Dr. Nkwera. On or about 16th March, Twiga was seen by Dr. Nkwera at a hospital ward. PW. 5 said Twiga was in a critical condition and was coughing blood and his chest was swollen both front and back. Twiga died an hour later. We will not refer to any more evidence of Dr. Nkwera, who was a self-confessed liar in that he had submitted a false post-mortem report on Twiga, at the instigation, so he alleged, of the Area Commissioner, in order to concel any criminal acts on the part of the interrogation team. For the benefit of the appellants we will accept that Twiga was coughing blood before he died, an coughing blood could be an indication that Twiga was suffering from T.B.

There was evidence from PW. 19 Dr. Lembariti who performed a post mortem on Kangombe that Kangombe's lungs were afflicted with T.B. He found blood in Kangone's lungs. PW. 19 stated that it was not possible to differentiate between bleeding due to T.B. and bleeding due to other causes. He said, *inter alia,* "And considering the state of the lungs as I saw them, even a violent assault on the back could cause the same result. In this case it was the large blood vessel which was ruptured. A rupture of the large vessel followed by haemorrhage would normally terminate life in a short time if no immediate medical attention is available."

Dr. Shaba gave opinion evidence as a medical expert. He stated: ". . . external fracture of ribs can cause haemorrhage in lungs, can be caused by crash, wall or tree falling on person or any great force. Severe beating may cause haemorrhage but not inside lungs. Blood would go in pleural sac". Again "a T.B. patient may be made to cough blood if he is beaten or chased about if the T.B. has started to erode on the vein. That would accelerate rupture of the vein". And again "I agree a T.B. patient with eroded blood veins may have rupture of veins and haemorrhage accellerated by assault due to rise in intra-pulmonary pressure. An eroded wall falls more easily than a strong one." And lastly "A severe beating to cause rupture of internal large vessels would be something approximating a crash. If blood is found in both lungs and a person has T.B., primarily the bleeding is caused by T.B."

We will now briefly examine eye witness accounts of the deaths of Twiga and Kangombe, of their condition and state of health immediately before and after the beatings. PW.4 Silas, an arrested suspect, testified that he saw Twiga entering the shed where beatings were administered and when he came out Twiga was in a terrible condition, could not talk, his scrotum swollen and bleeding and had to be helped on to motor vehicle and died later the same day. PW.5 Jackson, a friend of

Twiga lying naked on a stone in a shed and being very severely beaten with heavy sticks from the back down to the legs. Twiga was then removed and PW.5's turn came to be beaten. He said Twiga was a healthy person when arrested. Twiga died about 9 hours after the beating.

As for Kangombe, PW.13 Inspector Vincent testified that he was one of those who took Kangombe from Shinyanga prison to Mwangh'olo for interrogation. He said Kangombe was in good health. He saw Kangombe enter the shed where beating took place; he did not see the beating but heard Kangombe cry out. He saw Kangombe come out of the shed after the beating. He said that Kangombe was swollen on the back and buttocks and thighs and his conditions was critical. He learnt that evening that Kangombe had died. It would seem that Kangombe died 5 to 7 hours after he was beaten. PW. 16 James stated that he met Kangombe at Shinyanga prison and was in the group with Kangombe taken to Mwang'holo on the material day. He said that after the beating, Kangombe was in a critical condition and had to be helped to board a lorry and that Kangombe died on the way back to Shinyanga prison. PW. 18 Bulungu also met Kangombe in Shinyanga prison and stated that Kangombe was youthful and healthy. After the beating Kangombe was in a critical condition. PW.18 and his co-suspects helped Kangombe on to the vehicle which was taking them back to Shinyanga prison, but that Kangombe died on the way.

The judge in his judgment stated, in reference to the death of Twiga:

> Admittedly, the defence had no obligation to prove positively that Twiga died of natural causes. They had only to raise the possibility of it, in other words, to show that death by natural causes had not been excluded.

Mr. Lakha criticised this proposition. We agree it is a misdirection; it is for the prosecution to exclude the possibility of death by natural causes. The defence has no onus placed on it. However, the judge held:

> there was direct eye witness evidence linking the beating to the death of Twiga. He was in good health at one time; he was critical (sic) in the next. So even assuming for interest that Twiga had T.B. and that it had causative effects, the direct linkage between the beating and the death removes the case from the realm of natural causes.

He therefore found that Twiga died as a result of the beating he had received. Similarly he found that Kangombe was of apparent good health until he was beaten at Mwangh'olo from which he never recovered, but died a few hours later and he concluded that Kangombe also died from the beating.

It is clear to us that the judge if not expressly then impliedly and implicity substantially accepted the prosecution evidence about the nature of the beating administered to both Twiga and Kangombe, and the result arising thereout.

We, like the judge, think that the evidence adduced at the trial clearly established that the beating certainly contributed to and/or accelerated the death of Twiga and Kangombe even if they were suffering from T.B. Like the judge, we are satisfied that the deaths were a direct result of the beatings. We do not think that the medical evidence adduced in this case which was on the whole unsatisfactory,

can in any way raise a doubt that the deaths could have been caused otherwise than by the severe physical beating administered to both Twiga and Kangombe. We have not dealt with the issue of the identity of Kangombe or the showing of bruise marks on the dead bodies, as we are of the clear view that the body of Kangombe was properly identified and the bruise marks or the lack of them are of no significance in the circumstances.

The next substantial ground of appeal is about the nature of the 5tn March, 1976 meeting. PW.2 Martin, a senior Police Officer was sent from Dar es Salaam to assist in the interrogation operation. He drew up an operation order. He attended the 5th March, 1976 meeting. All the appellants, apart from appellant 3 Gangata, were there. He stated that it was decided at the meeting that the interrogation operation would require pepper, lemon, sticks, buckets of water, etc. He said PW.8 Mfundo, a security officer took minutes of the meeting. PW.2 Martin said he did not ask why those items were needed for the interrogation. He later visited Mwangh'olo and saw the suspects being beaten. He left for Dar es Salaam shortly thereafter. PW.8 Mfundo, a security officer, attended the March meeting and took minutes of that meeting. However, the minutes could not be produced as he alleged he had handed them over to one of the appellants. He said it was decided at that meeting that a suitable site be found for the interrogation and that pepper, lemon, sticks, water and so on were to be procured for the operation. He visited Mwangh'olo during the interrogation once and saw the suspects being beaten. Both PW. 2 Martin and PW.8 were not very satisfactory witnesses, both were obviously trying to minimise their own part in the operation, but their evidence that the 5th March meeting devised the method of operation and the implements used strikes as substantially true. Both circumstances precedent and subsequent support their evidence. The 24th January meeting presided over by the then Prime Minister had decided that all suspected killers were to be arrested and interrogated, and the appellants formed the team set up for the purpose. There was evidence that the appellants and other team members met together only on the 5th March, there was no evidence of any other meeting. It is in the nature of things that the team must meet to plan strategy before the operation and the evidence of PW.2 and PW.8 that the team met on 5th March for that purpose was inherently probable and true. Again, pepper, lemon and sticks etc. were used during the interrogation of the suspects when information was being extracted from them by torture. That was confirmation of the evidence of PW.2 and PW. 8. Like the judge, we are satisfied that at the 5th March meeting, the appellants had met to decide the method to be used in the interrogation proceedings, and that the same was duly carried out at Mwangh'olo. We reject as false the appellants' allegation that they had met at that meeting only to introduce themselves to one another and nothing else.

We will now deal with the appeal of each appellant. Incidentally, all the appellants had made unsworn statements at their trial. 1st appellant Elias was involved in and attended the 5th March meeting which we have found decided the strategy and method of interrogation carried out at Mwangh'olo. He attended evening review meetings and obviously was fully aware of what was happening at Mwangh'olo. Similarly 6th appellant Kinongo was involved in and attended the

5th March meeting, was present at Mwangh'olo when Bariadi suspects were being interrogated and attended the evening review meetings. He must have known what was happening there. Both these appellants alleged that they were unaware of what was taking place at Mwangh'olo. The judge rejected their protestation of ignorance. We think that they were properly convicted of aiding and abetting in terms of s. 22 of the Penal Code.

3rd appellant Gangata played an active role at Mwangh'olo when Bariadi suspects, and especially when Twiga, were under interrogation. A number of prosecution witnesses had testified to that effect. He was rightly convicted of complicity in the manslaughter of Twiga in terms of s. 23 of the Penal Code.

4th appellant Mdachi and 5th appellant Kalindaga were members of the 5th March meeting. They attended the interrogation session at Mwangh'olo throughout the 10 day period. They alleged that their role consisted only of recording statements of the suspects or such innocuous clerical duties, and that they had nothing to do with the beating. The judge concluded that they were lying, and found that they, the special emissaries from the Dar es Salaam Security Branch, were actually involved in the interrogation proceedings at Mwangho'olo. We think that they were rightly convicted on the basis of common intention in terms of s. 23 of the Penal Code.

We will deal with the 7th appellant Kitumbo and 8th appellant Tunguja together. Both attended the 5th March meeting and remained throughout the 10 day period at Mwangh'olo. There was credible evidence that both were seen at the interrogation shed when suspects were being beaten. They attended the evening review meetings and they could not but have known of what had happened at the interrogation sheds and of the deaths resulting from the beatings. They pleaded unawareness of what was happening at Mwangh'olo. The judge rightly rejected that defence and was justified in finding them guilty on the basis of common intention in terms of s. 23 of the Penal Code.

We feel constrained to make some observations which are not directly concerned with the determination of these appeals, but which nevertheless do arise from these proceedings. We think that some, if not all the appellants, could have been convicted of murder. We also think that some parties involved in the operation not charged before the Court could perhaps have been successfully prosecuted for the deaths of Twiga and Kangombe. This was a disgraceful episode which we trust will not be repeated.

Appeal dismissed.